

CHAPTER IX

BUILDING REGULATIONS

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BUILDINGS

[BUILDING CODE]

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

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SEC. 91.101. TITLE, PURPOSE, AND SCOPE.

91.101.1. Title. (Amended by Ord. No. 186,488, Eff. 12/27/19.) This article shall be known as the Los Angeles Building Code or Building Code or LABC, a portion of the Los Angeles Municipal Code (LAMC), and wherever the word Code is used in this article, it shall mean the Los Angeles Building Code. Sections of Article 1.5 of Chapter IX of the LAMC shall collectively be known as the Los Angeles Residential Code or LARC. The provisions of the LARC for one- and two-family dwellings shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal and demolition of detached one- and two- family dwellings and townhouses not more than three stories above grade plane in height with a separate means of egress and their accessory structures. In addition to the LARC, appropriate sections of Divisions 1, 11A, 11B, 17, 31, 31B, 33, 63, 67, 70, 71, 72, 81, 89, 92, 93 and 96 of the LABC shall also be applicable to one- and two-family dwellings and townhouses unless stated otherwise.

The Los Angeles Building Code and the Los Angeles Residential Code adopt by indicated reference portions of the 2022 California Building Code (CBC) and the 2022 California Residential Code (CRC), respectively. The CBC and the CRC are Parts 2 and 2.5, respectively of Title 24 of the California Code of Regulations (CCR). **(Amended by Ord. No. 187,719, Eff. 1/23/23.)**

EXCEPTION: Live/work units complying with the requirements of CBC Section 419 shall be permitted to be built as one- and two-family dwellings or townhouses. Fire suppression required by CBC Section 419.5 when constructed under the CRC for one- and two-family dwellings shall conform to CBC Section 903.3.1.3.

91.101.2. Purpose. The purpose of this article is to safeguard life, limb, health, property and public welfare by regulating and controlling the design, construction, quality of materials, use and occupancy, location and maintenance of all buildings and structures erected or to be erected within the city, and by regulating certain grading operations within the city.

91.101.3. Application. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Chapters 1 through 97 of the LABC as published by the International Code Council (hereinafter referred to as the published code), are Divisions 1 through 97, respectively, of Article 1, Chapter IX of the LAMC. Only the division and section numbers are stated in the published code, for uniformity with the CBC. For the complete LAMC section number, each code section number specified in Chapters 1 through 97 of the published code shall be presumed to be preceded by two digits and a decimal point (specifically “91.”). For example, this section is Section 91.101.3 of the LAMC.

91.101.4. Scope. (Amended by Ord. No. 180,619, Eff. 5/12/09.) The provisions of this Code shall apply to the construction, alteration, moving, demolition, repair, maintenance and use of any building or structure within this jurisdiction, except work located primarily in a public way, public utility towers and poles, mechanical equipment not specifically regulated in this Code, and hydraulic flood control structures.

For additions, alterations, moving and maintenance of buildings and structures, see Article 1.2, Chapter IX of the Los Angeles Municipal Code. For temporary buildings and structures, see CBC Section 3103. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

Where, in any specific case, different sections of this Code specify different materials, methods of construction or other requirements, the most restrictive shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

The codes and standards referenced in this Code shall be considered part of the requirements of this Code to the prescribed extent of each reference. Where differences occur between provisions of this Code and referenced codes and standards, the provisions of this Code shall apply.

Wherever in this Code reference is made to an appendix, the provisions in the appendix shall not apply unless specifically adopted.

The metric conversions are provided in parenthesis following the English units. Where industry has made metric conversions available, the conversions conform to current industry standards. Formulas are also provided with metric equivalents. Metric equivalent formulas immediately follow the English formula and are denoted by “For SI” preceding the metric equivalent. Some formulas do not use dimensions and, thus, are not provided with a metric equivalent. Multiplying conversion factors have been provided for formulas where metric forms were unavailable. Tables are provided with multiplying conversion factors in subheadings for each tabulated units measurement.

91.101.5. Work Not in Scope. The provisions of this Code shall not apply to any of the following:

1. One-story detached accessory structures used as tool and storage sheds, playhouses and similar uses, provided the floor area is not greater than 120 square feet (11.148 m²), not located in Fire District No. 1 and does not contain any heating, plumbing or electrical installation, and is located as permitted by Chapter I of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
2. Oil derricks.
3. Towers or poles supporting public utility communication lines, antennas, or power transmission lines.
4. **(Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)** Retaining walls which are not over 4 feet (1219 mm) in height, measured from the bottom of the footing to the top of the wall, unless supporting a surcharge or sloping earth, or impounding flammable liquids. This exemption shall not apply to retaining walls of any height built on slopes steeper than 1 vertical to 5 horizontal (20% slope).
5. Water tanks supported directly upon grade if the capacity does not exceed 5,000 gallons (18 927 L) and the ratio of the height to diameter or width does not exceed 2 to 1.
6. Motion picture sets when not supported by any portion of any building.
7. Pergolas and lath houses, both of which shall be outside of any fire district, not over 400 square feet in area, and not supported by or attached to any portion of any building.
8. Work in a public way, dams and drainage structures constructed by or under contract with the Board of Public Works, the Department of Water and Power and the County Flood Control District, unless the structure forms a portion of the support for a building or a structure coming within the jurisdiction of the Department of Building and Safety.
9. Portable amusement devices and structures, including merry-go-rounds, ferris wheels, rotating conveyances, slides, similar devices, and portable accessory structures whose use is necessary for the operation of such amusement devices and structures; any portable accessory structure included in the provisions of this subdivision shall be limited to a cover or roof over each device, but shall not include any storage building or detached structure which is not an integral part of the device.
10. Isolated buildings not larger in area than 16 square feet, including roof projections, and not more than 8 feet in height, if separated by a distance of 20 feet or more.
11. Nothing in this Code shall apply to any excavation, removal, fill or deposit of any earth or other materials from individual interment sites, underground crypts or burial vaults within a property which is dedicated or used for cemetery purposes, provided that such work does not affect the lateral support or increase the stresses in or pressure upon any adjacent or contiguous property not owned by the cemetery authority.
12. The surface mining of minerals in a "G" Surface Mining District as established and provided for in LAMC Section 13.03, or where permitted by order of a court of competent jurisdiction. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
13. The depositing of rubbish or other material at any dump operated by the City or by any person pursuant to the provisions of LAMC Section 66.25. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
14. Nothing in this Code shall apply to grading in an isolated, self-contained area if the Department finds that by reason of such isolation and self- containment no danger to private or public property can now or thereafter result from grading operations. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
15. Any portable metal hangar less than 2,000 square feet in size, located on a city-owned airport, used for the parking of aircraft only, and bearing evidence of approval by the Department of Motor Vehicles of the State of California for movement on any highway. The structure shall, as an integral part of its basic construction, be equipped with a hitch or coupling device for towing. It shall accommodate, without further major structural change, wheel and axle assemblies which will provide the structure with a safe means of portability. No water or sanitary facilities shall be permitted in this structure and it shall be equipped with permanent ventilation as required for Group S-1 Occupancy. **(Amended by Ord. No. 180,619, Eff. 5/12/09.)**
16. Tents and trailers used for office or shelter purposes accessory to a Christmas tree sales lot during the month of December only, provided the aggregate area of all tents and trailers does not exceed 600 square feet (56 m²) for each sales lot. (Such tents are regulated by the Fire Department under Article 7, Chapter V of the LAMC.) **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
17. Tents accessory to a dwelling and not exceeding 450 square feet in area.
18. Signs not exceeding 20 square feet in area, placed upon the surface of the ground, no part of which extends more than 6 feet 6 inches above the underlying ground, which have no mechanical or moving parts or to which no electricity or other source of illumination or power are attached or made a part thereof. Such signs shall be separated from each other a minimum distance of 15 feet.
19. Boards and signs used exclusively to display official notices issued by any court or public officer in the performance of a public duty or by a private person in giving legal notice.

SEC. 91.102. UNSAFE BUILDINGS OR STRUCTURES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The regulations for the abatement of unsafe buildings or structures are enumerated in Division 89, Article 1, Chapter IX of the LAMC.

SEC. 91.103. VIOLATIONS.

(Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.103.1. General. No person shall construct, alter, repair, demolish, remove, move, use, occupy or maintain, within the City, any building or structure or any portion thereof, except as provided by this Code.

No person shall grade, excavate or fill any land except as provided by this Code.

The permissive provisions of this Code shall not be presumed to waive any limitations imposed by other statutes or ordinances of the state or City.

All of the provisions of this Code shall be limitations for safeguarding life, limb, health, property and public welfare.

If two or more pertinent limitations are not identical, those limitations shall prevail which provide the greater safety to life or limb, health, property or public welfare.

91.103.2. Violation of a Building or Grading Permit. Every person who knowingly and willfully procures a building and/or grading permit without the consent of the owner of record of the property for which the permit is issued, or such person's agent, is guilty of a misdemeanor.

EXCEPTION: This subsection shall not apply to building and/or grading permits obtained pursuant to and in compliance with an order of a court of law or a governmental agency.

91.103.3. Violation of an Order. No person shall fail to comply with any valid order issued pursuant to any provision or requirement of this Code.

91.103.4. Making False Statements to the Department. It shall be unlawful for any person, authorized by the Department to perform inspections, to make a false or misleading statement, or misrepresentation in any writing submitted to the Department.

For purposes of this section a **"person authorized by the Department to perform inspections"** is any person who is a registered deputy inspector, a structural inspector, a certified welder or a certified licensed contractor. The term **"writing"** shall include, but is not limited to, forms, applications, approvals, reports or certifications required by the Department.

Every violation of this section is punishable as a misdemeanor.

SEC. 91.104. ORGANIZATION AND ENFORCEMENT.

91.104.1. Creation of the Department. (Repealed by Ord. No. 173,159, Eff. 5/7/00, Oper. 7/1/00.)

91.104.2. Powers of the Department and Duties of the Superintendent of Building. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

91.104.2.1. General. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The powers of the Department are enumerated in LAMC Section 98.0403.1.

The Superintendent of Building shall have the duty to render interpretations of this Code and to adopt and enforce rules and supplemental regulations to clarify the application of its provisions. These interpretations, rules and regulations shall be in conformance with the intent and purpose of this Code.

The Superintendent of Building shall classify every building into one of the occupancies set forth in Division 3 of this Code according to its use or the character of its occupancy. The Superintendent of Building shall also classify every building into one of the types of construction set forth in Division 6 of this Code.

91.104.2.2. Authority to Require Exposure of Work. Whenever any work on which called inspections are required, as specified in LAMC Section 91.108, is covered or concealed by additional work without first having been inspected, the work shall be exposed for examination upon written notice by the Department. The work of exposing and recovering shall not entail expense to the City. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.104.2.3. Right of Entry. The authority for right of entry is enumerated in LAMC Section 98.0105. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.104.2.4. Authority to Stop Work. Whenever any construction work is being done contrary to the provisions of any law or ordinance enforced by the Department, the Department shall have the authority to issue a written notice to the responsible party to stop work on that portion of the work on which the violation has occurred. The notice shall state the nature of the violation and no work shall be done on that portion until the violation has been rectified and approval obtained from the Department. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.104.2.5. Authority to Stop Use or Occupancy. Whenever any portion of a building is loaded in excess of the loading for which it was constructed, or whenever it houses an occupancy other than that for which it was constructed, or whenever there is an encroachment upon any required court or yard, the department shall have the authority to order by written notice that such violation be discontinued.

The written notice shall state the nature of the violations and shall fix a time for the abatement thereof. If the violations have not been abated by the expiration of the fixed time, the Certificate of Occupancy shall thereupon be canceled.

91.104.2.6. Alternate Materials, Alternate Design and Methods of Construction. New or alternate materials and methods of construction may be approved by the Department as provided by CBC Section 104.11 and LAMC Section 98.0501. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.104.2.7. Building Materials Inspection Required.

91.104.2.7.1. No person shall use or cause to be used, in the construction of any building or structure for the erection of which a permit is required by this chapter, any materials which are not specifically permitted by this Code, without having first secured the approval of said materials by the department.

91.104.2.7.2. The department may require that all materials to be used in the construction of any building or structure, or materials already used or fabricated into a building or structure, be submitted for test to a testing agency approved by the department.

91.104.2.7.3. It is unlawful for any person to fail to submit to an approved testing agency within five days after having received a written notice from the department a sample, sufficient for analysis, of any material to be used in the erection or construction of a building or structure, or which has been used or fabricated into a building or structure.

91.104.2.7.4. No material required by the department to be submitted to a testing agency for analysis shall be approved by the department unless the person requesting said approval submits a written report of the analysis by such testing agency.

SEC. 91.105. APPEALS.

91.105.1. General. Appeals or requests for slight modifications in individual cases from the requirements of this Code shall be made in accordance with the procedure established in LAMC Section 98.0403.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.105.2. Building Advisory Appeal Board. The Building Advisory Appeal Board is hereby abolished. Any duties assigned to the Building Advisory Appeal Board by any provision of law shall be performed as determined by the Superintendent of Building.

91.105.3. Engineering Geology Advisory Committee.

91.105.3.1. Function of the Committee. It shall be the function of the Engineering Geology Advisory Committee to advise and counsel the board on appeals involving technical questions of soils engineering, geology, geology/seismology and related matters.

91.105.3.2. Establishment of the Committee Member List. The Board of Building and Safety Commissioners shall establish an Engineering Geology Advisory Committee member list (hereinafter in this section referred to as the **"committee member list"**) which shall consist of not less than 10 soils engineers and engineering geologists who are available to serve as members of the Engineering Geology Advisory Committee. At least two of the engineering geologist members and two of the soils engineer members shall have experience in the field of seismic design and safety. Members of said committee shall be exempt from all Civil Service provisions.

91.105.3.3. Procedure. When an appeal is made to the Board, and the Board determines that the subject of the appeal involves a problem of soils engineering, geology, geology/seismology or a related matter on which it desires further technical advice before it renders a decision thereon, the Board may select three or more persons from the Engineering Geology Advisory Committee member list to serve on a committee for the purpose of assisting the Board in seeking a solution to said problem, and may refer the matter to such committee members for report and recommendation. At least one member of the committee so designated shall be a soils engineer and one shall be an engineering geologist. The members of the committee so meeting shall review the matter and shall then submit to the board a recommendation. When a matter is referred to the committee as in this section provided, the board shall consider, but is not bound to accept, the recommendation of the committee.

91.105.3.4. Compensation of Members. Each member of the committee who is in actual attendance at a meeting requested by the board shall be compensated at the rate of \$50.00 for each four hours or fraction thereof of service. However, in no case shall the compensation of the committee members exceed the fee paid by the appellant under Section 91.105.3.6 of the Los Angeles Municipal Code.

91.105.3.5. Self insurance by the City for Geology Advisory Committee Members. The provisions of City of Los Angeles Administrative Code (Administrative Code) Sections 11.36 through 11.44 inclusive, entitled "Self-Insurance by the City for Officers and Employees of Said City", shall apply to each Geology Advisory Committee member while the member is acting as such, and Geology Advisory Committee members shall be deemed to be fully covered by the provisions of said sections even though each committee member is retained as an independent person and not as an officer or employee of the City. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.105.3.6. Fees. When a matter is referred to the committee as provided in this section, the appellant in said matter shall pay a referral fee of \$50.00 and shall also pay a fee as follows:

1. Where no more than two lots are involved in the appeal, \$150.00;
2. Where not less than three or more than 10 lots are involved in the appeal, \$300.00;
3. Where more than 10 lots are involved in the appeal, \$600.00.

91.105.4. Sign Advisory Committee.

91.105.4.1. Function of the Committee. It shall be the function of a Sign Advisory Committee to advise, counsel and provide recommendations to the Board of Building and Safety Commissioners on matters involving sign regulations.

91.105.4.2. Establishment of the Committee Member List. The Board of Building and Safety Commissioners shall establish a Sign Advisory Committee member list representing the various required fields of interest of persons who are available to serve as members of a Sign Advisory Committee. Persons selected for the Sign Advisory Committee list shall possess experience in the design, fabrication, the use or application of signs, or shall have demonstrated a background in the social and environment impacts of signs or the development of sign regulations. Members of said committee shall be exempt from all civil service requirements.

91.105.4.3. Procedure. When the board determines that a matter is significant in nature, the board may refer the matter to a Sign Advisory Committee for evaluation and recommendation before it renders a decision thereon. When the matter is referred to a Sign Advisory Committee, the board shall consider, but is not bound to accept, the recommendation of the committee.

91.105.4.4. Composition of the Committee. The board shall select five persons from the Sign Advisory Committee member list to serve on a committee. The committee shall be composed of one member from each of the following interests:

1. One member of or designated by the Board of Building and Safety Commissioners;
2. One member of or designated by the City Planning Commission; and
3. Three public members, one each from the following interests: architecture, sign industry and community groups.

91.105.4.5. Compensation of Sign Advisory Committee Members. Each Sign Advisory Committee member who is in actual attendance at a meeting requested by the Board shall be compensated at the rate of \$50.00 for each four hours or fraction thereof of service. However, in no case shall the compensation of Sign Advisory Committee members exceed the fee paid by the applicant under LAMC Subdivision 91.105.4.7. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.105.4.6. Self-insurance by the City for Sign Advisory Committee Members. The provisions of Administrative Code Sections 11.36 through 11.44, inclusive, shall apply to each Sign Advisory Committee member while the member is acting as such, and Sign Advisory Committee members shall be deemed to be fully covered by the provisions of said sections even though each committee member is retained as an independent person and not as an officer or employee of the City. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.105.4.7. Fees. When a matter is referred to the committee as provided in this section, the applicant in said matter shall pay a referral fee of \$300.00.

91.105.5. Disabled Access Appeals Commission.

91.105.5.1. Creation of the Commission. There is hereby established a commission known as the Disabled Access Appeals Commission (hereinafter referred to as the "commission" in LAMC Subsections 91.105.5 et seq. and 91.105.6 et seq.). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.105.5.2. Membership of the Commission. (Amended by Ord. No. 173,238, Eff. 6/19/00, Oper. 7/1/00.) The Disabled Access Appeals Commission shall be composed of five qualified persons. Two members of the commission shall be physically disabled persons, and two members shall be persons experienced in construction. The fifth member may be any resident of the City of Los Angeles. Commission members shall be appointed by the Mayor, subject to Council approval, and may be removed by the Mayor. In the case of a vacancy during the term of office of any member, the same shall be filled by appointment by the mayor for the period of the unexpired term subject to the approval of the council by a majority vote. The members of the commission shall be exempt from all Civil Service provisions.

91.105.5.3. Compensation and Term of Office. Each member of the commission shall be paid \$50.00 per meeting attended, but not to exceed \$250.00 in any one calendar month.

The term of office of the members of the commission shall be five years beginning with the first day of July of the respective years, except that the terms of office of the original five members of the commission appointed pursuant to this subsection shall be such that one term shall expire on the first June 30, one term shall expire on the second June 30, one term shall expire on the third June 30, one term shall expire on the fourth June 30, and one term shall expire on the fifth June 30 next following the effective date of the appointment of the original five members. Thereafter, the terms of the succeeding members shall be so designated that the term of office of one member shall expire each year. The period of term of each member shall be designated in the appointment.

Each member of the commission shall have the power to administer oaths.

91.105.5.4. Authority of the Commission. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Disabled Access Appeal Commission shall have and exercise the following powers:

1. To hear and determine written appeals brought by any person from actions taken by the Department in the enforcement of the requirements of California Health and Safety Code Section 19955, et seq., the provisions of state law dealing with access to public accommodations by physically disabled persons.

2. To hear and determine written appeals brought by any person from the rulings, decisions and determinations of the Department granting or denying applications for exceptions pursuant to California Health and Safety Code Section 19957.

3. To hear and determine written appeals brought by any persons where it is alleged that there is error or abuse of discretion in any order, requirement, decision, interpretation or other determination made by the Department in the enforcement or administration of Section 1.8 et seq., Chapter 1, Division I of the CBC and any other federal, state or municipal handicapped access or adaptability requirements.

All appeals shall be reviewed by the Department. The Department may reverse or modify the action appealed from at any time prior to final action by the commission. Any such new action may then be appealed to the commission.

4. To respond to the Department's request for advice on any matter within the Department's jurisdiction relating to access to public accommodations and housing by the physically disabled.

5. To exercise the authority granted in LAMC Subsection 91.105.6.

91.105.5.5. Appeals.

91.105.5.5.1. Procedures. (Amended by Ord. No. 185,587, Eff. 7/16/18.) An appeal to the Disabled Access Appeals Commission may be filed by any person aggrieved, or by any City officer, board, department or bureau. An appeal shall be in writing and filed with the Office of the Board of Building and Safety Commissioners upon appropriate forms provided by the Department. An appeal shall set forth specifically the points at issue, the reasons for the appeal, and wherein the appellant believes there was an error or an abuse of discretion by the Department.

The commission shall make its determination within 30 days from the filing of the appeal and payment of the filing fee as set forth in Table 4-A of Division 4, Article 8, Chapter IX of the LAMC. This time limit may be extended by mutual written consent of the applicant and the commission. Upon receipt of the appeal, the commission shall set the matter for hearing and give notice by mail of the time, place and purpose thereof to the appellant, to the applicant, to the owner or owners of the property involved, and to any interested party who has requested in writing to be so notified. Such notice shall be in writing and mailed at least 10 days prior to said hearing. No other notice thereof need be given except in those cases hereinafter mentioned.

The commission may grant, conditionally grant, or deny any appeal. All actions of the commission shall be final. Any action within the jurisdiction of the commission shall be final and conclusive as to the Department in the absence of fraud or abuse of discretion.

A separate appeal shall be filed for each single building as described in LAMC Section 98.0403.2. Appeals to the commission shall be accompanied by a filing fee as set forth in Table 4-A of Division 4, Article 8, Chapter IX of the LAMC.

If the commission fails to act on any appeal within the time limit specified in this section, then the action of the Department on the matter shall be final.

91.105.5.5.2. Decision. The decision upon an appeal shall be concurred in by at least three members of the commission. The commission may modify or reverse a ruling, decision or determination appealed from only upon making written findings setting forth specifically wherein the action of the department was in error or constituted an abuse of discretion. The commission shall make specific written findings supporting any modification or reversal.

Upon making a decision, a copy of the findings and determination shall be furnished the applicant, the appellant and the Department of Building and Safety.

91.105.5.5.3. Special Findings. Before granting or affirming the grant of an exception pursuant to Health and Safety Code Section 19957, the commission must find that the application involves a case of practical difficulty, unnecessary hardship, or extreme differences, and that it is clearly evident that equivalent facilitation and protection will be secured.

91.105.5.5.4. Revocation of Approvals. The commission shall revoke or rescind any determination, including the grant of an appeal or exception, if made in error in violation of any provision of law, or in reliance on any false statement or misrepresentation as to a material fact.

91.105.5.5.5. Time Limits. The rights and privileges granted by the commission pursuant to any decision, determination, approval, appeal or exception shall be void if all required building permits are not secured within one year of the effective date of such action, or if the permit expires under any of the conditions specified in Section 98.0602 of the Los Angeles Municipal Code.

However, the commission, and the superintendent acting on behalf of the commission, may grant extensions of time if the applicant submits in writing substantial evidence that unusual conditions or circumstances either precluded the securing of all required permits within the allocated time or caused the permit to expire as specified in Section 98.0602 of the Los Angeles Municipal Code.

Requests for extensions of time shall be made not later than 30 days after the expiration times specified in this section.

91.105.5.5.6. Additional Authority. In considering appeals, the commission may exercise the following powers:

1. To appoint one or more hearing officers to conduct hearings and make recommendations to the same extent and in the same manner as the Superintendent of Building acting pursuant to LAMC Section 98.0601 (a). **(Amended by Ord. No. 180,619, Eff. 5/12/09.)**
2. To request the attendance of witnesses and the production of evidence before it.
3. To request the city attorney, or an assistant or deputy designated by the city attorney to appear at any hearing before the commission.
4. To adopt rules regarding the filing of appeals, the conduct of its hearings and any other procedural rules in keeping with the provisions of this Division.

91.105.5.5.7. Limitations on Jurisdiction. Notwithstanding any other provision of this Code, the commission's jurisdiction shall not include the right to hear and determine an appeal from a department determination, order or action if such appeal is filed:

1. On or after the date a criminal citation is issued, charging the appellant with a violation of law based on the facts underlying such determination, order or action; or
2. On or after the date a criminal complaint is filed, charging the appellant with a violation of state laws based on such determination, order or action.

Further, the commission's jurisdiction shall not include the right to hear appeals from or otherwise review any action, order or determination of the Board of Building and Safety Commissioners.

91.105.6. Administrative Penalties for Disabled Access Violations.

91.105.6.1. Order of Abatement and Notice of Proposed Penalty. If the Superintendent of Building determines that a person has violated or failed to comply with any requirement of the law relating to access to public accommodations and housing by the physically disabled, then the Superintendent of Building may issue an order of abatement and notice of proposed penalty to that person. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The order and notice shall be in writing and shall describe with particularity the nature of the violation, including a reference to the provision of law that has been violated. The order shall fix a reasonable time for correction of the violation, and the notice of proposed penalty shall set forth the amount of the penalty.

The order of abatement and notice of proposed penalty shall be served upon the person either personally, or by deposit in the United States mail in a sealed envelope, postage prepaid to the person's last known address.

The order and notice shall also set forth the person's right to a hearing as described in LAMC Subdivision 91.105.6.2. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.105.6.2. Right to Hearing. Any person served with an order of abatement or notice of proposed penalty, may apply in writing to the Disabled Access Appeals Commission for a hearing with respect to the violation alleged, the abatement period, and the amount of the penalty. This request shall be filed within 15 days after the date of service.

If the person does not request a hearing within the prescribed time, then the notice of proposed penalty shall be final, and the amount of any penalty included in the notice shall immediately be due and owing to the City of Los Angeles. The city then shall have the right to bring an action in any court of competent jurisdiction to enforce the order and collect the amount of the penalty.

If the department determines that there has been compliance with the order of abatement within the time for correction, then the department may rescind the notice of penalty.

91.105.6.3. Time of Hearing; Notice. If the person requests a hearing, the superintendent shall cause the matter to be set for hearing before the Disabled Access Appeals Commission. The hearing shall be scheduled not later than 30 days after the date of the application for hearing. This time limit may be extended with the mutual consent of the person and the commission. It shall be a defense to the affirmation of any penalty that the person complied with the order of abatement within the time for correction.

The decision of the commission on the order of abatement and notice of proposed penalty shall be final, and the amount of any penalty affirmed by the commission shall immediately be due and owing to the City of Los Angeles. The city then shall have the right to bring an action in any court of competent jurisdiction to enforce the order and collect the amount of penalty.

91.105.6.4 Civil Penalties. Any penalty required to be paid under the provisions of this section is a debt owed to the City of Los Angeles. Any person owing a penalty due under the provisions of this section shall be liable in an action brought in the name of the City of Los Angeles in any court of competent jurisdiction for recovery of any such amount.

The conviction of any person for violating any law shall not relieve the person from the obligation to pay any penalty that the person may owe the city, nor shall such payment prevent a prosecution under appropriate provisions of law for any violation of the law. The remedies provided in this section are cumulative. The use of one or more of the remedies prescribed in this section shall not bar the use of any other remedy provided for the enforcement of law.

91.105.6.5. Fee Schedules. The Superintendent shall submit a schedule for the assessment of civil penalties under this section to council for the approval by ordinance.

This schedule shall give due consideration to the appropriateness of the penalty with respect to the following factors:

1. The gravity of the violation;
2. The good faith of the violator being charged; and
3. The history of previous violations.

SEC. 91.106. PERMITS.

91.106.1. Permits Required.

91.106.1.1. Building Permits. No person shall erect, construct, alter, repair, demolish, remove or move any building or structure, nor shall any person commence any liquid washing, compressed air cleaning or steam cleaning of exterior surfaces of any building unless said person has obtained a permit therefor from the department. A separate permit shall be obtained for each separate building or structure except that a group of temporary structures erected on one site for a limited period of time may be included on one permit.

Where the installation, alteration or repair of ventilation equipment or ductwork is not included within the scope of a valid building permit, a separate building permit shall be obtained for the work.

Sandblasting, liquid washing, compressed air cleaning, steam cleaning of exterior surfaces of buildings adjacent to and within 20 feet of pedestrian walkways in dedicated streets in the limits of Fire District No. 1 shall be done only between the hours of 11:00 p.m. and 7:00 a.m., or on Sundays.

Where complete plans for a proposed building are filed with the department and where a foundation only permit is issued with respect thereto in accordance with rules established by the Superintendent of Building, a building permit may be issued for the remainder of the building within one year after the issuance of the foundation only permit, provided the plans and specifications comply with all applicable Los Angeles Building Code provisions in effect at the time of issuance of the foundation only permit. **(Amended by Ord. No. 180,619, Eff. 5/12/09.)**

91.106.1.2. Grading Permits. (Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) No person shall commence or perform any grading, and no person shall import or export any earth materials to or from any grading site, without first having obtained a permit therefor from the Department. No person shall perform any grading within areas designated "hillside" unless a copy of the permit is in the possession of a responsible person and available at the site for display upon request.

Any grading project involving more than 100 cubic yards (76.5 m³) of excavation and involving an excavation in excess of 5 feet (1524 mm) in vertical depth at its deepest point measured from the original ground surface shall be done by a State of California licensed contractor who is licensed to perform the work described herein.

A separate permit shall be required for each grading site. One permit may include the entire grading operation at that site, however.

EXCEPTION: All other provisions of the Code shall apply, but a permit will not be required if the work complies with any one of the following conditions:

1. An excavation which (a) is less than 2 feet (610 mm) in depth, or (b) which does not create a cut slope greater than 5 feet (1524 mm) in height and steeper than one unit vertical in two units horizontal (50 percent slope). This exception shall not apply to cut which exceeds 50 cubic yards (38.3 m³) or which changes the existing drainage pattern.
2. A fill less than one foot (305 mm) in depth and placed on natural terrain with a slope flatter than one unit vertical in 10 units horizontal (10 percent slope). This exception shall not apply when the fill exceeds 50 cubic yards (38.3 m³) or when the fill changes the existing drainage pattern.
3. Excavations, located in hillside areas, for caissons or piles under buildings or structures authorized by valid building permits.

4. Excavations, not located in hillside areas, for basements, footings, caissons, piles, swimming pools or underground structures which are authorized by valid building permits.

5. Excavations for wells or tunnels or utilities, which do not provide vertical or lateral support for buildings, or adversely impact the safety or stability of private or public properties.

Grading permits may be waived by the Department for excavations under buildings or structures in hillside areas, if the applicant can demonstrate that the site is relatively level, or the excavation is entirely for footings and/or grade beams not exceeding 5 feet (1524 mm) deep.

91.106.1.3. Temporary Permits. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Before commencing the construction of any work for temporary use, a building permit authorizing such work shall be obtained from the Department. Such construction shall be occupied or used only for the period set forth on the permit application, but shall not exceed 180 days.

Except for tents and bleachers, application for permit shall be filed at least seven days prior to the construction, erection or operation of any device, structure, or any work regulated by this article for temporary use.

All temporary construction or installations shall be demolished or removed within five days after the expiration of the Certificate of Occupancy. Requests for inspection must be received by the department at least two days prior to public use or occupancy.

91.106.1.3.1. Temporary Special Event Permits. (Added by Ord. No. 187,056, Eff. 7/4/21.)

91.106.1.3.1.1. Definitions.

1. **Temporary Special Event Permit.** A permit for a Temporary Installation or Temporary Outdoor Use.
2. **Temporary Installation.** The following installations that are temporary in nature and comply with the requirements specified in LAMC Subsection 91.106.1.3.1.
 - A. Tents and canopies, larger than 450 square feet, on a residential property.
 - B. Tents or canopies, larger than 12 feet in length or width, on a commercial property.
 - C. Stages or platforms more than 30 inches above grade.
 - D. Grandstands or bleachers.
 - E. Temporary structures higher than 12 feet.

3. **Temporary Outdoor Use (TOU).** A temporary change in use of an unenclosed ground level outdoor space, such as a surface parking lot, provided the use is temporary in nature and complies with the requirements specified in LAMC Subsection 91.106.1.3.1. A TOU is exempt from the requirement of an existing main structure.

91.106.1.3.1.2. Procedures.

91.106.1.3.1.2.1. Required Permit.

1. Before commencing a Temporary Installation or Temporary Outdoor Use, a permit authorizing such work or use shall be obtained from the Department.
2. A Temporary Special Event Permit shall issue where the permit application complies with the requirements specified in LAMC Subsection 91.106.1.3.1, and applicable fees are paid.

91.106.1.3.1.2.2. Application.

1. Applications for a Temporary Special Event Permit shall include a site plan, event details, and applicant contact information as specified on the application form provided by the Department. To the extent applicable, permit applications shall also include the information specified in LAMC Subsection 91.106.3; a detailed description of the proposed use; and structural plans, design criteria, and calculations prepared and approved with an original wet stamp and legible signature by a State of California Licensed Structural Engineer, Architect, or Civil Engineer.
2. Applications shall be filed at least five business days prior to the construction, erection, operation, installation, or use described in the application for a Temporary Special Event Permit.

91.106.1.3.1.2.3. Inspection. Requests for inspection must be received by the Department at least two days prior to use or occupancy.

91.106.1.3.1.2.4. Appeals or Requests for Slight Modifications. All appeals or requests for slight modification of Department action or determination pursuant to this section shall be made in accordance with the procedures established in LAMC Sections 98.0403.1 and 98.0403.2.

91.106.1.3.1.3. Fees. A Temporary Special Event Permit will not be issued without the payment of fees required by LAMC Section 91.107. If any changes are made to a previously approved permit, or an additional stage, tent, or canopy is added to the layout, an additional inspection will be required and an associated inspection fee will pertain to each additional inspection as specified in LAMC Section 98.0412.

91.106.1.3.1.4. Requirements.

1. The permit application shall conform to applicable event/day limits and other applicable objective building, zoning, and planning standards.
2. There shall be an existing main structure at the location.
3. There shall be no confirmed violation of applicable laws, regulations, or standards related to a Temporary Special Event Permit at the location during the prior 12-month period.
4. There shall be concurrence from the Department of City Planning, Police Department, Public Works, Fire Department, or other applicable City regulatory agency prior to the Department issuing a permit.
5. The installation or use shall conform to the original layout of the Temporary Special Event Permit and shall not be altered without written notification to and approval of the Department.
6. The applicant shall obtain a re-inspection and approval of the site prior to operation with a new layout.
7. Event activities related to a Temporary Special Event Permit shall comply with applicable laws, regulations, and standards.

8. The applicant shall comply with applicable laws, regulations, and standards governing event activities related to a Temporary Special Event Permit.
9. The applicant shall reimburse the City for applicable inspection costs or fees.

91.106.1.3.1.5. Limit of Authorization.

1. The subsections concerning Temporary Special Event Permits do not in any way alter or change the permitting or regulatory authority of other federal, state, or local agencies, including, but not limited to, the Fire Department or Police Department. Event activities related to a Temporary Special Event Permit remain subject to all other applicable laws, regulations, and standards; remain subject to the applicable permitting and regulatory authority of other agencies; and must separately obtain any applicable permits required by other agencies.
2. Temporary Special Event Permits do not authorize the temporary use of an enclosed space or building as a place of assemblage. Such temporary use requires approval as specified in Article 7, Chapter V of the LAMC.
3. Temporary Special Event Permits shall not be issued for more than five events in any 12-month period, and each permit shall be valid for a maximum of seven consecutive days at any single location. Such installations or uses are authorized only for the period set forth in the permit.
4. All temporary construction, uses, or installations associated with a Temporary Special Event Permit shall be stopped immediately after the permit expires, and thereafter be demolished or removed within five days.

91.106.1.3.1.6. Violations.

91.106.1.3.1.6.1. Suspension and Revocation of Temporary Special Event Permits. A Temporary Special Event Permit issued pursuant to the provisions of LAMC Subdivision 91.106.1.3, et seq., may be suspended or revoked for a failure to comply with the requirements above, or with any relevant provision of the LAMC.

91.106.1.3.2. Farmers' Market Permits. (Added by Ord. No. 187,056, Eff. 7/4/21.)

91.106.1.3.2.1. Definitions.

Farmers' Market Permit. A permit for a periodic Temporary Installation and/or Temporary Outdoor Use, as defined in this section, for the operation of a Certified Farmers' Market specified in LAMC Section 12.24 A.6. or 14.00 A.11. that is planned to operate in whole or in part on private property.

91.106.1.3.2.2. Procedures. The required permit, application, inspection, appeal and slight modification procedures applicable to a Temporary Special Event Permit, as defined in this section, shall apply to a Farmers' Market Permit. Before commencing a periodic Temporary Installation or Temporary Outdoor Use for the operation of a Certified Farmers' Market, a Farmers' Market Permit shall be obtained from the Department. A Farmers' Market Permit application shall contain proof of a valid Certified Farmers' Market Certificate and a valid Food and Nutrition Service Number issued by the United States Department of Agriculture.

91.106.1.3.2.3. Fees. The fees applicable to a Temporary Special Event Permit shall apply to a Farmers' Market Permit.

91.106.1.3.2.4. Requirements. The requirements applicable to a Temporary Special Event Permit shall apply to a Farmers' Market Permit, with the following exception: there does not need to be an existing main structure at the location. A person utilizing a Farmers' Market Permit shall maintain proof of a valid Certified Farmers' Market Certificate and a valid Food and Nutrition Service Number issued by the United States Department of Agriculture.

91.106.1.3.2.5. Limit of Authorization.

1. The limits of authorization applicable to a Temporary Special Event Permit shall apply to a Farmers' Market Permit, with the exception of the five event limit and the authority to remove temporary uses or installations within five days. All temporary construction, uses, or installations associated with a Farmers' Market Permit shall be stopped immediately and demolished or removed at the close of each event day.
2. A Farmers' Market Permit may be obtained on an annual basis, is valid for one year from the date of issuance, and serves the same permitting purposes as a Temporary Special Event Permit as long as the layout of each event remains the same.
3. Where a Certified Farmers' Market is planned to operate on both private property and property in the public right-of-way, a person shall separately obtain the applicable permits from both the Department and the Bureau of Street Services, Department of Public Works. In this instance, the Department shall be the enforcement agency to investigate whether that Certified Farmers' Market accepts Electronic Benefit Transfer cards.

91.106.1.3.2.6. Violations. A Farmers' Market Permit issued pursuant to the provisions of LAMC Subdivision 91.106.1.3, et seq., may be suspended or revoked for a failure to comply with the requirements above, or with any relevant provision of the LAMC.

91.106.2. EXCEPTIONS: (Amended by Ord. No. 187,719, Eff. 1/23/23.) Permit not required for:

1. Flag poles and towers not erected upon a building and not more than 15 feet high. Radio and television antennae towers which do not exceed 45 feet in height or light standards which do not exceed 30 feet in height.
2. Construction sheds, state approved construction trailers without toilet facilities and sidewalk protection barriers and canopies built pursuant to Division 33, Article 1, Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
3. Sandblasting, liquid washing, compressed air cleaning, steam cleaning of buildings outside of Fire District No. 1 and also those exterior surfaces of buildings which are located more than 20 feet from pedestrian walkways in dedicated streets. Painting, papering and similar work, provided, however, that the values thereof shall be included as part of the value of any new construction for which a permit is required by this Code, for the purpose of determining the amount of the fee to be paid for the permit; and provided further that this exception does not include operations such as liquid washing, compressed air cleaning and steam cleaning on the exterior surfaces of buildings adjacent and within 20 feet of pedestrian walkways in dedicated streets where these operations extend above the first story. **(Amended by Ord. No. 180,619, Eff. 5/12/09.)**
4. Platforms, walks and driveways not more than 30 inches (762 mm) above grade and not over any basement or story below.
5. Exhibits, booths, partitions and display counters for temporary use not exceeding 30 days in conjunction with an exhibit or show and not exceeding 12 feet in height above the floor.
6. Outdoor tents or cloth structures for temporary use not exceeding 30 days and not exceeding 12 feet in any dimension, provided such tents are accessory to an indoor or outdoor assembly use on the site.
7. Swimming, bathing, and wading pools not exceeding 24 inches in depth and having a surface area not exceeding 250 square feet.
8. Canopies or awnings located outside of Fire District No. 1 extending not more than 4 feet from the exterior wall of the building and attached to Group R Occupancies. **(Amended by Ord. No. 180,619, Eff. 5/12/09.)**

9. Impact hazard glazing pursuant to LAMC Section 91.6101. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
10. Work performed by Certified Licensed Contractors in accordance with LAMC Subdivision 91.108.12.1. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
11. Any work accomplished under the auspices of and owned and controlled by the United States of America, by the State of California or the Los Angeles County.
12. Masonry or concrete fences not over 3-1/2 feet high, and other fences not over 10 feet high.
13. Tanks for the storage of combustible liquids, if resting upon the surface of the ground and surrounded by an impounding basin conforming to the requirements of Article 7 of Chapter V of the Los Angeles Municipal Code (Fire Code).
14. Cases, counters and partitions, not over 5 feet 9 inches high.
15. Waterproof pointing of joints in masonry or veneer, also cleaning with detergents which are not injurious to clothing or skin of persons and are not removed by liquid washing, provided work is done from safely enclosed scaffolding which will collect any dust, debris or dropped tools and materials in use.

91.106.3. Permit Applications.

91.106.3.1. Application. To obtain a permit, the applicant shall file an application on a form furnished by the department.

One complete application for each permit shall be filed. Every such application shall:

1. Identify and describe the work to be covered by the permit for which application is made.
2. Describe the land on which the proposed work is to be done by legal description, street address or similar description that will readily identify and definitely locate the proposed building or work.
3. Indicate the use or occupancy for which the proposed work is intended.
4. Be accompanied by plans, diagrams, computations and specifications and other data as required in LAMC Subdivision 91.106.3.2. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
5. State the valuation of any new building or structure or any addition, remodeling or alteration to an existing building.
6. Be signed by the permittee, or an authorized agent.
7. Give such other data and information as may be required by the Superintendent of Building.

91.106.3.2. Plans and Specifications.

91.106.3.2.1. Site Plan. (Amended by Ord. No. 182,850, Eff. 1/3/14.) A plot of the site shall be filed with each application for a permit.

EXCEPTION: The Superintendent of Building may grant the omission of a site plot when the proposed work is of such a nature that no information is needed to determine compliance with all laws relating to the location of buildings or occupancies.

With respect to the site, the plot shall show the boundaries, lot lines, existing and proposed buildings and structures, neighboring public ways, and sufficient dimensions and other data to enable the Department to determine compliance with all laws relating to the location of buildings or occupancies.

91.106.3.2.2. Number of Sets of Plans. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Each application for a permit shall be accompanied by two sets of plans and specifications for plan checking.

The number of sets of plans and specifications submitted with each application for a building permit shall comply with the regulations of LAMC Subdivision 91.106.3 of this Code.

EXCEPTION: The Superintendent of Building may waive the requirement for plans and specifications as required in this article if the Superintendent of Building finds that the information on the application is sufficient to show that the work will conform to the provisions of this Code and other relevant laws.

91.106.3.2.3. Official Stamp. When the plans and specifications fully comply with the provisions of LAMC Subdivision 91.106.3.3, the Department shall place an official stamp of approval or an approval perforation on each sheet of each set and, upon payment of the permit fee, shall issue one set to the applicant. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.106.3.2.4. Validity of Approval. The stamping or approval of any plans or specifications shall not be held to permit, or to be an approval of, the violation of any provision of this Code.

91.106.3.2.5. Alterations to Stamped Plans. No stamped or approved plans or specifications shall be altered in any manner, except when and as approved by the department.

91.106.3.2.6. Stamped Plans on Job. The stamped set of plans and specifications issued to the applicant shall be kept at the site of the construction or work and shall be available to the authorized representative of the Department. There shall be no deviation from the stamped or approved application, plans or specifications without Department approval.

91.106.3.3. Information and Certification Required on Plans and Specifications.

91.106.3.3.1. General. (Amended by Ord. No. 186,488, Eff. 12/27/19.) All plans and specifications submitted to the Department for checking shall be drawn with ink or indelible pencil, or shall be made by a reproduction process approved by the department. The first sheet of each set of plans and specifications shall give the street address of the work and the name and address of the owner of the building.

The plans and specifications shall be of sufficient clarity to indicate the nature and extent of the proposed work and to show in detail that it will conform to the provisions of this Code and of relevant laws, ordinances, rules, regulations and orders.

Plans for buildings more than two stories in height of other than Group R, Division 3 and Group U Occupancies shall indicate how required structural and fire resistive integrity will be maintained where a penetration will be made for electrical, mechanical, plumbing and communication conduits, pipes and similar systems.

In lieu of detailed specifications, the Department may approve reference on the plans to a specific section, subsection or paragraph of this Code or other ordinance or law.

Distances and dimensions on the plans, when required to show conformity with the provisions of this Code, shall be done in figures.

When required by LAMC Subsection 91.1704.3, a statement of special inspection prepared by the registered engineer or licensed architect responsible for the design of the project shall be included with the set of plans.

91.106.3.3.2. Written Records of Computations Required. (Amended by Ord. No. 174,829, Eff. 10/27/02, Oper. 11/1/02.) When a structural design is required for the purpose of obtaining a permit, it shall be justified by a written record of computations filed with the department and each sheet of the drawings and written record of computations shall be signed by or bear the approved stamp of an engineer or architect licensed by the State of California for the type of service performed. On structures which do not require an engineer's or architect's signature according to Article 3, Chapter 7, Division 3, of the California Business and Professions Code, but do require some structural design, the person responsible for the design shall sign the calculations and the sheets of the plans with the engineering details.

91.106.3.3.3. Design Professional in Responsible Charge. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Where it is required that documents be prepared by a registered design professional, the Superintendent of Building shall have authority to require the owner or owner's authorized agent to engage and designate on the building permit application a registered design professional who shall act as the registered design professional in responsible charge. If the circumstances require, the owner or the owner's authorized agent shall designate a substitute registered design professional in responsible charge who shall perform the duties require of the original registered design professional in responsible charge. The Superintendent of Building shall be notified in writing by the owner or owner's authorized agent if the registered design professional in responsible charge is changed or is unable to continue to perform the duties.

The registered design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, included phased and deferred submittal items for compatibility with the design of the building.

91.106.3.3.3.1. Deferred Submittals. (Added by Ord. No. 186,488, Eff. 12/27/19.) Deferral of any submittal items shall have the prior approval of the Superintendent of Building. The registered design professional in responsible charge shall list the deferred submittals on the construction documents for review by the Superintendent of Building.

Documents for deferred submittal items shall be submitted to the registered design professional in responsible charge who shall review them and forward them to the Superintendent of Building with a notation indicating that the deferred submittal documents have been reviewed and found to be in general conformance to the design of the building. The deferred submittal items shall not be installed until the deferred submittal documents have been approved by the Superintendent of Building.

91.106.3.3.4. Yard Restriction. (Amended by Ord. No. 182,850, Eff. 1/3/14.) The increase in area permitted by CBC Section 506.2 and Section 507 shall not be allowed unless or until the owner of the required yard and open space files with the Department an agreement binding the owner, heirs and assignees, to set aside the required yard as an unobstructed space having no improvements. This agreement shall be recorded in the Los Angeles County Recorder's Office.

91.106.3.3.5. Exterior Balconies and Elevated Walking Surfaces. (Added by Ord. No. 186,488, Eff. 12/27/19.) Where balconies or other elevated walking surfaces are exposed to water from direct or blowing rain, snow, or irrigation, and the structural framing is protected by an impervious moisture barrier, the construction documents shall include details for all elements of the impervious moisture barrier system. The construction documents shall include manufacturer's installation instructions.

91.106.4. Permits Issuance.

91.106.4.1. Issuance. When the department determines that the information on the application and plans is in conformance with this Code and other relevant codes and ordinances, the department shall issue a permit upon receipt of the total fees.

EXCEPTIONS:

1. **(Amended by Ord. No. 174,829, Eff. 10/27/02, Oper. 11/1/02.)** The department shall have the authority to withhold a permit for any building if public sewers are not available and the provisions of Article 4, Chapter IX of the Los Angeles Municipal Code (Plumbing Code) prohibit the use of a private sewage disposal system on the lot or premises.

Notwithstanding the provisions of Chapter 7 of the California Plumbing Code as adopted in Section 94.700.0 of the Los Angeles Municipal Code to the contrary, and for any lot or premises located in whole or in part in the San Fernando Valley and certain adjacent areas as described in Section 64.26 A.2. of the Los Angeles Municipal Code:

If public sewers are not available and Article 4 of Chapter IX of this Code does not prohibit the use of a private sewage disposal system, a building permit may be issued, provided that:

A. The owner or owners shall install a holding tank pursuant to permits from the Department of Building and Safety and the Fire Department; and

B. The owner or owners shall submit a covenant and agreement that runs with the land to provide a connection to the public sewer when it becomes available, or to vacate the building if no connection is made. This covenant and agreement shall be signed by the owner or owners and filed with the County Recorder; or

C. The permit is for four or fewer dwelling units in a residential zone, or for a structure that will not result in the discharge of wastewater.

2. **(Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)** The Department shall have the authority to withhold permits where the proposed development is located in an area subject to slides or unstable soil which may have an adverse effect on the proposed development or access thereto, as determined by the Department. If the apparent safety of the proposed development can be verified pursuant to the provisions of Sections 91.7016.4.2 and 91.7016.4.3 of this Code, the Department shall issue a permit upon receipt of a sworn affidavit which has been recorded by the County Recorder, stating that the applicant is fully aware that the proposed development is located in an area subject to slides or unstable soil which may have an adverse effect on the proposed development or access thereto.

3. The department shall have the authority to withhold a building permit where the proposed building site is an area subject to inundation, as determined by the department. If it can be shown by authentic past records that any possible inundation is not likely to be of such extent as to be an immediate hazard to occupancy of the proposed building, the department shall issue a building permit upon receipt of a sworn affidavit which has been recorded by the county recorder stating that said applicant is fully aware of the department's finding that the structure is an area subject to inundation.

4. The department shall have the authority to withhold permits on projects located within a Special (Fault) Studies Zone established under Chapter 7.5, Division 2, of the California Public Resources Code. Permits may be issued if it can be demonstrated through accepted geologic seismic studies that the proposed structure will be located in a safe manner and not over or astraddle the trace of an active fault. Acceptable geologic seismic studies shall meet the criteria as set forth in rules and regulations established by the Superintendent of Building to assure that such studies are based on sufficient geologic data to determine the location or nonexistence of the active fault trace on a site. Prior to approval of a project, a geologic report defining and delineating any hazard of surface fault rupture shall be required. If the city finds that no undue hazard of this kind exists, the geologic report on such hazard may be waived, with approval of the state geologist.

5. **(Amended by Ord. No. 182,850, Eff. 1/3/14.)** The department shall have the authority to withhold a demolition or relocation permit for a residential building composed of two or more residential rental units under the following circumstances:

A. When the applicant states that the purpose for demolition or relocation is to construct a condominium, stock cooperative or community apartment project, permits shall be withheld until all necessary tentative tract or preliminary parcel maps for such new subdivision have been approved by the city.

B. This (Exception 5) shall not apply if the building is to be demolished and is:

- (i) Constructed of unreinforced masonry construction and built pursuant to a building permit issued prior to October 1, 1933; or
- (ii) To be demolished pursuant to a demolition order issued by the Department under authority set forth in Division 89 of Article I of Chapter IX of the Los Angeles Municipal Code.

C. This (Exception 5) shall not apply if the applicant demonstrates to the satisfaction of the Department that the site will be developed with housing for low- to moderate-income households, which housing is to be developed, constructed or acquired with federal, state or local government financial assistance.

D. This (Exception 5) shall not apply to two-family dwellings or to apartment houses and apartment hotels containing three dwelling units, provided that at least one dwelling unit in each such building is occupied by a record owner of the property.

6. **(Amended by Ord. No. 175,790, Eff. 3/29/04.)** The Department shall have the authority to withhold permits on projects located within a Methane Zone or Methane Buffer Zone established under Sections 91.7101 *et seq.* of this Code. Permits may be issued upon submittal of detailed plans that show adequate protection against flammable gas incursion by providing the installation of suitable methane mitigation systems.

7. The department shall have the authority to withhold permits for public works capital improvement projects until receipt of written certification from the Cultural Affairs Department that the board, bureau or department of the city authorized by law to construct the project has fully complied with the requirements of the city's Public Works Improvements Arts Program. For purposes of this section, public works capital improvement project" includes any capital project paid for wholly or in part by the City of Los Angeles or by any board, bureau or department of the city authorized by the City Charter or other law to construct or remodel any building, structure, park, utility, street, sidewalk or parking facility, or any other type of capital project or any portion thereof, within the geographical limits of the city.

8. The department shall have the authority to withhold the building permit where, in the opinion of the Superintendent of Building, the design of a structure, due to the unusual configuration of the structure or parts of the structure or assembly of structural materials therein, does not provide at least the same safeguard against earthquake as provided by the applicable portions of this Code when applied in the design of a similar structure of customary configuration.

9. Reserved.

10. The department shall have the authority to withhold a building permit or relocation permit for a site if the department determines that demolition or relocation work has been done on the site without the benefit of required demolition or relocation permits. If the department, after notice and hearing, makes this determination, the department shall also have the authority to record an affidavit with the County Recorder stating that no permits for any new development shall be issued on the property for a period of five years.

11. **(Amended by Ord. No. 181,758, Eff. 8/8/11.)** The Department shall have the authority to withhold a building permit for a residential building composed of two or more residential rental units, under the following circumstances:

A. When the applicant states that the purpose for a building permit is to construct a condominium, stock cooperative or community apartment project, permits shall be withheld until all necessary tentative tract or preliminary parcel maps for the new subdivision have been approved by the city.

12. The Department of Building and Safety shall have the authority to withhold building permits for the construction of hotels until a conditional use permit allowing the sale of liquor has been granted by the Department of City Planning or until the Department of Building and Safety receives from the property owner a sworn affidavit, signed by the owner and recorded by the Los Angeles County recorder, declaring that the hotel shall not sell or serve liquor on the premises for a period of not less than five years.

13. The Department of Building and Safety shall have the authority to withhold grading permits for developments with disturbed areas of one acre or more unless the applicant is able to show that a Notice of Intent to comply with the State Construction Activity Storm Water Permit has been filed with the State Water Resources Control Board and a Storm Water Pollution Prevention Plan has been prepared. For the purpose of this section, "**disturbed area**" shall mean an area altered as a result of cleaning, grading and/or excavation of earth. **(Amended by Ord. No. 178,132, Eff. 1/19/07.)**

14. The Department of Building and Safety shall require applicants, as a condition for issuing a grading or building permit, to incorporate into the plan documents best management practices necessary to control stormwater pollution from sediments, erosion, and construction materials leaving the construction site. Such requirements shall be in accordance with the provisions contained in the "**Development Best Management Practices Handbook, Part A Construction Activities**" adopted by the Board of Public Works as authorized by Section 64.72 of the Los Angeles Municipal Code. **(Added by Ord. No. 172,673, Eff. 7/30/99.)**

15. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)** The Department of Building and Safety shall have the authority to withhold grading and/or building permits for developments until:

A. The applicant incorporates into the development to the satisfaction of the Bureau of Sanitation of the Department of Public Works, best management practices necessary to control storm water pollution in accordance with the "Low Impact Development Ordinance" (Ord. No. 181,899) and the "Planning and Land Development Best Management Practices Handbook, Low Impact Development Manual, Part B Planning Activities" adopted by the Board of Public Works as authorized by LAMC Section 64.72; and **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

B. The Bureau of Sanitation of the Department of Public Works receives a Covenant and Agreement, signed by the owner and recorded with the Los Angeles County Recorder, declaring that the best management practices necessary to control stormwater pollution shall be installed and/or constructed and maintained in proper working condition at all times; and

C. The applicant submits to the Bureau of Sanitation of the Department of Public Works, a set of plans and specifications showing compliance with the Standard Urban Stormwater Mitigation Plan or Site Specific Mitigation Plan.

16. The Department of Building and Safety shall have the authority to withhold building permits for new development on the site of a destroyed or demolished Residential Hotel and for the conversion or demolition of Residential Units on any property identified as a Residential Hotel by the Los Angeles Housing Department pursuant to Article 7.1 of Chapter IV of the Los Angeles Municipal Code until the Los Angeles Housing Department has verified compliance with the provisions of Article 7.1 of Chapter IV of the Los Angeles Municipal Code in order to preserve Residential Units in the Residential Hotels of the City of Los Angeles. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

91.106.4.2. Retention and Maintenance of Approved Plans.

91.106.4.2.1. Retention of Plans. The duplicate plans and specifications of every building or structure shall be stamped and retained by the department during the life of such building.

EXCEPTION: Plans for the following need not be maintained, except where required by the department:

1. Single or multiple dwellings in non-hillside areas which are not part of a common interest development (as defined in Section 1351(c) of the Civil Code of

California), and not more than two stories and basement in height.

2. Garages and other structures appurtenant to buildings described in Item 1 of this exception.
3. Farm or ranch buildings.
4. Any one story building where the span between bearing walls does not exceed 25 feet. This exception does not, however, apply to a steel frame or concrete building.
5. Alterations to commercial buildings, apartments and hotels which do not require the signature of a licensed civil or structural engineer or architect.

91.106.4.2.2. Inspection and Reproduction of Retained Plans.

91.106.4.2.2.1. Inspection of Plans. The copy of the approved building plans maintained by the department as provided by Section 91.106.4.2.1 of the Los Angeles Municipal Code shall be available for inspection only on the premises of the department.

EXCEPTION: Plans or portion of plans for banks, other financial institutions or public utilities which are maintained by the department may not be inspected without written permission from the owner of the building.

91.106.4.2.2.2. Reproduction of Plans. (Amended by Ord. No. 171,185, Eff. 7/22/96.) Plans maintained by the Department under Subdivision 1 of this subsection may not be duplicated in whole or in part except with the written permission of the certified, licensed or registered professional or that professional's successor, if any, who signed the original documents, and the written permission of the original or current owner of the building, or, if the building is part of a common interest development, with the written permission of the board of directors or governing body of the association established to manage the common interest development; or by order of a proper court. In implementing this provision, the Department shall comply with the requirements of Health and Safety Code Section 19851.

The Department shall also furnish the form of an affidavit to be completed and signed by the person requesting to duplicate the official copy of the plans, which contains provisions stating all of the following:

1. That the copy of the plans shall only be used for the maintenance, operation, and use of the building.
2. That drawings are instruments of professional service and are incomplete without the interpretation of the certified, licensed, or registered professional of record.
3. That Subdivision (a) of Section 5536.25 of the Business and Professions Code states that a licensed architect who signs plans, specifications, reports, or documents shall not be responsible for damage caused by subsequent changes to, or use of, those plans, specifications, reports, or documents where the subsequent changes or uses, including changes or uses made by state or local governmental agencies, are not authorized or approved by the licensed architect who originally signed the plans, specifications, reports, or documents, provided that the architectural service rendered by the architect who signed the plans, specifications, reports, or documents was not also a proximate cause of the damage.

Grading plans which are on file with the Department are public records and may be duplicated.

The fees specified in the following provisions 1 or 2 shall be paid by the person requesting duplication of plans:

1. Building plans that have not been microfilmed and are authorized for reproduction, and grading plans that are to be duplicated by other than City services will be released only to a bonded duplicating service which has posted a bond for the benefit of the City of Los Angeles in an amount at least equal to the value of the plans.

The cost of duplicating the plans shall be paid directly to the duplicating service by the persons requesting duplication. That person shall pay a service fee of \$15.00 for each set of plans released to a bonded duplicating service as herein provided.

2. Building plans that have been microfilmed and are authorized for reproduction shall be duplicated by City services. The Department shall collect an initial service fee of \$8.00 for each request for reproduction of plans plus a fee of \$1.00 for each sheet requested to be photocopied.

91.106.4.2.3. Compliance. A certified copy of the microfilmed plans shall constitute compliance with the requirement of this section.

91.106.4.3. Validity of Permit.

91.106.4.3.1. Limit of Authorization. The issuance of a permit is not an approval or an authorization of the work specified therein. A permit is merely an application for inspection, the issuance of which entitles the permittee to inspection of the work which is described therein.

Permits issued under the requirements of this Code shall not relieve the owner of responsibility for securing required permits for work to be done which is regulated by any other Code, department or division of the City of Los Angeles.

All permits are issued subject to the following conditions:

If the work described by a valid permit is prohibited by a change in the Los Angeles Municipal Code, then such work may be completed only if the department determines that both substantial liabilities have been incurred, and substantial work has been performed on site, in accordance with the terms of that permit. Work performed and liabilities incurred pursuant to a demolition or relocation permit shall not be considered in determining whether an owner may complete a building or structure for which a building permit has been issued.

91.106.4.3.2. Validity of Other Laws. Neither the issuance of a permit nor the approval by the department of any document shall constitute an approval of any violation of any provision of this Code or of any other law or ordinance, and a permit or other document purporting to give authority to violate any law shall not be valid with respect thereto.

91.106.4.3.3. Official Grades. The applicant shall satisfy himself as to the correctness of proposed structure elevations and locations with respect to the official grades of public streets and to the policy of the Board of Public Works relative to the location and length of curb depressions for driveways.

91.106.4.3.4. Easements. Before issuing any permit, the department shall require a declaration, under penalty of perjury, from the owner or agent having the property owner's consent stating that:

"The proposed work will not destroy or unreasonably interfere with any access or utility easement belonging to others and located on my property, but in the event such work does destroy or unreasonably interfere with such easement, a substitute easement(s) satisfactory to the holder(s) of the easement will be provided."

91.106.4.4. Expiration, Suspension or Revocation.

91.106.4.4.1. General. The regulations concerning the expiration, suspension and revocation of permits are enumerated in Chapter IX Article 8, Division 6, of the Los Angeles Municipal Code.

91.106.4.4.2. Making False Statements to the Department. Any person who willfully or knowingly, with the intent to deceive, makes a false statement or representation, or

knowingly fails to disclose a material fact in any documentation required by the Department shall be guilty of a misdemeanor. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.106.4.4.3. Unfinished Buildings or Structures. Whenever the department determines by inspection that work on any building or structure for which a permit has been issued and the work started thereon has been suspended for a period of 180 days or more, the owner of the property upon which such structure is located, or other person or agent in control of said property, upon receipt of notice in writing from the department to do so, shall, within 90 days from the date of such written notice, obtain a new permit to complete the required work and diligently pursue the work to completion, or shall remove or demolish the building or structure within 180 days from the date of the written notice.

91.106.4.5. Permits for Historical and Cultural Buildings. The department shall not issue a permit to demolish, alter or remove a building or structure of historical, archaeological or architectural consequence if such building or structure has been officially designated, or has been determined by state or federal action to be eligible for designation, on the National Register of Historic Places, or has been included on the City of Los Angeles list of historic cultural monuments, without the department having first determined whether the demolition, alteration or removal may result in the loss of or serious damage to a significant historical or cultural asset. If the department determines that such loss or damage may occur, the applicant shall file an application and pay all fees for the California Environmental Quality Act Initial Study and Check List, as specified in Section 19.05 of the Los Angeles Municipal Code. If the Initial Study and Check List identifies the historical or cultural asset as significant, the permit shall not be issued without the department first finding that specific economic, social or other considerations make infeasible the preservation of the building or structure.

91.106.4.5.1. Notification of Demolition. (Amended by Ord. No. 186,484, Eff. 1/28/20.) The Department shall not issue a building permit for demolition of a building or structure for which the original building permit was issued more than 45 years prior to the date of submittal of the application for demolition pre-inspection, or where information submitted with the application indicates that the building or structure is more than 45 years old based on the date the application is submitted, without having first provided the following required notice and taken the following required actions at least 30 days prior to issuance of the demolition of building or structure permit:

1. The Department shall send written notice of the demolition pre-inspection application via U.S. mail or email to the abutting property owners and occupants, as well as the City Council District Office and Certified Neighborhood Council Office representing the site, for which a demolition pre-inspection has been proposed for a building or structure as defined by the Los Angeles Municipal Code. **(Amended by Ord. No. 187,719, Eff. 1/23/23.)**
2. The applicant shall post a placard on the property where the demolition will occur, in a conspicuous, visible place, within 5 feet of the front property line, describing the date of the application for demolition pre-inspection with the following standards:
 - A. The placard shall be a minimum 11" x 17" in size and mounted at a minimum of four feet above the ground.
 - B. The placard shall have black letters on contrasting background white or color paper.
 - C. The placard shall have major block- style letters a minimum 2-1/2 inches in height and shall state: "NOTICE OF DEMOLITION". Minor letters 1-1/2 inches in height shall specify the permit number and the phone number to be called for information.
 - D. The placard material shall be made of durable, laminated or other weather resistant material.
3. The Department shall verify the placement of the placard prior to commencement of the demolition work.
4. All applicable protection devices (i.e., fences and/or pedestrian protection canopies) shall be installed and approved by the Department prior to demolition work and maintained during demolition, in accordance with LAMC Sections 91.3306 and 91.3307. The Department shall verify the placement of these devices prior to the commencement of demolition work.

91.106.4.5.2. (Amended by Ord. No. 186,484, Eff. 1/28/20.) The applicant seeking the permit shall provide the Department with the names of and addresses of all persons entitled to receive notice pursuant to LAMC Subsection 91.106.4.5.1.

91.106.4.5.3. (Amended by Ord. No. 186,484, Eff. 1/28/20.) The Department shall collect a fee in the amount of \$60.00 when an application for the demolition of a building or structure described in LAMC Subsection 91.106.4.5.1 is filed with the Department. This fee shall be charged in addition to applicable demolition pre-inspection fees set forth at LAMC Subsection 91.107.3.2.

91.106.4.5.4. (Amended by Ord. No. 186,484, Eff. 1/28/20.) LAMC Subsections 91.106.4.5.1, 91.106.4.5.2, and 91.106.4.5.3 shall not apply to a building or structure as described in LAMC Subsection 91.106.4.5.1 that is the subject of a pending zoning application for a specific plan filed prior to January 12, 2015. In the event a specific plan for such property is not approved within 3 years from January 12, 2015, such property shall be required to comply with the provisions of LAMC Subsections 91.106.4.5.1, 91.106.4.5.2, and 91.106.4.5.3. Insofar as the provisions of LAMC Subsections 91.106.4.5.1, 91.106.4.5.2, and 91.106.4.5.3 are different than or in conflict with the provisions of a specific plan, the provisions of the specific plan shall govern.

91.106.4.5.5. (Amended by Ord. No. 186,484, Eff. 1/28/20.) LAMC Subsections 91.106.4.5.1, 91.106.4.5.2, and 91.106.4.5.3 shall not apply to a building or structure as described in LAMC Subsection 91.106.4.5.1 that will be demolished as part of a project that was subject to California Environmental Quality Act review and for which the corresponding discretionary project approval was issued prior to submittal of the application for demolition pre-inspection.

91.106.4.6. Notification and Posting in a Hillside Grading Area.

91.106.4.6.1. In any area designated as a hillside grading area, the department shall not issue (1) a building permit for construction of a building with over 500 square feet of floor area, or (2) a building permit for any addition to an existing building which adds over 500 square feet of floor area, or (3) a grading permit for the grading of more than 1,000 cubic yards of earth materials without having first done the following at least 10 days prior to issuance of the building or grading permit:

1. The department shall send written notices of the permit application, by mail, to the owners of all property abutting the property at which the construction or grading will occur. Notices shall also be sent to the owners of all property across the street or alley when such property is intersected by a projection of the lot lines of the property at which the construction or grading will occur; and
2. The department shall post a notice of the permit application on the property at which the construction or grading will occur.

91.106.4.6.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The applicant seeking the permit shall provide the Department with the names and addresses of all persons entitled to receive notice pursuant to LAMC Paragraph 91.106.4.6.1.

91.106.4.6.3. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Department shall collect a fee in the amount of \$60.00 when an application for a building or grading permit described in LAMC Paragraph 91.106.4.6.1 is filed with the Department.

91.106.4.7. Curb Ramps.

91.106.4.7.1. Condition of Permits. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Subject to the provisions of LAMC Paragraph 91.106.4.7.2, no building or structure shall be erected or enlarged, and no building permit issued therefor, on any lot, any part of which is within 100 feet (30.48 m) of the straight projection of the intersection of the building lines of a corner lot of the block within which subject lot fronts, unless the applicant agrees in writing, and submits the necessary surety in the form of a bond or cash deposit, to construct a corner curb ramp at such corner and in addition, if such lot is within 100 feet (30.48 m) of two such intersections to construct corner curb ramps at each of the two adjacent corners at both intersections, for a total of two ramps. The curb ramp shall comply with the standards contained in Part 2 of Title 24 of the California Code of Regulations. Such improvements procedure shall, in all respects be in compliance with LAMC Section 12.37 D.

EXCEPTIONS: This section does not apply to the following:

1. One or two family dwelling or addition thereto located in a tract, parcel map or subdivision recorded prior to the effective date of this section.
2. A building or structure or addition thereto of less than 500 square feet in gross floor area or when such building, structure or addition thereto contains a restaurant or fast food restaurant of less than 200 square feet in gross floor area.
3. Where sidewalks are neither currently installed nor required by the city as a condition of development, at either the location of the proposed development or the location of the otherwise proposed curb ramp.

91.106.4.7.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) It is determined that the requirements of LAMC Paragraph 91.106.4.7.1 shall be imposed as a condition to the erection of any structure or addition thereto wherein handicapped access is otherwise required.

91.106.4.8. Construction Site Notice. (Added by Ord. No. 178,048, Eff. 12/24/06.)

91.106.4.8.1. Contents. Any person who obtains the following types of permits shall post a notice, as described below, at the construction site:

1. Permit for new structures, except signs,
2. Permit for additions to existing buildings,
3. Change of use or occupancy permit,
4. Demolition permit,
5. Relocation permit,
6. Swimming pool permit, or
7. Grading permit.

The notice shall be on a form entitled "Construction Site Notice" provided by the Department and shall include the following information: job site address, permit number, name and phone number of the contractor and owner or owner's agent, hours of construction allowed by code or any discretionary approval for the site, and City telephone numbers where violations can be reported.

91.106.4.8.2. Location. The notice shall be posted and maintained at the construction site and displayed in a location that is readily visible to the public and approved by the Department.

91.106.4.8.3. Maintenance of Notice. The notice shall be displayed after issuance of the permit and prior to the start of construction. The notice shall be displayed continuously during the process of construction until all the work authorized by the permit is inspected and approved by the Department. All contact information on the notice, including telephone numbers, shall be correct and maintained current. Failure to display this notice may result in withholding of inspections by the Department.

91.106.5. Solar Permitting. (Added by Ord. No. 183,892, Eff. 11/8/15.)

91.106.5.1. Streamlined Permitting Process for Small Residential Rooftop Solar Energy Systems. A solar energy system, as defined in California Civil Code Section 801.5(a), that satisfies all of the following requirements shall be eligible for streamlined permitting process:

1. It is no larger than 10 kilowatts alternating current nameplate rating or 30 kilowatts thermal;
2. It conforms to all applicable state and local fire, structural, electrical and other building codes;
3. It meets all applicable safety and performance standards established by the California Electrical Code, the Institute of Electrical and Electronics Engineers and accredited testing laboratories such as Underwriters Laboratories and, where applicable, rules of the Public Utilities Commission regarding safety and reliability;
4. It is installed on a single or duplex family dwelling; and
5. Its solar panels or module arrays do not exceed the maximum legal building height, which includes the height allowances provided by Section 12.21.1 B.3.(c) of the Los Angeles Municipal Code.

The Department shall publish on a publicly accessible internet site all required permitting documentation and a checklist of all requirements with which such solar energy systems must comply to be eligible for streamlined review. The Department shall use the checklist and standard plans contained in the most current version of the California Solar Permitting Guidebook and adopted by the Governor's Office of Planning and Research. The Department shall allow online submittal of permit applications and associated documentation, and shall authorize the electronic signature of all forms, applications and other documentation in lieu of a wet signature.

A permit application that the Department determines satisfies the information requirements in the checklist shall be deemed complete. Upon confirmation that an application is complete and that the proposed solar energy system complies with all requirements of the Los Angeles Municipal Code, the Department shall approve the application and issue all required permits in a timely manner in substantial conformance with the recommendations of the California Solar Permitting Guidebook. Upon receipt of an incomplete application, the Department shall issue a written correction notice detailing all deficiencies in the application and any additional information required to be eligible for streamlined permit issuance.

Except as provided herein, a solar energy system eligible for streamlined review shall be subject to no more than one inspection, which shall be done in a timely manner in substantial conformance with the recommendations of the California Solar Permitting Guidebook and may involve multiple agencies. If the eligible solar energy system fails the inspection, a subsequent inspection may be required. This section does not preclude the Los Angeles Department of Water and Power from conducting separate inspections for the interconnection of a solar energy system to the electricity grid.

The Department need not approve an application or issue permits under this section if the Department makes a finding, based on substantial evidence, that the solar energy system could have a specific, adverse impact upon the public health or safety. "Specific, adverse impact" means a significant, quantifiable, direct and unavoidable impact, based on objective, identified and written public health or safety standards, policies or conditions as they existed on the date the application was deemed complete.

91.106.6. Electric Vehicle Charging Station Permitting. (Added by Ord. No. 188,498, Eff. 4/1/25.)

91.106.6.1. Title, Words, and Phrases. The following definitions shall apply in place of those set forth in Government Code Section 65850.7, and any reference herein to a term set forth in a federal or state statute, term, or regulation shall be to the statute, term, or regulation as written and in effect on the date this Subsection 91.106.6 is adopted:

DEPARTMENT. The Department of Building and Safety of the City of Los Angeles.

ELECTRIC VEHICLE CHARGING STATION or CHARGING STATION. One or more electric vehicle charging spaces served by electric vehicle charger(s)

or other charging equipment that facilitates the charging of electric vehicles. Electric vehicle charging stations are not considered parking spaces.

ELECTRONIC SUBMITTAL. The utilization of one or more of either electronic mail, the internet, or facsimile to transmit an application.

SPECIFIC, ADVERSE IMPACT. A significant, quantifiable, direct, or unavoidable impact, based on objective, identified, and written public health or safety standards, policies, or conditions as they existed on the date the application was deemed complete.

91.106.6.2. Expedited Electric Vehicle Charging Station Permitting. Electric vehicle charging stations that qualify for expedited permit processing shall be subject to the administrative permitting procedures set forth in Subsections 91.106.6, et seq.

91.106.6.3. Expedited Review Process. The Department shall develop and implement an expedited administrative permit review process for electric vehicle charging stations, and promulgate a checklist of all requirements with which electric vehicle charging stations must comply in order to be eligible for expedited review, subject to any budgetary constraints. The adopted checklist shall be published on the Department's website. The Superintendent may modify the checklist from time to time to address local and unique climactic, geological, seismological, or topographical conditions.

91.106.6.4. Electronic Submittals. Permit applications covered by these regulations and of associated supporting documentations may be submitted electronically. In lieu of a wet signature, an applicant may utilize electronic signatures on all forms, applications, and other documentation transmitted pursuant to this subsection.

91.106.6.5. Association Approval. Consistent with Government Code Section 65850.7, the approval for any electric vehicle charging station permit shall not be contingent on the approval of such a system by an association, as that term is defined by Civil Code Section 4080.

91.106.6.6. Permit Application Processing. A permit application is complete if the Department determines that a permit application satisfies the information requirements in the Department's adopted checklist and the applicant has paid all applicable fees.

If the Department determines that the permit application is incomplete, it shall issue a written correction notice to the applicant detailing the additional information required for the project to be eligible for expedited permit processing. Confirmation of a complete application does not authorize an applicant to energize or utilize the electric vehicle charging station.

Notwithstanding the foregoing, an application shall be deemed complete if all of the following conditions are met: the Department has not determined that a permit application satisfies the information requirements in the Department's adopted checklist; the Department has not issued a written correction notice; and, either five business days have elapsed since the submission of an application for at least one but not more than 25 electric vehicle charging stations, or ten business days have elapsed since submission of an application for more than 25 electric vehicle charging stations.

91.106.6.7. Permit Issuance. It is the intent of these regulations to encourage the installation of electric vehicle charging stations by removing obstacles to permitting for charging stations so long as the action does not supersede the Department's regulatory authority to identify and address higher priority life-safety situations. Permit(s) may be issued once the Department determines that the permit application and supporting documents meet all requirements and are consistent with all applicable health and safety requirements necessary to ensure the electric vehicle charging station will not have a specific, adverse impact upon the public health or safety. If the electric vehicle charging station and associated equipment interfere with or reduce the required parking spaces for existing uses, the Department shall reduce the number of required parking spaces by the amount necessary to accommodate the electric vehicle charging station and associated equipment.

If the Department makes a finding that the electric vehicle charging station would have a specific adverse impact upon the public health or safety, and there is no feasible method to satisfactorily mitigate or avoid the specific, adverse impact, the Department may deny the permit application. Such a finding shall include the basis for rejecting any alternatives proposed by the applicant to prevent the specific, adverse impact. The decision to deny the permit application may be administratively appealed.

Notwithstanding the foregoing, an application for an electric vehicle charging station shall be deemed approved if all of the following conditions are met: the Department has not administratively approved the permit application; the Department has not made a finding that the electric vehicle charging station would have a specific, adverse impact upon the public health or safety, as specified; no administrative appeal has been filed; and, either 20 business days have elapsed since an application for at least one, but not more than 25 electric vehicle charging stations has been deemed complete, or 40 business days have elapsed since an application for more than 25 electric vehicle charging stations has been deemed complete.

SEC. 91.107. FEES.

(Amended in Entirety by Ord. No. 171,668, Eff. 8/28/97.)

91.107.1. General. Fees shall be assessed in accordance with the provisions of this section.

91.107.1.1. Annual Review of Fees. The fees in this code shall be reviewed annually by the Superintendent of Building. Beginning on July 1, 2010, and thereafter on July 1, of every year, the amount of each fee in this code shall be adjusted as follows: Calculate the percentage movement between July of the previous year and July of the current year in the Consumer Price Index - All Urban Consumers in the Los Angeles area, as published by the United States Government Bureau of Labor Statistics. Adjust each fee by said percentage amount and round off to the nearest ten cents, provided, however, no fee shall exceed the reasonable cost of providing services. When it is determined that the amount reasonably necessary to recover the cost of providing services is in excess of this adjustment, the Superintendent of Building may present fee proposals to the City Council for approval. **(Added by Ord. No. 180,868, Eff. 10/22/09.)**

91.107.2. Permit Fees. Before issuing any permit required by this code, the Department shall collect a fee.

91.107.2.1. Building Permit. Unless otherwise required below, the amount of the permit fee shall be as shown in Table No. 1-A of this code for the total value of all construction work for which the building permit is issued, including all painting, papering, roofing, electrical work, plumbing, permanent or fixed heating equipment, elevator equipment, fire sprinkler equipment and any other permanent portions or permanent equipment except as provided in Section 91.106 of this code.

No portion of any building, including mechanical, electrical and plumbing work shall be excluded from the valuation for a building permit because of any other permits required by any governing agency.

91.107.2.2. Combined Building-Mechanical Permit. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A combined building-mechanical permit shall be issued, provided a fee is paid. The permit fee shall be as determined by using Table 1-A.1 of this division. A combined building-mechanical permit shall entitle the permittee to the inspection of all building, electrical, plumbing, heating, ventilating and air conditioning work in the following systems:

1. A new one- or two-family dwelling.
2. Any work necessary and in conjunction with alterations, additions or demolitions to a one- or two- family dwelling. In the event that work in one or more of the mechanical trades is not required, the applicable fee(s) shall not be collected.
3. A pool accessory to a one- or two-family dwelling, except pools that are exempt from a building permit but may require a permit for electrical, plumbing and hearing work, a combined building- mechanical permit shall be issued provided a fee is paid. The fee shall be 75% of the fee determined from Table 1-A of this division. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
4. A complete solar heating and/or cooling system installation appurtenant to and used exclusively by a one- or two-family dwelling; or an individual dwelling unit or an efficiency dwelling unit in an apartment house, apartment-hotel or hotel; or a pool accessory to a one-family dwelling.

91.107.2.3. Sign Building Permit. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Before issuing a building permit for any sign, the Department shall collect a permit fee. The amount of the permit fee shall be equal to 3.5% of the total value of all construction or work, as determined by the Department, for which the building permit is issued, but in no event shall the permit fee be less than the minimum inspection fee as specified in LAMC Section 98.0412(a) and Footnote 4 of Table 1-A of this division. The sign building permit shall be subject to the surcharge specified in Footnote 1 of Table 1-A of this division.

91.107.2.4. Grading Permit. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Before issuing any grading permit, the Department shall collect a permit fee, the amount of which shall be as shown in Table 1-D of this division.

91.107.2.5. Earthquake Hazard Reduction in Existing Tilt-up Concrete Wall Buildings Permit. The permit fee for construction work which the Department determines is necessary to satisfy the requirements contained in Section 91.9108 of this code, shall be based on the entire floor area of the building requiring any strengthening work. The fee shall be equal to \$0.0347 per square foot or fraction thereof of the subject building.

91.107.2.6. Permit Issuing Fee When Plan Check Is Not Required. See Section 98.0415 of the Los Angeles Municipal Code.

91.107.2.7. Certificate of Occupancy for Use of Land Permit. A fee of \$150.00 shall be charged for each Certificate of Occupancy for use of land; however, no fee shall be charged when a Certificate of Occupancy is being issued pursuant to Section 91.109 of this code or when any work which requires a building permit is done.

91.107.2.8. Awning Installation Permit. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Every awning erected and arranged so that temporary shelter may be provided over any portion of a public way shall be subject to an installation fee equal to the minimum inspection fee specified in LAMC Section 98.0412(a).

91.107.2.9. Temporary Special Event Fees. (Added by Ord. No. 187,056, Eff. 7/4/21.) The City Council shall adopt, by resolution, a fee based on an analysis of the cost of issuing a Temporary Special Event Permit or Farmers' Market Permit. The Department shall collect that fee prior to the issuance of those permits pursuant to Sections 91.106.1.3.1 or 91.106.1.3.2 of this Code. If any changes are made to a previously approved permit, an additional inspection will be required and an associated inspection fee pursuant to LAMC Section 98.0412 will pertain to each additional inspection. Fees are not refundable once work has been performed by the Department, regardless of whether the action taken is approval or denial.

91.107.3. Plan Check and Preinspection Fees.

91.107.3.1. Plan Check Fees. Before formally accepting a set of plans and specifications for checking, the Department shall collect a plan check fee. Plan checking shall expire if permit is not secured within the time limits specified in Section 98.0603 of the Los Angeles Municipal Code.

91.107.3.1.1. Buildings and Structures. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Unless otherwise required below, the plan check fee for buildings, structures or portions thereof shall be equal to 90% of the building permit fee as shown in Table 1-A of this division.

EXCEPTION: Where the occupancy of a residential building or portion thereof is changed, the plan checking fee shall be based on a valuation equal to 85% of the replacement value of the building or portion changed.

91.107.3.1.2. Signs and Sign Support Structures. The plan check fee for signs and/or sign support structures shall be equal to 50 percent of the building permit fee as indicated in Section 91.107.2.3 of this code.

91.107.3.1.3. Grading Work. The plan check fee for grading plans shall be 90 percent of the grading permit fee as indicated by Section 91.107.2.4 of this code. The fee for grading work on two or more contiguous sites may be the amount indicated for the sum of the total cubic yards in all the separate sites.

EXCEPTION: A grading plan check fee will not be required for jobs of 50 cubic yards (38.3 m³) or less.

91.107.3.1.4. Hourly Plan Check Fee. The Department may collect a plan check fee as specified in Section 98.0415(e) of the Los Angeles Municipal Code for any time not included by the original plan check fee and shall be in addition to other fees specified in this code.

91.107.3.1.5. Tilt-Up Concrete Wall Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The plan check fee for construction pursuant to the requirements of the Earthquake Hazard Reduction in Existing Tilt-up Concrete Wall Buildings contained in Division 91, Article 1, Chapter IX of the LAMC shall be equal to the building permit fee as specified in LAMC Subdivision 91.107.2.5.

91.107.3.1.6. Plan Check Fees for More Than One Building. When two or more buildings are to be erected on the same site and the following regulations are complied with, the plan checking fee, if of a lesser amount, may be the fee indicated for the sum of the values of all the separate buildings.

91.107.3.1.6.1. All of the buildings shall be shown on the one set of plans and specifications.

91.107.3.1.6.2. Applications for separate permits for each building shall be filed prior to the checking of the plans.

91.107.3.1.6.3. Two sets of plans and specifications shall be submitted to the Department.

91.107.3.1.7. Plan Check Fees for Duplicate Buildings. When two or more buildings are to be erected from identical plans and specifications and the following regulations are complied with, the plan checking fee, if of a lesser amount, may be the fee indicated for the sum of the values of all the separate buildings.

91.107.3.1.7.1. Applications for separate permits for each building shall be filed prior to the checking of the plans.

91.107.3.1.7.2. A site plat shall accompany each application for a permit.

91.107.3.1.7.3. The number of sets of plans and specifications submitted to the Department shall be one more than the number of applications for permits.

91.107.3.1.7.4. Footings for one or more of the buildings may deviate from the plans and specifications provided that, in each instance, separate footing plans are submitted to the Department.

91.107.3.1.8. Fees for Rechecking Plans. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No additional fee shall be charged for verification of the corrections required by the Department or other departments. However, when the applicant revises plans for other than plan check correction and additional plan check time is required to review the plan revisions, the Department shall collect a supplemental plan check fee as specified in LAMC Paragraph 91.107.3.1.4.

When plans are resubmitted for review of changes made to previously approved plans, an application for a permit shall be filed.

The plan checking fee in the case of a building permit shall be based on an hourly rate as specified in LAMC Paragraph 91.107.3.1.4, and the plan check fee for a grading permit shall be as specified in LAMC Paragraph 91.107.3.1.3 for the number of cubic yards replaced, removed or omitted that were not previously approved.

When a permit expires by limitation and the work is not completed, the plans shall be resubmitted for checking before the issuance of a new permit. The plan checking fee shall be based on the same valuation as specified for the permit in LAMC Subdivision 91.106.4.4.

91.107.3.2. Preinspection Fees. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The Department shall collect a fee of \$121.00 for each of the following:

1. **Grading Preinspection.** A grading preinspection fee shall be collected for any building permit application involving work in the hillside grading area and for all grading plans submitted to the Department.

EXCEPTION: The grading preinspection fee may be waived when the Department determines that the nature of the work does not require preinspection of the work site.

2. **Sign Preinspection.** A sign preinspection fee shall be collected when a permit application is filed for construction, replacement, alteration or repair of a sign.

EXCEPTION: The sign preinspection fee may be waived when the Department determines that the nature of the sign does not require preinspection of the proposed location to determine compliance with applicable requirements.

3. **Demolition Preinspection.** A demolition preinspection fee shall be collected for all proposed demolition of buildings (including accessory buildings) or structures on a site and shall be conducted before the issuance of a demolition permit.

EXCEPTION: The demolition pre-inspection and demolition preinspection fee may be waived when the Department determines that previous inspections associated with the Department's abatement programs have been made.

4. **Preinspection.** Preinspection fee shall be collected whenever the Department determines that due to the nature of the work involved, an inspection is necessary.

91.107.3.3. Fees for Off-hour Plan Check. Upon request by an applicant and accepted by the Department, an off-hour plan check fee per Section 98.0422 of the Los Angeles Municipal Code may be collected.

91.107.4. Permit Related Fees. When applicable, the following supplemental fees shall be required prior to issuance of a permit.

91.107.4.1. Supplemental Building Permit Fees. A fee for a supplementary building permit to cover any additional valuation to work included in the original permit shall be the difference between the fee paid for the original permit and the fee which would have been required had the original permit included the entire evaluation.

A fee for a building permit authorizing changes from approved plans or specifications shall be based on a valuation equal to the increase in valuation caused by the change, but no refund shall be made if the change causes a reduction of valuation.

91.107.4.2. Supplemental Grading Permit Fees. The fee for a supplementary grading permit authorizing additional work to that under a valid permit shall be the difference between the fee paid for the original permit and the fee shown for the entire project.

91.107.4.3. Plan Maintenance Fees. Before issuing a building permit, the Department shall collect a fee for maintaining building plans which are required to be retained by Section 91.106.4.2 of this Code.

The amount of the plan maintenance fee shall be 2 percent of the building permit fee, but not less than \$10.00 and not more than \$300.00, and shall be collected for each separate plan to be retained by the Department.

91.107.4.4. Fire Hydrant Fee Notice. Before issuing any building permit required by this code, if the total value of all new construction or work for which the permit is issued is \$50,000 or greater, as determined by the Department, the Department shall collect a fire hydrant fee. The amount of this fee shall be equal to 22/100 of 1 percent of the total value of all construction or work for which the permit is issued. If the applicant for a building permit subject to the fire hydrant fee pays such fee under protest or refuses to pay such fee, the Department may issue the permit, but shall affix to the permit a Fire Hydrant Fee Notice to read as follows:

FIRE HYDRANT FEE NOTICE:

The City of Los Angeles may amend the Fire Hydrant Fee Ordinance.

The owner of the project designated in this permit shall be obligated to pay to the Department a fire hydrant fee in the amount to be calculated pursuant to any amendment to the fire hydrant fee ordinance. This fee will be used to provide adequate fire-safety facilities and services for new development.

EXCEPTION: A fire hydrant fee shall not apply to any permit for demolition of a building or structure.

The Department of Building and Safety shall cause all money collected pursuant to this section to be deposited into the Fire Hydrant Installation and Main Replacement Fund described in Section 5.114 of the Los Angeles Administrative Code for purposes of disbursement as permitted therein; except that \$5.00 from each fire hydrant fee shall be deposited in the Department of Building and Safety Building Permit Enterprise Fund pursuant to Section 5.114 of the Los Angeles Administrative Code. **(Amended by Ord. No. 180,619, Eff. 5/12/09.)**

91.107.4.5. Metal Bars, Grilles, Grates, Security Roll-Down Shutters and Similar Devices. **(Amended by Ord. No. 174,829, Eff. 10/27/02, Oper. 11/1/02.)** The permit fee for the installation of devices for which a permit is required by Section 91.6304.3 of this Code shall be \$25.00 for each affected dwelling unit, efficiency dwelling unit, light housekeeping room or guest room in a residential building.

EXCEPTIONS:

1. The Department shall issue a permit without collection of a fee if it determines that the following conditions are met:

A. The metal bars, grilles, grates, security roll down shutters and similar devices were installed prior to June 3, 1986, and

B. The dwelling unit is in full compliance with CBC Section 310.4 when the first inspection is conducted pursuant to CBC Section 310.4.

2. The Department shall issue a permit without the collection of a fee for all eligible lower income households, as defined by California Health and Safety Code Section 50079.5. The Department shall determine whether the applicant meets the applicable criteria for eligibility.

91.107.4.6. Arts Development Fee.

91.107.4.6.1. Arts Fee. The owner of a development project for a commercial or industrial building shall be required to pay an arts fee in accordance with the requirements of this section.

91.107.4.6.2. Fee Amount. The Department of Building and Safety shall collect an arts fee in the following amount:

1. **Office or research and development.** For an office or research and development building, the arts fee shall be \$1.57 per square foot.

2. **Retail.** All retail establishments shall pay an arts fee of \$1.31 per square foot.

3. **Manufacturing.** For a manufacturing building, the arts fee shall be \$0.51 per square foot.

4. **Warehouse.** For a warehouse building, the arts fee shall be \$0.39 per square foot.

5. **Hotel.** For a hotel building, the arts fee shall be \$0.52 per square foot.

In no event shall the required arts fee exceed either \$1.57 per gross square foot of any structure authorized by the permit or one percent of the valuation of the project designated on the permit, whichever is lower, as determined by the Department of Building and Safety. Where there are combined uses within a development project or portion thereof, the arts fee shall be the sum of the fee requirements of the various uses listed above. The Cultural Affairs Department shall revise the arts fee annually by an amount equal to the Consumer Price Index for Los Angeles as published by the United States Department of Labor. The revised amount shall be submitted to Council for adoption by ordinance.

91.107.4.6.3. Time of Collection. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Exception as provided in LAMC Subdivision 91.107.4.6, the Department shall collect an arts fee before issuance of a building permit for commercial and industrial buildings required by this Code.

91.107.4.6.4. EXCEPTIONS: (Amended by Ord. No. 185,587, Eff. 7/16/18.) The arts fee required by LAMC Subdivision 91.107.4.6 shall not be assessed for the following projects or portions thereof:

1. Any project for which the total value of all construction or work for which the permit is issued is \$500,000 or less.
2. The repair, renovation or rehabilitation of a building or structure that does not alter the size or occupancy load of the building.
3. The repair, renovation or rehabilitation of a building or structure for the installation of fire sprinklers pursuant to Division 9, Article 1, Chapter IX of the LAMC. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**
4. The repair, renovation or rehabilitation of a building or structure that has been made to comply with Division 88 (Earthquake Hazard Reduction in Existing Buildings), Article 1, Chapter IX of the LAMC subsequent to a citation of noncompliance with Division 88, Article 1, Chapter IX of the LAMC.
5. The repair, renovation or rehabilitation of a building or structure for any handicapped facilities pursuant to this code.
6. All residential buildings or portion thereof. This exception does not include hotels.

91.107.4.6.5. Use of Arts Fees Acquired Pursuant to Section 91.107.4.6. Any arts fee collected by the Department of Building and Safety shall be deposited in the Arts Development Fee Trust Fund. Any fee paid into this fund may be used only for the purpose of providing cultural and artistic facilities, services and community amenities which will be available to the development project and its future employees. Any cultural and artistic facilities, services and community amenities provided shall comply with the principles and standards set forth in the Cultural Master Plan when adopted.

At or about the time of collection of any fee imposed by this section, the Cultural Affairs Department shall identify the use to which the arts fee is to be put, and if the use is financing public facilities, the facilities shall be identified.

91.107.4.6.6. Projects Covered by Ordinance 164,243. (Ord. No. 173,300, Eff. 6/30/00, Oper. 7/1/00.) In 1988, the City enacted Ordinance 164,243 which states in part:

“This ordinance is an interim measure while the City of Los Angeles is giving consideration to the enactment of an Arts Development Fee Ordinance. The owners of a development project shall be obligated to pay an Arts Development Fee if such fee is adopted in the future by the city. The fee will not exceed one percent (1%) of the total value of work and construction authorized by the building permit issued to a development project. This fee would be used to provide adequate cultural and artistic facilities, services and community amenities for the project.”

By enacting LAMC Subdivision 91.107.4.6 (previously Section 91.0304(b)(11)), the City has adopted the Arts Development Fee referred to by Ordinance 164,243. Accordingly, an arts fee shall be paid to the City of Los Angeles by owners of development projects which received building permits between and including January 15, 1989, and the effective date of this section. This arts fee described in this section shall be paid within 60 days of receipt of a request for payment of an arts fee. All exceptions listed in LAMC Paragraph 91.107.4.6.4 shall apply to owners of development projects subject to Ordinance 164,243. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The Office of Finance shall bill and collect the Arts Development Fee owed by those persons to whom notice was given pursuant to this paragraph for the period January 15, 1989, through May 7, 1991. The amount due shall be paid in full within 60 days of the billing date unless an agreement to pay in installments pursuant to this paragraph is approved by the Office of Finance. Persons indebted to the City of Los Angeles for Arts Development Fees may, upon approval by the Office of Finance, enter into an agreement with the City of Los Angeles to pay such fees in installments over a period not to exceed one year. The Office of Finance shall collect a service fee of \$10.00 on each monthly installment to recover the cost to the city of processing installment payments. The Cultural Affairs Department is hereby authorized to negotiate and accept payment in kind for the Arts Development Fee owed by those persons to whom notice was given pursuant to this paragraph for the period January 15, 1989, through May 7, 1991. The Cultural Affairs Department shall provide notice to the Office of Finance of the name of the person on whose account such in kind payment was accepted, and whether the in kind payment constitutes payment in full or only a specified portion of the Arts Development Fee owed.

The Office of Finance is authorized to record payment in full, without further notification to the person billed, for cash or in kind Arts Development Fee payments received that are within \$3.00 of the amount owed.

91.107.4.7. Affordable Housing Linkage Fee. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Before issuance of a building permit for any development project, the Department of Building and Safety shall affix to the permit an Affordable Housing Linkage Fee per LAMC Section 19.18.

The Department of Building and Safety shall determine which exceptions apply to any project based on documentation submitted by the applicant prior to the issuance of the building permit per LAMC Section 19.18 B.2.

EXCEPTION: The notice required by this section shall not be affixed to building permits for the following projects or portion thereof:

1. Any project for which a building permit is issued with less than 40,000 square feet (3716 m²) of new floor area as determined by the Department of Building and Safety;
2. Any project located within the boundaries of an enterprise zone designated in LAMC Section 12.04;
3. Any project developed by nonprofit entities such as hospitals, schools, religious institutions, museums, day care providers and other similar organizations, where the construction is directly related to the nonprofit purpose of the organization as determined by the Los Angeles Housing Department. This exception shall not apply to nonprofit development of leasable commercial office space; **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**
4. Any project or portion of a project for industrial, warehouse development or parking structures as defined by the Los Angeles Municipal Code and determined by the Department of Building and Safety;
5. Any project within a current neighborhood Community Redevelopment Agency project area as defined in LAMC Section 12.04 other than the Bunker Hill, Central Business District and Little Tokyo redevelopment areas;
6. Any development project where one or more of the following discretionary approvals, initiated by application of the property owner or their representatives, was granted by a government agency between January 1, 1986 and October 1, 1989 and remains valid: zone change, conditional use permit,

variance, height district change, zone boundary adjustment, specific plan exception, project permit pursuant to a moratorium ordinance, development agreement, coastal development permit, commercial corner development, project permit pursuant to an interim control ordinance, parcel map, tract map or vesting tentative tract map.

In addition, prior to the issuance of any such building permit, the Department of Planning shall certify in writing that the necessary environmental clearances were completed and that the discretionary approval included a determination of one or more of the following: building location, height, density, use, parking and access of the proposed project;

7. Any project for which architectural and structural plans sufficient for a complete plan check for a building permit have been accepted by the Department of Building and Safety and for which plan check fees were collected on or before the effective date of this section and for which no subsequent changes are made to those plans which increase the height, floor area or occupancy load by more than 5 percent;

8. Any project for an existing building which will not result in the addition of over 40,000 square feet (3716 m²) of new space as determined by the Department of Building and Safety; and

9. Residential buildings which contain one or more dwelling units, efficiency dwelling units, apartment units or the residential portion of a building that has both residential and nonresidential uses. This exception shall not apply to hotels.

10. Any project located within the boundaries of the Central City West Specific Plan Area, as defined in Ordinance No. 163,094, if the developer or project owner agrees by covenant and agreement or development agreement to abide by the linkage fee and replacement housing obligations set forth in the Specific Plan for the Central City West Specific Plan Area.

11. The repair, renovation or rehabilitation of a building or structure of historical, archaeological or architectural consequence, if such building or structure has been officially designated, or has been determined by state or federal action to be eligible for designation, on the National Register of Historic Places, or has been included on the City of Los Angeles list of Historic Cultural Monuments.

The Department of Building and Safety shall determine which exceptions apply to any project based on documentation submitted by the applicant prior to the issuance of the building permit.

91.107.5. Additional Fees. (Added by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.107.5.1. Investigation Fees. (Added by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) In addition, the Department shall have the authority to collect investigation fees. For investigation fees of work done without a valid building permit, see Section 98.0402 of the Los Angeles Municipal Code.

91.107.5.2. Other Fees. (Added by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) The Department shall have the authority to collect a fee to cover any additional costs incurred by the Department in obtaining code compliance or issuing a permit for work that was done prior to obtaining the required permit. This fee shall be in addition to any other fees required by the Los Angeles Municipal Code. The Superintendent shall prepare a fee schedule for this purpose for adoption by ordinance. The fee schedule for inspections shall be those fees referenced in Section 98.0412 of the Los Angeles Municipal Code.

91.107.6. Refund of Fees. See Section 98.0420 of the Los Angeles Municipal Code for the procedure.

91.107.7. Processing Fees for Security Bar Certificates of Compliance. The Department of Building and Safety shall charge a \$20.00 fee for the processing of each Security Bar Certificate of Compliance. The Department shall maintain on file Security Bar Certificates of Compliance.

Certified security bar installers shall file Security Bar Certificates of Compliance in accordance with LAMC Subdivision 91.108.12.1. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.107.8. Processing Fees for Soils Engineering, Foundation Investigation, Geology and Seismology Report and for Review of Division of Land Requests.

91.107.8.1. Soils Engineering, Foundation Investigation, Geology and Seismology Report. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A fee shall be charged for the processing of each soil, foundation investigation, geology, or seismology report and the amount of the fee shall be determined from Table 1-C of this division.

91.107.8.2. Division of Land. Where the Department is required to review a division of land request as part of the City Planning Division of Land procedures, a fee of \$453.00, shall be paid prior to the initiation of such review. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

SEC. 91.108. INSPECTION.

91.108.1. General. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All construction or work for which a permit is required shall be subject to inspection by authorized employees of the Department, and certain types of construction shall have continuous inspection by Registered Deputy Inspectors as specified in Section 91.1704 of this Code. Prior to the issuance of a Certificate of Occupancy as specified in Section 91.109, a final inspection shall be made by the Department of all construction or work for which a permit has been issued.

EXCEPTIONS:

1. When a permit is obtained for reroofing in compliance with LAMC Section 91.1511, the Department may waive inspections provided the following persons certify that the materials used comply with LAMC Section 91.1511 and work is performed by: **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

A. A licensed contractor; or

B. The owner of the property who either did the work or used employees of the owner to do the work pursuant to California Business and Professions Code Section 7044.

2. When a permit is obtained for any work performed by certified licensed contractors complying with the requirements of Section 91.108.12.

91.108.2. Inspection Record Card. With each permit issued, the department shall furnish a card to the applicant showing the location and nature of the work to be done and the number of the permit.

The permit card shall be posted in a place designated by the Superintendent of Building.

91.108.3. Inspection Requests. It shall be the duty of the person doing the work authorized by a permit to notify the Superintendent of Building that such work is ready for inspection. The Superintendent of Building may require that every request for inspection be filed at least one working day before such inspection is desired. Such request may be in writing or by telephone at the option of the Superintendent of Building.

It shall be the duty of the person requesting any inspections required by this Code to provide access to and means for inspection of such work.

91.108.4. Approval Required. Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the Superintendent of Building. The Superintendent, upon notification, shall make the requested inspections and shall either indicate that portion of the construction is satisfactory as completed or shall notify the permit holder or an agent of the permit holder wherein the same fails to comply with this Code. Any portions which do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the Superintendent.

There shall be a final inspection and approval of all buildings and structures when completed and ready for occupancy and use.

91.108.5. Required Inspections. The permittee or the permittee's agent shall notify the department when the building or portion thereof is ready for each of the following inspections:

1. **Foundations.** When the excavation for footings is complete and footing forms and required reinforcing steel are in place, but before any concrete is placed.
2. **Wood framing, ventilation equipment installation.** When all roof, walls and floor framing, fire stopping and bracing are complete and all pipes, chimneys, vents and ductwork are in place, but before any of this work is covered.
3. **Wall covering.** When the backing and lath or drywall are in place ready for plaster, stucco or taping.
4. **Reinforced concrete.** When forms and reinforcing steel are in place ready for concrete.
5. **Reinforced masonry.** In grouted masonry when vertical reinforcing steel is in place and other reinforcing steel distributed and ready for placing, but before any units are laid up.
6. **Structural steel.** When structural steel members are in place and required connections are complete, but before concealing any members or connection.
7. **Final.** When the construction or work is completed and the structure ready for occupancy, but before being occupied.

The permittee or the permittee's agent shall notify the department on the day prior to the day on which inspection is desired.

The department shall approve that portion of the work inspected or notify the responsible person if the work fails to comply with the law. Any portions which do not comply with the law shall be corrected and no portion shall be covered or concealed with additional work until approved.

When any of the above required inspections have been made and that portion of the work approved, the inspector shall so record on the permit card posted on the job.

91.108.6. Other Inspections. In addition to the called inspections specified above, the department may make any other inspections of any construction work to ascertain compliance with the provisions of this Code and other laws which the department enforces.

91.108.6.1. Weather Exposed Balcony and Walking Surface Waterproofing. (Added by Ord. No. 186,488, Eff. 12/27/19.) Where balcony or other elevated walking surfaces are exposed to water from direct or blowing rain, snow, or irrigation, and the structural framing is protected by an impervious moisture barrier, all elements of the impervious moisture barrier system shall not be concealed until inspected and approved.

91.108.7. Reinspections. Fees for additional inspections shall be assessed in accordance with Section 98.0412 of the Los Angeles Municipal Code.

91.108.8. Surveys. (Amended by Ord. No. 186,488, Eff. 12/27/19.) In the absence of any designation of the proper location of the lot or the building to be erected on the lot, for which building a permit has been issued or for which an application for a building permit has been filed, or as requested in a written notice from the Department, the Department may require the owner to have the lot surveyed and staked by a registered civil engineer, licensed prior to January 1, 1982, or a registered land surveyor, so that the proper location of the lot or the building on the lot may be determined or the location of the required features in the Department's written notice may be determined.

91.108.9. Inspection of Excavation and Fills. (Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) The permittee or the permittee's agent shall notify the Department when the grading operation is ready for each of the following inspections:

1. **Initial meeting/inspection.** When the permittee is ready to begin work, but before any grading operation or brushing is started, a meeting shall be held at the project site with the contractor and the inspectors to discuss the approved plans, soil reports and the sequence of the grading operations.
2. **Toe inspection.** After the natural ground is exposed and prepared to receive fill, but before any fill is placed.
3. **Excavation inspection.** After the excavation is started, but before the vertical depth of the excavation exceeds 10 feet.
4. **Fill inspection.** After the fill emplacement is started, but before the vertical height of the lifts exceeds 10 feet.
5. **Drainage device inspection.** After forms and pipe are in place, but before any concrete is placed.
6. **Rough grading.** When all rough grading has been completed. This inspection may be called for at the completion of the rough grading without the necessity of the Department having previously reviewed and approved the reports.
7. **Final.** When all work, including installation of all drainage structures and other protective devices, has been completed and the as-graded plan and required reports have been submitted.

The Department shall approve the work inspected or notify the permittee or owner wherein the work fails to comply with the law. Any portion of the work which does not comply with the law shall be corrected.

91.108.10. Revised Grading Plan. If the inspector finds that the soil or other conditions are not as stated in the application for a grading permit, the inspector may refuse to approve further work until a revised grading plan is obtained which conforms to the existing conditions.

91.108.11. Approved Fabricators. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The inspections provided for in this section shall not be required for construction or installation work done on the premises of a Type II fabricator to whom an approval has been issued pursuant to the provisions of Division C, Article 6, Chapter IX of the LAMC.

91.108.12. Inspections by Certified Licensed Contractors of Work Performed on Detached Single-family Dwellings and Multi-family Dwelling Units. (Amended by Ord. No. 186,613, Eff. 6/24/20.)

91.108.12.1. (Amended by Ord. No. 186,613, Eff. 6/24/20.) In lieu of the inspections made by employees of the Department, as specified in LAMC Section 91.108, a certified licensed contractor, employed by the owner, upon notification to the Department prior to the commencement of work, may install, inspect, and certify any of the following as being performed in compliance with the provisions of the LAMC for a detached single-family dwelling:

1. The replacement of defective water heaters with one of equivalent gallonage, Btu rating, and vent capacity when the vent does not require relocation or replacement.

2. The replacement of defective forced-air units with one of equivalent size, Btu rating, and vent capacity when the vent does not require relocation or replacement.
3. The replacement of defective air- conditioning units with one of equivalent size and Btu rating.
4. The replacement of plumbing fixtures and solar panels with equal kind and quality.
5. The replacement of defective domestic water piping within a dwelling with piping of equivalent size and quality when the installation does not exceed 50 feet in length.
6. The replacement of defective metallic water service piping with piping of equivalent size, quality, and conductivity.
7. The removal of existing roofing and the replacement of roofing materials that are in compliance with CBC Section 1510 and that do not require any alteration to the roof support system.
8. The replacement of defective smoke detectors.
9. The replacement of shower pans with the same size and capacity.
10. The installation or replacement of masonry and concrete fences not exceeding 6 feet in height.
11. The installation or replacement of seismic gas shut-off valves for low-pressure systems.

91.108.12.1.1. (Added by Ord. No. 186,613, Eff. 6/24/20.) In lieu of the inspections made by employees of the Department, as specified in LAMC Section 91.108, a certified licensed contractor, employed by the owner, upon notification to the Department prior to the commencement of work, may install, inspect, and certify any of the following as being performed in compliance with the provisions of the LAMC for multi-family dwelling units:

1. The replacement of lavatories, sinks, clothes washers, vacuum breakers, water closets, dishwashers, and garbage disposals with equal kind and quality.
2. The installation or replacement of seismic gas shut-off valves for low-pressure systems.

91.108.12.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The employment of a certified licensed contractor by the owner on any work shall not prohibit the Department from performing inspections of any work described in LAMC Subdivision 91.108.12.1. The Superintendent of Building may delegate the inspections required by LAMC Subsection 91.108.5 to a certified licensed contractor.

91.108.12.3. Department Inspection. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Department may allow the use of the certification by a certified licensed contractor in lieu of inspections made by employees of the Department provided there is compliance with all of the following:

1. The certified licensed contractor has a valid Certificate of Registration obtained in accordance with LAMC Subsection 91.1704.1. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**
2. The certified licensed contractor has filed with the Department a Certificate of Compliance for each installation.

The Certificate of Compliance shall be on a form provided by the Department and shall be signed by the property owner and the certified licensed contractor. The Department may require that the certified licensed contractor affix a certification label obtained from the Department on certain types of installations to identify the work certified;

The Certificate of Compliance shall describe the work performed and state that the certified licensed contractor warrants, from personal knowledge, that the materials installed and the work performed are in compliance with approved manufacturer's instructions, specifications and applicable requirements of the LAMC.

For the work described in Items 1, 2 and 3 of LAMC Subdivision 91.108.12.1, the phrase "**personal knowledge**" as used in the Certificate of Compliance means that the certified licensed contractor has actual personal knowledge of the facts certified to, or knowledge acquired from an employee of the certified licensed contractor, which employee provided continuous observation of the work or installation at the site in all stages of its progress.

For work set forth in Items 4, 5 and 6 of LAMC Subdivision 91.108.12.1, the phrase "**personal knowledge**" means the certified licensed contractor has actual personal knowledge or knowledge acquired from another certified licensed contractor or a qualified installer.

3. The Certificate of Compliance processing fee has been paid in accordance with Section 98.0417 of the Los Angeles Municipal Code.
4. The certified licensed contractor has filed the application for a Certificate of Compliance with the Department within 15 days after completion of the installation.

The certified licensed contractor has submitted a report to the Department describing the work the certified licensed contractor performed and declaring that the work complies with all applicable provisions of the Los Angeles Municipal Code. The report shall be made on forms supplied by the Department and shall be filed in the records of the Department.

91.108.12.3.1. (Deleted by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.108.12.3.2. (Deleted by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.108.12.3.3. (Deleted by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.108.12.3.4. (Deleted by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.108.12.4. The certified licensed contractor shall notify the Department of the certified licensed contractor's commencement of work for which the certified licensed contractor has been engaged. This notification shall be made no later than the last business day preceding the commencement of work.

The certified licensed contractor shall inspect all materials to be used or concealed within such work.

While engaged in the work, the certified licensed contractor shall not undertake or engage in any other task or occupation which will interfere with the proper performance of the certified licensed contractor's duties of inspection. The certified licensed contractor shall report all violations of this Code which have occurred relating to the construction work to the Superintendent of Building, and such other information relating to the installation work as requested by the Superintendent.

The Department may refuse to issue a Certificate of Compliance if it finds that the contractor has failed to comply with any of these requirements.

91.108.13. (Added by Ord. No. 171,455, Eff. 1/30/97.) Whenever the Department determines by inspection that construction or grading activities create excessive dust emissions where the dust remains visible in the atmosphere beyond the property line of the emission source or constitutes a nuisance or other hazard, the Department may order that such activity cease or be controlled through watering practices using reclaimed water if available, or by other means, to the satisfaction of the Department. The Department may order the owner of the property to employ a person, subject to Department approval, to monitor the watering practices.

SEC. 91.109. CERTIFICATE OF OCCUPANCY.

91.109.1. Certificate Required. In order to safeguard life and limb, health, property and public welfare, every building or structure and every trailer park shall conform to the construction requirements for the subgroup occupancy to be housed therein, or for the use to which the building or structure or trailer park is to be put, as set forth in this article.

No building or structure or portion thereof and no trailer park or portion thereof shall be used or occupied until a Certificate of Occupancy has been issued thereof.

EXCEPTIONS:

1. Unless it is specifically required by other provisions of this article, no existing building or portion thereof shall require a Certificate of Occupancy, provided:
 - A. The occupancy housed therein is the same for which the original building permit was issued; and
 - B. The use of a building or portion thereof housing a Group A or E Occupancy and constructed prior to 1934 has not been discontinued for a period of more than six months.
2. No structure, the architecture of which inhibits occupancy, shall require a Certificate of Occupancy.

91.109.2. Change of Occupancy. (Amended by Ord. No. 185,587, Eff. 7/16/18.) See Division 82, Article 1, Chapter IX of the LAMC.

91.109.3. Issuance of Certificates. (Amended by Ord. No. 185,587, Eff. 7/16/18.) When required by LAMC Subsection 91.109.1, after the receipt and approval of the final inspection report from each of the divisions of the Department, and after the City Engineer has reported that all required public improvements have been completed, the Superintendent of Building shall issue a Certificate of Occupancy, without charge, to the owner of the building. Duplicates of the certificate may be secured upon the payment of the duplication fee required by ordinance.

When a Certificate of Occupancy is issued, it shall supersede every certificate previously issued for that portion of the building described thereon.

91.109.4. Contents of Certificate. Each certificate shall contain the following:

1. The building permit numbers.
2. The address of the building.
3. The name and address of the owner.
4. A description of that portion of the building for which the certificate is issued.
5. For Groups A and E Occupancies, the maximum occupant load allowed.
6. A statement that the described portion of the building complies with the construction requirements of the Los Angeles Municipal Code for the group of occupancies in which the proposed occupancy is classified.
7. A statement that establishes relevant requirements of Chapter I of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
8. The signature of the Superintendent of Building or an authorize representative of the Superintendent.

91.109.5. Temporary Certificates. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Notwithstanding the provisions of LAMC Subsection 91.109.4, if the Superintendent of Building finds that no substantial hazard will result from the occupancy of any building, or portion thereof, before the same is completed, and satisfactory evidence is submitted that the work could not have been completed prior to the time such occupancy is desired because of its magnitude or because of unusual construction difficulties, and the City Engineer has reported that all required public improvements have been completed, the Superintendent of Building may issue a temporary Certificate of Occupancy for any building or portion thereof. The Superintendent of Building may issue a temporary Certificate of Occupancy notwithstanding the fact that all required public improvements have not been completed, if the Superintendent of Building finds that the failure to complete the public improvements was due to circumstances over which the person applying for the Certificate of Occupancy had no control.

In addition, the Superintendent of Building may issue a temporary Certificate of Occupancy for an existing building, or portion thereof, provided no substantial hazard will result and satisfactory evidence is submitted justifying the need for such temporary occupancy. The Department shall collect an issuance fee for each temporary Certificate of Occupancy. The amount of the fee shall be \$453.00 plus an additional fee as shown in Table 1-B of this division.

A temporary Certificate of Occupancy shall be valid for a period not to exceed six months. The Department may issue additional temporary Certificates of Occupancy. After the expiration of a temporary Certificate of Occupancy, the Department shall require a Certificate of Occupancy in accordance with other provisions of this section. Duplicates of the certificate or temporary certificate may be secured upon the payment of the duplication fee required by ordinance.

91.109.6. Revocation. The Superintendent of Building shall have the authority, in writing, to suspend or revoke a Certificate of Occupancy or Temporary Certificate of Occupancy issued under the provisions of this Code whenever the certificate is issued in error, or on the basis of incorrect information supplied, or when it is determined that the building or structure or portion of the building or structure is in violation of any ordinance or regulation or any of the provisions of this Code. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

91.109.7. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Notwithstanding the provisions of LAMC Subsection 91.109.5, whenever public improvements are required in connection with the replacement or restoration of a building destroyed or damaged during the local emergency declared by the Mayor in April 1972, the completion of those public improvements may be deferred until June 1, 1995, and a temporary Certificate of Occupancy may issue for the new or restored building, or a portion thereof, prior to the completion of the public improvements. The temporary Certificate of Occupancy shall issue only if the Superintendent of Building finds that no substantial hazard will result from the occupancy of the building or portion thereof prior to the completion of the public improvements. LAMC Subsection 91.109.7 does not affect any requirement of a bond or other security to warrant the proper completion of the required public improvements.

91.109.8. Fire Department Notification. For each Group A and E Occupancy, a copy of the certificate shall be forwarded to the Los Angeles Fire Department.

SEC. 91.110. RESPONSIBILITY OF PERMITTEE.

Building permits shall be presumed to incorporate the provision that the applicant, the applicant's agent, employees or contractors shall carry out the proposed work in accordance with the approved plans and with all requirements of this Code and any other laws or regulations applicable thereto, whether specified or not.

No approval shall relieve or exonerate any person from the responsibility of complying with the provisions and intent of this Code.

SEC. 91.111. CODE REVISION.

91.111.1. The Superintendent of Building shall determine what changes in the Code are necessary to more adequately protect the public health, safety and welfare, based on studies of the following:

- 1. Schedules of requests for deviation from the provisions of the Code and for approval of materials and methods of construction;
- 2. Schedules of violations of the provisions of this Code;
- 3. Schedules of convictions and nonconvictions, and the reasons for nonconvictions, by the city attorney’s office;
- 4. Changes and improvements in materials, methods of construction and design;
- 5. Investigations of fire and structural damage to buildings.

91.111.2. Upon request, the board shall consult with and provide advice to the Superintendent of Building on any matter relating to proposed changes of this Code.

SEC. 91.113. PERMIT FEES.

(Added by Ord. No. 182,850, Eff. 1/3/14.)

TABLE 1-A
PERMIT FEES ^{1,2,3,4}
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

TOTAL VALUATION		FEE
TOTAL VALUATION		FEE
From	To	
\$0.00	\$100 inclusive	None
\$100.01	\$2,000 inclusive	\$65.00
\$2,000.01	\$20,000 inclusive	\$40.00 plus \$1.25 per \$100 or fraction thereof of total valuation.
\$20,000.01	\$50,000 inclusive	\$170.00 plus 6.00 per \$1,000 or fraction thereof of total valuation
\$50,000.01	\$100,000 inclusive	\$195.00 plus \$5.50 per \$1,000 or fraction thereof of total valuation
\$100,000.01	\$500,000 inclusive	\$395.00 plus \$3.50 per \$1,000 or fraction thereof of total valuation
\$500,000.01	\$1,000,000 inclusive	\$520.00 plus \$3.25 per \$1,000 or fraction thereof of total valuation
Over 1,000,000		\$920.00 plus \$2.85 per \$1,000 or fraction thereof of total valuation

- ¹ The building permit fee specified in this table shall be increased by a surcharge pursuant to California Public Resources Code Section 2705 (State Strong Motion Instrumentation Program). This surcharge shall not be included in the building permit fee for the purpose of determining the plan check fee.
- ² The permit fee specified in the table above shall be increased by 10% for all construction or work required to comply with the rules and regulations adopted by the California General Resources Conservation and Development Commission. This increase in fee shall be included in the building permit fee for the purpose of determining the plan checking fee.
- ³ The permit fee specified in this table shall be increased by 12.5% for all construction or work required to comply with the state's disabled access and adaptability requirements at Part 2, Title 24, of the California Code of Regulations. The increase in fee shall be included in the building permit fee for the purpose of determining the plan check fee.
- ⁴ The minimum permit fee for projects that require more than one inspection shall be double the minimum inspection fee specified in LAMC Section 98.0412(a).

TABLE 1-A.1
COMBINED PERMIT FEES
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(R-3 Occ.)	Building	Elec.	Plumb.	Mech.	Combined Fees
New Construction	See Table 1-A	26% of bldg permit fee	26% of bldg permit fee	13% of bldg permit fee	165% of bldg permit fee determined from Table 1-A
Alteration	See Table 1-A	26% of bldg permit fee	26% of bldg permit fee	13% of bldg permit fee	165% of bldg permit fee determined from Table 1-A
Swimming Pool	See Table 1-A				175% of bldg permit fee determined from Table 1-A
Solar Heating and Cooling System	See Table 1-A				

TABLE 1-B
TEMPORARY CERTIFICATE OF OCCUPANCY ADDITIONAL FEES
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

ITEMS	ADDITIONAL FEE
ITEMS	ADDITIONAL FEE
A Occupancy	\$98.00 each assembly room or area
E Occupancy	\$98.00 each classroom
I Occupancy	\$98.00 each floor or portion thereof
H Occupancy	\$98.00 each floor or portion thereof
B, F, M or S Occupancy	\$98.00 each floor or portion thereof
R1 Occupancy	\$189.00 each floor or portion thereof
R3 Occupancy	\$302.00

TABLE 1-C

REPORT FEES^{a,b,c,d,e}
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

REPORT	FEES
Soils engineering/foundation or geology report	
For the first lot plus \$5.00 for each additional lot or for the first acre plus \$25.00 for each additional acre or fraction thereof, whichever is the greater fee.	\$363.00
Supplemental fee	
For each supplemental foundation investigation, soils engineering, or geology report.	\$181.00

- ^a Where the soil engineering/foundation and geology reports are submitted together or combined into one report, the fee shall be doubled.
- ^b Report fees for minor work may be reduced to one half of the calculated fee, as determined by the Department.
- ^c Fees are based on single projects and contiguous properties.
- ^d Additional fees for division of land review shall be collected as required by LAMC Subdivision 91.107.8.2.
- ^e The fees in this table shall be increased by 50%, when the reports are reviewed during off-hours at the request of the applicant and acceptance by the Department.

TABLE 1-D

GRADING PERMIT FEES
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

GRADING	FEE
100 cubic yards or less	\$160.00
101 - 1,000 cubic yards	\$160.00 for the first 100 cubic yards, plus \$135.00 for each additional 100 cubic yards or fraction thereof.
1,001 - 10,000 cubic yards	\$1,375.00 for the first 1,000 cubic yards, plus \$150.00 for each additional 1,000 cubic yards or fraction thereof.
10,001 - 100,000 cubic yards	\$2,725.00 for the first 10,000 cubic yards, plus \$500.00 for each additional 10,000 cubic yards or fraction thereof.
100,001 cubic yards or more	\$7,225.00 for the first 100,000 cubic yards, plus \$250.00 for each additional 10,000 cubic yards or fraction thereof.

DIVISION 2

DEFINITIONS AND ABBREVIATIONS

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.201 General.
91.202 Definitions.

SEC. 91.201. GENERAL.
(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Chapter 2 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.202. DEFINITIONS.
(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 202 of the CBC is adopted by reference, except that the following CBC definitions are not adopted:

APPROVED AGENCY

APPROVED FABRICATOR

BUILDING LINE

BUILDING OFFICIAL

DEPARTMENT

The following definitions are also adopted:

APPROVED AGENCY or APPROVED TESTING AGENCY. An established and recognized agency regularly engaged in conducting tests or furnishing inspection services which has been approved by the Superintendent of Building.

APPROVED FABRICATOR. An established and qualified person, firm or corporation approved by the Superintendent of Building pursuant to Division 17 of this Code and LAMC Section 96.200.

BOARD is the Board of Building and Safety Commissioners of the City of Los Angeles.

BUILDING CODE (CODE) is the Los Angeles City Building Code, Article 1 of Chapter IX of the Los Angeles Municipal Code.

BUILDING LINE is any private property line coterminous with a public way; or a building line established by City ordinance.

BUILDING OFFICIAL is the Superintendent of Building for the City of Los Angeles Department of Building and Safety.

CALIFORNIA BUILDING CODE (CBC). Is Part 2, Title 24 of the California Code of Regulations as adopted by the California Building Standards Commission. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

CHIEF OF THE FIRE DEPARTMENT is the Fire Chief of the Los Angeles Fire Department or a duly authorized representative.

CITY is the City of Los Angeles, California.

CONCRETE BUILDING is a building having concrete floors and/or roofs, either with or without beams, supported by concrete walls and/or concrete columns, with or without masonry infills, and any combination thereof. (Added by Ord. No. 184,169, Eff. 5/11/16.)

DEPARTMENT is the Department of Building and Safety.

ELECTRICAL CODE is the Los Angeles City Electrical Code, Article 3 of Chapter IX of the Los Angeles Municipal Code.

ELEVATOR CODE is the Los Angeles City Elevator Code, Article 2 of Chapter IX of the Los Angeles Municipal Code.

FIRE CODE is the Los Angeles City Fire Code, Article 7 of Chapter V of the Los Angeles Municipal Code.

FIRE DISTRICT is any portion of the City of Los Angeles as described in Division 72 of this Code.

FOUNDATION-ONLY PERMIT is a building permit issued for that portion of a building, which constitutes the footings for the building and which, subject to the approval of the Department, may include those portions of the building below the grade level.

GRADING shall mean soil excavation or fill or any combination of soil excavation or fill and shall include the conditions resulting from any soil excavation or fill.

GRAFFITI shall mean any form of unauthorized inscription, word, figure or design which is marked, etched, scratched, drawn, sprayed, painted or otherwise affixed to or on any surface of public or private property, including, but not limited to buildings, walls, signs, structures or places, or other surfaces, regardless of the nature of the material of that structural component. (Amended by Ord. No. 180,708, Eff. 7/6/09.)

INDUSTRIAL CATERING TRUCK. An industrial catering truck is a motor vehicle used for the purpose of dispensing and selling liquids from sanitary dispensers and/or ready-to-eat food and beverages that have been prepared and sealed or packaged on premises so long as the owner and operator have a valid health permit authorizing the preparation of food. The above items may be prepared on any industrial catering truck so long as the owner and operator have a valid health permit for that preparation.

MECHANICAL CODE is the Los Angeles City Mechanical Code, Article 5 of Chapter IX of the Los Angeles Municipal Code.

NON-DUCTILE CONCRETE BUILDING. A concrete building that was built pursuant to a permit application for a new building submitted before January 13, 1976, or, if no permit can be located, is determined by the Department to have been built under building code standards enacted before January 13, 1976.

EXCEPTION: "Non-Ductile Concrete Building" shall not include detached single-family dwellings or duplexes.

PLUMBING CODE is the Los Angeles City Plumbing Code, Article 4, Chapter IX of the Los Angeles Municipal Code.

REGISTERED DESIGN PROFESSIONAL. A licensed architect or engineer registered with the appropriate California State licensing board. (Added by Ord. No. 185,587, Eff. 7/16/18.)

SUPERINTENDENT OF BUILDING is the General Manager of the Department of Building and Safety of the City of Los Angeles or a duly authorized representative.

TEMPORARY. Buildings and facilities intended for use at one location for not more than 180 days and seats intended for use at one location for not more than 90 days.

UNREINFORCED MASONRY BEARING WALL BUILDING is a building with at least one unreinforced masonry bearing wall as the term is defined in the California Existing Building Code, at Title 24 of the California Code of Regulations. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

VERY HIGH FIRE HAZARD SEVERITY ZONE (VHFHSZ) is a Fire District in the City of Los Angeles established by the Board of Forestry and the Office of the State Fire Marshal and described in Division 72, Article 1 of Chapter IX of the Los Angeles Municipal Code.

DIVISION 3

USE OR OCCUPANCY

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section
91.300 Basic Provisions.

SEC. 91.300. BASIC PROVISIONS.

Chapter 3 of the CBC is hereby adopted by reference.

DIVISION 4

SPECIAL USE AND OCCUPANCY

Section
91.400 Basic Provisions.

SEC. 91.400. BASIC PROVISIONS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Chapter 4 of the California Building Code is hereby adopted by reference.

DIVISION 5

GENERAL BUILDING HEIGHTS AND AREAS

(Title and Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.500 Basic Provisions.

SEC. 91.500. BASIC PROVISIONS.

Chapter 5 of the CBC is hereby adopted by reference.

DIVISION 6

TYPES OF CONSTRUCTION

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section
91.600 Basic Provisions.

SEC. 91.600. BASIC PROVISIONS.

Chapter 6 of the CBC is hereby adopted by reference.

DIVISION 7

FIRE-RESISTANT MATERIALS AND CONSTRUCTION

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section
91.700 Basic Provisions.
91.703 Fire-Resistance Ratings and Fire Tests.

SEC. 91.700. BASIC PROVISIONS.

Chapter 7 of the CBC is hereby adopted by reference with the following exceptions, modifications and additions: (Amended by Ord. No. 180,619, Eff. 5/12/09.)

SEC. 91.703. FIRE-RESISTANCE RATINGS AND FIRE TESTS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 703 of the CBC is adopted by reference, except that Section 703.2.3 of the CBC is not adopted and, in lieu, LAMC Subsection 91.703.2.3 is added.

91.703.2.3. Approved Alternate Method. The fire resistance of building elements, components or assemblies not complying with CBC Section 703.2.1 or 703.2.2 shall be permitted to be established by an alternative protection method in accordance with LAMC Section 91.104.2.6.

DIVISION 8

INTERIOR FINISHES

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section
91.800 Basic Provisions.

SEC. 91.800. BASIC PROVISIONS.

Chapter 8 of the CBC is hereby adopted by reference.

DIVISION 9

FIRE-PROTECTION SYSTEMS

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.900 Basic Provisions.
91.909 Smoke Control Systems.

SEC. 91.900. BASIC PROVISIONS.

Chapter 9 of the CBC is adopted by reference with the following exceptions, modification and additions:

SEC. 91.909. SMOKE CONTROL SYSTEMS.
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 909 of the CBC is adopted by reference, except Section 909.3 of the CBC is not adopted and, in lieu, LAMC Subsection 91.909.3 is added.

91.909.3. Special Inspection and Test Requirements. In addition to the ordinary inspection and test requirements, which buildings, structures and parts of buildings and structures are required to undergo, smoke control systems subject to the provisions of LAMC Section 91.909 shall undergo special inspections and tests sufficient to verify the proper commissioning of the smoke control design in its final installed condition. The design submission accompanying the construction documents shall clearly detail procedures and methods to be used and the items subject to the inspections and tests. The commissioning shall be in accordance with generally accepted practice and, where possible, based on published standards for the particular testing involved. The special inspections and tests required by this section shall be in compliance with LAMC Section 91.1704.

A copy of the final report of the results of the special inspections and tests shall be filed with the Superintendent of Building and the Fire Department and an identical copy shall be maintained in an approved location at the building.

91.909.3.1. System Testing. Prior to the issuance of a Certificate of Occupancy, all of the smoke-control systems shall be tested as required by the Department of Building and Safety and the Fire Department and shall show compliance with the minimum standards of both Departments. The tests shall be conducted in the presence of an authorized representative from both Departments. A report of the results shall be submitted to both Departments.

91.909.3.2. Periodic Retesting. After occupancy of the building, all operating parts of the smoke-control systems shall be retested every six months in accordance with the retest requirements established by the Department of Building and Safety and the Fire Department. The retest shall be conducted by an approved inspection agency or by the owner or the owner's representative when so approved by both Departments. Also, a report of the test results shall be submitted to both Departments.

DIVISION 10

MEANS OF EGRESS

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.1000 Basic Provisions.

SEC. 91.1000. BASIC PROVISIONS.

Chapter 10 of the CBC is adopted by reference.

DIVISION 11

ACCESSIBILITY

(Division Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

Section
91.1100 Basic Provisions.

SEC. 91.1100. BASIC PROVISIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Chapter 11-A and 11-B of the CBC are hereby adopted by reference.

DIVISION 12

INTERIOR ENVIRONMENT

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.1200 Basic Provisions.
91.1206 Sound Transmission.

SEC. 91.1200. BASIC PROVISIONS.

Chapter 12 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.1206. SOUND TRANSMISSION.

(Renumbered and Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 1206 of the CBC is adopted by reference, except CBC Section 1206.1, is not adopted and, in lieu, LAMC Subsections 91.1206.1, 91.1206.1.2, 91.1206.6, 91.1206.7, 91.1206.8, 91.1206.9, 91.1206.9.1, 91.1206.10, 91.1206.11, 91.1206.12, 91.1206.13, 91.1206.14, 91.1206.14.1, 91.1206.14.2, 91.1206.14.3, 91.1206.15.4, 91.1206.16 and 91.1206.17 are added.

91.1206.1. Purpose and Scope. The purpose of this section is to establish uniform minimum noise insulation performance standards to protect persons within new hotels, motels, dormitories, residential care facilities, apartment houses, dwellings, private schools, and places of worship from the effects of excessive noise, including but not limited to, hearing loss or impairment and interference with speech and sleep.

91.1206.1.2. Definitions. The following special definitions shall apply to this section:

SOUND TRANSMISSION CLASS (STC) is a single-number rating used to compare walls, floor- ceiling assemblies and doors for their sound-insulating properties with respect to speech and small household appliance noise. The STC is derived from laboratory measurements of sound transmission loss across a series of 16 test bands. Laboratory STC ratings should be used to the greatest extent possible in determining that the design complies with this section.

FIELD SOUND TRANSMISSION CLASS (FSTC) is a single-number rating similar to STC, except that the transmission loss values used to derive the FSTC are measured in the field. All sound transmitted from the source room to the receiving room is assumed to be through the separating wall or floor-ceiling assembly. This section does not require determination of the FSTC, and field-measured values of noise reduction should not be reported as transmission loss.

IMPACT INSULATION CLASS (IIC) is a single-number rating used to compare the effectiveness of floor-ceiling assemblies in providing reduction of impact-generated sounds such as footsteps. The IIC is derived from laboratory measurements of impact sound pressure level across a series of 16 test bands using a standardized tapping machine. Laboratory IIC ratings should be used to the greatest extent possible in determining that the design complies with this section.

FIELD IMPACT INSULATION CLASS (FIIC) is a single-number rating similar to the IIC, except that the impact sound pressure levels are measured in the field.

NOISE ISOLATION CLASS (NIC) is a single- number rating derived from measured values of noise reduction between two enclosed spaces that are connected by one or more paths. The NIC is not adjusted or normalized to a standard reverberation time.

NORMALIZED NOISE ISOLATION CLASS (NNIC) is a single-number rating similar to the NIC, except that the measured noise reduction values are normalized to a reverberation time of one-half second.

NORMALIZED A-WEIGHTED SOUND LEVEL DIFFERENCE (Dn) means for a specified source room sound spectrum, Dn is the difference, in decibels, between the average sound levels produced in two rooms after adjustment to the expected acoustical conditions when the receiving room under test is normally furnished.

DAY-NIGHT AVERAGE SOUND LEVEL (Ldn) is the A-weighted equivalent continuous sound exposure level for a 24-hour period with a 10 db adjustment added to sound levels occurring during nighttime hours (10 p.m. to 7 a.m.).

COMMUNITY NOISE EQUIVALENT LEVEL (CNEL) is a metric similar to the Ldn, except that a 5 db adjustment is added to the equivalent continuous sound

exposure level for evening hours (7 p.m. to 10 p.m.) in addition to the 10 db nighttime adjustment used in the Ldn.

91.1206.6. Relevant Standards. The current edition of the following standards is generally applicable for determining compliance with this section and copies may be obtained from the ASTM International: ASTM C 634, Standard Terminology Relating to Building and Environmental Acoustics; ASTM E 90, Standard Test Method for Laboratory Measurement of Airborne Sound Transmission Loss of Building Partitions and Elements; ASTM E 336, Standard Test Method for Measurement of Airborne Sound Attenuation Between Rooms in Buildings; ASTM E 413, Classification for Rating Sound Insulation; ASTM E 492, Standard Test Method for Laboratory Measurement of Impact Sound Transmission Through Floor-Ceiling Assemblies Using the Tapping Machine; ASTM E 497, Standard Recommended Practice for Installation of Fixed Partitions of Light Frame Type for the Purpose of Conserving Their Sound Insulation Efficiency; ASTM E 597, Recommended Practice for Determining a Single-Number Rating of Airborne Sound Insulation in Multi-unit Building Specifications; ASTM E 966, Standard Guide for Field Measurements of Airborne Sound Insulation of Building Facades and Facade Elements; ASTM E 989, Standard Classification for Determination of Impact Insulation Class (IIC); ASTM E 1007, Standard Test Method for Field Measurement of Tapping Machine Impact Sound Transmission Through Floor-Ceiling Assemblies and Associated Support Structures; and ASTM E 1014, Standard Guide for Measurement of Outdoor A-Weighted Sound Levels. **(Amended by Ord. No. 188,739, Eff. 9/23/25.)**

91.1206.7. Complaints. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Where a complaint as to noncompliance with this division requires a field test, the complainant shall post a bond or adequate funds in escrow for the cost of the field test. Such costs shall be chargeable to the complainant if the field tests show compliance with this division. If the tests show noncompliance, testing costs shall be borne to the owner or builder.

91.1206.8. Local Modification. The governing body of any city or county or city and county may, by ordinance, adopt changes or modifications to the requirements of this section as set forth in Section 17922.7 of the Health and Safety Code.

91.1206.9. Interdwelling Sound Transmission Control.

91.1206.9.1. Wall and Floor-Ceiling Assemblies. Wall and floor-ceiling assemblies separating dwelling units or guest rooms from each other and from public or service areas such as interior corridors, garages and mechanical spaces shall provide airborne sound insulation for walls, and both airborne and impact sound insulation for floor-ceiling assemblies.

EXCEPTION: Impact sound insulation is not required for floor-ceiling assemblies over nonhabitable rooms or spaces not designed to be occupied, such as garages, mechanical rooms or storage areas.

91.1206.10. Airborne Sound Insulation. All such acoustically rated separating wall and floor-ceiling assemblies shall provide airborne sound insulation equal to that required to meet a sound transmission class (STC) rating of 50 based on laboratory tests as defined in ASTM E 90 and E 413. Field-tested assemblies shall meet a noise isolation class (NIC) rating of 45 for occupied units and a normalized noise isolation class (NNIC) rating of 45 for unoccupied units as defined in ASTM E 336 and E 413. ASTM E 597 may be used as simplified procedure for field tests of the airborne sound isolation between rooms in unoccupied buildings. In such tests, the minimum value of Dn is 45 db for compliance. Entrance doors from interior corridors together with their perimeter seals shall have STC ratings not less than 26. Such tested doors shall operate normally with commercially available seals. Solid-core wood-slab doors 1 3/8 inches (35 mm) thick minimum or 18 gauge insulated steel-slab doors with compression seals all around, including the threshold, may be considered adequate without other substantiating information. Field tests of corridor walls should not include segments with doors. If such tests are impractical, however, the NIC or NNIC rating for the composite wall-door assembly shall not be less than 30. Penetrations or openings in construction assemblies for piping, electrical devices, recessed cabinets, bathtubs, soffits or heating, ventilating or exhaust ducts shall be sealed, lined, insulated or otherwise treated to maintain the required ratings.

91.1206.11. Impact Sound Insulation. All acoustically rated separating floor-ceiling assemblies shall provide impact sound insulation equal to that required to meet a IIC rating of 50 based on laboratory tests as defined in ASTM E 492 and E 989. Field-tested assemblies shall meet a field impact insulation class (FIIC) rating of 45 for both occupied and unoccupied units as defined in ASTM E 1007 and E 989, with the exception that the measured impact sound pressure levels shall not be normalized to a standard amount of absorption in the receiving room. Floor coverings may be included in the assembly to obtain the required ratings. These coverings must be retained as a permanent part of the assembly and may be replaced only by other floor coverings that provide the required impact sound insulation.

91.1206.12. Tested Assemblies. Laboratory-tested wall or floor-ceiling designs having STC or IIC ratings of 50 or more may be used by the Building Official to determine compliance with this section during plan review phase. Field tests shall be required by the Building Official when evidence of sound leaks or flanking paths is noted, or when the separating assembly is not built according to the approved design. Generic sound transmission control systems as listed in the Catalog of STC and IIC Ratings for Wall and Floor-Ceiling Assemblies, as published by the Office of Noise Control, California Department of Health Services, or the Fire Resistance Design Manual, as published by the Gypsum Association, may be used to evaluate construction assemblies for their sound transmission properties. Other tests from recognized laboratories may also be used. When ratings for essentially similar assemblies differ, and when ratings are below STC or IIC 50, field testing may be used to demonstrate that the building complies with this section. For field testing, rooms should ideally be large and reverberant for reliable measurements to be made in all test bands. This is often not possible for bathrooms, kitchens, hallways or rooms with large amounts of sound-absorptive materials. Field test results should, however, report the measured values in all bands, noting those which do not meet relevant ASTM criteria for diffusion. It should be noted that STC ratings do not adequately characterize the sound insulation of construction assemblies when the intruding noise is predominantly low-pitched, as is often produced by amplified music or by large pieces of mechanical equipment. It should also be noted that the transmission of impact sound from a standardized tapping machine may vary considerably for a given design due to differences in specimen size, flanking transmission through associated structure and the acoustical response of the room below. Laboratory IIC values should therefore be used with caution when estimating the performance of hard-surfaced floors in the field. Additionally, IIC ratings may not always be adequate to characterize the subjectively annoying creak or boom generated by footfalls on a lumber floor.

91.1206.13. Certification. Field testing, when required, shall be done under the supervision of a person experienced in the field of acoustical testing and engineering, who shall forward test results to the Building Official showing that the sound insulation requirements stated above have been met. Documentation of field test results should generally follow the requirements outlined in relevant ASTM standards.

91.1206.14. Exterior Sound Transmission Control.

91.1206.14.1. Application Consistent with Local Land-Use Standards. (Amended by Ord. No. 185,587, Eff. 7/16/18.) All structures identified in LAMC Subsection 91.1206.1 located in noise critical areas, such as proximity to highways, country roads, city streets, railroads, rapid transit lines, airports or industrial areas shall be designed to prevent the intrusion of exterior noises beyond prescribed levels. Proper design shall include, but shall not be limited to, orientation of the structure, setbacks, shielding and sound insulation of the building itself.

91.1206.14.2. Allowable Interior Noise Levels. Interior noise levels attributable to exterior sources shall not exceed 45 db in any habitable room. The noise metric shall be either the day-night average sound level (Ldn) or the community noise equivalent level (CNEL), consistent with the noise element of the local general plan.

Note: Ldn is the preferred metric for implementing these standards. Worst-case noise levels, either existing or future, shall be used as the basis for determining compliance with this section. Future noise levels shall be predicted for a period of at least ten (10) years from the time of building permit application.

91.1206.14.3. Airport Noise Sources. Residential structures and all other structures identified in LAMC Subsection 91.1206.1 located where the annual L_{dn} or CNEL (as defined in California Code of Regulations, Title 21, Division 2.5, Chapter 6, Section 5001) exceeds 60 db, shall require an acoustical analysis showing that the proposed design will achieve the prescribed allowable interior level.

EXCEPTION: New single-family detached dwellings and all non-residential noise sensitive structures located outside the noise impact boundary of 65 db CNEL are exempt from LAMC Section 91.1206.

Alterations or additions to all noise sensitive structures, within the 65 db and greater CNEL shall comply with LAMC Section 91.1206. If the addition or alteration cost exceeds 75% of the replacement cost of the existing structure, then the entire structure must comply with LAMC Section 91.1206.

For public-use airports or heliports, the L_{dn} or CNEL shall be determined from the Aircraft Noise Impact Area Map prepared by the Airport Authority. For military bases, the L_{dn} shall be determined from the facility Air Installation Compatible Use Zone (AICUZ) plan. For all other airports or heliports, or public-use airports or heliports for which a land-use plan has not been developed, the L_{dn} or CNEL shall be determined from the noise element of the general plan of the local jurisdiction.

When aircraft noise is not the only significant source, noise levels from all sources shall be added to determine the composite site noise level.

91.1206.15.4. Other Noise Sources. (Amended by Ord. No. 185,587, Eff. 7/16/18.) All structures identified in LAMC Subsection 91.1206.1 located where the L_{dn} or CNEL exceeds 60 db shall require an acoustical analysis showing that the proposed design will limit exterior noise to the prescribed allowable interior level. The noise element of the local general plan shall be used to the greatest extent possible to identify sites with noise levels potentially greater than 60 db.

91.1206.16. Compliance. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Evidence of compliance shall be submitted with the application for a building permit for all structures identified in LAMC Subsection 91.1206.1. Evidence of compliance shall consist of the submittal of an acoustical analysis report prepared under the supervision of a person experienced in the field of acoustical engineering or the use of prescriptive standards as determined by the Superintendent of Building for residential structures. The report shall show topographical relationships of noise sources and dwelling sites, identification of noise sources and their characteristics, predicted noise spectra and levels at the exterior of the proposed structure considering present and future land usage, the basis for the prediction (measured or obtained from published data), the noise attenuation measures to be applied, and an analysis of the noise insulation effectiveness of the proposed construction showing that the prescribed interior level requirements are met.

If interior allowable noise levels are met by requiring that windows be unopenable or closed, the design for the structure must also specify a ventilation or air-conditioning system to provide a habitable interior environment. The ventilation system must not compromise the interior room noise reduction.

91.1206.17. Field Testing. When inspection indicates that the construction is not in accordance with the approved design, or that the noise reduction is compromised due to sound leaks or flanking paths, field testing may be required. A test report showing compliance or noncompliance with prescribed interior allowable levels shall be submitted to the building official. Measurements of outdoor sound levels shall generally follow the guidelines in ASTM E 1014. Field measurements of the A-weighted airborne sound insulation of buildings from exterior sources shall generally follow the guidelines in ASTM E 966. For the purpose of this standard, sound level differences measured in unoccupied units shall be normalized to a receiving room reverberation time of one-half second. Sound level differences measured in occupied units shall not be normalized to a standard reverberation time.

DIVISION 13

ENERGY CONSERVATION

(Division Amended by Ord. No. 181,758, Eff. 8/8/11.)

Section
91.1300 General.
91.1301 Solar Energy Collectors.

SEC. 91.1300. GENERAL.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

In order to comply with the purpose of this division, buildings shall be designed to comply with the requirements of Part 6, Title 24 of the California Code of Regulations, referred to as the California Energy Code.

SEC. 91.1301. SOLAR ENERGY COLLECTORS.

Approved collectors which function as building components shall comply with the applicable provisions of the Code.

Approved collectors located above or upon a roof and not functioning as building components shall not reduce the required fire-resistant or fire-retardant classification of the roof-covering materials.

DIVISION 14

EXTERIOR WALL COVERINGS

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.1400 Basic Provisions.
91.1402 Performance Requirements.

SEC. 91.1400. BASIC PROVISIONS.

Chapter 14 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.1402. PERFORMANCE REQUIREMENTS.

(Renumbered and Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 1402 of the CBC is adopted by reference, except Section 1402.3 of the CBC is not adopted and in lieu, LAMC Subsection 91.1402.3 is added.

91.1402.3. Structural. Exterior walls, and the associated openings, shall be designed and constructed to resist safely the superimposed loads required by Division 16, Article 1, Chapter IX of the LAMC.

In no case shall veneer be considered as part of the wall in computing strength or deflection, nor shall it be considered a part of the required thickness of the wall. Deflection of lateral support of veneer, including wood studs, shall be no greater than h/500.

DIVISION 15

ROOFS AND ROOF STRUCTURES

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section

91.1500 Basic Provisions.

91.1505 Fire Classification.

91.1507 Requirements for Roof Coverings.

91.1511 Reroofing.

SEC. 91.1500. BASIC PROVISIONS.

Chapter 15 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.1505. FIRE CLASSIFICATION.

Section 1505 of the CBC is adopted by reference, except Sections 1505.1, 1505.6 and 1505.7 of the CBC are not adopted and in lieu, Section 91.1505.1 is added.

91.1505.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Roof assemblies shall be divided into the classes defined below. Class A, B and C roof assemblies and roof coverings required to be listed by this section shall be tested in accordance with ASTM E 108 or UL 790. The minimum roof coverings installed on buildings shall comply with CBC Table 1505.1 based on the type of construction of the building.

EXCEPTION: Skylights and sloped glazing shall comply with Division 12, Article 1, Chapter IX of the LAMC.

No wood shake or wood shingle roof covering is permitted anywhere in the City.

SEC. 91.1507. REQUIREMENTS FOR ROOF COVERINGS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1507 of the CBC is adopted by reference, except Table 1507.3.7 of the CBC is not adopted and, in lieu, Los Angeles Municipal Code Table 1507.3.7 is added.

TABLE 1507.3.7

CLAY AND CONCRETE TILE ATTACHMENT ^{a, b, c}
(Amended by Ord. No. 181,758, Eff. 8/8/11.)

GENERAL – CLAY OR CONCRETE ROOF TILE			
Maximum basic wind speed (mph)	Mean roof height (feet)	Roof slope up to <3:12	Roof slope 3:12 and over
85	0-60	Two fasteners per tile.	Two fasteners per tile.
100	0-40		
100	>40-60	The head of all tiles shall be nailed. The nose of all eave tiles shall be fastened with approved clips. All rake tiles shall be nailed with two nails. The nose of all ridge, hip and rake tiles shall be set in a bead of roofer’s mastic.	
110	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.	
120	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.	
130	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.	
All	>60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.	

INTERLOCKING CLAY OR CONCRETE ROOF TILE WITH PROJECTING ANCHOR LUGS ^{d, e}				
(Installations on solid sheathing with battens)				
Maximum basic wind speed (mph)	Mean roof height (feet)	Roof slope up to < 5:12	Roof slope 5:12 < 12:12	Roof slope 12:12 and over
85	0-60	Minimum slope is 4:12. One fastener per tile.	One fastener per tile. Tiles with installed weight less than 9 lbs./sq. ft. require a minimum of one fastener per tile.	One fastener required for every tile. Tiles with installed weight less than 9 lbs./sq. ft. require a minimum of one fastener per tile.
100	0 - 40			

100	>40-60	The head of all tiles shall be nailed. The nose of all eave tiles shall be fastened with approved clips. All rake tiles shall be nailed with two nails. The nose of all ridge, hip and rake tiles shall be set in a bead of roofer's mastic.
110	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.
120	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.
130	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.
All	>60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.

INTERLOCKING CLAY OR CONCRETE ROOF TILE WITH PROJECTING ANCHOR LUGS		
(Installations on solid sheathing without battens)		
Maximum basic wind speed (mph)	Mean roof height (feet)	Minimum roof slopes 4 units vertical in 12 units horizontal Maximum slope 7 units vertical in 12 units horizontal
85	0-60	One fastener per tile.
100	0-40	One fastener per tile.
100	>40-60	The head of all tiles shall be nailed. The nose of all eave tiles shall be fastened with approved clips. All rake tiles shall be nailed with two nails. The nose of all ridge, hip and rake tiles shall be set in a bead of roofer's mastic.
110	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.
120	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.
130	0-60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.
All	>60	The fastening system shall resist the wind forces in CBC Section 1609.5.3.

For SI: one inch = 25.4 mm, one foot = 304.8 mm, one mile per hour = 0.447 m/s, one pound per square foot = 4.882 kg/m².

- a Minimum fastener size. Hot dipped galvanized ring shank or other corrosion-resistant nails not less than No. 11 gage with 5/16-inch head. Fasteners shall be long enough to penetrate into the sheathing 0.75 inch or through the thickness of the sheathing, whichever is less. Attaching wire for clay and concrete tile shall not be smaller than 0.083 inch and shall be copper, brass or stainless steel.
- b Snow areas. A minimum of two fasteners per tile are required on battens and one fastener.
- c Roof slopes greater than 24:12. The nose of all tiles shall be securely fastened.
- d Horizontal battens. Battens shall be not less than one-inch by two-inch nominal. Provisions shall be made for drainage by a minimum of 1/8-inch riser at each nail or by four-foot-long battens with at least a 0.5-inch separation between battens. Horizontal battens are required for slopes over 7:12.
- e Perimeter fastening areas include three tile courses but not less than 36 inches from either side of hips or ridges and edges of eaves and gable rakes.

SEC. 91.1511. REROOFING.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1511 of the CBC is adopted by reference, except CBC Sections 1512.2.1 and 1512.3 are not adopted and, in lieu, Los Angeles Municipal Code Subsections 91.1512.2.1 and 91.1512.3 are added.

91.1512.2.1. Roof Recover. The installation of a new roof covering over an existing roof covering shall be permitted where any of the following conditions occur:

- Where the new roof covering is installed in accordance with the roof covering manufacturer's approved instructions.
- Complete and separate roofing systems, such as standing-seam metal roof panel systems, that are designed to transmit the roof loads directly to the building's structural system and that do not rely on existing roofs and roof coverings for support, shall not require the removal of existing roof coverings.
- The application of a new protective coating over an existing spray polyurethane foam roofing system shall be permitted without tear off of existing roof coverings.

91.1512.3. Roof Recovering. Roof covering may be applied over existing roofing in accordance to Los Angeles Municipal Code Table 1512.1.

TABLE 1512.1

ALLOWABLE REROOFS OVER EXISTING ROOFING

EXISTING ROOFING	NEW OVERLAY ROOFING					
	BUILT UP	ASPHALT SHINGLE	TILE ROOF	METAL ROOF	MODIFIED BITUMEN	SPRAY POLY-URETHANE FORM
EXISTING ROOFING	BUILT UP	ASPHALT SHINGLE	TILE ROOF	METAL ROOF	MODIFIED BITUMEN	SPRAY POLY-URETHANE FORM
Built Up	Yes	Yes (2:12)	Yes (2.5:12)	Yes	Yes	Yes
Asphalt Shingle	NP	Yes	Yes (2.5:12)	Yes	Yes	NP

Asphalt over Asphalt	NP	Yes	Yes	Yes	Yes	NP
Tile Roof	NP	NP	NP	NP	NP	NP
Metal Roof	NP	NP	NP	Yes	NP	NP
Modified Bitumen	Yes	Yes	Yes (2.5:12)	Yes	Yes	NP

NP = Not Permitted.
Note: (Minimum Roof Slope)

DIVISION 16

STRUCTURAL DESIGN

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section

91.1600 Basic Provisions.

91.1603 Construction Documents.

91.1609 Wind Loads.

91.1612 Flood Loads.

91.1613 Earthquake Loads.

SEC. 91.1600. BASIC PROVISIONS.

(Amended by Ord. No. 181,758, Eff. 8/8/11.)

Chapter 16 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.1603. CONSTRUCTION DOCUMENTS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1603 of the CBC is adopted by reference and Los Angeles Municipal Code Subsection 91.1603.1.10 is added.

91.1603.1.10. Systems and Components Requiring Special Inspections for Seismic Resistance. Construction documents or specifications shall be prepared for those systems and components requiring special inspection for seismic resistance as specified in CBC Section 1705.13 by the registered design professional responsible for their design and shall be submitted for approval in accordance with LAMC Subsection 91.106.3.3. Reference to seismic standards in lieu of detailed drawings is acceptable.

SEC. 91.1609. WIND LOADS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 1609 of the CBC is adopted by reference, and LAMC Paragraph 91.1609.1.1.2 is added as follows: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.1609.1.1.2. High Wind Velocity Areas. The Superintendent of Building may designate certain areas of the City as “high wind velocity areas” when evidence or studies indicate that the wind velocity results in damage to structures conforming to the minimum requirements of this Code. The Superintendent of Building may specify additional requirements over and above those required by this Code with respect to the following:

1. Glazing of openings in exterior walls;
2. Anchorage of post and beam construction;
3. Cantilever overhangs; and
4. Roofing and roof framing.

SEC. 91.1612. FLOOD LOADS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1612 of the CBC is adopted by reference, except CBC Section 1612.3 is not adopted and, in lieu, Los Angeles Municipal Code Subsection 91.1612.3 is added.

91.1612.3. Establishment of Flood Hazard Areas. To establish flood hazard areas, the applicable governing authority shall adopt a flood hazard map and supporting data. The flood hazard map shall include, at a minimum, areas of special flood hazard as identified by the Federal Emergency Management Agency in an engineering report entitled “The Flood Insurance Study for The City of Los Angeles”, dated June 2, 2012, as amended or revised with the accompanying Flood Insurance Rate Map (FIRM) and Flood Boundary and Floodway Map (FBFM) and related supporting data along with any revisions thereto. The adopted flood hazard map and supporting data are hereby adopted by reference and declared to be part of this section.

SEC. 91.1613. EARTHQUAKE LOADS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1613 of the CBC is adopted by reference, and Los Angeles Municipal Code Subsections 91.1613.5 through 91.1613.10.5 are added to read as follows:

91.1613.5. Amendments to ASCE 7. The provisions of Subsections 91.1613.5.1 thru 91.1613.8 are amendments to the relevant provisions of ASCE 7.

91.1613.5.1. ASCE Supplements. Supplements number 2 and 3 of ASCE 7 are hereby adopted by reference.

91.1613.5.2. ASCE 7, Section 12.2.3.1, Exception 3 is modified to read as follows:

3. Detached one- and two- family dwellings up to two stories in height of light frame construction.

91.1613.5.3. General. The text of ASCE 7, Section 12.11.2.2.3 is modified to read as follows:

12.11.2.2.3. Wood Diaphragms. The anchorage of concrete or masonry structural walls to wood diaphragms shall be in accordance with AWC SDPWS 4.1.5.1 and this Section. Continuous ties required by this section shall be in addition to the diaphragm sheathing. Anchorage shall not be accomplished by use of toenails or nails subject to withdrawal, nor shall wood ledgers or framing be used in cross-grain bending or cross-grain tension. The diaphragm sheathing shall not be considered effective as providing ties or struts required by this section.

For structures assigned to seismic Design Category D, E or F, wood diaphragms supporting concrete or masonry walls shall comply with the following:

1. The spacing of continuous ties shall not exceed 40 feet. Added chords of diaphragms may be used to form subdiaphragms to transmit the anchorage forces to the main continuous cross-ties.
2. The maximum diaphragm shear used to determine the depth of the subdiaphragm shall not exceed 75% of the maximum diaphragm shear.

91.1613.5.4. The Equation 12.2-1 of ASCE 7, Section 12.12.3 is modified to read as follows:

$$\delta_M = C_d \delta_{max}$$

91.1613.7. Reserved.

91.1613.8. Additional Seismic Requirements.

91.1613.8.1. Scope. This part contains special requirements for suspended ceilings and lighting systems. The provisions of Section 13.5.6 of ASCE 7 shall apply except as modified here.

91.1613.8.1.2. Design and Installation Requirements.

91.1613.8.1.2.1. General. The suspended ceilings and lighting systems shall be limited to 6 feet (1828 mm) below the structural deck unless the lateral bracing is designed by a licensed engineer or architect.

91.1613.8.1.2.2. Bracing at Discontinuity. Positive bracing to the structure shall be provided at changes in the ceiling plane elevation or at discontinuities in the ceiling grid system.

91.1613.8.1.2.3. Support for Appendages. Cable trays, electrical conduits and piping shall be independently supported and independently braced from the structure.

91.1613.8.1.2.4. Sprinkler Heads. All sprinkler heads (drops), except fire-resistance-rated floor/ceiling or roof/ceiling assemblies, shall be designed to allow for free movement of the sprinkler pipes with oversize rings, sleeves or adaptors through the ceiling tile.

Sprinkler heads penetrating fire-resistance-rated floor/ceiling or roof/ceiling assemblies shall comply with CBC Section 714. Sprinkler heads and other penetrations shall have a 2 in. (50 mm) oversize ring, sleeve or adapter through the ceiling tile to allow for free movement of at least 1 in. (25 mm) in all horizontal directions. Alternatively, a swing joint that can accommodate 1 in. (25 mm) of ceiling movement in all horizontal directions is permitted to be provided at the top of the sprinkler head extension.

91.1613.8.1.3. Special Requirements for Means of Egress. Suspended ceiling assemblies located along means of egress serving an occupant load of 30 or more shall comply with the following provisions:

91.1613.8.1.3.1. General. Ceiling suspension systems shall be connected and braced with vertical hangers attached directly to the structural floor or roof system above and along the means of egress serving an occupant load of 30 or more and at lobbies accessory to Group A Occupancies. Spacing of vertical hangers shall not exceed 2 feet (610 mm) on center along the entire length of the suspended ceiling assembly located along the means of egress or at the lobby.

91.1613.8.1.3.2. Assembly Device. All lay-in panels shall be secured to the suspension ceiling assembly with two hold-down clips minimum for each tile within a 4-foot (1219 mm) radius of the exit lights and exit signs.

91.1613.8.1.3.3. Emergency Systems. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Independent supports and braces shall be provided for light fixtures required for exit illumination. Power supply for exit illumination shall comply with the requirements of CBC Section 1008.3.

91.1613.8.1.3.4. Supports for Appendage. Separate support from the structural floor or roof system above shall be provided for all appendages such as light fixtures, air diffusers, exit signs and similar elements.

91.1613.9. Seismic Design Provisions for Hillside Buildings.

91.1613.9.1. Purpose. The purpose of this section is to establish minimum regulations for the design and construction of new buildings and additions to existing buildings when constructing such buildings on or into slopes steeper than one unit vertical in three units horizontal (33.3%). These regulations establish minimum standards for seismic force resistance to reduce the risk of injury or loss of life in the event of earthquakes.

91.1613.9.2. Scope. The provisions of this section shall apply to the design of the lateral-force-resisting system for hillside buildings at and below the base level diaphragm. The design of the lateral-force-resisting system above the base level diaphragm shall be in accordance with the provisions for seismic and wind design as required elsewhere in this division.

EXCEPTION: Non-habitable accessory buildings and decks not supporting or supported from the main building are exempt from these regulations.

91.1613.9.3. Definitions. For the purposes of this section, certain terms are defined as follows:

BASE LEVEL DIAPHRAGM is the floor at, or closest to, the top of the highest level of the foundation.

DIAPHRAGM ANCHORS are assemblies that connect a diaphragm to the adjacent foundation at the uphill diaphragm edge.

DOWNHILL DIRECTION is the descending direction of the slope approximately perpendicular to the slope contours.

FOUNDATION is concrete or masonry, which supports a building, including footings, stem walls, retaining walls, and grade beams.

FOUNDATION EXTENDING IN THE DOWNHILL DIRECTION is a foundation running downhill and approximately perpendicular to the uphill foundation.

HILLSIDE BUILDING is any building or portion thereof constructed on or into a slope steeper than one unit vertical in three units horizontal (33.3%). If only a portion of the building is supported on or into the slope, these regulations apply to the entire building.

PRIMARY ANCHORS are diaphragm anchors designed for and providing a direct connection as described in LAMC Subdivision 91.1613.9.5 and Paragraph 91.1613.9.7.3 between the diaphragm and the uphill foundation. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SECONDARY ANCHORS are diaphragm anchors designed for and providing a redundant diaphragm to foundation connection, as describe in LAMC Subdivision 91.1613.9.6 and Paragraph 91.1613.9.7.4. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

UPHILL DIAPHRAGM EDGE is the edge of the diaphragm adjacent and closest to the highest ground level at the perimeter of the diaphragm.

UPHILL FOUNDATION is the foundation parallel and closest to the uphill diaphragm edge.

91.1613.9.4. Analysis and Design.

91.1613.9.4.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Every hillside building within the scope of this division shall be analyzed, designed and constructed in accordance with provisions of this division. When the code-prescribed wind design produces greater effects, the wind design shall govern, but detailing requirements and limitations prescribed in this and referenced sections shall be followed.

91.1613.9.4.2. Base Level Diaphragm - Downhill Direction. The following provisions shall apply to the seismic analysis and design of the connections for the base level diaphragm in the downhill direction.

91.1613.9.4.2.1. Base for Lateral Force Design Defined. For seismic forces acting in the downhill direction, the base of the building shall be the floor at, or closest to, the top of the highest level of the foundation.

91.1613.9.4.2.2. Base Shear. In developing the base shear for seismic design, the response modification coefficient (R) shall not exceed 5 for bearing wall and building frame systems. The total base shear shall include the forces tributary to the base level diaphragm including forces from the base level diaphragm.

91.1613.9.5. Base Shear Resistance - Primary Anchors.

91.1613.9.5.1. General. The base shear in the downhill direction shall be resisted through primary anchors from diaphragm struts provided in the base level diaphragm to the foundation.

91.1613.9.5.2. Location of Primary Anchors. A primary anchor and diaphragm strut shall be provided in line with each foundation extending in the downhill direction. Primary anchors and diaphragm struts shall also be provided where interior vertical lateral-force-resisting elements occur above and in contact with the base level diaphragm. The spacing of primary anchors and diaphragm struts or collectors shall in no case exceed 30 feet (9144 mm).

91.1613.9.5.3. Design of Primary Anchors and Diaphragm Struts. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Primary anchors and diaphragm struts shall be designed in accordance with the requirements of LAMC Subdivision 91.1613.9.8.

91.1613.9.5.4. Limitations. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The following lateral-force- resisting elements shall not be designed to resist seismic forces below the base level diaphragm in the downhill direction:

1. Wood structural panel wall sheathing,
2. Cement plaster and lath,
3. Gypsum wallboard, and
4. Tension only braced frames.

Braced frames designed in accordance with the requirements of CBC Section 2205.2.1.2 may be used to transfer forces from the primary anchors and diaphragm struts to the foundation, provided lateral forces do not induce flexural stresses in any member of the frame or in the diaphragm struts. Deflections of frames shall account for the variation in slope of diagonal members when the frame is not rectangular.

91.1613.9.6. Base Shear Resistance - Secondary Anchors.

91.1613.9.6.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In addition to the primary anchors required by LAMC Subdivision 91.1613.9.5, the base shear in the downhill direction shall be resisted through secondary anchors in the uphill foundation connected to diaphragm struts in the base level diaphragm.

EXCEPTION: Secondary anchors are not required where foundations extending in the downhill direction spaced at not more than 30 feet (9144 m) on center extend up to and are directly connected to the base level diaphragm for at least 70% of the diaphragm depth.

91.1613.9.6.2. Secondary Anchor Capacity and Spacing. Secondary anchors at the base level diaphragm shall be designed for a minimum force equal to the base shear, including forces tributary to the base level diaphragm, but not less than 600 pounds per lineal foot (8.76 kN/m). The secondary anchors shall be uniformly distributed along the uphill diaphragm edge and shall be spaced a maximum of four feet (1219 mm) on center.

91.1613.9.6.3. Design. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Secondary anchors and diaphragm struts shall be designed in accordance with LAMC Subdivision 91.1613.9.8.

91.1613.9.7. Diaphragms Below the Base Level - Downhill Direction. The following provisions shall apply to the lateral analysis and design of the connections for all diaphragms below the base level diaphragm in the downhill direction.

91.1613.9.7.1. Diaphragm Defined. Every floor level below the base level diaphragm shall be designed as a diaphragm.

91.1613.9.7.2. Design Force. Each diaphragm below the base level diaphragm shall be designed for all tributary loads at that level using a minimum seismic force factor not less than the base shear coefficient.

91.1613.9.7.3. Design Force Resistance - Primary Anchors. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The design force described in LAMC Paragraph 91.1613.9.7.2 shall be resisted through primary anchors from diaphragm struts provided in each diaphragm to the foundation. Primary anchors shall be provided and designed in accordance with the requirements and limitations of LAMC Subdivision 91.1613.9.5.

91.1613.9.7.4. Design Force Resistance - Secondary Anchors.

91.1613.9.7.4.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In addition to the primary anchors required in LAMC Paragraph 91.1613.9.5 the design force in the downhill direction shall be resisted through secondary anchors in the uphill foundation connected to diaphragm struts in each diaphragm below the base level.

EXCEPTION: Secondary anchors are not required where foundations extending in the downhill direction, spaced at not more than 30 feet (9144 mm) on center, extend up to and are directly connected to each diaphragm below the base level for at least 70% of the diaphragm depth.

91.1613.9.7.4.2. Secondary Anchor Capacity. Secondary anchors at each diaphragm below the base level diaphragm shall be designed for a minimum force equal to the design force but not less than 300 pounds per lineal foot (4.38 kN/m). The secondary anchors shall be uniformly distributed along the uphill diaphragm edge and shall be spaced a maximum of four feet (1219 mm) on center.

91.1613.9.7.4.3. Design. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Secondary anchors and diaphragm struts shall be designed in accordance with LAMC Subdivision 91.1613.9.8.

91.1613.9.8. Primary and Secondary Anchorage and Diaphragm Strut Design. Primary and secondary anchors and diaphragm struts shall be designed in accordance with the following provisions:

1. **Fasteners.** All bolted fasteners used to develop connections to wood members shall be provided with square plate washers at all bolt heads and nuts. Washers shall be a minimum 0.229 inch by 3 inches by 3 inches (5.82 mm by 76 mm by 76 mm) in size. Nuts shall be tightened to finger tight plus one-half (1/2) wrench turn prior to covering the framing.
2. **Fastening.** The diaphragm to foundation anchorage shall not be accomplished by the use of toenailing, nails subject to withdrawal, or wood in cross-grain bending or cross-grain tension.
3. **Size of Wood Members.** Wood diaphragm struts collectors, and other wood members connected to primary anchors shall not be less than three-inch (76 mm) nominal width. The effects of eccentricity on wood members shall be evaluated as required per Item 9.
4. **Design.** Primary and secondary anchorage, including diaphragm struts, splices, and collectors shall be designed for 125% of the tributary force.
5. **Allowable Stress Increase.** The allowable stress increase permitted under CBC Section 1605.3.2 shall not be taken when the working (allowable) stress design method is used. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
6. **Steel Element of Structural Wall Anchorage System.** The strength design forces for steel elements of the structural wall anchorage system, with the exception of anchor bolts and reinforcing steel, shall be increased by 1.4 times the forces otherwise required.
7. **Primary Anchors.** The load path for primary anchors and diaphragm struts shall be fully developed into the diaphragm and into the foundation. The foundation must be shown to be adequate to resist the concentrated loads from the primary anchors.
8. **Secondary Anchors.** The load path for secondary anchors and diaphragm struts shall be fully developed in the diaphragm but need not be developed beyond the connection to the foundation.
9. **Symmetry.** All lateral force foundation anchorage and diaphragm strut connections shall be symmetrical. Eccentric connections may be permitted when demonstrated by calculation or tests that all components of force have been provided for in the structural analysis or tests.
10. **Wood Ledgers.** Wood ledgers shall not be used to resist cross-grain bending or cross-grain tension.

91.1613.9.9. Lateral-Force-Resisting Elements Normal to the Downhill Direction.

91.1613.9.9.1. General. In the direction normal to the downhill direction, lateral-force-resisting elements shall be designed in accordance with the requirements of this section.

91.1613.9.9.2. Base Shear. In developing the base shear for seismic design, the response modification coefficient (R) shall not exceed 5 for bearing wall and building frame systems.

91.1613.9.9.3. Vertical Distribution of Seismic Forces. For seismic forces acting normal to the downhill direction, the distribution of seismic forces over the height of the building using Section 12.8.3 of ASCE 7 shall be determined using the height measured from the top of the lowest level of the building foundation.

91.1613.9.9.4. Drift Limitations. The story drift below the base level diaphragm shall not exceed 0.007 times the story height at strength design force level. The total drift from the base level diaphragm to the top of the foundation shall not exceed 3/4 inch (19 mm). Where the story height or the height from the base level diaphragm to the top of the foundation varies because of a stepped footing or story offset, the height shall be measured from the average height of the top of the foundation. The story drift shall not be reduced by the effect of horizontal diaphragm stiffness.

91.1613.9.9.5. Distribution of Lateral Forces.

91.1613.9.9.5.1. General. The design lateral force shall be distributed to lateral-force-resisting elements of varying heights in accordance with the stiffness of each individual element.

91.1613.9.9.5.2. Wood Structural Panel Sheathed Walls. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The stiffness of a stepped wood structural panel shear wall may be determined by dividing the wall into adjacent rectangular elements, subject to the same top of wall deflection. Deflections of shear walls may be estimated by AWC SDPWS Section 4.3.2. Sheathing and fastening requirements for the stiffest section shall be used for the entire wall. Each section of wall shall be anchored for shear and uplift at each step. The minimum horizontal length of a step shall be 8 feet (2438 mm) and the maximum vertical height of a step shall be 2 feet, 8 inches (813 mm).

91.1613.9.9.5.3. Reinforced Concrete or Masonry Shear Walls. Reinforced concrete or masonry shear walls shall have forces distributed in proportion to the rigidity of each section of the wall.

91.1613.9.9.6. Limitations. The following lateral force-resisting-elements shall not be designed to resist lateral forces below the base level diaphragm in the direction normal to the downhill direction:

1. Cement plaster and lath;
2. Gypsum wallboard; and
3. Tension-only braced frames.

Braced frames designed in accordance with the requirements of CBC Section 2205.2.1.2 may be designed as lateral-force-resisting elements in the direction normal to the downhill direction, provided lateral forces do not induce flexural stresses in any member of the frame. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

91.1613.9.10. Specific Design Provisions.

91.1613.9.10.1. Footings and Grade Beams. All footings and grade beams shall comply with the following:

1. Grade beams shall extend at least 12 inches (305 mm) below the lowest adjacent grade and provide a minimum 24-inch (610 mm) distance horizontally from the bottom outside face of the grade beam to the face of the descending slope.
2. Continuous footings shall be reinforced with at least two No. 4 reinforcing bars at the top and two No. 4 reinforcing bars at the bottom.
3. All main footing and grade beam reinforcement steel shall be bent into the intersecting footing and fully developed around each corner and intersection.
4. All concrete stem walls shall extend from the foundation and reinforced as required for concrete or masonry walls.

91.1613.9.10.2. Protection Against Decay and Termites. All wood to earth separation shall comply with the following:

1. Where a footing or grade beam extends across a descending slope, the stem wall, grade beam, or footing shall extend up to a minimum 18 inches (457 mm) above the highest adjacent grade.

EXCEPTION: At paved garage and doorway entrances to the building, the stem wall need only extend to the finished concrete slab, provided the wood framing is protected with a moisture proof barrier.

2. Wood ledgers supporting a vertical load of more than 100 pounds per lineal foot (1.46 kN/m) and located within 48 inches (1219 mm) of adjacent grade are prohibited. Galvanized steel ledgers and anchor bolts, with or without wood nailers, or treated or decay resistant sill plates supported on a concrete or masonry seat, may be used.

91.1613.9.10.3. Sill Plates. All sill plates and anchorage shall comply with the following:

1. All wood framed walls, including nonbearing walls, when resting on a footing, foundation, or grade beam stem wall, shall be supported on wood sill plates bearing on a level surface.
2. Power-driven fasteners shall not be used to anchor sill plates except at interior nonbearing walls not designed as shear walls.

91.1613.9.10.4. Column Base Plate Anchorage. The base of isolated wood posts (not framed into a stud wall) supporting a vertical load of 4,000 pounds (17.8 kN) or more and the base plate for a steel column shall comply with the following:

1. When the post or column is supported on a pedestal extending above the top of a footing or grade beam, the pedestal shall be designed and reinforced as required for concrete or masonry columns. The pedestal shall be reinforced with a minimum of four No. 4 bars extending to the bottom of the footing or grade beam. The top of exterior pedestals shall be sloped for positive drainage.
2. The base plate anchor bolts or the embedded portion of the post base, and the vertical reinforcing bars for the pedestal, shall be confined with two No. 4 or three No. 3 ties within the top 5 inches (127 mm) of the concrete or masonry pedestal. The base plate anchor bolts shall be embedded a minimum of 20-bolt diameters into the concrete or masonry pedestal. The base plate anchor bolts and post bases shall be galvanized and each anchor bolt shall have at least two galvanized nuts above the base plate.

91.1613.9.10.5. Steel Beam to Column Supports. All steel beam to column supports shall be positively braced in each direction. Steel beams shall have stiffener plates installed on each side of the beam web at the column. The stiffener plates shall be welded to each beam flange and the beam web. Each brace connection or structural member shall consist of at least two 5/8 inch (15.9 mm) diameter machine bolts.

91.1613.10. Earthquake Recording Instrumentation.

91.1613.10.1. Applicability. The requirements of this section shall apply to buildings for which permits were issued after July 1, 1965.

91.1613.10.2. General. Every new building over six stories in height with an aggregate floor area of 60,000 square feet (5574 m²) or more and every new building over ten stories in height regardless of the floor area shall be equipped with at least three approved recording accelerographs.

EXCEPTIONS: (Amended by Ord. No. 186,488, Eff. 12/27/19.)

1. A building selected by the State of California as part of its Strong Motion Instrumentation Program (California Public Resources Code Section 2700 et seq.) need not comply with this section until it ceases to be part of the program.
2. All new buildings that are designed using the non-linear response history procedure of "Seismic Response History Procedures" of Chapter 16 of ASCE 7 shall be equipped with a structural monitoring system in accordance with standards established by the Superintendent of Building.
3. A building designed using a two-stage analysis procedure per Section 12.2.3.2 of ASCE 7 having a flexible upper portion above a rigid lower portion and a total building height not exceeding 85 feet above the grade plane.

91.1613.10.3. Maintenance. Maintenance and service of the instruments shall be provided by the owner of the building subject to the approval of the Superintendent of Building. Data produced by the instruments shall be made available to the Superintendent of Building on request.

Maintenance and service of the instruments shall be performed annually and shall be performed only by an approved testing agency. The owner shall file with the Department a written report from an approved testing agency certifying that each instrument has been serviced and is in proper working condition. This report shall be submitted when the instruments are installed and annually thereafter. Each instrument shall have affixed to it an externally visible tag specifying the date of the last maintenance or service and the printed name and address of the testing agency performing the service.

91.1613.10.4. Location. For new buildings requiring accelerographs in accordance with LAMC Subdivision 91.1613.10.2, the instruments shall be located in the basement, mid-height and near the top of the building. Each instrument shall be located so that access is maintained at all times and is unobstructed by room contents. A sign stating "MAINTAIN CLEAR ACCESS TO THIS INSTRUMENT" in 1 inch (25.4 mm) block letters shall be posed in a conspicuous location at the instrument.

91.1613.10.5. Instrumentation of Existing Buildings. All owners of existing structures selected by the Department shall provide accessible space for the installation of appropriate earthquake-recording instruments. Locations of the instruments shall be determined by the engineer of record and approved by the Department. The owners shall make arrangements with the Department to provide, maintain and service the instruments as required above. Data shall be the property of the Department, but copies of individual records shall be made available to the public on request with the payment of an appropriate fee.

All legally existing instruments shall be maintained and serviced in proper working condition. Each instrument shall be maintained and serviced as specified by LAMC Subdivision 91.1613.10.3 and shall be provided with a sign as required by LAMC Subdivision 91.1613.10.4.

DIVISION 17

STRUCTURAL TESTS AND SPECIAL INSPECTIONS

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section

91.1700 General.

91.1702 New Materials.

91.1703 Approvals.

91.1704 Special Inspections.

91.1705 Required Verification and Inspection.

91.1706 Design Strengths of Materials.

91.1710 Certified Security Bar Installer.

91.1711 Prefabricated Construction.

SEC. 91.1700. GENERAL.

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Chapter 17 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.1702. NEW MATERIALS.

(Title and Section Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 1702 of the CBC is adopted.

SEC. 91.1703. APPROVALS.

(Amended by Ord. 186,488, Eff. 12/27/19.)

Section 1703 of the CBC is adopted by reference, except Sections 1703.1, 1703.2, 1703.3, 1703.4, 1703.4.1, and 1703.4.2 of the CBC are not adopted; and, in lieu LAMC Subsections 91.1703.1, 91.1703.2, 91.1703.3, 91.1703.4, 91.1703.4.1, and 91.1703.4.2 are added.

91.1703.1. Approved Agency. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Pursuant to LAMC Section 98.0503, a testing agency shall provide all information required by the Superintendent of Building to determine whether the agency shall become an approved testing agency.

91.1703.2. Written Approval. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Any new material, appliance, equipment, system or method of construction meeting the requirements of this Code shall be approved in writing after satisfactory completion of the required tests and submission of required test reports pursuant to LAMC Sections 98.0501 and 98.0502.

91.1703.3. Approved Record. For any material, appliance, equipment, system or method of construction that has been approved, a record of that approval, including the conditions and limitations of the approval, shall be kept on file in the Department and shall be open to public inspection at appropriate times.

91.1703.4. Performance. Specific information consisting of test reports conducted by an approved testing agency in accordance with standards referenced in Division 35, Article 1, Chapter IX of the LAMC, or other information as necessary, shall be provided for the Superintendent of Building to determine that the material meets the applicable Code requirements, including LAMC Sections 98.0501 and 98.0502.

91.1703.4.1. Research and Investigation. (Amended by Ord. 186,488, Eff. 12/27/19.) Sufficient technical data shall be submitted to the Superintendent of Building to substantiate the proposed use of any product, material or assembly. If it is determined that the evidence submitted is satisfactory proof of performance for the use intended, the Superintendent of Building shall approve the use of the product, material or assembly subject to the requirements of this Code. The costs, reports and investigations required under these provisions shall be paid by the permit applicant as required by LAMC Sections 98.0501, 98.0502 and 98.0503.

91.1703.4.2. Research Reports. (Amended by Ord. 186,488, Eff. 12/27/19.) Supporting data, where necessary to assist in the approval of products, materials or assemblies not specifically provided for in this Code, shall consist of valid research reports from approved sources as required in LAMC Sections 98.0501 and 98.0502.

SEC. 91.1704. SPECIAL INSPECTIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1704 of the CBC is adopted by reference, except that CBC Sections 1704.2, 1704.2.1, 1704.2.3, 1704.2.4, 1704.2.5, 1704.2.5.1, 1704.2.5.2, 1704.6, and 1704.6.1 are not adopted; and, in lieu, LAMC Subsections 91.1704.1.1, 91.1704.1.2, 91.1704.1.3, 91.1704.1.4, 91.1704.1.5, 91.1704.1.6, 91.1704.1.7, 91.1704.2, 91.1704.2.1, 91.1704.2.1.1, 91.1704.2.1.2, 91.1704.2.1.3, 91.1704.2.3, 91.1704.2.4, 91.1704.2.5, 91.1704.2.5.1, 91.1704.6, and 91.1704.6.1 are added or amended to read as follows: (Amended by Ord. No. 188,739, Eff. 9/23/25.)

91.1704.1.1. Certified Licensed Contractors.

91.1704.1.2. Registration. Application for registration as a certified licensed contractor shall be made to the Superintendent of Building on a form furnished by the Department and a separate application shall be made for each type of registration desired. Before the application can be accepted, the applicant must furnish proof satisfactory to the Department that the applicant holds a valid active California State Contractor's License in the same specialty as the certification requested.

91.1704.1.3. Application.

1. **Form.** Application for a Certificate of Registration shall be made on a form furnished by the Department.
2. **Information Necessary.** The application shall bear the name and address of the applicant and, if the applicant is employed by a firm, partnership or corporation, the names of the principal officers should also be included. The application shall carry other information deemed necessary by the Department.
3. **Verification.** The applicant shall declare that the information contained in the application is true and correct.
4. **Fee.** The application shall be accompanied by an examination fee of \$188.

91.1704.1.4. Examination.

1. **Examination Required.** Before issuance of a Certificate of Registration, the applicant shall have successfully passed the examination required for the issuance of the Certificate of Registration within ninety (90) days preceding the date of the issuance. To be eligible for the examination for a Certificate of Registration, the applicant shall have a valid California State Contractor's License in an appropriate specialty and a valid City Business Tax Certificate.

2. **Board of Examiners.** The Superintendent of Building and/or Board of Examiners composed of three qualified persons appointed by the Superintendent of Building shall conduct examinations. The results of every examination shall be subject to the approval of the Superintendent of Building. Each examiner shall serve at the pleasure of the Superintendent of Building and shall serve for a period of one year unless re-appointed by the Superintendent of Building. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

3. **Scope of Examination.** The examination shall, in the judgment of the Superintendent of Building, fairly determine the ability of the applicant to perform properly the work, which the applicant would be authorized to do by the Certificate of Registration requested, and may include the following:

- a. A written test.
- b. Practical tests as may be required.
- c. An oral interview as may be required.
- d. Other tests as may be required by the Board of Examiners.

4. **Time of Examination.** The applicant shall be examined as soon as practicable after filing an application.

5. **Rules and Regulations.** The Department shall have the authority to establish rules and regulations for the conduct of examinations.

6. **Fitness of Applicant.** Any applicant may be required to submit satisfactory proof of the applicant's fitness to carry out the intent of this Code.

7. **Failure to Pass.** An applicant who fails to pass an examination shall not be eligible for another examination until four (4) weeks after taking the previous examination.

91.1704.1.5. Issuance of Certificates.

1. The Superintendent of Building shall issue separate Certificates of Registration for each of the following categories:

- a. FAU/AC units; evaporative coolers.
- b. Domestic water piping/plumbing fixtures/hot water heaters/solar panels.
- c. Reroofing and roof repair.
- d. Electrical equipment/fixtures/smoke detectors.
- e. Masonry and concrete fences.
- f. Masonry chimney repairs.
- g. Shower pan replacement.

Nothing here prohibits any person from being qualified for more than one type of certification, provided the person files an application, pays the required fees, takes the required examinations and is duly qualified by the Superintendent of Building for each type of certification. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

2. Upon payment of a \$45 fee, the Department may issue a Certificate of Registration to every applicant who passes the required examination for a Certified Licensed Contractor.

3. Each Certificate of Registration shall expire twelve (12) months from the date of issuance.

4. The Superintendent of Building shall keep on file a list, open to public inspection, of the names of all registered certified licensed contractors, showing the type of work each has been authorized to inspect.

5. **Renewal of Certificates.** Expired Certificates of Registration may be renewed at any time within thirty (30) days following the date of expiration. After a Certificate of Registration has been expired for thirty (30) days, it may not be renewed; rather, a new application for a new certificate must be submitted at that time.

91.1704.1.6. Exhibition of Certificate.

1. Every person having a fixed place of business shall keep their Certificate of Registration posted in some conspicuous location at their place of business during the time the certificate is in force.

2. Every person not having a fixed place of business shall carry their Certificate of Registration with them at all times while doing any inspections or other work pursuant to this certificate.

91.1704.1.7. Revocation of Certificate. The Superintendent of Building may revoke, suspend or refuse to renew any Certificate of Registration upon a showing of incompetence, willful or negligent failure to observe or report violations of this Code, or failure to maintain a valid active California State Contractor's License in the same specialty as the certification. Prior to any action, the holder shall be given an opportunity to appear before the Superintendent of Building and be heard.

Suspension or revocation of any Certificate of Registration issued under this Section shall be in accordance with the provisions of Article 8, Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.1704.2. Special Inspections. Where application is made for construction as described in this section, the owner or the registered design professional in responsible charge acting as the owner's agent shall employ one or more Registered Deputy Inspectors to perform inspections during construction on the types of work listed under CBC Section 1705. The Registered Deputy Inspector shall be a qualified person as set forth in LAMC Subsection 91.1704.2.1 and shall demonstrate competence to the satisfaction of the Superintendent of Building for inspection of the particular type of construction or operation requiring special inspection.

The special inspections shall be in addition to the inspections made by the employees of the Department as set forth in LAMC Section 91.108.

All special inspections shall be made by a Registered Deputy Inspector. Whenever the term "Special Inspector" is used in this Code, it shall mean "Registered Deputy Inspector" as described in LAMC Subdivision 91.1704.2.1.

EXCEPTIONS:

1. Special inspections are not required for construction of a minor nature or as warranted by conditions in the jurisdiction as approved by the Superintendent of Building.
2. Unless otherwise required by the Superintendent of Building, special inspections are not required for Group U occupancies that are accessory to a residential occupancy including, but not limited to, those listed in CBC Section 312.1.
3. Special inspections are not required for portions of structures designed and constructed in accordance with the cold-formed steel light-frame construction provisions of CBC Section 2211.7 or the conventional light-frame construction provisions of CBC Section 2308.
4. The contractor is permitted to employ the approved agencies where the contractor is also the owner.

91.1704.2.1. Registered Deputy Inspector Qualifications. An applicant for Deputy Inspector shall provide written documentation to the Superintendent of Building demonstrating the applicant's competence and relevant experience or training. Experience or training shall be considered relevant when the documented experience or training is related in complexity to the same type of special inspection activities for projects of similar complexity and material qualities. These qualifications are in addition to qualifications specified in other sections of this Code.

Application for registration as a Registered Deputy Inspector shall be made to the Superintendent of Building on a form furnished by the Department. A separate application shall be made for each type of registration desired. Registration is available for the following types of inspections: Reinforced Concrete (RC), Structural Masonry (SM), Structural Steel/Welding (SSW), Grading (GD), Sprayed Fire resistant Materials (SFRM), Methane Barrier (MB) and Wood (WD).

A committee appointed by the Superintendent of Building shall examine each applicant as to the applicant's experience and training for performing the duties of an inspector of the type for which application has been made. Additionally, the applicant will be examined on the applicant's knowledge of the LAMC and Registered Deputy Inspector duties, responsibilities and procedures. When satisfied as to the fitness of the applicant, the Superintendent of Building shall issue a Certificate of Registration. Upon application for renewal of a Certificate of Registration, the applicant shall be re-examined to ascertain the applicant's fitness to perform the duties of inspector of the type for which application has been made.

EXCEPTION: If the Department determines that the initial examination (which includes general knowledge, code requirements and plan comprehension) for the special inspector program under the International Code Council (ICC) is equivalent to the above-described initial or renewal examination, then the Department may accept the results of the ICC examination in lieu of the Department's examination in that category; however, the Department will be examining the applicant's knowledge of the LAMC and Registered Deputy Inspector duties, responsibilities and procedures.

The Superintendent of Building shall issue a separate Certificate of Registration for each type of registration requiring special inspection in accordance with LAMC Section 91.1704 and as determined by the Superintendent of Building for any construction requiring either continuous or periodic special inspection.

Nothing here shall be deemed to prohibit any one person from being qualified for more than one type of special inspection, provided the person applies, pays the required fees, takes the required examinations and is duly qualified by the Superintendent of Building for each type.

Each Certificate of Registration shall expire three (3) years from the date of issuance, but may be renewed by the Superintendent of Building within a grace period of thirty (30) days thereafter.

The Department shall maintain a list of the names of all Registered Deputy Inspectors, showing the type of work each has been authorized to inspect. This list shall be available to the public.

Upon evidence satisfactory to the Superintendent of Building of incompetence, of willful or negligent failure to observe or report violations of this Code, or of any other failure to perform properly and effectively the duties assumed by a Registered Deputy Inspector, the Superintendent of Building may revoke, suspend or refuse to renew any Certificate of Registration. But, prior to that action, the holder shall be given an opportunity to appear before the Superintendent of Building and be heard.

Except where there is a City employee inspecting buildings or structures being erected or repaired by the City, no Registered Deputy Inspector shall receive any compensation from the City. A Registered Deputy Inspector shall undertake and perform the duties of inspection solely on the request of the owner or the owner's agent. The designation shall be deemed to indicate that the duties incident to the inspection are within the course and scope of the Registered Deputy Inspector's employment by the owner or agent, and except where the Registered Deputy Inspector is in fact an employee of the City, the Registered Deputy Inspector shall not be deemed an employee of the City, a contractor, a subcontractor or a material vendor for any purpose.

The registered design professional in responsible charge and engineers of record involved in the design of the project are permitted to act as the supervising agency and their personnel are permitted to act as the deputy inspector for the work designed by them, provided they qualify as Registered Deputy Inspectors.

91.1704.2.1.1. Duties and Responsibilities of the Registered Deputy Inspector.

1. The Registered Deputy Inspector employed on any work must be present during the execution of all the work the Registered Deputy Inspector has undertaken to inspect. The Registered Deputy Inspector shall notify the Department of the commencement of inspection of a job and shall specify the type of inspection for which the Registered Deputy Inspector has been engaged. This notification shall be made no later than the last working day preceding the commencement of inspection. The Registered Deputy Inspector shall report to the job sufficiently in advance of construction to review the plans and to inspect all materials to be used or concealed within the work, shall inspect the construction, erection, placing or other use of the materials, and shall observe whether there is compliance with the Code as to all of the foregoing. During the execution of the work, the Registered Deputy Inspector shall not undertake or engage in any other task or occupation that will interfere with the proper performance of the Registered Deputy Inspector's duties relating to the inspections. The Registered Deputy Inspector shall report, as directed, to the Superintendent of Building, noting all violations of this Code that have occurred and any other information as may be required. At the conclusion of the Registered Deputy Inspector's duties on any project, which has been completed in accordance with this Code, the Registered Deputy Inspector shall submit a report to the Department setting forth the portion of the work inspected. The report shall be made on forms supplied by the Department and shall be filed with the Department. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

2. Nothing here shall be deemed to authorize any Registered Deputy Inspector to approve any inspection required by this Code, other than the special inspection for which the Registered Deputy Inspector was hired and is of the type for which the Registered Deputy Inspector is registered. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

3. Where, in the opinion of the Department, the magnitude or complexity of a job warrants it, additional Registered Deputy Inspectors may be required.

4. Where, in the opinion of the Department, the Registered Deputy Inspector is negligent in the performance of the Deputy Inspector's duties, the job shall be stopped.

5. Nothing herein shall be deemed to authorize any Registered Deputy Inspector to approve the pouring of concrete, the placement of masonry, structural steel or fill prior to the approval of the regular building inspector.

91.1704.2.1.2. Fees for Registered Deputy Inspector.

1. **New Application.** Before accepting any application for registration as a Registered Deputy Inspector, the Department shall collect a new examination fee of \$528. A separate application shall be submitted and a separate examination fee shall be collected for each additional type of registration desired. When the applicant

passes the examination(s), a Certificate(s) of Registration for each type of examination passed shall be issued. If the applicant fails to pass an examination, the applicant may reapply and again pay the examination fees. No refund(s) will be given to the applicant after the Department has administered the examination(s).

2. **Renewal Application.** Before renewing a Certificate of Registration as a Registered Deputy Inspector, the Department shall collect a renewal Registration and examination fee in the amount of \$482. A separate application shall be submitted and a separate examination fee shall be collected for each additional type of renewal registration desired. When the applicant passes the examination(s), a Certificate(s) of Registration for each type of examination passed shall be issued. If the applicant fails to pass the examination(s), the applicant may reapply; however, the applicant must again pay the renewal Registration and examination fees before the Department can issue the Certificate of Registration(s). No refund(s) will be given to applicant after the Department has administered the examination.

3. **International Code Council (ICC) Certification(s).** International Code Council (ICC) Certification(s) is required prior to taking the Department's new or renewal examination(s). In addition to ICC's certification, the Department's examination will be required for each type of registration and fees collected as specified in this Section.

EXCEPTIONS:

If the ICC does not have an examination for a Department registration, the applicant will be required to take the Department examination only.

The ICC Certification may not be required when the Department registration is utilized by the Department of Public Works for City business only.

91.1704.2.1.3. Failure to Pass Examination for Registered Deputy Inspector. Every applicant who fails to pass a new or renewal examination(s) shall not be eligible for re-examination until 30 days after taking the previous examination.

91.1704.2.3. Statement of Special Inspections. The permit applicant shall submit a statement of special inspections in accordance with LAMC Subsection 91.106.3.3. The statement of special inspections shall be prepared by the registered design professional in responsible charge as a condition for permit issuance. This statement shall be in accordance with LAMC Subsection 91.1704.3.

EXCEPTION:

1. A statement of special inspections is not required for portions of structures designed and constructed in accordance with the cold-formed steel light-frame construction provisions of CBC Section 2211.1.2 or the conventional light-frame construction provisions of LAMC Section 91.2308.

91.1704.2.4. Report Requirement. In addition to all the requirements of LAMC Subsection 91.1704.2.1.1, Registered Deputy Inspectors shall keep records of inspections and tests. The Registered Deputy Inspectors shall furnish inspection reports and tests to the Superintendent of Building, and to the registered design professional in responsible charge. Reports shall indicate that work inspected was or was not completed in conformance to approved construction documents. Discrepancies shall be brought to the immediate attention of the contractor for correction. If they are not corrected, the discrepancies shall be brought to the attention of the Superintendent of Building and to the registered design professional in responsible charge prior to the completion of that phase of the work. A final report documenting required special inspections and tests, and correction of any discrepancies noted in the inspections or tests, shall be submitted at a point in time agreed upon prior to the start of the work by the owner or owner's authorized agent to the Superintendent of Building.

91.1704.2.5. Special Inspection of Fabricated Items. Where fabrication of structural, load-bearing or lateral load resisting members or assemblies is being conducted on the premises of a fabricator's shop, deputy inspections of the fabricated items shall be performed during fabrication, when approved by the Superintendent of Building, except where the fabricator has been approved to perform work without special inspection in accordance with LAMC Subsection 1704.2.5.1.

91.1704.2.5.1. Fabricator Approval. Pursuant to LAMC Section 96.200 et seq., special inspections required by LAMC Section 91.1705 are not required where the work is done on the premises of a fabricator approved to perform such work without special inspection. Approval shall be based upon review of the fabricator's written fabrication procedures and quality control manuals that provide a basis for control of materials and work quality, with periodic auditing of fabrication and quality control practices by an approved agency or the Superintendent of Building. At completion of fabrication, the approved fabricator shall submit a certificate of compliance to the owner or owner's authorized agent for submittal to the Superintendent of Building as specified in CBC Section 1704.5 stating that the work was performed in accordance with the approved construction documents.

91.1704.5. Section 1704.5 of the CBC is adopted in its entirety.

91.1704.6. Structural Observations. Where required by the provisions of LAMC Subsection 91.1704.6.1, the owner shall employ the registered design professional in responsible charge for the structural design, or another registered design professional designated by the registered design professional in responsible charge of the structural design to perform structural observations as defined in CBC Section 202. The structural observer shall visually observe representative locations of structural systems, details and load paths for general conformance to the approved construction documents.

Prior to the commencement of observations, the structural observer shall submit to the Superintendent of Building a written statement identifying the frequency and extent of proposed structural observations.

The owner or owner's representative shall coordinate and call a preconstruction meeting between the engineer or architect responsible for the structural design, structural observer, contractor, affected subcontractors and deputy inspectors. The structural observer shall preside over the meeting. The purpose of the meeting shall be to identify the major structural elements and connections that affect the vertical and lateral load systems of the structure and to review scheduling of the required observations. A record of the meeting shall be included in the first report submitted to the Superintendent of Building.

Observed deficiencies shall be reported, in writing, to the owner's representative, Registered Deputy Inspector, contractor and the Superintendent of Building. Upon the form prescribed by the Superintendent of Building, the structural observer shall submit to the Superintendent of Building a written statement at each significant construction stage stating that the site visits have been made and identify any reported deficiencies which, to the best of the structural observer's knowledge, have not been resolved. A final report by the structural observer, which states that all observed deficiencies have been resolved, is required before acceptance of the work by the Superintendent of Building.

91.1704.6.1. Structural observation for structures. Structural observation shall be provided for those structures where one or more of the following conditions exist:

1. The structure is classified as Risk Category III or IV.
2. The structure is a high-rise building.
3. A lateral design is required for the structure or portion thereof.

EXCEPTION: One-story wood framed Group R-3 and U occupancies less than 2,000 square feet in area, provided the adjacent grade is not steeper than 1 unit vertical in 10 units horizontal (10% slope), assigned to Seismic Design Category D.

4. Such observation is required by the registered design professional responsible for the structural design.
5. Such observation is specifically required by the building official.

SEC. 91.1705. REQUIRED VERIFICATION AND INSPECTION.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1705 of the CBC is adopted by reference, except CBC Sections 1705.3, 1705.3.2, 1705.6, 1705.7, 1705.8, 1705.12.1, 1705.12.1.1, 1705.13.1, 1705.13.4, 1705.16.2, and 1705.17 are not adopted; and, in lieu, LAMC Subsections 91.1705.1.2, 91.1705.1.3, 91.1705.1.4, 91.1705.1.5, 91.1705.1.6, 91.1705.1.7, 91.1705.1.8, 91.1705.1.9, 91.1705.1.10, 91.1705.1.11, 91.1705.1.12, 91.1705.1.13, 91.1705.1.13.1, 91.1705.2.4, 91.1705.3, 91.1705.3.1.1, 91.1705.3.2, 91.1705.6, 91.1705.6.2, 91.1705.7, 91.1705.8, 91.1705.13.1, 91.1705.13.1.1.1, 91.1705.14.1, 91.1705.18.2, and 91.1705.19 are added. (Amended by Ord. No. 188,739, Eff. 9/23/25.)

91.1705.1.2. Certifications by Engineer or Geologist. If the grading or foundation earthwork has required continuous inspection, the responsible engineering geologist or soils engineer shall certify by signature to the Department that, to the best of the geologist's or engineer's knowledge, the field work was completed in conformity with the technical design data.

91.1705.1.3. Department's Responsibility. The employment of a Registered Deputy Inspector for any work does not deprive the Department of the right to make periodic or called inspections of all or portions of the work. On any work requiring continuous inspection by a Registered Deputy Inspector, the called inspections required by Section 91.108 of this Code may be delegated to the Registered Deputy Inspector by the Superintendent of Building.

91.1705.1.4. Structural, Termite and Fungus Damage. Every building raised from its foundation shall be inspected. If there is any superficial evidence of structural damage, termites or fungus growth, the permittee shall remove and renew the damaged or infested members before reseating the building or moving it from its existing site or into the City.

91.1705.1.5. Emergencies or Catastrophes. In the event of an emergency or of a major catastrophe in the City, the Department may deputize Emergency Building Inspectors for the Department. The inspectors shall receive no compensation from the City, and they shall be appointed for the periods of time the Department deems advisable.

91.1705.1.6. Special Activity Inspection. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In addition to the construction or work inspected as described in LAMC Sections 91.108 and 91.1704 through 91.1705, there are other construction activities that are sufficiently important to the structural stability of the structure, the occupants of and the fire and life safety of the structure that inspection by a specially qualified inspector is necessary in order to ensure compliance with the Code requirements. These special activity inspections may occur during off-site fabrication or during on-site construction.

Inspections by Department Approved Special Activity Inspectors will be required in accordance with regulations promulgated by the Superintendent of Building where:

1. The structure is more than five stories or 60 feet (18,288 mm) in height.
2. The structure exceeds 50,000 square feet (4645 m²) of ground area or 200,000 square feet (18 580 m²) of total floor area.
3. Nondestructive structural testing methods are utilized.
4. The quality identification markings of the materials used are not inspectable after installation.
5. The manner of use of materials precludes full inspection after installation.

EXCEPTION: The Department may waive continuous or periodic inspection required by this Section where minor quantities are involved and no unusual hazards exist.

In addition to the projects included in the above categories, the Superintendent of Building may require Special Activity inspections if the Superintendent of Building determines that these inspections are needed to ensure compliance with the provisions of this Code and the work involves:

6. Unique, novel or innovative construction;
7. Highly complex or intricate construction;
8. Unique, novel or innovative grading, earth support or foundation procedures; or
9. New methods of construction not yet provided for in the rules and regulations.

Special Activity inspection authority will be determined on a case-by-case basis and will require Registered Deputy Inspector registration. The Superintendent of Building shall adopt rules and regulations implementing the provisions of this Section. These regulations may establish and set the requirements for different types of Department Approved Special Activity Inspectors.

91.1705.1.7. Special Activity Inspection Authority.

91.1705.1.8. Registration. The procedures and conditions of registration as a Special Activity Inspector shall be the same as applicable to a Registered Deputy Inspector under LAMC Subsection 91.1704.2.1, except that the extent and duration of special inspection authority shall be as specified in the rules and regulations adopted by the Superintendent of Building.

91.1705.1.9. Duties. Except as otherwise indicated by regulations promulgated by the Superintendent of Building, the duties and responsibilities for a Special Activity Inspector shall be the same as specified for a Registered Duty Inspector under LAMC Subsection 91.1704.2.1.1

91.1705.1.10. Fees. The procedures for the examination, registration and renewal of authority as a Special Activity Inspector shall be the same as specified for a Registered Deputy Inspectors under LAMC Subsection 91.1704.2.1.2.

91.1705.1.11. Renewal Process. LAMC Subsection 91.1704.2.1.2 applies to the application, examination and renewal process for registration as a Special Activity Inspector.

91.1705.1.12. Certification of Welders.

91.1705.1.13. The Superintendent of Building shall suspend or revoke any certificate upon evidence of failure of the person so certified to conduct welding operations in compliance with any of the conditions upon which it is based, or where quality of work or workmanship is not equivalent to that required by the Code, or for any of the reasons set forth in Article 8, Chapter IX of the Los Angeles Municipal Code. Any action shall be in accordance with the provisions of Article 8, Chapter IX of the Los Angeles Municipal Code.

91.1705.2.4. Cold-formed Steel Trusses Spanning 60 Feet or Greater. Where a cold-formed steel truss clear span is 60 feet (18 288 mm) or greater, the deputy inspector shall verify that the temporary installation restraint/bracing and the permanent individual truss member restraint/bracing are installed in accordance with the approved truss submittal package. (Amended by Ord. No. 185,198, Eff. 11/22/17.)

91.1705.3. Concrete Construction. Special inspections and tests of concrete construction shall be performed in accordance with this section and CBC Table 1705.3. (Amended by Ord. No. 188,739, Eff. 9/23/25.)

EXCEPTION: Special inspections and tests shall not be required for:

1. Isolated spread concrete footings of buildings three stories or less above grade plane that are fully supported on earth or rock, where the structural design of the footing is based on a specified compressive strength, f_c , no greater than 2,500 pounds per square inch (psi) (17.2 MPa).
2. Continuous concrete footings supporting walls of buildings three stories or less above grade plane that are fully supported on earth or rock where:
 - 2.1. The footings support walls of light-frame construction;
 - 2.2. The footings are designed in accordance with LAMC Table 1809.7; or
 - 2.3. The structural design of the footing is based on a specified compressive strength, f_c , not more than 2,500 pounds per square inch (psi) (17.2 MPa), regardless of the compressive strength specified in the approved construction documents or used in the footing construction.
3. Nonstructural concrete slabs supported directly on the ground, including prestressed slabs on grade, where the effective prestress in the concrete is less than 150 psi (1.03 MPa).
4. Concrete foundation walls constructed in accordance with CBC Table 1807.1.6.2.
5. Concrete patios, driveways and sidewalks on grade.

91.1705.3.1.1. Structural Inspection – Concrete. During the construction of all buildings over 160 feet (48.768 m) in height with concrete special moment-resisting space frames, a structural inspector under the supervision of the engineer responsible for the structural design shall be present to inspect the materials and work quality for conformance with approved plans, specifications and change orders involved in construction of the ductile frames and shear walls. This inspection may be made by one or more structural inspectors, provided that at least one structural inspector is present during the placement of all concrete and reinforcement in the structural frame and shear walls.

The number of structural inspectors to be provided for each structure shall be determined by the engineer responsible for the structural design, provided that more than one structural inspector shall be provided where the magnitude of a structure prevents a single inspector from adequately performing the inspection.

The owner shall provide each structural inspector. Each structural inspector shall be paid by the owner directly or through the person responsible for the structural design. Each structural inspector shall be responsible to the person who prepared the structural design.

The inspection by the structural inspector or inspectors shall be in addition to inspections made by Department employees as specified in LAMC Section 91.108 and by Registered Deputy Inspectors as specified for other parts of the work in LAMC Section 91.1704.

Prior to the issuance of the Certificate of Occupancy, each structural inspector shall submit a report in writing to the engineer and the Department certifying that the portions of the structural frame inspected by the inspector were constructed in accordance with the approved plans, specifications, change orders and Division 19, Article 1, Chapter IX of the LAMC.

91.1705.3.2. Material Tests. In the absence of sufficient data or documentation providing evidence of conformance to quality standards for materials in Chapters 19 and 20 of ACI 318, the Superintendent of Building shall require testing of materials in accordance with the appropriate standards and criteria for the material in Chapters 19 and 20 of ACI 318. Weldability of reinforcement, except that which conforms to ASTM A706, shall be determined in accordance with the requirements of Section 26.6.4 of ACI 318.

91.1705.6. Soils. Special inspections defined per LAMC Subsections 91.7008.2 and 91.7011.3 and tests for existing site soil conditions, fill placement and load-bearing requirements shall be as required by this section and LAMC Table 1705.6. The approved geotechnical report, and the construction documents prepared by the registered design professionals shall be used to determine compliance. During fill placement, the special inspector shall determine that proper materials and procedures are used in accordance with the provisions of the approved geotechnical report, as specified in CBC Section 1803.6.

EXCEPTION: Special inspection is not required during placement of controlled fill having a total depth of 12 inches (305 mm) or less and where the fill is not used for graded slopes or for support of footings or foundations.

91.1705.6.2. Grading. A registered Grading Inspector is required under all conditions where the site grading or foundation earthwork planned on a project has any of the following:

- 1.1. A contiguous grading area exceeding 60,000 square feet (5574 m²).
- 1.2. An excavated or filled slope steeper than 2 horizontal in 1 vertical (50% slope). (**Amended by Ord. No. 185,587, Eff. 7/16/18.**)
- 1.3. An excavated slope exceeding 40 feet (12,192 mm) in height and the top of which is within 20 feet (6096 mm) of a property line coterminous with improved private property or a public way.
- 1.4. Foundation excavations below a 1 horizontal in 1 vertical plane inward and down from the property line.

EXCEPTION: The Department may waive continuous inspection where minor areas or heights are involved and no unusual hazards exist. (**Amended by Ord. No. 185,587, Eff. 7/16/18.**)

TABLE 1705.6

REQUIRED VERIFICATION AND INSPECTION OF SOILS

VERIFICATION AND INSPECTION TASK	CONTINUOUS DURING TASK LISTED	PERIODICALLY DURING TASK LISTED
1. Verify materials below shallow foundations are adequate to achieve the design bearing capacity.	–	X
2. Verify excavations are extended to proper depth and have reached proper material.	–	X
3. Perform classification and testing of compacted fill materials.	–	X
4. Verify use of proper materials, densities and lift thicknesses during placement and compaction of compacted fill.	X ^a	–
5. Prior to placement of compacted fill, observe subgrade and verify that site has been prepared properly.	–	X
a. Frequency of special inspections to be determined by the registered design professional responsible for the project.		

91.1705.7. Driven Deep Foundations and Connecting Grade Beams. Special inspections and tests shall be performed during installation and testing of the driven deep foundation elements as specified by CBC Table 1705.7. The approved geotechnical report, required by CBC Section 1803.6 and the construction documents prepared by the registered design professionals shall be used to determine compliance. Special inspections for connecting grade beams shall be in accordance with LAMC Section 91.1705.3.

91.1705.8. Cast-in-Place Deep Foundations and Connecting Grade Beams. Special inspections and tests shall be performed during installation and testing of cast-in-place deep foundation elements as specified by CBC Table 1705.8. The approved geotechnical report, required by CBC Section 1803.6 and the construction documents prepared by the registered design professionals shall be used to determine compliance. Special inspections for connecting grade beams shall be in accordance with LAMC Section 91.1705.3.

91.1705.13.1. Structural Steel. Special inspection for seismic resistance shall be in accordance with CBC Section 1705.13.1.1 or 1705.13.1.2, as applicable and during the fabrication and erection of buildings over 160 feet (48,768 mm) in height with structural steel moment resisting frames. A registered deputy inspector shall be present during the performance of all structural welding or the installation of all high-strength bolts whether in a fabricator's shop or at the job site.

EXCEPTIONS:

1. Single-pass fillet welds not exceeding 5/16-inch (7.9 mm) in size.
2. Floor and roof deck welding.

91.1705.13.1.1.1. Certification. For buildings exceeding 160 feet (48,768 mm) in height, the engineer responsible for the structural design and the general contractor responsible for the construction, or their competent authorized representatives, shall make periodic inspections of the work at the site to verify general compliance with the approved plans, specifications and change orders. The engineer and general contractor shall submit a statement in writing to the Department stating that they know from personal knowledge that the materials installed and the structural work performed is in compliance with the approved plans, specifications and change orders.

The phrase "personal knowledge" as used above in reference to the engineer and general contractor means the knowledge resulting from the general observation by the engineer and the general supervision by the contractor of the work, as required by both in the superintendence of the building's construction, and as distinguished from the continuous personal superintendence of the special inspector and/or deputy inspector who are continuously at the site during the progress of the work. The exercise of reasonable diligence to obtain the facts is required and anyone who intentionally remains unaware may be charged with knowledge. The interpretation of personal knowledge as it applies to the special inspector and/or deputy inspector is that the inspector(s) must have actual personal knowledge that the requirements of the plans and specifications are being carried out, which is obtained by the inspector's continuous observation of the work of construction at the site in all stages of its progress.

EXCEPTION: Special inspections of structural steel in structures assigned to Seismic Design Category C that are not specifically detailed for seismic resistance, with a response modification coefficient, R , of 3 or less, excluding cantilever column systems.

91.1705.14.1. Structural Steel. Testing for structural steel shall be in accordance with the quality assurance requirements of AISC 341 and the additional requirements in this Section. Nondestructive testing shall be performed by an approved agency and the written report, including the test results, shall be submitted for evaluation by the Superintendent of Building. The acceptance criteria for nondestructive testing shall be as required in AWS D1.1 as specified by the registered design professional.

Base metal thicker than 1.5 inches (38 mm), where subject to through-thickness weld shrinkage strains, shall be ultrasonically tested for discontinuities behind and adjacent to those welds after joint completion. Any material discontinuities shall be accepted or rejected on the basis of ASTM A 435 or ASTM A 898 (Level 1 criteria) and criteria as established by the registered design professional(s) in responsible charge, and the construction documents.

91.1705.18.2. Fire-Resistant Joint Systems. Inspection of fire-resistant joint systems that are tested and listed in accordance with CBC Sections 715.3 and 715.4 shall be conducted by an approved deputy inspector in accordance with ASTM E 2393.

91.1705.19. Special Inspection for Smoke Control. Smoke control systems shall be tested by a deputy inspector.

SEC. 91.1706. DESIGN STRENGTHS OF MATERIALS.

(Added by Ord. No. 182,850, Eff. 1/3/14.)

Section 1706 of the CBC is adopted by reference, except Section 1706.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.1706.1 is added. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.1706.1. Conformance to Standards. The design strengths and permissible stresses of any structural material that are identified by a manufacturer's designation as to manufacture and grade by mill tests, or the strength and stress grade is otherwise confirmed to the satisfaction of the Superintendent of Building shall conform to the specifications and methods of design of accepted engineering practice or the approved rules in the absence of applicable standards.

SEC. 91.1710. CERTIFIED SECURITY BAR INSTALLER.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

91.1710.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A certified security bar installer may certify to the Department that any bars, grilles, grates, security roll-down shutters, or similar devices installed on required emergency escape windows or doors meet the requirements of LAMC Subsection 91.6304.3.

The Department may allow the use of a certified installer if:

1. The certified installer obtains a Certificate of Registration in accordance with the provisions of this section.
2. The certified installer files with the Department a Certificate of Compliance for each dwelling unit for which certification is being made. The Certificate of Compliance shall be on a form provided by the Department and shall be signed by the property owner and the certified installer.
3. The Certificate of Compliance processing fee is paid in accordance with LAMC Subsection 91.107.7.
4. The certified installer files the Certificate of Compliance with the Department within 15 days after completion of the installation.

91.1710.2. Registration. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A certified installer shall obtain a Certificate of Registration from the Department.

91.1710.3. Application.

91.1710.3.1. Forms. Application for a certified security bar installer Certificate of Registration shall be made on a form furnished by the Department.

91.1710.3.2. Information Necessary. The application shall bear the name and address of the applicant and, if a firm, partnership or corporation, the names of the principal officers. The application shall carry other information deemed necessary by the Department.

91.1710.3.3. Verification. The applicant shall declare that the information contained in the application is true and correct.

91.1710.3.4. Fees. The application shall be accompanied by an examination fee of \$125.00.

91.1710.4. Examination.

91.1710.4.1. Examination Required. Before any person shall be issued a Certificate of Registration, the applicant, who must be an officer in the case of a firm, partnership or corporation, shall have successfully passed the examination required for the issuance of the certificate within ninety (90) days preceding the date of the issuance.

91.1710.4.2. Experience Required. To be eligible for the examination for a Registration Certificate, the applicant shall have a valid California State Contractor's License in an appropriate specialty and a valid City Business Tax Certificate.

91.1710.4.3. Board of Examiners. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Superintendent of Building or a Board of Examiners composed of qualified person(s) appointed by the Superintendent of Building shall conduct examinations.

The results of every examination shall be subject to the approval of the Superintendent.

Each examiner shall serve at the pleasure of the Superintendent of Building and shall serve for a period of one year unless reappointed by the Superintendent of Building.

91.1710.4.4. Scope of Examination. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The examination shall, in the judgment of the Board of Examiners, fairly determine the ability of the applicant to properly perform the work, which the applicant would be authorized to do by the certificate requested, and may include the following:

1. A written test.
2. Practical tests as may be required.
3. An oral interview as may be required.
4. Other tests as may be required by the Board of Examiners.

91.1710.4.5. Time of Examination. The applicant shall be examined as soon as practicable after filing an application.

91.1710.4.6. Rules and Regulations. The Department shall have the authority to establish rules and regulations for the conduct of examinations.

91.1710.4.7. Fitness of Applicant. Any applicant for a certificate may be required to submit satisfactory proof of the applicant's fitness to carry out the intent of this Code.

91.1710.4.8. Failure to Pass. Every applicant who fails to pass an examination shall not be eligible for another examination until four (4) weeks after taking the previous examination. Any applicant who fails to pass on the third try shall not be eligible again until six (6) months after taking the previous examination.

91.1710.5. Issuance of Certificates.

91.1710.5.1. Upon the payment of a \$90 fee, the Department may issue a Certificate of Registration to every applicant who passes the required examination for a certified security bar installer.

91.1710.5.2. Renewal of Certificates. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Expired certificates may be renewed at any time within twelve (12) months following the date of expiration. However, after the first month, the renewal fee shall be increased by 10% for each subsequent month. After a certificate has been expired for one year, it may not be renewed; however, an applicant may apply for a new certificate at that time.

91.1710.6. Exhibition of Certificate.

91.1710.6.1. Every person having a fixed place of business shall keep their Certificate of Registration posted in some conspicuous location at their place of business during the time the certificate is in force.

91.1710.6.2. Every person not having a fixed place of business shall carry their Certificate of Registration with them at all times while doing any work pursuant to this certificate.

91.1710.7. Revocation of Certificate. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Any certificate may be suspended or revoked in accordance with the provisions of Article 8, Chapter IX of the LAMC.

91.1710.8. Transfer of Certificate. No certificate shall be transferable. A Certificate of Registration issued to a firm, partnership or corporation may not be transferred. The dissolution of a firm, partnership or corporation renders the certificate void.

SEC. 91.1711. PREFABRICATED CONSTRUCTION.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

91.1711.1. General.

91.1711.1.1. Purpose. The purpose of this section is to regulate materials and establish methods of safe construction where any structure or portion of the structure is wholly or partially prefabricated.

91.1711.1.2. Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Unless otherwise specifically stated in this section, all prefabricated construction and all materials used in the construction shall conform to all the requirements of this Code. (See LAMC Subdivision 91.104.2.6.)

91.1711.1.3. Definition. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

PREFABRICATED ASSEMBLY. A structural unit, the integral parts of which have been built up or assembled prior to incorporation in the building.

91.1711.2. Tests of Materials. Every approval of a material not specifically mentioned in this Code shall incorporate as a proviso, the kind and number of tests to be made during prefabrication.

91.1711.3. Tests of Assemblies. The Superintendent of Building may require special tests to be made on assemblies to determine their durability and weather resistance.

91.1711.4. Connections. See CBC Section 1611.11.1 for design requirements of connections for prefabricated assemblies.

91.1711.5. Pipes and Conduits. See CBC Section 1611.11.2 for design requirements for removal of material for pipes, conduits and other equipment.

91.1711.6. Certificate and Inspection.

91.1711.6.1. Materials. Materials and the assembly of materials shall be inspected to determine compliance with this Code. Every material shall be graded, marked or labeled where required elsewhere in this Code.

91.1711.6.2. Certificate. A Certificate of Approval shall be furnished with every prefabricated assembly, except where the assembly is readily accessible to inspection at the site. The Certificate of Approval shall certify that the assembly in question has been inspected and meets all the requirements of this Code. When mechanical equipment is installed so that it cannot be inspected at the site, the Certificate of Approval shall certify that the equipment complies with all applicable laws and regulations.

91.1711.6.3. Certifying Agency. (Amended by Ord. No. 185,587, Eff. 7/16/18.) To be acceptable under this Code, every Certificate of Approval shall be made by an approved testing agency.

91.1711.6.4. Field Erection. Placement of prefabricated assemblies at the building site shall be inspected by the Department to determine compliance with this Code.

91.1711.6.5. Continuous Inspection. If continuous inspection is required for certain materials where construction takes place on the site, it shall also be required where the same materials are used in prefabricated construction.

EXCEPTION: Continuous inspection will not be required during prefabrication if the approved testing agency certifies to the construction and furnishes evidence of compliance. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

DIVISION 18

SOILS AND FOUNDATIONS

(Title and Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section

- 91.1800 Basic Provisions.
- 91.1801 General.
- 91.1802 Design Basis.
- 91.1803 Geotechnical Investigation.
- 91.1804 Excavation, Grading and Fill.
- 91.1805 Dampproofing and Waterproofing.
- 91.1806 Presumptive Load Bearing Values of Soils.
- 91.1807 Foundation Walls, Retaining Walls, and Embedded Post and Poles.
- 91.1808 Foundations.
- 91.1809 Shallow Foundations.
 - 91.1810 Deep Foundations.

SEC. 91.1800. BASIC PROVISIONS.

Chapter 18 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.1801. GENERAL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 1801 of the CBC is adopted by reference, except Section 1801.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.1801.1 is added.

91.1801.1. Scope. The provisions of this division shall apply to building and foundation systems in those areas not subject to scour or water pressure by wind and wave action. Buildings and foundations subject to those scour or water pressure loads shall be designed in accordance with Division 16, Article 1, Chapter IX of the LAMC.

Requirements governing grading and earthwork construction, including excavation and fills, are set forth in Division 70, Article 1, Chapter IX of the LAMC.

Hillside buildings (buildings constructed on slopes steeper than 1 unit vertical in 3 units horizontal [33.3%] slope) shall comply with LAMC Subsection 91.1613.9 (seismic design provisions for hillside buildings) and this division.

SEC. 91.1802. DESIGN BASIS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 1802 of the CBC is adopted by reference.

SEC. 91.1803. GEOTECHNICAL INVESTIGATION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 1803 of the CBC is adopted by reference, except Section 1803.5.6 of the CBC is not adopted; and, in lieu, LAMC Subdivision 91.1803.5.6 is added.

91.1803.5.6. Rock Strata. Where subsurface explorations at the project site indicate variations or doubtful characteristics in the structure of the rock upon which foundations are to be constructed, a sufficient number of borings shall be made to a depth of not less than 10 feet (3048 mm) below the level of the foundations and to a depth that would allow investigation of any unsupported bedding planes or any other rock discontinuities that could influence the foundation stability to provide assurance of the soundness of the foundation bed and its load-bearing capacity.

SEC. 91.1804. EXCAVATION, GRADING AND FILL.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 1804 of the CBC is adopted by reference.

SEC. 91.1805. DAMPPROOFING AND WATERPROOFING.

(Title and Section Amended by Ord. 181,758, Eff. 8/8/11.)

Section 1805 of the CBC is adopted by reference, except Section 1805.4.3 of the CBC is not adopted; and, in lieu, LAMC Subdivision 91.1805.4.3 is added. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.1805.4.3. Drainage Discharge. The floor base and foundation perimeter drain shall discharge by gravity or mechanical means into an approved drainage system that complies with the Plumbing Code.

SEC. 91.1806. PRESUMPTIVE LOAD BEARING VALUES OF SOILS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 1806 of the CBC is adopted by reference, except Section 1806.2 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.1806.2 is added.

91.1806.2. Presumptive Load-bearing Values. The load-bearing values used in design for supporting soils near the surface shall not exceed the values specified in CBC Table 1806.2 unless data to substantiate the use of higher values are submitted and approved. Where the Department has reason to doubt the classification, strength or compressibility of the soil, the requirements of CBC Section 1803.5.2 shall be satisfied.

Presumptive load-bearing values shall apply to materials with similar physical characteristics and dispositions.

Mud, organic silt, organic clays, peat or uncertified fill shall not be assumed to have a presumptive load-bearing capacity.

SEC. 91.1807. FOUNDATION WALLS, RETAINING WALLS, AND EMBEDDED POST AND POLES.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 1807 of the CBC is adopted by reference, except Sections 1807.1.4 and 1807.1.6 the CBC are not adopted; and, in lieu, LAMC Subdivisions 91.1807.1.4 and 91.1807.1.6 are added. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.1807.1.4. Permanent Wood Foundation Systems. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Permanent wood foundation systems shall be designed and installed in accordance with AF & PA PWF and as otherwise approved by the Department. Lumber and plywood shall be treated in accordance with AWPA U1 (Commodity Specification A, Use Category 4B and Section 5.2) and shall be identified in accordance with CBC Section 2303.1.9.1. Permanent wood foundation systems shall not be used for structures assigned to Seismic Design Category D, E or F.

EXCEPTION: Accessory buildings not used for human occupancy and less than 120 square feet (11.1 m²) in area may be supported on treated wood mud sills.

91.1807.1.6. Prescriptive Design of Concrete and Masonry Foundation Walls. Concrete and masonry foundation walls that are laterally supported at the top and bottom shall be permitted to be designed and constructed in accordance with this Section. Prescriptive design of foundation walls shall not be used for structures assigned to Seismic Design Category D, E or F.

SEC. 91.1808. FOUNDATIONS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 1808 of the CBC is adopted by reference.

91.1808.7.1.1. Exception to CBC Section 1808.7.1. (Added by Ord. No. 186,488, Eff. 12/27/19.) An Exception to CBC Section 1808.7.1 is an open deck or patio not covered with a roof or other overhead structure, which shall not be considered a building for the specific application of the building clearance pursuant to CBC Section 1808.7.1 and CBC Figure 1808.7.1.

SEC. 91.1809. SHALLOW FOUNDATIONS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 1809 of the CBC is adopted by reference, except Section 1809.3, 1809.4 and 1809.12 are not adopted; and, in lieu, LAMC Subsections 91.1809.3, 91.1809.4, 91.1809.7 and 91.1809.12 are added. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.1809.3. Stepped Footing. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The top surface of footings shall be level. The bottom surface of footings shall be permitted to have a slope not exceeding one unit vertical in 10 units horizontal (10-percent slope). Footings shall be stepped where it is necessary to change the elevation of the top surface of the footing or where the surface of the ground slopes more than one unit vertical in 10 units horizontal (10-percent slope). For structures assigned to Seismic Design Category D, E or F, the stepping requirement shall also apply to the top surface of grade beams supporting walls. Footings shall be reinforced with four 1/2 inch diameter (12.7 mm) deformed reinforcing bars. Two bars shall be placed at the top and bottom of the footings as shown in LAMC Figure 1809.3.

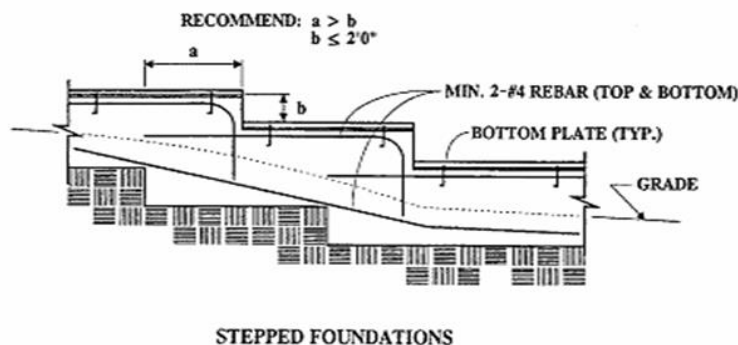


Figure 1809.3

STEPPED FOUNDATIONS

91.1809.4. Depth and Width of Footings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The minimum depth of footings below the surface of undisturbed soil, compacted fill material or CLSM shall be 12 inches (305 mm). Where applicable, the requirements of CBC Section 1809.5 shall also be satisfied. The minimum width of footings shall be 12 inches (305 mm).

91.1809.7. Prescriptive Footings for Light-Frame Construction. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Where a specific design is not provided, concrete or masonry-unit footings supporting walls of light-frame construction shall be permitted to be designed in accordance with LAMC Table 1809.7. Prescriptive footings in LAMC Table 1809.7 shall not exceed one story above grade plane for structures assigned to Seismic Design Category D, E or F.

TABLE 1809.7

PREScriptive FOOTINGS SUPPORTING WALLS OF LIGHT-FRAMED CONSTRUCTION^{a, b, c, d, e}

NUMBER OF FLOORS SUPPORTED BY THE FOOTING ^f	WIDTH OF FOOTING (inches)	THICKNESS OF FOOTING (inches)
1	12	6
2	15	6
3	18	8 ^g

For SI: one inch = 25.4 mm, one foot = 304.8 mm

- Depth of footings shall be in accordance with CBC Section 1809.4.
- The ground under the floor is permitted to be excavated to the elevation of the top of the footing.
- Not adopted.
- See CBC Section 1908 for additional requirements for footings of structures assigned to Seismic Design Category C, D, E or F.
- For thickness of foundation walls, see LAMC Subdivision 91.1807.1.6.
- Footings are permitted to support a roof in addition to the stipulated number of floors. Footings supporting roof only shall be as required for supporting one floor.

91.1809.12. Timber Footings. Timber footings shall be permitted for buildings of Type V construction and as otherwise approved by the Department. Such footings shall be treated in accordance with AWP A U1 (Commodity Specification A, Use Category 4B). Treated timbers are not required where placed entirely below permanent water level, or where used as capping for wood piles that project above the water level over submerged or marsh lands. The compressive stresses perpendicular to grain in untreated timber footings supported upon treated piles shall not exceed 70 percent of the allowable stresses for the species and grade of timber as specified in the AF&PA NDS. Timber footings shall not be used in structures assigned to Seismic Design Category D, E or F.

SEC. 91.1810. DEEP FOUNDATIONS. (Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 1810 of the CBC is adopted by reference, except Sections 1810.3.1.5, 1810.3.2.4, 1810.3.3.1.4, and 1810.3.10.4 of the CBC are not adopted; and, in lieu, LAMC Paragraphs 91.1810.3.1.5, 91.1810.3.2.4, 91.1810.3.3.1.4, 91.1810.3.10.4, and Subdivision 91.1810.4.8 are added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.1810.3.1.5. Helical Piles. Helical piles shall be designed and manufactured in accordance with accepted engineering practice to resist all stresses induced by installation into the ground and service loads. Helical piles shall not be used for support of new structures. Helical piles may be used to underpin foundations of existing structures or retrofit or remediate deficient foundations of existing structures. Helical piles shall not be used to resist any horizontal loads.

91.1810.3.2.4. Timber. Timber deep foundation elements shall be designed as piles or poles in accordance with AF&PA NDS. Round timber elements shall conform to ASTM D 25. Sawn timber elements shall conform to DOC PS-20. Timber shall not be used in structures assigned to Seismic Design Category D, E or F.

91.1810.3.3.1.4. Allowable Frictional Resistance. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The assumed frictional resistance developed by any uncased cast-in-place deep foundation element shall not exceed one-sixth (1/6) of the bearing value of the soil material at minimum depth as set forth in CBC Table 1806.2, up to a maximum of 500 psf (24 kPa), unless a greater value is allowed by the Department on the basis of a geotechnical investigation as specified in LAMC Section 91.1803 or a greater value is substantiated by a load test in accordance with CBC Section 1810.3.3.1.2. Frictional resistance and bearing resistance shall not be assumed to act simultaneously.

91.1810.3.10.4. Seismic Reinforcement. (Amended by Ord. No. 185,587, Eff. 7/16/18.) For structures assigned to Seismic Design Category C, a permanent steel casing shall be provided from the top of the micropile down to the point of zero curvature. For structures assigned to Seismic Design Category D, E or F, the micropile shall be considered as an alternative system in accordance with LAMC Subdivision 91.104.2.6. The alternative system design, supporting documentation and test data shall be submitted to the Department for review and approval.

91.1810.4.8. Hollow-stem Augered, Cast-in-Place Elements. An indicator pile program shall be performed to confirm the installation procedure and to determine the pile capacity by static load testing. Upon completion of the pile load testing, at least one test pile shall be entirely exhumed to examine the pile integrity. Prior to the installation of production piles, the results of the testing, and confirmation or revision to the pile capacity shall be determined. Where concrete or grout is placed by pumping through a hollow-stem auger, the auger shall be permitted to rotate in a clockwise direction during withdrawal. As the auger is withdrawn at a steady rate or in increments not to exceed 1 foot (305 mm), concreting or grouting pumping pressures shall be measured and maintained high enough at all times to offset hydrostatic and lateral earth pressures. Concrete or grout volumes shall be measured to ensure that the volume of concrete or grout placed in each element is equal to or greater than the theoretical volume of the hole created by the auger. Where the installation process of any element is interrupted or a loss of concreting or grouting pressure occurs, the element shall be redrilled to 5 feet (1524 mm) below the elevation of the tip of the auger when the installation was interrupted or concrete or grout pressure was lost and reformed. Augered cast-in-place elements shall not be installed within six diameters center to center of an element filled with concrete or grout less than 12 hours old, unless approved by the building official. If the concrete or grout level in any completed element drops due to installation of an adjacent element, the element shall be replaced.

DIVISION 19

CONCRETE

(Division Amended by Ord. No. 181,758, Eff. 8/8/11.)

Section
91.1900 Basic Provisions.

SEC. 91.1900. BASIC PROVISIONS. (Amended by Ord. No. 186,488, Eff. 12/27/19.)

Chapter 19 of the CBC is adopted by reference, except that CBC Sections 1905.1, 1905.1.7, and 1906.1 are not adopted; and, in lieu, LAMC Subsections 91.1905.1, 91.1905.1.7, 91.1905.1.9, 91.1905.1.10, 91.1905.1.11, 91.1905.1.12, 91.1906, and 91.1906.1 are added. **(Amended by Ord. No. 188,739, Eff. 9/23/25.)**

91.1905.1. General. The text of ACI 318 shall be modified as indicated in CBC Sections 1905.1.1 through 1905.1.8 and as modified by the LAMC.

91.1905.1.7. ACI 318, Section 14.1.4. Delete ACI 318, Section 14.1.4, and replace with the following:

14.1.4 - Plain concrete in structures assigned to Seismic Design Category C, D, E or F.

14.1.4.1 - Structures assigned to Seismic Design Category C, D, E or F shall not have elements of structural plain concrete, except as follows:

- (a) Concrete used for fill with a minimum cement content of two (2) sacks of Portland cement per cubic yard.
- (b) Isolated footings of plain concrete supporting pedestals or columns are permitted, provided the projection of the footing beyond the face of the supported member does not exceed the footing thickness.
- (c) Plain concrete footings supporting walls are permitted provided the footings have at least two continuous longitudinal reinforcing bars. Bars shall not be smaller than No. 4 and shall have a total area of not less than .002 times the gross cross-sectional area of the footing. A minimum of one bar shall be provided at the top and bottom of the footing. Continuity of reinforcement shall be provided at corners and intersections.

EXCEPTION: In detached one- and two-family dwellings three stories or less in height and constructed with stud-bearing walls, plain concrete footings with at least two continuous longitudinal reinforcement bars not smaller than No. 4 are permitted to have a total area of less than .002 times the gross cross-sectional area of the footing.

91.1905.1.9. ACI 318, Section 18.7.5. Modify ACI 318, Section 18.7.5 by adding Section 18.7.5.8 to read as follows:

18.7.5.8 - Where the calculated point of contraflexure is not within the middle half of the member clear height, provide transverse reinforcement as specified in ACI 318 Section 18.7.5.1 Items (a) through (c), over the full height of the member.

91.1905.1.10. ACI 318, Section 18.7.5. Modify ACI 318, Section 18.7.5, by adding Section 18.7.5.9 to read as follows: **(Amended by Ord. No. 188,739, Eff. 9/23/25)**

18.7.5.9 - At any section where the design strength, ϕP_n , of the column is less than the sum of the shears V_e computed in accordance with ACI 318 Sections 18.6.5.1 and 18.7.6.1.1 for all the beams framing into the column above the level under consideration, transverse reinforcement as specified in ACI 318 Sections 18.7.5.1 through 18.7.5.3 shall be provided. For beams framing into opposite sides of the column, the moment components may be assumed to be of opposite sign. For determination of the design strength, ϕP_n , of the column, these moments may be assumed to result from the deformation of the frame in any one principal axis.

91.1905.1.11. ACI 318, Section 18.10.4. Modify ACI 318, Section 18.10.4, by adding Section 18.10.4.6 to read as follows:

18.10.4.6 - Walls and portions of walls with $P_u > 0.35P_o$ shall not be considered to contribute to the calculated strength of the structure for resisting earthquake-induced forces. Such walls shall conform to the requirements of ACI 318, Section 18.14 for wall piers.

91.1905.1.12. ACI 318, Section 18.12.6. Modify ACI 318, Section 18.12.6, by adding Section 18.12.6.2 to read as follows:

18.12.6.2 - Collector and boundary elements in topping slabs placed over precast floor and roof elements shall not be less than 3 inches (76 mm) or $6d_b$ thick, where d_b is the diameter of the largest reinforcement in the topping slab. [CBC Section 1909.3.5]

91.1906. Footings for Light-Frame Construction. (Added by Ord. No. 187,719, Eff. 1/23/23.)

91.1906.1. Plain Concrete Footings. (Amended by Ord. No. 187,719, Eff. 1/23/23.) The design and construction of structural plain concrete, both cast-in-place and precast, shall comply with the minimum requirements of ACI 318, as modified in CBC Section 1905.

EXCEPTION: For Group R-3 occupancies and buildings of other occupancies less than two stories above grade plane of light-frame construction, the required footing thickness of ACI 318 is permitted to be reduced to 6 inches (152 mm), provided that the footing does not extend more than 4 inches (102 mm) on either side of the supported wall. This exception shall not apply to structural elements designed to resist seismic lateral forces for structures assigned to Seismic Design Category D, E, or F.

DIVISION 20

ALUMINUM

(Division Title Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.2000 Basic Provisions.

SEC. 91.2000. BASIC PROVISIONS.

Chapter 20 of the CBC is hereby adopted by reference.

DIVISION 21

MASONRY

(Division Amended by Ord. No. 181,758, Eff. 8/8/11.)

Section
91.2100 Basic Provisions.
91.2113 Masonry Chimneys.

SEC. 91.2100. BASIC PROVISIONS.

Chapter 21 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.2113. MASONRY CHIMNEYS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 2113 of the CBC is adopted by reference, except Section 2113.3 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.2113.3 is added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.2113.3. Seismic Reinforcing. Masonry chimneys shall be constructed, anchored, supported and reinforced as required in this division. In structures assigned to Seismic Design Category C or D, masonry chimneys shall be reinforced and anchored as detailed in CBC Sections 2113.3.1, 2113.3.2 and 2113.4. In structures assigned to Seismic Design Category A or B, reinforcement and seismic anchorage is not required. In structures assigned to Seismic Design Category E or F, masonry chimneys shall be reinforced in accordance with the requirements of CBC Sections 2101 through 2108 and anchored in accordance with CBC Section 2113.4. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

DIVISION 22

STEEL

(Division Amended by Ord. No. 181,758, Eff. 8/8/11.)

Section
91.2200 Basic Provisions.
91.2204 Connections.

SEC. 91.2200. BASIC PROVISIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Chapter 22 of the CBC is adopted by reference, except that Section 2204.1 of the CBC is modified, and LAMC Subsections 91.2204.1 and 91.2205.3 are added.

SEC. 91.2204. CONNECTIONS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

91.2204.1. Welding. The details of design, work quality and technique for welding, inspection of welding and qualification of welding operators shall conform to the requirements listed in CBC Sections 2205, 2206, 2207, 2208, 2209, 2210 and 2211. Special inspection of welding shall be provided where required by CBC Section 1705. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

All welding, except when performed at the shop of an approved fabricator, shall be done by operators certified by the Department for the type of operation involved in accordance with the provisions of CBC Section 1705.2.2.1.

Complete details of location, type, size and amount of all welds shall be clearly shown on the plans. Where symbols are used on the plans, they shall be the "Standard Welding Symbols," AWS A 2.4, of the American Welding Society (AWS). When it is necessary to use a special erection sequence of welding to minimize locked-up stresses or distortion, the Department may require the erection sequence of welding to be shown on the plans.

Welding procedures are qualified if they are in accordance with the AWS. Other welding procedures require special qualification approval by the Department. Each application for a special qualification shall be accompanied by a fee of \$50.00.

91.2205.3. Modifications to AISC 341, Section F2.5, Members, Special Concentrically Braced Frames (SCBF) Modifications. AISC 341, Section F2.5b. is modified to add a new requirement as follows:

Section F2.5b(4) - The use of rectangular HSS are not permitted for bracing members, unless filled solid with cement grout having a minimum compressive strength of 3000 psi (20.7 MPa) at 28 days. The effects of composite action in the filled composite brace shall be considered in the sectional properties of the system where it results in the more severe loading condition or detailing.

DIVISION 23

WOOD

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.2300 Basic Provisions.
91.2301 General.

91.2304 General Construction Requirements.
91.2305 General Design Requirements for Lateral Force-Resisting System.
91.2306 Allowable Stress Design.

SEC. 91.2300. BASIC PROVISIONS.

Chapter 23 of the CBC is hereby adopted by reference with the following exceptions, modifications and additions:

SEC. 91.2301. GENERAL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 2301 of the CBC is adopted by reference, except Section 2301.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.2301.1 is added.

91.2301.1. Scope. The provisions of this division shall govern the materials, design, construction and quality of wood members and their fasteners.

Hillside buildings (buildings constructed upon slopes steeper than one unit vertical in three units horizontal [33.3% slope]) shall comply with LAMC Subsection 91.1613.9 (seismic design provisions for hillside buildings) and this division.

SEC. 91.2304. GENERAL CONSTRUCTION REQUIREMENTS.

(Amended by Ord. No. 188,739, Eff. 9/23/25.)

Section 2304 of the CBC is adopted by reference, except Section 2304.10.2 and 2304.12.2.8 of the CBC are not adopted; and, in lieu, LAMC Subsections 91.2304.10.2 and 91.2304.12.2.8 are added.

91.2304.10.2. Fastener Requirements. Connections for wood members shall be designed in accordance with the appropriate methodology in CBC Section 2302.1. The number and size of fasteners connecting wood members shall not be less than that set forth in Table 2304.10.2. Staple fasteners in Table 2304.10.2 shall not be used to resist or transfer seismic forces in structure assigned to Seismic Design Category D, E, or F.

EXCEPTION: Staples may be used to resist or transfer seismic forces when the allowable shear values are substantiated by cyclic testing and approved by the Superintendent of Building.

91.2304.12.2.8. Wood Used In Retaining Walls and Cribs. Wood installed in retaining or crib walls shall be preservative treated in accordance with AWP A U1 (Commodity Specifications A or F) for soil and fresh water use. Wood shall not be used in retaining walls or cribs for structures assigned to Seismic Design Category D, E or F.

SEC. 91.2305. GENERAL DESIGN REQUIREMENTS FOR LATERAL FORCE-RESISTING SYSTEM.

(Amended by Ord. 181,758, Eff. 8/8/11.)

Section 2305 of the CBC is adopted by reference, except that LAMC Subsections 91.2305.4 and 91.2305.5 are added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.2305.4. Quality of Nails. In Seismic Design Category D, E or F, mechanically driven nails used in wood structural panel shear walls shall meet the same dimensions as that required for hand-driven nails, including diameter, minimum length and minimum head diameter. Clipped head or box nails are not permitted in new construction. The allowable design value for clipped head nails in existing construction may be taken at no more than the nail-head-area ratio of that of the same size hand-driven nails.

91.2305.5. Hold-down Connectors. In Seismic Design Category D, E or F, hold-down connectors shall be designed to resist shear wall overturning moments using approved cyclic load values or 75 percent of the allowable seismic load values that do not consider cyclic loading of the product. Connector bolts into wood framing shall require steel plate washers on the post on the opposite side of the anchorage device. Plate size shall be a minimum of 0.229 inch by 3 inches by 3 inches (5.82 mm by 76 mm by 76 mm) in size. Hold-down connectors shall be finger tight and ½ turn just prior to covering the wall framing.

SEC. 91.2306. ALLOWABLE STRESS DESIGN.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section 2306 of the CBC is adopted by reference, except that Sections 2306.2 and 2306.3 of the CBC are not adopted; and, in lieu, LAMC Subsections 91.2306.2, 91.2306.3, and 91.2306.4 are added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.2306.2. Wood-Frame Diaphragms. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** Wood-frame diaphragms shall be designed and constructed in accordance with AWC SDPWS. Where panels are fastened to framing members with staples, requirements and limitations of AWC DPWS shall be met and the allowable shear values set forth in CBC Table 2306.2(1) or 2306.2(2) shall only be permitted for structures assigned to Seismic Design Category A, B or C.

EXCEPTION: Allowable shear values where panels are fastened to framing members with staples may be used if such values are substantiated by cyclic testing and approved by the building official.

The allowable shear values of CBC Tables 2306.2(1) and 2306.2(2) are permitted to be increased 40% for wind design.

Wood structural panel diaphragms used to resist seismic forces in structures assigned to Seismic Design Category D, E or F shall be applied directly to the framing members.

EXCEPTION: Wood structural panel diaphragm is permitted to be fastened over solid lumber planking or laminated decking, provided the panel joints and lumber planking or laminated decking joints do not coincide.

91.2306.3. Wood-Frame Shear Walls. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)** Wood-frame shear walls shall be designed and constructed in accordance with AWC SDPWS. For structures assigned to Seismic Design Category D, E, or F, application of Tables 4.3A and 4.3B of AWC SDPWS shall include the following:

1. Wood structural panel thickness for shear walls shall not be less than 3/8 inch (9.525 mm) thick, and studs shall not be spaced at more than 16 inches (406.4 mm) on center.
2. The maximum nominal unit shear capacities for three-ply plywood resisting seismic forces in structures assigned to Seismic Design Category D, E or F is 400 pounds per linear foot (plf) (181.43 kg per meter).
3. Where shear design values using allowable stress design (ASD) exceed 350 plf or load and resistance factor design (LRFD) exceed 500 plf, all framing members receiving edge nailing from abutting panels shall not be less than a single 3 inch (76.19 mm) nominal member, or two 2 inch (50.8 mm) nominal members fastened together in accordance with CBC Section 2306.1 to transfer the design shear value between framing members. Wood structural panel joint and sill plate nailing shall be staggered at all panel edges. See Sections 4.3.6.1 and 4.3.6.4.3 of AWC SDPWS for sill plate size and anchorage requirements.

4. Nails shall be placed not less than 1/2 inch (12.7 mm) in from the panel edges and not less than 3/8 inch (9.525 mm) from the edge of the connecting members for shear greater than 350 plf using ASD or 500 plf using LRFD. Nails shall be placed not less than 3/8 inch (9.525 mm) from panel edges and not less than 1/4 inch (6.35 mm) from the edge of the connecting members for shears of 350 plf or less using ASD or 500 plf or less using LRFD.

5. Table 4.3B of AWC SDPWS application is not allowed for structures assigned to Seismic design category D, E or F.

For structures assigned to Seismic Design Category D, Application of Table 4.3C of AWC SDPWS shall not be used below the top level in a multi-level building for structures.

Where panels are fastened to framing members with staples, requirements and limitations of AWC SDPWS shall be met and the allowable shear values set forth in CBC Tables 2306.3(1), 2306.3(2) or 2306.3(3) shall only be permitted for structures assigned to Seismic Design Category A, B or C.

EXCEPTION: Where panels are fastened to framing members with staples, allowable shear values may be used if such values are substantiated by cyclic testing and approved by the Superintendent of Building.

The allowable shear values in CBC Tables 2306.3(1) and 2306.3(2) are permitted to be increased 40% for wind design. Panels complying with ANSI/APA PRP-210 shall be permitted to use design values for Plywood Siding in the AWC SDPWS.

91.2306.4. Shear Walls Sheathed with Other Materials. Shear walls sheathed with Portland cement plaster, gypsum lath, gypsum sheathing or gypsum board shall be designed and constructed in accordance with AWC SDPWS. Shear walls sheathed with these materials are permitted to resist horizontal forces using the allowable shear capacities set forth in CBC Table 2306.3(3). Shear walls sheathed with Portland cement plaster, gypsum lath, gypsum sheathing or gypsum board shall not be used to resist seismic forces in structures assigned to Seismic Design Category E or F. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

Shear walls sheathed with lath, plaster or gypsum board shall not be used below the top level in a multi-level building for structures assigned to Seismic Design Category D.

SEC. 91.2308. CONVENTIONAL LIGHT-FRAME CONSTRUCTION. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

Section 2308 of the CBC is adopted by reference, except Sections 2308.6.1, 2308.6.5.1, 2308.6.5.2, 2308.6.8.1, 2308.6.9, 2308.6.10.2 and Table 2308.6.1 are not adopted; and, in lieu, LAMC Subdivisions and Paragraphs 91.2308.6.1, 91.2308.6.5.1, 91.2308.6.5.2, 91.2308.6.8.1, 91.2308.6.9, 91.2308.6.10.2, and LAMC Table 2308.6.1 are added.

91.2308.6.1. Braced Wall Lines. For the purpose of determining the amount and location of bracing required along each story level of a building, braced wall lines shall be designated as straight lines through the building plan in both the longitudinal and traverse direction and placed in accordance with LAMC Table 2308.6.1 and CBC Figure 2308.6.1. Braced wall line spacing shall not exceed the distance specified in LAMC Table 2308.6.1. In structures assigned to Seismic Design Category D or E, braced wall lines shall intersect perpendicularly to each other.

Wall framing to which sheathing used for bracing is applied shall be nominal 2 inch wide [actual 1-1/2 inch (38 mm)] or larger members. Braced wall panel construction types shall not be mixed within a braced wall line. Braced wall panels required by LAMC Section 91.2308.6.1 may be eliminated when all of the following requirements are met:

- One story detached Group U occupancies are not more than 25 feet (7.62 m) in depth or length.
- The roof and three enclosing walls are solid sheathed with 1/2 inch (12.7 mm) nominal thickness wood structural panels with 8d common nails placed 3/8 inches (9.525 mm) from panel edges and spaced not more than 6 inches (152.4 mm) on center along all panel edges and 12 inches (304.8 mm) on center along intermediate framing members. Wall openings for doors or windows are permitted provided a minimum 4 foot (1219.2 mm) wide wood structural braced panel with a minimum height to length ratio of 2 to 1 is provided at each end of the wall line and that the wall line be sheathed for 50% of its length.

Cripple walls bracing in Seismic Design Categories D and E shall be constructed in accordance with CBC Section 2308.6.6.2.

TABLE 2308.6.1^a

WALL BRACING REQUIREMENTS

SEISMIC DESIGN CATEGORY	STORY CONDITION (SEE SECTION 2308.2)	MAXIMUM SPACING OF BRACED WALL LINES	BRACED PANEL LOCATION, SPACING (O.C.) AND MINIMUM PERCENTAGE (X)			MAXIMUM DISTANCE OF BRACED WALL PANELS FROM EACH END OF BRACED WALL LINE
			Bracing method ^b			
			LIB	DWB, WSP	SFB, PBS, PCP, HPS, Gb ^{c,d}	
SEISMIC DESIGN CATEGORY	STORY CONDITION (SEE SECTION 2308.2)	MAXIMUM SPACING OF BRACED WALL LINES	BRACED PANEL LOCATION, SPACING (O.C.) AND MINIMUM PERCENTAGE (X)			MAXIMUM DISTANCE OF BRACED WALL PANELS FROM EACH END OF BRACED WALL LINE
			Bracing method ^b			
			LIB	DWB, WSP	SFB, PBS, PCP, HPS, Gb ^{c,d}	
A and B		35'-0"	Each end and ≤ 25'-0" o.c.	Each end and ≤ 25'-0" o.c.	Each end and ≤ 25'-0" o.c.	12'-6"
		35'-0"	Each end and ≤ 25'-0" o.c.	Each end and ≤ 25'-0" o.c.	Each end and ≤ 25'-0" o.c.	12'-6"
		35'-0"	NP	Each end and ≤ 25'-0" o.c.	Each end and ≤ 25'-0" o.c.	12'-6"
c		35'-0"	NP	Each end and ≤ 25'-0" o.c.	Each end and ≤ 25'-0" o.c.	12'-6"
		35'-0"	NP	Each end and ≤ 25'-0" o.c. (minimum 25% of wall length) ^e	Each end and ≤ 25'-0" o.c. (minimum 25% of wall length) ^e	12'-6"
D and E		25'-0"	NP	S _{DS} < 0.50: Each end and 25'-0" o.c. (minimum 21% of wall length) ^{e,f,g,h}	S _{DS} < 0.50: Each end and 25'-0" o.c. (minimum 43% of wall length) ^{e,f,g,h}	8'-0"
				0.50 ≤ S _{DS} < 0.75: Each end and 25'-0" o.c. (minimum 32% of wall length) ^{e,f,g,h}	0.50 ≤ S _{DS} < 0.75: Each end and 25'-0" o.c. (minimum 59% of wall length) ^{e,f,g,h}	

				$0.75 \leq S_{DS} \leq 1.00$: Each end and 25'-0" o.c. (minimum 37% of wall length) ^{e,f,g,h}	$0.75 \leq S_{DS} \leq 1.00$: Each end and 25'-0" o.c. (minimum 75% of wall length) ^{e,f,g,h}
				$S_{DS} > 1.00$: Each end and 25'-0" o.c. (minimum 48% of wall length) ^{e,f,g,h}	$S_{DS} > 1.00$: Each end and 25'-0" o.c. (minimum 100% of wall length) ^{e,f,g,h}

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

NP = Not Permitted.

- This table specifies minimum requirements for braced wall panels along interior or exterior braced wall lines.
- See Section 2308.6.3 for full description of bracing methods.
- For Method GB, gypsum wallboard applied to framing supports that are spaced at 16 inches on center.
- The required lengths shall be doubled for gypsum board applied to only one face of a braced wall panel.
- Percentage shown represents the minimum amount of bracing required along the building length (or wall length if the structure has an irregular shape).
- Minimum length of panel bracing of one face of the wall for WSP sheathing shall be at least 4'-0" long or both faces of the wall for GB sheathing shall be at least 8'-0" long; h/w ratio shall not exceed 2:1. For WSP panel bracing of the same material on two faces of the wall, the minimum length is permitted to be one-half of the tabulated value, but the h/w ratio shall not exceed 2:1 and design for uplift is required. The 2:1 h/w ratio limitation does not apply to alternate braced wall panels constructed in accordance with Section 2308.6.5.1 or 2308.6.5.2.
- Nailing as specified below shall occur at all panel edges at studs, at top and bottom plates and, where occurring, at blocking:
 - For 1/2-inch gypsum board, 5d (0.113-inch diameter) cooler nails at 7 inches on center;
 - For 5/8-inch gypsum board, No. 11 gage (0.120-inch diameter) at 7 inches on center;
 - For gypsum sheathing board, 1-3/4 inches long by 7/16-inch head, diamond point galvanized nails at 4 inches on center;
 - For gypsum lath, No. 13 gage (0.092 inch) by 1-1/8 inches long, 19/64-inch head, plasterboard at 5 inches on center; and
 - For Portland cement plaster, No. 11 gage (0.120 inch) by 1-1/2 inches long, 7/16-inch head at 6 inches on center.
- WSP sheathing shall be a minimum of 15/32" thick nailed with 8d common placed 3/8 inch from panel edges and spaced not more than 6 inches on center and 12 inches on center along intermediate framing members.

91.2308.6.5.1. Alternate Braced Wall (ABW). (Amended by Ord. No. 187,719, Eff. 1/23/23.) An ABW shall be constructed in accordance with this Section and CBC Figure 2308.6.5.1. In one-story buildings, each panel shall have a length of not less than 2 feet 8 inches (813 mm) and a height of not more than 10 feet (3048 mm). Each panel shall be sheathed on one face with 15/32 inch (11.9 mm) minimum-thickness wood structural panel sheathing nailed with 8d common or galvanized box nails in accordance with CBC Table 2304.10.2 and blocked at wood structural panel edges. Two anchor bolts installed in accordance with CBC Section 2308.3.1 shall be provided in each panel. Anchor bolts shall be placed at each panel outside quarter points. Each panel end stud shall have a hold-down device fastened to the foundation, capable of providing an approved uplift capacity of not less than 1,800 pounds (8006 N). The hold-down device shall be installed in accordance with the manufacturer's recommendations. The ABW shall be supported directly on a foundation, or on floor framing supported directly on a foundation that is continuous across the entire length of the braced wall line. This foundation shall be reinforced with not less than one No. 4 bar top and bottom. Where the continuous foundation is required to have a depth greater than 12 inches (305 mm), a minimum 12 inch by 12 inch (305 mm by 305 mm) continuous footing or turned-down slab edge is permitted at door openings in the braced wall line. This continuous footing or turned-down slab edge shall be reinforced with not less than one No. 4 bar top and bottom. This reinforcement shall be lapped 15 inches (381 mm) with the reinforcement required in the continuous foundation located directly under the braced wall line.

Where the ABW is installed at the first story of a two-story building, the wood structural panel sheathing shall be provided on both faces, three anchor bolts shall be placed at one-quarter points, and tie-down device uplift capacity shall be not less than 3,000 pounds (13 344 N).

91.2308.6.5.2. Portal Frame with Hold-downs (PFH). (Amended by Ord. No. 187,719, Eff. 1/23/23.) A PFH shall be constructed in accordance with this section and CBC Figure 2308.6.5.2. The adjacent door or window opening shall have a full-length header.

In one-story buildings, each panel shall have a length of not less than 16 inches (406 mm) and a height of not more than 10 feet (3048 mm). Each panel shall be sheathed on one face with a single layer of 15/32 inch (11.9 mm) minimum-thickness wood structural panel sheathing nailed with 8d common or galvanized box nails in accordance with CBC Figure 2308.6.5.2. The wood structural pane sheathing shall extend up over the solid sawn or glued-laminated header and shall be nailed in accordance with CBC Figure 2308.6.5.2. A built-up header consisting of at least two 2 inch by 12 inch (51 mm by 305 mm) boards, fastened in accordance with Item 24 of CBC Table 2304.10.2 shall be permitted to be used. A spacer, if used, shall be placed on the side of the built-up beam opposite the wood structural panel sheathing. The header shall extend between the inside faces of the first full-length outer studs of each panel. The clear span of the header between the inner studs of each panel shall be not less than 6 feet (1829 mm) and not more than 18 feet (5486 mm) in length. A strap with an uplift capacity of not less than 1,000 pounds (4400 N) shall fasten the header to the inner studs opposite the sheathing. One anchor bolt not less than 5/8 inch (15.9 mm) in diameter and installed in accordance with CBC Section 2308.3.1 shall be provided in the center of each sill plate. The studs at each end of the panel shall have a hold-down device fastened to the foundation with an uplift capacity of not less than 3,500 pounds (15 570 N).

Where a panel is located on one side of the opening, the header shall extend between the inside face of the first full-length stud of the panel and the bearing studs at the other end of the opening. A strap with an uplift capacity of not less than 1,000 pounds (4400 N) shall fasten the header to the bearing studs. The bearing studs shall also have a hold-down device fastened to the foundation with an uplift capacity of not less than 1,000 pounds (4400 N). The hold-down devices shall be an embedded strap type, installed in accordance with the manufacturer's recommendations. The PFH panels shall be supported directly on a foundation that is continuous across the entire length of the braced wall line. This foundation shall be reinforced with not less than one No. 4 bar top and bottom. Where the continuous foundation is required to have a depth greater than 12 inches (305 mm), a minimum 12 inch by 12 inch (305 mm by 305 mm) continuous footing or turned-down slab edge is permitted at door openings in the braced wall line. This continuous footing or turned-down slab edge shall be reinforced with not less than one No. 4 bar top and bottom. This reinforcement shall be lapped not less than 15 inches (381 mm) with the reinforcement required in the continuous foundation located directly under the braced wall line.

Where a PFH is installed at the first story of a two-story building, each panel shall have a length of not less than 24 inches (610 mm).

91.2308.6.8.1. Foundation Requirements. Braced wall lines shall be supported by continuous foundations.

EXCEPTION: For structures with a maximum plan dimension not over 50 feet (15.24 m), continuous foundations are required at exterior walls only for structures not assigned to Seismic Design Category D, E or F.

For structures in Seismic Design Categories D and E, exterior braced wall panels shall be in the same plane vertically with the foundation or the portion of the structure containing the offset shall be designed in accordance with accepted engineering practice and CBC Section 2308.1.1.

EXCEPTIONS:

- Exterior braced wall panels shall be permitted to be located not more than 4 feet (1219 mm) from the foundation below where supported by a floor constructed in accordance with all of the following:

- 1.1. Cantilevers or setbacks shall not exceed four times the nominal depth of the floor joists.
- 1.2. Floor joists shall be 2 inches by 10 inches (51 mm by 254 mm) or larger, and spaced not more than 16 inches (406 mm) on center.
- 1.3. The ratio of the back span to the cantilever shall be not less than 2 to 1.

1.4. Floor joists at ends of braced wall panels shall be doubled.

1.5. A continuous rim joist shall be connected to the ends of cantilevered joists. The rim joist is permitted to be spliced using a metal tie not less than 0.058 inch (1.47 mm) (16 galvanized gage) and 1-1/2 inches (38 mm) in width fastened with six 16d common nails on each side. The metal tie shall have a yield stress not less than 33,000 psi (227 MPa).

1.6. Joists at setbacks or the end of cantilevered joists shall not carry gravity loads from more than a single story having uniform wall and roof loads nor carry the reactions from headers having a span of 8 feet (2438 mm) or more.

2. The end of a required braced wall panel shall be allowed to extend not more than 1 foot (305 mm) over an opening in the wall below. This requirement is applicable to braced wall panels offset in plane and braced wall panels offset out of plane, as permitted by Exception 1. Braced wall panels are permitted to extend over an opening not more than 8 feet (2438 mm) in width where the header is a 4 inch by 12 inch (102 mm by 305 mm) or larger member.

91.2308.6.9. Attachment of Sheathing. (Amended by Ord. No. 187,719, Eff. 1/23/23.) Fastening of braced wall panel sheathing shall not be less than that prescribed in LAMC Table 2308.6.1 and CBC Table 2304.10.2. Wall sheathing shall not be attached to framing members by adhesives.

Staple fasteners in CBC Table 2304.10.2 shall not be used to resist or transfer seismic forces in structures assigned to Seismic Design Category D, E, or F.

EXCEPTION: Staples may be used to resist or transfer seismic forces when the allowable shear values are substantiated by cyclic testing and approved by the Superintendent of Building.

All braced wall panels shall extend to the roof sheathing and shall be attached to parallel roof rafters or blocking above with framing clips (18 gauge minimum) spaced at maximum 24 inches (6096 mm) on center four 8d nails per leg (total 8d nails per clip). Braced wall panels shall be laterally braced at each top corner and at maximum 24 inch (6096 mm) intervals along the top plate of discontinuous vertical framing.

91.2308.6.10.2. Limitations of concrete or masonry in Seismic Design Categories D and E. In seismic Design Categories D and E, concrete or masonry walls and stone or masonry veneer shall not extend above a basement.

EXCEPTION: In structures assigned to Seismic Design Category D, stone and masonry veneer is permitted to be used in the first story above grade plane, provided the following criteria are met:

1. The type of brace in accordance with LAMC Subdivision 91.2308.6.1 shall be WSP, and the allowable shear capacity in accordance with LAMC Section 91.2306.3 shall be not less than 350 plf (5108 N/m).
2. The braced wall panels in the first story shall be located at each end of the braced wall line and not more than 25 feet (7620 mm) on center, and the total length of braced wall panels shall be not less than 45% of the braced wall line length.
3. Hold-down connectors shall be provided at the ends of braced walls for the first floor to foundation with an allowable capacity of 2,100 pounds (9341 N).
4. Cripple walls shall not be permitted.
5. Anchored masonry and stone wall veneer not exceeding 5 inches (127 mm) in thickness shall conform to the requirements of Division 14, Article 1, Chapter IX of the Los Angeles Municipal Code and shall not extend more than 5 feet (1524 mm) above the first-story finished floor.

DIVISION 24

GLASS AND GLAZING

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.2400 Basic Provisions.

SEC. 91.2400. BASIC PROVISIONS.

Chapter 24 of the CBC is adopted by reference.

DIVISION 25

GYPSUM BOARD AND PLASTER

(Division Amended by Ord. No. 181,758, Eff. 8/8/11.)

Section
91.2503 Inspections.

SEC. 91.2503. INSPECTIONS. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 2503 of the CBC is adopted by reference, CBC Section 2503.1 is not adopted; and, in lieu, LAMC Subsection 91.2503.1 is added.

91.2503.1. Inspection. Lath and gypsum board shall be inspected in accordance with LAMC Subsection 91.108.5.

DIVISION 26

PLASTIC

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section
91.2600 Basic Provisions.

SEC. 91.2600. BASIC PROVISIONS.

Chapter 26 of the CBC is hereby adopted by reference.

DIVISION 27

ELECTRICAL SYSTEMS

(Division Amended by Ord. No. 181,758, Eff. 8/8/11.)

Section
91.2700 Basic Provisions.

SEC. 91.2700. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 27 of the CBC is hereby adopted by reference, except that Los Angeles Municipal Code Subsections 91.2702.2.11.1, 91.2702.2.16.1, and 91.2702.2.19.1 are added.

91.2702.2.11.1. Fuel Supply. An on-premises fuel supply, sufficient for not less than 6-hour full-load operation of the emergency and standby power source(s), shall be provided. This fuel supply shall not be less than 8-hour when the load also includes fire pump(s).

91.2702.2.16.1. Fuel Supply. An on-premises fuel supply, sufficient for not less than 6-hour full-load operation of the emergency and standby power source(s), shall be provided. This fuel supply shall not be less than 8-hour when the load also includes fire pump(s).

91.2702.2.19.1. Fuel Supply. An on-premises fuel supply, sufficient for not less than 6-hour full-load operation of the emergency and standby power source(s), shall be provided. This fuel supply shall not be less than 8-hour when the load also includes fire pump(s).

DIVISION 28

MECHANICAL SYSTEMS

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section
91.2800 Basic Provisions.

SEC. 91.2800. BASIC PROVISIONS.

Chapter 28 of the CBC is hereby adopted by reference.

DIVISION 29

PLUMBING SYSTEMS

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

Section
91.2900 Basic Provisions.

SEC. 91.2900. BASIC PROVISIONS.

Chapter 29 of the CBC is hereby adopted by reference.

DIVISION 30

ELEVATORS AND CONVEYING SYSTEMS

(Amended by Ord. No. 180,619, Eff. 5/12/09.)

Section

91.3000 Basic Provisions.

91.3001 General.

91.3002 Hoistway Enclosures.

91.3003 Emergency Operations.

91.3004 Conveying Systems.

91.3005 Conveying Systems.

91.3007 Fire Service Access Elevator.

91.3008 Occupant Evacuation Elevators.

SEC. 91.3000. BASIC PROVISIONS.

Chapter 30 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.3001. GENERAL.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 3001 of the CBC is adopted by reference, except that Section 3001.1 and Table 3001.3 of the CBC are not adopted; and, in lieu, LAMC Subsection 91.3001.1 and Table 91.3001.3 are added.

91.3001.1. Scope. This division governs the design, construction, installation, alteration and repair of elevators and conveying systems and their components. All elevators shall comply with the additional requirements of the Elevator Code. Whenever a conflict exists between this Division and the Elevator Code, the more restrictive of the two codes shall apply.

TABLE 91.3001.3

TYPE	STANDARD
Automotive lifts	ALI ALCTV
Belt manlifts (including any other belt lift designed for persons)	ASME A90.1
Conveyors and related equipment	ASME B20.1
Elevators, escalators, dumbwaiters, moving walks, material lifts	ASME A17.1 / CSA B44
Industrial scissor lifts	ANSI MH29.1
Platform lifts, stairway chairlifts, wheelchair lifts	ASME A18.1

SEC. 91.3002. HOISTWAY ENCLOSURES.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 3002 of the CBC is adopted by reference, except that Section 3002.8 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.3002.8 is added.

91.3002.8. Glass in Elevator Enclosures. Glass in elevator enclosures shall comply with CBC Section 2409.2 and the Elevator Code.

SEC. 91.3003. EMERGENCY OPERATIONS.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 3003 of the CBC is adopted by reference.

SEC. 91.3004. CONVEYING SYSTEMS.

(Added by Ord. No. 184,692, Eff. 12/30/16.)

CBC Section 3004 is adopted by reference, except CBC Section 3004.4 is not adopted.

SEC. 91.3005. CONVEYING SYSTEMS.

Section 3005 of the CBC is adopted by reference, except that Section 3005.4 of the CBC is not adopted.

SEC. 91.3007. FIRE SERVICE ACCESS ELEVATOR.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 3007 of the CBC is adopted by reference, except that Section 3007.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.3007.1 is added.

91.3007.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Where required by CBC Section 403.6.1, every floor of the building shall be served by fire service access elevators complying with CBC Sections 3007.1 through 3007.9 with the modifications set forth in this Code. Except as modified in this section, fire service access elevators shall be installed in accordance with this division and the Elevator Code.

SEC. 91.3008. OCCUPANT EVACUATION ELEVATORS.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section 3008 of the CBC is adopted by reference, except that Sections 3008.1 and 3008.1.1 of the CBC are not adopted; and, in lieu, LAMC Subsections 91.3008.1, 91.3008.1.1 and 91.3008.8.1 are added.

91.3008.1. General. Where elevators are to be used for occupant self-evacuation during fires, all passenger elevators for general public use shall comply with CBC Sections 3008.1 through 3008.10. Where other elevators are used for occupant self-evacuation, those elevators shall comply with these sections.

91.3008.1.1. Occupant evacuation elevators. Occupant evacuation elevators shall comply with the California Code of Regulations, Title 8, Division 1, Chapter 4, Subchapter 6, Elevator Safety Orders.

91.3008.8.1. Determination of standby power load. Standby power loads shall be based on the determination of the number of occupant evacuation elevators in CBC Section 3008.1.

DIVISION 31

SPECIAL CONSTRUCTION

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section

91.3100 Basic Provisions.

91.3106 Marquees.

91.3108 Telecommunications and Broadcast Towers.

91.3109 Swimming Pool Enclosures and Safety Devices.

91.3112 Patio Covers.

SEC. 91.3100. BASIC PROVISIONS.

Chapter 31 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.3106. MARQUEES.

Section 3106 of the CBC is adopted by reference, except Section 3106.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.3106.1 is added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.3106.1. General. Marquees shall comply with this section and other applicable sections of this Code. The plans and specifications and the type, design, arrangement and location of every marquee shall be approved by the Board of Cultural Affairs Commissioners of the City of Los Angeles and the Board of Public Works of the City of Los Angeles prior to the issuance of a building permit.

SEC. 91.3108. TELECOMMUNICATIONS AND BROADCAST TOWERS.

(Added by Ord. No. 183,580, Eff. 7/11/15.)

Section 3108 of the CBC is adopted by reference, except Section 3108.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.3108.1 is added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.3108.1. General. Towers shall be designed and constructed in accordance with the provisions of TIA-222. For structural design purposes, telecommunication towers shall be considered to be a "Class III Structure" subject to an Importance Factor of 1.50, as set forth in Table 2-3, Importance Factors, of TIA-222. Towers shall be designed for seismic loads; exceptions related to seismic design listed in Section 2.7.3 of TIA-222 shall not apply. In Section 2.6.6.2 of TIA 222, the horizontal extent of Topographic Category 2, escarpments, shall be 16 times the height of the escarpment.

EXCEPTION: Single free-standing poles used to support antennas not greater than 75 feet (22.86 m), measured from the top of the pole to grade, shall not be required to be noncombustible. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 91.3109. SWIMMING POOL ENCLOSURES AND SAFETY DEVICES.

Section 3109 of the CBC is adopted by reference, except Sections 3109.3, 3109.4, 3109.4.1.7 and 3109.4.1 of the CBC are not adopted; and, in lieu, LAMC Subsections 91.3109.3, 91.3109.4 and Subdivisions 91.3109.4.1 and 91.3109.4.1.7 are added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.3109.3. Public Swimming Pools. Public swimming pools shall be completely enclosed by a fence or screen enclosure at least five feet (1524 mm) in height. Openings in the fence or screen enclosure shall not permit the passage of a four-inch-diameter (102 mm) sphere. The fence or screen enclosure shall be equipped with self-closing and self-latching gates.

91.3109.4. Residential Swimming Pools. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Residential swimming pools shall be completely enclosed. The fence, barrier or a screen enclosure for residential swimming pools on a lot with one to three dwelling units shall comply with LAMC Subsection 91.3109.4.1 and CBC Sections 3109.1 through 3109.2

91.3109.4.1. Barrier Height and Clearances. (Amended by Ord. No. 185,587, Eff. 7/16/18.) For residential swimming pools, the top of the barrier shall be at least 60 inches (1524 mm) above grade measured on the side of the barrier that faces away from the swimming pool. The maximum vertical clearance between grade and the bottom of the barrier shall be 2 inches (50.8 mm) measured on the side of the barrier that faces away from the swimming pool. Where the top of the pool structure is above grade, the barrier is permitted to be mounted on top of the pool structure, provided the maximum vertical clearance between the top of the pool structure and the bottom of the barrier shall be 4 inches (101.6 mm), or at grade level.

91.3109.4.1.7. Access doors or gates shall comply with the requirements of CBC Sections 3109.4.1.1 through 3109.4.1.6 and shall be equipped to accommodate a locking device.

Release mechanisms shall be in accordance with CBC Section 1010.1.9.

SEC. 91.3112. PATIO COVERS.

(Renumbered by Ord. No. 182,850, Eff. 1/3/14.)

91.3112.1. General. Section I101.1 of Appendix I of the CBC is adopted by reference.

91.3112.2. Definitions. The following word and term shall, for the purposes of Division 31, Article 1, Chapter IX of the Los Angeles Municipal Code, have the meaning shown herein. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

Patio Covers. One-story structures not exceeding 12 feet (3657 mm) in height. Enclosure walls shall be permitted to be of any configuration, provided the open or glazed area of the longer wall and one additional wall is equal to at least 65% of the area below a minimum of 6 feet 8 inches (2032 mm) of each wall, measured from the floor.

91.3112.3. Exterior Openings. Section I101.3 of Appendix I of the CBC is adopted by reference.

91.3112.4. Structural Provisions. Section I101.4 of Appendix I of the CBC is adopted by reference.

DIVISION 32

ENCROACHMENTS INTO THE PUBLIC RIGHT-OF-WAY

(Division Amended by Ord. No. 181,758, Eff. 8/8/11.)

Section
91.3200 Basic Provisions.
91.3201 General.
91.3202 General.

SEC. 91.3200. BASIC PROVISIONS.

Chapter 32 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.3201. GENERAL.

Section 3201 of the CBC is adopted by reference, except Sections 3201.1 and 3201.3 of the CBC are not adopted; and, in lieu, LAMC Subsections 91.3201.1 and 91.3201.3 are added. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.3201.1. Scope. The provisions of this division shall govern the encroachment of structures into the public right-of-way.

No portion of any projection from any building over any roadway shall be lower than an elevation of 14 feet (4267.2 mm) above the roadway surface. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.3201.3. Other Laws. The provisions of this division shall not be construed to permit the violation of other laws or ordinances regulating the use and occupancy of public property.

Projections into the public right-of-way shall require the approval of the Department of Public Works.

SEC. 91.3202. GENERAL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 3202 of the CBC is adopted by reference, except Section 3202.3.1 of the CBC is not adopted; and, in lieu, LAMC Subdivision 91.3202.3.1 is added.

91.3202.3.1. Awnings, Canopies, Marquees and Signs. Awnings, canopies, marquees and signs shall be constructed so as to support applicable loads as specified in Division 16, Article 1, Chapter IX of the LAMC. Awnings, canopies, marquees and signs with less than 15 feet (4572 mm) clearance above the sidewalk shall not extend into or occupy more than 2/3 the width of the sidewalk measured from the building. Stanchions or columns that support awnings, canopies, marquees and signs shall be located not less than 2 feet (609.6 mm) in from the curb line.

Prior to issuance of a building permit, plans and specifications and the type, design, arrangement and location of every marquee shall be approved by the City's Board of Cultural Affairs Commissioners and Board of Public Works.

DIVISION 33

SAFEGUARDS DURING CONSTRUCTION

(Title and Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.3300 Basic Provisions.
91.3301 General.
91.3304 Site Work.
91.3305 Toilet Facilities During Construction.
91.3306 Protection of Pedestrians.
91.3307 Protection of Adjoining Property.

SEC. 91.3300. BASIC PROVISIONS.

Chapter 33 of the CBC is adopted by reference with the following exceptions, modifications and additions:

SEC. 91.3301. GENERAL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 3301 of the CBC is adopted by reference, except Section 3301.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.3301.1 is added.

91.3301.1. Scope. The provisions of this division shall govern safety during construction and the protection of adjacent public and private properties.

This section shall not be construed to waive the requirements of the General Safety Orders of the Department of Industrial Relations of the State of California, or the provisions of California Civil Code Section 832 concerning the rights of coterminous owners as to excavations.

See Division 70, Article 1, Chapter IX of the LAMC for all grading, excavation and fill requirements.

SEC. 91.3304. SITE WORK.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 3304 of the CBC is adopted by reference, except Section 3304.1.4 of the CBC is not adopted; and, in lieu, LAMC Subdivision 91.3304.1.4 is added.

91.3304.1.4. Fill Supporting Foundations. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)** Fill to be used to support the foundations of any building or structure shall comply with CBC Section 1804.6 and Division 70, Article 1, Chapter IX of the LAMC. Special inspections of compacted fill shall be in accordance with CBC Section 1705.6.

SEC. 91.3305. TOILET FACILITIES DURING CONSTRUCTION.

Section 3305 of the CBC is not adopted; and, in lieu, LAMC Subsections 91.3305.1 and 91.3305.2 are added. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.3305.1. Toilet Facilities Required. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** No person shall commence or proceed with the erection, construction, alteration, repair, raising, adding to, removal or demolition of any building or structure unless adequate, suitable, sanitary toilet facilities under the control of that person are provided for the use of any person employed or working upon the building or structure. The toilet facilities shall be located upon or within a reasonable distance of the lot, premises, or site upon which the work is being done. In no case shall the line of travel to any toilet facility exceed 500 feet (152.4 m).

91.3305.2. Toilet Standards. Every toilet shall be of the water-flush type and connected to a public sewer or a private sewage disposal system built in accordance with the provisions of the Plumbing Code. All toilet structures shall be completely enclosed on four sides and the top, and the door shall be self-closing; the toilet floor shall be smooth, and screened ventilation shall be provided for the toilet compartment. Where workers are employed during the night hours, the toilet building shall be provided with artificial light. In lieu of flush water closets, approved chemical toilets, which meet the requirements of Chapter III of the Los Angeles Municipal Code, may be provided.

SEC. 91.3306. PROTECTION OF PEDESTRIANS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section 3306 of the CBC is adopted by reference, except Section 3306.1 of the CBC is not adopted; and, in lieu, LAMC Subsection 91.3306.1 is added.

91.3306.1. Protection Required. Pedestrians shall be protected during construction, remodeling and demolition activities as required by Division 33, Article 1, Chapter IX of the Los Angeles Municipal Code and CBC Table 3306.1. Signs shall be provided to direct pedestrian traffic.

Nothing contained in this section shall be construed to grant permission to use, construct or place a canopy over any street or public place without first obtaining the necessary permits from the Department of Public Works.

SEC. 91.3307. PROTECTION OF ADJOINING PROPERTY.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 3307 of the CBC is not adopted and, in lieu, Los Angeles Municipal Code Subsections 91.3307.1, 91.3307.2, 91.3307.2.1, 91.3307.2.2, 91.3307.3, 91.3307.3.1, and 91.3307.3.2 are added.

91.3307.1. Protection Required. Adjoining public and private property shall be protected from damage during construction, remodeling and demolition work. Protection must be provided for footings, foundations, party walls, chimneys, skylights and roofs. Provisions shall be made to control water runoff and erosion during construction or demolition activities.

For excavations, adjacent property shall be protected as set forth in Section 832 of the Civil Code of California.

Prior to the issuance of any permit, which authorizes an excavation where the excavation is to be of a greater depth than are the walls or foundation of any adjoining building or structure and located closer to the property line than the depth of the excavation, the owner of the site shall provide the Department of Building and Safety with evidence that the adjacent property owner or owners have been given a 30-day written notice of the intent to excavate. This notice shall state the depth to which the excavation is intended to be made and when the excavation will commence. This notice shall be by certified mail, return receipt requested.

91.3307.2. Underpinning.

91.3307.2.1. General. In constructing underpinning, all portions of the structure shall be supported so that no structural material is stressed beyond the yield point.

91.3307.2.2. Closure. All spaces between the existing footing and the underpinning shall be packed full of mortar conforming to the provisions of CBC Section 2103 and having no slump when tested by the method specified in ASTM C 143.

91.3307.3. Temporary Excavations and Shoring.

91.3307.3.1. General. Excavations shall not remove the lateral support from a public way, from an adjacent property or from an existing structure. For the purpose of this section, the lateral support shall be considered to have been removed when any of the following conditions exist:

1. The excavation exposes any adverse geological formations, which would affect the lateral support of a public way, an adjacent property or an adjacent structure.

2. The excavation extends below a plane extending downward at an angle of 45 degrees from the edge of the public way or an adjacent property.

EXCEPTION: Normal footing excavations not exceeding two feet in depth will not be construed as removing lateral support.

3. The excavation extends below a plane extending downward at an angle of 45 degrees from the bottom of a footing of an existing structure.

91.3307.3.2. Removal of Lateral Support. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Approval of the Department of Public Works shall be obtained prior to the issuance of a permit for any excavation that would remove the lateral support from a public way.

The slopes of excavations adjacent to an existing structure, an adjacent property or public way may exceed one horizontal to one vertical where either:

1. A soil report recommending that the slope may be in excess of one to one has been approved by the Department and the Department of Public Works when the excavation is adjacent to a public way.

When justified by the soils engineer, the Department may approve the use of the proposed building and/or shoring to support an adjacent structure on an adjoining property in lieu of underpinning, provided:

(i) Evidence is submitted that the adjoining property owner has been notified in advance of the proposed excavation in compliance with Section 832 of the Civil Code of California.

(ii) The owner of the site records a sworn affidavit with the Office of the County Recorder, which will inform future owners of the site that the lateral support of a portion of the building footings on the adjoining property is provided by the subterranean walls of the building on the site.

2. Underpinning is designed to support adjacent structures, temporary shoring is designed to support the excavation, and plans are approved and permits are issued by the Department.

Temporary shoring shall be designed for an earth pressure recommended by a soils engineer and approved by the Department, equivalent to that exerted by a fluid weighing not less than 24 pounds (11 kg) per cubic foot plus all surcharge loads.

Soils bearing values shall be those specified in Division 18, Article 1, Chapter IX of the LAMC or those recommended by a soils engineer and approved by the Department.

The design of the required temporary shoring and necessary underpinning shall include a sequence of construction and installation.

Allowable stresses used in the design of temporary shoring may be increased 33-1/3% for structural and reinforcing steel and 25% for wood. No increase will be permitted for concrete. Other values shall be those prescribed by this Code.

DIVISION 34

EXISTING STRUCTURES

(Division Deleted by Ord. No. 184,692, Eff. 12/30/16.)

DIVISION 35

REFERENCED STANDARDS

(Division Title Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section
91.3500 Basic Provisions.

SEC. 91.3500. BASIC PROVISIONS.

Chapter 35 of the CBC is hereby adopted by reference.

DIVISION 61

SPECIAL HAZARD AREAS

(Div. 61 Title Amended by Ord. No. 165,310, Eff. 12/31/89.)

Section
91.6101 Impact Hazard Glazing in Existing Buildings.
91.6102 Rubbish Rooms.
91.6103 Shafts, Pits and Similar Excavation – Misdemeanor.
91.6104 Fire Districts.
91.6105 Separation from Oil Wells.
91.6109 Swimming Pools and Other Bodies of Water – Protective Devices Required.

SEC. 91.6101. IMPACT HAZARD GLAZING IN EXISTING BUILDINGS.

(Title and Section Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

91.6101.1. Impact Hazard Glazing in Existing Buildings. When application is made for a permit for alterations, repairs or additions to real property, the permit shall be withheld until the department receives a sworn affidavit from the real property owner stating that:

1. Prior to final inspection of the work under the permit, the owner shall replace the glass in every existing sliding glass panel of sliding-type doors, other than wardrobe doors and bathroom shower doors and French-type wooden doors, in the residential portion of the building with approved safety glazing pursuant to CBC Section 2406; or
2. The owner declares the existing glazing of the glass in every sliding glass panel of sliding-type doors, other than wardrobe doors and bathroom shower doors and French-type wooden doors, in the residential portion of the building complies with the safety glazing requirements pursuant to CBC Section 2406.

EXCEPTION: The owner may install film on the glass in every existing sliding glass panel of sliding-type doors, other than wardrobe doors and bathroom shower doors and French-type wooden doors, in the residential portion of the building with film approved by the department.

91.6101.2. Application. The provisions of this section shall apply only in the following circumstances:

1. To Group R-3 Occupancy, if a permit is issued with a valuation of \$10,000 or more per unit for alterations, repairs or additions;
2. To Group R-1, R-2, R-3.1 or R-4 Occupancy, if a permit is issued for \$3,000 or more per dwelling unit and/or guest room for alterations, repairs or additions;
3. To an individual unit of Group R-1, R-2, R-3.1 or R-4 Occupancy, townhouse or condominium, if a permit is issued for \$10,000 or more for alterations, repairs or additions to that individual unit; and
4. To any Group R Occupancy that is sold or exchanged, including an individual townhouse or condominium unit.

SEC. 91.6102. RUBBISH ROOMS.

(Former Sec. 91.6106 Redesignated by Ord. No. 165,310, Eff. 12/31/89.)

Every room, except a room in a Group R, Division 3 Occupancy, appropriated for the storage or treatment of combustible rubbish, shall be of one-hour fire-resistive construction. All openings in interior partitions shall be protected by a fire assembly having a one-hour fire-resistive rating. All openings in exterior walls shall be protected by a fire assembly having a three-fourths hour fire-resistive rating.

SEC. 91.6103. SHAFTS, PITS AND SIMILAR EXCAVATION – MISDEMEANOR.

(Sec. 91.6110 Redesignated by Ord. No. 171,175, Eff. 7/25/96.)

Every person owning or having charge of land upon which is located any active or abandoned mining shaft, test hole, well, pit or similar excavation which exceeds six inches in any lateral dimension and three feet in depth shall cover, fence securely or provide some equivalent protection for the hazard and keep it so protected. Failure to do so shall cause such person to be guilty of a misdemeanor.

SEC. 91.6104. FIRE DISTRICTS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Buildings located in a fire district shall comply with the provisions of Division 72, Article 1, Chapter IX of the LAMC in addition to the general requirements of this Code.

SEC. 91.6105. SEPARATION FROM OIL WELLS.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

No school, hospital, sanitarium or assembly occupancy shall be within 200 feet from the center of the oil well casing.

No public utility fuel manufacturing plant or public utility electrical generating, receiving or distribution plant shall be located within 200 feet from the center of the oil well casing.

No building more than 400 square feet (37 m²) in area and taller than 36 feet in height shall be erected within 50 feet from the center of an oil well casing.

A distance separation between the exterior wall of the building and the center of an oil well casing shall be maintained with a horizontal distance equal to 1-1/2 times the building's height, provided however, that that distance need not exceed 200 feet. The building height for this provision shall be measured vertically from the adjacent lowest ground elevation to the ceiling of the top story.

EXCEPTIONS: The distance separation may be reduced to the following:

1. 35 feet separation if a solid 6 inches thick masonry wall and no shorter than 6 feet tall to be constructed within 50 feet from the building in between the oil well and all portions of the building.
2. 26 feet if any portion of the building exterior walls within 50 feet from the center of an oil well casing shall be constructed with no openings and one hour fire resistive construction with a 3 foot high fire rated parapet.
3. 15 feet if any portion of the building exterior walls within 50 feet from the center of an oil well casing shall be constructed with no openings and two-hour fire resistive construction with a 3 foot high fire rated parapet.

The provisions specified within this section shall not apply to oil wells that have been abandoned per LAMC Section 57.5706.3.16 and in accordance with the applicable rules and regulations of the Division of Oil, Gas and Geothermal Resources of the State of California.

SEC. 91.6107. TRANSFORMER VAULTS.

(Repealed by Ord. No. 171,175, Eff. 7/25/96.)

SEC. 91.6109. SWIMMING POOLS AND OTHER BODIES OF WATER – PROTECTIVE DEVICES REQUIRED.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

(a) **Fences.** Every existing swimming pool, fish pond or other body of water, which contains water 18 inches (457.2 mm) or more in depth, shall be enclosed by a fence, the height of which, including gates, shall be not less than 4 1/2 feet (1371.6 mm) above the ground. Gates shall be self-latching with the latch located 4 1/2 feet (1371.6 mm) minimum above the ground. However, for new swimming pools, spas, fish ponds and other bodies of water, the height and construction of the fence and gate shall comply with the requirements of Division 31, Article 1, Chapter IX of the LAMC whichever is more restrictive and provides greater safety. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

Where the ground surface on the side of the fence away from the body of water slopes upward, four and one-half feet clearance shall be maintained between the fence and the face of the slope.

EXCEPTION: The provisions of this section shall not apply to oceans, lakes, rivers, streams and similar bodies of water, which are publicly owned over which the State of California, the City, or County of Los Angeles has control and jurisdiction.

(b) **Existing Body of Water.** The provisions of this section shall also apply to all existing bodies of water.

DIVISION 62

SIGNS

(Division Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Section
91.6201 General Provisions.
91.6202 Definitions.
91.6203 Location.
91.6204 Identification.
91.6205 Design and Construction.
91.6206 Electrical.
91.6207 Combustible Materials.
91.6208 Animated Devices.
91.6209 Ground Signs.
91.6210 Roof Signs.
91.6211 Wall Signs.
91.6212 Projecting Signs.
91.6213 Marquee Signs.
91.6214 Portable Signs.
91.6215 Referenced Standards.
91.6216 Existing Signs.

SEC. 91.6201. GENERAL PROVISIONS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.6201.1.General. Section H101.1 of Appendix H of the CBC is adopted by reference.

91.6201.2. Sign Permits. (Amended by Ord. No. 179,416, Eff. 12/20/07, Oper. 1/1/08.)

1. A building permit shall be obtained from the Department in accordance with the provisions of Section 91.106 of this Code for any sign (including a temporary sign) and/or sign alteration, other than changes or replacement of copy, that are regulated by this division or by Chapter I of the LAMC. Where signs are illuminated by electric lighting, an electrical permit shall also be obtained as required by the Electrical Code.

EXCEPTIONS: (Amended by Ord. No. 184,692, Eff. 12/30/16.)

a. Signs not exceeding 20 square feet (1.85 m^2) in area, place upon the surface of the ground, no part of which extends more than 6 feet 6 inches (1981.2 mm) above the underlying ground, which have no mechanical or moving parts or to which no electricity or other source of illumination or power are attached to or used to illuminate the sign;

b. Boards and signs, not to exceed 6 square feet ($.557 \text{ m}^2$), used exclusively to display official notices issued by any court or public officer in the performance of a public duty or by a private person in giving legal notice;

c. Temporary signs conforming to the requirements of Article 4.4, Chapter I of the Los Angeles Municipal Code which contain political, ideological, or other noncommercial messages.

2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Prior to the issuance of a building permit(s) for temporary signs on temporary construction walls, and/or solid wood fences surrounding vacant lots pursuant to LAMC Section 14.4.17, the applicant shall post with the Department a bond in the amount of \$10,000.00, guaranteeing compliance with all conditions of the permit and the provisions of this ordinance. The applicant may post a surety bond, cash bond or negotiable United States Treasury Certificates of the kind approved by law for securing deposits of public money in accordance with the requirements of LAMC Section 91.8305, et seq. Only one bond shall be required of each applicant regardless of the number of locations for which the applicant has requested a building permit for a temporary sign on temporary construction fences or fences surrounding vacant lots.

For purposes of this subsection, the term "applicant" shall mean the owner of the sign company or, if there is no sign company, the owner of the property.

3. The Department may revoke any sign permit as provided in LAMC Section 98.0601(a).

91.6201.3. Sign Permit Priority Status.

1. To maintain location, area, frontage, or spacing status, signs must be installed within six months of issuance of a building permit or prior to expiration of any permit extension granted by the Department.

2. Where more than one permit has been issued and the effect of those permits when considered together results in a violation of this division, all permits except the permit with the earlier date and time of issuance shall be invalid.

91.6201.4. Violations. It shall be unlawful for any person to erect, construct, install, enlarge, alter, repair, move, remove, convert, demolish, use or maintain any sign or sign support structure or cause or permit those actions to be done, in violation of any of the provisions of this division.

Any person who violates or causes or permits another person to violate any of the provisions of this division is guilty of a misdemeanor.

91.6201.5. Penalties. Any person convicted of a misdemeanor under the provisions of this division shall be punishable by a fine of not more than \$1,000.00 or by imprisonment in the county jail for a period of not more than six months, or by both fine and imprisonment. Each violation of the provisions of this division and each day during which a violation is committed or continues is a separate offense.

Any person convicted of violating any provision of this division may be required to pay restitution to the City of Los Angeles for all costs expended to investigate and/or enforce the provisions of this division.

91.6201.6. Modifications.

91.6201.6.1. Authority. In addition to its authority to grant slight modifications pursuant to LAMC Section 98.0403.1, the Board shall have the authority to grant significant modifications from these sign regulations.

91.6201.6.2. Basis. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Before granting a significant modification, the Board must find (1) that a special, individual reason makes the strict letter of the ordinance impractical and (2) that the requested modification is in conformity with the spirit and purposes of the objectives set forth in LAMC Subdivision 91.6201.6.6.

91.6201.6.3. Procedure.

91.6201.6.3.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Requests for modifications in individual cases shall be made in accordance with the procedure established in LAMC Sections 98.0403.1 and 98.0403.2.

91.6201.6.3.2. The Department shall determine whether an application is for a slight modification or a significant modification. The Department's determination that a proposed modification is significant shall be final and may not be appealed to the Board.

91.6201.6.3.3. An application for a request for significant modification shall be made to the Board. The applicant, in their request, shall state the special, individual reason that makes compliance with the strict letter of the provisions in question impractical and shall show that the modification requested is in conformity with the spirit and purpose of this division.

On the date of receipt of filing of the application, the file of the Department shall be forwarded to the Board. Upon receipt of the application, the Board shall set the matter for hearing and give notice by mail not less than ten days before the hearing of the time, place and purpose of the hearing to the applicant, to the owners of the property involved, and to the owners of all property within or outside of the City that is within a 300-foot radius of the property on which the sign is to be placed as shown on the records of the City Engineer, or in the case of property outside the City, the records of the County Assessor. **(Amended by Ord. No. 181,595, Eff. 4/10/11.)**

91.6201.6.4. Board Referral. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Board may refer a request for a significant modification to the Sign Advisory Committee (LAMC Subsection 91.105.4) for evaluation and recommendation before it renders a decision.

91.6201.6.5. Fees. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Processing fees for significant modifications are the same as those set forth for appeals to the Board in LAMC Section 98.0403.2. Significant modifications may also be subject to the fees set forth in LAMC Subsection 91.105.4 and LAMC Section 19.05.

91.6201.6.6. Purpose. The purpose of this division is to promote public safety and welfare by regulating signs in keeping with the following objectives:

1. That the design, construction, installation, repair and maintenance of signs will not interfere with traffic safety or otherwise endanger public safety; and
2. That both the public and sign users will benefit from signs having improved legibility, readability and visibility.

SEC. 91.6202. DEFINITIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Section H102 of Appendix H of the CBC is adopted by reference, except that the following terms are not adopted:

DISPLAY SIGN

PORTABLE DISPLAY SURFACE

The following terms are added:

CODE. As used in Division 62, Article 1, Chapter IX of the LAMC, Code shall mean Article 4.4, Chapter I of the LAMC. This is a clarification of and not a change to existing law.

MASONRY INFILL. Masonry infill is the unreinforced or reinforced masonry wall construction within a reinforced concrete frame.

SOLID MASONRY. Solid masonry shall mean reinforced masonry properly designed in accordance with Division 21, Article 1, Chapter IX of the LAMC, and shall not include an unreinforced masonry bearing wall as defined in LAMC Section 91.8803 and masonry infill as defined in this section.

SEC. 91.6203. LOCATION.

91.6203.1. Location Restrictions. Section H103.1 of Appendix H of the CBC is adopted by reference.

SEC. 91.6204. IDENTIFICATION.

91.6204.1. Identification. Section H104.1 of Appendix H of the CBC is adopted by reference.

91.6204.2. Notification to Sign Purchasers. Any person who sells an identification sign, monument sign, pole sign, projecting sign or wall sign, as those terms are defined in Chapter I of the LAMC, for installation in the City of Los Angeles, shall provide written notice of the provisions of this division to the purchaser. The Superintendent shall promulgate regulations setting forth the content for this notification.

SEC. 91.6205. DESIGN AND CONSTRUCTION.

91.6205.1. General Requirements. Signs shall be designed and constructed to comply with the provisions of this Code for use of materials, loads and stresses. Glass panels used in signs shall comply with the size, thickness and type of glass as shown in Table H115.1(1) of the CBC. The use, location, size, area, and height of the sign shall comply with the provisions of this Code and Chapter I of the LAMC, whichever is more restrictive. **(Amended by Ord. No. 188,739, Eff. 9/23/25.)**

91.6205.2. Section H105.2 of Appendix H of the CBC is adopted by reference.

91.6205.3. Section H105.3 of Appendix H of the CBC is adopted by reference.

91.6205.4. Section H105.4 of Appendix H of the CBC is adopted by reference.

91.6205.5. Section H105.5 of Appendix H of the CBC is adopted by reference.

91.6205.6. Section H105.6 of Appendix H of the CBC is adopted by reference.

91.6205.18. Off-Site Sign Periodic Inspection Program. (Amended by Ord. No. 180,446, Eff. 12/26/08.)

91.6205.18.1. General. (Amended by Ord. No. 183,249, Eff. 11/29/14.) All off-site sign structures as defined in Section 14.4.2 of the LAMC and subject to the provisions of Chapter I of the LAMC are subject to regular inspection. Beginning February 1, 2015, the Superintendent or an authorized representative shall inspect each sign a minimum of once every two years.

91.6205.18.2. Fees for Inspection. (Amended by Ord. No. 183,249, Eff. 11/29/14.) This fee shall be known as the "Off-Site Sign Periodic Inspection Fee". The person or entity in control of an off-site sign structure subject to inspection shall pay a regulatory fee of \$169.87 to the Department and provide a copy of a valid permit issued by the City of Los Angeles for each off-site sign structure or a copy of a valid permit issued by the appropriate jurisdiction if the lot was annexed to the City of Los Angeles.

The regulatory fee shall be due on February 1 every two years, starting on February 1, 2015. If the fee is not paid on or before the last day of the month in which it is due, a monthly penalty equal to five percent of any outstanding fee, but not less than \$10.00, shall be added to the outstanding fee each month until the outstanding fee is paid. Should the person or entity in control fail to pay the required fee, the City of Los Angeles may recover the fee, plus accrued penalties, utilizing any remedy approved by law.

The Department shall cause all money collected pursuant to this section to be deposited into the Off-Site Sign Periodic Inspection Fee Trust Fund described in Section 5.111.17 of the Los Angeles Administrative Code for purposes of disbursement as that section permits.

The regulatory fee shall be used to finance the costs of administering the inspection program, including, but not limited to, inspection and maintenance of an off-site sign structure database. Payment of the fee shall not create a presumption that the sign is lawfully erected, as that term is defined in LAMC Subdivision 91.6205.18.7. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.6205.18.3. Inspection Records. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Department shall keep records of the off-site sign inspection program, showing the following information for each off-site sign structure subject to inspection pursuant to LAMC Subsection 91.6205.18: the payment of inspection fees; that inspections have been conducted; any known building permit number; size of sign as shown on any known building permit; issuance date of any known building permit; any subsequent building permits issued for that sign; any information required pursuant to this division or obtained pursuant to inspection; and whether the off-site sign structure has been determined to be in compliance with the terms of all known building permits and with all applicable regulations at the time the permits were issued.

91.6205.18.4. Frequency of Inspection. (Amended by Ord. No. 183,249, Eff. 11/29/14.) Each off-site sign structure shall be inspected once every two years.

91.6205.18.5. (Deleted by Ord. No. 183,249, Eff. 11/29/14.)

91.6205.18.6. Orders. If, upon inspection, the Superintendent or an authorized representative observes one or more violations of the LAMC, the Superintendent shall issue an Order to Comply. The person in control of the sign shall eliminate all violations by the compliance date stated on the Order to Comply.

91.6205.18.7. Violations. If the Department determines that an off-site sign structure was not lawfully erected, then the off-site sign structure shall have its sign face removed and replaced with blank panels until the off-site sign structure is made to comply with the applicable provisions of the LAMC. The term "lawfully erected" means an off-site sign structure that was erected in compliance with the provisions of the LAMC in effect at the time of its erection or which was subsequently brought into full compliance with the provisions of the LAMC, except that the term does not apply to any off-site sign structure whose use was modified after erection in a manner that caused it to become illegal.

SEC. 91.6206. ELECTRICAL.

91.6206.1. Section H106.1 of Appendix H of the CBC is adopted by reference.

91.6206.1.1. Except as provided for in CBC Sections 402.6.4 and 2611, where internally illuminated signs have facings of wood or approved plastic, the area of such facing section shall be not more than 120 square feet (11.16 m²) and the wiring for electric lighting shall be entirely enclosed in the sign cabinet with a clearance of not less than 2 inches (51 mm) from the facing material. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

91.6206.2. Section H106.2 of Appendix H of the CBC is adopted by reference.

SEC. 91.6207. COMBUSTIBLE MATERIALS.

91.6207.1. Use of Combustibles. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Wood, approved plastic or plastic veneer panels as provided for in Division 26, Article 1, Chapter IX of the LAMC or other materials of combustible characteristics similar to wood that is used for moldings, cappings, nailing blocks, letters and latticing shall comply with Section H107 of Appendix H of the CBC and shall not be used for other ornamental features of signs, unless approved.

91.6207.1.1. Section H107.1.1 of Appendix H of the CBC is adopted by reference.

91.6207.1.2. Section H107.1.2 of Appendix H of the CBC is adopted by reference.

91.6207.1.3. Section H107.1.3 of Appendix H of the CBC is adopted by reference.

91.6207.1.4. Section H107.1.4 of Appendix H of the CBC is adopted by reference.

SEC. 91.6208. ANIMATED DEVICES.

91.6208.1. Section H108.1 of Appendix H of the CBC is not adopted by reference.

SEC. 91.6209. GROUND SIGNS.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

91.6209.1. Section H109.1 of Appendix H of the CBC is adopted by reference.

91.6209.3. Section H109.3 of Appendix H of the CBC is adopted by reference.

SEC. 91.6210. ROOF SIGNS.

91.6210.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Roof signs shall be constructed entirely of metal or other approved noncombustible material except as provided for in LAMC Subdivision 91.6206.1.1 and Subsection 91.6207.1. Provisions shall be made for electric grounding of metallic parts. Where combustible materials are permitted in letters or other ornamental features, wiring and tubing shall be kept free and insulated from each other. Roof signs shall be so constructed as to leave a clear space of not less than 6 feet (1828.8 mm) between the roof level and the lowest part of the sign, and shall have at least 5 feet (1524 mm) clearance between the vertical supports. No portion of any roof sign structure shall project beyond an exterior wall.

91.6210.2. Section H110.2 of Appendix H of the CBC is adopted by reference.

91.6210.3. Section H110.3 of Appendix H of the CBC is adopted by reference.

91.6210.4. Section H110.4 of Appendix H of the CBC is adopted by reference.

91.6210.5. Section H110.5 of Appendix H of the CBC is adopted by reference.

SEC. 91.6211. WALL SIGNS.

91.6211.1. Materials. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Wall signs that have an area exceeding 40 square feet (3.72 m²) shall be constructed of metal or other approved noncombustible material, except for nailing rails and as provided for in LAMC Subdivision 91.6206.1.1 and Subsection 91.6207.1.

91.6211.2. Section H111.2 of Appendix H of the CBC is adopted by reference.

91.6211.3. Section H111.3 of Appendix H of the CBC is adopted by reference.

SEC. 91.6212. PROJECTING SIGNS.

Table 4-B of Appendix H of the CBC is adopted by reference.

91.6212.1. Section H112.1 of Appendix H of the CBC is adopted by reference.

91.6212.2. Section H112.2 of Appendix H of the CBC is adopted by reference.

91.6212.3. Section H112.3 of Appendix H of the CBC is adopted by reference.

91.6212.4. Section H112.4 of Appendix H of the CBC is adopted by reference.

91.6212.5. Section H112.5 of Appendix H of the CBC is adopted by reference.

SEC. 91.6213. MARQUEE SIGNS.

91.6213.1. Materials. Marquee signs shall be constructed entirely of metal or other approved noncombustible material and/or approved plastic and glass.

91.6213.2. Section H113.2 of Appendix H of the CBC is adopted by reference.

91.6213.3. Section H113.3 of Appendix H of the CBC is adopted by reference.

91.6213.4. Section H113.4 of Appendix H of the CBC is adopted by reference.

SEC. 91.6214. PORTABLE SIGNS.

91.6214.1. General. Section H114.1 of Appendix H of the CBC is not adopted.

SEC. 91.6215. REFERENCED STANDARDS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

ASTM D 635-03	Test Method for Rate of Burning and/or Extent and Time of Burning of Self-Supporting Plastics in a Horizontal Position	LAMC Subdivision 91.6207.1.1
NFPA 70-08	National Electrical Code	LAMC Subsections 91.6206.1, 91.6206.2
NFPA 701-99	Methods of Fire Test for Flame Propagation of Textiles and Films	LAMC Subdivision 91.6206.1.1

SEC. 91.6216. EXISTING SIGNS.

91.6216.1. Existing Sign Rights. Every existing sign and/or sign support structure constructed under a valid permit and used in conformance with these regulations and Department approvals in effect at the time of construction shall be allowed to continue to exist under those regulations and approvals even though subsequent adopted regulations and approvals have changed the requirements.

91.6216.2. Maintenance of Existing Signs. Every sign and/or sign support structure shall be maintained in conformity with the requirements of this division and Chapter I of the LAMC.

91.6216.3. Illegal Signs, Construction and Use. Every existing sign and/or sign support structure or portion of a sign and/or sign support structure constructed without a valid building permit shall be made to conform to the current provisions of this Code or shall be demolished and removed. Any use of an existing sign constructed without a valid building permit shall be discontinued.

91.6216.4. Alterations, Repairs or Rehabilitation.

91.6216.4.1. Alterations, repairs or rehabilitation of any existing sign and/or support structure may be of the same type of construction as the existing sign or sign support structure provided:

1. The aggregate value of the work in any one year does not exceed ten percent of the replacement cost of both the sign and sign support structure; and
2. That there is no increase in sign area or height and no change in the location or orientation of the sign.

91.6216.4.2. Alterations, repairs or rehabilitation of existing sign and/or sign support structures in excess of ten percent of the replacement cost of both the sign and sign support structure may be made provided:

1. That the cost of the work does not exceed 50 percent of the replacement cost of both the sign and sign support structure; and
2. That there is no increase in the sign area or height and no change in the location or orientation of the sign; and
3. All new construction shall be as required for a new sign of the same type.

91.6216.4.3. Alterations, repairs or rehabilitation of existing sign and/or sign support structures that exceed 50 percent of the replacement cost of both the sign and sign support structure shall comply with all the requirements of this Code.

91.6216.5. Additions. Existing signs and/or sign support structures with additions or alterations that increase the sign area or height or which change the location or orientation of the sign shall comply with all of the requirements of this Code.

DIVISION 63

ADDITIONAL PROVISIONS FOR SPECIFIC USES

(Added by Ord. No. 165,310, Eff. 12/31/89.)

Section

- 91.6301 General.
- 91.6302 Food Establishment.
- 91.6303 Service Stations.
- 91.6304 Residential Uses.
- 91.6305 Parking Garages Serving Residential Uses.
- 91.6306 Anti-graffiti Finish to Exterior Walls.
- 91.6307 Shower and Locker Facilities.

SEC. 91.6301. GENERAL.

(Added by Ord. No. 165,310, Eff. 12/31/89.)

In addition to the requirements of this Code, Buildings housing special uses as specified herein, shall conform to the requirements of this Division.

SEC. 91.6302. FOOD ESTABLISHMENT.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

91.6302.1. General. This section shall apply to every building or portion thereof appropriated to the processing, storage or sale of food or drink for human consumption, but not including any private dwelling. Every food establishment shall conform to the requirements of this Code.

EXCEPTIONS:

1. Food establishments that are used exclusively for the sale of farm produce sold at or on the premises where produced.
2. Food preparation units installed in school buildings with the following provisions:
 - A. A sign must be posted requiring all mouth utensils to be of single-use, disposable type.
 - B. The floor surface of the area must be of linoleum, asphalt tile, or equivalent nonabsorbent material.
 - C. A residential-type vent must be installed when a residential kitchen range is provided.
3. Employee lunch rooms if no food other than beverages is prepared on the premises, and provided all mouth utensils are of the disposable type. Heating devices limited to this use need not be vented.
4. Food establishments in which all food is to be sold in sealed packages, and in which there is to be no preparing or packaging of food, shall comply with all applicable food establishment regulations. The Certificate of Occupancy shall state “**Packaged Food Only.**”

91.6302.2. Ceiling Heights. Every room shall have a ceiling height of not less than eight feet between the finished floor and the finished ceiling.

EXCEPTIONS:

1. Toilet rooms may have a ceiling height of not less than seven feet six inches.
2. Refrigerated cold storage rooms are exempted from this ceiling height requirement.

91.6302.3. Special Ventilation. (Amended by Ord. No. 181,758, Eff. 8/8/11.) A mechanical exhaust ventilation system capable of effectively removing cooking odors, smoke, steam, grease and vapors shall be provided at or above cooking equipment such as ranges, griddles, ovens, deep fat fryers, barbecues and rotisseries.

All hoods, ducts, fans and other devices provided to ventilate the cooking areas of commercial food preparation equipment in commercial food establishments shall be installed as required by and in compliance with the provisions of the Los Angeles Mechanical Code. Rooms in which exhaust systems are installed shall be provided with acceptable air inlets to admit at least as much air as is exhausted by these systems.

Ducts penetrating a ceiling or floor shall be enclosed in a shaft enclosure conforming to the requirements of CBC Section 713. Where a shaft enclosure is not required by CBC Section 713, ducts that convey grease vapors shall be enclosed in a one-hour fire-resistive shaft. The shaft shall be separated from the duct by a minimum 6 inch (152.4 mm) air space vented to the outside air. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.6302.4. Toilet Rooms and Vestibules. (Amended by Ord. No. 187,719, Eff. 1/23/23.) Toilet rooms and vestibules for public or employees shall conform to the following standards:

1. **Toilet Rooms Required.** Toilet rooms shall be provided in accordance with the Los Angeles Plumbing Code.
2. **Location.** Toilet rooms shall be located on the premises of the food establishment. Toilet rooms for public use shall be readily accessible to customers. Toilet rooms shall be separated from other portions of the establishment by a tight-fitting, self-closing door.

Additional lavatories or equivalent hand-washing facilities shall be provided in all food preparation areas where the lavatories required in Item 1 are not conveniently located on the same floor and in or adjacent to the food preparation areas.

3. **Privacy.** Toilet rooms shall be so arranged or equipped with view screens as to protect users of toilets and urinals from view from outside the room when the door to the toilet room is open.

EXCEPTION: View screen is not required if the toilet room is only for single accommodation, unisex and a bathroom is provided.

4. **Dimensions.** Toilet rooms shall have dimensions and area as required in Division 11, Article 1, Chapter IX of the Los Angeles Municipal Code.

91.6302.5. Employee Storage Areas. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Lockers or other suitable facilities within food establishments shall be provided in compliance with Section 114256 of the California Health and Safety Code as enforced by the Los Angeles County Department of Public Health.

91.6302.6. Garbage Rooms. Restaurants with a seating capacity of 50 or more patrons shall be provided with a room or enclosed space for the keeping of garbage containers. The room shall have portland cement plaster, fireclay tile, ceramic tile or equally durable waterproof walls to a height of at least six feet above the floor. Doors and windows of such rooms shall be tight fitting and self-closing and all exterior openings shall be screened. Each such room shall be equipped with a hose or other suitable garbage can washing device connected to hot and cold running water and the floor shall slope to a drain and comply the requirements of the Los Angeles County Health Department.

EXCEPTION: Such garbage rooms need not be provided at places maintaining an approved device for discharging garbage to the sewer system.

91.6302.7. Rat Protection. Every food establishment shall be completely surrounded by a continuous exterior foundation wall not less than 12 inches below grade.

SEC. 91.6303. SERVICE STATIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Every service station located within 660 feet (201.16 m) of an accessible right-of-way of any interstate or primary highway, as defined in California Business and Professions Code Sections 5215 and 5220, shall provide, during business hours, public restrooms for use by its customers. The public restroom shall not be temporary or portable but shall be permanent and shall include separate facilities for men and women, each with toilets and sinks suitable for use by disabled persons in accordance with Division 11, Article 1, Chapter IX of the LAMC, and shall be maintained in a clean and sanitary manner. This section shall not apply to service stations which are fully operational prior to January 1, 1990.

SEC. 91.6304. RESIDENTIAL USES.

(Added by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.6304.1. Interior Doors. In any residential building, every interior door in a doorway through which occupants pass shall have a minimum width of 32 inches.

EXCEPTION: The provisions of this section shall not apply to doors located in shower compartment and bathtub enclosures.

91.6304.2. Interior Illumination. All recreation or service rooms accessory to apartment houses shall be provided with an incandescent light bulb (minimum of 60 watts) or other artificial light at a maximum height of eight feet (2438 mm) and shall provide have a minimum average surface illumination of 0.2 footcandles (2.15 lx) at floor level. Where, in any specific case, different sections of the Los Angeles Municipal Code specify different requirements, the most restrictive shall govern.

EXCEPTION: Recreation or service rooms accessory to condominiums which comply with Article 2.9 (condominiums) of Chapter I of the Los Angeles Municipal Code.

91.6304.3. Additional Requirements for Installation of Bars, Grills, Grates or Similar Devices. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In addition to the requirements of CBC Section 1030 all bars, grills, grates or similar devices shall comply with the following:

1. A permit is obtained from the Department and a fee is paid as required in LAMC Subdivision 91.107.4.5. Any permit so issued shall be valid for a period of 90 days from its issuance. The Department may allow a "certified installer" to be used, in lieu of obtaining a permit, in accordance with LAMC Section 91.1710.
2. Any person who willfully or knowingly, with the intent to deceive, makes a false statement or representation, or knowingly fails to disclose a material fact in any documentation required by the Department to ascertain facts relative to this section, LAMC Subdivision 91.107.4.5 or to Section 91.1710, including any oral or written evidence presented, shall be guilty of a misdemeanor.

SEC. 91.6305. PARKING GARAGES SERVING RESIDENTIAL USES.

(Added by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.6305.1. Light. All parking garages serving dwelling units or guest rooms shall be provided with an incandescent light bulb (minimum of 60 watts) or other artificial light at a maximum height of eight feet (2438 mm) and shall provide a minimum average surface illumination of 0.2 footcandles (2.15 lx) at floor level. Where, in any specific case, different sections of the Los Angeles Municipal Code specify different requirements, the most restrictive shall govern. (Amended by Ord. No. 177,103, Eff. 12/18/05.)

91.6305.2 Exterior Illumination. All parking garages serving dwelling units or guest rooms shall be provided with an incandescent light bulb (minimum of 60 watts) or other artificial light at a maximum height of eight feet (2438 mm) and shall provide have a minimum average surface illumination of 0.2 footcandles (2.15 lx), however, exterior lighting that is brighter than 2 footcandles (21.5 lx) and affecting adjacent residential properties shall be activated by motion sensors for a period of not to exceed twenty minutes.

Exterior lighting shall be provided for areas accessory to apartment houses, such as, driveways, side yards, walkways, recreation areas and similar locations.

Where, in any specific case, different sections of the Los Angeles Municipal Code specify different requirements, the most restrictive shall govern.

SEC. 91.6306. ANTI-GRAFFITI FINISH TO EXTERIOR WALLS.

(Amended by Ord. No. 180,895, Eff. 11/16/09.)

In all buildings, the first nine feet, measured from grade, of exterior walls and doors shall be built and maintained with a graffiti-resistant finish consisting of either a hard, smooth, impermeable surface such as ceramic tile or baked enamel, or a renewable coating of an approved anti-graffiti material, or a combination of both.

EXCEPTION: A building where the building owner files a "Covenant and Agreement Regarding Maintenance of Building (Graffiti Removal)" with the Department, agreeing to remove the graffiti within seven days of the graffiti being applied or within 72 hours of being notified by the Department to remove the graffiti. If the building owner fails to abide by the Covenant and Agreement, the Covenant and Agreement between the building owner and the Department may be terminated by the Department and the requirements of this section shall apply to the building owner.

SEC. 91.6307. SHOWER AND LOCKER FACILITIES.

(Added by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

91.6307.1. Shower and Locker Facilities for Office Commercial, Business and Professional Uses. For office commercial, business and professional uses in the C and M zones, and for buildings owned by the City of Los Angeles and used by the City for government purposes, regardless of zone, shower facilities shall be available and accessible for all employees in new buildings and in existing buildings, when additions are made thereto, as follows:

1. For new buildings and additions to existing building with at least 50,000 square feet (4645 m²) of floor area, one shower for each gender;
2. For new buildings and additions to existing buildings with 150,000 square feet (13 935 m²) to less than 250,000 square feet (23 225 m²) of floor area, two showers for each gender.
3. For new buildings and additions to existing buildings with 250,000 square feet (23 225 m²) of floor area or more, one additional shower for each gender for each increment of 100,000 square feet (9290 m²) of floor area or portion thereof.

For the uses specified above, where bicycle parking spaces are required pursuant to Section 12.21-A16 of the Los Angeles Municipal Code, one locker facility shall be provided for each required bicycle parking space. Locker facilities required by this section shall be located to permit access by either gender.

91.6307.2. Shower and Locker Facilities for Industrial Uses. For industrial uses in the C and M zones, shower facilities shall be available and accessible for all employees in new buildings and in existing buildings, when additions are made thereto, as follows:

For new buildings and additions to existing building with 50,000 square feet (4645 m²) of floor area and greater, one shower for each gender.

For the uses specified above, where bicycle parking spaces are required pursuant to Section 12.21-A16 of the Los Angeles Municipal Code, one locker facility shall be provided for each required bicycle parking space. Locker facilities required by this section shall be located to permit access by either gender.

91.6307.3. Shower and Locker Facilities for Retail and Other Commercial Uses. For retail and other commercial uses in the C and M zones not specified herein, employee shower facilities shall be available and accessible for all employees in new buildings and in existing buildings, when additions are made thereto, as follows:

1. For new buildings and additions to existing building with at least 100,000 square feet (9290 m²) to less than 300,000 square feet (27 870 m²) of floor area, one shower for each gender;
2. For new buildings and additions to existing buildings with 300,000 square feet (27 870 m²) of floor area or greater, one additional shower for each gender for each additional increment of 200,000 square feet (18 580 m²) of floor area or portion thereof.

For the uses specified above, where bicycle parking spaces are required pursuant to Section 12.21-A16 of the Los Angeles Municipal Code, one locker facility shall be provided for each required bicycle parking space. Locker facilities required by this section shall be located to permit access by either gender.

DIVISION 67

SECURITY PROVISIONS

(Division 67 Amended by Ord. No. 171,175, Eff. 7/25/96.)

Section	
91.6701	Purpose.
91.6702	General.
91.6703	Limitations.
91.6704	Alternate Security Provisions.
91.6705	Definitions.
91.6706	Entry Vision.
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- 91.6708 Doors – General.
- 91.6709 Swinging Doors.
- 91.6710 Sliding Glass Doors.
- 91.6711 Overhead and Sliding Doors.
- 91.6712 Metal Accordion-grate or Grille-type Doors.
- 91.6713 Glazed Opening – General.
- 91.6714 Glazing.
- 91.6715 Windows.
- 91.6716 Openings Other than Doors or Glazed Openings.
- 91.6717 Tests – General.
- 91.6720 Glazed Opening – General.
- 91.6721 Glazing.
- 91.6722 Windows.
- 91.6723 Openings Other than Doors or Glazed Openings.
- 91.6730 Tests – General.
- 91.6731 Tests – Sliding Glass Doors.
- 91.6732 Tests – Sliding Glass Windows.

SEC. 91.6701. PURPOSE.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

The purpose of this division is to provide a nominal level of resistance to unlawful entry of buildings by establishing minimum standards of construction and hardware for the closure of openings regulated by this division.

SEC. 91.6702. GENERAL.

(Amended by Ord. No. 180,619, Eff. 5/12/09.)

In every Group B, F, M, S and R Occupancy, the openings regulated by this division shall be completely secured in accordance with the provisions specified herein.

EXCEPTIONS: The requirements of this division shall not apply to:

1. Detached buildings which are accessory to Group R-3 Occupancies.
2. Group B, F, M, S Occupancies which, by the nature of their operation, are unenclosed.
3. Group B, F, M, S Occupancies where the owner submits written notice to the Department of intent to substitute security personnel and/or site security installations in lieu of requirements of this division of this Code. Such exemption shall be subject to the concurrence of the Department and shall be one of the conditions upon which the Certificate of Occupancy is issued.

SEC. 91.6703. LIMITATIONS.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

The provisions of this division shall not be applicable to latching or locking devices on exit doors to the extent that the provisions of this division are contrary to the provisions of CBC Section 402.8.8 or CBC Chapter 10, nor shall the regulations of this division be construed to waive any other provision of this Code.

No person shall sell, offer for sale, advertise, display for sale or install any metal bars, grilles, grates, security roll-down shutters or similar devices manufactured or installed to preclude human entry through windows and exterior doors without a label attached to each product, printed in at least ten-point type and that reads as follows: "A building permit is required in most cases for the installation of this product. If this product is installed in a sleeping room, unless excepted by the provisions of CBC Section 1030, the device must be equipped with a quick-release latch operable from inside and the dwelling unit provided with an approved smoke detector."

SEC. 91.6704. ALTERNATE SECURITY PROVISIONS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

The provisions of this division are not intended to prevent the use of any device, hardware, or method of construction, not specifically prescribed in this division, when such alternate provides equivalent security and is approved by the Department.

SEC. 91.6705. DEFINITIONS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

For the purpose of this division, certain terms are defined as follows:

CYLINDER GUARD. A ring surrounding the exposed portion of the lock cylinder, or any other device, which is so fastened as to protect the cylinder from wrenching, prying, cutting, or pulling by attack tools. The ring shall be made from steel or brass and shall have a minimum taper of 15 degrees.

DEADLOCKING LATCH. A latch in which the latch bolt is positively held in the projected position by a guard bolt, a plunger or an auxiliary mechanism.

DEADBOLT. A bolt which has no automatic spring action and which is operated by a key cylinder, thumb-turn, or lever, and is held fast when in the projected position.

ENCLOSING PARTITION. A partition extending the full height of the story to the floor or roof above separating tenant spaces.

LATCH. A device for automatically retaining a door, upon its closing, in a closed position.

SECURITY OPENING. An opening in a wall, partition, or roof when such opening occurs in any of the following locations:

1. In an exterior wall and less than 16 feet above the grade of any adjoining yard, court, passageway, public way, walk, breezeway, patio, planter porch or similar area.
2. In an exterior wall and less than 16 feet above the surface of any adjoining roof, balcony, landing, stair tread, platform, or similar structure when that surface is accessible to the public or another tenant or when any portion of such surface is itself less than 16 feet above an accessible grade.

3. In the enclosing partitions of a dwelling unit, private garage, guest room or single-tenant non-residential area.
4. In a roof when any portion of such roof is less than 16 feet above an accessible grade or surface accessible by another tenant or the public.

SEC. 91.6706. ENTRY VISION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

In residential occupancies, all entry doors to dwelling units or guest rooms shall be arranged so that the occupant has a view of the area immediately outside the door without opening the door. Such view may be provided by a door viewer, through windows located in the vicinity of the door or through view ports in the door or adjoining wall. Such windows or view ports shall be constructed in compliance with the provisions of LAMC Section 91.6713.

SEC. 91.6707. APPURTENANT ACCESS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

Buildings located within eight feet of utility poles or similar structures which could otherwise be used to gain access to the building's roof, balcony or similar surfaces shall have access to such building surfaces protected by screens, barricades or fences made of materials which preclude human climbing. Such protection shall extend to where the surfaces are more than eight feet from the pole or access structure.

SEC. 91.6708. DOORS – GENERAL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Every door in a security opening shall be constructed, installed and secured as set forth in LAMC Sections 91.6709, 91.6710, 91.6711 and 91.6712. Glazing in doors shall comply with LAMC Section 91.6713.

Every door in a security opening for an apartment house shall be provided with an incandescent light bulb (minimum of 60 watts) at a maximum height of 8 feet (2438.4 mm) or lights on the exterior side of the unit that have a minimum surface illumination of 0.2 footcandles (2.15 lx) at the security opening. Where, in any specific case, different sections of the LAMC specify different requirements, the most restrictive shall govern.

SEC. 91.6709. SWINGING DOORS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.6709.1. Swinging wood doors which are openable from the inside without the use of a key shall be of one of the following constructions or shall be of a construction having equivalent forced entry resistance:

1. Solid core doors not less than 1-3/8 inches in thickness.
2. Wood panel type door with panels fabricated of lumber not less than 9/16-inch thickness, provided shaped portions of the panels are not less than 1/4-inch thick. Individual panels shall not exceed 300 square inches in area. Stiles and rails shall be of solid lumber with overall dimensions of not less than 1-3/8 inches in thickness and three inches in width. Mullions shall be considered a part of adjacent panels unless sized as required herein for stiles and rails, except mullions not over 18 inches long may have an overall width of not less than two inches. Carved areas shall have a thickness of not less than 3/8-inches. Dimensional tolerances published in recognized industry standards may be utilized.
3. Hollow core doors or doors less than 1-3/8 inches in thickness either of which are covered on the inside face with 16 gauge sheet metal attached with screws at six inches maximum centers around the perimeter. Glazing in doors shall be as set forth in Section 91.6713.

91.6709.2. A single swinging door the active leaf of a pair of doors, and the bottom leaf of Dutch doors shall be equipped with a deadbolt and deadlocking latch. The deadbolt and latch may be activated by one lock or by individual locks. Deadbolts shall contain hardened inserts to repel cutting tools. The lock or locks shall be key-operated from the exterior side of the door and openable from the interior side by a device which does not require a key, special knowledge, or special effort to operate.

EXCEPTIONS:

1. The latch may be omitted from doors in Group B, F, M, S Occupancies.
2. In other than residential buildings, locks may be key operated on the inside when not prohibited by the provisions of CBC Section 402.8.8 or CBC Chapter 10. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
3. A swinging door greater than five feet in width may be secured as set forth in Section 91.6711.

A straight deadbolt shall have a minimum throw of one inch and an embedment of not less than 5/8 inch into the holding device receiving the projected bolt. A hook-shaped or an expanding-lug deadbolt shall have a minimum throw of 3/4-inch. All deadbolts of locks which automatically activate two or more deadbolts shall embed at least 1/2-inch into the holding devices receiving the projected bolts.

91.6709.3. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The inactive leaf of a pair of doors and the upper leaf of Dutch doors shall be equipped with a deadbolt or deadbolts as set forth in LAMC Subsection 91.6709.2.

EXCEPTIONS:

1. The deadbolt or bolts need not be key operated, but shall not be otherwise activated from the exterior side of the door.
2. The deadbolt or bolts may be engaged or disengaged automatically with the deadbolt or by another device on either the active leaf or the lower leaf.
3. Manually operated hardened bolts at the top and bottom of the leaf which embed a minimum of 1/2 inch (12.7 mm) into the receiving device may be used when not prohibited by Division 10, Article 1, Chapter IX of the LAMC.

91.6709.4. Door stops of in-swinging doors shall be of one-piece construction with the jamb, or joined by rabbet to the jamb.

91.6709.5. All pin-type hinges which are accessible from outside the secured area when the door is closed shall have non-removable hinge pins. In addition, such hinges shall have jamb studs which project through both hinge leaves and prevent removal of the door if the pin is removed from the hinge. Jamb studs shall be not less than 1/4-inch-diameter steel and shall project into the door and jamb not less than 1/4 inch.

EXCEPTION: Jamb studs are not required for hinges which are shaped to prevent removal of the door if the hinge pin is removed.

91.6709.6. Cylinder guards shall be installed on all mortise or rim-type cylinder locks whenever the cylinder projects beyond the face of the door or is otherwise accessible to gripping tools.

91.6709.7. In wood construction, the metal strike plate for latches shall be secured to the jamb with screws and the holding device for projecting dead bolts shall be secured to the jamb and wall framing with at least two screws not less than 2-1/2 inches (64 mm) in length which penetrate the wall framing. In aluminum construction, the strike plate and dead bolt holding device shall be secured in an area of reinforced heavy gage jamb material. **(Amended by Ord. No. 171,858, Eff. 1/23/98.)**

SEC. 91.6710. SLIDING GLASS DOORS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Sliding glass doors shall be equipped with locking devices and shall be so constructed and installed that they remain intact and engaged when subjected to the tests specified in LAMC Subsection 91.6717.1. Cylinder guards shall be installed on all mortise or rim-type cylinder locks whenever the cylinder projects beyond the face of the door or is otherwise accessible to gripping tools. A device shall be installed in the upper channel of the moving panel to prohibit raising and removal of the moving panel from the track while in the closed position.

SEC. 91.6711. OVERHEAD AND SLIDING DOORS.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

Metal or wooden overhead and sliding doors shall be secured with a cylinder lock, padlock with a minimum 9/32-inch diameter hardened steel shackle bolted, hardened steel hasps, metal slide board, bolt or equivalent device unless secured by an electrical power operation.

Cylinder guards shall be installed on all mortise or rim-type cylinder locks whenever the cylinder projects beyond the face of the door or is otherwise accessible to gripping tools.

SEC. 91.6712. METAL ACCORDION-GRATE OR GRILLE-TYPE DOORS.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

Metal accordion-grate or grille-type doors shall be equipped with metal guides at the top and bottom and cylinder locks or padlocks having minimum 9/32-inch hardened steel shackles with hardened steel hasps, bolted in place. Cylinder guards shall be installed on all mortise or rim-type cylinder locks whenever the cylinder projects beyond the face of the door or is otherwise accessible to gripping tools.

SEC. 91.6713. GLAZED OPENING – GENERAL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

All windows, skylights, glazing in doors or other glazing in security openings shall conform to this section and to the applicable requirements of LAMC Sections 91.6714, 91.6715 and 91.6716.

Glazed openings within 40 inches (1016 mm) of the required locking device of the door, when the door is in the closed and locked position and when the door is operable from the inside without the use of a key, shall be fully tempered glass, conforming to the provisions of CBC Section 2406, or approved burglary-resistant material, or shall be protected by metal bars, screens or grilles having a pattern such that the maximum dimension of any opening does not exceed 2 inches (50.8 mm).

EXCEPTION: The provisions of this section shall not apply to sliding glass doors which conform to the provisions of LAMC Section 91.6710 or to view ports or windows which do not exceed 2 inches (50.8 mm) in their greatest dimension.

SEC. 91.6714. GLAZING.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

In Group B, F, M, S Occupancies, panes of glazing with at least one dimension greater than six inches, but less than 48 inches, shall be constructed of fully tempered glass or approved burglary-resistant material or shall be protected by metal bars or grilles which are constructed to preclude human entry. Such bars or grilles shall have a pattern such that at least one dimension of any opening shall be no greater than six inches.

SEC. 91.6715. WINDOWS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.6715.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Sliding glass windows shall be provided with locking devices and shall be so constructed and installed that they remain intact and engaged when subjected to the tests specified in LAMC Subsection 91.6717.2. A device shall be installed in the upper channel of the moving panel to prohibit the raising and removal of the moving panel from the track while in the closed or partially open position.

91.6715.2. Other openable windows shall be provided with substantial locking devices which render the building as secure as the devices required by this section. In Group B, F, M, S Occupancies, such devices shall be glide bars, bolts, cross bars and/or padlocks with minimum 9/32-inch hardened steel shackles and bolted, hardened steel hasps.

91.6715.3. Special. Louvered windows shall be protected by metal bars or grilles which are constructed to preclude human entry. Such bars or grilles shall have a pattern such that no less than one dimension of any opening shall be six inches or less.

91.6715.4. Any release for metal bars, grilles, grates or similar devices constructed to preclude human entry that are installed shall be located on the inside of the adjacent room and at least 24 inches from the closest opening through such metal bars, grilles, grates or similar devices that exceed two inches in any dimension.

EXCEPTION: Metal bars, grilles, grates or similar devices may be padlocked in position where such padlocks or similar devices are not prohibited by law.

SEC. 91.6716. OPENINGS OTHER THAN DOORS OR GLAZED OPENINGS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.6716.1. Security openings other than doors or glazed openings shall be protected in accordance with the requirements of this section.

91.6716.2. Hatchway covers of less than 1-3/4-inch thick solid wood construction shall be covered on the inside with 16-gauge sheet metal attached by screws around the

perimeter spaced at six-inch maximum centers.

91.6716.3. Hatchway covers shall be secured from the inside with slide bars, slide bolts, and/or padlocks with hardened steel shackles. Hasps shall be hardened steel and bolted.

91.6716.4. Outside pin-type hinges shall be provided with non-removable pins.

91.6716.5. Openings within 40 inches of the required locking device of the door when said door is in the closed and locked position and when said door is openable without the use of a key shall not exceed two inches in their greatest dimension or shall be protected by metal bars or grilles having a pattern such that the openings of which do not exceed two inches in the greatest dimension.

91.6716.6. All other openings shall be protected by metal bars or grilles constructed to preclude human entry. Such bars or grilles shall have a pattern such that no less than one dimension of any opening shall be six inches or less.

EXCEPTION: Openings which are more than 40 inches from the required locking device of a door in the closed and locked position when the door is openable from the inside without the use of a key, and which do not exceed 96 square inches in area, with no less than one dimension thereof being six inches or less.

SEC. 91.6717. TESTS – GENERAL.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

Doors, windows, and similar closures of security openings regulated by the provisions of this division, including the frames, jambs, hardware and locking devices of such closures, shall be shown to satisfactorily pass the tests specified in this division. The tests shall be performed by an approved testing laboratory on the units as installed at the jobsite or installed in test assemblies constructed according to the manufacturer's details. Each typical job installation shall be tested or the units shall be constructed and installed in conformance to a General Approval issued by the Department.

91.6717.1. Sliding Glass Doors. Panels shall be closed and locked. Tests shall be performed in the following order:

1. **Test A.** With the panels in the normal position, a concentrated load of 300 pounds shall be applied separately to each vertical pull stile incorporating a locking device at a point on the stile within six inches of the locking device in the direction parallel to the plane of glass that would tend to open the door.
2. **Test B.** Repeat Test A while simultaneously adding a concentrated load of 150 pounds to the same area of the same stile in a direction perpendicular to the plane of glass toward the interior side of the door.
3. **Test C.** Repeat Test B with 150-pound force in the reverse direction toward the exterior side of the door.
4. **Tests D, E and F.** Repeat Tests A, B and C with the movable panel lifted upwards to its full limit within the confines of the door frame.
5. Moveable panels shall not be rendered easily openable or removable from the frame during or after the tests or the panel shall have failed the test.

91.6717.2. Sliding Glass Windows. Sash shall be closed and locked. Tests shall be performed in the following order:

1. **Test A.** With the sliding sash in the normal position, a concentrated load of 150 pounds shall be applied separately to each sash member incorporating a locking device at a point on the sash member within six inches of the locking device in the direction parallel to the plane of glass that would tend to open the window.
2. **Test B.** Repeat Test A while simultaneously adding a concentrated load of 75 pounds to the same area of the same sash member in the direction perpendicular to the plane of glass toward the interior side of the window.
3. **Test C.** Repeat Test B with the 75-pound force in the reversed direction toward the exterior side of the window.
4. **Tests D, E and F.** Repeat Tests A, B and C with the movable sash lifted upwards to its full limit within the confines of the window frame.
5. Movable panels shall not be rendered easily openable or removable from the frame during or after the tests or the panel shall have failed the test.

DIVISION 70

GRADING, EXCAVATIONS AND FILLS

(Division 70 Amended by Ord. No. 171,175, Eff. 7/25/96.)

Section

- 91.7001 Purpose.
- 91.7002 Scope.
- 91.7003 Definitions.
- 91.7004 Grading Designation.
- 91.7005 General Requirements.
- 91.7006 Conditions Precedent to Issuing a Grading Permit.
- 91.7007 Safety Precautions During Grading.
- 91.7008 Professional Inspection and Certification for Engineered Grading.
- 91.7009 Professional Inspection for Regular Grading.
- 91.7010 Excavations.
- 91.7011 Fills.
- 91.7012 Planting and Irrigation of Cut and Fill Slopes in Hillside Areas.
- 91.7013 Erosion Control and Drainage Devices.
- 91.7014 Construction Requirements and Limitations.
- 91.7015 Buttress Fills.
- 91.7016 Areas Subjected to Slides and Unstable Soil.

SEC. 91.7001. PURPOSE.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

The purpose of this division is to safeguard life, limb, property and the public welfare by regulating grading on private property.

SEC. 91.7002. SCOPE.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

All grading shall be performed in accordance with the provisions of this division and with rules and regulations as established by the Superintendent of Building, and shall be in accordance with the zoning, private street and division of land regulations contained in Chapter I of the Los Angeles Municipal Code, and the requirements of the approved General Plan for the area in which the grading is to be done.

SEC. 91.7003. DEFINITIONS.

(Amended by Ord. No. 171,939, Eff. 4/15/98.)

For the purposes of this division the definitions listed hereunder shall be construed as specified in this section.

APPROVAL shall mean the proposed work or completed work conforms to this division to the satisfaction of the Superintendent of Building. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

AS-GRADED is the extent of surface conditions on completion of grading.

BEDROCK is in-place solid rock.

BENCH is a relatively level step excavated into earth material on which fill is to be placed.

BORROW is earth material acquired from an on-site or off-site location for use in grading on a site.

CIVIL ENGINEER is a professional engineer registered in the state to practice in the field of civil engineering works.

CIVIL ENGINEERING is the application of the knowledge of the forces of nature, principles of mechanics and the properties of materials to the evaluation, design and construction of civil works.

COMPACTION is the densification of a fill by mechanical means.

EARTH MATERIAL is any rock, natural soil, fill, or combination thereof.

ENGINEERING GEOLOGIST is a geologist duly licensed by the State of California and experienced and knowledgeable in engineering geology.

ENGINEERING GEOLOGY is the application of geologic knowledge and principles in the investigation and evaluation of naturally occurring rock and soil for use in the design of civil engineering works.

EROSION is the wearing away of the ground surface as a result of the movement of wind, water or ice.

EXCAVATION is the mechanical removal of earth material.

FILL is a deposit of earth material placed by artificial means.

GEOTECHNICAL ENGINEER. See "soils engineer."

GRADE is the vertical location of the ground surface.

Existing Grade is the grade prior to grading.

Finish Grade is the final grade of the site which conforms to the approved plan.

Rough Grade is the stage at which the grade approximately conforms to the approved plan.

GRADING is any excavating or filling or combination thereof.

HILLSIDE AREAS shall mean any land designated as a Hillside Area based on the latest Bureau of Engineering Basic Grid Map No. A-13372 and made part of this section.

BASIC GRID MAP

No. A-13372

(Added by Ord. No. 129,885, Eff. 4/19/65.)

Editor's Note: The map referred to in this section is on file in the official City documents located in the Office of the City Clerk in Council File No. 121222 Sup. #1.

KEY is a designed compacted fill placed in a trench excavated in earth material beneath the toe of a proposed fill slope.

PROFESSIONAL INSPECTION is the inspection required by this Code to be performed by the civil engineer, soils engineer or engineering geologist. Such inspections include that performed by persons supervised by such engineers or geologists and shall be sufficient to form an opinion relating to the conduct of the work.

ROCK is any consolidated or coherent and relatively hard natural formed mass of mineral material.

SEEPAGE is the flow of water through earth material caused by gravitational forces. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

SITE is any lot or parcel of land or contiguous combination thereof, under the same ownership, where grading is performed or permitted.

SLOPE is an inclined ground surface the inclination of which is expressed as a ratio of horizontal distance to vertical distance. Slope greater than 10% shall be considered as a sloping surface.

SLOPE FAILURE, Class I, shall involve bedrock, and a combined geologic and geotechnical report need to be submitted to address its cause and to provide

recommended repair methods.

SLOPE FAILURE, Class II, shall involve soil, and a geotechnical report needs to be submitted to address its cause and to provide recommended repair methods.

SLOPE FAILURE, Class III, shall involve surficial problems, and unless determined as necessary by Inspection, neither a geologic nor a geotechnical report is required prior to the repair.

SOIL is naturally occurring superficial deposits overlying bedrock.

SOILS ENGINEER (GEOTECHNICAL ENGINEER) shall mean a civil engineer duly licensed by the State of California who is experienced in the application of the principles of soil mechanics in the investigation, evaluation and design of civil works involving the use of earth materials. **(Amended by Ord. No. 181,758, Eff. 8/8/11.)**

SOILS ENGINEERING (GEOTECHNICAL ENGINEERING) is the application of the principles of soils mechanics in the investigation, evaluation and design of civil engineering works involving the use of earth materials and the inspection or testing of the construction thereof.

TERRACE is a relatively level step constructed in the face of a graded slope surface for drainage and maintenance purposes.

SEC. 91.7004. GRADING DESIGNATION.

(Amended by Ord. No. 171,939, Eff. 4/15/98.)

Grading in designated hillside areas or in excess of 5,000 cubic yards (3825 m³) of either cut or fill, or a combination thereof, shall be performed in accordance with the approved grading plan prepared by a civil engineer, and shall be designated as “**engineered grading**”. Grading involving less than 5,000 cubic yards (3825 m³) in a non hillside area shall be designated “**regular grading**” unless the permittee chooses to have the grading performed as engineered grading, or the Superintendent of Building determines that special conditions or unusual hazards exist, in which case grading shall conform to the requirements for engineered grading.

SEC. 91.7005. GENERAL REQUIREMENTS.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.7005.1. Hillside Areas. No person shall conduct any grading operation for other than building site development in hillside areas.

EXCEPTION: Grading which is not connected with building site development may be conducted in hillside areas when the Department finds that such work enhances the physical stabilization of property, or is not detrimental to public health, safety or welfare, and is in conformity with the approved master plan for the area. A tentative tract or division of land map shall also not be required for such exempt grading.

91.7005.2. Building Foundations. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** Building foundations and temporary shoring shall be designed and constructed as specified in Division 4, Article 1.5, Chapter IX of the LAMC or in Division 18 and Division 33, Article 1, Chapter IX of the LAMC.

91.7005.3. Removal of Ground Cover. **(Amended by Ord. No. 181,758, Eff. 8/8/11.)** The existing vegetative ground cover of any watershed in any hillside area shall not be destroyed, removed or damaged except pursuant to lawful grading, use or occupancy of the property. Except for California native oak, bay, black walnut and sycamore trees regulated by the provisions of Article 7 of Chapter I or Article 6 of Chapter IV of the Los Angeles Municipal Code, removal of trees and shrubbery will be allowed where such work will not disturb the turf, sod or other existing vegetative ground cover. Whenever such ground cover is removed or damaged pursuant to a grading permit, the permittee shall restore and maintain approved ground cover, or shall accomplish such other erosion control protection as is required. Such erosion control shall be completed within 30 days after cessation of the grading work where no valid building permit is in effect for the site.

91.7005.4. Exceptions for Emergencies. **(Amended by Ord. No. 171,939, Eff. 4/15/98.)** The provisions of this Code shall be temporarily waived for any grading operation which is conducted during a period of emergency disaster and which is directly connected with or related to relief of conditions caused by such emergency or disaster. This emergency exception shall not be construed to waive compliance with the provisions of this Code subsequent to the emergency or disaster.

91.7005.5. Cemetery Interment Sites. **(Amended by Ord. No. 171,939, Eff. 4/15/98.)** Cemetery interment sites shall not be located on slopes steeper than one unit vertical in three units horizontal (33.3% slope), provided further, where interment sites are located adjacent to slopes steeper than one unit vertical in two units horizontal (50% slope), the site shall not be located closer to the face of such slopes than a one unit vertical in two units horizontal (50% slope) imaginary plane projected up from the toe of the slope.

EXCEPTION: Encroachment of the interment sites beyond the imaginary plane may be permitted, provided it can be shown to the Department's satisfaction through investigation and report by both a soils engineer and an engineering geologist that the underlying bedrock and the materials on the slope have strength characteristics sufficient to provide a stable soil with a minimum factor of safety of not less than 1.5 static loads.

No permit shall be required for preparing an area for planting of lawn or landscaping in a cemetery, provided the resulting maximum slope of one unit vertical in three units horizontal (33.3% slope) is maintained and there is no change to the existing drainage pattern.

The Department may waive or reduce the requirements of LAMC Sections 91.7012 and 91.7013 for planting, irrigation, erosion control and drainage devices for portions of a cemetery graded or to be graded with a maximum slope of one unit vertical in three units horizontal (33.3% slope) if the applicant shows to the Department's satisfaction that slope erosion and drainage will be controlled entirely within the boundaries of the property which is dedicated, used or to be used for cemetery purposes. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.7005.6. Maintenance of Protective Devices. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** The owner of any property on which an excavation or fill has been made pursuant to a permit granted under Division 1, Article 1, Chapter IX of the LAMC, or any other person or agent in control of such property, shall maintain in good condition and repair all retaining walls, cribbing, drainage structures and other protective devices, on said property, as shown on the approved plans and specifications submitted with the application for a permit.

91.7005.7. Hazardous Soil and Earth Conditions. **(Amended by Ord. No. 171,939, Eff. 4/15/98.)** Whenever the Department determines by inspection that any land or any existing excavation or fills have, from any cause, become a menace to life or limb, or endangers public or private property, or affects the safety, usability or stability of public or private property, the owner or other person in legal control of the property concerned shall, upon receipt of a written notice thereof from the Department, correct such condition in accordance with the provisions of this division and the requirements and conditions set forth in the notice so as to eliminate the hazardous condition. The owner or other person in legal control of the property shall immediately comply with the provisions set forth in the notice and shall complete the work within 180 days from the date of the notice unless a shorter period of time for completion has been specified in the notice in which case the owner shall comply with the shorter period of time. Upon written application therefor, the Department may approve the request for an extension of time to complete the work required by notice.

If the above condition is not eliminated within the specified time period, the Department shall file with the Office of the County Recorder a certificate stating that the property is substandard and that the owner thereof has been so notified. The certificate shall specify the conditions creating the substandard classification.

When the above conditions have been corrected to the Department's satisfaction, upon receiving a \$60 fee from the owner or the owner's agent, the Department shall file with the Office of the County Recorder a certificate specifying that the conditions creating the substandard classification have been corrected and that the property is no longer considered substandard.

91.7005.8. Violations.

91.7005.8.1. General. (Amended by Ord. No. 171,939, Eff. 4/15/98.) No person shall fail, refuse or neglect to comply with the following provisions:

1. All orders issued by the Department pursuant to the provisions of this division;
2. All conditions imposed on grading permits pursuant to the provisions of this division; and
3. All rules and regulations of the Department with respect to grading which are in effect at the time the grading permit is issued.

Any person violating the above shall be guilty of a misdemeanor.

91.7005.8.2. Noncompliance Fee. (Amended by Ord. No. 171,939, Eff. 4/15/98.) See Section 98.0411 of the Los Angeles Municipal Code.

91.7005.8.3. (Deleted by Ord. No. 171,939, Eff. 4/15/98.)

91.7005.9. Nonconforming Sites. (Amended by Ord. No. 186,488, Eff. 12/27/19.) All new buildings and additions to existing building shall conform to the provisions of the Code as follows.

1. Whenever a new principal building is constructed on a site, the entire site shall be made to conform to the provisions of this division and Chapter 18 of the CBC.
2. Whenever the principal building on the site is added to, altered or repaired in excess of 50% of its replacement value, the entire site shall be made to conform to the provisions of this division and Chapter 18 of the CBC.

SEC. 91.7006. CONDITIONS PRECEDENT TO ISSUING A GRADING PERMIT.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.7006.1. Plans and Specifications. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Application for a grading permit shall be accompanied by plans and specifications prepared and signed by an individual licensed by the State to prepare such documents. Plans shall be drawn to appropriate scale upon substantial paper or cloth and shall be of sufficient clarity to indicate the nature and extent of the work proposed and show in detail that they will conform to the provisions of this Code and all relevant laws, ordinances, rules and regulations.

The first sheet of each set of plans shall give location of the work, the name and address of the owner and the person by whom they were prepared.

The plans shall include, but not be limited to, the following information:

1. General vicinity of the proposed site.
2. Property limits and accurate contours of existing ground and details of terrain and area drainage.
3. Limiting dimensions, elevations or finish contours to be achieved by the grading, and proposed drainage channels and related construction.
4. Detailed plans of all surface and subsurface drainage devices, walls, cribbing, dams and other protective devices to be constructed with, or as a part of, the proposed work together with a map showing the drainage area and the estimated runoff of the area served by any drains.
5. Location of any buildings or structures on the property where the work is to be performed and the location of any buildings or structures on land of adjacent owners which are within 15 feet (4572 mm) of the property or which may be affected by the proposed grading operations.
6. The location of the top and toe of all cuts and fills, the location of all "daylight" lines, the amount of cut and fill, the location of disposal site for excess material, if known, and the estimated dates for starting and completing grading work.
7. When reports are required pursuant to LAMC Subsection 91.7006.2, recommendations included in the approved soils engineering report and engineering geology report shall be incorporated into the grading plans. A copy of the soils report, geological report, and Department letter approving such reports shall be attached to the approved set of grading plans and kept at the job site. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
8. When reports are required pursuant to LAMC Subsection 91.7006.2, the dates of the soils engineering and engineering geology reports together with the names, addresses and phone numbers of the firms or individuals who prepared the reports shall be incorporated in the grading plans. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The Department may require some plans to be prepared by a licensed surveyor when the property location and its limits are not clear. Portions of the aforementioned plan requirements may be waived by the Department if it finds that the information on the application and/or submitted plans is sufficient to show that the work will conform to the provisions of this Code and other relevant laws.

91.7006.2. Report Requirement. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Reports shall be submitted to the Department for review and approval in, but not limited to, the following circumstances:

1. Soils and/or geological reports are required when they are stipulated in a Grading Pre-inspection Report prepared in accordance with Chapter IX of the LAMC.
2. Soils and geological reports are required for all grading work in excess of 5,000 cubic yards (3825 m³) of cut or fill, or a combination thereof.
3. Soils reports are required when the design of the foundations does not conform to the requirements of Division 18, Article 1, Chapter IX of the LAMC.
4. Soils and/or geological reports may be required when previously unknown adverse soils or geologic conditions are revealed during construction.
5. Soils and/or geological reports may be required to evaluate liquefaction, slope instability and surface ground rupture resulting from earthquake motions in accordance with CBC Section 1803.

The Superintendent of Building may require a geotechnical investigation in accordance with CBC Section 1803.2 to address the potential of liquefaction when, during the course of an investigation, all of the following conditions are discovered:

- a. Shallow ground water, 50 feet (1524 m) or less.
- b. Unconsolidated sandy alluvium.

91.7006.3. Report Content.

91.7006.3.1. Soils Engineering Report. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The soils engineering report required by LAMC Subsection 91.7006.2 shall include: data regarding the nature, distribution and strength of existing soils; conclusions and recommendations for grading procedures and design criteria for corrective measures, including buttress fills, when necessary; and opinion on the adequacy of the intended use of sites to be developed by the proposed grading as affected by soils engineering factors, including the stability of slopes.

91.7006.3.2. Engineering Geology Report. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The engineering geology report required by LAMC Subsection 91.7006.2 shall include an adequate description of the geology of the site, conclusions and recommendations regarding the effect of geologic conditions on the proposed development, and opinion on the adequacy for the intended use of sites to be developed by the proposed grading, as affected by geologic factors.

In addition, all soils engineering and engineering geology reports for grading work in hillside areas shall also comply with rules and standards established by the Department.

91.7006.4. Hillside Exploratory Work. Surface and subsurface exploratory work shall be performed by a soils engineer and an engineering geologist on all hillside grading work. This exploratory work shall conform to the rules and regulations for hillside exploratory work established by the general manager of the Department. The Department may waive this requirement when it determines from the application and site conditions that the proposed grading will conform to the provisions of the Code.

No person shall conduct any grading operation for the access of exploration equipment unless the Department has approved a plan signed by the soils engineer and/or geologist showing the extent of access grading and how the site is to be restored after exploration.

91.7006.5. Bonds in Hillside Areas Required. The Superintendent of Building may require bonds in such form and amounts as may be deemed necessary to assure that the work, if not completed in accordance with the approved plans and specifications, will be corrected to eliminate hazardous conditions.

91.7006.5.1. Surety Bond. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Before a permit is issued for excavation or fill of 250 cubic yards (191.3 m³) or more of earth in a hillside area, the owner of the property shall file with the Department a bond for the benefit of the city. The bond shall be executed by the owner and a corporate surety authorized to do business in this state as a surety in an amount sufficient to cover the entire project.

EXCEPTION. Upon application by the owner, the Department may waive this requirement if:

1. The proposed grading is neither actually nor potentially hazardous;
2. The grading work performed is in compliance with a Department order; or
3. The applicant can substantiate, to the satisfaction of the Department, that the work under a grading permit will be fully executed.

91.7006.5.2. Cash Bond. In lieu of a surety bond, the owner may file a cash bond with the Department on the same terms and conditions and in an amount equal to that which would be required in the surety bond. The deposit may be in the form of negotiable United States securities in lieu of cash.

91.7006.5.3. Application of Bond to Adjacent Property. Where grading is required on property adjacent to the grading site under permit in order to complete a project satisfactorily, the owner of such adjacent property need not provide an additional grading bond if the original bond is of sufficient amount to include such additional grading.

91.7006.5.4. Conditions of the Bond. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Every bond shall be conditioned such that the owner shall:

1. Comply with all applicable provisions of this Code and all other applicable laws;
2. Comply with all of the terms and conditions of the grading permit to the satisfaction of the Department;
3. Complete all of the work described by the permit, and the plans and specifications relating thereto, within the time limit specified in the permit. Upon application by the permittee, the Department, or the Board, in case an appeal is made to it pursuant to Section 98.0403 of the Los Angeles Municipal Code, may, for sufficient cause, extend the time specified in the permit, but no such extension shall release any surety on the bond.
4. Install temporary erosion control devices when required to do so by the provisions of this Code.

91.7006.5.5. Period and Termination of Bond. The term of each bond shall begin on the date of filing and shall remain in effect until the work is completed to the satisfaction of the Department or until replaced by a new bond in the event of a change of ownership. In the event of failure to complete the work and/or failure to comply with all of the conditions and terms of the permit, the Department may order some or all of the work to be completed to correct any hazardous conditions. The surety executing such bond, or such deposit, shall continue to be firmly bound under a continuing obligation for the payment of all necessary costs and expenses that may be incurred or expended by the city in causing any and all of such required work to be done and that said surety or the depositor assents to any lawful extension of time within which to construct and complete such work. Such costs shall include an amount equal to the cost to the city of administering the contract and supervising the work required. In the case of a cash bond, the deposit, or any unused portion thereof, shall be refunded to the depositor upon completion of the work to the satisfaction of the Department. The Department may release or exonerate the bond under appropriate conditions when the public health and welfare is not jeopardized.

91.7006.5.6. New Ownership. (Amended by Ord. No. 171,939, Eff. 4/15/98.) In the event of change of ownership during grading, the new owner shall secure a new grading permit and post a new bond to ensure completion of the grading.

91.7006.5.7. Amount of Bond. (Amended by Ord. No. 171,939, Eff. 4/15/98.) The amount of the bond shall be based on the number of cubic yards of material in either excavation or fill, whichever is the greater amount, and in addition shall include the cost of all drainage or other protective devices such as, but not limited to retaining walls, as may lawfully be required. That portion of the bond valuation covering the cost of excavation or fill shall be computed as follows:

250 to 10,000 cubic yards \$1,000, plus \$1.00 per cubic yard
10,001 to 100,000 cubic yards \$11,000, plus 50 cents per cubic yard for each additional cubic yard in excess of 10,000
Over 100,000 cubic yards \$56,000, plus 35 cents per cubic yard for each additional cubic yard in excess of 100,000

For SI: 1 cubic yard = 0.765 m³

91.7006.5.8. Installment Refunds. When a substantial portion of the required grading work has been completed to the satisfaction of the Department, and when the completion of the remaining grading work, site development or planting is delayed, the Department may accept the completed portion of the grading work and consent to the proportionate reduction of the bond to an amount estimated to be adequate to ensure completion of the grading work, site development or planting remaining to be performed. Only one such reduction shall be considered for each bond posted.

91.7006.5.9. Entry Upon Premises. The Department, the Board of Public Works, the surety company, or their duly authorized representative, shall have access to the premises described in the permit for the purpose of inspecting the progress of the work.

In the event of default in the performance of any terms or conditions of the permit, the surety or any person employed or engaged in the person's behalf shall have the right to go upon the premises to complete the required work, including the installation of temporary erosion control devices.

Should the permittee or the surety fail to perform the work described by the permit and the plans and specification relating thereto or required by any applicable law, and it is

determined by either the Department or the Board of Public Works that the public health, safety or general welfare is endangered by such failure, the Department, the Board of Public Works, or the representative of either may enter upon the premises to perform all or any part of such work, including the installation of temporary erosion control devices.

It shall be unlawful for the owner or any other person to interfere with the ingress and egress from such premises of any authorized representative or agent of any surety company or the city engaged in the work ordered by the Department or the Board of Public Works.

91.7006.6. Consent of Adjacent Property Owner. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever any excavation or fill requires entry onto adjacent property for any reason, the permit applicant shall obtain the written consent of the adjacent property owner or the owner's authorized representative, and shall file a copy of said consent with the Department before a permit for such grading work may be issued. The signature on such written consent shall be notarized.

In the event contours on adjacent properties are permanently changed, structures or drainage devices are added or modified, and/or the work done requires a grading permit under LAMC Subdivision 91.106.1.2, a separate permit shall be required for each such affected adjoining property in addition to the consent letter. Furthermore, the adjacent property owner shall acknowledge their consent on plans showing such work. The consent letter will not be required if the adjoining owner obtains a grading permit.

91.7006.7. Limitation of Export and Import.

91.7006.7.1. Export-import Defined. (Amended by Ord. No. 171,939, Eff. 4/15/98.) As used in this division, the term "export" and its derivatives shall be defined as the earth, brush or similar materials transported from a grading site. The term "import" and its derivatives shall be defined as earth, brush or similar materials transported to a grading site.

91.7006.7.2. General Conditions. (Amended by Ord. No. 171,939, Eff. 4/15/98.) The Department may designate routes of ingress and egress and may impose such conditions and require such safety precautions for pedestrian and vehicular traffic as it determines are required in the interest of public health, safety and welfare.

The imposed conditions may include, but are not limited to:

1. Restricting the size and type of hauling equipment.
2. Requiring traffic control device, flaggers, and signs and markers at appropriate locations along the designated routes as provided in the City of Los Angeles Department of Public Works and Traffic pamphlet, "**Work Area Traffic Control Handbook**", 1990 Edition, or latest subsequent revisions.
3. Establishing a temporary "**no parking**" area authorized by the general manager of the Transportation Department when determined to be necessary.
4. Securing all loads by trimming, watering or other appropriate means to prevent spillage and dust.

91.7006.7.3. Subdivision Conditions. All conditions of import and export imposed in the approval of a tentative tract map shall be made a part of the grading permit.

91.7006.7.4. Baseline Hillside Ordinance Conditions. (Added by Ord. No. 182,850, Eff. 1/3/14.) All conditions of import and export imposed in the approval of the project with respect to the Baseline Hillside Ordinance shall be made a part of the grading permit.

91.7006.7.5. Special Hillside Conditions. (Renumbered by Ord. No. 182,850, Eff. 1/3/14.) No permit requiring the import or export of more than 1,000 cubic yards (764 m³) shall be issued for areas designated "hillside" except as specified in this section. A fee of \$529.00 for the first 1,000 cubic yards and \$100.00 additional for each 1,000 cubic yards or portion of 1,000 cubic yards, in addition to the permit fee shall be paid for processing an application for grading under the provisions of this section.

1. The applicant shall submit a proposed method of hauling, which shall include the location of borrow and/or dispersal sites within the hillside area, the truck staging areas, the portion of the haul route within the hillside area and extending to or from a major or secondary highway, the maximum gross weight of haul vehicles when loaded and other information as may be required by the Departments of Building and Safety, Transportation and Public Works. In addition, the applicant shall submit a copy of the soil/geological report approval letter when reports are required pursuant to LAMC Subsection 91.7006.2, a vicinity map, and a list of affected property owners to be notified of the public hearing pursuant to Item 4 of LAMC Subdivision 91.7006.7.5. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

2. The Department shall immediately forward a copy of the hauling proposal to the Department of Public Works which shall review same to determine the effect of the proposed hauling operation on the structural integrity of the public streets, on public safety due to street alignment, width and grade, and on public health and welfare due to noise and vibration as it may affect private property situated on or adjacent to the haul route within the hillside area.

The Department of Public Works shall collect a fee and may require a bond as specified in Article 2 of Chapter VI of the Los Angeles Municipal Code. The Department of Public Works may, within 21 days after receipt of the proposal, recommend conditions to be imposed on the hauling operations to protect the public health, safety and welfare in the respects hereinabove specified.

3. The Department shall also immediately forward a copy of the hauling proposal to the Department of Transportation which shall review same to determine the effect thereof on vehicular and pedestrian traffic in the affected area. The Department of Transportation may, within 21 days after receipt of the proposal, recommend any traffic control measures deemed necessary to protect the public health, safety and welfare.

4. The Department shall, within 45 days after receipt of the proposed method of hauling, schedule a public hearing before the Board, provided that any environmental document required pursuant to the provisions of the California Environmental Quality Act has been completed and that the soils/geology report for the project, if required pursuant to LAMC Subsection 91.7006.2, has been reviewed and approved by the Department's Grading Division. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The Department shall give notice of the time, place and purpose of the hearing as follows:

- a. by publishing a notice in at least one publication of general circulation in the City, designated for that purpose by the City Clerk, not less than ten days prior to the date of the hearing; and
- b. by mailing a written notice at least ten days prior to the date of the hearing to the owner or owners of the property involved, and to the owners of all properties within 300 feet (91 440 mm) of the exterior boundaries of the site for which the grading permit has been requested using, for the purpose of notification, the last known name and address of owners as are shown on the records of the City Engineer or the records of the County Assessor; and **(Amended by Ord. No. 181,595, Eff. 4/10/11.)**
- c. by the applicant posting notice of the public hearing in a conspicuous place and in clear public view on the property involved at least five days prior to the date of the public hearing.

5. At the public hearing, the Board shall consider the views of the applicant and other affected persons. The Board shall then grant or conditionally grant approval of export and import operations or, in the event it determines that the grading activity, including the hauling operation, will endanger the public health, safety and welfare, it shall deny the request. Where conditions of the permit are recommended by the Department of Public Works, including the condition that a bond be posted pursuant to LAMC Section 62.202, such conditions shall be made a part of any permit that may be issued. The decision of the Board shall not be effective until ten (10) calendar days have elapsed from the date of the Board's decision. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

6. Any affected person, including the applicant, who is dissatisfied with the decision of the board, may appeal the board decision within ten days to the City Council

by filing an appeal with the City Clerk. The City Council shall hear and make its determination on the appeal not later than the 30th day after the appeal has been filed. The decision of the City Council on the matter shall be final. If the City Council fails to act on any appeal within the time limit specified in this section, the action of the board on the matter shall be final. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

7. The provisions of this section shall not apply to applications for permits which apply to export or import operations which have been approved in accordance with Section 17.13 of the Los Angeles Municipal Code.

91.7006.8. Conformance with Zoning Regulations Required.

91.7006.8.1. Subdivision Map Act. (Amended by Ord. No. 171,939, Eff. 4/15/98.) No permit shall be issued for any grading or import or export of earth materials to or from any grading site except in compliance with the zoning, private street and division of land regulations contained in Chapter I of the Los Angeles Municipal Code, the Subdivision Map Act of the State of California and the approved master plan for the area in which the grading is to be done.

91.7006.8.2. (Deleted by Ord. No. 186,488, Eff. 12/27/19.)

91.7006.8.3. Baseline Hillside Ordinance. (Added by Ord. No. 184,692, Eff. 12/30/16.) No grading permit shall be issued for the import or export of earth materials to or from and no grading shall be conducted on any grading site in hillside ordinance areas unless the Building Permit has been approved in compliance with the Baseline Hillside Ordinance.

EXCEPTION: The requirements of this section shall not apply to any grading that is determined by the Department to be Remedial Grading as defined in LAMC Section 12.03.

SEC. 91.7007. SAFETY PRECAUTIONS DURING GRADING.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

If at any stage of work on an excavation or fill the Department determines that further work as authorized by an existing permit is likely to endanger any property or public way, the Department may require as a condition to allow the work to continue that plans for such work be amended to include adequate safety precautions. Safety precautions may include, but shall not be limited to, specifying a flatter exposed slope or construction of additional drainage facilities, berms, terracing, compaction, cribbing, retaining walls or buttress fills, slough walls, desilting basins, check dams, benching wire mesh and guniting, rock fences revetments or diversion walls.

No person shall excavate or fill so as to cause falling rocks, soil or debris in any form to fall, roll, slide or flow onto adjoining properties.

91.7007.1. Restriction of Work During Rainy Season. (Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) The period between October 1 and April 15 is hereby determined to be the period in which heavy rainfall normally occurs in the City of Los Angeles and is declared to be the “rainy season”. During this period no grading work in excess of 200 cubic yards (153 m³) shall be commenced on any single grading site under permit until an erosion control system has been approved and it has been demonstrated to the Department’s satisfaction that such grading work will not endanger life, limb, health, property or public welfare.

Whenever it appears that repair work to rectify substandard conditions and any grading project previously commenced pursuant to a permit issued by the Department will not be completed prior to the commencement of the rainy season, the Department may order and the permittee shall install temporary erosion control devices to protect the persons and property near such project. In addition, the Board of Public Works may direct the permittee to comply with the provisions of LAMC Section 61.02. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

All hillside property owners or their agents shall submit erosion control plans to their district grading inspectors prior to October 1 for grading projects within unfinished grading work in excess of 200 cubic yards (153 m³) and sites with substandard conditions, unless specifically exempted by the grading inspectors.

91.7007.2. Duration of Work. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No person shall conduct any grading excavation or filling, including the export or import of earth material, between the hours of 6:00 p.m. and 7:00 a.m. on any day nor on Sunday at any time, except in emergencies as provided in LAMC Subsection 91.7005.4.

SEC. 91.7008. PROFESSIONAL INSPECTION AND CERTIFICATION FOR ENGINEERED GRADING.

(Amended by Ord. No. 171,939, Eff. 4/15/98.)

Grading operations, as indicated in LAMC Subsection 91.108.9, for which a permit is required shall be subject to inspection by the Department. Professional inspection of grading operations shall be provided by the civil engineer, soils engineer and the engineering geologist retained to provide such services in accordance with LAMC Subsection 91.7008.6 for engineered grading and as required by the Department for regular grading. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.7008.1. Civil Engineer. The civil engineer shall provide professional inspection within such engineer’s area of technical specialty, which shall consist of observation and review as to the establishment of line, grade and surface drainage of the development area. If revised plans are required during the course of the work, they shall be prepared by the civil engineer.

Upon completion of hillside tract grading, grading work in excess of 5,000 cubic yards (3825 m³) of either cut or fill, or a combination thereof, and other grading work if deemed warranted by the Department, the civil engineer or land surveyor responsible for the design shall submit a dated as-graded plan to the Department for approval of all work covered by the grading permit(s) and shall include the following:

1. The plan shall be no more than one-inch equals 40 feet scale (25 mm equals 12 192 mm scale) and shall show the locations of streets, pads, slopes, structures, pertinent elevations, original contours and finished elevations, and other pertinent information required to accurately show the as-graded condition.

2. The plan shall bear the signature of the design civil engineer or land surveyor which shall certify the engineer or surveyor has inspected the site, prepared the as-graded plans and that the work within the engineer’s or surveyor’s area of responsibility was done in accordance with the final approved grading plan.

91.7008.2. Soils Engineer. The soils engineer shall provide professional inspection within such engineer’s area of technical specialty, which shall include observation during grading and testing for required compaction. The soils engineer shall provide sufficient observation during the preparation of the natural ground and placement and compaction of the fill to verify that such work is being performed in accordance with the conditions of the approved plan and the appropriate requirements of this division. Revised recommendations relating to conditions differing from the approved soils engineering and engineering geology reports shall be submitted to the owner, the Department and the civil engineer.

The soils engineer, at the completion of hillside tract grading, grading work in excess of 5,000 cubic yards (3825 m³) of either cut or fill, or a combination thereof, and other grading work if deemed warranted by the Department, shall submit a final report. The final report shall include:

1. The soil engineer’s professional opinion of the suitability of the fill material and their placement, and the ability of the natural materials to support the compacted fill without excessive settlement of the fill or potential damage to structures erected thereon;

2. The results of all in-place density tests;

3. A statement that all subdrains were inspected prior to backfill;
4. A statement to the effect that the soils engineer has inspected all cuts and fills and that in the soil engineer's opinion they meet the design requirements; and
5. All locations of the in-place density tests, retaining walls, subdrains and cut/fill slopes shall be shown on a plot plan which may be referenced to a dated as-graded plan prepared by the design civil engineer or land surveyor.

91.7008.3. Engineering Geologist. The engineering geologist shall provide professional inspection within such geologist's area of technical specialty, which shall include professional inspection of the bedrock excavation to determine if conditions encountered are in conformance with the approved report. Revised recommendations relating to conditions differing from the approved engineering geology report shall be submitted to the soils engineer and the Department. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

For hillside tract grading, grading work in excess of 5,000 cubic yards (3825 m³) of either cut or fill, or a combination thereof, and other grading work if deemed warranted by the Department, geologists shall submit periodic in-grading inspection reports at intervals determined by the Department. In addition, the engineering geologist at the completion of grading shall submit a final geological report stating that the geologist had maintained the required in-grading inspection, the recommendations of their pregrading report(s) have been followed, that in their professional opinion all known adverse geologic conditions have been corrected or provided for, future adverse geologic conditions are not anticipated, and all lots or sites are geologically suitable and safe for construction.

The final report shall include the geologist's certification that the geologist has inspected all cut slopes and sidehill fill placement areas prior to placement of fill. The engineering geologist shall also certify that all subdrain placement areas were inspected prior to installation of the subdrains. The final report shall be referenced to a dated as-graded plan prepared by the design civil engineer or land surveyor.

91.7008.4. Grading Contractor. For hillside tract grading, grading work in excess of 5,000 cubic yards (3825 m³) of either cut or fill, or a combination thereof, and other grading work if deemed warranted by the Department, the grading contractor shall submit in a form prescribed by the Superintendent of Building a statement of conformance to said as-built plan and the specifications.

91.7008.5. Transfer of Responsibility. If, for any reason, the civil engineer, the soils engineer, or the engineering geologist of record is terminated during the progress of the grading work, that engineer or geologist, and the owner, shall immediately notify the Department in writing.

Such transfer of responsibility may result in temporary delays in the grading operations until satisfactory arrangements are made to assure the Department that competent professional supervision is provided. The new professional(s) shall submit to the Department a letter of responsibility that the previous professional's designs, reports and recommendations have been reviewed and all provisions of the Department required as conditions of the grading permit will be complied with during the course of the work.

91.7008.6. Owner. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The owner shall be responsible for the work to be performed in accordance with the approved plans and specifications and in conformance with the provisions of this Code, and the owner shall engage consultants, if required, to provide professional inspections on a timely basis. The owner shall provide a Registered Deputy Grading Inspector as required by LAMC Section 91.1704. The owner shall act as a coordinator between the consultants, the contractor and the Superintendent of Building. In the event of changed conditions, the owner shall be responsible for informing the Superintendent of Building of such change and shall provide revised plans for approval. The Department may require the submittal of a supplemental soils and/or geological report justifying such change.

91.7008.7. Notification of Noncompliance. (Amended by Ord. No. 186,488, Eff. 12/27/19.) If, in the course of fulfilling their respective duties under this division, the civil engineer, the soils engineer or the engineering geologist finds that the work is not being done in conformance with this division or the approved grading plans, the discrepancies shall be reported immediately in writing to the owner and to the Grading Division of the Department.

SEC. 91.7009. PROFESSIONAL INSPECTION FOR REGULAR GRADING.
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

When soils and/or geological reports are submitted to the Department per LAMC Subsection 91.7006.2, professional inspection for regular grading work may be required by the Department and so stipulated on a Department letter approving such reports.

SEC. 91.7010. EXCAVATIONS.
(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.7010.1. Height. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) No cut slope shall exceed a vertical height of 100 feet (30 480 mm) unless horizontal benches with a minimum width of 20 feet (6096 mm), as shown in Figure D are installed at each 100 feet (30 480 mm) of vertical height.

91.7010.2. Slope. (Amended by Ord. No. 186,488, Eff. 12/27/19.) No excavation shall be made with a cut face steeper than one unit vertical in two units horizontal (50% slope).

EXCEPTION: The Department or the Board of Building and Safety Commissioners (Board), in case an appeal is made to it under LAMC Section 91.105, may permit the excavation to be made with a cut face steeper in slope than 1 unit vertical in 2 units horizontal (50% slope) if the applicant shows through investigation, subsurface exploration, analysis and report by both a soils engineer and an engineering geologist, to the Department's satisfaction, that the underlying bedrock and the materials to be exposed on the slope have strength characteristics sufficient to produce a stable slope with a factor of safety of not less than 1.5 for static loads.

Existing or proposed slopes shall be regraded or cut so as to be not steeper than the bedding planes in formation where the cut slope will lie on the dip side of the strike line or the bedding planes or other adversely oriented geologic structures shall be supported by retaining walls or buttress fills designed pursuant to the provisions of CBC Section 1807.2 or LAMC Section 91.7015.

EXCEPTION: Where special conditions warrant, the Department may approve slopes steeper than the bedding planes, or other adversely oriented geologic structures if the applicant shows through investigation, subsurface exploration, analysis and report by both a soils engineer and an engineering geologist, to the Department's satisfaction, that the slopes will have a factor of safety against sliding of not less than 1.5 for static loads.

Whenever grading at the top of any natural or manufactured slope exposes soil or bedrock material that will allow the infiltration of water in a manner that would adversely affect the stability of the slope, the exposed area shall be capped with a relatively impervious compacted soil blanket seal having a minimum thickness of two feet (610 mm). The soils engineer shall certify in writing that the blanket seal is adequate to reduce water infiltration to permissible levels.

91.7010.3. Top of Cut Slope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The top of cut slopes shall not be made nearer to a site boundary line than 1/5 of the vertical height of cut with a minimum of 2 feet (609.8 mm) and a maximum horizontal distance of 10 feet (3048 mm). The setback may need to be increased for any required interceptor drains. Setback dimensions shall be horizontal distances measured perpendicular to the site boundary. Setback dimensions shall be as shown in Figure E of this division.

SEC. 91.7011. FILLS.
(Amended by Ord. No. 171,939, Eff. 4/15/98.)

91.7011.1. Height. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No fill slope shall exceed a vertical height of 100 feet (30.48 m) unless horizontal benches with a minimum width of 20 feet (6.096 m), as shown in Figure D of this division are installed at each 100 feet (30.48 m) of vertical height.

91.7011.2. Slope. (Amended by Ord. No. 171,939, Eff. 4/15/98.) No fill shall be made which creates an exposed surface steeper than one unit vertical in two units horizontal (50% slope). The fill slopes abutting and above public property shall be so placed that no portion of the fill lies above a plane through a public property line extending upward at a slope of one unit vertical in two units horizontal (50% slope).

EXCEPTION: The Department or the Board in case an appeal is made to it under LAMC Section 91.105 may permit a fill to be made which creates an exposed surface steeper in slope than 1 unit vertical in 2 units horizontal (50% slope), provided: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

1. The use of the steeper slope is determined to be necessary due to special design limitations on the site,
2. The gradient does not exceed one unit vertical in one and one-half units horizontal (66.7% slope) and
3. The applicant shows through investigation, subsurface exploration, analysis and report by both a soils engineer and an engineering geologist, to the Department's satisfaction, that the fill to be used and the underlying bedrock or soil supporting the fill have strength characteristics sufficient to produce a stable slope with a minimum factor of safety not less than 1.5 for static loads. The soils engineer shall verify by necessary testing and observation and shall certify attainment of the required strength characteristics in the fill materials as specified in the approved report.

91.7011.3. Compaction. (Amended by Ord. No. 180,619, Eff. 5/12/09.) All manufactured fills shall be placed on natural undisturbed material or approved compacted fill. Fills shall be compacted throughout their full extent to a minimum relative compaction of 90 percent of maximum dry density within 40 feet (1219 mm) below finish grade and 93 percent of maximum dry density deeper than 40 feet (1219 mm) below finish grade, unless a lower relative compaction (not less than 90 percent of maximum dry density) is justified by the soils engineer. The relative compaction shall be determined by ASTM soil compaction test D1557. Every manufactured fill shall be tested for relative compaction by a soil testing agency approved by the Department. A compaction report including a Certificate of Compliance setting forth densities so determined shall be submitted to the Department for review before approval of any fill is given. For slopes to be constructed with an exposed slope surface steeper than two horizontal to one vertical, compaction at the exposed surface of the slope shall be obtained either by overfilling and cutting back the slope surface until the compacted inner core is exposed, or by compacting the outer horizontal ten feet of the slope at least 92 percent of relative compaction.

Prior to permitting building on deep fills of 40 feet or more, the Department may require the determination of the settlement characteristics of the fills to establish that any movements have substantially ceased. In those cases, a system of benchmarks shall be installed at critical points on the fill and accurate measurement of both horizontal and vertical movements shall be taken for a period of time sufficient to define the settlement behavior. In no case shall the period of time be less than one year, with at least four consecutive checks made at intervals of three months.

EXCEPTIONS:

1. The Department may approve uncompacted fill in self-contained areas where the fills are not to be used to support buildings or structures and no hazard will be created.
2. Fill material placed in areas within cemeteries used or to be used for internment sites shall be compacted to a minimum of 80 percent, unless the fill is placed on a slope steeper than three horizontal to one vertical, or placed on slopes adjacent to public properties or private properties in separate ownership, or is to be used to support buildings or structures, in which cases it shall be compacted to a minimum of 90 percent.
3. Compaction report is not required for gravel backfill behind retaining walls provided the following conditions are met:
 - A. The retaining wall does not exceed ten feet in height.
 - B. The maximum distance between the retaining wall and the backcut shall not exceed 36 inches. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**
 - C. The gravel backfill shall be mechanically compacted and covered with concrete pavement or be capped with a 24-inch thick soil blanket mechanically compacted to the Department's satisfaction.
 - D. The gravel backfill does not provide vertical or lateral support for any structures or adverse bedding planes.

Where cohesionless soil having less than 15 percent finer than 0.005 millimeters is used for fill, it shall be compacted to a minimum of 95 percent relative compaction based on maximum dry density.

At cut-fill transition zones, there shall be a minimum of 3 feet (914 mm) of compacted fill at the cut pad area. The depth of fill shall be measured from the bottom of the deepest footings and extend horizontally throughout the cut pad area under the building and extend a minimum of 3 feet (914 mm) beyond exterior footings.

91.7011.4. Fill Slopes. Fill slopes shall be prepared for planting in one of the following three ways:

1. The slope surface of fills may be prepared for planting by casting topsoil over the slope surface. The topsoil layer shall not exceed three inches (76 mm) in depth.
2. The slope surface may be scarified to a depth not to exceed three inches (76 mm).
3. Loose material not to exceed three inches (76 mm) in depth may be left on the slope.

91.7011.5. Toe of Fill Slope. The toe of fill slope shall be made not nearer to a site boundary line adjoining other private properties than one half the height of the fill slope with a minimum of two feet (610 mm) and a maximum of 20 feet (6096 mm).

In the event retaining walls are constructed to retain fill, the height of the fill shall be measured from the elevation of the fill behind the wall and the setback distance may be measured from the face of the wall to the boundary line.

Setback dimensions shall be horizontal distances measured perpendicular to the site boundary. Setback dimensions shall be as shown in Figure E of this division. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.7011.6. Old Fills. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All manufactured fills, whether compacted or not, which were placed prior to April 25, 1963, shall be investigated by the soils engineer to determine their suitability for the proposed use before any approval to build is issued.

91.7011.7. Combined Cut and Fill Slopes. Where a combined cut and fill slope exceeds 25 feet (7620 mm) in height, the required drainage bench shall be placed at the top of the cut slope. The effect of surcharge of the fill upon the cut bedrock shall be considered by the soils engineer and engineering geologist, and specific recommendations shall be made relative to the setback between the cut and fill.

91.7011.8. Fill Areas. Areas on which fill is to be placed shall be investigated by the soils engineer, or by the soils engineer and geologist to determine if they are adequate to support the fill without undue detrimental consolidation. Slopes exceeding one unit vertical in five units horizontal (20% slope) shall be benched prior to placing fill.

EXCEPTION: The Department may waive this investigation where it determines by inspection that the underlying material is adequate to support the proposed fill.

SEC. 91.7012. PLANTING AND IRRIGATION OF CUT AND FILL SLOPES IN HILLSIDE AREAS.

(Amended by Ord. No. 181,758, Eff. 8/8/11.)

91.7012.1. General. All fill and cut slopes in designated hillside areas shall be planted and irrigated to promote the growth of ground cover plants to protect the slopes against erosion, as required in this Section.

The owner shall be responsible for planting and maintaining all slopes where such is required in this Section.

Planting and irrigation shall comply with the provisions of LAMC Sections 12.40, 12.41 and 12.42. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.7012.2. Minimum Requirements.

91.7012.2.1. Low Slopes to 15 Feet (4572 mm) in Vertical Height. Slopes with vertical height of less than 15 feet (4572 mm) shall comply with the following:

1. Plant with grass or ground cover plants.
2. An irrigation system shall be installed to irrigate these slopes.
3. The owner shall water the slopes which have been planted with grasses and/or ground cover plants at sufficient time intervals to promote growth.

EXCEPTION: Where the Department finds the slope is located in such an area as to make hand watering possible, conveniently located hose bibs will be accepted in lieu of the required irrigation system when a hose no longer than 50 feet (15 240 mm) would be necessary.

91.7012.2.2. Slopes over 15 Feet (4572 mm) in Vertical Height. Slopes with vertical height over 15 feet (4572 mm) shall comply with the following:

1. Plant with grass or ground cover plants.
2. In addition to grass or ground cover plants, approved shrubs having a one gallon minimum size shall be planted on the slope at 10 feet (3048 mm) on center in both directions or trees at 20 feet (6096 mm) on center in both directions. A combination of shrubs and trees may be utilized. The plants and planting pattern may be varied on the recommendation of the landscape architect.
3. Install an adequate irrigation system during grading prior to planting of the shrubs and trees and before grading is approved.

91.7012.3. Special Requirements for Sprinkler Systems.

91.7012.3.1. Plans for the sprinkler system shall be submitted to and approved by the Department prior to installation.

91.7012.3.2. Irrigation systems shall be designed to provide a uniform water coverage at a rate of precipitation of not more than 3/10 inch (7.6 mm) per hour on the planted slope. In no event shall the duration of sprinkling be permitted such as to create a saturated condition and cause an erosion problem, or allow the discharge of excess water into any public or private street.

91.7012.3.3. A check valve and balance cock shall be installed in the system where the drainage from sprinkler heads will create an erosion problem.

91.7012.3.4. Adequate backflow protection shall be installed in each irrigation system as required by the Plumbing Code.

91.7012.3.5. A functional test of the irrigation system shall be performed by the installer for every sprinkler system prior to approval.

91.7012.3.6. Where PVC pipes are used on slopes, they shall be a minimum of schedule 40 and embedded at least eight inches (203 mm) below grade. Such pipes may be exposed for above ground installations provided they are ASTM rated as resistant to ultraviolet sunlight. All risers, sprinkler heads, valves and fittings shall be brass or galvanized metal, or rated as sunlight resistant.

91.7012.4. Plants. All plants required by this Section shall be selected with consideration given to deep-rooted plants needing limited watering, low maintenance and having fire-retardant characteristics.

SEC. 91.7013. EROSION CONTROL AND DRAINAGE DEVICES.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.7013.1. Interceptor Terraces. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Paved interceptor terraces shall have a minimum width of 8 feet (2438.4 mm) and shall be installed on the face of all cut and fill slopes at intervals not to exceed 25 feet (7.620 m) measured along a vertical plane. Where only one terrace is required, it shall be at mid-height.

The cross section of interceptor terraces shall meet the specification shown in Figure A of this division.

The longitudinal slope of interceptor terraces shall not be less than 5% or more than 12%, and any change in rate of grade within these allowable slopes shall increase the grade in the direction of flow.

A single run of an interceptor terrace shall not exceed 150 feet (45.72 m) to a down drain.

Down drain shall be embedded round pipes enclosed in concrete shaped as shown in Section C-C of Figure G of this division, or an alternate design which is prepared by a civil engineer and acceptable to the Department.

91.7013.2. Diverter Terraces. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Paved diverter terraces, constructed as shown in Figure B of this division, shall be installed at the top of all graded slopes where the tributary drainage area above has a slope exceeding 1 unit vertical in 10 units horizontal (10% slope) and a horizontal projection of greater than 40 feet (12.192 m).

91.7013.3. Berms. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Berms conforming to the provisions of Figure C of this division shall be constructed at the top of all slopes.

91.7013.4. Vee Channels. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Where a slough wall is required at the toe of the slope by other provisions of this Code, or a retaining wall is built to support any cut or fill slope, a vee channel shall be constructed behind the wall to carry off the slope waters to interceptors, down drains or other approved drainage devices.

91.7013.5 Inlet Structures, Down Drains and Outlet Structures. (Amended by Ord. No. 171,939, Eff. 4/15/98.)

91.7013.5.1. Inlet Structures. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Inlet structures shall be of concrete, galvanized iron hot dipped in asphalt or equivalent. The inlet structure shall be grated or gridded, or of such entry shape as to prevent entry of objects of greater than 4 inches (101.6 mm) in dimension. The inlet structure shall be placed on the bench as shown in Section Y-Y of Figure G of this division and shall be so shaped as to provide small entry losses. An overflow structure into the vee down drains shall be provided.

91.7013.5.2. Down Drains. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Down drains shall have paved inverts and shall be of concrete, minimum 18 gauge corrugated galvanized iron hot dipped in asphalt, or corrugated alloy 3004-H-34 aluminum of minimum 16 gauge and hot dipped in asphalt or equivalent. Pipe down drains shall conform with Section C-C of Figure G of this division and shall have a diameter of a size required by runoff calculations, but no less than 12 inches (304.8 mm).

Open channel down drains shall be designed by a civil engineer and shall have a minimum capacity equal to four times the required pipe size. The alignment of down drains shall be such as to conserve velocity head.

91.7013.5.3. Outlet Structures. Outlet structures shall be of concrete, galvanized iron hot dipped in asphalt or equivalent.

Where outletting into street or other approved termination areas, the structure shall be of a design approved by the Department of Public Works. Where outletting into natural watercourses or other approved locations, the structure shall be provided with adequate velocity reducers, diversion walls, rip-rap, concrete aprons or any similar energy dissipator. All slope drainage shall be collected and disposed of in the drainage device.

91.7013.6. Runoff Computations. Runoff shall be based on the proper 50-year isohyetal, and the runoff calculation shall be based on the latest methods adopted by the Bureau of Engineering.

91.7013.7. Drainage Dispersal Wall. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A drainage dispersal wall shall be constructed as set forth in Figure F of this division whenever it is necessary to convert channel flow to sheet flow.

91.7013.8. Subdrains. Subdrains shall be laid under all fills placed in natural watercourses. Subdrains shall be placed along the watercourse flow line and along the flow line of any branches tributary thereto. Additional subdrains shall be installed to collect any active or potential springs or seeps which will be covered by the fill. Subdrains shall be installed after the watercourse has been excavated to firm material in preparation for receiving the fill. Individual design shall be shown on each plan for city approval, based on recommendations of the soils engineer and geologist to the satisfaction of the Department.

91.7013.9. Gutters. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) Eave or ground gutters shall be provided to receive all roof water and deliver it through a non erosive device via gravity to a street or watercourse, or approved drainage facility, if the slope of the underlying natural ground exceeds three percent or if more than three feet (914 mm) of compacted fill or more than one foot (305 mm) of uncompacted fill is placed on the ground.

91.7013.10. Site Drainage. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All pads with cut or fill shall slope a minimum of two percent to an approved drainage device or facility, or to a public street. Where used, the drainage device shall be an adequately designed system of catch basins and drain lines, which conducts the water to a street.

EXCEPTION: Where the slope of the underlying natural ground does not exceed three percent and the compacted fill is less than three feet (914 mm) in depth, the slope of the pad may be reduced to one percent.

91.7013.11. Drainage Around Buildings. (Amended by Ord. No. 171,939, Eff. 4/15/98.) On all building sites, acceptable drainage devices shall be installed to conduct storm water around buildings whenever the distance from the building to the top of any slope is less than five feet (1524 mm). Where used, the drainage device shall be an adequately designed system of catch basins and drain lines which conducts the water to a street.

91.7013.12. Maintenance of Drainage. Drainage in conformance with the provisions of this Code shall be maintained during and subsequent to construction.

SEC. 91.7014. CONSTRUCTION REQUIREMENTS AND LIMITATIONS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.7014.1. Construction, General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No structure shall be constructed upon a slope steeper than 1 unit vertical in 2 units horizontal (50% slope). For building location and setback requirements, see Division 18, Article 1, Chapter IX of the LAMC.

EXCEPTIONS:

1. Subject to approval by the Department, construction may be placed upon slopes steeper than one unit vertical in two units horizontal (50% slope), provided reports from a soils engineer and engineering geologist recommend favorably toward construction. The reports shall include adequate information and analysis to show to the Department's satisfaction that the underlying bedrock and natural soils and slope surface materials have strength characteristics sufficient to produce a stable slope with a factor of safety of not less than 1.5 for static loads. The reports shall incorporate provisions for downhill creep in the design of footings where applicable.
2. Where a minor amount of the structure is constructed on the slope or where the construction consists of an unroofed deck, the Department may approve the construction without engineering and geological reports.

91.7014.2. Slough Wall. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) If potential sloughing hazards affecting buildings or structures are present on natural, cut or fill slopes in excess of 20 feet (6096 mm) in vertical height, slough protection devices may be required by the Department.

91.7014.3. Flood and Mudflow Protection. (Amended by Ord. No. 188,739, Eff. 9/23/25.) Flood and mudflow protection shall be provided for all new buildings, additions to buildings, and substantial improvements to buildings, which are located on sites determined by the Department to be subject to those conditions, in accordance with Ordinance No. 186,952.

The recommendations for mudflow protection shall be contained in a site investigation report made by persons qualified and licensed in civil engineering, engineering geology and/or soils engineering to ascertain the location, magnitude, and extent of potential mudflow hazards and to recommend measures for protection or the elimination of those hazards. The use of the minimum design parameters specified in this Code shall be justified in the report.

Minimum design parameters to be used for mud/debris flow control systems within and at the base of concentrated drainage areas are:

1. A channel flow capacity of 10 cubic feet per second (0.28 m³/s) per acre (ha) of tributary drainage area; or
2. A temporary storage capacity of 400 cubic yards (306 m³) per acre (ha) of tributary drainage area.

SEC. 91.7015. BUTTRESS FILLS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.7015.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A buttress fill is a designed compacted earth fill used for providing lateral support to an unstabilized rock mass. All buttress fills shall comply with the more restrictive of the requirements of this section or LAMC Section 91.7006.

91.7015.2. Foundation. The ability of the foundation material to support the buttress shall be investigated and the soils engineer shall provide specifications for keying of the base of the buttress and for bonding the buttress to the natural ground.

91.7015.3. Base Width. (Amended by Ord. No. 171,939, Eff. 4/15/98.) The minimum base width of a buttress fill shall not be less than 12 feet (3658 mm) or less than one half its height, whichever is the greater. The width of a buttress fill may vary uniformly to a top width of not less than 12 feet (3658 mm).

91.7015.4. Slope. (Amended by Ord. No. 171,939, Eff. 4/15/98.) The exposed surface of a buttress fill shall not exceed a slope of one unit vertical in two units horizontal (50% slope).

EXCEPTION: The Department or the Board, in case an appeal is made to it under LAMC Section 91.105, may permit a buttress fill to be made which creates an exposed surface steeper in slope than 1 unit vertical in 2 units horizontal (50% slope), provided: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

1. The use of the steeper slope is determined to be necessary due to special design limitations on the site;
2. The gradient does not exceed one unit vertical in one and one-half units horizontal (66.7% slope); and
3. The applicant shows through investigation, subsurface exploration, analysis and report by both a soils engineer and an engineering geologist to the Department's satisfaction, that the buttress fill to be used and the underlying earth material supporting the fill will have strength characteristics sufficient to produce a stable slope with a minimum factor of safety of not less than 1.5 for static loads.

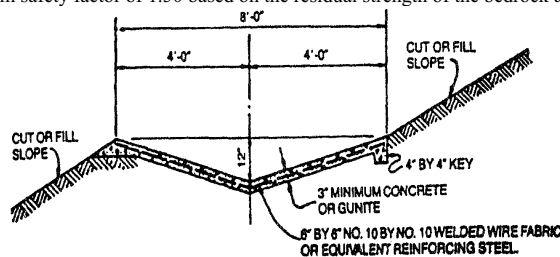
91.7015.5. Subdrains. Subdrains which blanket the entire back face of the buttress or which occur at intervals shall be provided to prevent buildup of hydrostatic pressure. Details of subdrains shall be provided by the soils engineer and approved by the Department.

91.7015.6. Blanket Seals. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Blanket seals of relatively impervious material shall be required on cut pads above buttress fills where grading exposes the strata to infiltration of water. The blanket shall be of 2-foot (610 mm) minimum thickness or of such greater dimension as specified by the soils engineer.

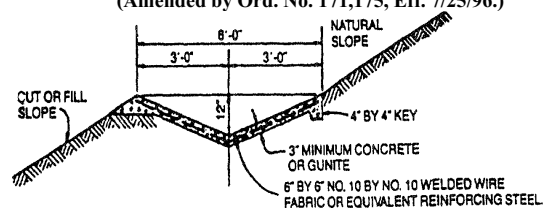
91.7015.7. Design. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) For design purposes, a maximum value of 75 pound per square feet (3.6 kN/m^2) cohesion and an angle of internal friction of six degrees may be used to determine the resistance of the bedding plane. Use of greater value shall be substantiated by tests taken along the probable slip plane under conditions simulating the worst possible field conditions. The method of performing these tests shall be included in the soils engineer's report.

The type, percentage of compaction, cohesion and angle of internal friction of the materials to be placed in the buttress shall be specified.

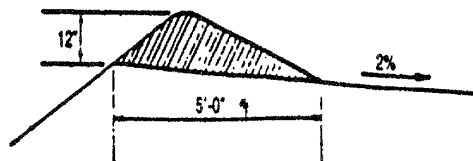
The buttress fill shall be designed for a minimum safety factor of 1.50 based on the residual strength of the bedrock and the lowest shear strength of the fill material.



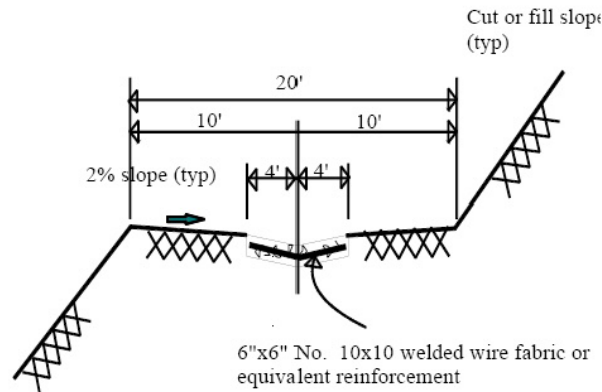
**INTERCEPTOR TERRACE
FIGURE A
(Amended by Ord. No. 171,175, Eff. 7/25/96.)**



**DIVERTER TERRACE
For top of cut and/or fill slopes
FIGURE B
(Amended by Ord. No. 182,850, Eff. 1/3/14.)**



**BERM DETAIL
FIGURE C
(Amended by Ord. No. 171,175, Eff. 7/25/96.)**



20 FOOT HORIZONTAL BENCH
FIGURE D
 (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

NOTES:

1. Concrete drainage benches shall be formed before pouring concrete. Forms shall be set to grade and alignment at all breaks in the cross sections. The concrete shall be screeded to cross sections.
2. Guniting drainage benches shall be shot to wire guides. Guides shall be set to grade and alignment at all breaks in the cross section. The Guniting shall be screeded to cross section.
3. When concrete is to be placed against earth, the area to be covered shall be trimmed and finished to the dimensions shown on the plans. The area shall be moistened and thoroughly compacted to form a firm foundation. Grade stakes shall be installed to clearly establish flow lines.

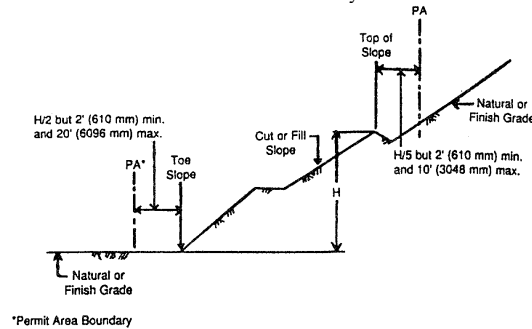
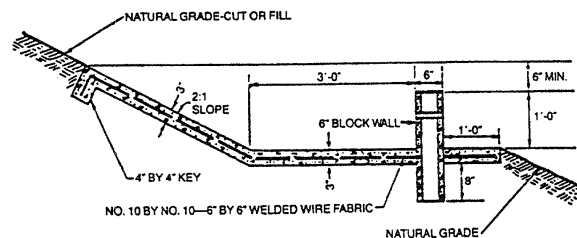


FIGURE E
 (Amended by Ord. No. 171,175, Eff. 7/25/96.)



DRAINAGE DISPERSAL WALL
FIGURE F
 (Amended by Ord. No. 171,175, Eff. 7/25/96.)

NOTES:

1. Grout all cells and omit all head joints first course.
2. Wall to be located along contour line to establish uniform overflow or seepage.
3. Length of wall to equal length of contour line affected by grading.
4. When concrete is to be placed against earth, the area to be covered shall be trimmed and finished to the dimensions shown on the plans. The area shall be moistened and thoroughly compacted to form a firm foundation. Grade stakes shall be installed to clearly establish flow lines.
5. Prior to construction of a dispersal wall on slopes steeper than 3:1 (H: V), a geology/soils report shall be submitted to the Department. The geology/soils report shall address the stability of the slope and provide foundation design recommendations for the dispersal wall. (Added by Ord. No. 184,692, Eff. 12/30/16.)

FIGURE G
(Amended by Ord. No. 171,175, Eff. 7/25/96.)

OUTLET STRUCTURE
SECTION A-A

Diagram of a V-shaped structure, labeled "CONCRETE OR GUNITE". The structure has a top width of 2'-0" and a height of 10'. The top width is divided into two 1'-0" sections. The structure is filled with a pattern of dots, representing concrete or gunite.

NO. 5 BAR

1/4" SELF-THREADING SCREW

1" BY 1/8" GALVANIZED METAL STRAP WELDED TO BAR HOOP AND FORMED TO FIT.

GRATING FASTENING DETAIL
DETAIL H

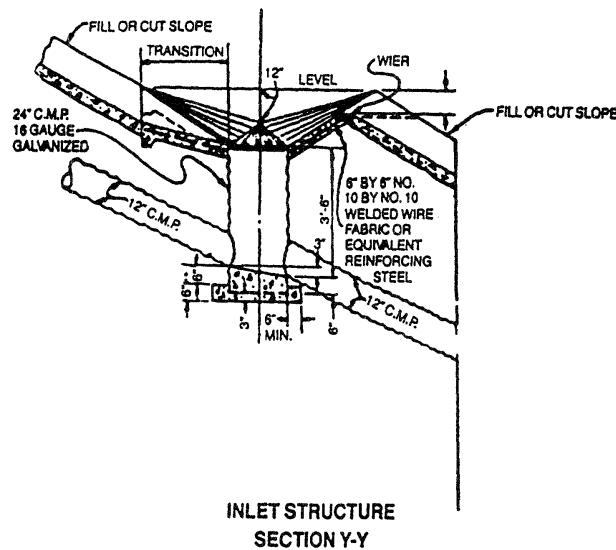


FIGURE H
(Amended by Ord. No. 171,175, Eff. 7/25/96.)

SEC. 91.7016. AREAS SUBJECTED TO SLIDES AND UNSTABLE SOIL.
(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.7016.1. General. The provisions of this section shall be fully complied with prior to issuance of a grading permit in areas subject to slides or unstable soil.

91.7016.2. Records and Maps. The Department may adopt maps delineating areas of relative hazard for the application of this division.

91.7016.3. Definitions. (Amended by Ord. No. 171,939, Eff. 4/15/98.) The following definitions shall apply for the purpose of this section:

ACTIVE LANDSLIDE is a landslide that has been active since January 1, 1952.

HISTORICAL LANDSLIDE is a landslide that was active in historical time prior to 1952 as determined from photographs, maps and written records.

LANDSLIDE is the falling, slipping or flowing of a mass of land from a higher to a lower level.

POSSIBLE PREHISTORIC LANDSLIDE shall mean areas where there is no record of a historic landslide, but where topographic expression or geological evidence suggests the possibility of past land movement.

PREHISTORIC LANDSLIDE shall mean conditions where there is no record of historical landslide, but where geological evidence or topographic expression indicates modification of the terrain by land movement.

91.7016.4. Permission to Construct Buildings or to do Grading Work.

91.7016.4.1. Active Landslide or Historic Landslide Area. (Amended by Ord. No. 171,939, Eff. 4/15/98.) No building or grading permits shall be issued for development in active or historic landslide areas until, and unless, stabilization of the entire slide or soil mass which may have an adverse effect on the proposed development or access thereto can be satisfactorily demonstrated to the Department.

91.7016.4.2. Prehistoric Landslide or Questionable Area. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No building or grading permit shall be issued for development in prehistoric landslide or questionable areas except by specific approval of the Department, based on approved statements and calculations from soil engineers and engineering geologists attesting to the apparent safety of the proposed developments and demonstrating a minimum factor of safety of 1.5 for the stability of the site and access to the site. For these areas, the affidavit required in Exception 2 of LAMC Subdivision 91.106.4.1 shall be filed unless it has been determined that, as a result of satisfactory reports by soils engineers and engineering geologists, the development is not located in an area subject to slides or unstable soil, which may have an adverse effect on the proposed development or access to the proposed development.

91.7016.4.3. Other Conditions. (Amended by Ord. No. 185,587, Eff. 7/16/18.) If, in the opinion of the Superintendent of Building, there is evidence of potentially hazardous conditions other than those covered by LAMC Subdivisions 91.7016.4.1 and 91.7016.4.2, the Department may require satisfactory reports from soils engineers and engineering geologists and, after reviewing those reports, may issue a permit when the reports demonstrate the stability and safety of the development. The affidavit may be required by the Department if it is found that the area in question has elements of hazard or, if the reports so indicate, a permit may be refused.

91.7016.5. Affidavits Required. When an affidavit required in this section, has been filed, upon notice of correction of the unstable conditions due to landslide or unstable soil, the Superintendent of Building shall file with the Office of the County Recorder a certificate specifying that the property is no longer considered hazardous due to landslide or unstable soil.

DIVISION 71

METHANE SEEPAGE REGULATIONS

(Amended in Entirety by Ord. No. 175,790, Eff. 3/29/04.)

Section	
91.7101	Purpose.
91.7102	Definitions.
91.7103	General Methane Mitigation Requirements.

- 91.7104 General Methane Requirements.
- 91.7105 Existing Buildings.
- 91.7106 Testing, Maintenance and Service of Gas-detection and Mechanical Ventilation Systems.
- 91.7107 Emergency Procedures.
- 91.7108 Application of Methane Seepage Regulations to Locations or Areas Outside the Methane Zone and Methane Buffer Zone Boundaries.
- 91.7109 Additional Remedial Measures.

SEC. 91.7101. PURPOSE.

This division sets forth the minimum requirements of the City of Los Angeles for control of methane intrusion emanating from geologic formations. The requirements do not regulate flammable vapor that may originate in and propagate from other sources, which include, but are not limited to, ruptured hazardous material transmission lines, underground atmospheric tanks, or similar installations.

SEC. 91.7102. DEFINITIONS.

For the purpose of this division, certain words and phrases are defined as follows:

Alarm System shall mean a group of interacting elements consisting of components and circuits arranged to monitor and annunciate the status of gas concentration levels or supervisory signal-initiating devices and to initiate the appropriate response to those signals.

Buildings with Raised Floor Construction shall mean a building with the bottom of the floor system raised above grade where the clearance for each of the following items shall be at least: 12 inches for the girder, 18 inches for the floor joist and 24 inches for the structural floors.

Cable or Conduit Seal Fitting shall mean an approved fitting provided in a cable or conduit system to prevent the passage of gases, vapors, or flames through electrical cable or conduit.

Design Methane Concentration shall mean the highest concentration of methane gas found during site testing.

Design Methane Pressure shall mean the highest pressure of methane gas found during site testing.

De-watering System shall mean a permanent water removal system, consisting of perforated pipes, gravel, sump pumps and pits, designed to permanently maintain the ground water level one foot below the sub-slab vent system.

Gas Detection System shall mean one or more electrical devices that measure the methane gas concentration and communicate the information to the occupants, building management, central station or alarm company with audible or visual signals.

Gravel Blanket shall mean a layer of gravel, sand, or approved material designed to transmit gas to the vent riser without obstructing the venting system.

Impervious Membrane shall mean a continuous gas barrier made of material approved by the Department and installed beneath a building for the purpose of impeding methane migration to the interior of the building.

Mechanical Extraction System shall mean a system operated by a machine which is designed to remove methane gas from below the impervious membrane through the use of fans, blowers, or other powered devices.

Mechanical Ventilation shall mean a fan, blower or other similar group of interacting elements operated by a machine within the building, which introduce and/or remove air from an enclosed space.

Narrow Building shall mean a building that has a width less than 50 feet, a footprint of less than 50,000 square feet and having a minimum 2-foot wide landscaped area immediately adjacent to the exterior wall for at least 50 percent of the perimeter of the building.

Oil Well shall mean a deep hole or shaft sunk into the earth for the exploration of oil or gas; or which is on lands producing or reasonably presumed to contain oil or gas; or which is drilled for the purpose of injecting fluids or gas for stimulating oil recovery, re-pressurizing or pressure maintenance of oil or gas, or disposing of waste fluids from an oil or gas field.

Perforated Horizontal Pipe shall mean an approved pipe which contains a series of small holes or narrow openings placed equidistant along the length of the approved pipe, which is placed horizontally beneath the foundation of a building, for the purpose of venting accumulated methane gas and preventing the development of elevated gas pressures, or for drainage of ground water to an approved location.

PPMV shall mean Parts per Million by Volume.

Pressure Sensor (Deleted by Ord. No. 180,619, Eff. 5/12/09.)

Single Station Gas Detector shall mean a device consisting of electrical components capable of measuring methane gas concentration and initiating an alarm.

Trench Dam shall mean an approved subsurface barrier installed within a furrow or ditch adjacent to the foundation of a building, for the purpose of preventing the migration of methane gas beneath that foundation.

Unobstructed Opening shall mean a permanent clearing or gap in the walls, floors or roof-ceiling assemblies without windows, doors, skylights or other solid barriers that may restrict the flow of air.

Vent Riser shall mean an approved pipe which is placed vertically with joints and fittings connected to Perforated Horizontal Pipes to convey and discharge the gas to the atmosphere.

SEC. 91.7103. GENERAL METHANE MITIGATION REQUIREMENTS.

All new buildings and paved areas located in a Methane Zone or Methane Buffer Zone shall comply with these requirements and the Methane Mitigation Standards established by the Superintendent of Building. The Methane Mitigation Standards provide information describing the installation procedures, design parameters and test protocols for the methane gas mitigation system, which are not set forth in the provisions of this division.

Boundaries of the Methane Zones and Methane Buffer Zones are shown on the "Methane and Methane Buffer Zones Map" designated as Map number A-20960, dated September 21, 2003, which is attached to Council File No. 01-1305 or the most recent version of the described map. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

Equipment and Systems. All devices, components and equipment installed in any methane detection system shall be approved by the Fire Department as set forth in Fire

SEC. 91.7104. GENERAL METHANE REQUIREMENTS.

91.7104.1. Site Testing. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Site testing of subsurface geological formations shall be conducted in accordance with the Methane Mitigation Standards. The site testing shall be conducted under the supervision of a licensed Architect or registered Engineer or Geologist and shall be performed by a testing agency approved by the Department.

The licensed Architect, registered Engineer or Geologist shall indicate in a report to the Department the testing procedure, the testing instruments used to measure the concentration and pressure of the methane gas. The measurements of the concentration and pressure of the methane gas shall be used to determine the Design Methane Concentration and the Design Methane Pressure. The Design Methane Concentration and the Design Methane Pressure shall determine the Site Design Level of LAMC Table 71.

EXCEPTION: Site testing is not required for buildings designed to the requirements of Site Design Level V as described in LAMC Table 71, or for buildings designed using the exceptions set forth in LAMC Subdivisions 91.7104.3.2 or 91.7104.3.3.

91.7104.2. Methane Mitigation Systems. (Amended by Ord. No. 185,587, Eff. 7/16/18.) All buildings located in the Methane Zone and Methane Buffer Zone shall provide a methane mitigation system as required by LAMC Table 71 based on the appropriate Site Design Level. The Superintendent of Building may approve an equivalent methane mitigation system designed by an Architect, Engineer or Geologist.

LAMC Table 71 prescribes the minimum methane mitigation systems, such as, the passive, active and miscellaneous systems, depending on the concentration and pressure of the methane present at the site. Each component of the passive, active and miscellaneous systems shall be constructed of an approved material and shall be installed in accordance with the Methane Mitigation Standards.

91.7104.2.1. Passive System. The passive system is a methane mitigation system installed beneath or near the building. The components of the passive system may consist of a de-watering system, the sub-slab vent system, and impervious membrane. The sub-slab vent system shall consist of Perforated Horizontal Pipes, Vent Risers, and Gravel Blankets for the purpose of collecting and conveying methane from the soil underneath the building to the atmosphere.

91.7104.2.1.1. De-watering System. The de-watering system is used to lower the ground water table to a level more than 12 inches below the bottom of the Perforated Horizontal Pipes. The de-watering system shall conduct ground water to an approved location.

91.7104.2.2. Active System. The components of the active system shall consist of one or more of the following, sub-slab system, gas detection system, mechanical ventilation, alarm system and control panel. All components shall be constructed of an approved material, installed in accordance with the Methane Mitigation Standards.

91.7104.2.3. Miscellaneous System. The components of the miscellaneous system may consist of Trench Dam, Cable or Conduit Seal Fitting, or Additional Vent Risers. The component of the miscellaneous system shall be a material approved by the Department and shall be installed in accordance with the Methane Mitigation Standards.

91.7104.3. Exceptions to LAMC Table 71. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of this section are exceptions to the construction requirements of LAMC Table 71.

91.7104.3.1. (Repealed by Ord. No. 180,619, Eff. 5/12/09.)

91.7104.3.2. Buildings with Raised Floor Construction. If a Building with Raised Floor Construction has underfloor ventilation construction in accordance with the standards below, then the utilities shall be installed with Trench Dams and Cable or Conduit Seal Fittings and a four inch thick gravel blanket shall be installed under and around the elevator pits.

Underfloor ventilation shall be provided by an approved mechanical ventilation system capable of exhausting underfloor air an equivalent of every 20 minutes, or by openings in the underfloor area complying with the following:

- A. The top of the openings shall be located not more than 12 inches below the bottom of the floor joists.
- B. The openings shall be distributed approximately equally and located to provide cross ventilation, for example, by locating the opening along the length of at least two opposite sides of the building.
- C. The openings shall be the larger of:
 - 1. Openings of not less than 1.5 square feet for each 25 linear feet or fraction of exterior wall; or
 - 2. Openings shall be equal to 1 percent of underfloor area.
- D. The openings may be covered with corrosion-resistant wire mesh with mesh openings of greater than ¼ inch and less than ½ inch in dimension.

91.7104.3.3. Buildings with Natural Ventilation. A building with natural ventilation is a building constructed with the following:

- A. The Unobstructed Openings shall exchange outside air.
- B. The size of the Unobstructed Opening shall be the larger of:
 - 1. Opening equal to at least 25 percent of the total perimeter wall area of the lowest level of the building, or
 - 2. Opening equal to at least 25 percent of the floor area of the lowest level of the building.
- C. The Unobstructed Openings shall be evenly distributed and located within the upper portion of at least two opposite exterior walls of the lowest level of the building.

Buildings with natural ventilation that are constructed as described above shall have the utilities constructed with Trench Dams and Cable or Conduit Seal Fittings. If there is an enclosed room or space less than 150 square feet (13.93 m²) within the building, then the enclosed room or space shall be constructed with vent openings that comply with the requirements of LAMC Subdivision 91.7104.3.4. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.7104.3.4. Enclosed Room or Space within Building. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Individual enclosed rooms or enclosed spaces with floor area less than 2,000 square feet (185.80 m²) may be exempt from providing the Active System as required by LAMC Table 71, provided the vent openings comply with all of the following:

- 1. Vent openings are Unobstructed Openings, except screens made with at least 1/4 inch mesh or wind driven turbines on the roof shall be permitted.

2. The aggregate size of vent openings shall be the larger of either five percent of the total floor area of the room or the area of enclosed space, or ten percent of the area of walls on the perimeter of the room or enclosed space.
3. The vent openings shall be located to prevent the accumulation of methane gases within the room or enclosed space.
4. The top of the vent opening shall be located not more than 12 inches below roof joists or ceiling joists if located in a wall of a building.
5. The vent openings shall be located on either two opposite walls or two adjacent walls of the room or enclosed space if located in a wall of a building.
6. The vent openings shall be located no more than 50 feet from any point within the room or enclosed space.
7. When using wind driven turbine, the area of the vent opening shall be calculated by the area of the opening at the attachment of the wind driven turbine at the roof.
8. When the vent opening is located in a wall of an adjoining room, then the adjoining room shall be constructed of either an Active System, or have Natural Ventilation as described in LAMC Subdivision 91.7104.3.3.

91.7104.3.5. Single Family Dwelling. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Single Family Dwellings and buildings accessory to single family dwellings shall comply with all the Methane Mitigation requirements of LAMC Table 71, except that the following mitigation system may be substituted:

- A. Single Station Gas Detectors with battery back-up may be installed in lieu of Alarm System and Gas Detection System; or
- B. 6 mil thick Visquene may be used in lieu of Impervious Membrane, when the Site Design Levels are I or II; or
- C. Additional Vent Risers or Mechanical Ventilation may be omitted for buildings with width less than 50 feet and footprint less than 6,000 square feet in area; or
- D. Vent Risers may be substituted in lieu of Mechanical Extraction System, provided the Vent Risers are designed at a rate twice that established by the Methane Mitigation Standards.

91.7104.3.6. Buildings Located in the Methane Buffer Zone. A building, located entirely or partially in the Methane Buffer Zone, shall be designed to the requirements of the Methane Buffer Zone. Buildings located in the Methane Buffer Zone shall not be required to provide any methane mitigation system, if the Design Methane Pressure is less than or equal to two inches of water pressure and is either of the following:

- A. Areas which qualify as Site Design Level I or II; or
- B. Areas which qualify as Site Design Level III and the utilities are installed with Trench Dams and Cable or Conduit Seal Fitting.

91.7104.3.7. De-watering System. A De-watering system is not required for either of the following:

- A. If during the site testing, the groundwater level is deeper than 10 feet below the Perforated Horizontal Pipes, or
- B. If the soil investigation or analysis, as approved by the Department, reveals the groundwater level is more than 12 inches below the bottom of the Perforated Horizontal Pipes.

91.7104.3.8. Buildings Located in the First Phase Playa Vista Project. The First Phase Playa Vista project, as approved by the City on September 21, 1993 and December 8, 1995, shall comply with the methane mitigation program as required by the Department pursuant to the Methane Prevention, Detection and Monitoring Program approved by the Department on January 31, 2001, in lieu of the requirements of this division.

91.7104.4. Paved Areas. Paved areas that are over 5,000 square feet in area and within 15 feet of the exterior wall of a commercial, industrial, institutional or residential building, shall be vented in accordance with the Methane Mitigation Standards.

EXCEPTION: Paved areas located in the Methane Buffer Zone and which qualify for Site Design Levels I, II or III.

SEC. 91.7105. EXISTING BUILDINGS.

Additions, alterations, repairs, changes of use or changes of occupancy to existing buildings shall comply with the methane mitigation requirements of LAMC Subsections 91.7104.1 and 91.7104.2, when required by Divisions 81 or 82 of Article 1, Chapter IX of the LAMC. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

Approved methane mitigation systems in existing buildings shall be maintained in accordance with LAMC Section 91.7106. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 91.7106. TESTING, MAINTENANCE AND SERVICE OF GAS-DETECTION AND MECHANICAL VENTILATION SYSTEMS. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The installation instructions for the gas detection and mechanical ventilation systems, which are required by LAMC Table 71, shall be approved and enforced by the Fire Department. All gas detection and mechanical ventilation systems shall be maintained and serviced in proper working condition and meet all requirements of the State of California and City Electrical and Mechanical Codes.

A. **Fire Department.** The Fire Department shall enforce the following:

1. The maintenance and service procedures for each gas detection and mechanical ventilation systems, which are required in LAMC Table 71, shall be performed by the building owner in accordance with the manufacturers written instructions.
2. The annual and maintenance testing shall be performed as set forth by the Fire Department in accordance with the Fire Prevention Bureau (F.P.B.) Requirement No. 71 and Fire Chief's Regulation 4, Section 4J.
3. The testing of the gas detection and mechanical ventilation systems shall be performed by a person with a valid Certificate of Fitness for Gas Detection Systems as set forth in LAMC Section 57.117.

B. **Notification Placard.** A permanent notification placard shall be posted and maintained at the front entrance of a building that is constructed with Impervious Membrane, except in residential buildings. The placard shall indicate the presence of the Impervious Membrane.

SEC. 91.7107. EMERGENCY PROCEDURES.

- A. Assignment of a responsible person as safety director to work with the Fire Department in the establishment, implementation and maintenance of an emergency plan.
- B. Conspicuous posting of the Fire Department's telephone number in areas designated by the Fire Department.
- C. Conspicuous posting of emergency plan procedures approved by the Fire Department.

Upon a determination by the Department that a hazard may exist from methane intrusion at a geographical location or in an area outside the boundaries established in LAMC Section 91.7103, the Department and the Fire Department may enforce any or all of the requirements of Division 71, Article 1, Chapter IX of the LAMC as required to preclude potential fire or explosion from methane concentration.

91.7109.1. General Remedial Measures. In the event the concentration of methane gas in any building located in a Methane Zone or Methane Buffer Zone reaches or exceeds 25 percent of the minimum concentration of gas that will form an ignitable mixture with air at ambient temperature and pressure, the owner shall hire an engineer to investigate, recommend and implement mitigating measures. These measures shall be subject to approval of this Department and the Fire Department.

TABLE 71. MINIMUM METHANE MITIGATION REQUIREMENTS
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

[illegible]

C.										
S										
Y										
S										
T	Additional Vent Risers ⁵									X
E										
M										

For SI: 1 inch = 25.4 mm.
X = Indicates a Required Mitigation Component

1. See LAMC Subdivision 91.7104.3.7 for exception.
2. The Mechanical Extraction System shall be capable of providing an equivalent of a complete change of air every 20 minutes of the total volume of the Gravel Blanket.
3. The mechanical ventilation systems shall be capable of providing an equivalent of one complete change of the lowest occupied space air every 15 minutes.
4. Vent opening complying with LAMC Subdivision 91.7104.3.4 may be used in lieu of mechanical ventilation.
5. The total quantity of installed vent risers shall be increased to double the rate for passive system.

DIVISION 72

FIRE DISTRICT REGULATIONS

(Division 72 Added by Ord. No. 170,953, Eff. 3/17/96, Oper. 1/1/96.)

- Section
- 91.7200 Purpose.
 - 91.7201 General.
 - 91.7202 Additions to Buildings.
 - 91.7203 General Requirements.
 - 91.7204 Special Requirements for Fire District Number 1.
 - 91.7205 Provisional Structures.
 - 91.7207 Special Requirements for the Very High Fire Hazard Severity Zone.
 - 91.7208 Prohibited Vehicles.

SEC. 91.7200. PURPOSE.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

These Fire District Regulations were formerly found in Division 61.

SEC. 91.7201. GENERAL.

91.7201.1 Fire District No. 1 Boundaries. Fire District No. 1 shall include:

I. **Downtown.** All of the territory bounded by the following streets or freeways:

1. Harbor Freeway from the Santa Monica Freeway to the Santa Ana Freeway;
2. Santa Ana Freeway from the Harbor Freeway to Alameda Street;
3. Alameda Street from the Santa Ana Freeway to Fourth Street;
4. Fourth Street from Alameda Street to Central Avenue;
5. Central Avenue from Fourth Street to the Santa Monica Freeway; and
6. Santa Monica Freeway from Central Avenue to the Harbor Freeway.

II. **Hollywood.** All of the territory bounded by the following streets:

1. Yucca Street from Highland Avenue to Gower Street;
2. Gower Street from Yucca Street to De Longpre Avenue;
3. De Longpre Avenue from Gower Street to Vine Street;
4. Vine Street from De Longpre Avenue to Fountain Avenue;
5. Fountain Avenue from Vine Street to Wilcox Avenue;
6. Wilcox Avenue from Fountain Avenue to Sunset Boulevard;
7. Sunset Boulevard from Wilcox Avenue to Highland Avenue;

8. Highland Avenue from Sunset Boulevard to Hollywood Boulevard;
9. Hollywood Boulevard from Highland Avenue to Orchid Avenue;
10. Orchid Avenue from Hollywood Boulevard to Franklin Avenue;
11. Franklin Avenue from Orchid Avenue to Highland Avenue;
12. Highland Avenue from Franklin Avenue to Yucca Street;
13. All of the territory within 100 feet of Hollywood Boulevard between Hillhurst Avenue and La Brea Avenue; and,
14. All of the territory within 100 feet of Sunset Boulevard between Hillhurst Avenue and the city boundary line 190 feet west of Havenhurst Drive.

III. Wilshire. All of the territory bounded by the following streets:

1. Sixth Street from Western Avenue to Commonwealth Avenue;
2. Commonwealth Avenue from Sixth Street to Wilshire Boulevard;
3. Wilshire Boulevard from Commonwealth Avenue to Catalina Street;
4. Catalina Street from Wilshire Boulevard to Eighth Street;
5. Eighth Street from Catalina Street to Mariposa Avenue;
6. Mariposa Avenue from Eighth Street to Seventh Street;
7. Seventh Street from Mariposa Avenue to Ardmore Avenue;
8. Ardmore Avenue from Seventh Street to Wilshire Boulevard;
9. Wilshire Boulevard from Ardmore Avenue to Western Avenue;
10. Western Avenue from Wilshire Boulevard to Sixth Street; and
11. All of the territory within 100 feet of Wilshire Boulevard between the eastern city boundaries of the City of Beverly Hills and the Harbor Freeway, with the exception of the territory within 100 feet of Wilshire Boulevard located between Wilton Place and Highland Avenue.

IV. Beverly Fairfax. All of the territory bounded by the following streets:

1. Beverly Boulevard from Fairfax Avenue to a point 120 feet west of Gardner Avenue;
2. A line 120 feet west of and parallel to Gardner Avenue from Beverly Boulevard to Third Street;
3. Third Street from a point 120 feet west of Gardner Avenue to Fairfax Avenue; and
4. Fairfax Avenue from Third Street to Beverly Boulevard.

V. Crenshaw. All of the territory bounded by the following streets:

1. Crenshaw Boulevard from Thirty-ninth Street to Stocker Street;
2. Stocker Street from Crenshaw Boulevard to Rosalia Drive;
3. Rosalia Drive from Stocker Street to Marlton Avenue;
4. Marlton Avenue from Rosalia Drive to Thirty-ninth Street; and
5. Thirty-ninth Street from Marlton Avenue to Crenshaw Boulevard.

VI. Century City. All of the territory bounded by the following streets:

1. Santa Monica Boulevard between Century Park West and the westerly city boundary of the City of Beverly Hills;
2. The westerly city boundary of the City of Beverly Hills from Santa Monica Boulevard to Olympic Boulevard;
3. Olympic Boulevard from the westerly city boundary of the City of Beverly Hills to Century Park West; and
4. Century Park West from Olympic Boulevard to Santa Monica Boulevard.

Excepting that portion of the above-described territory described as follows:

Beginning at the point of intersection of the center line of Olympic Boulevard and Century Park West, thence northwesterly along center line of Century Park West 791 feet, thence N50 ° 29'00" E822.21 feet, thence S39 ° 29'13" E9.63 feet, thence S84 ° 29'13" E29.59 feet, thence N50 ° 30'47" E19.00 feet, thence S39 ° 29'13" E295.17 feet, thence S35 38'00" E to the center line of Olympic Boulevard thence southwesterly along said center line to the point of beginning.

VII. Westwood. All of the territory bounded by the following streets:

1. Le Conte Avenue from Levering Avenue to Tiverton Avenue;
2. Tiverton Avenue from Le Conte Avenue to the intersection of Lindbrook Drive and Glendon Avenue;
3. Glendon Avenue from the intersection of Lindbrook Drive and Tiverton Avenue to Wilshire Boulevard;
4. Wilshire Boulevard from Glendon Avenue to Gayley Avenue;
5. Gayley Avenue from Wilshire Boulevard to the alley 200 feet north of Wilshire Boulevard;

6. The alley directly west of Gayley Avenue from a point 200 feet north of Wilshire Boulevard and Weyburn Avenue;
7. Weyburn Avenue from the alley west of Gayley Avenue to Gayley Avenue;
8. Gayley Avenue from Weyburn Avenue to Levering Avenue;
9. Levering Avenue from Gayley Avenue to Le Conte Avenue; and
10. All of the territory within 100 feet of Wilshire Boulevard between Veteran Avenue and the westerly city limits of the City of Beverly Hills; and
11. All of the territory within 100 feet of Wilshire Boulevard between Centinela Avenue and Federal Avenue.

VIII. **Van Nuys.** All of the territory bounded by the following streets:

1. Vesper Avenue from Calvert Street to Victory Boulevard;
2. Victory Boulevard from Vesper Avenue to Sylmar Avenue;
3. Sylmar Avenue from Victory Boulevard to Calvert Street;
4. Calvert Street from Sylmar Avenue to Vesper Avenue; and
5. All of the territory within 100 feet of Van Nuys Boulevard between Victory Boulevard and Sherman Way.

IX. **Venice.** All of the territory bounded by the following streets:

1. Horizon Avenue from Ocean Front Walk to Pacific Avenue;
2. Pacific Avenue from Horizon Avenue to Eighteenth Avenue;
3. Eighteenth Avenue from Pacific Avenue to Ocean Front Walk; and
4. Ocean Front Walk from Eighteenth Avenue to Horizon Avenue.

X. **San Pedro.** All of the territory bounded by the following streets:

1. Fourth Street from Pacific Avenue to Harbor Boulevard;
2. Harbor Boulevard from Fourth Street to Seventh Street;
3. Seventh Street from Harbor Boulevard to Beacon Street;
4. Beacon Street from Seventh Street to Eighth Street;
5. Eighth Street from Beacon Street to Pacific Avenue; and
6. Pacific Avenue from Eighth Street to Fourth Street.

Excepting that portion of the above-described territory described as follows:

Beginning at the point of intersection of the easterly line of Mesa Street and the southerly line of Fourth Street; thence southerly along said easterly line of Mesa Street to the northerly line of the alley running parallel to said Fourth Street and distant 155 feet southerly of the center line of said Fourth Street; thence along the northerly line of said alley to a point 498 feet from the easterly line of said Mesa Street; thence south 10 feet and thence easterly to the westerly line of Centre Street; thence northerly along said westerly line to the southerly line of said Fourth Street; thence westerly along said southerly line to the point of beginning.

91.7201.2. Very High Fire Hazard Severity Zone. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Very High Fire Hazard Severity Zone shall be considered a Fire District. The Very High Fire Hazard Severity Zone shall be all of the territory so designated by the boundaries shown on the Very High Fire Hazard Severity Zone Map as established in LAMC Sections 57.4908 et seq. and adopted by the City Council.

91.7201.3. Buildings Overlapping Fire District Boundaries. (Renumbered and Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) Every building or structure having any part of the building within a fire district shall be deemed to be entirely in that fire district.

A building or structure located partly within two or more fire districts shall comply throughout with the more restrictive provisions of each fire district.

SEC. 91.7202. ADDITIONS TO BUILDINGS.

(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

An addition may be made to any building in a fire district if the added portion conforms to this division, and also if the entire building, including the addition, is within the height and area limits of CBC Section 503 for building of like type and occupancy.

EXCEPTION: An addition to a provisional structure shall not be permitted.

SEC. 91.7203. GENERAL REQUIREMENTS.

91.7203.1 General. In addition to the general requirements of this code every building located in a fire district shall conform to the requirements of this division.

91.7203.2. Nonconforming Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Alterations and repairs to a nonconforming building in a fire district shall conform to the provisions of Divisions 81 and 86, Article 1, Chapter IX of the LAMC.

The provisions of this subsection are subject to the roofing requirements of CBC Section 1503.

91.7203.3. Construction Sheds and Canopies. Construction sheds and protection canopies may be erected in a fire district if there is compliance with the other provisions of

this code.

91.7203.4. Projections from Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Projections from buildings conforming to the regulations of Division 32, Article 1, Chapter IX of the LAMC may be constructed in any fire district.

91.7203.5. Sprinklers. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) In every building in Fire District No. 1, every story or basement with a floor surface elevation more than four feet lower than the highest elevation of the floor landing or tread of any required exit from that story shall be sprinklered.

EXCEPTION: Sprinklers need not be installed in locations expressly excepted in Article 4, Chapter IX of the LAMC (Plumbing Code), provided other approved fire-protection equipment is installed.

91.7203.6. Miscellaneous Structures. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) In Fire District No. 1, isolated structures constructed of noncombustible materials may be unprotected if used for other than human occupancy.

Loading platforms having no roof and not over 48 inches above the ground may be of wood.

Loading platforms shall be enclosed and shall be firestopped into areas not exceeding 2,500 square feet.

SEC. 91.7204. SPECIAL REQUIREMENTS FOR FIRE DISTRICT NUMBER 1.

(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

91.7204.1. Types of Construction Permitted. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Every building in Fire District No. 1 shall be one of the following types: Type I; Type II; Type III; or provisional structures as provided in LAMC Section 91.7205.

91.7204.2. Type IIB Buildings. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Every building of Type IIB construction in Fire District No. 1, except provisional structures allowed by this section, shall have at least two-hour fire-resistive construction for exterior walls with a fire separation distance of less than 10 feet and shall have at least one-hour fire-resistive construction for exterior walls with a fire separation distance of less than 30 feet.

EXCEPTION: These walls may be one-hour less fire-resistive than specified here if the building is not more than one story in height or more than 2500 square feet in area.

91.7204.3. Openings in Exterior Walls. (Amended by Ord. No. 186,488, Eff. 12/27/19.) In the following cases, all openings in the exterior walls of buildings in Fire District No. 1, other than provisional structures, shall be protected by a fire assembly having a three-fourths-hour fire-resistive rating when the exterior wall has a fire separation distance of less than 10 feet

91.7204.4. Roof covering. Section D102.2.4 of Appendix D of the CBC is adopted by reference.

91.7204.5. Structural fire rating. Walls, floors, roofs and their supporting structural members shall be a minimum of one-hour fire-resistance-rated constructions.

EXCEPTIONS:

1. Buildings equipped throughout with an automatic sprinkler system in accordance with CBC Section 903.3.1.1.
2. Automobile parking structures.
3. Buildings surrounded on all sides by a permanently open space of not less than 30 feet (9144 mm).
4. Partitions complying with CBC Section 603.1 Exception 11. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.7204.6. Exterior Walls. (Amended by Ord. No. 186,488, Eff. 12/27/19.) In addition to LAMC Subsection 91.7204.2, Section D102.2.6 of Appendix D of the CBC is adopted by reference.

91.7204.7. Architectural Trim. Section D102.2.7 of Appendix D of the CBC is adopted by reference.

91.7204.8. Permanent Canopies. Section D102.2.8 of Appendix D of the CBC is adopted by reference.

91.7204.9. Roof Structures. Section D102.2.9 of Appendix D of the CBC is adopted by reference.

91.7204.10. Plastic signs. Section D102.2.10 of Appendix D of the CBC is adopted by reference.

91.7204.11. Plastic veneer. Section D102.2.11 of Appendix D of the CBC is adopted by reference.

SEC. 91.7205. PROVISIONAL STRUCTURES.

(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

91.7205.1. Definitions. For the purposes of this section, "provisional structure" shall mean any structure complying with the provisions of this section.

91.7205.2. Size Limit. A Type V provisional structure shall not exceed 12 feet in its longest dimension, 12 feet in height, or 100 square feet in overall area, including any roof projection.

A Type IIB provisional structure shall not exceed 400 square feet in building area and shall not exceed 12 feet in height.

91.7205.3. Exterior Walls. The requirements of CBC Section 503 shall not apply to provisional structures.

The exterior walls of a Type IIB provisional structure shall not be required to have a fire-resistive time period of construction.

The exterior walls of a Type V provisional structure shall be of one-hour fire-resistive construction.

EXCEPTION: The exterior walls of a Type V provisional structure, which is located on an automobile parking station lot, are not required to have a time period of fire resistance if the structure does not exceed 12 feet in its longest dimension and 50 square feet in overall area, including any roof projection and, provided further, that the structure shall be used in conjunction with the business of operating an automobile parking lot and shall maintain a setback from every street front not less than one third of the lot depth.

91.7205.4. Location. A provisional structure shall be located not less than 40 feet from any building of Type IIB or Type V construction.

91.7205.5. Parking Lot Structures. In lieu of a permanent foundation, a provisional structure used as an automobile parking lot office may be anchored to an asphalt slab by four or more 1/2-inch by 12-inch metal pins or equivalent anchorage. Toilet facilities will not be required.

SEC. 91.7207. SPECIAL REQUIREMENTS FOR THE VERY HIGH FIRE HAZARD SEVERITY ZONE.

(Title Amended by Ord. No. 176,943, Eff. 10/5/05.)

91.7207.1. Unenclosed Under-floor Areas. Residential buildings shall have all under-floor areas completely enclosed to the ground with construction as required for exterior walls.

EXCEPTIONS:

1. Complete enclosure shall not be required where the underside of all exposed floors and all exposed structural columns, beams and supporting walls are protected as required for exterior one-hour fire-resistive construction.
2. The area under cantilevered balconies and unroofed walking decks need not be considered as under-floor area, provided exposed utilities, pipes or other mechanical devices are not located in the area.

91.7207.2. Utilities. All utilities, pipes, furnaces, water heaters or other mechanical devices located in an exposed under-floor area of a residential building shall be enclosed with material as required for one-hour fire-resistive construction. Adequate covered access openings for servicing such utilities shall be provided as required by appropriate codes.

91.7207.3. Attic Openings. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All exterior attic openings shall be protected with a maximum 1/4-inch noncombustible and corrosion-resistant screen.

91.7207.4. Roofing. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All buildings shall have a fire retardant roofing assembly complying with the requirements of Class A roof covering as defined in CBC Section 1505. Wood shakes and shingle are not permitted in the VHFHSZ.

SEC. 91.7208. PROHIBITED VEHICLES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

No vehicle in Fire District No. 1 shall be used except as permitted for a mobilehome, travel trailer or camp car in a park designed for that use or for an industrial catering truck as defined in LAMC Section 91.202. However, no person shall park an industrial catering truck continuously at any location on private property for the purpose of dispensing food or drink for a period of time exceeding one hour, and regardless of the length of time parked at any location, no person after departure from that location shall again park an industrial catering truck at that location, or at any location on private property within 500 feet (152.4 mm) of that location or private property, for the purpose of dispensing food or drink within a period of four hours after departure.

DIVISION 81

EXISTING BUILDINGS AND STRUCTURES – GENERAL REQUIREMENTS

(Division 81 Amended by Ord. No. 171,175, Eff. 7/25/96.)

Section

- 91.8101 General Provisions.
- 91.8102 Enforcement.
- 91.8103 Existing Building Rights.
- 91.8104 Basic Maintenance and Repair of Existing Buildings and Premises.
- 91.8105 Illegal Buildings, Construction and Use.
- 91.8106 Fire District Requirements.
- 91.8108 Nuisances, Hazardous Buildings and Substandard Residential Buildings.
- 91.8109 Relocated Buildings.
- 91.8110 Unreinforced Masonry Bearing Wall Buildings.
- 91.8111 Residential Heating.
- 91.8112 Residential Plumbing.
- 91.8113 Rod Bracing Systems.
- 91.8114 Parapets and Appendages.
- 91.8115 Sandblasting.
- 91.8116 Special Provisions for Light-housekeeping Rooms.
- 91.8117 Fire Watch.
- 91.8118 Pool Water Clarity.
- 91.8119 Historical Buildings and Structures.

SEC. 91.8101. GENERAL PROVISIONS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

91.8101.1. Purpose. The purpose of this division is to establish minimum standards to regulate and encourage the proper maintenance and use of existing buildings, structures and premises in order to safeguard life, limb, health, property and public welfare.

91.8101.2. Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of this chapter shall apply to all or portions of existing buildings, structures or premises.

EXCEPTIONS:

1. Historical buildings may comply with LAMC Section 91.8119.
2. Existing commercial or industrial buildings, for which a building permit was issued prior to April 1, 1994, may be converted to "joint living and work

quarters," provided the existing building complies with Division 85, Article 1, Chapter IX of the LAMC and any other applicable section of the LAMC.

SEC. 91.8102. ENFORCEMENT.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.8102.1. General. It shall be unlawful for any person, firm or corporation to erect, construct, enlarge, alter, repair, maintain, move, improve, remove, convert, demolish, equip, use or occupy any existing building, structure, premises or portion thereof in violation of the provisions of this division.

Any person who violates or causes or permits another person to violate any provision or requirement of this division is guilty of a misdemeanor. Any person includes an owner, lessor, sublessor, manager or person in control of a building subject to this division. The legal owner of a building is that person, firm, corporation, partnership or other entity whose name or title appears on record with the Los Angeles County Recorder's Office.

91.8102.2. Occupant Responsibility. It shall be unlawful for any tenant or other individual occupying any dwelling unit, efficiency dwelling unit, guest room or suite in a building to fail to keep the dwelling unit, efficiency dwelling unit, guest room or suite free from an accumulation of debris, filth, rubbish and garbage.

91.8102.3. Penalties. (Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) Any person convicted of a misdemeanor due to violation of any provision or requirement of this division is subject to penalties as prescribed by Section 11.00(m) of the Los Angeles Municipal Code, which is quoted in part as follows:

"Every violation of this Code is punishable as a misdemeanor unless provision is otherwise herein made, shall be punishable by a fine of not more than \$1,000.00 or by imprisonment in the County Jail for a period of not more than six months, or by both such fine and imprisonment.

Every violation of this Code which is provided for therein to be an infraction is punishable by a fine as set forth in this Code section, or as otherwise provided in this Code, not to exceed \$50.00 for the first violation, \$100.00 for a second violation of the same provision within one year, and \$250.00 for each additional violation of the same provision within one year.

Each person shall be guilty of a separate offense for each and every day during any portion of which any violations of any provision of this Code is committed, continued or permitted by such person and shall be punishable accordingly."

Nothing in this division or Code shall prohibit the payment of investigative costs by any person so convicted of any provision of this division, to the Department of Building and Safety to reimburse said agency for all costs expended to investigate and/or enforce the provisions of this Code.

SEC. 91.8103. EXISTING BUILDING RIGHTS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.8103.1. General. Every existing building or structure constructed under a valid permit and occupied in conformance with code regulations and Department approvals in effect at the time of such construction and occupancy shall be allowed to continue to exist under those regulations and approvals even though subsequently adopted regulations and approvals have changed the requirements, provided the building, structure or portion thereof does not become a nuisance, a hazardous building, or a substandard residential building, and provided further, that subsequently adopted regulation specifically applicable to existing buildings or structures are met.

91.8103.2. Repair, Rehabilitation, Alteration, and Addition. Repair, rehabilitation, alteration and addition shall comply with Article 1.2, Chapter IX of the LAMC. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

91.8103.3. Group I Occupancy. Buildings classed in Group I Occupancy because of the use or character of the occupancy that are not more than 3 stories in height, that were established prior to March 4, 1972, and that have been continuously operated as that use or character since that time shall comply with Article 1.2, Chapter IX of the LAMC. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

SEC. 91.8104. BASIC MAINTENANCE AND REPAIR OF EXISTING BUILDINGS AND PREMISES.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

Every existing building, structure, premises or portion thereof shall be maintained in conformity with the code regulations and Department approvals in effect at the time of such construction and occupancy unless specifically exempt by written approval of the Department.

Every existing building, structure, or portion thereof shall be maintained in a safe and sanitary condition and good repair. The premises of every building or structure shall be maintained in good repair and free from graffiti, debris, rubbish, garbage, trash, overgrown vegetation or other similar material.

91.8104.1. All physical elements of every existing building, structure or portion thereof shall be maintained by cleaning, painting, staining, refinishing or other restorative means, in a condition as close as reasonably feasible to their originally required and approved state.

91.8104.2. The interior of every existing building, structure and portion thereof and the exterior wall surfaces and premises thereof shall be maintained clean and free from accumulation of debris, rubbish, garbage, trash, overgrown vegetation and other similar material.

91.8104.3. The roof of every building or structure shall be kept waterproof and all devices which were provided to convey the roof water from the roof shall be maintained so as to be capable of fulfilling that purpose.

91.8104.4. The walls and ceilings of every room in every building, structure or portion thereof shall be finished, sealed, coated, painted, or covered in an approved manner so as to maintain them in a clean and sanitary condition. Loose wallpaper or other surfacing shall be removed or repaired so as to provide a smooth, tight-fitting, clean and sanitary surface.

91.8104.5.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The doors, windows, cabinets, frames and similar finishes shall be finished, sealed, coated, painted or covered in an approved manner so as to maintain them in a clean and sanitary condition. Broken or cracked glass or plastics shall be replaced. Torn, worn or broken screens shall be repaired, replaced or removed, unless removal is otherwise prohibited by Code.

91.8104.5.2. Legally required insect screens shall not be removed for other than repair or replacement.

91.8104.6. The floor and floor covering of every room in every building, structure or portion thereof shall be maintained in a clean and sanitary condition. The floor and covering shall be maintained free from defects, holes, loose, worn or missing portions which could present a safety hazard to occupants.

91.8104.7. The plumbing fixtures, shower enclosures, wastewater drain lines, water supply lines, counters, drainboards and adjoining wall and floor areas provided to protect against water damage in every building or structure shall be maintained in good repair and in a clean and sanitary condition.

Leaking drain or supply lines shall be repaired or replaced. Cracked, chipped or damaged fixtures shall be repaired or replaced. All surfaces provided to protect against water damage shall be without cracks, defects or missing portions. All fixtures, enclosures, counters and surfaces shall be kept in a clean and sanitary condition free from dirty or foreign materials.

91.8104.8.1. The electrical service, lines, switches, outlets, fixtures and fixture coverings and supports in every building or structure shall be maintained in good repair. Broken, loose, frayed, inoperative, defective or missing portions shall be repaired or replaced. The fixtures, fixture coverings, switches, and outlets shall be maintained in a clean and sanitary condition free from dirty or foreign materials.

91.8104.8.2. Unless specifically permitted in the National Electrical Code, flexible cords and cables shall not be used as a substitute for the fixed wiring of a structure.

91.8104.8.3. Panelboards and fuseholders shall not be equipped with fuses which exceed the rated ampacity of the protected circuit.

91.8104.9. All plumbing and waste drain lines in every building or structure shall be maintained clear of blockages which would cause overflow at any fixture or which would cause any fixture to overflow under the condition of normal water supply to that fixture.

91.8104.10.1. All water supply lines to kitchen and bathroom fixtures shall be maintained so as to provide at least one gallon per minute rate of water flow, of at least 100° F. However, the maximum temperature at the water heater or storage tank need not exceed 140° F.

91.8104.10.2. Hot water shall continue to be provided to each residential kitchen and bathroom fixture at all times.

91.8104.10.3. No time clock or other devices shall be installed to prevent the supply of the required hot water to residential rental units at any time.

91.8104.11. The existing central heating or individual unit heating for each dwelling unit or guest room shall be maintained in good repair and operable.

91.8104.12. The exterior wall surfaces of every existing building or structure shall be maintained weathertight, in good repair and in a clean and sanitary condition.

91.8104.13. All fences shall be maintained in good repair and shall be kept straight, uniform and structurally sound. Wooden fences shall be either painted or stained or otherwise treated or sealed in an approved manner to prevent their becoming a nuisance from weathering or deterioration.

91.8104.14. All masonry units shall be maintained with head, bed and wall joints solidly filled with mortar.

91.8104.15. The exterior of all privately owned buildings and fences shall be free from graffiti when such graffiti is visible from a public street or alley.

91.8104.16. Properties must be free of dead vegetation, shrubs, and trees. In addition, any existing or new irrigation equipment must be maintained and in working order (local and state requirements may apply to watering frequency and consumption). **(Added by Ord. No. 184,692, Eff. 12/30/16.)**

SEC. 91.8105. ILLEGAL BUILDINGS, CONSTRUCTION AND USE.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

Every existing building, structure or portion thereof constructed without a building permit shall be made to conform to the provisions of this Code or shall be demolished and removed. Any use or occupancy existing in a building without authorization of a building permit shall be discontinued and removed or shall be made to conform to the provisions of this Code.

SEC. 91.8106. FIRE DISTRICT REQUIREMENTS.

(Amended by Ord. No. 181,758, Eff. 8/8/11.)

91.8106.1. Fire Sprinklers. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In an existing building in Fire District No. 1, every story or basement which has a floor surface elevation more than 4 feet (1219.2 mm) lower than the highest elevation of the floor landing or tread of any required exit from that story shall be sprinklered.

EXCEPTION: Building that is occupied only as a single-family dwelling.

SEC. 91.8108. NUISANCES, HAZARDOUS BUILDINGS AND SUBSTANDARD RESIDENTIAL BUILDINGS.

(Amended by Ord. No. 171,858, Eff. 1/23/98.)

Existing buildings which have been determined to be nuisances, hazardous buildings or substandard residential buildings under Division 89, Article 1, Chapter IX of the LAMC are subject to compliance with all the requirements of this Code for a new building. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The Department may require an existing building which has been determined to be a nuisance, a hazardous building, or a substandard residential building to comply with all current requirements of this Code for a new building, or may allow the repair of the building without requiring compliance with all the requirements of this Code for a new building where it is determined that the continuance of the existing condition does not pose a substantial hazard to life, limb, health, property or public welfare.

91.8108.1. Additional Requirements for Buildings Determined to Be Nuisances, Hazardous or Substandard Residential Buildings. The Department may impose additional requirements for buildings determined to be nuisances, hazardous or substandard residential buildings in order to address specific conditions that affect proper maintenance, use, repair, rehabilitation, alteration and to safeguard life, limb, health, property and public welfare. If the Department determines to impose additional requirements, the owner shall be notified that a hearing has been scheduled before the Board of Building and Safety Commissioners to determine if additional requirements should be imposed.

91.8108.2. Notice of Intent and Public Hearing. The notice of intent to impose additional requirements and the notice to hold a public hearing before the Board of Building and Safety Commissioners shall be given either by personal delivery thereof to the person to be notified or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to the person to be notified at the address shown on the last equalized assessment roll. Service by mail shall be deemed to have been completed at the time of deposit in the U. S. Mail. The failure of any owner or person to receive the notice shall not affect in any manner the validity of any of the proceedings taken thereunder. Proof of giving any notice may be made by an affidavit of any employee of the City which shows service in conformity with this section.

The notice shall indicate:

1. The street address of the building or premise, or the approximate street address if no street address has been assigned.
2. That the condition of the building constitutes a nuisance, hazardous or substandard residential building.
3. The additional requirements to be imposed by the Department.
4. Identify the need for the additional requirement.
5. That the owner must appear at a hearing conducted by the Board, at a time, date and location specified in the notice, which shall be at least 15 days from the date of the notice.

6. That upon any such appearance, the owner will be given the opportunity to present and to elicit testimony and other evidence to show cause why the additional requirements should not be imposed.

7. That this appearance may be made by the submission of written materials if they have been received by the City at least three days prior to the scheduled hearing at the mailing address specified in the notice.

91.8108.3. Public Hearing. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The matter shall be scheduled for hearing before the Board on the date and time specified in the notice. The Board shall proceed to determine whether the additional requirements specified in the notice of intent should be imposed.

The person notified to appear, or the actual owner of the parcel or premises in the event the person notified is not the owner, or any person representing the owner who attends the hearing, shall be given an opportunity to present and to elicit testimony and any other evidence on whether the additional requirements should be imposed. The Board shall proceed with the hearing whether or not that person is in attendance. Written material shall be considered by the Board if it is received at least three days prior to the scheduled hearing date.

At the conclusion of the hearing, the Board shall make a finding and determine whether the condition of the premises warrants additional requirements in order to safeguard life, limb, health, property and public welfare. The owner and any other person who appeared at the scheduled public hearing on behalf of the owner, either in person or by the submission of written material, shall be notified in writing of the determination of the Board. Once the Board has acted, it shall have no further jurisdiction over any matter relating to the imposition of additional requirements on the premises. Any further determinations in this regard, including requests for extensions of time, shall be within the sole jurisdiction and discretion of the Superintendent of Building and not appealable to the Board.

SEC. 91.8109. RELOCATED BUILDINGS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Any building or structure moved into, out of, or within the City shall comply with the requirements of Division 83, Article 1, Chapter IX of the LAMC.

SEC. 91.8110. UNREINFORCED MASONRY BEARING WALL BUILDINGS.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Existing unreinforced masonry bearing wall buildings constructed or under construction prior to October 6, 1933, shall conform to the requirements of Division 88, Article 1, Chapter IX of the LAMC. For other than full compliance to Division 88, Article 1, Chapter IX of the LAMC, all alterations, repairs, additions, Change of Occupancy, change in Class Rating per LAMC Table 88-A, Change in Occupancy Category, and increase in occupant load shall comply with the requirements of Article 1.2, Chapter IX of the LAMC.

SEC. 91.8111. RESIDENTIAL HEATING.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.8111.1. Every residential unit which is rented or leased shall be provided with approved heating facilities capable of maintaining a room temperature of 70° F. at a point three feet above the floor in all habitable rooms.

Where individual heating facilities are provided within a residential unit, a rating of the facilities in B.T.U. equal to six B.T.U. per cubic foot of habitable floor area shall be considered as fulfilling the required temperature level. All gas heating facilities shall be properly vented.

91.8111.2. Where the heating facilities cannot be activated by the occupant of a residential unit, the owner shall activate the heating facilities whenever the residential unit temperature is 70° F. or less. No time clocks or other devices shall be installed to prevent the occupants of the residential unit from activating the heating facility.

91.8111.3. A legally installed comfort heating appliance shall not be removed or made inoperable.

SEC. 91.8112. RESIDENTIAL PLUMBING.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

When existing water heaters serving rental or lease residential units are replaced, they shall be replaced with units which will provide an overall equivalency or greater in water heater gallon capacity and rate of heat recovery to the replaced units.

Any water heater which is relocated, reinstalled or newly installed from the interior of the building to a location outside the building shall be installed in an approved enclosure. Any new water heater which is installed outside the building shall be installed in an approved enclosure.

SEC. 91.8113. ROD BRACING SYSTEMS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

Buildings constructed with adjustable steel rod bracing systems designed to transfer horizontal forces shall be subject to inspection after completion of the building or structure for the purpose of maintaining proper adjustments of the bracing assembly. The owner shall be duly notified if adjustments are found necessary and, upon the receipt thereof, shall cause adjustments to be made satisfactory to the Department.

SEC. 91.8114. PARAPETS AND APPENDAGES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

No building shall have any parapet or appendage attached to or supported by an exterior wall of the building and located adjacent to a public way or to a way set apart for exit from a building or passage of pedestrians, if such parapet or appendage is not so adequately constructed, anchored or braced as to remain wholly in its original position in event of an earthquake having the effect designated by Division 16, Article 1, Chapter IX of the LAMC.

Whenever the Department determines by inspection that an existing parapet or appendage is not so adequately constructed, anchored or braced as to remain wholly in its original position, the Department shall, by written notice addressed to the owner, person or agent in control of the building, designate and describe the hazards and inadequacies of construction, anchorage or bracing determined by such inspection and direct that the necessary corrections be made to ensure that all of the parapet or appendage remain in its original position. Upon receipt of such notice, the owner, person or agent in control of the building where such parapet or appendage exists, shall, within one year from the date of such notice:

1. Submit to the Department suitable corrective plans;

2. Obtain the necessary alteration permit; and

3. Complete all the work necessary or ordered. All the plans thus submitted shall have the intent of eliminating the parapet or appendage, or reconstructing such parapet or appendage so that it will conform structurally with requirements of this Code, or strengthening such parapet or appendage by bracing or other means so that it will resist the forces of an earthquake and remain in its original position.

Any person receiving a notice as set out in this section may appeal from the notice of the Department in the manner provided by LAMC Sections 98.0403.1 and 98.0403.2.

SEC. 91.8115. SANDBLASTING.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

No building or other structure shall be sandblasted except by a wet process precluding the creation of dust and dry debris.

Inspection shall be made by the Department after scaffolding and protective enclosure are in place and before work is started.

EXCEPTION: Dry sandblasting may be permitted by the Department only when evidence is submitted that this process is necessary for the proper cleaning of the building or structure. No permission may be granted unless it can be shown that the use of this process will not be detrimental to adjoining property or public welfare.

SEC. 91.8116. SPECIAL PROVISIONS FOR LIGHT-HOUSEKEEPING ROOMS.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

91.8116.1. General. (Amended by Ord. No. 186,488, Eff. 12/27/19.) This division does not prevent the use of a room as a light-housekeeping room in any building, provided that such room fully complies with the provisions of this section.

A light-housekeeping room is any room which is designed and used both as a sleeping room and for the cooking or preparation of food.

91.8116.2. Special Provisions.

91.8116.2.1. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Light-housekeeping rooms shall contain not less than 150 square feet in area and shall be occupied by not more than two people. The cooking appliance therein, if any, shall be used solely for the cooking or preparation of meals for consumption by the occupants of the room. The use of cooking appliances, existing in rooms prior to September 20, 1963, shall be in accordance with the provisions of LAMC Subsections 91.8116.2.2 through 91.8116.2.10.

EXCEPTION: A room having a superficial floor area of not less than 120 square feet may be used for light-housekeeping if it is occupied by only one person.

91.8116.2.2. The cooking appliances used therein, if any, shall have no more than two burners. If electric appliances are used, they shall have been tested and approved by the Underwriters Laboratories. If gas appliances are used, they shall have been tested and approved by the American Gas Association.

91.8116.2.3. The installation, maintenance or use of said cooking appliance shall not be hazardous to life, health or property.

91.8116.2.4.1. Said cooking appliance shall rest upon its own legs, or shall be an approved, built-in unit of fixed installation. Said appliance shall be set not closer than six inches from any wall or projection thereof, and shall rest upon an impervious surface.

91.8116.2.4.2. The walls behind and adjacent to said cooking appliance shall be lined or back-flashed with noncombustible material equivalent to 1/4-inch asbestos mill board. The back-flashing shall extend from 12 inches below to 24 inches above the base of the appliance. There shall be clear and unobstructed space of 36 inches above the surface of the cooking appliance.

EXCEPTION: Approved prefabricated kitchen units.

91.8116.2.5.1. Gas-burning appliances shall be connected to the gas supply piping by approved metal piping with an approved gas shutoff valve readily accessible within the room, and maintained in accordance with the provisions of the Plumbing Code.

Electrical appliances and serving circuits shall be installed and maintained in accordance with the provisions of the Electrical Code.

91.8116.2.5.2. Guest rooms, other than those legally converted for light-housekeeping purposes, shall not contain a fuel-gas-burning or electrically energized cooking appliance.

91.8116.2.6. The room shall contain an approved sink with hot and cold running water.

91.8116.2.7. An approved storage cabinet shall be installed in the room. All food, dishes and cooking and eating utensils shall be stored therein when not in use.

91.8116.2.8. The bed in such a room, or any drapes, curtains or other readily combustible material shall be so located that they do not come in contact with the cooking appliances, if any.

91.8116.2.9. Any toilet room opening directly into such a room shall have a tight-fitting door.

91.8116.2.10. An approved method of heating shall be installed in each such room. Cooking appliances shall not be used for the purpose of heating such rooms. No cooking appliance shall be installed within a closet in such a room.

91.8116.3. Bath and Water Closet Facilities. In any building containing six or more light-housekeeping rooms, there shall be one water closet and one bath facility for each five units or fraction thereof. In any building containing five or less light-housekeeping rooms, there shall be one water closet and one bath facility which may be in the same room for each three light-housekeeping units in the building. Such toilet and bath facilities shall be accessible to and from a public hallway.

SEC. 91.8117. FIRE WATCH.

(Added by Ord. No. 171,175, Eff. 7/25/96.)

Whenever the Department of Building and Safety determines by inspection that a violation affecting life safety from threat of fire exists in an occupied building, the Department may require that a fire watch be assigned to the building. The fire watch shall be a licensed uniformed person chosen by the owner and approved by the Department and shall perform duties in accordance with the Department's fire watch procedures. The fire watch shall remain in effect until all fire safety work is completed and approved by the Department. Any person who fails to comply with a Department fire watch order shall be guilty of a misdemeanor.

SEC. 91.8118. POOL WATER CLARITY.
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The recirculation and purification system of any swimming pool, fish pond, or any other body of water which is required to be fenced by LAMC Section 91.6109, shall be operated and maintained so as to keep the water in such pool or other body of water clean and of reasonable clarity.

In order to define reasonable clarity of the water in such pool, pond or body of water, the following standard shall be applied: A painted black disk, 6 inches in diameter on a 12 inch by 12 inch (304.8 mm x 304.8 mm) white tile, placed at the bottom of the pool at its deepest point, shall be clearly visible from the sidewalks around the pool from all distances up to 10 yards (9.14 m) from such disk, or the water is determined to not be of reasonable clarity.

SEC. 91.8119. HISTORICAL BUILDINGS AND STRUCTURES.
(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

Notwithstanding any other provisions of this Code to the contrary, the following provisions shall apply in addition to the provisions of Title 24, Part 8 of the California Code of Regulations, the State Historical Building Code.

91.8119.1. Additions, Alterations and Repairs. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Additions, alterations and repairs shall be made in accordance with the nonconforming rights of LAMC Subsection 91.8101.2 and Section 91.8103.

91.8119.2. Change of Use or Occupancy. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Change of use or occupancy shall comply with LAMC Sections 91.8203 and 91.8204.

91.8119.3. Earthquake Hazard Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Where the requirements of Division 88, Article 1, Chapter IX of the LAMC are more restrictive than the requirements of this division, the requirements of Division 88, Article 1, Chapter IX of the LAMC shall apply.

91.8119.4. Preservation of Historical Buildings.

91.8119.4.1. If the Department determines that any building, structure, premises or portion thereof, (1) has been designated an historical monument or (2) is being considered as a historical monument by the Cultural Heritage Commission, and (3) is subject to vandalism, or unlawful entry, or has become a hazardous building, nuisance or substandard building, then the Department may cause the building, structure, or premises or any portion thereof, to be immediately barricaded and protected by such means as the Department may deem advisable, including the use of a Department awarded contract.

91.8119.4.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Department may cause the building, structure or premises, or any portion of the building, structure or premises, to be immediately barricaded or protected from further deterioration. The barricading or protection may be accomplished by any City department with the forces to perform the work, upon receipt of a request from the Department, or by any forces under contract to the City. Where the work is accomplished by other than City forces, the cost shall be paid from the "Repair and Demolition Fund" as established in LAMC Section 91.8906. All costs incurred pursuant to this section shall be a personal obligation against the owner of the property upon which the particular building or structure or any portion is located, recoverable by the City in an action before any court of competent jurisdiction. These costs shall include an amount equal to 40 percent of the cost to perform the actual work, but not less than the sum of \$100.00, to cover the City's costs for administering any contract and supervising the work required. In addition to this personal obligation and all other remedies provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

91.8119.4.3. The administrative fee of 40 percent of the costs shall not be included in the calculation of costs incurred for or arising out of any barricading, or protecting, resulting from an event or course of events that prompted a declaration of a state of emergency, local emergency, war emergency or major disaster by the Mayor, the Governor of the State, or by the President of the United States. **(Amended by Ord. No. 175,596, Eff. 12/7/03.)**

91.8119.4.4. (Amended by Ord. No. 185,587, Eff. 7/16/18.) If the Department determines that the building, structure, or premises or portion thereof is not in danger of imminent deterioration or vandalism, then the Department may, in lieu of the above, require the building, structure or premises or any portion thereof to be secured, repaired or protected pursuant to the provisions of Division 89, Article 1, Chapter IX of the LAMC.

91.8119.5. Vandalism of Historical Buildings. The Department shall have the authority to issue an Order to Comply to an owner of any building that has been designated an historical monument or is being considered as an historical monument by the Cultural Heritage Commission if the Department determines that the building has become subject to vandalism or constitutes a public nuisance. In such circumstances, the Department shall have the authority to issue any order it deems appropriate to keep the property from being further vandalized or from becoming a public nuisance including, but not limited to, ordering that the building be secured and fenced.

For the purposes of this provision, any building which has been designated an historical monument or is being considered as an historical monument by the Cultural Heritage Commission shall include the interiors and exteriors of any accessory building located on an historic site.

91.8119.5.1. Security measures that the Department may order shall include, but not be limited to, the following:

1. The installation of the maximum allowed height under this Code of chain- link perimeter fencing with top mounted horizontal pipe and razor wire, and at least one securely-locked pedestrian gate and the posting of "NO TRESPASSING" signs, pursuant to Section 41.24 of the Los Angeles Municipal Code, at 25-foot intervals.
2. Steel or plywood closures, with one-inch diameter air holes, installed at all doors and windows. (Sandwich panel installation shall be used so as to avoid drilling into window frames and sashes, doors, ornament or masonry units.)
3. The removal of all debris from the premises, including but not limited to wood, paper, cans, bottles and fecal matter.

Any temporary modifications required to be made to secure the building shall be reversible.

91.8119.5.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Any plans or proposals for work required to be performed pursuant to an Order to Comply to secure any building from being further vandalized or from becoming a public nuisance must first be reviewed by the Cultural Affairs Department to ensure that any work done to secure the building will not damage or alter the historic character of the building. This review by the Cultural Affairs Department must be completed within ten working days from the date any request for review is submitted. The Cultural Affairs Department shall only disapprove a plan or proposal to secure a building if the work will significantly damage or alter the historic character of the building. If the work to be performed includes substantial alteration, the procedures set forth in Los Angeles Administrative Code Section 22.171.12 shall be utilized for review by the Cultural Affairs Department.

Failure to act upon a request for review within the time periods set forth herein shall constitute a waiver by the Cultural Affairs Department of the right to review plans or proposals for the work to be performed. Work ordered to be performed immediately pursuant to an Order to Comply, as determined by the Department of Building and Safety, may be commenced and completed without prior review by the Cultural Affairs Department.

Nothing herein shall be interpreted to prohibit an owner from taking immediate temporary measures to secure a building from unauthorized entry.

91.8119.5.3. 91.8119.5.3. (Amended by Ord. No. 185,587, Eff. 7/16/18.) It shall be unlawful for any property owner to fail to comply with any Order to Comply issued by the Department under this provision and every failure shall be punishable as a misdemeanor.

91.8119.5.4. Additional Remedies – Notice Of Intention. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In addition to the remedies provided by this Code, should an owner fail to comply with an Order to Comply, the Department may take the necessary measures, including those authorized under LAMC Sections 91.8903, 91.8904 and 91.8905, to immediately secure the property against vandalism or prevent it from becoming a public nuisance. Prior to taking these measures, the Department shall send a Notice of Intention to the owner pursuant to the provisions set forth in LAMC Subdivisions 91.8903.3.3 and 91.8903.3.4.

Except for measures taken pursuant to LAMC Section 91.8905, when a Notice of Intention is issued under this section, the provisions of LAMC Subdivision 91.8903.3.5, through and including Subdivision 91.8903.4.3, shall also apply.

This provision is in addition to the remedies provided in LAMC Sections 91.8903, 91.8904, and 91.8905.

All costs incurred pursuant to this section shall be a personal obligation against the owner of the property, recoverable by the City in an action before any court of competent jurisdiction. These costs shall include an amount equal to 40% of the cost to perform the actual work, but not less than the sum of \$100.00, to cover the City's costs for administering any contract and supervising the work required. In addition to this personal obligation and all other remedies provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

DIVISION 82

CHANGE OF OCCUPANCY, USE AND RATING CLASSIFICATION

(Division 82 Added by Ord. No. 159,068, Eff. 7/29/84, Oper. 1/29/85)

- Section
- 91.8201 General.
- 91.8202 Change of Rating Classification.
- 91.8203 Change of Occupancy Group or Group Division.
- 91.8204 Change of Use.
- 91.8205 Certificate of Building Compliance.

SEC. 91.8201. GENERAL.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Every change of occupancy, use and rating classification in any existing building or structure shall conform to the construction requirements for the group occupancy to be housed in the building or structure or for the use to which the building or structure is to be put, as set forth in Article 1.2, Chapter IX of the LAMC and Division 82, Article 1, Chapter IX of the LAMC.

SEC. 91.8202. CHANGE OF RATING CLASSIFICATION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

An existing building within the scope of Division 88, Article 1, Chapter IX of the LAMC shall not be changed from one rating classification, as described in LAMC Section 91.8804, to another higher risk rating classification unless the building meets or is altered to meet the requirements of CBC Appendix Chapter A1 for the proposed rating classification and the building meets or is altered to meet the other requirements of this Code for the use or occupancy change.

EXCEPTION: An existing building within the scope of Division 88, Article 1, Chapter IX of the LAMC shall not be changed from one risk category as defined in CBC Section 1604.5 to another higher risk category unless the building meets or is altered to meet the other requirements of this Code.

SEC. 91.8203. CHANGE OF OCCUPANCY GROUP OR GROUP DIVISION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Every change of occupancy to one classified in a different group or a different division of the same group, as described in Division 3, Article 1, Chapter IX of the LAMC, shall require a new Certificate of Occupancy whether or not any alterations to the building are required by this Code. For the purpose of this division, the occupancy group and division of interconnected assembly rooms shall be based on the total occupant load in such rooms.

If the building or portion thereof does not conform to the requirements of this Code for the proposed occupancy group or division, the building or portion thereof shall be made to conform. The Department may issue a new Certificate of Occupancy without stating therein that all of the requirements of the Code have been met and without requiring compliance with all such requirements if it is found that the change in occupancy group or division will result in no overall increase in hazard to life, limb, health, property or public welfare.

SEC. 91.8204. CHANGE OF USE.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

No change shall be made in the character of occupancies or use of any building that would place the building in a different division of the same group of occupancy or in a different group of occupancies, unless such building is made to comply with the requirements of this code for such division or group of occupancy. **(Amended by Ord. No. 180,619, Eff. 5/12/09.)**

Any assembly occupancy in a building constructed prior to October 6, 1933, shall not be expanded or arranged to accommodate a larger number of occupants than that for which it was previously authorized by the Department unless the entire building conforms to the provisions of Division 16, Article 1, Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The Department may allow a change of use or increased occupant load within the same division of an occupancy group without requiring compliance with all the applicable requirements of the Code if it is found that the change in use or increased occupant load as well as any conditions established by the Department will not result in an overall increase in hazard to life, limb, health, property or public welfare.

SEC. 91.8205. CERTIFICATE OF BUILDING COMPLIANCE.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8205.1. General. If the owner of an existing building desires to determine whether the building is in compliance with applicable sections of Chapter IX of the Los Angeles Municipal Code for existing buildings, the owner may make application to the Department for a Certificate of Building Compliance.

91.8205.2. Fees. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Before any application for such Certificate of Building Compliance is accepted, a fee shall be paid by the applicant to cover the cost to the City for the necessary inspection and report. The amount of the fee shall be as shown in LAMC Table 82-A.

TABLE 82-A
CERTIFICATE OF BUILDING COMPLIANCE INSPECTION FEE.
(Former Table 82-B Redesignated 82-A by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

Residential Building*	
Section	Fee
Single-family dwelling or the first dwelling unit on the premises	\$185.00
Each additional dwelling unit on the premises up to four units total	\$105.00 per unit
Each dwelling unit in excess of four units	\$68.00 per unit
Each guest room or light-housekeeping room	\$47.00 per unit
*Inspection of buildings accessory to the residential building shall be included as part of the inspection without an additional fee.	

Nonresidential Buildings*	
Affected Floor Area	Fee
0 - 2,500 square feet	\$315.00
2,501 - 5,000 square feet	\$470.00
5,001 - 7,500 square feet	\$500.00
7,501 -10,000 square feet	\$600.00
Each additional 10,000 square feet or fraction thereof	\$210.00
*Inspection of buildings accessory to the residential building shall be included as part of the inspection without an additional fee.	

91.8205.3. Inspection Procedures. After the application has been accepted, the Department shall cause an inspection to be made and a report prepared. If, after taking into account nonconforming rights, the inspection report indicates that any building or portion thereof does not conform to the requirements of Chapter IX of the Los Angeles Municipal Code, that portion shall be made to conform.

When compliance has been secured, or if no corrections are required as a result of the inspection report, the Department will issue to the owner a Certificate of Building Compliance stating that the building is now in substantial compliance with the applicable provisions of Chapter IX of the Los Angeles Municipal Code for existing buildings.

The issuance of this certificate shall not be construed by any person to be a representation, guarantee or warranty of the premises for any purpose, including, but not limited to, fitness, suitability, or freedom from defects, either latent or patent. Nor is the issuance of this certificate to be construed to be a waiver of any immunity provided to public entities and public employees under state law, including, but not limited to, those immunities provided by Division 3.6 of Title 1 of the California Government Code.

DIVISION 83

RELOCATION PERMIT

(Division 83 Amended by Ord. No. 171,175, Eff. 7/25/96.)

- Section
- 91.8301 General Application.
 - 91.8302 Permits Required – General Considerations.
 - 91.8303 Permit Application – Plans and Specifications.
 - 91.8304 Special Conditions Under Which a Permit Will Not Be Issued.
 - 91.8305 Guarantee of Completion Required.
 - 91.8306 Terms of Permit.
 - 91.8307 Default in Performance of Conditions or Terms of Permits – Failure to Complete.
 - 91.8308 Permit Fees.
 - 91.8309 Entry upon Premises.

SEC. 91.8301. GENERAL APPLICATION.
(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8301.1. No person shall relocate or cause to be relocated any building or structure into or within the City of Los Angeles without complying with the provisions of Chapters I and IX of the Los Angeles Municipal Code.

91.8301.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Where a building or structure is to be relocated to a site outside the City, only the provisions of LAMC Subsections 91.8302.1, 91.8302.3, 91.8303.3 and Subdivision 91.8302.2.4 shall apply.

91.8301.3. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of LAMC Section 93.0110 (Electrical Code), LAMC Paragraph 94.103.1.1.2 (Plumbing Code) and LAMC Subsection 95.102.5 (Mechanical Code) shall apply to all buildings moved into or within the City.

SEC. 91.8302. PERMITS REQUIRED – GENERAL CONSIDERATIONS.
(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8302.1. Board of Public Works - Permission Required. No person shall move any building or structure, or any portion thereof, over, upon, along or across any street without a written permit therefor from the Board of Public Works. Such permit may be referred to as a **“House Mover’s Permit”** and shall be issued under the provisions of

Sections 62.83.1 and 62.84 of the Los Angeles Municipal Code.

91.8302.2. Department of Building and Safety - Security Deposit and Permit Required.

91.8302.2.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No House Mover's Permit shall be issued until the Department has first received a security deposit as required pursuant to LAMC Subsection 91.8305.2.

91.8302.2.2. If the building or structure is to be moved to a permanent site within City limits, no House Mover's Permit shall be issued until the Department of Building and Safety has first issued to the owner or person having legal control of the premises to which the building is to be moved, a permit to relocate the particular building upon those premises. Such permit shall be called a "**Relocation Permit.**"

91.8302.2.3. If the building or structure is to be moved to a temporary storage site within the City limits, no House Mover's Permit shall be issued until the applicant furnishes evidence to the Department of Building and Safety that the storage site is within the proper zone pursuant to the provisions of Article 2, Chapter I of the Los Angeles Municipal Code (Zoning Code) and that a Certificate of Occupancy for land use has been issued pursuant to the requirements of Section 12.26 E.2. of the Los Angeles Municipal Code.

91.8302.2.4. If the building or structure is to be moved to a site outside City limits, no House Mover's Permit shall be issued until the applicant furnishes evidence to the Department of Building and Safety that the proposed location meets the requirements of the jurisdiction.

91.8302.2.5. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Prior to issuance of a Relocation Permit, an inspection shall be required to investigate the condition of the building to be moved and to investigate the acceptability of the proposed new location. Fees for such inspection shall be paid by the applicant as specified in LAMC Section 91.8308.

91.8302.3. Department of Building and Safety - Sewer-capping Permit Required. Where a building or structure is to be removed from a lot within the City, no House Mover's Permit shall be issued until the Department of Building and Safety has first issued to the owner of such premises a permit to provide a watertight cap to the house connection sewer at the property or sewer easement line.

91.8302.4. Building Relocation Conditions.

91.8302.4.1. An apartment house or dwelling moved into or within the City and all other buildings moved within the City may retain the existing materials and methods of construction, provided that in the new location the building conforms to the requirements of this Code with respect to fire district requirements, under floor ventilation and clearance, underpinning, footings, foundations, occupancy requirements, and fire safety standards and does not become or continue to be a substandard residential building.

A substandard residential building and any building other than an apartment house or dwelling moved into the City shall be made to conform to all of the requirements of this Code for a new building in the same location within the City and to all other applicable laws.

91.8302.4.2. The Department of Building and Safety may, in granting any relocation permit, impose such terms and conditions it deems reasonable and proper, including, but not limited to, the requirements of maintenance corrections, alterations or repairs to be made to the building or structure so that the relocation thereof will not be materially detrimental or injurious to public safety or to public welfare or to the property and improvements within a radius of 1,000 feet from the site to which it is being relocated.

SEC. 91.8303. PERMIT APPLICATION – PLANS AND SPECIFICATIONS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8303.1. Every application to the Department of Building and Safety for a relocation permit shall be in writing upon a form furnished by that Department and shall set forth such information as that Department may reasonably require in order to carry out the purposes of this division.

91.8303.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Each such application shall be signed by the person owning or having legal control of the site upon which the building or structure is to be relocated, and prior to any appeal or the issuance of any permit there shall be filed fully delineated working drawings, electrical and mechanical plans and complete specifications. Such working drawings, plans and specifications shall show all new construction, materials, fixtures and fittings and any alterations, repairs or additions to be made to existing construction. Such plans shall also include floor plans, elevations and necessary construction details so as to show conformity with the intent of this section. Such drawings, plans and specifications shall, in addition to the requirements of LAMC Subdivision 91.106.3.3, show all site preparation, grading and improvements.

The applicant shall assume all responsibility for the preparation and completeness of said plans. In the event the City elects to complete the building or to demolish the building under the provisions of the Municipal Code, the City reserves the right to interpret errors or omissions or supply missing information on the plans. The City shall not be responsible for the performance of the work done under any contract entered into to complete or demolish the building.

91.8303.3. Any lot within the City from which a building or structure is moved shall be cleared of all debris resulting from such removal. The footings and foundation walls shall be removed to grade and the lot shall be graded as necessary to provide drainage to a street, gutter or other approved location. A demolition permit shall be secured by the owner to authorize this work.

SEC. 91.8304. SPECIAL CONDITIONS UNDER WHICH A PERMIT WILL NOT BE ISSUED.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

No permit shall be issued to relocate any building or structure, if any one of the following conditions exist:

1. It is unfit for human habitation or is so dilapidated, defective or in such condition of deterioration or disrepair that its relocation at the proposed site would cause appreciable harm or be materially detrimental to the property or improvements in the neighborhood within a radius of 1,000 feet from the proposed site.
2. Because of age, size, design, architectural treatment or proposed location on the lot, the building does not substantially conform to the general design, plan, location on the lot and construction of the buildings located in the neighborhood within a radius of 1,000 feet from the proposed site so that its relocation would be materially detrimental to the property or improvements in said neighborhood.
3. The proposed use is prohibited by the zoning laws of the City.
4. Whenever the applicant is currently in default, as determined by the Department, on one or more Relocation Permits.

SEC. 91.8305. GUARANTEE OF COMPLETION REQUIRED.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8305.1. Relocation Permit. No relocation permit shall be issued unless the applicant therefore shall first post with the Department of Building and Safety a bond in an amount equal to the cost of the work required to be done, plus an additional 25 percent, guaranteeing compliance with all conditions of the permit and completion of all work described in the plans and specifications therefor, as estimated by the Department of Building and Safety. The applicant may post either a surety bond or cash bond or

negotiable United States Treasury Certificates of the kind approved by law for securing deposits of public money.

The bond shall be executed by the applicant as principal and, if a surety bond, shall also be executed by a corporation authorized to act as surety under the laws of the state of California. The bond shall be a joint and several obligation and shall be conditioned upon the faithful performance of all terms and conditions of the permit and of all work described in the plans and specifications therefor to the satisfaction of the Department of Building and Safety. The bond shall contain the further conditions that should the applicant fail to complete all such work within the time specified on the permit, the City may, at its option, cause all of such work to be done or completed in accordance with the terms and conditions of the permits and the plans and specifications therefor on file with said Department, or demolish the building.

The parties executing the bond shall be firmly and continuously bound for the payment of all the costs necessary to complete the work or demolish the building under all terms and conditions of the bond. The cost shall include the cost to complete the work or demolish the building, including any cost to monitor or remove asbestos, plus an amount equal to 40 percent of the cost to cover the cost to the City of administering the contract and supervising the work required. **(Amended by Ord. No. 175,596, Eff. 12/7/03.)**

Whenever the applicant elects to deposit cash or approved negotiable United States Treasury Certificates, the City shall be authorized in the event of any default on the part of the applicant to use any or all of the cash or approved negotiable certificates to cause the work to be done and for the payment of all costs thereof. The term of the bond shall begin on the date of the deposit of the cash or negotiable certificates or the filing of the surety bond, and shall end upon the date of the completion to the satisfaction of the Department of all such work. The fact of such completion shall be evidenced by a written statement thereof signed by the Superintendent of Building and thereafter the cash deposit or certificate shall be returned to the applicant, or the surety bond released, as the case may be.

Whenever the City elects to have such work done because of the applicant's default, the amount of the deposit or certificates in excess of all cost of such work shall be returned to the applicant after the work has been so approved.

EXCEPTION: No bond need be posted in any case where the Department shall determine that the only relocation involved is that of moving a building temporarily to the regularly occupied business premises of a house mover, or that of moving a building to adjacent property of the same owner. The exceptions herein made shall not apply unless the Department further finds that no such security is necessary in order to assure compliance with the requirements of this section.

91.8305.2. Security Deposit. No House Mover's Permit shall be issued to any house mover pursuant to the terms of the Los Angeles Municipal Code, Sections 62.62 to 62.93, inclusive, until the applicant therefor shall have deposited with the Department of Building and Safety a security deposit of \$2.00 per square foot of total floor area of all buildings, as stated in the application provided for in Subsection A of Section 62.84 of the Los Angeles Municipal Code.

In lieu of the specific deposit for each application, any house mover may make and maintain a general deposit in the sum of \$3,000.00 which shall be used for the same purposes as the specific deposit mentioned in this section.

If, for any reason, the move as authorized by the House Mover's Permit is not completed within 30 days of the date of issuance and it becomes necessary for the Department of Building and Safety to either remove or demolish the building or structure, the cost of so doing plus an administrative fee of 40 percent shall be deducted from the aforementioned deposit. The remainder of such deposit, if any, shall be refunded to the person making such deposit, or to the person's assigns.

In case the deposit shall not be sufficient to pay the cost of removal or demolition, or of the costs of repairs, if any, the person making such deposit shall, upon demand, pay to the Department of Building and Safety a sufficient sum to cover all such cost. Upon failure to pay such sum, it may be recovered by the City in any court of competent jurisdiction.

SEC. 91.8306. TERMS OF PERMIT.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

Every relocation permit issued under the provisions of this section shall contain each and every term and condition imposed by the Department of Building and Safety; shall be valid for a period not to exceed 120 days, unless extended by said Department or by the Board, in case an appeal is made to it under Section 98.0403.2 of the Los Angeles Municipal Code, and shall become null and void without further notice or order upon the expiration of such time or any extension thereof, or upon any default in the performance of any of the aforesaid terms or conditions.

SEC. 91.8307. DEFAULT IN PERFORMANCE OF CONDITIONS OR TERMS OF PERMITS – FAILURE TO COMPLETE.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8307.1. Whenever the Department of Building and Safety finds that:

1. A building has not been lowered onto its foundation within 60 days after issuance of the relocation permit; or
2. A default has occurred in the performance of any term or condition of the relocation permit; or

3. The applicant has failed to complete the work required as specified by the permit, plans and/or specifications approved for the project within the time prescribed, the Department shall be authorized to give notice to the applicant and to the surety, if any, to complete the work or perform the condition within a specified additional time, not to exceed 60 days. Such notice shall be served upon the applicant and the surety, if any, by certified mail, and shall be deemed to have been so served when placed in the United States mail, postage prepaid and addressed to such person. No person shall fail or refuse to comply with such notice. However, such notice may be complied with by demolishing and removing the building or structure and restoring the site within the time prescribed, at the option of the applicant or the surety, as the case may be.

91.8307.2. If the applicant or the surety fails or refuses to comply with any notice within the time prescribed, the Department shall be authorized to cause the building or structure to be demolished or the work to be completed, whichever it shall determine is reasonable under the circumstances, without further notice or order. The cost of completing the work or demolishing the building, including the cost of any monitoring or removal of asbestos, plus the 40 percent administration and supervision cost, shall be paid for out of the cash deposit or negotiable United States Treasury Certificates posted with the Department, or from the Repair and Demolition Fund, if no deposit or certificate has been posted. All sums used for this purposes out of the Repair and Demolition Fund shall be recovered from the surety under the surety bond provided for above. Any work to be performed by the Department under the provisions of this section shall be done in accordance with the established public works practices of the City of Los Angeles. If the Department uses any money in the Repair and Demolition Fund for the completion or demolition of any building under the provisions of this section, the Department shall notify the surety, and the surety shall immediately thereafter reimburse the City of Los Angeles therefor under the surety bond. The City Attorney is authorized to and shall institute any action necessary to the recovery of the money under the surety bond provided for above. **(Amended by Ord. No. 175,596, Eff. 12/7/03.)**

SEC. 91.8308. PERMIT FEES.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8308.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Before any application for a Relocation Permit is accepted, a fee shall be paid by the applicant of the cost to the City for the investigation of the condition of the building to be moved and the inspection of the proposed new location. The amount of the fee shall be as shown in LAMC Table 83-A for each main building or for the first accessory building where no main building is to be relocated.

Where an accessory building, in addition to a main building or the first accessory building where no main building is to be moved, is to be relocated from the same location

to the same site at the new location, an application fee of \$80.00 shall be paid for each such accessory building.

91.8308.2. (Amended by Ord. No. 181,758, Eff. 8/8/11.) In the case of a building located outside the City limits of the City of Los Angeles, an additional fee of \$525.00 shall be paid for each application. In addition to the fee, a mileage charge of 65 cents per mile (1609 m) shall be paid for any inspection which is made 10 miles (16090 m) or more beyond City limits. Mileage shall be measured in a straight line from the point 10 miles (16090 m) beyond the City limits which is nearest to the location of the building to be inspected, to the location of the building, and return to said point of departure.

91.8308.3. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The application fees required by LAMC Subsections 91.8308.1 and 91.8308.2 shall be in addition to the regular building permit fee required by LAMC Subsection 91.107.2.

91.8308.4. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Should a Relocation Permit be denied by the Department solely because the proposed relocation site is not approved, the applicant may, with the consent of the Department, file within six months of the date of the original application an amended application for approval of a new proposed site. An additional fee of \$300.00 for each such amended application will be charged. If a Relocation Permit is not obtained within six months after the original application fee is paid, a new application shall be filed and a new application fee paid before the Relocation Permit is issued.

91.8308.5. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of this section shall not apply to the relocation of temporary buildings or structures to be used by a governmental agency for a governmental purpose.

SEC. 91.8309. ENTRY UPON PREMISES.
(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8309.1. The Department, the surety, and the duly authorized representatives of either, shall have access to the premises described in the relocation permit for the purpose of inspecting the progress of the work.

91.8309.2. In the event of any default in the performance of any term or condition of the relocation permit, the surety, or any person employed or engaged on its behalf, or the Department, or any person employed or engaged on the Department’s behalf, shall have the right to go upon the premises to complete the required work or to remove or demolish the building or structure.

91.8309.3. It shall be unlawful for the owner or the owner’s representatives, successors or assigns, or any other person, to interfere with or obstruct the ingress or egress to or from any such premises of any authorized representative or agent of any surety or of the City engaged in the work of completing, demolishing or removing any building or structure for which a relocation permit has been issued after a default has occurred in the performance of the terms or conditions thereof.

TABLE 83-A
BASIC RELOCATION APPLICATION FEE SCHEDULE
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Floor Area of Building	Fee
0 - 2,500 square feet	\$770.00
2,501 - 5,000 square feet	\$1,160.00
5,001 - 7,500 square feet	\$1,350.00
7,501 - 10,000 square feet	\$1,535.00
Each additional 10,000 square feet	\$300.00

DIVISION 85
ALTERNATIVE BUILDING STANDARDS FOR JOINT LIVING AND WORK QUARTERS

(Title and Division 85 Amended by Ord. No. 176,673, Eff. 7/6/05.)

- Section
91.8501 General.
91.8502 Alternative Standards.

SEC. 91.8501. GENERAL.
(Amended by Ord. No. 182,850, Eff. 1/3/14.)

91.8501.1. Purpose. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The purpose of this division is to provide alternative building standards for the conversion of Existing Buildings, or portions thereof, from commercial or industrial uses to Joint Living and Work Quarters. The alternative standards are designed to provide a reasonable level of safety to the building occupants and are in conformance with the provisions of California Health and Safety Code Section 17958.11.

91.8501.2. Application. (Amended by Ord. No. 181,133, Eff. 5/11/10.) Nothing in this division shall be construed to allow the reduction of the seismic or fire and life safety elements of an Existing Building, where such elements provide a greater level of protection than the minimum requirements established by this division.

The alternative building standards of this division may be applied when the commercial or industrial uses in an Existing Building are converted (change of use or occupancy) to Joint Living and Work Quarters provided:

- A. General Fire and Life Safety Requirements for All Existing Buildings.** All Existing Buildings that are converted to Joint Living and Work Quarters shall comply or be made to comply with all of the building area, height, number of stories, type of construction, occupancy, means of egress and other fire and life safety requirements of this code for a new building of the same use or occupancy, except as provided in this division.
- B. Structural Requirements for all Existing Buildings.** For all existing buildings, the change of occupancy or use of any portion of an Existing Building to a Joint Living and Work Quarters may be permitted provided the entire building complies or is made to comply with all the structural requirements in LAMC Subsection 91.8502.12. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.8501.3. Definition. (Amended by Ord. No. 186,488, Eff. 12/27/19.) For the purpose of this division, certain terms are defined as follows:

ARTIST-IN-RESIDENCE is an artist or artists using a space within a building for combined living and artistic working purposes.

EXISTING BUILDING is a building for which a building permit was issued prior to April 1, 1994.

FEMA 352, "RECOMMENDED POST-EARTHQUAKE EVALUATION AND REPAIR CRITERIA FOR WELDED STEEL MOMENT-FRAME BUILDINGS" is the June 2000 edition prepared by the partnership of the Structural Engineers Association of California, the Applied Technology Council, and the California Universities for Research in Earthquake Engineering (SAC) Joint Venture for the Federal Emergency Management Agency, Washington, DC.

JOINT LIVING AND WORK QUARTERS is a residential occupancy of one or more rooms or floors used as a dwelling unit with adequate work space reserved for, and regularly used by, one or more persons residing there pursuant to Health and Safety Code (H&S) Section 17958.11(a). **(Amended by Ord. No. 181,133, Eff. 5/11/10.)**

QUALIFIED HISTORICAL BUILDING is any building deemed of importance to the history, architecture or culture of any area by an appropriate local, state or federal governmental jurisdiction. This shall include designated buildings on, or determined eligible for, official national, state or local historical registers or official inventories, such as the National Register of Historic Places, California Register of Historical Resources, State Historical Landmarks, State Points of Historical Interest, and officially adopted city or county registers, inventories, or surveys of historical or architecturally significant sites, places or landmarks.

STATE HISTORICAL BUILDING CODE is a set of code standards known as Part 8, Title 24 of the California Code of Regulations and published as the California Historical Building Code. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

91.8501.4. General. A Joint Living and Work Quarters shall not be used for public sales purposes or for instructional classes when either is inconsistent with residential use. No hazardous activities such as, but not limited to, welding, open flame, or storage of flammable liquids shall occur in the Joint Living and Work Quarters. **(Amended by Ord. No. 181,133, Eff. 5/11/10.)**

EXCEPTION: In buildings three stories or less in height, activities such as welding, open flame, or minimal storage of flammable liquids may be allowed provided written approval is obtained from the Fire Department.

All buildings containing a Joint Living and Work Quarters shall have a sign posted in a conspicuous location at each entrance to the building. The sign shall be constructed of a durable weatherproof material and shall meet the requirements of Los Angeles Fire Department Standard No. 58. In the lower white diamond of the sign, a red colored letter "A" shall be placed so as to meet the size and letter thickness specified in the Los Angeles Fire Department Standard No. 58.

If any portion of an Existing Building is converted to a Joint Living and Work Quarters, then the entire building, including any portion not being converted, shall comply with all of the requirements of the code for a new building of the same use and type of construction except as provided in this division.

SEC. 91.8502. ALTERNATIVE STANDARDS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

91.8502.1. Use or Occupancy. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** When applying this division, Joint Living and Work Quarters shall be classified as a Group R-2 occupancy and comply with all Group R-2 occupancy requirements of this Code, except as provided in this division.

91.8502.1.1. Ceiling Height. **(Amended by Ord. No. 181,133, Eff. 5/11/10.)** Existing ceiling height within a Joint Living and Work Quarters may be maintained, provided the ceiling height is not less than seven feet, except that the ceiling height above a mezzanine may be six feet six inches to any structural projections from the ceiling.

91.8502.1.2. Emergency Escape. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)** Every room below the fourth story where occupants sleep in Joint Living and Work Quarters shall be provided with an emergency escape and rescue window or door that complies with the requirements of CBC Section 1030.

EXCEPTION: The emergency escape or rescue window or door may open directly into an existing court, provided:

- A. The court is accessible to the Fire Department.
- B. The court is provided with a minimum of one direct exit to a corridor, exit stairway, exit passageway, exterior exit stairway, exterior exit balcony, or exterior exit ramp, or existing fire escape. The existing fire escape shall be structurally sound and shall not serve as an exit for an assembly use.
- C. All openings in walls surrounding the court shall be protected as required by CBC Section 705.3 or be provided with an approved water curtain.

91.8502.2. Exterior Wall and Exterior Opening Protection. **(Amended by Ord. No. 181,758, Eff. 8/8/11.)** Existing construction of the exterior walls may be maintained without complying with current exterior fire resistive wall construction.

Existing unprotected exterior openings, which are not allowed or are required to be protected due to their proximity to a property line, may be maintained without complying with the requirements of CBC Section 705.8 provided the openings are protected with an approved water curtain. Openings in the exterior walls that are not allowed by CBC Section 705.8 due to their proximity to a property line, may not be used to satisfy other code requirements, such as light and ventilation, smoke control or emergency escape.

91.8502.3. Smoke Control System. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)** Existing high-rise buildings shall provide a smoke control system in all portions of the building including basements. The smoke control system shall meet the requirements of CBC Section 909 or all the requirements of this section.

EXCEPTION: The following areas are exempt:

- A. New or existing rooms less than 50 square feet in area.
- B. New or existing rooms located at or above grade level provided the room has a direct exit to the exterior of the building.
- C. Floor levels with openable windows or breakable tempered glass panels in the exterior walls. The area of the openable windows or breakable tempered glass panels shall be a minimum of 20 square feet in area. The openable windows or breakable tempered glass panels shall be located in the exterior walls around the perimeter of the floor no more than 50 linear feet.

91.8502.3.1. Capacity. Smoke-control systems shall provide at least six air changes per hour for all areas within the building including basements, provide exhaust to the exterior of the building, and provide an adequate makeup air supply that is uniformly distributed.

91.8502.3.2. Smoke Dampers. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** If a smoke-control system serves more than one floor, then smoke dampers shall be installed in the main exhaust air ducts and the main supply air ducts serving each floor and shall comply with the activation requirements of CBC Section 717.3.3. The smoke dampers shall be installed in a manner that will prevent the movement of smoke from one floor to another floor when the dampers are closed. The vertical risers of the main exhaust air duct shall be installed in metal ducts complying with the requirements for product-conveying ducts in Divisions 5 and 6, Article 5, Chapter IX of the LAMC.

In the firefighter's control panel, all smoke dampers within the same smoke-control zone shall be actuated by one On-Auto-Off switch in accordance with CBC Section 909.16.3, except that an alternate actuation method may be allowed when approved by both the Fire Department and the Department.

Combination fire and smoke dampers shall be listed to conform to UL 555 and UL 555S and smoke dampers shall be listed to conform to UL 555S and they shall be accessible for inspection, service and repair. Pneumatic tubing to operate these dampers shall be of noncombustible materials.

91.8502.3.3. Firefighter's Control Panel. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The firefighter's control panel shall comply with all the requirements of CBC Section, 909.16, except that graphically depicted representation of the building may be omitted when accepted by the Fire Department. The firefighter's control panel shall monitor and be capable of overriding the Mechanical Test Panel. The Mechanical Test Panel is a separate control panel that provides controls and displays the status of the ventilation fans, dampers, and other smoke control devices as required by CBC Section 909 and shall be located in the same room as the Firefighter's Control Panel.

91.8502.3.4. Performance Test. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) Upon completion and before final approval of the installation of a smoke-control system required by this Code, a smoke control performance test, complying with the testing procedures of CBC Section 909.18, shall be used to verify the rate of air-flow and proper operation as specified in this division. Tests shall be conducted in the presence of both the Fire Department and the Department.

Prior to conducting the required smoke control performance test, a preliminary performance report shall be submitted to the Department by a person, holding a Certificate of Qualification as required by CBC Section 909.18, verifying that the performance criteria of the Department have been met.

91.8502.3.5. Additional Smoke Control Requirements. Existing air conditioning and ventilation systems may be used as part of the smoke-control system. Existing return air plenum and approved fiberglass air ducts may be used as part of the smoke-control system. A smoke exhaust system shall be designed in a manner that will prevent smoke from going from one room to another, except when two or more rooms are connected together by means of a permanent unobstructed opening at least 20 square feet with a minimum three feet dimension, then the rooms shall be considered as one room for the purpose of designing the smoke-control system.

91.8502.4. Fire-extinguishing System. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A fire sprinkler system, standpipe system, and water storage tank shall be provided as required for a new building of the same height, type of construction and occupancy, except that a high-rise building for which a building permit was issued prior to July 1, 1974 may comply with the fire safety standards of LAMC Section 91.8604.

The fire sprinkler system, if required, shall be installed in accordance with NFPA 13 as adopted by the Plumbing Code.

91.8502.5. Fire Alarm System. If a fire alarm system is required by CBC Section 907.2.9 or 403.4.2 for a new building of the same type of construction and occupancy, or installed at the option of the owner, then the entire building shall have fire alarm systems that are in full compliance with CBC Section 907.2.9. In a high-rise building, the fire alarm systems shall be supplied by a generator used as an emergency system in accordance with CBC Section 403.4.8. For all other buildings, an alternate source of power may be used provided it is approved by both the Fire Department and the Department.

High-rise buildings shall be provided with a central control station (fire command center) that complies with all the requirements of CBC Section 403.4.6 and LAMC Section 57.508, including the minimum room dimensions of 10 feet (3048 mm). **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

91.8502.6. Fire Pumps and Generator (Combustion Engines and Gas Turbines) Rooms. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In high-rise buildings, diesel or/and electric fire pumps shall be provided as required for a new building, except that a high-rise building for which a building permit was issued prior to July 1, 1974 may comply with LAMC Subdivision 91.8604.6.5.

Fire pump and generator (combustion engines and gas turbines) rooms shall be separated with a minimum one-hour occupancy separation from adjoining rooms and from each other.

Combustion air and room ventilation air shall be required by the Building and Mechanical Codes, except that the room ventilation exhaust may be considered as environmental air.

In rooms containing diesel fire pumps and generators, a flue venting system shall be provided which complies with the requirements of Division 8, Article 5, Chapter IX of the LAMC, except that:

A. Clearance from the flue venting system to any combustible material may be reduced to 6 inches (152.4 mm) if the vent is wrapped with an approved insulation equivalent to a two-hour fire-rated assembly for high-rise buildings and one-hour fire-rated assembly for all other types of buildings; and

B. The flue venting system may terminate at the exterior wall when installed in compliance with the exhaust system termination in NFPA 37, *Standard for the Installation and Use of Stationary Combustion Engines and Gas Turbines*. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

C. The flue venting system may terminate under the roof overhang, provided the exhaust outlet is located lower than the overhang by a distance equal to the projection of the overhang.

91.8502.7. Means of Egress. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The portion of the building converted to a Joint Living and Work Quarters shall be provided with means of egress as required by Division 10, Article 1, Chapter IX of the LAMC for a new building, except that the alternative requirements of LAMC Subdivisions 91.8502.7.1 through 91.8502.7.5 may be used in lieu of the requirements in Division 10, Article 1, Chapter IX of the LAMC. An existing fire escape which is in good operating condition, may be used as a second means of egress, provided the fire escape does not serve as an exit for an assembly occupancy.

91.8502.7.1. Corridors. (Amended by Ord. No. 185,587, Eff. 7/16/18.) All public corridors serving the occupants of the Joint Living and Work Quarters shall comply with all the requirements of CBC Section 1020, except as follows:

1. Existing nonconforming fire-resistive walls and ceiling of a corridor constructed of wood lath and plaster, which are in good condition, may be acceptable as equivalent to the required one-hour fire-resistive construction.

2. Existing doors between the corridor and the Joint Living and Work Quarters that are part of the historic fabric of a Qualified Historical Building may be allowed to remain provided approved smoke gaskets and self-closing and latching devices to prevent smoke penetration are installed on the door, or the existing door shall be replaced with a door conforming to the requirements of CBC Section 716.2.2.1. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

91.8502.7.2. Dead-end Corridors. (Amended by Ord. No. 185,587, Eff. 7/16/18.) An existing dead-end corridor which exceeds 20 feet (6.09 m) in length and serves the occupants of a Joint Living and Work Quarters may remain, provided the dead-end corridor complies with all of the following:

A. The dead-end corridor shall be constructed as described above in LAMC Subdivision 91.8502.7.1 for the full length of the dead-end corridor.

B. The dead-end corridor shall not exceed 40 feet (12.192 m) in length.

C. A door with a magnetic hold-open device shall be placed across the corridor to create a vestibule located furthest from the open end of the dead-end corridor. The placement of the door shall be located not more than 20 feet (6.09 m) from the open end of the dead-end corridor and the occupant load of the vestibule shall be less than 10 occupants.

91.8502.7.3. Means of Egress Illumination and Exit Signs. (Amended by Ord. No. 181,133, Eff. 5/11/10.) Means of egress illumination, exit signs, floor-level exit signs and exit path markings serving a Joint Living and Work Quarters shall comply with CBC Sections 1011, and 1006.

91.8502.7.4. Exit Stairway. (Amended by Ord. No. 186,488, Eff. 12/27/19.) All exit stairways shall be enclosed and shall comply with all the requirements of CBC Section

1023. Existing exit stairway enclosures may be allowed to pass through the first-floor elevator lobby, provided an approved fire-rated smoke-sealed door is placed in front of the elevator door on the first floor or there is another exit stairway enclosure leading directly to the public way.

91.8502.7.5. Pressurization of Exit Stairway Enclosure. If pressurization of exit stairway enclosure is required, then a mechanical ventilation system shall be provided. The mechanical ventilation system shall provide a uniform air velocity of not less than 50 feet per minute while maintaining a positive pressure (not exceeding 25 pounds force on an interior door) relative to the adjacent areas and discharging this air to the outside of the building.

The mechanical ventilation system shall be activated simultaneously with the fire sprinkler system or the smoke detector system. The mechanical ventilation system shall be supplied with primary and secondary sources of power. The primary power shall be provided by the power system supplied by the public utilities. The secondary power shall be from an approved standby source complying with the Electrical Code.

91.8502.8. Accessibility (Disabled Access). (Amended by Ord. No. 186,488, Eff. 12/27/19.) The conversion of an Existing Building or portion thereof to a Joint Living and Work Quarters shall be in compliance with the accessibility standards of CBC Chapters 11A and/or 11B, whichever is applicable.

91.8502.9. Interior Environment. (Amended by Ord. No. 181,133, Eff. 5/11/10.) All habitable rooms in the Joint Living and Work Quarters shall be provided with natural light and ventilation by means of exterior glazed openings.

91.8502.9.1. Light. ((Amended by Ord. No. 186,488, Eff. 12/27/19.) Windows or skylights with a total area not less than one fifteenth of the floor area of the room may be used to satisfy the natural light requirements. Kitchens may be provided with artificial light. In lieu of required exterior glazed openings, artificial light may be provided in accordance with CBC Section 1204.3.

91.8502.9.2. Ventilation. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Habitable rooms shall be provided with natural ventilation by means of openable exterior openings with an area of not less than one thirtieth of the floor area of the room. In lieu of required openable exterior openings, a mechanical ventilation system in accordance with the California Mechanical Code may be provided.

Public corridors or hallways shall be provided with an adequate ventilation system when all the habitable rooms in the Joint Living and Work Quarters on the floor do not have openable exterior openings that comply with the requirements of CBC Section 1202.1.

An adequate ventilation system for the public corridors shall mean either an operable exterior window or a permanent exterior opening having a minimum area of 5 square feet (.046 m²), or a mechanical ventilation system that complies with the requirements of LAMC Subsection 91.8502.14 and CBC Section 1203.1.

91.8502.9.3. Light and Ventilation Court. A window may open into an existing court for light and ventilation, provided, the court is has adequate access at the bottom of the court for cleaning purposes. Every court more than two stories in height shall be provided with a horizontal air intake at the bottom of the court from the court to the exterior of the building, unless the court opens to a yard or public way.

The horizontal air intake shall not be less than 10 square feet in cross-sectional area and shall lead to the exterior of the building. The construction of the horizontal air intake shall be as required for the court walls of the building, but in no case shall be less than one-hour fire-resistive construction. A mechanical ventilation system complying with the Mechanical Code may vent the court in lieu of the horizontal air intake.

EXCEPTION: When approved by the Superintendent of Building, an existing court may be deemed adequate for the purpose of providing light and ventilation based upon the area and height of the court.

91.8502.10. Sound Transmission Insulation. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Existing construction may remain without complying with the sound transmission insulation requirements for any newly created Joint Living and Work Quarters. All new construction shall comply with sound transmission requirements of CBC Section 1206.

91.8502.11. Energy Conservation. (Amended by Ord. No. 181,133, Eff. 5/11/10.) All new HVAC and new lighting systems shall comply with the current energy conservation requirements contained in Part 6 of Title 24 of the California Code of Regulations (California Energy Code). An Existing Building with a Joint Living and Work Quarters need not comply with the Building Envelope requirements of the California Energy Code, if the Building Envelope is not altered in anyway due to compliance with other code requirements.

91.8502.12. Structural Design Requirements (Seismic Provision). (Amended by Ord. No. 184,692, Eff. 12/30/16.) The conversion of any portion of an Existing Building to a Joint Living and Work Quarters shall be analyzed for 75% of the Design Earthquake Ground motion as defined in CBC Section 1613.2 and as specified in CBC Section 1613.3, but in no event shall there be a reduction in the capacity of the seismic force resisting system where that system provides a greater level of protection than the minimum requirements established by this division.

EXCEPTION: Unreinforced Masonry Bearing Wall Buildings (URM). The conversion of any portion of an existing URM building shall comply with of Appendix Chapter A1 of Part 10 of the California Code of Regulations Title 24 (California Existing Building Code).

Performance-based engineering analysis and design procedures may be used to evaluate the existing structure and the design of strengthening elements when approved by the Superintendent of Building. All structural elements of the building shall be strengthened to meet the minimum design analysis as specified in LAMC Subdivisions 91.8502.12.1 through 91.8502.12.3 or new structural elements shall be added when required. All new structural elements shall meet current detailing requirements of CBC Section 1604. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

For other types of buildings not mentioned in this section, such as Steel Frame Buildings with Semi-Rigid Beam-Column Connections, Dual Systems with Steel Moment Frames and Concrete Shear Walls, or Steel Frame Buildings with Steel Bracing, shall comply with the standards developed by the Department.

91.8502.12.1. Reinforced Concrete Buildings and Concrete Frame Buildings With and Without Masonry Infill Walls. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Reinforced concrete buildings or concrete frame buildings with or without masonry infill walls and that are within the scope of LAMC Section 91.9502, shall comply with all the provisions of Division 95, Article 1, Chapter IX of the LAMC.

91.8502.12.2. Steel Frame Buildings with Masonry Infill Walls. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Steel frame buildings with masonry infill walls shall be made to comply with the standards as developed by the Department and all the relevant provisions of Article 1.2, Chapter IX of the LAMC.

91.8502.12.3. Welded Steel Moment-Frame (WSMF) Buildings. All buildings constructed prior to March 7, 1995 utilizing WSMF as their primary lateral force resisting system shall be evaluated by the standards developed by the Department.

All existing WSMF buildings, which have experienced greater than 0.25g-peak ground acceleration and which were constructed prior to March 7, 1995, shall be evaluated using procedures and repair criteria of FEMA 352, "Recommended Post-earthquake Evaluation and Repair Criteria for Welded Steel Moment-Frame Buildings." An engineering report shall be submitted to the Department. The engineering report shall either substantiate that the existing steel moment framed connections are in good condition, or recommend repair procedures for the welded steel moment-frame connections that are cracked or otherwise compromised.

91.8502.13. Electrical Systems. All electrical systems and installations for a Joint Living and Work Quarters and other alterations in adjoining areas shall be designed in accordance with the Electrical Code, except that the general lighting in the Joint Living and Work Quarters shall be installed based on the unit load of 4.0 volt-amperes per square foot. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

91.8502.14. Mechanical Systems. (Amended by Ord. No. 186,488, Eff. 12/27/19.) All mechanical systems shall comply with the requirements of the Mechanical Code.

91.8502.15. Elevators. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Existing elevators need not comply with the requirements of Division 30, Article 1, Chapter IX of the LAMC, except where required to comply with the State Elevator Safety Order of Subchapter 6, of Chapter 4, Division 1 of Title 8 of the California Code of Regulations. Existing freight elevators shall not be used as passenger elevators.

91.8502.16. Historical Building Provisions. Qualified Historical Buildings may use the State Historical Building Code.

DIVISION 86

SPECIAL PROVISIONS FOR EXISTING BUILDINGS

(Division 86 Amended by Ord. No. 171,175, Eff. 7/25/96.)

Section

91.8601 General.

91.8602 Group E Occupancies.

91.8603 Fire Protection – Warning System.

91.8604 Fire Safety Standards.

91.8605 Emergency Homeless Shelters.

91.8606 Emergency Lighting Standards for Existing Residential Buildings, Group R, Division 1 Occupancies.

91.8607 Tenant Safety for Apartment Houses, Except for Residential Condominiums.

SEC. 91.8601. GENERAL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

In addition to the general requirements of Division 81, Article 1, Chapter IX of the LAMC, every building housing occupancy classification specified in a section of this division shall conform to the section requirements.

SEC. 91.8602. GROUP E OCCUPANCIES.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8602.1. Scope. This section shall apply to every lawfully existing Group E Occupancy housed in a building constructed prior to July 1, 1961.

91.8602.2. Certificate of Occupancy.

91.8602.2.1. Revocation. The Certificate of Occupancy for any lawfully existing Group E Occupancy housed in a building constructed prior to July 1, 1961, may be revoked by the Department as follows if, upon inspection, the building is found in violation of requirements of this section:

1. If the violations, defects or hazards found to be existing therein are immediately dangerous to the public health, safety or general welfare, and if effective repair is not commenced within 180 days after the issuance of an order to do so by the Department; or
2. If the violations, defects or hazards found to be existing therein are not of such a nature as described hereinabove, and effective repair is not commenced within five years after the issuance of an order to do so by the Department.

91.8602.2.2. Issuance. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A new Certificate of Occupancy shall be issued for any lawfully existing Group E Occupancy housed in a building constructed prior to July 1, 1961, if such building is either made to comply with all of the requirements of this division or is made to comply with the requirements of LAMC Subsections 91.8602.6, or 91.8602.7 and 91.8602.8.

91.8602.3. Other Laws. Except as otherwise specifically provided for herein, this section does not repeal, alter or modify any other provisions of this Code.

91.8602.4. Violation. It shall be unlawful for any person to use or permit the use of any building for a Group E Occupancy:

91.8602.4.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) After a Certificate of Occupancy has been revoked in accordance with the provisions of LAMC Subsection 91.8602.2 after July 1, 1961;

91.8602.4.2. In any case where a Certificate of Occupancy has not been issued, unless the building is constructed in full conformity with all other applicable provisions of this Code; or

91.8602.4.3. Unless such building is constructed, operated, used and maintained as required by this section.

91.8602.5. Alternate Methods. The Department may, after referral to and report from the Fire Department, approve alternate methods of obtaining the equivalent fire protection and safety required by this section, provided the Department finds that the existing condition of the building under consideration makes strict conformity impracticable and that such alternate methods are within the purpose and intent of this section.

91.8602.6. One-story Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) One-story buildings shall conform to the requirements of this section and CBC Section 305.

91.8602.7. Buildings Over One Story.

91.8602.7.1. Type V buildings two stories or more in height shall not be used to house Group E Occupancies unless such buildings are completely sprinklered.

EXCEPTION: Complete sprinklers are not required where the Group E Occupancy is only in the first story of a two-story building and the Group E Occupancy conforms to the requirements of a one-story building as set forth in this section.

91.8602.7.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Every building over one story in height shall have sprinklers installed in all hallways, stair shafts, stairways, basements, laboratory and vocational rooms, and other usable areas not customarily used for class, toilet or assembly purposes.

EXCEPTIONS:

1. The Department may, after referral to and report from the Fire Department, modify the above requirement, provided it is first found that equivalent alternate safety measures are provided.

2. Sprinklers may be omitted, provided every room used for instruction purposes or assembly is provided with exits giving direct egress to the exterior of the building.

91.8602.7.3. A sprinkler system required under the provisions of this part shall be electrically interconnected to the building fire alarm system.

91.8602.8. General.

91.8602.8.1. (Amended by Ord. No. 181,758, Eff. 8/8/11.) All requirements of this Code with respect to exits shall be complied with.

EXCEPTIONS:

1. The provisions of CBC Section 713 which require shaft enclosures need not be complied with, provided the provisions of this section are met. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
2. Every boiler using liquid or solid fuel shall be housed in a boiler room separated from the remainder of the building by two-hour fire-resistive construction with openings protected by a fire assembly having a one-and-one-half-hour fire-resistive rating.
3. Every boiler using fuel gas shall be housed in a boiler room separated from the rest of the building by one-hour fire-resistive construction with openings protected by a fire assembly having a one-hour fire-resistive rating.
4. Each gas piping system serving a Group E Occupancy shall be provided with a gas shutoff valve designed to close the flow of gas to the piping system and a label designating such valve. The label shall be of corrosion-resistant metal with letters at least three inches high, stating: "GAS SHUT-OFF VALVE".
5. Any fire-warning system required to be installed by the Los Angeles Fire Department pursuant to the provisions of Article 7, Chapter V of the LAMC shall meet the requirements of Article 760 of the California Electrical Code adopted by the City. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 91.8603. FIRE PROTECTION – WARNING SYSTEM.

(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

91.8603.1. Group R, Division 1 and Division 2 Occupancies.

91.8603.1.1. Existing Residential Building. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Except as otherwise provided in LAMC Subsection 91.8603.1.2, the provisions of CBC Section 907.2.10 shall apply to every dwelling unit, efficiency dwelling unit, guest room and suite in any building where the original building permit was issued prior to May 18, 1980. The smoke detectors may be battery operated until August 1, 1983, at which time the smoke detectors shall be located and permanently wired as required in CBC Section 907.2.10.

Nothing in this Section shall be construed to waive the requirement for permanently wired smoke detectors, which was in effect at the time the original building permit for the building was issued.

Every permanently wired smoke detector installed in a corridor or area giving access to the sleeping rooms shall be located within 12 feet six inches of the sleeping room. Where the location of the detector is less than 12 feet six inches of an appliance, which produces products of combustion other than a forced-air heating unit, a photoelectric type detector shall be required. There shall be no more than one door separating that type of detector from any room used for sleeping purposes. A permanently wired smoke detector installed pursuant to a permit issued prior to July 31, 1981, need not comply with this paragraph until replaced.

91.8603.1.2. Existing Apartment Hotels and Hotels Over 75 Feet in Height. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Every existing apartment hotel more than 75 feet in height and containing no more than nine dwelling units and every existing hotel more than 75 feet in height, where the original building permit for the building was issued prior to May 18, 1980, shall comply with the provisions of CBC Section 907.2.10 not later than August 1, 1981.

EXCEPTION: The operative date for compliance may be delayed until August 1, 1982 if the Department determines that the building complies with either the provisions of CBC Sections 420 and 602.2 or California Existing Building Code Section 601.1.1.

Notwithstanding any other provision here to the contrary, every guest room in any apartment hotel or hotel described in this section when used as a light-housekeeping room, as that term is described in LAMC Subsection 91.8116.1, shall be provided with smoke detectors in compliance with the provisions of CBC Section 907.2.10 and the provisions of LAMC Subsection 91.8603.2 pertaining to photoelectric type smoke detectors located in corridors or areas giving access to sleeping rooms. Smoke detectors may be battery operated until August 1, 1982, at which time the smoke detectors shall be located and permanently wired as required by CBC Section 907.2.10.

91.8603.2. Group R, Division 3 Occupancies.

91.8603.2.1. Existing One-Family Dwellings. (Amended by Ord. No. 186,488, Eff. 12/27/19.) After July 31, 1980, existing one-family dwellings shall be provided with smoke detectors, which may be battery operated, located as specified in CBC Section 907.2.10 for Group R, Division 3 Occupancies, if:

1. The dwelling is sold or exchanged and the original building permit was issued prior to May 19, 1980; or
2. Alterations, repairs or additions requiring a permit are made, or reroofing or shower pan replacement is performed by a Certified Licensed Contractor pursuant to LAMC Subsection 91.108.12 with a valuation in excess of \$1,000.00; or **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
3. One or more sleeping rooms are added or created; or
4. Bars, grilles, grates, roll-down security shutters, or similar devices are installed on all emergency escape windows and exterior doors of any sleeping rooms.

Nothing in this Section shall be construed to waive the requirement to permanently install wired smoke detectors, which were required at the time the original building permit for the building was issued.

For the purposes of this subsection, the term "permit" shall not include permits required for the repair or replacement of electrical, plumbing or mechanical equipment.

91.8603.2.2. Existing Two-Family Dwellings. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Every building containing two dwelling units and not more than five guest rooms, where the original building permit was issued prior to May 18, 1980, shall comply with the provisions of CBC Section 907.2.10 and the provisions of LAMC Subsection 91.8603.2.1 pertaining to photoelectric-type smoke detectors located in corridors or areas giving access to sleeping rooms. Smoke detectors may be battery operated until August 1, 1983, at which time the smoke detectors shall be located and permanently wired as required by CBC Section 907.2.10.

Nothing in this Section shall be construed to waive a requirement to install permanently wired smoke detectors, which were required at the time the original building permit for the building was issued.

SEC. 91.8604. FIRE SAFETY STANDARDS.
(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8604.1. General.

91.8604.1.1. Notification.

91.8604.1.1.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever the Department determines by inspection that a building does not conform to the minimum requirements of LAMC Subsections 91.8604.2, 91.8604.3, 91.8604.4 or 91.8604.5, the Department shall prepare a written Fire Safety Standards Repair Order directing the owner to repair and modify the building so as to conform to those minimum requirements. The Department shall serve the order either personally or by certified or registered mail, upon the owner as shown on the last equalized assessment roll and may serve the order upon the person, if any, in real or apparent charge or control of the building.

The order shall specify the manner in which the building fails to meet the minimum requirements of LAMC Subsections 91.8604.2, 91.8604.3, 91.8604.4 or 91.8604.5. The order shall direct the owner of the building to submit plans, obtain the necessary permits and complete the necessary corrections.

91.8604.1.1.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever, pursuant to LAMC Section 57.106.5, the Fire Department determines by inspection that a building does not conform to the minimum requirements of LAMC Subsection 91.8604.6, it shall prepare a written Fire/Life Safety Order directing the owner to repair and modify the building so as to conform to the minimum requirements of LAMC Subsection 91.8604.6.

The order shall specify the manner in which the building fails to meet the minimum requirements of LAMC Subsection 91.8604.6. The order shall direct the owner of the building to submit plans, obtain necessary permits and complete the necessary corrections.

The order shall be transmitted to the Department for service, recordation and enforcement purposes. The Department shall serve the order, either personally or by certified or registered mail, upon the owner as shown on the last equalized assessment roll and may serve the person, if any, in real or apparent charge or control of the building. These provisions are not intended to prevent the Department from also making a determination or issuing an order regarding failure to comply with LAMC Subsection 91.8604.6.

91.8604.1.2. Time for Compliance.

91.8604.1.2.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever the Department serves a Fire Safety Standards Repair Order pursuant to LAMC Paragraph 91.8604.1.1.1, the owner of a building shall submit plans and obtain necessary permits as required in that order not later than 90 days after service of the order and shall complete necessary corrections not later than one year after service of the order for work under LAMC Subsection 91.8604.2, 91.8604.3, 91.8604.4 or 91.8604.5. No extension of time, either to submit plans, obtain permits or complete the necessary corrections shall be granted except by the Board of Building and Safety Commissioners upon a finding of unusual circumstances which warrant an extension.

91.8604.1.2.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever the Department serves a Fire/Life Safety Order pursuant to LAMC Paragraph 91.8604.1.1.2, the owner of a building shall:

- (1) submit main system plans, which include Plans for any required water storage tank, fire pump(s), Fire Department connection(s) and all sprinkler riser valves for sprinkler connections of each floor;
- (2) obtain necessary main system permits as required in that order not later than one year after service of the order; and
- (3) complete necessary corrections required by the Fire/Life Safety Order not later than three years after service of the order for work required under LAMC Subsection 91.8604.6.

EXCEPTIONS TO THE TIME FOR WORK REQUIRED UNDER SUBSECTION 91.8604.6:

1. **VACANT BUILDING.** If a building is vacant and secured from unauthorized entry, then the owner of the building may apply to the Department for an extension of time to comply with the requirements of LAMC Subsection 91.8604.6. An extension of time may be granted for a two year period and may be renewed for two year time periods, unless to do so poses a threat of health or safety. This extension of time expires and the building is subject to enforcement procedures if it is no longer adequately secured from unauthorized entry.

2. **BUILDINGS ONLY OCCUPIED BELOW THE SECOND FLOOR.** If a building is only occupied below the second floor and all floors from the second floor and above are vacant and secured from unauthorized entry, then the owner(s) of that building may apply to the Department for an extension of time to comply with the requirements of LAMC Subsection 91.8604.6, provided sprinklers are installed on the occupied floors(s) and a two-hour fire-rated separation is provided between the vacant and occupied floors. Such an extension of time may be granted for a two-year period and may be renewed for additional two year time periods, unless to do so poses a threat to health or safety. No vacant portion of the building may be reoccupied until the requirements of LAMC Paragraph 91.8604.1.2.2 Exception 3 are satisfied. This extension of time expires and the building is subject to enforcement procedures if it is no longer adequately secured above the first floor from unauthorized entry.

3. **BUILDINGS WITH OCCUPANCY ABOVE THE FIRST FLOOR.** The owner of a building cited for a violation of LAMC Subsection 91.8604.6 may request an extension of time to comply with those requirements. Extensions of time may be granted for a period of one year from the date of application and may be renewed for two additional one-year periods. The owner shall submit to the Department a plan of action to:

- (a) Install fire sprinklers, including the base system, fire alarm, emergency power and stairwell ventilation, from the ground floor up to the floor above the highest occupied floor; and
- (b) Bring elevator lobby vestibules on all required floors up to the highest occupied floor into compliance.

An additional three-year extension of time to comply with the requirements of LAMC Subsection 91.8604.6 on the remaining unoccupied floors of the building may be granted subject to the owner completing all requirements in the occupied portions of the building within the time guidelines of their plan of action, unless to do so poses a threat of health or safety.

4. **ASBESTOS.** If an owner of a building commits to a program of abatement of asbestos, then the Department may grant an extension of time to complete the work required under LAMC Subsection 91.8604.6, provided that all necessary permits are obtained and the required water storage tank, fire pumps, riser and all sprinkler riser valves for sprinkler connections on each floor are installed and operational prior to the grant of any extension.

Subsequent extension approvals beyond the initial approval shall also be conditioned on progress of work in conformance with the plan of work submitted with the approved extension of time.

A request for an extension of time under Exceptions 1-4 above shall be filed on an application form provided by the Department and signed by the owner of the building. Applications are subject to review and action by the Department with concurrence by the Fire Department. An extension of time may be granted only where a good faith effort to comply can be demonstrated by the applicant. Applications shall be processed according to the guidelines set forth in LAMC Section 98.0403.2.

91.8604.1.2.3. Recordation. (Amended by Ord. No. 185,587, Eff. 7/16/18.) At the time that the Department serves a Fire/Life Safety Order or Fire Safety Repair Order, the Department shall file with the Office of the County Recorder a certificate stating that the building does not meet the minimum fire safety requirements of LAMC Subsections 91.8604.2, 91.8604.3, 91.8604.4, 91.8604.5 or 91.8604.6, and that the owner of the building has been so notified.

After all necessary corrective work has been performed, the Department shall file with the Office of the County Recorder a certificate terminating the status of the building as nonconforming to the minimum fire safety requirements of LAMC Subsections 91.8604.2, 91.8604.3, 91.8604.4, 91.8604.5 or 91.8604.6.

91.8604.1.2.4. Enforcement. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Notwithstanding any other provisions of this Code to the contrary, it shall be unlawful for any person, firm or corporation to maintain, use or occupy any building within the scope of this section which does not meet the minimum standards specified in LAMC Subsection 91.8604.6.

Any person who fails to comply with an order issued pursuant to this section, within each of the time periods set forth in LAMC Paragraph 91.8604.1.2.2, or who causes or permits another person to fail to comply with such an order, is guilty of a misdemeanor which is punishable by a fine of not more than \$1,000.00 and/or six months imprisonment.

For purposes of this paragraph, the phrase “**any person**” includes an owner, or lessor, sublessor, manager or any person in control of a building subject to this section. The legal owner of a building is that person, firm, corporation, partnership or other entity whose name or title appears in the records in the Office of the County Recorder, as well as all successors or assignees of these owners.

In addition to any other remedy available at law, if the owner or other person in charge and control of the building fails to comply with an aforementioned order within the time periods set forth in LAMC Subsection 91.8604.1, the Department may order that the building be vacated and that the building remain vacated until all required corrective work has been completed. Whenever compliance with an order issued pursuant to the provisions of this section has not been accomplished within 90 days after the date the building has been ordered vacated, or such additional time as may have been granted by the Board, the Department may order demolition of the building, in accordance with the provisions of Division 89, Article 1, Chapter IX of the LAMC.

91.8604.2. Commercial Buildings.

91.8604.2.1. Purpose. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The purpose of LAMC Subsection 91.8604.2 is to provide a reasonable degree of fire safety for persons occupying existing commercial and industrial buildings.

91.8604.2.2. Scope. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The provisions of this subsection shall apply to all existing commercial and industrial buildings more than two stories in height which do not conform to the minimum shaft enclosure and exit requirements of this Code and which are not required to comply with the California Existing Building Code for existing buildings over 75 feet (22.86 m) in height. The provisions of this subsection shall not authorize the modification of existing buildings or portions thereof which provide a greater degree of protection against fire than the minimum requirements established by this subsection.

EXCEPTION: The requirements of this subsection shall not apply to buildings erected after January 1, 1943.

91.8604.2.3. Shaft Enclosures. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Every opening in a floor shall be enclosed as required by CBC Section 713 for shaft enclosures; provided, however, that existing enclosure walls constructed of wood lath and plaster or equivalent fire-resistive materials and which are in good condition may be accepted in lieu of enclosure wall construction.

Corridor exits, which are interrupted by stairwell enclosures required by this section, shall be provided with exit door fire assemblies, which will close automatically when activated by an approved smoke detector.

EXCEPTIONS:

1. The shaft protection required by this subdivision may be omitted if the building is sprinklered throughout.
2. Existing metal elevator doors need not be replaced if they are in good condition. These doors may have openings protected with wire glass.

91.8604.2.4. Exits. Two reasonably separated and accessible exits shall be provided from each floor.

EXCEPTION: Existing fire escapes which are in structurally sound operational condition may be used as one means of egress.

Exit signal with letters at least six inches high shall be installed in conspicuous locations at each exit from the floor and whenever otherwise required to clearly indicate the direction of egress from area served.

91.8604.3. Residential Buildings.

91.8604.3.1. Purpose. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The purpose of LAMC Subsection 91.8604.3 is to provide a reasonable degree of fire safety for persons living and sleeping in apartment houses, hotels, apartment hotels, and in buildings housing Group R-4 or I-1 occupancy. Group R-4 or I-1 occupancy includes homes with medical care for ambulatory patients or children six years of age or over, and honor farms or conservation camps housing inmates who are not restrained. Alterations are required to these existing buildings, which do not conform to the minimum exiting, shaft enclosure and corridor protection requirements of this Code.

91.8604.3.2. Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of LAMC Subsection 91.8604.3 shall apply to all existing buildings more than two stories in height, which contain Group R-1, R-2, R-4 or I-1 Occupancy. Group R-4 or I-1 occupancy include homes with medical care for ambulatory patients or children six years of age or over, and honor farms or conservation camps housing inmates who are not restrained. The provisions of this subsection shall not authorize the modification of existing buildings or portions of buildings, which provide a greater degree of protection against fire than the minimum requirements established by this subsection.

91.8604.3.3. Corridor Walls and Openings. The walls of every public corridor shall be protected by one-hour fire-resistive construction, provided, however, that existing walls constructed of wood lath and plaster and which are in good condition, will be acceptable in lieu thereof.

Transoms and openings other than doors from public corridors to guest rooms and dwelling units shall be closed and solidly covered with material which will provide the degree of fire resistiveness as shall be provided by adjacent corridor walls.

All door openings from public corridors to guest rooms and dwelling units shall provide the same degree of fire resistiveness as shall be provided by adjacent corridor walls.

EXCEPTION: Door openings from public corridors to guest rooms and dwelling units may have 20-minute protection, provided:

- A. All stairways, hallways, exitways and storage or closet areas adjacent thereto are sprinklered; and
- B. A sprinkler head is placed inside each unit adjacent to each door opening from the public corridor to the guest room or dwelling unit; and
- C. An approved self-closing device is installed on each door opening from the public corridor into the guest room or dwelling unit.

91.8604.3.4. Shaft Enclosures. All stairwells shall be enclosed in approved shaft enclosures, provided, however, that existing enclosure walls constructed of wood lath and plaster which are in good condition will be accepted in lieu of approved shaft wall construction.

EXCEPTION: In buildings erected prior to January 1, 1943, stair shaft enclosures may be omitted if the building is sprinklered throughout and the sprinkler system is interconnected to the alarm system required under LAMC Subsection 91.8604.5. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.8604.3.5. Existing Conditions.

91.8604.3.5.1. Existing means of exit, including fire escapes, are acceptable where they exist in the required number and are maintained in good condition.

91.8604.3.5.2. No standpipes will be required where none exist.

91.8604.3.5.3. No emergency hallway illumination will be required where none exist.

91.8604.3.5.4. Dead-end corridors not over 20 feet in length may have access to a second exit through a stair shaft enclosure.

91.8604.4. Fire Safety for Existing Group R-4 or I-1 Occupancy. (Amended by Ord. No. 185,587, Eff. 7/16/18.) This subsection applies to every existing Group R-4 or I-1 Occupancy over two stories in height with homes providing medical care for ambulatory patients or children six years of age or over, or with honor farms or conservation camps housing un-restrained inmates. When these buildings do not conform to the minimum shaft and corridor protection requirements of the LAMC, they shall be made to conform to the minimum requirements as specified in LAMC Subsection 91.8604.3.

91.8604.5. Fire Protection Standards for Existing Group R-1 or R-2 Occupancies Erected Prior to January 1, 1943. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

91.8604.5.1. Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of LAMC Subsection 91.8604.5 are in addition to those in LAMC Subsection 91.8604.3 and apply to all existing buildings three or more stories in height which contain Group R-1 or R-2 Occupancies and which were erected prior to January 1, 1943.

91.8604.5.2. Closure of Doors. All required stair shaft, cut-off and area separation doors shall be equipped with approved self-closing devices and electrically operated hold-open devices designed to release the door by the activation of smoke detectors located on each side of the doorway and within 12 inches of the ceiling.

91.8604.5.3. Sprinklers. All interior stairways, hallways, exits and storage or closet areas adjacent thereto shall be provided with an approved automatic sprinkler system connected with an alarm system that emits an audible signal throughout the premises. In any room having a door opening into an interior hallway, stairway or exitway, a sprinkler head shall be located inside the room directly over the door. Sprinklers so installed shall be equipped with listed residential sprinkler heads and may utilize polybutylene plastic pipe for laterals only. Sprinkler materials and installation shall comply with the Plumbing Code and Supplemental Rules and Regulations.

91.8604.5.4. Self-closing Device. Each apartment or guest room door opening into an interior stairway, hallway or exit shall be equipped with an approved self-closing device.

91.8604.5.5. State Fire Code. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Where the Group R-1 or R-2 Occupancy regulated by LAMC Subsection 91.8604.5 has floors used for human occupancy more than 75 feet (22.86 m) above the lowest floor level having building access, the provisions of the California Building Code relating to those occupancies shall apply in lieu of any less restrictive provisions set forth in this section.

91.8604.6. Fire Safety Standards for Existing High-Rise Buildings.

91.8604.6.1. Purpose. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The purpose of LAMC Subsection 91.8604.6 is to provide a reasonable degree of fire safety for persons occupying existing high-rise buildings.

91.8604.6.2. Scope. (Amended by Ord. No. 184,692, Eff. 12/30/16.) The provisions of this subsection shall apply to every existing high-rise building for which a building permit was issued prior to July 1, 1974.

EXCEPTION: The provisions of this subsection shall not apply to Group R-1 or R-2 Occupancy, as defined in CBC Section 310.1. The provisions of this subsection shall not authorize the modification of existing buildings or portions of the buildings, which provide a greater degree of protection against fire than the minimum requirements established by this subsection.

91.8604.6.3. Definition. (Amended by Ord. No. 185,587, Eff. 7/16/18.) For the purposes of LAMC Subsection 91.8604.6, a high-rise building is a building of any type of construction having floors (as measured from the top of the floor surface) that may be used for human occupancy located more than 75 feet (22.86 m) above the lowest floor level having building access.

91.8604.6.4. Requirements. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Every building within the scope of LAMC Subsection 91.8604.6 shall be provided with an automatic fire sprinkler system complying with all applicable sections of the LAMC. The sprinkler system shall cover all areas of the building.

EXCEPTIONS:

1. Sprinklers need not be installed in locations expressly excepted in the Los Angeles Plumbing Code provided other approved fire protection equipment is installed.
2. The Department may review, on a case by case basis, buildings within the scope of this section and may approve alternative fire protection systems which meet the intent of the high-rise sprinkler requirements.
3. The Department may, with the concurrence of the Fire Department, grant exceptions from the requirements of Division 20, Article 4, Chapter IX of the LAMC as specified in LAMC Subsection 91.8604.6.5. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**

91.8604.6.5. Conditional Exceptions. (Amended by Ord. No. 174,829, Eff. 10/27/02, Oper. 11/1/02.) The following exceptions from the requirements set forth in Section 94.2001 of the Los Angeles Municipal Code are available upon application to the Department provided all the stated conditions are met for each category of building.

91.8604.6.5.1. Existing Buildings 75 feet to 150 Feet in Height.

EXCEPTIONS:

1. Existing risers may be used when maintained in a safe and operable condition.
2. New, on-site water storage need not be provided. (When existing on-site water storage is available, it may be integrated into the fire sprinkler system.)

CONDITIONS:

1. A three-inch test drain shall be provided in stair shafts where pressure- regulator valves are used. Valves, equipment and devices shall conform to Los Angeles Plumbing Code requirements.
2. A single pump having a minimum capacity of 750 g.p.m. shall be provided. (Diesel pumps shall have a four-hour fuel supply.)
3. There shall be a flow of 750 g.p.m. at 65 psi at the roof, and the sprinkler system design shall meet code requirements.

4. Existing sprinkler systems, existing or new standpipe systems and existing or new sprinkler risers shall be interconnected at the base of the riser system with a minimum of one fire Department connection.

5. Emergency standby electrical power with a four-hour fuel supply shall be provided for fire pumps and the following new installations:

Fire protective signaling systems;
Emergency exit lighting; and
Exit and directional signs.

91.8604.6.5.2. Existing Buildings Over 150 Feet to 275 Feet in Height.

EXCEPTION: Existing risers may be used when maintained in a safe and operable condition.

CONDITIONS:

1. A three-inch test drain shall be provided in each stair shaft where pressure- regulator valves are used. Valves, equipment and devices shall conform to Los Angeles Plumbing Code requirements.b

2. At least two pumps connected to the automatic sprinkler system having a minimum capacity of 750 g.p.m. each shall be provided. (Diesel pumps shall have a four hour fuel supply.)

3. There shall be a flow of 750 g.p.m. at 65 psi at the roof, and the sprinkler system design shall meet code requirements.

4. Existing sprinkler systems, new and existing standpipe systems and new and existing sprinkler risers shall be interconnected at the base of the riser system with at least one fire Department connection.

5. Emergency standby electrical power with a four hour fuel supply shall be provided for fire pumps and the following new installations:

Fire-protective signaling systems;
Emergency exit lighting; and
Exit and directional signs.

6. A minimum usable capacity of 20,000 gallon storage tank shall be provided on site.

91.8604.6.5.3. Existing Buildings Greater Than 275 Feet in Height.

EXCEPTION: Existing risers may be used when maintained in a safe and operable condition.

CONDITIONS:

1. A three-inch test drain shall be provided in each stair shaft where pressure- reduction valves are used. Valves, equipment and devices shall conform to Los Angeles Plumbing Code requirements.

2. At least three pumps connected to the automatic sprinkler system having a minimum capacity of 750 g.p.m. each shall be provided.

At least one pump shall be an electric motor-driven pump. (Diesel pumps shall have a four hour fuel supply.)

3. There shall be a flow of 1,000 g.p.m. at 65 psi at the roof, and the sprinkler system design shall meet code requirements.

4. Existing sprinkler systems, new and existing standpipe systems, and new and existing sprinkler risers shall be interconnected at the base of the riser system with at least one Fire Department connection.

5. Emergency standby electrical power with a four hour fuel supply shall be provided for fire pumps and the following new installations:

Fire-protective signaling systems;
Emergency exit lighting; and
Exit and directional signs.

6. A minimum usable capacity of 40,000 gallon water storage tank shall be provided on site.

91.8604.6.6. Elevator Lobbies. Existing high-rise buildings within the scope of this section shall comply with the following:

1. Except for the main entrance level, every elevator on each floor shall open into an elevator lobby which is separated from the remainder of the building, including corridors and other exits, by walls having a fire-resistive rating of not less than one hour. All lobby openings other than those for elevator doors, stairway enclosures and ducts shall be protected with three-fourths-hour self-closing fire assemblies actuated by combustion products-type smoke detectors.

2. Except for the main entrance level, each elevator lobby shall be provided with an approved smoke detector located on the lobby ceiling. When the detector is activated, elevator doors shall not open and all cars serving that lobby shall return to the main floor and be under manual control only. The smoke detector shall meet the requirements of Subchapter 6, Chapter 4, Division 1, Title 8, of the California Code of Regulations (Elevator Safety Orders). The detector may serve to close the lobby doors. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.8604.6.7. Stair Shaft Ventilation. Each stair shaft which extends to the roof shall be provided with a minimum ventilation opening of 20 square feet at the roof level.

SEC. 91.8605. EMERGENCY HOMELESS SHELTERS.

(Amended by Ord. No. 185,490, Eff. 4/20/18.)

91.8605.1. Applicability of Standards. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** The provisions and standards set forth in LAMC Subsection 91.8605.2 shall be applicable to any emergency shelter for the homeless which complies with and is approved pursuant to LAMC Section 12.80 or 12.81.

91.8605.2. General. **(Amended by Ord. No. 188,739, Eff. 9/23/25.)** Notwithstanding any provisions of this Code to the contrary, the following requirements shall apply to emergency homeless shelters operated during a shelter crisis, as provided for in Government Code Section 8698, et seq. Other than the requirements set forth below, the facilities need not comply with the requirements of this Code for Group R occupancies unless otherwise specified in this Code:

1. The maximum occupant load allowed in these facilities shall be the number determined appropriate by the professional service provider operating the facility and be computed at a rate of 70 square feet for the first occupant and 50 square feet for each occupant thereafter. The Superintendent of Building, with concurrence with the Fire Department, may grant an increase of occupant load provided that an aisle, seating, furniture, and fixed equipment diagram, substantiating the increase in

occupant load, be submitted and approved pursuant to Section 91.8605.3 of this Code. Such diagram shall be posted on site for each level where occupant load increase is granted.

2. Fire Safety Requirements.

- A. All exits shall comply with Article 7, Chapter V of the LAMC.
- B. Smoke detection devices shall be provided in all sleeping areas and shall be installed in accordance with Article 7, Chapter V of the LAMC and CBC Section 907.2.10.
- C. A fire alarm system capable of arousing occupants shall be installed in accordance with Article 7, Chapter V of the LAMC and CBC Section 907.2.8.
- D. The use of any open flame and the possession or storage of any combustibles shall not be permitted.

EXCEPTION: The Superintendent of Building may approve the use of open flame and storage of combustibles in these buildings with the concurrence of the Fire Department.

- E. Sleeping quarters shall be limited to the ground floor only.
- F. Automatic fire sprinklers shall be provided for new and existing buildings or structures as required per Article 7 of Chapter V of the LAMC and CBC Section 903.
- G. New shelter buildings or structures shall be located in accordance with the requirements of Table 602 of the CBC, based on the fire-resistance rating of the exterior walls for the proposed type of construction.
- H. Portable fire extinguishers shall be provided per Article 7, Chapter V of the LAMC and Title 19 of the California Code of Regulations.
- I. Tents and membrane structures shall comply with LAMC Sections 57.3101 through 57.3104, and California Code of Regulations, Title 19, Division 1, Chapter 2, Sections 303, 310, 312, 315, 316, 317, 319, 320, 321, 324, 325, 326, 332, 334, 335, 340, and 341. Tents and membrane structures shall be limited to one level located at the level of a Fire Department vehicle access road or lane.
- J. All interior finishes shall comply with LAMC Sections 57.803 and 57.804.
- K. Fire Department access to building and premises identification shall be in compliance with LAMC Sections 57.503, 57.504, and 57.505.

3. Light, Heating, Ventilation and Sanitation.

- A. Exterior openings for natural light and ventilation shall be provided as required for Group R occupancy, CBC Sections 1203 and 1205; exterior openings or artificial lighting shall be provided per CBC Section 1205.3; and exterior openings or mechanical ventilation shall be provided per the California Mechanical Code.
- B. All sleeping areas shall be provided with heating facilities capable of maintaining a room temperature of 70°F at a point 8 feet above the floor.
- C. Every building shall be provided with at least one water closet and one bathing facility for every 15 occupants of each sex. Bathing facilities shall be provided with heating equipment that shall be capable of maintaining a temperature of 70°F within such facilities. Lavatories shall be provided and maintained in or adjacent to the toilet facilities.
- D. Kitchen facilities, where provided, shall comply with applicable sections of Chapter IX of the LAMC and CBC Section 1208. Where kitchen or cooking facilities are not provided, all food shall be catered or delivered on site.
- E. All garbage, kitchen waste, and rubbish shall be deposited in approved covered receptacles, which shall be emptied when filled and the contents shall be disposed of in a sanitary manner.

4. Structural Requirements.

- A. The structural design for the shelter shall comply with the provisions of this Code unless determined otherwise by the Superintendent of Building pursuant to LAMC Section 91.8605.3. All structural design documents, where deemed necessary, shall be prepared and stamped by a licensed engineer or architect registered in the State of California.
- B. Shelters shall not be located in existing substandard buildings that are not in compliance with mandatory earthquake hazard reduction requirements and deadlines set forth in the following Divisions of Article 1 of Chapter IX of the LAMC:
 - Division 88 - Unreinforced masonry (URM) buildings,
 - Division 93 - Wood-frame with soft, weak or open-front walls, and
 - Division 95 - Non-ductile concrete buildings.

5. Additional Requirements.

- A. Operating procedures including a security plan and service requirements shall be developed by the professional service provider and shown to be consistent with the standards imposed by the Los Angeles Homeless Services Authority (LAHSA) service agreements. These procedures shall be designed to maintain order and safety within the Emergency Homeless Shelter.
- B. Emergency homeless shelters required to be accessible must be in compliance with Title 24 of the CBC, Chapters 11A and 11B and federal standards for accessibility, whichever is more stringent and/or the US Access Board Final Guidelines for Emergency Transportable Housing.

91.8605.3. Alternative compliance and/or slight modifications in individual cases, that are reasonably equivalent to the building ordinances of the city and regulations under Articles 1 through 8 of Chapter IX of the LAMC may be granted by the Department pursuant to Section 98.0403.1(a)10. of the LAMC.

SEC. 91.8606. EMERGENCY LIGHTING STANDARDS FOR EXISTING RESIDENTIAL BUILDINGS, GROUP R, DIVISION 1 OCCUPANCIES. (Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8606.1. Scope. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The provisions of this section apply to all existing buildings, which contain five or more dwelling units with an enclosed exit corridor or pathway that is 50 feet in length or greater on any single floor, or which has an enclosed stairway.

EXCEPTIONS:

- A. The provisions of this section shall not apply to Group R-1 and R-2 Occupancies, which currently have lighted emergency exit signs and emergency lights in the corridors and stairwells where both signs and lights are connected to a generator, central battery system or individual battery powered unit.
- B. The provisions of this section shall not apply to corridors located inside individual dwelling units.
- C. The provisions of this section shall not apply to Group R-1 and R-2 Occupancies, which do not contain enclosed exit corridors, enclosed stairways, lobbies, passageways, or other common interior pathways that are part of the exiting system.

91.8606.2. Definition.

1. The owner is that legal owner of an apartment building, congregate residence, hotel, and in those instances where a building is a condominium, the association of owners or the association of owners and the owner of each unit.
2. The legal owner of a building is that person, firm, corporation, partnership, or other entity whose name or title appears in the last equalized assessment roll in the Office of the County Recorder, as well as all successors or assignees of these owners.

91.8606.3. Requirements.

91.8606.3.1. (Amended by Ord No. 171,430, Eff. 1/5/97.) All buildings required to comply with this section shall be provided with:

1. permanently connected, emergency, battery operated, enclosed exit corridor, enclosed stairway, and exit sign illumination installed in the required exit pathway;
or,
2. the required emergency enclosed exit corridor, enclosed stairway, and exit sign illumination powered from a central battery system or an emergency generator complying with Article 700 of the NEC.

91.8606.3.2. Plan Check. Plans for the emergency exit corridor and exit sign lighting systems shall be submitted to the Department of Building and Safety for review and approval prior to obtaining a permit. Plans shall provide the information specified in Section 93.0207 of the Los Angeles Municipal Code. (Electrical Code).

EXCEPTION: Existing buildings having less than four stories and containing fewer than 50 dwelling units are exempt from the requirement to submit electrical plans.

91.8606.3.3. Means of egress illumination shall be provided for the enclosed exit corridor, enclosed stairway, and pathway as required in CBC Section 1006. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

91.8606.3.4. Lighted exit signs shall meet the requirements of CBC Section 1011.1 and where emergency power is required for Group R-1 and R-2 Occupancies as specified in CBC Section 1011.6.3. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

91.8606.3.5. Emergency battery powered units shall be capable of operating for a minimum one and one-half hours.

91.8606.3.6. The provisions of this section shall not authorize modifying emergency lighting systems in existing buildings or portions thereof which provide a greater degree of protection than the minimum requirements established by this section.

91.8606.3.7. When the residential portion of a mixed occupancy building falls within the scope of this section, the non-residential portions of that building must also comply with the provisions of this section.

91.8606.4. Enforcement.

91.8606.4.1. Notification. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) Whenever the Department of Building and Safety or the Fire Department determines by inspection or review of City records that a Group R-1 or R-2 Occupancy multi-family residential building containing five or more dwelling units does not conform to the minimum requirements of this section, either Department shall prepare a written order directing the owner to repair and modify the building so as to conform to the minimum requirements of this section.

The order shall specify the manner in which the building fails to meet the minimum requirements of this section. The order shall direct the owner of the building to submit plans, if required, to the Department of Building and Safety, obtain necessary permits and complete the work specified in the order.

Service of the order shall be accomplished in the following manner:

1. The Department of Building and Safety and/or the Fire Department may personally serve the order upon the owner; or,
2. The Department of Building and Safety and/or the Fire Department may serve the order by certified or registered mail upon the owner.

In addition, the person in real or apparent charge or control of the building or unit of the building may be served in the manner prescribed by this section.

91.8606.4.2. Time for Compliance. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever an order is served pursuant to LAMC Subdivision 91.8606.4.1 above, the owner shall:

1. Submit all building plans required by the order to the Department within two years of the effective date of the order; and
2. Obtain permits required by the order from the Department as a result of the order within three years of the effective date of the order; and
3. Complete the work required by the order within five years of the effective date of the order.

91.8606.4.3. Penalties. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Any person who fails to comply with an order issued pursuant to LAMC Section 91.8606, within each of the time periods set forth in LAMC Subdivision 91.8606.4.2 above, or who causes or permits another person to fail to comply with such an order, is guilty of a misdemeanor which is punishable by a fine of not more than \$1,000.00 and/or six months imprisonment in the County Jail. For purposes of penalties, the phrase "**any person**" includes an owner, lessor, sublessor, manager, or any person in charge or control of a building subject to this section.

In addition to any other remedy available by law, if the owner or other person in charge or control of the subject building fails to comply with an order issued pursuant to this section within the time periods set forth in LAMC Subdivision 91.8606.4.2, the Department or the Fire Department may refer the violation to the State Franchise Tax Board as a substandard residential building and/or refer the building to the Rent Escrow Account Program (REAP).

SEC. 91.8607. TENANT SAFETY FOR APARTMENT HOUSES, EXCEPT FOR RESIDENTIAL CONDOMINIUMS. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

The purpose of this section is to provide minimum security standards for tenants in existing apartment houses, except for residential condominiums as defined in this Code. Owners of all lots developed with an apartment house shall provide lights and locks or metal bars or grilles that comply with LAMC Section 12.21 A.5(k), Subsection 91.6304.2, and Section 91.6305, and Division 67, Article 1, Chapter IX of the LAMC, in any of the following circumstances:

1. At the time the apartment building is sold or exchanged; or
2. At the time a permit is issued for alterations, repairs or additions which exceed a valuation of \$10,000; or
3. Upon the determination of the Board pursuant to LAMC Subsection 91.8108.3.

No costs incurred as a result of this section may be charged to the tenant or tenants of any properties subject to the Rent Escrow Account Program provisions commencing at LAMC Section 162.00.

DIVISION 88

EARTHQUAKE HAZARD REDUCTION IN EXISTING BUILDINGS

(Division 88 Added by Ord. No. 159,068, Eff. 7/29/84, Oper. 1/29/85.)

Section	
91.8801	Purpose.
91.8802	Scope.
91.8803	Definitions.
91.8804	Rating Classifications.
91.8805	General Requirements.
91.8806	Administration.
91.8807	Historical Buildings.
91.8808	Analysis and Design.
91.8809	Materials of Construction.
91.8810	Information Required on Plans.
91.8811	Design Check – Compatibility of Roof Diaphragm Stiffness to Unreinforced Masonry Wall Out-of-plane Stability.
91.8812	Violations.
91.8813	Special Requirements for Vacant Buildings.

SEC. 91.8801. PURPOSE.

(Amended by Ord. No. 171,939, Eff. 4/15/98.)

The purpose of this division is to promote public safety and welfare by reducing the risk of death or injury that may result from the effects of earthquakes on unreinforced masonry bearing wall buildings constructed before 1934. Such buildings have been widely recognized for their sustaining of life hazardous damage as a result of partial or complete collapse during past moderate to strong earthquakes.

The provisions of this division are minimum standards for structural seismic resistance established primarily to reduce the risk of loss of life or injury and will not necessarily prevent loss of life or injury or prevent earthquake damage to an existing building which complies with these standards. This division shall not require existing electrical, plumbing, mechanical or fire-safety systems to be altered unless they constitute a hazard to life or property.

This division provides systematic procedures and standards for identification and classification of unreinforced masonry bearing wall buildings based on their current use. Priorities, time periods and standards are also established under which these buildings are required to be structurally analyzed and anchored. Where the analysis determines deficiencies, this division requires the building to be strengthened or demolished.

SEC. 91.8802. SCOPE.

The provisions of this division shall apply to all buildings constructed or under construction prior to October 6, 1933, or for which a building permit was issued prior to October 6, 1933, which on the effective date of this ordinance have unreinforced masonry bearing walls as defined herein.

EXCEPTION: This division shall not apply to detached one- or two-family dwellings and detached apartment houses containing less than 5 dwelling units and used solely for residential purposes.

SEC. 91.8803. DEFINITIONS.

(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

For purposes of this division, the applicable definitions in CBC Sections 1602 and 1613 and the following shall apply:

ESSENTIAL BUILDING is any building housing a hospital or other medical facility having surgery or emergency treatment areas, fire or police stations, municipal government disaster operation and communication centers.

HIGH-RISK BUILDING is any building not classified as an essential building having an occupant load, as determined by CBC Section 1004.1, of 100 occupants or more.

EXCEPTION: A high-risk building shall not include the following:

1. Any building having exterior walls braced with masonry cross walls or wood-frame cross walls spaced less than 40 feet (12 192 mm) apart in each story. Cross walls shall be full-story height with a minimum length of 1 1/2 times the story height.
2. Any building used for its intended purpose, as determined by the Department, for less than 20 hours per week.

HISTORICAL BUILDING is any building designated as an historical building by an appropriate federal, state or City jurisdiction.

LOW-RISK BUILDING is any building not classified as an essential building having an occupant load as determined by CBC Section 1004.1 of less than 20 occupants.

MEDIUM-RISK BUILDING is any building not classified as a high-risk building or an essential building having an occupant load as determined by CBC Section 1004.1 of 20 occupants or more.

UNREINFORCED MASONRY BEARING WALL is a masonry wall having all the following characteristics:

1. Provides the vertical support for a floor or roof.
2. The total superimposed load is over 100 pounds per linear foot (1.5 kN/m).
3. The area of reinforcing steel is less than 50 percent of that required by CBC Section 2106.1.

SEC. 91.8804. RATING CLASSIFICATIONS.

(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

The rating classifications as exhibited in Table No. 88-A are hereby established and each building within the scope of this division shall be placed in one rating classification by the Department. The total occupant load of the entire building as determined by CBC Section 1004.1 shall be used to determine the rating classification.

EXCEPTIONS:

1. For the purpose of this division, portions of buildings constructed to act independently when resisting seismic forces may be placed in separate rating classifications.
2. For the purpose of this division, to establish the rating classification of a building containing one or more artist in residence spaces, as defined in Section 91.8501 of this Code, the occupant load of each artist in residence space shall be one for each space less than 2,000 square feet (186 m²) in area and two for each space 2,000 square feet (186 m²) or more in area.

SEC. 91.8805. GENERAL REQUIREMENTS.

(Amended by Ord. No. 171,939, Eff. 4/15/98.)

The owner of each building within the scope of this division shall cause a structural analysis to be made of the building by a civil or structural engineer or architect licensed by the state of California, and if the building does not meet the minimum earthquake standards specified in this division, the owner shall cause it to be structurally altered to conform to such standards or cause the building to be demolished.

The owner of a building within the scope of this division shall comply with the requirements set forth above by submitting to the Department for review within the stated time limits:

1. Within 270 days after the service of the order, a structural analysis. Such analysis, which is subject to approval by the Department, shall demonstrate that the building meets the minimum requirements of this division, or
2. Within 270 days after the service of the order, the structural analysis and plans for the proposed structural alterations of the building necessary to comply with the minimum requirements of this division, or
3. Within 120 days after service of the order, plans for the installation of wall anchors in accordance with the requirements specified in Section 91.8808.3, or
4. Within 270 days after the service of the order, plans for the demolition of the building.

After plans are submitted and approved by the Department, the owner shall obtain a building permit, and commence and complete the required construction or demolition within the time limits set forth in Table No. 88-B. These time limits shall begin to run from the date the order is served in accordance with Sections 91.8806.1 and 91.8806.2.

Owners electing to comply with Item 3 are also required to comply with Items 2 and 4, provided, however, that the 270 day period provided for in Items 2 and 4 and the time limits for obtaining a building permit, commencing construction and completing construction for complete structural alterations or building demolition set forth in Table No. 88-B shall be extended in accordance with Table No. 88-C. Each such extended time limit, except the time limit for commencing construction, shall begin to run from the date the order is served in accordance with Section 91.8806.2. The time limit for commencing construction shall commence to run from the date the building permit is issued.

SEC. 91.8806. ADMINISTRATION.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8806.1. Service of Order. **(Amended by Ord. No. 171,939, Eff. 4/15/98.)** When the Department determines that a building is within the scope of this division, the owner shall comply with Section 91.8805. If the owner does not comply, the Department shall issue an order, as provided in Section 91.8806.2, to the owner of each building with the minimum time periods for service of such orders set forth in Table No. 88-C. The minimum time period for the service of such orders shall be measured from the effective date of this division. The Department shall, upon receipt of a written request from the owner, order a building to comply with this division prior to the normal service date for such building as set forth in this section.

91.8806.2. Contents of Order. The order shall be in writing and shall be served either personally or by certified or registered mail upon the owner as shown on the last equalized assessment, and upon the person, if any, in apparent charge or control of the building. The order shall specify that the building has been determined by the Department to be within the scope of this division and, therefore, is required to meet the minimum seismic standards of this division. The order shall specify the rating classification of the building and shall be accompanied by a copy of Section 91.8805, which sets forth the owner's alternatives and time limits for compliance.

91.8806.3. Appeal From Order. The owner or person in charge or control of the building may appeal the Department's initial determination that the building is within the scope of this division to the Board of Building and Safety Commissioners. Such appeal shall be filed with the Board within 60 days from the service date of the order described in Section 91.8806.2. Any such appeal shall be decided by the Board no later than 60 days after the date that the appeal is filed. Such appeal shall be made in writing upon appropriate forms provided therefor by the Department, and the grounds thereof shall be stated clearly and concisely. Each appeal shall be accompanied by a filing fee as set forth in Table No. 4-A of Division 4 of Article 8 of Chapter IX of the Los Angeles Municipal Code.

Appeals or requests for slight modifications from any other determinations, orders or actions by the Department pursuant to this division shall be made in accordance with the procedures established in Section 98.0403.2 of the Los Angeles Municipal Code.

91.8806.4. Recordation. **(Amended by Ord. No. 171,939, Eff. 4/15/98.)** At the time that the Department serves the aforementioned order, the Department shall file with the Office of the County Recorder a certificate stating that the subject building is within the scope of this division. The certificate shall also state that the owner thereof has been

ordered to structurally analyze the building and to structurally alter or demolish it when the Department determines the building is not in compliance with this division.

If the building is either demolished, found not to be within the scope of this division, or is structurally capable of resisting minimum seismic forces required by this division as a result of structural alterations or an analysis, the Department shall file with the Office of the County Recorder a certificate terminating the status of the subject building as being classified within the scope of this division.

91.8806.5. Enforcement. If the owner or other person in charge or control of the subject building fails to comply with any order issued by the Department pursuant to this division within any of the time limits set forth in Section 91.8805, the Department may order that the entire building or a portion thereof be vacated and that the building or a portion thereof remain vacated until such order has been complied with. If compliance with such order has not been accomplished within 90 days after the date the building has been ordered vacated or such additional time as may have been granted by the Board, the Superintendent may order its demolition in accordance with the provisions of Section 91.8903 of this Code.

SEC. 91.8807. HISTORICAL BUILDINGS.

(Amended by Ord. No. 180,619, Eff. 5/12/09.)

Qualified historical buildings shall comply with the requirements of the California Historical Building Code established under Part 8, Title 24 of the California Code of Regulations.

SEC. 91.8808. ANALYSIS AND DESIGN.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8808.1. General. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Every structure within the scope of this division shall be analyzed and constructed to resist minimum total lateral seismic forces assumed to act non concurrently in the direction of each of the main axes of the structure in accordance with the following formula:

$$V = IKCSW \quad (8-1)$$

The value of $IKCS$ need not exceed the values set forth in Table No. 88-D based on the applicable rating classification of the building.

91.8808.2. Lateral Forces on Elements of Structures. (Amended by Ord. No. 181,758, Eff. 8/8/11.) Parts or portions of structures shall be analyzed and designed for lateral loads in accordance with Sections 91.8808.1 of this Code and ASCE 7, but not less than the value from the following formula:

$$F_p = IC_pSW_p \quad (8-2)$$

For the provisions of this Section, the product of IS need not exceed the values as set forth in Table No. 88-E.

EXCEPTION: Unreinforced masonry walls in buildings not having a Rating Classification I may be analyzed in accordance with Section 91.8809.

The value of C_p need not exceed the values set forth in Table No. 88-F.

91.8808.3. Anchorage and Interconnection. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Anchorage and interconnection of all parts, portions and elements of the structure shall be analyzed and designed for lateral forces in accordance with Table No. 88-F of this Code and Formula (8-2) as modified by Table No. 88-E. Minimum anchorage of masonry walls to each floor or roof shall resist a minimum force of 200 pounds per linear foot (2.92 kN/m) acting normal to the wall at the level of the floor or roof.

91.8808.4. Level of Required Repair. Alterations and repairs required to meet the provisions of this division shall comply with all other applicable requirements of this Code unless specifically provided for in this division.

91.8808.5. Required Analysis.

91.8808.5.1. General. Except as modified herein, the analysis and design relating to the structural alteration of existing structures within the scope of this division shall be in accordance with the analysis specified in Division 16 of this Code.

In addition, the compatibility of the roof diaphragm stiffness with the out-of-plane stability of the unreinforced masonry bearing walls of the story immediately below the roof system shall be verified in accordance with the provisions of Section 91.8811.

EXCEPTION: Buildings with rigid concrete or steel and concrete roof diaphragms shall use the h/t values for "all other buildings" in Table No. 88-G.

91.8808.5.2. Continuous Stress Path. A complete, continuous stress path from every part or portion of the structure to the ground shall be provided for the required horizontal forces.

91.8808.5.3. Positive Connections. All parts, portions or elements of the structure shall be interconnected by positive means.

91.8808.6. Analysis Procedure.

91.8808.6.1. General. Stresses in materials and existing construction utilized to transfer seismic forces from the ground to parts or portions of the structure shall conform to those permitted by the Code and those materials and types of construction specified in Section 91.8809.

91.8808.6.2. Connections. Materials and connectors used for interconnection of parts and portions of the structure shall conform to the Code. Nails may be used as part of an approved connector.

91.8808.6.3. Unreinforced Masonry Walls. (Amended by Ord. No. 181,758, Eff. 8/8/11.) Except as modified here, unreinforced masonry walls shall be analyzed as specified in the applicable parts of CBC Sections 2106 and 2107 to withstand all vertical loads as specified in Division 16 of this Code in addition to the seismic forces required by this Division.

Substantial changes in wall thickness or stiffness shall be considered in the analysis for out-of-plane and in-plane wall stability, and the wall shall be restrained against out-of-plane instability by anchorage and bracing to the roof or floor diaphragm in accordance with Section 91.8808.3 of this Code.

EXCEPTION: Variations in wall stiffness caused by nominal openings such as windows and exit doors need not be considered.

No allowable tension stress will be permitted in unreinforced masonry walls. Walls not capable of resisting the required design forces specified in this division shall be strengthened or shall be removed and replaced.

EXCEPTIONS:

1. Unreinforced masonry walls in buildings not classified as a Rating Classification I pursuant to Table No. 88-A may be analyzed in accordance with Section 91.8809 of this Code.

2. Unreinforced masonry walls which carry no design loads other than their own weight may be considered as veneer if they are adequately anchored to new supporting elements.

91.8808.7. Combination of Vertical and Seismic Forces.

91.8808.7.1. New Materials. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All new materials introduced into the structure to meet the requirements of this section, which are subjected to combined vertical and horizontal forces, shall comply with CBC Section 1605.

91.8808.7.2. Existing Materials. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) When stresses in existing lateral force-resisting elements are due to a combination of dead and live loads plus seismic loads, the allowable working stress specified in the Code may be increased 100 percent. However, no increase will be permitted in the stresses allowed in LAMC Section 91.8809, and the stresses in members due only to seismic and dead loads shall not exceed the values permitted by CBC Section 1605.

91.8808.7.3. Allowable Reduction of Bending Stress by Vertical Load. In calculating tensile fiber stress due to seismic forces required by this division, the maximum tensile fiber stress may be reduced by the full direct stress due to vertical dead loads.

91.8808.8. Irregular Features. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All structures having any of the irregular features described in Table 12.3-1 or Table 12.3-2 of ASCE-7 shall be designated to meet the additional requirements of those sections referenced in the tables.

SEC. 91.8809. MATERIALS OF CONSTRUCTION.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8809.1. General. All materials permitted by this Code, including their appropriate allowable stresses and those existing configurations of materials specified herein, may be utilized to meet the requirements of this division.

91.8809.2. Existing Materials.

91.8809.2.1. General. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Unreinforced masonry walls analyzed in accordance with this section may provide vertical support for roof and floor construction and resistance to lateral loads.

All units of both bearing and nonbearing walls shall be laid with full shoved mortar joints; all head, bed and wall (collar) joints shall be solidly filled with mortar; and the bonding of adjacent wythes of multiwythe walls shall be as follows:

The facing and backing shall be bonded so that not less than 4 percent of the wall surface of each face is composed of headers extending not less than four inches (102 mm) into the backing. The distance between adjacent full-length headers shall not exceed 24 inches (610 mm) either vertically or horizontally. In walls in which a single header does not extend through the wall, headers from the opposite sides shall overlap at least four inches (102 mm), or headers from opposite sides shall be covered with another header course overlapping the header below at least four inches (102 mm).

Wythes of walls not bonded as described above shall be considered as veneer. The veneer wythe shall not be included in the effective thickness used in calculating the height-to-thickness ratio and the shear capacity of the wall.

Tension stresses due to seismic forces normal to the wall may be neglected if the wall does not exceed the height-to-thickness ratio in Table No. 88-G and the in-plane shear stresses due to seismic loads as set forth in Table No. 88-J.

If the wall height-to-thickness ratio exceeds the specified limits, the wall may be supported by vertical bracing members designed in accordance with Division 16 of this Code. The deflection of such bracing member at design loads shall not exceed one tenth of the wall thickness.

EXCEPTION: The wall may be supported by flexible vertical bracing members designed in accordance with Section 91.8808.2 if the deflection at design loads is not less than one quarter or more than one third of the wall thickness.

All vertical bracing members shall be attached to floor and roof construction for their design loads independently of required wall anchors. Horizontal spacing of vertical bracing members shall not exceed one half the unsupported height of the wall or 10 feet (3048 mm).

The wall height may be measured vertically to bracing elements other than a floor or roof. Spacing of the bracing elements and wall anchors shall not exceed six feet (1829 mm). Bracing elements shall be detailed to minimize the horizontal displacement of the wall by components of vertical displacements of the floor or roof.

91.8809.2.2. Veneer. (Amended by Ord. No. 181,758, Eff. 8/8/11.) Veneer shall be anchored with approved anchor ties conforming to the required design capacity specified in Section 91.1405 of this Code and placed at a maximum spacing of 24 inches (610 mm).

EXCEPTION: Existing veneer anchor ties may be acceptable provided the ties are in good condition and conform to the minimum size, maximum spacing and material requirements specified in the provisions of the Los Angeles Building Ordinances in effect prior to October 6, 1933. Said provisions specified that veneer anchor ties shall be corrugated galvanized iron strips not less than one inch (25 mm) in width, eight inches (203 mm) in length and 1/16 inch (1.6 mm) in thickness and shall be located and laid in every alternate course in the vertical height of the wall at a spacing not to exceed 17 inches (432 mm) on center horizontally. As an alternate, said provisions specified that such ties may be laid in every fourth course vertically at a spacing not to exceed nine inches (229 mm) on center horizontally.

The existence and condition of existing veneer anchor ties shall be verified as follows:

1. An approved testing laboratory shall verify the location and spacing of the ties and shall submit a report to the Department for approval as a part of the structural analysis.

2. The veneer in a selected area shall be removed to expose a representative sample of ties (not less than four) for inspection by the Department.

91.8809.2.3. Existing Roof, Floors, Walls, Footings and Wood Framing. Existing materials, including wood shear walls utilized in the described configuration, may be used as part of the lateral load-resisting system, provided that the stresses in these materials do not exceed the values shown in Table No. 88-H.

91.8809.3. Strengthening of Existing Materials. New materials, including wood shear walls, may be utilized to strengthen portions of the existing seismic resisting system in the described configurations, provided that the stresses do not exceed the values shown in Table No. 88-I.

91.8809.4. Alternate Materials. Alternate materials, designs and methods of construction may be approved by the Department in accordance with the provisions of Article 8, Chapter IX of the Los Angeles Municipal Code.

91.8809.5. Minimum Acceptable Quality of Existing Unreinforced Masonry Walls.

91.8809.5.1. General Provisions. (Amended by Ord. No. 171,939, Eff. 4/15/98.) All unreinforced masonry walls utilized to carry vertical loads and seismic forces parallel and perpendicular to the wall plane shall be tested as specified in this section. All masonry quality shall equal or exceed the minimum standards established herein or shall be removed and replaced by new materials. Alternate methods of testing may be approved by the Department. The quality of mortar in all masonry walls shall be determined by performing in-place shear tests or by testing eight-inch (203 mm) diameter cores.

The vertical wall joint between wythes (collar joints) shall be inspected at the test location after the in-place shear tests, and an estimate of the percentage of wythe-to-wythe mortar coverage shall be reported along with the results of the in-place shear tests. Where the exterior face is veneer, the type of veneer, its thickness and its bonding and/or ties to the structural wall masonry shall also be reported.

Alternative methods of testing may be approved by the Department. Nothing shall prevent pointing with mortar of all the masonry wall joints before the tests are first made. Prior to any pointing, the mortar joints must be raked and cleaned to remove loose and deteriorated mortar. Mortar for pointing shall be Type S or N except masonry cements shall not be used. All preparation and mortar pointing shall be done under the continuous inspection of a registered deputy inspector. At the conclusion of the inspection, the inspector shall submit a written report to the licensed engineer or architect responsible for the seismic analysis of the building setting forth the result of the work inspected. Such report shall be submitted to the Department for approval as part of the structural analysis.

All testing shall meet Department-approved testing method parameters (including rate of load application) and shall be performed in accordance with the requirements specified in this section by a testing agency approved by the Department.

An accurate record of all such tests and their location in the building shall be recorded and these results shall be submitted to the Department for approval as part of the structural analysis.

91.8809.5.2. Number and Location of Tests. (Amended by Ord. No. 171,939, Eff. 4/15/98.) The minimum number of tests shall be as follows:

1. At each of both the first and top stories, not less than two per wall line or line of wall elements providing a common line of resistance to lateral forces.
2. At each of all other stories, not less than one per wall element providing a common line of resistance to lateral forces.
3. In any case, not less than one per 1,500 square feet (139.4 m²) of wall surface and a total of eight.

The shear tests shall be taken at locations representative of the mortar conditions throughout the entire building, taking into account variations in work quality at different building height levels, variations in weathering of the exterior surfaces and variations in the condition of the interior surfaces due to deterioration caused by leaks and condensation of water and/or by the deleterious effects of other substances contained within the building. Where the higher h/t ratios allowed in Footnotes Nos. 4 and 5 of Table No. 88-G are to be used, the in-place shear tests taken at the

top story shall be included in the 80 percent of the shear tests used to determine the minimum mortar shear strength.

The exact test or core location shall be determined at the building site by the licensed engineer or architect responsible for the seismic analysis of the subject building.

91.8809.5.3. In-Place Shear Tests. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The bed joints of the outer wythe of the masonry shall be tested in shear by laterally displacing a single brick relative to the adjacent bricks in that wythe. The mortar in the opposite head joint of the brick to be tested shall be removed and cleaned prior to testing. The minimum quality mortar in 80 percent of the shear tests shall not be less than the total of 30 psi (206.9 kPa) plus the axial stress in the wall at the point of the test. The shear stress shall be based on the gross area of both bed joints and shall be that shear stress at which movement of the masonry is first measured or at which cracking first appears.

An internal caliper, graduated in 0.001 of an inch (0.025 mm) increments shall be used to measure movement of the masonry unit. A hydraulic jack equipped with a pressure gauge graduated in increments of 50 psi (345 kPa) or less shall be used. The jack load shall be applied at a rate not exceeding 5,000 pounds (22 240 N) per minute.

The test shall be conducted by a minimum of two technicians. Load and displacement readings shall be recorded at the following intervals:

1. At a caliper reading of 0.001 inch (0.025 mm);
2. At first visually observed sign of movement or cracking of the mortar or masonry unit;
3. At a caliper reading of 0.02 inch (0.51 mm); and
4. The ultimate load on the unit.

The masonry unit to be tested shall not be located adjacent to a bond course in a brick wall laid in common bond. Tests to evaluate the mortar quality of structural walls shall not be conducted in masonry veneer.

Walls with mortar values which are consistently low and do not meet the minimum quality values specified in this Section shall be entirely pointed per Chapter A1, Section A103 and A106.2.3.9 of the 2019 California Existing Building Code except that the depth of joint penetration shall be 1-1/2 inch (38 mm) in lieu of the 3/4 inch (19 mm) specified.

91.8809.5.4. Core Tests. (Amended by Ord. No. 171,939, Eff. 4/15/98.) A minimum number of mortar test specimens equal to the number of required cores shall be prepared from the cores and tested as specified herein. The mortar joint of the outer wythe of the masonry core shall be tested in shear by placing the circular core section in a compression testing machine with the mortar bed joint rotated 15 degrees from the axis of the applied load. The mortar joint tested in shear shall have an average ultimate stress of 20 psi (138 kPa) based on the gross area. The average shall be obtained from the total number of cores made. If test specimens cannot be made from cores taken, the shear value shall be reported as zero.

91.8809.6. Testing of Shear Bolts. (Amended by Ord. No. 171,939, Eff. 4/15/98.) One fourth of all new shear bolts and dowels embedded in unreinforced masonry walls shall be tested by a registered deputy building inspector using a torque calibrated wrench to the following minimum torques:

- 1/2-inch-diameter bolts or dowels – 40 foot-pounds.
- 5/8-inch-diameter bolts or dowels – 50 foot-pounds.
- 3/4-inch-diameter bolts or dowels – 60 foot-pounds.

For SI: 1 inch = 25.4 mm, 1 foot-pound = 1.356 Nm

No bolts exceeding 3/4-inch (19.1 mm) shall be used. All nuts shall be installed over malleable iron or plate washers when bearing on wood and heavy cut washers when bearing on steel.

91.8809.7. Determination of Allowable Stresses for Design Methods Based on Test Results.

91.8809.7.1. Design Shear Values. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Design seismic in-plane shear stresses shall be substantiated by tests performed as

specified in Section 91.8809.5.3 and 91.8809.5.4.

Design stresses shall be related to test results obtained in accordance with Table No. 88-J. Intermediate values between 3 and 10 psi (20.7 kPa and 69 kPa) may be interpolated.

91.8809.7.2. Design compression and tension values. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Compression stresses for unreinforced masonry having a minimum design shear value of three psi (20.7 kPa) shall not exceed 100 psi (690 kPa). Design tension values for unreinforced masonry shall not be permitted.

91.8809.8. (Amended by Ord. No. 171,939, Eff. 4/15/98.) Five percent of the existing rod anchors utilized as all or part of the required wall anchors shall be tested in pullout by an approved testing laboratory. The minimum number tested shall be four per floor, with two tests at walls with joists framing into the wall and two tests at walls with joists parallel to the wall. The test apparatus shall be supported on the masonry wall at a minimum distance of the wall thickness from the anchor tested. The rod anchor shall be given a preload of 300 pounds (136 kg) prior to establishing a datum for recording elongation. The tension test load reported shall be recorded at 1/8-inch (3.2 mm) relative movement of the anchor and the adjacent masonry surface. Results of all tests shall be reported. The report shall include the test results as related to the wall thickness and joist orientation. The allowable resistance value of the existing anchors shall be 40 percent of the average of those tested anchors having the same wall thickness and joist orientation.

91.8809.9. Qualification tests for devices used for wall anchorage shall be tested with the entire tension load carried on the enlarged head at the exterior face of the wall. Bond on the part of the device between the enlarged head and the interior wall face shall be eliminated for the qualification tests. The resistance value assigned the device shall be 20 percent of the average of the ultimate loads.

SEC. 91.8810. INFORMATION REQUIRED ON PLANS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8810.1. General. In addition to the seismic analysis required elsewhere in this division, the licensed engineer or architect responsible for the seismic analysis of the building shall determine and record the information required by this section on the approved plans.

91.8810.2. Construction Details. (Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) The following requirements, with appropriate construction details, shall be made part of the approved plans:

1. All unreinforced masonry walls shall be anchored at the roof and ceiling levels by tension bolts through the wall as specified in Table No. 88-I, or by an approved equivalent at a maximum anchor spacing of six feet (1829 mm). Anchors installed in accordance with Section 91.8114 of this Code shall be accepted as conforming to this requirement.

All unreinforced masonry walls shall be anchored at all floors and ceiling with tension bolts through the wall or by existing rod anchors at a maximum anchor spacing of six feet (1829 mm). All existing rod anchors shall be secured to the joists to develop the required forces. The Department may require testing to verify the adequacy of the embedded ends of existing rod anchors. Tests, when required, shall conform to Section 91.8809.8.

EXCEPTION: Walls need not be anchored to ceiling systems that, because of their low mass and/or relative location with respect to the floor or roof systems, would not impose significant normal forces on the wall and cause out-of-plane wall failures.

At the roof and all floor levels, the anchors nearest the building corners shall be combination shear and tension anchors located not more than two feet (610 mm) horizontally from the inside corners of the walls.

When access to the exterior face of the masonry wall is prevented by proximity of an existing building, wall anchors conforming to Items 5 and 7 in Table No. 88-I may be used.

Alternative devices to be used in lieu of tension bolts for masonry wall anchorage shall be tested as specified in Section 91.8809.9.

2. Diaphragm chord stresses of horizontal diaphragms shall be developed in existing materials or by addition of new materials.
3. Where trusses and beams other than rafters or joists are supported on masonry, independent secondary columns shall be installed to support vertical loads of the roof or floor members.
4. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)** Parapets and exterior wall appendages not capable of resisting the forces specified in this division shall be removed, stabilized or braced to ensure that the parapets and appendages remain in their original position.

The maximum height of an unbraced, unreinforced masonry parapet above the lower of either the level of tension anchors or roof sheathing shall not exceed one and one half times the thickness of the parapet wall. If the required parapet height exceeds this maximum height, a bracing system designed for the force factors specified in Table Nos. 88-E and 88-F for walls shall support the top of the parapet. Parapet corrective work must be performed in conjunction with the installation of tension roof anchors.

5. All deteriorated mortar joints in unreinforced masonry walls shall be pointed with Type S or N mortar. Prior to any pointing, the wall surface must be raked and cleaned to remove loose and deteriorated mortar. All preparation and pointing shall be done under the continuous inspection of a registered deputy inspector certified to inspect masonry or concrete. At the conclusion of the project, the inspector shall submit a written report to the Department setting forth the portion of work inspected.

6. Repair details of any cracked or damaged unreinforced masonry wall required to resist forces specified in this division.

91.8810.3. Existing Construction. The following existing construction information shall be made a part of the approved plans:

1. The type and dimensions of existing walls and the size and spacing of floor and roof members.
2. The extent and type of existing wall anchorage to floors and roof.
3. The extent and type of parapet corrections which were performed in accordance with Section 91.8114 of this Code.
4. Accurately dimensioned floor plans and masonry wall elevations showing dimensioned openings, piers, wall thickness and heights, and veneer and anchorages.
5. The location of cracks or damaged portions of unreinforced masonry walls requiring repairs.
6. The type of interior wall surfaces and ceilings, and if reinstalling or anchoring existing plaster is necessary.
7. The general condition of the mortar joints and if the joints need pointing.
8. The location of the shear tests shall be shown on the floor plans and building wall elevations, and the complete test report shall be reproduced on the approved plans.

SEC. 91.8811. DESIGN CHECK – COMPATIBILITY OF ROOF DIAPHRAGM STIFFNESS TO UNREINFORCED MASONRY WALL OUT-OF-PLANE STABILITY.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8811.1. General. (Amended by Ord. No. 171,939, Eff. 4/15/98.) The requirements of this section are in addition to the requirements of Sections 91.8808 and 91.8809. The relative stiffness and strength of a diaphragm governs the amount of amplification of the seismic ground motion by the diaphragm and, therefore, a diaphragm stiffness and strength-related check of the out-of-plane stability of unreinforced masonry walls anchored to wood diaphragms shall be made. This section contains a procedure for the evaluation of the out-of-plane stability of unreinforced masonry walls anchored to wood diaphragms that are coupled to shear-resisting elements.

91.8811.2. Requirements for Terms. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The requirements for the terms used in this Division shall be defined as follows:

CROSS WALL is a wood-framed wall having a height-to-length ratio of:

1. Two to one for wood structural panels.
2. One to one for gypsum board, gypsum lath, cement plaster or diagonal sheathing.

The total strength of all cross walls located within any 40-foot (12 192 mm) length of diaphragm measured in the direction of the diaphragm span shall not be less than 30 percent of the strength of the diaphragm in the direction of consideration.

DEMAND-CAPACITY RATIO (DCR) is a ratio of the following:

1. **Demand** = lateral forces due to 33 percent of the weight of the diaphragm and the tributary weight of the walls and other elements anchored to the diaphragm.
2. **Capacity** = diaphragm total shear strength in the direction under consideration as determined using the values in Table No. 88-K or Table No. 88-L.

91.8811.3. Notations. (Amended by Ord. No. 171,939, Eff. 4/15/98.)

D = depth of diaphragm, in feet (mm), measured perpendicular to the diaphragm span.

h/t = height-to-thickness ratio of an unreinforced masonry wall. The height shall be measured between wall anchorage levels and the thickness shall be measured through the wall cross section.

L = span of diaphragm between masonry shear walls or steel frames.

V_c = total shear capacity of cross walls in the direction of analysis immediately below the diaphragm level being investigated as determined by using Tables Nos. 88-K and 88-L.

v_u = maximum shear strength in pounds per foot for a diaphragm sheathed with any of the materials given in Tables Nos. 88-K and 88-L.

W_d = total dead load of the diaphragm plus the tributary weight of the walls anchored to the diaphragm, the tributary ceiling and partitions and the weight of any other permanent building elements at the diaphragm level under investigation.

91.8811.4. Design Check Procedure. (Added by Ord. No. 171,939, Eff. 4/15/98.)

91.8811.4.1. General. The demand-capacity ratio (DCR) for the building under investigation shall be calculated using the following equations:

$$DCR = 0.33W_d/2v_uD \quad (11-3)$$

or

$$DCR = 0.33W_d/(2v_uD + V_c) \quad (11-4)$$

91.8811.4.2. Diaphragm Deflection. The calculated DCR shall be to the left of the curve in Figure No. 88-A. Where the calculated DCR is outside (to the right of) the curve, the diaphragm deflection limits are exceeded, and cross walls may be used to reduce the deflection.

91.8811.4.3. Unreinforced Masonry Wall Out-of-Plane Stability. The DCR shall be calculated discounting any cross walls. If the DCR corresponding to the diaphragm span is to the right of the curve in Figure No. 88-A, the region within the curve at and below the intersection of the diaphragm span with the curve may be used to determine the allowable h/t values per Table No. 88-G.

SEC. 91.8812. VIOLATIONS.

(Amended by Ord. No. 171,939, Eff. 4/15/98.)

Notwithstanding any other provision of this Code to the contrary, it shall be unlawful for any person, firm, or corporation to maintain, use, or occupy any building within the scope of this division which does not meet the minimum earthquake standards specified in this division.

Any person who violates, causes or permits another person to violate this provision is guilty of a misdemeanor. Any person includes an owner, lessor, sublessor, manager or person in control of a building subject to this division. This term shall not include any person who is merely a tenant or other individual occupying any dwelling unit, efficiency dwelling unit, guest room or suite in a building. The legal owner of a building is that person, firm, corporation, partnership or other entity whose name or title appears on the record with the Office of the County Recorder, as well as all successors or assignees of these persons.

EXCEPTION: This section shall not apply to any building on which work is proceeding in compliance with the time limits set forth in this division, and/or in compliance with any extensions of time granted by the Department or the Board; or any action, order or determination made by the Department or the Board in the implementation of this division.

SEC. 91.8813. SPECIAL REQUIREMENTS FOR VACANT BUILDINGS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8813.1. General. This section shall apply to every vacant unreinforced masonry bearing wall building within the scope of this division which has not complied with the requirements contained in this division.

91.8813.2. Enforcement. When the Department determines that a building is within the scope of this section, it shall notify the owner and order the owner to bring the building into compliance with the provisions of this section. Compliance with such an order shall be accomplished within the time limits set forth herein and any extensions of time granted by the Department. If the owner does not comply within such time limits, then the Department may order the demolition of the building or structure in accordance with the provisions of Section 91.8903.

91.8813.3 Time for Compliance. (Amended by Ord. No. 171,939, Eff. 4/15/98.)

1. For a one-story building with wall anchors installed pursuant to Section 91.8808.3, either before or within 60 days after notice is given by the Department:

Within 180 days after notice is given pursuant to this section, the owner shall submit to the Department either plans and a structural analysis for the proposed structural alterations of the building necessary to comply with the minimum requirements of this division, or an application for demolition of the building or structure.

If the owner elects to perform the proposed structural alterations, then within 270 days after notice is given pursuant to this section, the owner shall obtain the necessary permits for strengthening the building or structure; within 90 days of obtaining a permit to strengthen the building, the owner shall commence strengthening work; and within 18 months after notice is given pursuant to this section, the owner shall complete all strengthening work.

If the owner elects to demolish the building, then within 210 days after notice is given pursuant to this section, the owner shall obtain permits for the demolition of the building or structure; within 21 days of obtaining a demolition permit, the owner shall commence demolition; and within 300 days after notice is given pursuant to this section the owner shall complete the demolition of the building or structure.

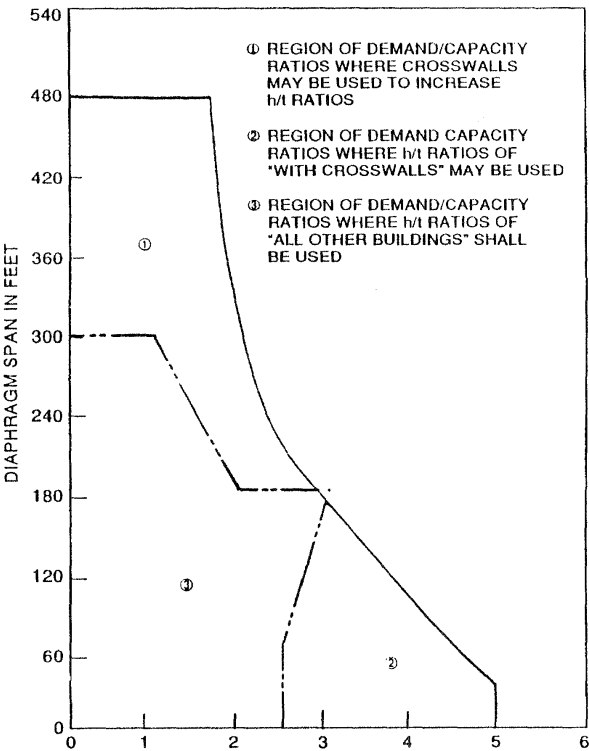
2. Time for compliance for all other buildings:

Within 60 days after notice is given pursuant to this section, the owner shall submit to the Department either plans and a structural analysis for the proposed structural alterations of the building necessary to comply with the minimum requirements of this division, or an application for demolition of the building or structure.

If the owner elects to perform the necessary alterations, then within 120 days after notice is given pursuant to this section, the owner shall obtain the necessary permits for strengthening the building or structure; within 21 days of obtaining a permit, the owner shall begin work; and within 365 days after notice is given pursuant to this section, the owner shall complete all strengthening work.

If the owner elects to perform the necessary alterations, then within 120 days after notice is given pursuant to this section, the owner shall obtain the necessary permits for strengthening the building or structure; and within 120 days after obtaining the demolition permit, the owner shall complete the demolition of the building or structure.

91.8813.4. Special Provisions for Damaged Buildings. An unreinforced masonry bearing wall building which is damaged or partially destroyed by fire, flood, wind, earthquake or other calamity or act of God or the public enemy shall be repaired or demolished within six months of such damage or destruction.



DEMAND-CAPACITY RATIO, $0.33 W_D / (2v_u D)$ OR $0.33 W_D / (2v_u D + \Sigma v_c)$
ACCEPTABLE SPAN FOR DIAPHRAGMS
(BASED ON DISPLACEMENT CONTROL CONCEPTS)
FIGURE NO. 88-A
(Added by Ord. No. 165,310, Eff. 12/31/89.)

TABLE NO. 88-A
RATING CLASSIFICATIONS

TYPE OF BUILDING	CLASSIFICATION
Essential Building	I

High Risk Building	II
Medium Risk Building	III
Low Risk Building	IV

**TABLE NO. 88-B
TIME LIMITS FOR COMPLIANCE**

REQUIRED ACTION BY OWNER	OBTAIN BUILDING PERMIT WITHIN	COMMENCE CONSTRUCTION WITHIN	COMPLETE CONSTRUCTION WITHIN
Complete Structural Alterations or Building Demolition	1 year	180 days*	3 years
Wall Anchor Installation	180 days	270 days	1 year

*Measured from date of building permit issuance.

**TABLE NO 88-C
SERVICE PROVISIONS AND EXTENDED TIME PROVISIONS**
(Amended by Ord. No. 160,451, Eff. 11/25/85.)**

Rating Occupant Classification	Extension of Time if Wall Anchors Load	Minimum Time Periods are Installed	Service of Order
I (Highest Priority)	Any	One Year	0
II	100 or more	One Year	90 Days
III	100 or more	One Year	One Year
	More than 50, but less than 100	One Year	Two Years
	More than 19, but less than 51	One Year	Three Years
IV (Lowest Priority)	less than 20	One Year	Four Years

**Buildings that have obtained a building permit for wall anchors and met the time schedule in Table 88-B for wall anchor installation may utilize the time extensions, which are permitted in Table 88-C prior to the adoption of this ordinance. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

**TABLE NO. 88-D
HORIZONTAL FORCE FACTORS BASED ON RATING CLASSIFICATION**

RATING CLASSIFICATION	IKCS
I	0.186
II	0.133
III & IV	0.100

**TABLE NO. 88-E
HORIZONTAL FORCE FACTORS "IS" FOR PARTS OR PORTIONS OF STRUCTURES**

RATING CLASSIFICATION	IS
I	1.50
II	1.00
III & IV	0.75

**TABLE NO. 88-F
HORIZONTAL FORCE FACTOR "C_p" FOR PARTS OR PORTIONS OF BUILDINGS OR OTHER STRUCTURES ¹
(Amended by Ord. No. 171,939, Eff. 4/15/98.)**

PART OR PORTION OF BUILDINGS	DIRECTION OF FORCE	VALUE OF C _p
PART OR PORTION OF BUILDINGS	DIRECTION OF FORCE	VALUE OF C _p
Exterior bearing and nonbearing walls; interior bearing walls and partitions; interior nonbearing walls and partitions over 10 feet in height; masonry fences over 6 feet in height	Normal to flat surface	0.20
Cantilever parapet and other cantilever walls, except retaining walls.	Normal to flat surface	1.00
Exterior and interior ornamentations and appendages.	Any direction	1.00

When connected to or a part of a building: towers, tanks, towers and tanks plus contents, racks over 8 feet 3 inches in height plus contents, chimneys, smokestacks and penthouses.	Any direction	0.20 ^{2,4}
When connected to or a part of a building: rigid and rigidly mounted equipment and machinery not required for continued operation of essential occupancies. ⁵	Any horizontal direction	0.20 ³
Tanks plus effective contents resting on the ground.	Any direction	0.12
Floors and roofs acting as diaphragms.	In the plane of the diaphragm	0.12 ⁶
Prefabricated structural elements, other than walls, with force applied at center of gravity of assembly.	Any horizontal direction	0.30
Connections for exterior panels or elements.	Any direction	2.00

For SI: 1 inch = 25.4 mm, 1 foot = 305 mm.

Notes:

1. See Section 91.8808.2 for use of C_p .
2. When located in the upper portion of any building with a height to depth ratio of 5 to 1 or greater, the value shall be increased by 50 percent.
3. For flexible and flexible mounted equipment and machinery, the appropriate values for C_p shall be determined with consideration given to both the dynamic properties of the equipment and machinery and to the building and building or structure in which it is placed.
4. The W_p for storage racks shall be the weight of the racks plus contents. The value of C_p for racks over two storage support levels in height shall be 0.16 for the levels below the top two levels.
5. The design of the equipment and machinery and their anchorage is an integral part of the design and specification of that equipment and machinery. The structure to which the equipment or machinery is mounted shall be capable of resisting the anchorage forces (see also Section 13.6.5 of ASCE-7). **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**
6. Floor and roofs acting as diaphragms shall be designed for a minimum force resulting from a C_p of 0.12 applied to W_p unless a greater force results from the distribution of lateral forces in accordance with Section 12.8.3 of ASCE-7. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

TABLE NO. 88-G

ALLOWABLE VALUE OF HEIGHT-TO-THICKNESS RATIO OF UNREINFORCED MASONRY WALLS WITH MINIMUM QUALITY MORTAR ^{1,2}
(Amended by Ord. No. 171,939, Eff. 4/15/98.)

	BUILDINGS W/ CROSS WALLS AS DEFINED BY SECTION 91.8803	ALL OTHER BUILDINGS
Walls of One-story Buildings	13 - 16 ^{3,4,5}	13
First-Story Wall of Multi-story Buildings	16	15
Walls in Top Story of Multi-story Buildings	9 - 14 ^{3,4,5}	9
All Other Walls	16	13

1. Minimum quality mortar shall be determined by laboratory testing in accordance with Section 91.8809.5 of this Code.
2. This table is not applicable to buildings of Rating Classification I. Walls of buildings within Rating Classification I shall be analyzed in accordance with Section 91.8808.6 of this Code.
3. The minimum mortar shear strengths required in Footnotes 4 and 5 shall be that shear strength without the effect of axial stress in the wall at the point of the test.
4. The larger height-to-thickness ratio may be used where mortar shear tests in accordance with Section 91.8809.5.3 of this Code establish a minimum mortar shear strength of not less than 100 psi (690 kPa) or where the tested mortar shear strength is not less than 60 psi (414 kPa) and a visual examination of the vertical wythe-to-wythe wall joint (collar joint) indicates not less than 50 percent mortar coverage.
5. Where a visual examination of the collar joint indicates not less than 50 percent mortar coverage and the minimum mortar shear strength when established in accordance with Section 91.8809.5.3 of this Code is greater than 30 psi (207 kPa) but less than 60 psi (414 kPa), the allowable height-to-thickness ratio may be determined by linear interpolation between the larger and smaller ratios in direct proportion to the mortar shear strength.

TABLE NO. 88-H

VALUES FOR EXISTING MATERIALS
(Amended by Ord. No. 181,758, Eff. 8/8/11.)

EXISTING MATERIALS OR CONFIGURATION OF MATERIALS ¹	ALLOWABLE VALUES
EXISTING MATERIALS OR CONFIGURATION OF MATERIALS ¹	ALLOWABLE VALUES
1. HORIZONTAL DIAPHRAGMS	
(a) Roofs with straight sheathing and roofing applied directly to the sheathing.	100 lbs. per foot for seismic shear.
(b) Roofs with diagonal sheathing and roofing applied directly to the sheathing.	400 lbs. per foot for seismic shear.
(c) Floors with straight tongue-and-groove sheathing.	150 lbs. per foot for seismic shear.
(d) Floors with straight sheathing and finished wood flooring.	300 lbs. per foot for seismic shear.
(e) Floors with diagonal sheathing and finished wood flooring.	450 lbs. per foot for seismic shear.
(f) Floors or roofs with straight sheathing and plaster applied to the joist or values for items 1(a) and 1(c) rafters. ²	Add 50 lbs. per foot to the allowable values for items 1(a) and 1(c).
2. SHEAR WALL Wood stud walls with lath and plaster	100 lbs. per foot each side for seismic shear.
3. PLAIN CONCRETE FOOTINGS	$f'_c = 1500$ psi unless otherwise shown by tests
4. DOUGLAS FIR WOOD	Allowable stress same as No. 1 D.F. ³
5. REINFORCING STEEL	$f_y = 18,000$ lbs. per square inch maximum
6. STRUCTURAL STEEL	$f_y = 20,000$ lbs. per square inch maximum

For SI: 1 pound per foot = 0.0146 N/m, 1 pound per square inch (psi) = 6.895 kPa.

Notes:

1. Material must be sound and in good condition.
2. The wood lath and plaster must be reattached to existing joists or rafters in a manner approved by the Department.
3. Stresses given may be increased for combinations of loads as specified in Section 91.8808.7.2 of this Code.

TABLE NO. 88-I
ALLOWABLE VALUES OF NEW MATERIALS USED IN CONJUNCTION WITH EXISTING CONSTRUCTION
(Amended by Ord. No. 181,758, Eff. 8/8/11.)

NEW MATERIALS OR CONFIGURATION OF MATERIALS ¹	ALLOWABLE VALUES
NEW MATERIALS OR CONFIGURATION OF MATERIALS ¹	ALLOWABLE VALUES
1. HORIZONTAL DIAPHRAGMS Plywood sheathing applied directly over existing straight sheathing with ends of plywood sheets bearing on joists or rafters and edges of plywood located on center of individual sheathing boards.	Same as specified in CBC Table 2306.2.1.(1) and 2306.2.1.(2) for blocked diaphragms.
2. SHEAR WALLS a. Plywood sheathing applied directly over existing wood studs. No value shall be given to plywood applied over existing plaster or wood sheathing. b. Dry wall or plaster applied directly over existing wood studs. c. Dry wall or plaster applied to plywood sheathing over existing wood studs.	Same as values specified in CBC Table 2306.3 for shear walls. 75 percent of the values specified in CBC Table 2306.7. 33 1/3 percent of the values specified in CBC Table 2306.7.
3. SHEAR BOLTS Shear bolts and shear dowels embedded a minimum of eight inches into unreinforced masonry walls. Bolt centered in a 2-1/2 inch-diameter hole with drypack or an approved non-shrink grout around circumference of bolt or dowel. ^{1, 3}	133 percent of the values for plain solid masonry specified in Table No. 88-M. No values larger than those given for 3/4 inch bolts shall be used.
4. TENSION BOLTS Tension bolts and tension dowels extending entirely through unreinforced masonry secured with bearing plates on far side of wall with at least 30 square inches of area. ^{2, 3, 4}	1200 lbs. per bolt or dowel.
5. COMBINATION SHEAR AND TENSION WALL ANCHORS a. Bolts extending to the exterior face of the wall with a 2-1/2 inch round plate under the head. Install as specified for shear bolts. Spaced not closer than 12 inches on centers. ^{1, 2, 3} b. Bolts or dowels extending to the exterior face of the wall with a 2-1/2 inch round plate under the head and drill at an angle of 22-1/2 degrees to the horizontal. Installed as specified for shear bolts. ^{1, 2, 3} c. Through bolt with bearing plate for tension per Item 4. Combined with minimum eight-inch grouted section for shear per Item 3.	600 lbs. per bolt for tension. ⁴ See Item 3 (SHEAR BOLTS) for shear values. 1200 lbs per bolt or dowel for tension. ⁴ See Item 3 (SHEAR BOLTS) for shear values. See Item 4 (TENSION BOLTS) for tension values. ⁴ See Item 3 (SHEAR BOLTS) for shear values.
6. INFILLED WALLS Reinforced masonry infilled openings in existing unreinforced masonry walls with keys or dowels to match reinforcing.	Same as values specified for unreinforced masonry walls.
7. REINFORCED MASONRY Masonry piers and walls reinforced per CBC Section 2106 and Section 91.2107 of this Code.	Same as values determined per CBC Section 2106.
8. REINFORCED CONCRETE Concrete footings, walls and piers reinforced as specified in Division 19 of this Code and designed for tributary loads.	Same as values specified in Division 19 of this Code.
9. EXISTING FOUNDATION LOADS Foundation loads for structures exhibiting no evidence of settlement.	Calculated existing foundation loads due to maximum dead load plus live load may be increased 25 percent for deadload, and may be increased 50 percent for dead load plus seismic load required by this division.

For SI: 1 inch = 25.4 mm, 1 square inch = 645.16 mm², 1 pound = 4.45 N.

1. Bolts and dowels to be tested as specified in Section 91.8809.6 of this Code.
2. Bolts and dowels to be 1/2-inch minimum in diameter.
3. Drilling for bolts and dowels shall be done with an electric rotary drill. Impact tools shall not be used for drilling holes or tightening anchor and shear bolt nuts.
4. Allowable bolt and dowel values specified are for installations in minimum three wythe walls. For installations in two wythe walls, use 50 percent of the value specified, except that no value shall be given to tension bolts that do not extend entirely through the wall and are secured with bearing plates on the far side.

TABLE NO. 88-J
ALLOWABLE SHEAR STRESS FOR TESTED UNREINFORCED MASONRY WALLS

Eighty percent of test results in psi not less than	Average test results of cores in psi	Seismic in-plane shear based on gross area
30 plus axial stress	20	3 psi*
40 plus axial stress	27	4 psi*
50 plus axial stress	33	5 psi*
100 plus axial stress or more	67 or more	10 psi max*

*Allowable shear stress may be increased by addition of 10% of the axial stress due to the weight of the wall directly above.

TABLE NO. 88-K

VALUES FOR EXISTING MATERIALS
(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

EXISTING MATERIALS OR CONFIGURATION OF MATERIALS ¹	ALLOWABLE VALUES
EXISTING MATERIALS OR CONFIGURATION OF MATERIALS¹	ALLOWABLE VALUES
1. HORIZONTAL DIAPHRAGMS a. Roofs with straight sheathing and roofing applied directly to the sheathing. b. Roofs with diagonal sheathing and roofing applied directly to the sheathing.	100 lbs. per foot for seismic shear. 250 lbs. per foot for seismic shear.
2. CROSSWALLS ^{2, 3} a. Plaster on wood or metal lath. b. Plaster on gypsum lath. c. Gypsum wall board, unlocked edges. d. Gypsum wall board, blocked edges.	per side: 200 lbs. per foot for seismic shear. 175 lbs. per foot for seismic shear. 75 lbs. per foot for seismic shear. 125 lbs. per foot for seismic shear.

1. Materials must be sound and in good condition.
2. For crosswalls, values of all materials may be combined, except the total combined value shall not exceed 300 lbs. per foot for seismic shear.
3. The cross wall aspect ratio for plaster on wood, metal, or gypsum lath and gypsum wall board shall be a maximum height to width ratio of 1:1.

TABLE NO. 88-L
ALLOWABLE VALUES OF NEW MATERIALS USED IN CONJUNCTION WITH EXISTING CONSTRUCTION
(Amended by Ord. No. 181,758, Eff. 8/8/11.)

NEW MATERIALS OR CONFIGURATION OF ALLOWABLE VALUES	NEW AND EXISTING MATERIALS ¹
1. HORIZONTAL DIAPHRAGMS Plywood sheathing applied directly over existing straight sheathing with ends of plywood sheets bearing on joists or rafters and edges of plywood located on center of individual sheathing boards.	225 lbs. per foot for seismic shear.
2. CROSS WALLS ^{2, 3} a. Plywood sheathing applied directly over existing wood studs. No value shall be given to plywood applied over existing plaster or wood sheathing. b. Drywall or plaster applied directly over existing wood studs.	1.33 times the values specified in CBC Table 2306.3 for shear walls. 100 percent of the values specified in CBC Table 2306.7.

1. Materials must be sound and in good condition.
2. For cross walls, values of all materials may be combined, except the total combined value shall not exceed 300 lbs. per foot for seismic shear.
3. The cross wall aspect ratio for drywall, plaster and gypsum wall board shall be a maximum height to width ratio of 1:1, and for plywood shall be a maximum height to width ratio of 2:1.

TABLE NO. 88-M
ALLOWABLE SHEAR ON BOLTS

(Added by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

DIAMETER BOLT (inches)	EMBEDMENT (inches)	SOLID MASONRY (shear in pounds)	GROUTED MASONRY (shear in pounds)
1/2	4	350	750
5/8	4	500	750
3/4	5	750	1100
7/8	6	750	1100
1	7	750	1100
1-1/8	8	750	1100

DIVISION 89

**ABATEMENT OF BUILDINGS, STRUCTURES, PREMISES AND PORTIONS THEREOF WHICH CONSTITUTE A
NUISANCE OR ARE HAZARDOUS, OR SUBSTANDARD**

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

- Section
- 91.8901 General.
 - 91.8902 Definitions.
 - 91.8903 Abatement Procedures.
 - 91.8904 Special Provisions for Vacant Property Graffiti Removal.
 - 91.8905 Special Provisions for Vacating, Barricading, Removing or Demolishing Buildings or Structures Without Notice.
 - 91.8906 Payment and Recovery of Repair and Demolition Funds.
 - 91.8907 Abatement of Public Nuisance Conditions Related to a Declared Local Emergency.
 - 91.8908 Special Provisions for the Repair of Welded Steel Moment Frame Buildings Located in High Earthquake Damaged Areas.

SEC. 91.8901. GENERAL.
(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8901.1. Purpose of Division. It is the purpose of the provisions of this division to provide a just, equitable and practicable method, to be cumulated with and in addition to any other remedy available by law, whereby buildings, structures, premises and portions thereof which are within the scope of this division may be vacated, secured, cleaned, repaired, demolished or removed.

91.8901.2. Scope. The provisions of this division shall apply to all existing buildings, structures, premises and portions thereof which are a nuisance, a hazard or a substandard residential building.

All sections of Chapter IX of the Los Angeles Municipal Code are applicable to those buildings determined to be “**substandard residential buildings**” as defined herein.

The Department of Building and Safety may approve certain deviations from the requirements of Chapter IX of the Los Angeles Municipal Code concerning substandard residential buildings, provided the items concerned were built in compliance with code or ordinance provisions in effect at the time of construction, and provided, further, that such additional corrections as may be required by the Department are made so as to ensure that the building complies with the intent of the division.

91.8901.3. Interference Prohibited. It shall be unlawful for any person to obstruct, impede or interfere with any representative of the Department, including contractors hired by the Department or with the inspector of any Department of this city, or with any person who owns or holds any estate or interest in any building or structure which has been ordered to be vacated, secured, cleaned, repaired, demolished or removed, or with any person to whom such building or structure has been lawfully sold pursuant to the provisions of this division whenever any such representative of the Department, inspector, purchaser or person having an interest or estate in such building or structure is engaged in inspecting, securing, cleaning, vacating, repairing, demolishing or removing any such building or structure pursuant to the provisions of this division, or in performing any necessary act preliminary to or incidental to such work, or authorized or directed pursuant hereto.

91.8901.4. Liability of Officers or Employees of the City.

91.8901.4.1. City Employees Not Personally Liable. No officer, agent, or employee of the City of Los Angeles shall be personally liable for any damage incurred or alleged to be incurred as a result of any act required, permitted or authorized to be done or performed in the discharge of their duties pursuant to this division.

91.8901.4.2. Suits to be Defended by City Attorney. Any suit brought against any officer, agent or employee of the City of Los Angeles as a result of any act required, permitted or authorized in the discharge of their duties under this division shall be deemed an action against the City and shall be defended by the City Attorney.

91.8901.5. Other Provisions of the Municipal Code Unaffected Hereby. The provisions of this division shall not be deemed to repeal by implication any other provision of the Los Angeles Municipal Code and the adoption hereof shall not be deemed to affect or diminish the power or authority of an officer or employee of the City to condemn any building or structure erected or maintained in violation of any other provisions of said code.

91.8901.6. Separability of Provisions of This Division. The City Council hereby declares that it would have adopted each separate provision of this division, regardless of the adoption of any other provision, and if any remedy provided for in this division be held unavailable or limited in effect, such limitation shall not affect the application of any other provision of this division.

91.8901.7. Unless otherwise expressly provided, the remedies or penalties provided by this division are cumulative to each other and to the remedies or penalties available under law.

The provisions set forth in Article 8, Chapter IX of the LAMC shall not apply to proceedings conducted pursuant to this division. However, the Superintendent of Building and the Board may utilize the procedures described therein, to the extent necessary to assure that an owner has a full and fair opportunity to present evidence relevant to the abatement of the public nuisance conditions on that owner's property. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.8901.8. Wherever service is required in this division, that service may be accomplished by personal service as authorized in Sections 415.10, 415.20, and 415.21 of the California Code of Civil Procedure.

SEC. 91.8902. DEFINITIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

For the purpose of this division, certain terms are defined as follows:

DEPARTMENT. Refer to Division 2, Article 1, Chapter IX of the LAMC.

HAZARDOUS BUILDING. Any building, structure or portion thereof which has any or all of the following described defects:

1. Whenever any door, aisle, passageway, stairway or other means of exit is not of sufficient width or size, or is not so arranged as to provide safe and adequate means of exit, in case of fire or panic, for all persons housed or assembled therein who would be required to, or might, use such door, aisle, passageway, stairway or other means of exit.
2. Whenever the stress in any materials, member or portion thereof, due to all dead and live loads, is more than 1 and 1/2 times the working stress or stresses allowed in Article 1, Chapter IX of the LAMC.
3. Whenever any portion of a building or structure has been damaged by earthquake, wind, flood, or by any other event, in such a manner that the structural strength or stability thereof is appreciably less than it was before such event and is less than the minimum requirements of this Code for a new building of similar structure, purpose or location.
4. Whenever any portion of any member or appurtenance thereof is likely to fall, or to become detached or dislodged, or to collapse and thereby injure persons or damage property.
5. Whenever any portion of a building or any member or appurtenance thereof or ornamentation on the exterior thereof is not of sufficient strength or stability or is not so anchored, attached or fastened in place so as to be capable of resisting one half the wind pressure that specified in this Code without exceeding the working stresses permitted in this Code.
6. Whenever any portion thereof has settled to such an extent that walls or other structural portions have materially less resistance to winds or earthquakes than is required in the case of new construction.
7. Whenever the building or structure, or any portion thereof, because of dilapidation, deterioration, decay, faulty construction, or because of the removal or movement of some portion of the ground necessary for the purpose of supporting such building, or portion thereof, or some other cause, is likely to partially or completely collapse, or some portion of the foundation or underpinning is likely to fall or give way.
8. Whenever, for any reason whatsoever, the building or structure, or any portion thereof, is manifestly unsafe for the purpose for which it is used.
9. Whenever the exterior walls or other vertical structural members list, lean or buckle to such an extent that a plumb line passing through the center of gravity does not fall inside the middle third of the base.

10. Whenever the building or structure, exclusive of the foundation, shows 33% or more damage or deterioration to the member or members, or 50% damage or deterioration or a non-supporting enclosing or outside wall or covering.

11. Whenever the building or structure has been so damaged by fire, wind, earthquake or flood or has become so dilapidated or deteriorated as to become an attractive nuisance to children who might play therein to their danger, or as to afford a harbor for vagrants, criminals or immoral persons or as to enable persons to resort thereto for the purpose of committing nuisance or unlawful or immoral acts.

12. Any building or structure constructed, or which now exists or is maintained in violation of any specific requirements or prohibition of the building regulations of this City, as set forth in Article 1, Chapter IX of the LAMC or of any provisions of Article 7, Chapter V of the LAMC, or of Article 1, Chapter III of the LAMC, or of any law or ordinance of this state or City relating to the condition, location or structure of buildings.

13. Any building or structure which, whether or not erected in accordance with all applicable laws and ordinances, has in any non-supporting part, member or portion, less than 50%, or in any supporting member less than 66%, of the strength, fire-resisting qualities or characteristics or weather-resisting qualities or characteristics required by law or ordinance in the case of a newly constructed building of like area, height and occupancy in the same location.

14. Whenever a building or structure, used or intended to be used for dwelling purposes, because of dilapidation, decay, damage or faulty construction or arrangement, or otherwise, is insanitary or unfit for human habitation or is in a condition that is likely to cause sickness or disease, when so determined by the health officer, or is likely to work injury to the health, safety or general welfare of those living within.

15. Whenever the building or structure, used or intended to be used for dwelling purposes, has light, air and sanitation facilities inadequate to protect the health, safety or general welfare of persons living within.

16. Whenever any building or structure by reason of obsolescence, dilapidated condition, deterioration, damage, electric wiring, gas connections, heating apparatus or other cause, is in such condition as to be a fire hazard and is so situated as to endanger life or other buildings or property in the vicinity or provide a ready fuel supply to augment the spread and intensity of fire arising from any cause.

17. Whenever any fire-protective construction or safety device does not provide the degree of security to life and property required by the LAMC.

18. Whenever a building or structure is classified as a "Substandard Building".

19. Whenever a building or structure has become vacant and vandalized.

20. Whenever a building or structure has become a nuisance.

NUISANCE. Any premises, building, structure or portion thereof containing numerous code violations or one or more imminent life hazards.

SUBSTANDARD BUILDING. Any building, or portion thereof, including any dwelling unit, guest room or suite of rooms, or the premises on which the same is located, in which there exists any of the following listed conditions to an extent that endangers the life, limb, health, property, safety or welfare of the public or the occupants thereof:

91.8902.1. Inadequate Sanitation. Inadequate sanitation shall include, but not be limited to, the following:

1. Lack of or improper water closet, lavatory, bathtub or shower in a dwelling unit.
2. Lack of or improper water closets, lavatories and bathtubs or showers per number of guests in a hotel.
3. Lack of or improper kitchen sink.
4. Lack of hot and cold running water to plumbing fixtures in a hotel.
5. Lack of hot and cold running water to plumbing fixtures in a dwelling unit.
6. Lack of adequate heating.
7. Lack of or improper operation of required ventilating equipment.
8. Lack of minimum amounts of natural light and ventilation required by this Code.
9. Room and space dimensions less than required by this Code.
10. Lack of required electrical lighting.
11. Dampness of habitable rooms.
12. Infestation of insects, vermin or rodents as determined by the health officer.
13. General dilapidation or improper maintenance.
14. Lack of connection to required sewage disposal system.
15. Lack of adequate garbage and rubbish storage and removal facilities as determined by the health officer.

91.8902.2. Structural Hazards. Structural hazards shall include, but not be limited to, the following:

1. Deteriorated or inadequate foundations.
2. Defective or deteriorated flooring or floor supports.
3. Flooring or floor supports of insufficient size to carry imposed loads with safety.
4. Members of walls, partitions or other vertical supports that split, lean, list or buckle due to defective material or deterioration.
5. Members of walls, partitions or other vertical supports that are of insufficient size to carry imposed loads with safety.
6. Members of ceilings, roofs, ceiling and roof supports or other horizontal members which sag, split or buckle due to defective material or deterioration.
7. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that are of insufficient size to carry imposed loads with safety.

8. Fireplaces or chimneys which list, bulge or settle, due to defective material or deterioration.
9. Fireplaces or chimneys which are of insufficient size or strength to carry imposed loads with safety.

91.8902.3. Nuisance. Any nuisance as defined in this Code.

91.8902.4. Hazardous Wiring. All wiring except that which conformed with all applicable laws in effect at the time of installation and which has been maintained in good condition and is being used in a safe manner.

91.8902.5. Hazardous Plumbing. All plumbing except that which conformed with all applicable laws in effect at the time of installation and which has been maintained in good condition and which is free of cross-connections and siphonage between fixtures.

91.8902.6. Hazardous Mechanical Equipment. All mechanical equipment, including vents, except that which conformed with all applicable laws in effect at the time of installation and which has been maintained in good and safe condition.

91.8902.7. Faulty Weather Protection. Shall include, but not be limited to, the following:

1. Deteriorated, crumbling or loose plaster.
2. Deteriorated or ineffective waterproofing of exterior walls, roof, foundations or floors, including broken windows or doors.
3. Defective or lack of weather protection for exterior wall coverings, including lack of paint, or weathering due to lack of paint or other approved protective covering.
4. Broken, rotted, split or buckled exterior wall coverings or roof coverings.

91.8902.8. Fire Hazard. Any building or portion thereof, device, apparatus, equipment, combustible waste or vegetation which, in the opinion of the Chief of the Fire Department or the Chief's deputy, is in such a condition as to cause a fire or explosion or provide a ready fuel to augment the spread and intensity of fire or explosion arising from any cause.

91.8902.9. Faulty Materials of Construction. All materials of construction except those which are specifically allowed or approved by this Code and which have been adequately maintained in a good and safe condition.

91.8902.10. Hazardous or Unsanitary Premises. Those premises on which an accumulation of weeds, vegetation, junk, dead organic matter, debris, garbage, offal, rat harborages, stagnant water, combustible materials and similar materials or conditions constitute fire, health or safety hazards.

91.8902.11. Inadequate Maintenance. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Any building or portion thereof which is determined to be an unsafe building in accordance with the standards set forth in LAMC Section 91.8104.

91.8902.12. Inadequate Exits. All buildings or portions thereof not provided with adequate exit facilities as required by this Code except those buildings or portions thereof whose exit facilities conformed with all applicable laws at the time of their construction and which have been adequately maintained and increased in relation to any increase in occupant load, alteration or addition, or any change in occupancy.

When an unsafe condition exists through lack of, or improper location of, exit, additional exits may be required to be installed.

91.8902.13. Inadequate Fire-Protection or Fire-Fighting Equipment. All buildings or portions thereof which are not provided with the fire-resistive construction or fire-extinguishing systems or equipment required by this Code, except those buildings or portions thereof which conformed with all applicable laws at the time of their construction and whose fire-resistive integrity and fire-extinguishing systems or equipment have been adequately maintained and improved in relation to any increase in occupant load, alteration or addition, or any change in occupancy.

91.8902.14. Illegal Occupancy. All buildings or portions thereof occupied for living, sleeping, cooking or dining purposes which were not designed or intended to be used for such occupancies.

SEC. 91.8903. ABATEMENT PROCEDURES.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8903.1. Issuance of Initial Orders.

91.8903.1.1. Notification. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever the Department determines that any building, structure, or premises is within the scope of this division, the Department shall issue an order to the owner as shown in the last equalized assessment roll.

The order shall specify the conditions which cause the building or premises to be within the scope of this division; whereupon the owner or owner's agent shall obtain the necessary permits and abate the deficiencies in accordance with LAMC Subdivision 91.8903.1.2.

The order shall also require that the owner maintain the vacant buildings or structures vacant until they are repaired or demolished.

The requirements of this division shall also apply to any building, structure, attached or detached appurtenances, or premises as determined by the Department.

91.8903.1.2. Time for Compliance. Within 30 days after notice is given, the owner or the owner's agents shall obtain the necessary permits and shall commence work to abate the deficiencies. All necessary work shall be completed within 90 days after such notice is given.

91.8903.1.3. Order to Vacate. If the necessary permits are not obtained or the required work is not physically commenced within 45 days after notice is given, or the identified deficient conditions are not corrected within 90 days after notice is given, the Department may order the owner to cause the building to be vacated and may also institute enforcement action as provided in this division.

91.8903.1.4. Vacated Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No person shall reoccupy any building within the scope of this division that is found to be vacant or is ordered vacated in accordance with LAMC Subdivision 91.8903.1.3, until the deficiencies have been abated and a new Certificate of Occupancy or clearance is obtained from the Department. Subsequent to the issuance of an Order to Vacate any Certificate of Occupancy previously issued for such building shall be void.

91.8903.1.5. Posting of Buildings. Vacated buildings shall be locked by the owner and otherwise secured against ingress. If the Department has ordered that a building be vacated or that the owner maintain a building vacant, then the Department shall post thereon, in a conspicuous place near the entrance, a warning placard or sign.

A warning placard or sign posted pursuant to this division shall not be defaced, covered, removed or hidden from view in any manner. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The placard or sign posted shall read substantially as follows:

VACATED BUILDING – DO NOT ENTER

**BY ORDER OF THE
DEPARTMENT OF BUILDING AND SAFETY
CITY OF LOS ANGELES**

It is a misdemeanor to enter or occupy or be present in this building. It is a misdemeanor to remove, deface, cover, or hide this placard.

SEC. 91.8903 Los Angeles Municipal Code.

91.8903.1.6. Removal of Utilities. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Utility connections of electricity and gas shall be removed from buildings within the scope of LAMC Subdivision 91.8903.1.4 by the appropriate utility agency and shall not be reconnected until clearance is obtained from the Department.

91.8903.1.7. Recordation. (Amended by Ord. No. 185,587, Eff. 7/16/18.) At the time that the Department serves the order described in LAMC Subsection 91.8903.1, the Department shall file with the Office of the County Recorder a certificate stating that the subject building has been determined to be either a hazardous building, a substandard residential building, or a nuisance, that it has been ordered repaired or demolished, and that the owner has been notified.

After the building has been repaired or demolished, the Department shall file with the Office of the County Recorder a certificate terminating the above recorded status of the subject building.

91.8903.1.8. Manner of Giving Notice. (Added by Ord. No. 181,758, Eff. 8/8/11.) The orders described in this Section shall be given in writing and may be given either by personal delivery thereof to the person to be notified or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to such person to be notified at the address as shown on the last equalized assessment roll. Service by mail shall be deemed to have been completed at the time of deposit in the post office. The failure of any owner or other person to receive such notice shall not affect in any manner the validity of any of the proceedings taken thereunder. Proof of giving any notice may be made by an affidavit of any employee of the City which shows service in conformity with this Section.

91.8903.2. Violations – Penalties for Disregarding Initial Orders.

91.8903.2.1. The owner or other person having charge and control over any building or structure determined by the Department to fall within the scope of this division who shall fail to comply with any order to repair, vacate and repair, or demolish said building, structure or premises within the time limits established in this division shall be guilty of a misdemeanor.

91.8903.2.2. The occupant or lessee in possession who fails to comply with any order to vacate said building in accordance with any order given as provided for in this division shall be guilty of a misdemeanor.

91.8903.2.3. Any person who removes any notice or order posted as required in this division shall be guilty of a misdemeanor.

91.8903.2.4. (Amended by Ord. No. 181,758, Eff. 8/8/11.) No person shall enter, occupy or be present in a building which has been posted by the Department pursuant to this Section. Any person who enters, occupies or is present in a building which has been posted by the Department pursuant to this Section shall be guilty of a misdemeanor. This prohibition shall not apply to public officers or public employees acting within the course and scope of their employment or in the performance of their official duties; or owners, persons acting with the consent of the building owner, the owner's agent, or person in lawful possession acting in the course of complying with an order issued pursuant to the provisions of this Chapter.

Notwithstanding any other provision of the Los Angeles Municipal Code to the contrary, a police officer with the Los Angeles Police Department shall have the authority to enter any building posted by the Department pursuant to this Section, and arrest anyone present in violation of this Section. Overnight security shall require Department approval to determine the location does not present a safety hazard to overnight security personnel. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

91.8903.3. Enforcement – Non-Compliance with Department Orders.

91.8903.3.1. General. Whenever compliance with an order issued pursuant to the provisions of this division for vacated or occupied buildings has not been accomplished within the time set or any additional time as may have been granted under the appellate provisions of this division, the Department may institute appropriate action to secure compliance as provided by law for misdemeanor violation or may cause, by whatever means the Department determines appropriate, the correction of the deficiencies, whether the building is vacated or occupied, or the vacation and demolition, including but not limited to the monitoring and removal of asbestos, of the building or structure. **(Amended by Ord. No. 175,596, Eff. 12/7/03.)**

91.8903.3.2. Determination of Interested Parties. When the Department determines to cause the correction of the deficiencies or the demolition of a building or structure, it shall obtain a title report either from the Division of Real Estate, Bureau of Engineering, Department of Public Works, City of Los Angeles or by contracting with one or more private title reporting agencies. Said title report shall list all persons shown on the records of the County Recorder as having an ownership interest or liens or encumbrances or other interests in the real property on which the building or structure is located.

91.8903.3.3. Notification—Notice of Intention. (Amended by Ord. No. 172,702, Eff. 8/16/99.) When the Department determines that the owner shall correct the deficiencies or shall demolish the building or structure, the Department shall notify the owner as identified in the title report and other persons listed in the title report as having an interest in the real property.

The Notice of Intention shall describe the land and notify the owner of the intention of the City of Los Angeles to cause the correction of the deficiencies or the demolition of the building or structure located on the land, and shall specify a date certain upon or after which the Department shall solicit bids or execute a work order, and shall have the authority to advise that any time thereafter the Department may execute an agreement to do such work. The Department shall also notify the owner that the City will cause the cost of such repair or demolition plus an amount equal to 40 percent of such cost, but not less than \$100.00, to cover the cost of the City administering the contract and supervising the required work, to be made a lien against real property on which the building or structure is located. In the event that a contractor offers to pay the City to demolish a building in order to obtain the salvage material, the City's administrative charge shall be 40 percent of the amount paid by the contractor, but not less than \$100.00. Finally, the notice shall advise of the owner's right to a hearing.

The date for soliciting bids or executing the work order shall not be sooner than 10 days following the mailing of the notices by certified mail as described in LAMC Subdivision 91.8903.3.4. The award of the contract for such repair or removal may be given at any time following the receipt of bids. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

One or more **"Annual Unit-price Contracts"** may be awarded by the Department for the demolition of "privately owned, readily accessible one and two-story wood-frame structures on level lots". In the event one or more such contracts have been executed which are applicable to the building which is to be removed, the notice shall advise that

the work shall be pursuant to such contract, and that following a date certain, not less than 10 days following the mailing of notice by certified mail, the City pursuant to such contract shall have the authority to order the contractor to perform the work at the prices specified in said “**Unit-price Contract**”. For the purposes of this subsection an “**Annual Unit-price Contract**” shall mean a 12-month contract awarded by the Department after competitive bidding based on both stipulated prices and price per square foot of building area for the demolition and removal of buildings, structures and accompanying items on certain properties when and as directed by the Department by means of a work order. No work order shall be executed except in conjunction with the necessary contract or contracts.

The Department shall have the authority to award contracts for the demolition of all other types of buildings or structures by soliciting competitive bids. The General Manager shall have the authority to establish procedures and deadlines for soliciting competitive bids from any interested contractors. In addition, the General Manager shall have the authority to establish procedures for the pre-qualification of contractors in a manner consistent with the requirements of Section 386 of the Charter and subject to the approval of the City Attorney.

91.8903.3.4. Method of Notification. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The notice required by LAMC Section 91.8903 shall be sent to each required person by certified mail, postage prepaid, return receipt requested, to the address or addresses of such persons as it appears on the last equalized assessment roll of the County Recorder or as known to the City Engineer. If for any reason the certified letter is returned, whether undeliverable or refused, another copy of the letter shall be sent by first-class mail, postage prepaid.

Further, a copy of any order or notice issued under this section shall be posted in a conspicuous place upon the building or structure involved.

The failure of any owner or other person to receive such notice shall not affect in any manner the validity of any proceedings taken thereunder.

91.8903.3.5. Affidavit of Service. . (Amended by Ord. No. 185,587, Eff. 7/16/18.) The employee of the Department, upon serving the notice as required in LAMC Section 91.8903, shall create and sign an affidavit certifying the date and manner in which the notice was served. Any receipt card which may have been returned to the employee in acknowledgment of the receipt of such notice by certified mail shall also be filed with the affidavit.

91.8903.4. Owner’s Loss of Rights.

91.8903.4.1. General. Whenever the Department has undertaken action to correct deficiencies, secure or demolish any building, structure or portion thereof under the provisions of this division upon failure of the owner or person in apparent charge or control of the property to comply with an order therefor, and has caused the solicitation of bids or executed a work order to accomplish such work, the owner or person in apparent charge or control of the property shall be deemed to have forfeited all further rights and privileges to do such work and is thereafter prohibited from doing any such work, except as the Department may otherwise allow.

91.8903.4.2. Penalty for Performing Work Prior to Contract Awarding. In the event that the owner or other person having charge or control of such building or structure proceeds to perform the corrective work or demolish said building or structure, with or without the permission of the Department or Board of Building and Safety Commissioners, after bids have been solicited or a work order executed, but prior to the award of the contract or the acceptance of the work order by the contractor, a charge shall be imposed upon such person as partial reimbursement to the City for any expenses incurred by it in the proceeding. Such charge shall be in the amount of 20 percent of the lowest bid for the demolition or repair contract or of the work order charge, whichever applies, but in no event less than the sum of \$75.00.

91.8903.4.3. Penalty for Performing Work After Contract Is Awarded. (Amended by Ord. No. 185,587, Eff. 7/16/18.) If the owner or other person having charge or control of the building or structure proceeds to perform the corrective work or demolish the building or structure after the award of the demolition or repair contract or after the acceptance of the work order by the contractor, but before the contractor has commenced performance, a charge shall be imposed upon such person in an amount equal to the sum of a charge computed as in LAMC Subdivision 91.8903.4.2 plus the amount of the contractor's claim filed with the City Clerk and approved by the Department pursuant to the provisions of LAMC Subsection 91.8903.5.

91.8903.5. Cancellation of Contract or Work Order.

91.8903.5.1. General. If, for any reason, the Department wishes to cancel a demolition or repair contract after it has been awarded or a work order after it has been executed and accepted, it may do so by written notification delivered to the contractor any time prior to the commencement of the work. When the Department determines that expediency so requires, an oral notice of cancellation may be given, immediately followed by its confirmation in writing. Upon receipt of such oral or written notification the contractor shall take no further action toward demolition or repair of the building or structure.

91.8903.5.2. Compensation of Contractor - Cancellation of Contract or Work Order. Upon cancellation of a demolition or repair contract by the Department, the contractor may submit a claim to the City Clerk in an amount up to 25 percent of the contract price, but not to exceed the sum of \$1,000.00, payment of which contractor shall accept as compensation for all real and anticipated expenses and profits.

Upon cancellation of a work order by the Department, the contractor may submit a claim to the City Clerk up to the amount of \$200.00, payment of which contractor shall accept as compensation for all real and anticipated expenses and profits.

91.8903.5.3. Source of Contractor Reimbursement Funds. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Claims submitted pursuant to LAMC Subdivision 91.8903.5.2, and to the extent approved by the Department, shall be paid by the Department out of the Repair and Demolition Fund. Where the amount of the claim has been made a charge against the owner or other party of interest pursuant to LAMC Subdivision 91.8903.4.3, or where the demolition or repair contract or work order was canceled by the Department at the request of the owner or other party of interest, such party shall reimburse the City for the amount of the claim filed with the City Clerk and approved by the Department or paid from the Repair and Demolition Fund.

91.8903.6. Failure to Pay Charges. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Should the owner or other party of interest fail to pay, within 30 days after billing, any charge imposed upon such party pursuant to LAMC Subdivision 91.8903.5.2 or 91.8903.5.3, the Department shall transmit any unpaid claim to the Office of the City Attorney for collection and/or appropriate legal remedy as determined by the Office of the City Attorney.

91.8903.7. Appeals and Hearings.

91.8903.7.1. Appeals. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Upon written application by an interested party within 30 days from the service of the initial order as provided for in LAMC Subsection 91.8903.1, for good cause shown and where no imminent risk of life or property is present, the Department or the Board, in case an appeal is made to it pursuant to LAMC Section 98.0403.2, may grant a reasonable extension of time, not to exceed 120 days after expiration of the 30 day period provided for in the initial order, within which the work required must be commenced.

Nothing in this subdivision precludes the Board from establishing a policy of granting less than the maximum time to comply with Department orders.

91.8903.7.2. Hearings. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

A. Upon the issuance of a Notice of Intention, as provided for in LAMC Subsection 91.8903.3, any owner or party of interest may appeal in writing to the Board for a hearing to determine the condition of the property, whether it falls within the scope of this division, whether it should be repaired or demolished, and how much time should be given to complete the required work. The request for the hearing shall be made prior to the date set to solicit bids or execute a work order as specified in the Notice of Intention. A request after such date may not be accepted for processing unless it is submitted prior to the Department's awarding a contract or issuing a work order and it is authorized by the Board. Failure of the owner or any party of interest in the property to request a hearing within the specified time or failure to pay the required filing fees shall be deemed a waiver of request for such a hearing.

B. At the hearing the Department shall submit for the record evidence to show whether or not the building or structure falls within the scope of this division. The evidence shall consist of, but need not be limited to, the inspection report originally issued by the Department pursuant to LAMC Subsection 91.8903.1, recent pictures,

and testimony by a representative of the Department. The owner or any party of interest shall have the opportunity prior to the hearing to examine the evidence to be submitted by the Department. The owner, the owner's representative or counsel, or a party of interest should be present at the hearing and will be given the opportunity to present any relevant evidence or witnesses, cross-examine any Department witnesses and ask questions or make comments concerning the Department's evidence and testimony. Failure of the owner or the owner's representative to appear at the hearing after receiving notice of the hearing shall be deemed a waiver of hearing rights.

C. At the conclusion of the hearing, the Board shall make findings and determine whether the building falls within the scope of this division and whether the building or structure should be repaired or demolished and how much time, if any, should be given for compliance with the Department's order.

91.8903.7.3. Time Limits for Vacant Buildings. Any appeal or request for hearing to the Board for an extension of time to repair or demolish a vacant privately owned building shall be decided by the Board no later than 30 days after the hearing thereon and may be granted only on the condition that such repairs be completed within a maximum period of 180 days after the date of the Board's first action to grant an extension of time and on the further condition that no additional time will be granted.

91.8903.7.4. Notification. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Only those persons who request a hearing need to be notified of the date and time of the hearing. Notification shall be made by certified mail, postage prepaid, return receipt requested, to the address as shown on the hearing request application. The employee of the Department, upon giving notice as provided in this division, shall create and sign an affidavit certifying to the date and manner in which such notice was served. Any receipt card which may have been returned to the employee in acknowledgment of the receipt of such notice by certified mail shall be maintained with the affidavit.

SEC. 91.8904. SPECIAL PROVISIONS FOR VACANT PROPERTY GRAFFITI REMOVAL.

(Title and Section Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8904.1. Duties of the Owner of Vacant Property. (Amended by Ord. No. 188,197, Eff. 4/11/24.) It shall be unlawful for the owner or person in control of a parcel of land to permit the accumulation of trash, debris, vehicle parts, rubbish, excessive vegetation or other similar nuisance conditions on a parcel or in and around any building or structure located on a parcel. The Department may order the fencing of such a parcel in the manner described below.

It shall be unlawful for the owner or person in control of a parcel of land to allow a vacant building or structure to be open to unauthorized entry on that land. The entire building or structure shall be securely maintained. The owner or person in control of a vacant building, structure, or lot which is open to unauthorized entry shall secure all openings, accessible for entry from the exterior of the building or structure, and where appropriate, the entire lot itself, with one of the following methods:

1. Minimum 3/4 inch (19.05 mm) exterior grade plywood. The plywood shall have a positive connection to the building or structure using minimum 1/2 inch (12.7 mm) bolts which shall not be removable from the outside.
2. Minimum 16-gauge steel mesh attached to a minimum 1 inch by 1/8 inch (25 mm x 3.175 mm) angle iron frame. The frame shall have a positive connection to the building or structure using minimum 1/2 inch (12.7 mm) bolts which shall not be removable from the outside.
3. Other means of barricading as directed or approved by the Department including wrought iron fencing of the lot. The Department may, working in cooperation with the Police Department, develop standards for alternative fencing.

Unless directed otherwise by the Department, the owner or person in control of a parcel of land also shall erect a 10 foot (3048 mm) high, unobstructed, chain link fence complete with lockable gates. The fence, once constructed, shall become the property of the owner of the property upon which it is constructed and all structures on the property, including the fence, shall be maintained in good repair. In the event that the fence or other barriers cannot be maintained in good repair, the Department may order an alternative method of barricading, or order the securing of the structure and premises by means of on-site security personnel services. The property so fenced shall be conspicuously posted with a "No Trespassing" sign pursuant to LAMC Section 41.24.

It shall also be unlawful for the owner or person in control of a parcel of land to allow to exist any graffiti on any walls, temporary or permanent structures, places, or other surfaces when that graffiti, as defined in LAMC Section 49.84.2, is visible from a public street or other public or private property.

The owner or person in control of a parcel of land, whose property displays graffiti, shall completely remove the graffiti by washing, sandblasting, or chemical treatment, or shall completely and uniformly cover or otherwise obscure the graffiti with paint or other approved materials.

It is unlawful to maintain a swimming pool in violation of LAMC Sections 91.3109 and 91.6109. The 10 foot (3048 mm) high chain link fence described above may be used to comply with LAMC Section 91.3109. The swimming pool water shall be removed if the property is vacant.

91.8904.1.1. Procedure for Securing Vacant Property and Removing Graffiti – Notification. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The City Council finds that the following conditions constitute a public nuisance: the maintenance of vacant buildings or structures open to unauthorized entry; the storage and accumulation of trash, debris, vehicle parts or other items prohibited under LAMC Section 91.8904; and the maintenance of vacant or occupied property with graffiti visible from a public street or alley as described in LAMC Section 91.8904.

If the property owner or person in control consents to the removal of the graffiti, the City may enter upon the property and remove such graffiti.

If the owner or person in control refuses to remove the graffiti, or if any of the public nuisance conditions above-described exist, then the Department of Building and Safety may issue an order by certified mail, return receipt requested, or may deposit an order in the United States mail in a sealed envelope, postage prepaid, to the owner as shown on the last equalized assessment roll to abate these conditions. A copy of the order shall also be posted on the subject property. The order may give no more than ten days from the date the notice was mailed to perform the work.

However, if the order is served by way of personal service, the order may give no more than five days from the date the order was served to perform the work.

91.8904.1.2 Abatement by the City. In the event the nuisance, including graffiti, is not removed or otherwise eliminated or abated by the date specified in the notice, the City, or its contractor, may enter upon the parcel and remove or eliminate the nuisance, including by means of securing the parcel through City personnel or the use of outside security personnel. Abatement may be accomplished by contract or work order and may be performed by a private contractor submitting a competitive sealed bid, a public entity performing under a Memorandum of Understanding, or by means of an Annual Awarded Contract. **(Amended by Ord. No. 188,197, Eff. 4/11/24.)**

For the purposes of this section, an Annual Awarded Contract shall mean one or more 12-month contracts awarded by the Department after competitive bidding. The contracts may be based upon both stipulated prices and unit cost for the fencing of vacant or vacated property; for removal of graffiti visible from a public street or alley; for draining swimming pools; for the securing of vacant buildings open to unauthorized entry; for the removal of debris, rubbish, excessive vegetation, weed abatement or similar nuisance conditions on property containing a vacant building or vacant lots, when and as directed by the Department by means of a work order. No work order shall be executed except in conjunction with the necessary contract or contracts.

If abatement is performed by a City department other than the Department of Building and Safety, that department shall bill the owner for the cost of removal, or other elimination or abatement of the nuisance, including administrative costs. An itemized written report showing the date and cost of abatement work done by the City or its contractor shall be submitted to the Department. Payment for the cost of abatement and recovery of the cost from the property owner shall be pursuant to LAMC Section 91.8906. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

If the building again becomes open to unauthorized entry, or graffiti is again visible from a public street or alley, or the building's premises or vacant parcel again contain debris, rubbish, excessive vegetation or other similar nuisance conditions, the Department may, upon 3 days notice to the owner, execute a contract or work order to have the

required work performed by one of the methods provided by this section. The cost of performing the work may be paid from the "**Repair and Demolition Fund**" as established in LAMC Section 91.8906. Further, the provisions of LAMC Subsections 91.8903.4, 91.8903.5 and 91.8903.6 shall apply to this section. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The above abatement procedures are in addition to any other remedy the Department may choose to pursue to eliminate the nuisance conditions.

This section may also be used to abate graffiti that is observable from a public road, public right-of-way, or other property that is freely open to the public, as defined in Section 49.84.2 of the Los Angeles Municipal Code. **(Amended by Ord. No. 180,708, Eff. 7/6/09.)**

If at the time of removal of the graffiti the owner or occupants object, then the City will immediately obtain the necessary consent, warrants, or court order prior to completion of the graffiti removal. This section should not be administered in any way that would violate the constitutional rights of any person.

91.8904.2. Abatement of Vacant Buildings or Structures that are Open to Unauthorized Entry and Fire Damaged or Repeatedly Used for Illegal Purposes. (Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8904.2.1 (Amended by Ord. No. 185,587, Eff. 7/16/18.) Any vacant buildings open to unauthorized entry that become fire damaged or used repeatedly by vagrants and gang members or for other illegal purposes, constitute a public nuisance. The expeditious repair or demolition of such vacant buildings and attached or detached appurtenances is essential in order to eliminate fire hazards, and public nuisance conditions which adversely affect the public safety and have a blighting effect on the neighborhood. It is the purpose of this section to establish a fair and expeditious procedure which may be used in connection with those buildings and attached or detached appurtenances.

91.8904.2.2. Procedures. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Department may declare a vacant building to be a public nuisance building under the following circumstances:

1. The vacant building has been secured pursuant to LAMC Subsection 91.8904.1;
2. It has subsequently become open to unauthorized entry; and
3. It has become fire damaged or is used repeatedly without the owner's permission by vagrants, criminals, or gangs or for other illegal purposes.

If the Department determines that a vacant building is a public nuisance building as defined in this section, then the Department may proceed to abate the public nuisance building utilizing the procedures set forth in LAMC Subsections 91.8907.2, 91.8907.3 and 91.8907.4. The cost of any work done by the City or its contractor to abate the nuisance may be collected from the property owner in accordance with the procedures set forth in LAMC Section 91.8906.

A copy of any order issued pursuant to this section shall be provided to the Fire Department and Police Department.

91.8904.3. Inspection Fee for Periodic Inspection of Property and Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever the Department determines after notice and hearing that a property or building requires a monthly inspection in order to abate a public nuisance and encourage future maintenance in compliance with applicable codes, the Department may inspect monthly and assess fees pursuant to LAMC Section 98.0412. These fees shall be imposed annually when the nuisance condition is abated by the City pursuant to this division but not more than once during any twelve month period.

The notice of hearing and intent to impose the annual fee shall be mailed to the owner as listed on the last equalized assessment roll or supplemental roll. The matter shall be scheduled for hearing before the Board of Building and Safety Commissioners on the date specified on the notice. The Board shall determine whether the conditions and previous record of public nuisance conditions and failure to comply with the Code justify the imposition of the annual fee and monthly inspection.

The monthly inspection may be accomplished by contract or work order and may be performed by a private contractor submitting a sealed bid or by means of an Annual Awarded Monitoring Contract. An Annual Awarded Monitoring Contract shall mean one or more 12-month contracts awarded by the Department after competitive bidding. Payment for the cost of monthly inspections shall be made from the Repair and Demolition Fund. Any payments received as a result of the annual fee imposed pursuant to this subsection shall be deposited into the Repair and Demolition Fund. The property owner's failure to pay this fee may result in a lien against the property pursuant to LAMC Subsection 91.8906.2.

SEC. 91.8905. SPECIAL PROVISIONS FOR VACATING, BARRICADING, REMOVING OR DEMOLISHING BUILDINGS OR STRUCTURES WITHOUT NOTICE.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8905.1. Notwithstanding anything to the contrary in this section, whenever the Department determines that any building, structure, premises, or portion thereof falling within the scope of this division is a present, imminent, extreme and immediate hazard or danger to life or limb, health or safety, so as to necessitate the immediate elimination thereof without prior notice to the owner, the Department may, without an order or notice of any kind whatsoever and without a hearing, cause the building, structure, or premises, or any portion thereof, to be immediately vacated, barricaded, secured, removed, or demolished by such means as the Department may deem advisable, including the use of the Department's annual awarded demolition contractor or outside security personnel. **(Amended by Ord. No. 188,197, Eff. 4/11/24.)**

91.8905.2. Buildings or structures which are vacated pursuant to this section shall be locked and otherwise secured against ingress and the Department shall post thereon, in a conspicuous place near the entrance, a placard warning the building is unsafe.

Any warning placard posted pursuant to this section shall not be defaced, covered, removed, or hidden from view in any manner.

91.8905.3. The Department may cause the building, structure, or premises, or any portion of the building, structure, or premises to be immediately barricaded, secured, removed, or demolished. The barricading, securing, removal, or demolition, including any monitoring or removal of asbestos or other hazardous materials or the provision of outside security personnel, may be accomplished by any City department with the forces to perform the work, upon receipt of a request from the Department, or by any forces under contract to the City. The cost to accomplished the work, either by contract or City forces, shall be paid from the "**Repair and Demolition Fund**" as established in LAMC Section 91.8906. **(Amended by Ord. No. 188,197, Eff. 4/11/24.)**

All costs incurred pursuant to this section shall be a personal obligation against the property owner upon which the particular building or structure or any portion is located, recoverable by the City in an action before any court of competent jurisdiction. These costs shall include an amount equal to 40 percent of the cost to perform the actual work, but not less than the sum of \$100.00, to cover the City's costs for administering any contract and supervising the work required. In addition to this personal obligation and all other remedies provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

91.8905.4. The administrative fee of 40 percent of the costs shall not be included in the calculation of costs incurred for or arising out of any barricading, removal or demolition resulting from an event or course of events that prompted a declaration of a state of emergency, local emergency, war emergency or major disaster by the Mayor, the Governor of the State, or by the President of the United States. **(Amended by Ord. No. 175,596, Eff. 12/7/03.)**

91.8905.5. (Repealed by Ord. No. 175,596, Eff. 12/7/03.)

SEC. 91.8906. PAYMENT AND RECOVERY OF REPAIR AND DEMOLITION FUNDS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8906.1. Repair and Demolition Fund.

91.8906.1.1. Established by the City Council. (Amended by Ord. No. 188,224, Eff. 6/16/24.) The City Council has set up a special revolving fund designated as the **Repair and Demolition Fund**. Payments shall be made out of said fund upon the demand of the Department to defray the costs and expenses that may be incurred by said Department in causing the necessary work of repair, securing, cleaning or demolition of buildings, structures and portions thereof or premises which fall within the scope of this division and Division 90, Article 1 of Chapter IX of this Code.

91.8906.1.2. Transfer of Funds. The City Council may at any time transfer to the repair and demolition fund, out of any money in the General Fund of the City, sums as it may deem necessary in order to ensure the performance of the work of repair, securing, cleaning or demolition, and the sum so transferred shall be deemed a loan to a special fund and shall be repaid out of the proceeds of the collection of costs provided for in this division. All funds collected under the proceedings provided for below, either upon voluntary payments or as the result of the involuntary sale of the property, shall be paid when collected to the City Treasurer, who shall place the funds in the repair and demolition fund. **(Amended by Ord. No. 175,596, Eff. 12/7/03.)**

91.8906.1.3. Maximum Amount in Fund. At the close of each fiscal year, with the exception of money deposited from the Community Development Trust Fund in connection with the Rental Housing Rehabilitation Program, all monies in said repair and demolition fund in excess of \$250,000.00, over and above the amount of outstanding liabilities payable out of such fund, shall be transferred to the salary account of the Department of Building and Safety for use in building conservation work.

91.8906.2. Collection of Repair and Demolition Costs. (Amended by Ord. No. 181,758, Eff. 8/8/11.) Whenever the Department has caused the repair, securing, cleaning or demolition of any building, structure, or portion of a building, structure or any premises, all costs incurred under the provisions of this division of this Code shall be a personal obligation against the property owner or responsible interested parties in charge or control of the property, recoverable by the City in an action before any court of competent jurisdiction. These costs shall include an amount equal to 40 percent of the cost to perform the actual work to cover the City's costs for administering any contract and supervising the work required. In addition to this personal obligation and all other remedies provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this Section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

91.8906.2.1. (Repealed by Ord. No. 175,596, Eff. 12/7/03.)

91.8906.2.2. (Repealed by Ord. No. 175,596, Eff. 12/7/03.)

91.8906.3. (Repealed by Ord. No. 175,596, Eff. 12/7/03.)

91.8906.4. (Repealed by Ord. No. 175,596, Eff. 12/7/03.)

SEC. 91.8907. ABATEMENT OF PUBLIC NUISANCE CONDITIONS RELATED TO A DECLARED LOCAL EMERGENCY.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8907.1. Declaration of Purpose. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Both the expeditious cleanup of the debris and the removal of irreparably damaged buildings resulting from declared local emergencies are essential in order to eliminate public nuisance conditions which may adversely affect the public health, safety and welfare. It is the purpose of this section to establish a fair and expeditious procedure which may be utilized in connection with declared local emergencies for the abatement of public nuisances, which includes hazardous buildings and debris.

Accordingly, the Department is hereby authorized to issue orders requiring property owners to abate public nuisances. The Department is also authorized to cause the demolition of hazardous buildings and to remove the debris, rubbish or other dangerous or injurious materials; or to take other action as necessary to abate public nuisance conditions, and to cause the cost of the demolition, removal or abatement to become a special lien against the property. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

The terms "**nuisance**" and "**hazardous buildings**" are defined in LAMC Section 91.8902. As used in this section, the term "**debris**" includes burned or partially burned building materials, members, or portions thereof, ash, damaged appliances, broken concrete, loose bricks, glass, metal and downed trees.

This procedure is in addition to any other procedure that is currently authorized for abatement of such public nuisances. Notwithstanding any provision of this section, the Department may at any time exercise its lawful authority to summarily and immediately abate public nuisances pursuant to LAMC Section 91.8905.

91.8907.2. Notice. Whenever the Department discovers the existence of a public nuisance, including debris and hazardous buildings, the Department may issue an order for the premises upon which the nuisance is discovered to the person listed as the owner of the premises, based on the last equalized assessment roll or supplemental roll. A copy of the order shall be posted in a conspicuous place on the parcel or premises, and a copy shall also be mailed to the person listed as the owner based on the last equalized assessment roll or supplemental roll. The failure of any owner or other person to receive such notice shall not affect in any manner the validity of any of the proceedings taken thereunder. Proof of giving any notice may be made by an affidavit of any employee of the City, which shows service in conformity with this section. The order shall indicate:

1. The street address, or the approximate street address if no street address has been assigned, of the property on which the nuisance exists;
2. That the condition on the premises as described in the order constitutes a public nuisance;
3. That the owner or owner's agent is required to obtain all necessary permits to abate the public nuisance within 10 days from the date of the order, and to commence and complete all necessary work within 30 days from the date of the order;
4. That the owner must appear at a hearing conducted by the Board, at a time, date and location specified in the order, which shall be at least 15 days from the date of the order;
5. That upon any such appearance the owner will be given the opportunity to present and to elicit testimony and other evidence to show cause why the alleged nuisance should not be abated by the owner or by the City using its own forces or through contract;
6. That such appearance may be made by the submission of written materials if they have been received by the City at least three days prior to the scheduled hearing at the mailing address specified in the order;
7. That if a public nuisance is found to exist on the property and the owner fails to abate that nuisance, then the Department has the authority to cause the demolition of hazardous buildings and removal of debris, rubbish or other dangerous or injurious materials as necessary to abate public nuisance conditions;
8. That the cost of abatement of the public nuisance by the City may become a special lien against the premises. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

91.8907.3. Pre-abatement Hearing.

91.8907.3.1. The matter shall be scheduled for hearing before the Board on the date and time specified in the order. The Board shall proceed to determine whether the conditions existing on the premises constitute a public nuisance.

91.8907.3.2. The person notified to appear, or the actual owner of the parcel or premises in the event the person notified is not the owner, or any person representing the owner, who attends the hearing, shall be given an opportunity to present and to elicit testimony and any other evidence on whether a public nuisance exists, and to show cause why the alleged nuisance conditions should not be abated by the owner or by the City using its own forces or through contract. The Board shall proceed with the hearing whether or not such person is in attendance. Written material shall be considered by the Board if it is received three days prior to the scheduled hearing.

91.8907.3.3. At the conclusion of the hearing, the Board shall make a finding and determine whether the premises are a public nuisance, and how much additional time, if any, should be given to the owner for compliance with the Department's order. Once the Board has acted, it shall have no further jurisdiction over any matter relating to the abatement of the nuisance conditions on the premises. Any future determinations in this regard, including nuisance abatement actions or requests for extensions of time, shall be within the sole jurisdiction and discretion of the Superintendent of Building and not appealable to the Board.

91.8907.3.4. The owner and any other person who appeared at the scheduled hearing on behalf of the owner, either in person or by the submission of written material, shall be notified in writing of the determination of the Board.

91.8907.4. Abatement. (Amended by Ord. No. 188,644, Eff. 6/17/25.) If the Board finds that a public nuisance exists, and if the Department determines that permits were not obtained, or that the nuisance was not removed or otherwise abated by the dates specified in the order, then the City, its designee, or its contractor may enter upon the premises to demolish hazardous buildings, monitor or remove asbestos, remove debris, rubbish or other dangerous or injurious materials, and take other action as necessary to abate the nuisance. Upon receipt of a request from the Department, the work may be accomplished by any City department, any City designee, any forces under contract to the City, or any other government agency or department with the forces to perform the work. Further, if the work qualifies, then it may be done as part of the City-sponsored demolition and debris removal program approved in concept by the City Council on May 22, 1992.

Where the work is accomplished by other than City forces, the cost may be paid from the Repair and Demolition Fund as established in LAMC Section 91.8906. All costs incurred pursuant to this section shall be a personal obligation against the owner of the property upon which the nuisance is located, recoverable by the City in an action before any court of competent jurisdiction. These costs shall include an amount equal to 40 percent of the cost to perform the actual work, but not less than the sum of \$100.00, to cover the City's costs for administering any contract and supervising the work required, unless the work is necessitated by an event or course of events that prompts the declaration of a state of emergency, local emergency, war emergency or major disaster by the Mayor, the Governor of the State, or by the President of the United States. The City may also recover from the owner any payment or settlement from any insurance company that includes the cost of the abatement work. In addition to this personal obligation and all other remedies provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

SEC. 91.8908. SPECIAL PROVISIONS FOR THE REPAIR OF WELDED STEEL MOMENT FRAME BUILDINGS LOCATED IN HIGH EARTHQUAKE DAMAGED AREAS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.8908.1. Welded steel moment frame buildings located in high earthquake damaged areas experienced damage in the beam to column moment connection as a result of the earthquake of January 17, 1994 and its aftershocks. Except as provided by this section, it is unlawful for any person, firm, or corporation to maintain a building with damaged welded moment connections. The purpose of this section is to provide a practicable method, in addition to any other remedy available by law, whereby earthquake damaged welded steel frame moment buildings may be repaired.

91.8908.2. If the Department determines that a commercial building is a welded steel moment frame building located in a high earthquake damaged area, then the Department may issue an order to the owner, as shown on the last equalized assessment roll, to repair all damaged welded connections.

Within 180 days of mailing of the order, the building owner shall submit an inspection report to the Department indicating the number of damaged welded connections and proposed repair procedures. This inspection report shall be prepared under the direction of a structural engineer licensed by the State of California and shall include the results of any ultrasonic tests or the results of other approved methods of testing of connections. The inspection report shall be approved when it is determined to be in keeping with general standards established by the Department. Permits shall be obtained and repairs to the damaged connections shall commence within 90 days of the Department's approval of the submitted report. Repairs shall be completed within two years of the date of the permit.

91.8908.3. For purposes of this section, the following areas are high earthquake damaged areas:

That area bounded by, Mulholland Drive, Beverly Glen Boulevard, Pico Boulevard, Overland Avenue, Venice Boulevard, Centinela Avenue, Montana Avenue, 26th Street, Sunset Boulevard, and Mandeville Canyon Road.

That area of the City which is North of Mulholland Drive, and bounded by Universal City, Burbank, Glendale, Los Angeles County, and Ventura County.

The City Council, by resolution, may extend the boundaries of these earthquake damaged areas if it finds that damage has occurred to welded steel moment frame buildings outside the boundaries described above. The Department may issue an order for any welded steel moment frame building outside of the high earthquake damaged areas if the Department determines that the building has experienced earthquake damage. **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

91.8908.4. (Amended by Ord. No. 185,587, Eff. 7/16/18.) If an owner fails to comply with an order issued pursuant to this section within the time set forth in the order or such additional time as may be granted by the Department, then the Department may secure compliance utilizing the procedures set forth in LAMC Section 91.8903. However, if the Department utilizes LAMC Section 91.8903, then the order described in LAMC Subdivision 91.8903.1.1 shall indicate that the building is within the scope of Division 89, Article 1, Chapter IX of the LAMC because of the owner's failure to comply with the requirements of this section. Further the time for compliance set forth in LAMC Subdivision 91.8903.1.2 may be reduced to 10 days, and the order to vacate described in LAMC Subdivision 91.8903.1.3 may be issued whenever the Department deems appropriate.

91.8908.5. Notwithstanding any other provisions of this Code to the contrary, the owner of any building, who fails to comply with an order issued pursuant to this section within the time limits established in this section, shall be guilty of a misdemeanor. Further, if the Department determines at any time that the building is a hazardous building or unsafe to occupy, then it may order that the building be vacated or that other corrective actions be taken.

SEC. 91.8910. PROCEDURE FOR ABATEMENT OF NUISANCE; RECOVERY OF ATTORNEY FEES; ASSESSMENT; NOTICE TO OWNER; SALE OF PROPERTY.

(Repealed by Ord. No. 175,596, Eff. 12/7/03.)

DIVISION 90

NUISANCE ABATEMENT AND DISCONTINUANCE OF LAND USE AND DISCRETIONARY ZONING APPROVALS; RELOCATION ASSISTANCE; ENFORCEMENT

(Division Added by Ord. No. 180,409, Eff. 1/18/09.)

Section
91.9001 General.
91.9002 Definitions.
91.9003 Abatement Procedures.

SEC. 91.9001. GENERAL.

91.9001.1. Purpose of Division. The provisions of this division are intended to provide a just, equitable and practical method, in conjunction with any other remedy available by law, to vacate and secure property whose land use or discretionary zoning approval has been discontinued or revoked by the Director of Planning or City Council pursuant to Section 12.27.1 of the Los Angeles Municipal Code (Administrative Nuisance Abatement Proceedings).

91.9001.2. Scope. This division shall apply to property whose land use or discretionary zoning approval has been discontinued or revoked by the Director of Planning or City Council pursuant to Section 12.27.1 of the Los Angeles Municipal Code.

SEC. 91.9002. DEFINITIONS.

For purposes of this section, the following words shall be construed as defined below.

NUISANCE. Any use of land that jeopardizes or adversely affects the public health, peace, or safety of persons residing or working on the premises or in the surrounding area; or has resulted in repeated nuisance activities, including, but not limited to, disturbances of the peace, illegal drug activity, public drunkenness, drinking in public, harassment of passersby, gambling, prostitution, sale of stolen goods, public urination, theft, assault, robbery, battery, acts of vandalism, loitering, excessive littering, illegal parking, excessive loud noises (especially in the late night or early morning hours), traffic violations, curfew violations, lewd conduct, or police detentions and arrests; or adversely impacts nearby uses.

PROPERTY. A lot, building, or portions thereof.

SEC. 91.9003. ABATEMENT PROCEDURES.

91.9003.1. Vacate Order. The Department shall issue an order to vacate the property whose land use or discretionary zoning approval has been discontinued or revoked by the Director of Planning or City Council pursuant to Section 12.27.1 of the Los Angeles Municipal Code. Notwithstanding the provisions of Los Angeles Municipal Code Sections 12.26 K. and 98.0403 to the contrary, there shall be no appeal from this order. The order shall specify that the order applies only to that portion of the property whose land use or discretionary zoning approval has been discontinued or revoked.

91.9003.2. Closure Notification. The order to vacate the property shall be sent to the business operator, property owner, lessees, occupants, and to all persons shown in the title report as having any ownership interest, existing tenant(s) and person(s) in control of the property. The order shall state that the business operator, property owner, or person in control has 15 days from the effective date of the order to discontinue or revoke, to vacate and secure the property until a new land use is authorized.

91.9003.2.1. Time for Compliance. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Within 15 days of the effective date of the order, the business operator, property owner or persons in control shall vacate and secure the property against unauthorized entry or the Department shall institute an enforcement action as provided in LAMC Subsection 91.9003.4.

EXCEPTION: The Department shall give the business operator, property owner or person in control of a residential use no less than a 30-day notice and no more than a 60-day notice to vacate and secure the property. If the property is subject to the Rent Stabilization Ordinance (RSO) (Sections 151.00, et seq. of the Los Angeles Municipal Code), the business operator, property owner or person in control may apply for an extension of time in which to comply. Nothing in this section is intended to supersede or abrogate the rights of tenants provided by State statute or by the Los Angeles Housing Code and RSO, or by any other provision of the Los Angeles Municipal Code.

91.9003.2.2. Failure to Comply. (Amended by Ord. No. 185,587, Eff. 7/16/18.) If the business operator, property owner or person in control fails to maintain the property vacant and secured, the Department shall cause the property to be vacated and secured by whatever means the Department determines is reasonable and necessary pursuant to LAMC Subsection 91.9003.4. The Department shall tell the Department of Water and Power to disconnect utilities upon verification that there are no persons legally entitled to occupy the property, and if necessary, may padlock, barricade and/or fence the property. The business operator, property owner or person in control is responsible for all costs incurred by the Department pursuant to this section, including the cost of inspection. These costs shall include an amount equal to 40 percent of the cost to perform the actual work, but not less than the sum of \$100.00 to cover the City's costs for administering any contract and supervising the work required. The City may recover these costs through an action before any court of competent jurisdiction.

91.9003.2.3. Relocation Assistance. Whenever the land use or discretionary zoning approval that is revoked is a residential use, the relocation assistance procedure of Section 12.27.1 D.2. of the Los Angeles Municipal Code shall apply. The Los Angeles Housing Department shall identify each tenant eligible for relocation assistance, and shall issue an order requiring the landlord to pay relocation benefits in the amounts specified in Section 151.09 G. of the Los Angeles Municipal Code. No tenant who has caused or substantially contributed to the nuisance activity giving rise to the order to vacate, as determined by the Director of Planning pursuant to Section 12.27.1 D.2. of the Los Angeles Municipal Code, shall be eligible for relocation benefits. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

91.9003.2.4. Vacated Property. No person shall reoccupy any property pursuant to this division until the required clearance(s) and permit(s) are obtained from this Department and the Department of City Planning.

91.9003.2.5. Posting of Property. When the Department orders the owner to vacate and secure a property, the Department shall post a warning placard or sign in a conspicuous place near the entrance. A warning placard or sign posted pursuant to this section shall not be removed, defaced, covered or hidden from view in any manner.

The placard or sign shall read substantially as follows:

VACATED PROPERTY — DO NOT ENTER

BY ORDER OF THE CITY OF LOS ANGELES

It is a misdemeanor to enter, to remain, to occupy or be present unlawfully in or on this property. It is a misdemeanor to remove, deface, cover or hide this placard.

Sec. 12.27.1 and Sec. 91.9003 Los Angeles Municipal Code

91.9003.2.6. Recordation. (Amended by Ord. No. 185,587, Eff. 7/16/18.) When the Department serves an order to vacate the property as described in LAMC Subsection 91.9003.1, the Department shall record with the Office of the County Recorder a document stating that the property has been determined to be a nuisance, its present use has been vacated and the property owner, business operator, person in control, and occupants have been notified. After a new land use or discretionary zoning approval has been established in compliance with all the provisions of the Los Angeles Municipal Code, the Department shall record with the Office of the County Recorder a document terminating the above-recorded document.

91.9003.2.7. Manner of Giving Notice. The orders described in this division shall be written and may be delivered in person to the property or sent by United States mail in a sealed envelope, postage prepaid, addressed to such person(s) at the address as shown in the title search, the business operator, property owner and person in control of the property, and all occupants at the time the order is issued. Service by mail shall be deemed to have been completed at the time of deposit in the post office. The failure of any owner or other person to receive such notice shall not affect in any manner the validity of any of the proceedings taken pursuant to this division. Proof of giving notice may be made by an affidavit of any employee of the City that shows service in conformity with this section.

91.9003.3. Violations - Penalties for Disregarding Initial Orders.

91.9003.3.1. Failure to Comply. The business operator, property owner or person in control of the property who fails to comply with any vacate order pursuant to this division and to Section 12.27.1 of the Los Angeles Municipal Code within the time limits established in this division shall be guilty of a misdemeanor.

91.9003.3.2. Any person who defaces, covers, hides, or removes any notice or order posted as required in this division shall be guilty of a misdemeanor.

91.9003.3.3. Any person who enters, remains, occupies or is present in a property that has been posted by the Department pursuant to this division shall be guilty of a misdemeanor. This prohibition shall not apply to public officers or public employees acting within the course and scope of their employment or in the performance of their official duties. Notwithstanding any other provision of Los Angeles Municipal Code to the contrary, a police officer with the Los Angeles Police Department shall have the authority to enter any building posted by the Department pursuant to this division, and arrest anyone violating the vacate order.

91.9003.4. Enforcement – Noncompliance with Department Orders.

91.9003.4.1. General. If the owner, business operator or person in control of the property fails to comply with an order issued pursuant to this division within the time set, the Department may institute appropriate action to secure compliance as provided by law for misdemeanor violations, shall have the Department of Water and Power disconnect utilities upon verification that there are no persons legally entitled to occupy the property, and shall barricade, padlock, fence or secure the property by whatever means the Department determines as reasonable and necessary.

91.9003.4.2. Notification. The Department shall obtain a title report listing all persons shown by the county recorder as having an ownership interest or liens or encumbrances or other interests in the real property. The Department shall notify these persons that a lien will be placed against the real property to cover the cost of vacating and securing the property. The notice shall advise them of their right to a hearing.

DIVISION 91

EARTHQUAKE HAZARD REDUCTION IN EXISTING TILT-UP CONCRETE WALL BUILDINGS

(Division Added by Ord. No. 169,341, Eff. 2/4/94.)

Section

- 91.9101 Purpose.
- 91.9102 Scope.
- 91.9103 Definitions.
- 91.9104 Rating Classifications.
- 91.9105 General Requirements.
- 91.9106 Administration.
- 91.9107 Historical Buildings.
- 91.9108 Analysis and Design.
- 91.9109 Materials of Construction.
- 91.9110 Information Required on Plans.
- 91.9111 Required Building Maintenance.
- 91.9112 Violations – Penalties for Disregarding Department Orders.

SEC. 91.9101. PURPOSE.

(Added by Ord. No. 169,341, Eff. 2/4/94.)

The purpose of this division is to promote public safety and welfare by reducing the risk of death or injury that may result from the effects of earthquakes on tilt-up concrete wall buildings designed under the building codes in effect prior to January 1, 1976. Such buildings have been categorized, based on past earthquakes, as being potentially hazardous and prone to significant damage, including possible collapse, in a moderate to major earthquake.

The provisions of this division are minimum standards for structural seismic resistance established primarily to reduce the risk of life loss or injury on both subject and adjacent properties and will not necessarily prevent loss of life or injury or prevent earthquake damage to an existing building which complies with these standards. The requirement for compliance with these standards does not preclude the utilization, at the building owner's option, of more extensive strengthening method that might further prevent or limit loss of life or injury or building damage. This division shall not require existing electrical, plumbing, mechanical or fire-safety systems to be altered unless they constitute a hazard to life or property.

This division provides systematic procedures and standards for identification and classification of tilt-up concrete wall building based on the current use of the building. Priorities, time periods, and standards are also established under which these buildings are required to be structurally analyzed and strengthened for seismic resistance. Where the analysis determines structural deficiencies, this division requires the building to be strengthened or demolished.

SEC. 91.9102. SCOPE.

(Added by Ord. No. 169,341, Eff. 2/4/94.)

The provisions of this division shall apply to all buildings designed under building codes in effect prior to January 1, 1976, which, on the effective date of this division have tilt-up concrete walls as defined herein.

Buildings within the scope of the division may not be added to or structurally altered or remodeled without first complying with the provisions of this division unless the building official determines that the alteration is minor in nature.

Seismic strengthening in place prior to the effective date of this ordinance shall be evaluated according to the provisions of this division and modified to comply if deficient.

SEC. 91.9103. DEFINITIONS.

(Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

For purposes of this division, the applicable definitions in CBC Sections 1602, 1902, 2302 and Section 11.2 of ASCE 7, and the following shall apply: **(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)**

COMMENCED CONSTRUCTION. Construction pursuant to a valid building permit has progressed to the point that one of the called inspections as required by the Department has been made and the work for which the inspection has been called has been judged by the Department to be substantial and has been approved by the Department.

DEPARTMENT. The Department of Building and Safety.

ESSENTIAL BUILDING. For purposes of this division, any building housing a hospital or other medical facility having surgery or emergency treatment areas, fire or police stations, municipal government disaster operations, and communication centers.

HISTORICAL BUILDING. Any building designated or currently in the process of being designated as an historical building by an appropriate federal, state or city jurisdiction.

TILT-UP CONCRETE WALL. A form of precast concrete panel construction either cast in the horizontal position at the site and after curing, lifted and moved into place in a vertical position, or cast off-site in a fabricator's shop.

SEC. 91.9104. RATING CLASSIFICATIONS.

(Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.)

The rating classification as exhibited in Table No. 91-A is hereby established and each building within the scope of this division shall be placed in one rating classification by the Department. The total occupant load as determined by CBC Section 1004.1 for the entire building plus the occupant load of any adjacent building, which interconnects with the subject building or uses the subject building for exiting purposes, shall be used to determine the rating classification.

SEC. 91.9105. GENERAL REQUIREMENTS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

The owner of each building within the scope of the division shall cause an investigation of the existing construction and a structural analysis to be made of the building by a civil or structural engineer or architect licensed by the State of California, and if the building does not meet the minimum standards specified in this division, the owner shall cause it to be structurally altered to conform to such standards or cause the building to be demolished.

The owner of a building within the scope of this division shall comply with the requirements set forth above by submitting to the Department for review within 275 days after the service of the order the following:

1. A structural analysis, subject to approval by the Department within the 275 day time period, which demonstrates that the building meets the minimum requirements of this division, or
2. A structural analysis and plans for the proposed structural alterations of the building necessary to comply with the minimum requirements of this division, or
3. Plans for the demolition of building. After plans are submitted and approved by the Department, the owner shall obtain a building permit, commence and complete the required construction or demolition within the time limits set forth in Table No. 91-B. These time limits shall begin to run from the date the order is served in accordance with Sections 91.9106.1 and 91.9106.2 of this Code. Vacating a building shall not be deemed as complying with the requirements of this division.

SEC. 91.9106. ADMINISTRATION.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.9106.1. Service of Order. When the Department determines that a building is within the scope of this division, the owner shall comply with Section 91.9105 of this Code. If the owner does not comply, the Department shall issue an order as provided in Section 91.9106.2 to the owner of each building with the minimum time periods for service of such orders set forth in Table No. 91-C. The minimum time period for the service of such orders shall be measured from the effective date of this division.

91.9106.2. Contents of Order. **(Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)** The order shall be in writing and may be given either by personal delivery thereof to the owner or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to the owner as shown on the last equalized assessment roll. Service by mail shall be deemed to have been completed at the time of deposit in the post office. The failure of any owner to receive such notice shall not affect in any manner the validity of any of the proceedings taken thereunder. Proof of giving any notice may be made by an affidavit of any employee of the City which shows such service in conformity with this section. Board action, Department administrative action, other correspondence between the City and the building owner or building owner's representative, or other evidence of knowledge of notification shall also be deemed as proof of giving notice.

The order shall specify that the building has been determined by the Department to be within the scope of this division and, therefore, is required to meet the minimum seismic standards of this division. The order shall specify the rating classification of the building and shall be accompanied by a copy of Section 91.9105, which sets forth the owner's alternatives and time limits for compliance.

91.9106.3. Appeal from Order. The owner of the building may appeal the Department's determination that the building is within the scope of this division to the Board of Building and Safety Commissioners. Such appeal shall be filed with the Board within 60 days of the service date of the order described in Section 91.9106.2. Such appeal shall be made in writing upon appropriate forms provided therefor by the Department, and the grounds thereof shall be stated clearly and concisely. Each appeal shall be accompanied by a filing fee as set forth in Table No. 4-A of Division 4 of Article 8 of Chapter IX of the Los Angeles Municipal Code.

91.9106.4. Recordation. (Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) At the time that the Department serves the aforementioned order, the Department shall file with the Office of the County Recorder a certificate stating that the subject building is within the scope of this division. The certificate shall also state that the owner thereof has been ordered to structurally analyze the building and to structurally alter or demolish it when the Department determines the building is not in compliance with this division.

If the building is either demolished, found not to be within the scope of this division, or is structurally capable of resisting minimum seismic forces required by this division as a result of structural alterations or an analysis, the Department shall file with the Office of the County Recorder a certificate terminating the status of the subject building as being classified within the scope of this division.

91.9106.5. Enforcement. If the owner of the subject building fails to comply with any order issued by the Department pursuant to this division within any of the time limits set forth in Section 91.9105, or within any additional time limits as may have been granted by the Board, the Department may order that the building be vacated and subsequently ordered to be demolished in accordance with the provisions of Section 91.8903 of this Code. The Superintendent of Building shall have the authority to grant two one-year extensions in cases of extreme hardship.

SEC. 91.9107. HISTORICAL BUILDINGS.

(Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

Qualified historical buildings may utilize alternate building standards or deviations from this division to preserve their original or restored architectural elements and features. See Section 91.8119 of this Code.

SEC. 91.9108. ANALYSIS AND DESIGN.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

For the purpose of this section, "**anchorage system(s)**" shall mean all structural elements, which supports the wall in the lateral direction, including wall anchorage and continuity tie (cross-tie) connectors in subdiaphragms and main diaphragms for retrofit and repairs.

91.9108.1. Wall Panel Anchorage. Concrete walls shall be anchored to all floors and roofs which provide lateral support for the wall. The anchorage shall provide a positive direct connection between the wall and floor or roof construction capable of resisting a horizontal force equal to 30 percent of the tributary wall weight for all buildings, and 45 percent of the tributary wall weight for essential buildings, or a minimum force of 250 pounds per linear foot of wall, whichever is greater. The required anchorage shall be based on the tributary wall panel assuming simple supports at floors and roof.

EXCEPTION: Alternate design may be approved by the Superintendent when justified by well established principles of mechanics.

91.9108.2. Special Requirements for Wall Anchors and Continuity Ties. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The steel elements of the wall anchorage systems and continuity ties shall be designed by the allowable stress design method using a load factor of 1.7. The 1/3 stress increase permitted by CBC Section 1605.3.1.1 shall not be permitted for materials using allowable stress design methods.

The strength design shall be per Section 17.2.3 of ACI 318-14, unless modified by CBC Section 1905.1.8.

Wall anchors shall be provided to resist out-of-plane forces, independent of existing shear anchors.

EXCEPTION: Existing cast-in-place shear anchors may be used as wall anchors if the tie element can be readily attached to the anchors and if the engineer or architect can establish tension values for the existing anchors through the use of approved as-built plans or testing, and through analysis showing that the bolts are capable of resisting the total shear load while being acted upon by the maximum tension force due to earthquake. Criteria for analysis and testing shall be determined by the Superintendent.

Expansion anchors are not allowed without special approval of the Superintendent. Attaching the edge of plywood sheathing to steel ledgers is not considered as complying with the positive anchoring requirements of the Code; and attaching the edge of steel decks to steel ledgers is not considered as providing the positive anchorage of this Code unless testing and/or analysis are performed, which establish shear values for the attachment perpendicular to the edge of the deck.

91.9108.3. Development of Anchor Loads into the Diaphragm. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Development of anchor loads into roof and floor diaphragms shall comply with LAMC Subsection 91.1613.5.3 and Section 12.11 of ASCE 7.

EXCEPTION: If continuously tied girders are present, then the maximum spacing of the continuity ties is the greater of the girder spacing or 24 feet (7315 mm).

In wood diaphragms, anchorage shall not be accomplished by use of toe nails or nails subject to withdrawal, nor shall wood ledgers, top plates or framing be used in cross-grain bending or cross-grain tension. The continuous ties required by LAMC Subsection 91.1613.5.3 and Section 12.11 of ASCE 7 shall be in addition to the diaphragm sheathing.

Lengths of development of anchor loads in wood diaphragms shall be based on existing field nailing of the sheathing unless existing edge nailing is positively identified on the original construction plans or at the site.

At reentrant corners, continuity collectors may be required for existing return walls not designed as shear walls, to develop into the diaphragm a force equal to the lesser of the rocking or shear capacity of the return wall, or the tributary shear, but not exceeding the capacity of the diaphragm. Shear anchors for the return wall shall be commensurate with the collector force. If a truss or beam, other than rafters or purlins, is supported by the return wall or by a column integral with the return wall, an independent secondary column, is required to support the roof or floor members whenever rocking or shear capacity of the return wall is governing.

Seismic deflection shall be determined at the return walls, and fins/canopies at entrances, to ensure deflection compatibility with the diaphragm, by either seismically isolating the element or attaching the element and integrating its load into the diaphragm.

91.9108.4. Anchorage at Pilasters. (Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.) Anchorage of pilasters shall be designed for the tributary wall anchoring load per Section 91.9108.1 of this Code, considering the wall as a two-way slab. The edge of the two-way slab shall be considered "**fixed**" when there is continuity at pilasters, and considered "**pinned**" at roof or floor levels. The pilasters or the walls immediately adjacent to the pilasters shall be anchored directly to the roof framing such that the existing vertical anchor bolts at the top of the pilasters are by-passed without causing tension or shear failure at the top of the pilasters.

EXCEPTION: If existing vertical anchor bolts at the top of the pilasters are used for the anchorage, then additional exterior confinement shall be provided.

The minimum anchorage at a floor or roof between the pilasters shall be that specified in Section 91.9108.1 of this Code.

91.9108.5. Symmetry. Symmetry of connectors in the anchorage system is required. Eccentricity may be allowed when it can be shown that all components of forces are positively resisted and justified by calculations or tests.

91.9108.6. Minimum Roof Member Size. Wood members used to develop anchorage forces to the diaphragm must be at least 3x for new construction and replacement. All such members must be checked for gravity and earthquake as part of the wall anchorage system. For existing buildings, the member check shall be without the 1/3 stress increase per Section 91.9108.2.

91.9108.7. Combination of Anchor Types. To repair and retrofit existing buildings, a combination of different anchor types of different behavior or stiffness shall not be permitted. The capacity of the new and existing connectors cannot be added.

91.9108.8. Prohibited Anchors. Usage of connectors that were bent and/or stretched from the intended use shall be prohibited.

91.9108.9. Crack and Damage Repairs, Evaluation of Existing Structural Alterations. The engineer shall report any observed structural conditions and structural damage that have imminent life safety effects on the buildings and recommend repairs. Evaluations and repairs shall be reviewed and approved by the Department. The engineer shall also evaluate the effects of alterations such as openings cut in existing wall panels without a permit, that may present immediate life safety hazard and correct when necessary.

91.9108.10. Miscellaneous. Existing mezzanines relying on the tilt-up walls for vertical and/or lateral support shall be anchored to the walls for the tributary mezzanine load. Walls depending on the mezzanine for lateral support shall be anchored per Sections 91.9108.1, 91.9108.2 and 91.9108.3.

EXCEPTION: Existing mezzanines that have independent lateral and vertical support need not be anchored to the walls.

Existing interior masonry or concrete walls not designed as shear walls, that extend to the floor above or to the roof diaphragm shall also be anchored for out-of-plane forces per Sections 91.9108.1, 91.9108.2 and 91.9108.3 of this Code. In the in-plane direction, the walls may be isolated or shall be developed into the diaphragm for a lateral force equal to the lesser of the rocking or shear capacity of the wall, or the tributary shear but not exceeding the diaphragm capacity.

SEC. 91.9109. MATERIALS OF CONSTRUCTION.

(Added by Ord. No. 169,341, Eff. 2/4/94.)

All materials permitted by this Code, including their appropriate allowable stresses and those existing configurations of materials specified in Division 88 of this Code, may be utilized to meet the requirements of this division.

SEC. 91.9110. INFORMATION REQUIRED ON PLANS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

91.9110.1. General. In addition to the seismic analysis required elsewhere in this division, the licensed engineer or architect responsible for the seismic analysis of the building shall record the information required by this section on the approved plans.

91.9110.2. Information Required. The plans shall accurately reflect the results of the engineering investigation and design and show all pertinent dimensions and sizes for plan review and construction. The following shall be provided:

1. Floor plans and roof plans shall show existing framing construction, diaphragm construction, proposed wall anchors, cross-ties and collectors. Existing nailing, anchors, ties and collectors shall also be shown on the plans if these are part of the design, and these structural elements need to be verified in the field.
2. At elevations where there are alterations or damage, details shall show roof and floor heights, dimensions of openings, location and extent of existing damage, and proposed repair.
3. Typical wall panel sections with panel thickness, height, location of anchors shall be provided.
4. Details shall include existing and new anchors and the method of development of anchor forces into the diaphragm framing; existing and/or new cross-ties; existing and/or new or improved support of roof and floor girders at pilasters or walls.

91.9110.3. Engineer's or Architect's Statement. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The responsible engineer or architect shall state on the approved plans, the following:

1. I am responsible for this building's seismic strengthening design in compliance with the minimum seismic resistance standards of Division 91 of the Los Angeles Building Code.

and when applicable:

2. The Registered Deputy Inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me as required by Section 91.1704 of the Los Angeles Building Code.

SEC. 91.9111. REQUIRED BUILDING MAINTENANCE.

(Added by Ord. No. 169,341, Eff. 2/4/94.)

Every building within the scope of this division which has been analyzed to demonstrate compliance or structurally altered to comply with the minimum earthquake standards in this division shall be maintained in conformity with the requirements of this division in effect at the time of such analysis or structural alteration.

SEC. 91.9112. VIOLATIONS – PENALTIES FOR DISREGARDING DEPARTMENT ORDERS.

(Added by Ord. No. 169,341, Eff. 2/4/94.)

Notwithstanding any other provisions of this Code to the contrary, it shall be unlawful for any person, firm or corporation to maintain, use or occupy any building within the scope of this division which does not meet the minimum earthquake standards specified in this division.

Any person who violates or causes or permits another person to violate this provision is guilty of a misdemeanor. Any person includes an owner, lessor, sublessor, manager, or person in control of a building subject to this division. This term shall not include any person who is merely a tenant or other individual occupying any dwelling unit, efficiency dwelling unit, guest room or suite in a building. The legal owner of a building is that person, firm, corporation, partnership, or other entity whose name or title appears on the record with the Los Angeles County Recorder's Office, as well as all successors or assignees of these persons.

EXCEPTION: This section shall not comply if alteration or repair work has commenced in order to bring the building into compliance with requirements of this

division, and such work is proceeding in accordance with the time limits set forth in any order of the department or determination of the board.

**TABLE NO. 91-A
RATING CLASSIFICATIONS**

Classification	Occupant Load
Essential	N/A
Group I	300 or more
Group II	100 to 299
Group III	50 to 99
Group IV	Less than 50

**TABLE NO. 91-B
TIME LIMITS FOR COMPLIANCE**

Obtain Building Permit Within	Commence Construction Within	Complete Construction Within
365 days	545 days	Three years

**TABLE NO. 91-C
SERVICE PRIORITIES**

Rating Classification	Minimum Time Period Before Service of Order
Group I & Essential (Highest Priority)	30 days
Group II	90 days
Group III	240 days
Group IV (Lowest Priority)	1 year

DIVISION 92

VOLUNTARY – EARTHQUAKE HAZARD REDUCTION IN EXISTING WOOD FRAME RESIDENTIAL BUILDINGS WITH WEAK CRIPPLE WALLS AND UNBOLTED SILL PLATES

(Division 92 Added by Ord. No. 171,259, Eff. 8/30/96.)

Section
91.9201 General.
91.9202 Definitions.
91.9203 Structural Weaknesses.
91.9204 Strengthening Requirements.
91.9205 Quality Control.

SEC. 91.9201. GENERAL.

(Added by Ord. No. 171,259, Eff. 8/30/96.)

91.9201.1. Purpose. The provisions of this division are intended to promote public safety and welfare by reducing the risk of earthquake-induced damage to existing wood-framed residential buildings. The voluntary minimum standards contained in this division shall substantially improve the seismic performance of these residential buildings but will not necessarily prevent all earthquake damage. When fully followed, these standards will strengthen the portion of the structure that is most vulnerable to earthquake damage.

Prior to 1960, most wood frame residential buildings were built with raised wood floors supported by short wood stud walls known as cripple walls. These cripple walls are typically braced with weak seismic materials such as portland cement plaster or horizontal wood siding. In addition, wood frame buildings built under building codes in effect prior to July 1938 were not required to be bolted to their foundations. Recent earthquakes have shown that if a building has weak cripple walls or is unbolted, it may fall off its foundation even in moderate earthquakes. Fallen buildings have collapsed, caught fire or needed extensive repairs to restore their occupancy.

This division sets prescriptive standards for strengthening of underfloor enclosures that shall be permitted by the Superintendent of Building without requiring plans or calculations prepared by an architect or an engineer. This division also provides a design standard for the use of alternate materials or an alternate method of construction in lieu of the prescriptive standards. Construction documents for strengthening using alternate materials or methods shall be prepared by an architect or engineer.

91.9201.2. Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of this division may be applied to light wood frame Group R Occupancies with no more than four dwelling units when they contain one or more of the structural weaknesses specified in LAMC Subsection 91.9203.1.

The provisions of this division do not apply to the buildings or building elements, listed below. These buildings or elements require analysis by an engineer or architect in accordance with Division 16, Article 1, Chapter IX of the LAMC or other approved standards to determine appropriate strengthening.

1. Buildings with a lateral force resisting system using poles or columns embedded in the ground.
2. Cripple walls that exceed four feet (1234 mm) in height.
3. Buildings exceeding three stories in height and any three-story building with cripple wall studs exceeding 14 inches (360 mm) in height.

4. Buildings, or portions of buildings, constructed on a concrete slab on grade or constructed on or into a slope steeper than three horizontal to one vertical.
5. Buildings where the Superintendent of Building determines that conditions exist that are beyond the scope of the requirements of this division.

The standard details approved by the Superintendent of Building and these prescriptive provisions are not intended to be the only acceptable strengthening methods permitted. Alternate details and methods shall be permitted when approved by the Superintendent of Building. Qualified Historical Buildings shall be permitted to use alternate building regulations of LAMC Section 91.8119 in order to preserve their original or restored architectural elements and features.

91.9201.3. Alternative Design Procedures. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) When analysis by an engineer or architect is required or provided for a building within the scope of this division, that analysis shall be in accordance with all requirements of this Code except as provided in this division. The design shall provide strengthening for any structural weakness listed in LAMC Section 91.9203 that is at least equivalent to that provided by the prescriptive requirements of this division with respect to strength, deflection, and capacity. The Superintendent of Building may require that sufficient evidence be submitted to substantiate that equivalence. The base shear may be determined in accordance with the following:

$$V = 0.1375 W \quad (92-1)$$

Where:

V = The total design lateral force or shear at the base.

W = The total seismic dead load defined in Section 12.7.2 of ASCE 7.

SEC. 91.9202. DEFINITIONS.

(Added by Ord. No. 171,259, Eff. 8/30/96.)

For the purpose of this division, in addition to the applicable definitions, symbols and notations in this Code, certain additional terms are defined as follows:

ADHESIVE ANCHOR is a fastener placed in hardened concrete or masonry that derives its holding strength from a chemical adhesive compound placed between the wall of the hole and the embedded portion of the anchor.

ANCHOR SIDE PLATE is a metal plate or plates used to connect a sill plate to the side of a concrete or masonry stem wall.

CRIPPLE WALL is a wood-framed stud wall extending from the top of the foundation to the underside of the lowest floor framing.

EXPANSION ANCHOR is a mechanical fastener placed in hardened concrete or assembled masonry, designed to expand in a self-drilled or pre-drilled hole of a specified size and engage the sides of the hole in one or more locations to develop shear and/or tension resistance to applied loads without grout, adhesive or drypack.

PERIMETER FOUNDATION is a foundation system which is located under the exterior walls of a building.

SNUG-TIGHT is as tight as an individual can torque a nut on a bolt by hand using a wrench with a 10-inch (254 mm) long handle and the point at which the full surface of the plate washer is contacting the wood member and slightly indents the wood surface.

UNREINFORCED MASONRY includes adobe, burned clay, concrete or sand-lime brick, hollow clay or concrete block, hollow clay tile, rubble, cut stone and unburned clay masonry walls in which the area of reinforcement is less than 50 percent of the minimum steel ratios required for reinforced masonry.

SEC. 91.9203. STRUCTURAL WEAKNESSES.

(Added by Ord. No. 171,259, Eff. 8/30/96.)

91.9203.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) For the purpose of this division, structural weaknesses shall be as specified below.

1. Sill plates or floor framing which are supported directly on the ground without an approved foundation system.
2. A perimeter foundation system which is constructed of wood posts supported on isolated pad footings.
3. Perimeter foundation systems that are not continuous.

EXCEPTIONS:

- A. Existing single-story exterior walls not exceeding 10 feet (3084 mm) in length forming an extension of floor area beyond the line of an existing continuous perimeter foundation.
 - B. Porches, storage rooms and similar spaces not containing fuel-burning appliances.
4. A perimeter foundation system which is constructed of unreinforced masonry.
 5. Sill plates which are not connected to the foundation or are connected with less than what is required by LAMC Subdivision 91.9204.3.1.
 6. Cripple walls that are not braced in accordance with the requirements of LAMC Subsection 91.9204.4 and LAMC Table 92-A.

SEC. 91.9204. STRENGTHENING REQUIREMENTS.

(Added by Ord. No. 171,259, Eff. 8/30/96.)

91.9204.1. General.

91.9204.1.1. Scope. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The structural weaknesses noted in LAMC Section 91.9203 shall be strengthened in accordance with the requirements of this section. Strengthening work shall be allowed to include both new construction and alteration of existing construction. Except as provided here, all strengthening work and materials shall comply with the applicable provisions of this Code. All prescribe nailing in this Division shall be common nails. Alternate methods of strengthening shall be allowed provided the systems are designed by an engineer or architect and approved by the Superintendent of Building.

91.9204.1.2. Condition of Existing Wood Materials. All existing wood materials which will be a part of the strengthening work shall be in a sound condition and free from defects which substantially reduce the capacity of the member. Any wood material found to contain fungus infection shall be removed and replaced with new material. Any wood material found to be infested with insects or to have been infested shall be strengthened or replaced with new materials to provide a net dimension of sound wood at least equal to its undamaged original dimension.

91.9204.1.3. Floor Joists Not Parallel to Foundations. Floor joists framed perpendicular or at an angle to perimeter foundations shall be restrained by either a nominal two-inch (51 mm) wide continuous rim joist or a nominal two-inch (51 mm) wide full depth blocking between alternate joists in one- and two-story buildings, and between each joist in three-story buildings. Blocking for multistory buildings must occur at each joist space above a braced cripple wall panel.

Existing connections at the top edge of an existing rim joist or blocking need not be verified. The bottom edge connection to either the foundation sill plate or top plate of a cripple wall shall be verified unless a supplemental connection is provided. The minimum existing bottom edge connection shall consist of 8d toe nails spaced six inches (152 mm) apart for a continuous rim joist or three 8d toe nails per block. When this minimum bottom edge connection is not present, or is not verified, a supplemental connection shall be provided.

When an existing continuous rim joist or the minimum existing blocking does not occur, new 1-1/8 inch (29 mm) wood structural panel blocking installed tightly between floor joists and nailed with 10d common nails at four inches on center to the sill or wall top plate shall be provided at the inside face of the cripple wall. In lieu of 1-1/8 inch (29 mm) wood structural panel blocking, tight fitting, full or near full depth two inches nominal width (51 mm) lumber blocking shall be allowed provided it does not split during installation. New blocking is not required where it will interfere with vents or plumbing which penetrates the wall.

91.9204.1.4. Floor Joists Parallel to Foundations. Where existing floor joists are parallel to the perimeter foundations, the end joist shall be located over the foundation and, except for required ventilation openings, shall be continuous and in continuous contact with any existing foundation sill plate or top plate of the cripple wall. Existing connections at the top edge connection of the end joist need not be verified; however, the bottom edge connection to either the foundation sill plate or the top plate of a cripple wall shall be verified unless a supplemental connection is provided. The minimum bottom edge connection shall be 8d toe nails spaced six inches (152 mm) apart. If this minimum bottom edge connection is not present or is not verified, a supplemental connection shall be provided.

91.9204.1.5. Supplemental Connections. Supplemental connections shall provide sufficient strength to transfer the seismic forces. Framing anchors of minimum 18 gauge steel and 12 approved fasteners may be considered to meet this requirement when spaced 32 inches (813 mm) on center for one story buildings, 24 inches (610 mm) on center for two story buildings and 16 inches (406 mm) on center for three story buildings.

EXCEPTION: A supplemental connection is not required when:

1. The structural wood panel sheathing extends from the sill plate to the rim joist or blocking above.
2. The floor sheathing is nailed directly into the sill or top plate of the cripple wall.

91.9204.1.6. Single Top Plate Ties. (Added by Ord. No. 172,018, Eff. 5/21/98.) When a single top plate exists in the cripple wall, all end joints in the top plate shall be tied. Ties shall be connected to each end of the discontinuous top plate and shall be equal to one of the following:

1. 3-inch by 6-inch (76 mm by 152 mm) by 0.036-inch-thick (0.9 mm) galvanized steel and nailed with six 8d nails at each end.
2. 1-1/2 inches (38 mm) by 12-inch (305 mm) by 0.058 inches (1.47 mm) galvanized steel nailed with six 16d nails at each end.
3. 2-inch by 4-inch by 12-inch wood blocking nailed with six 16d nails at each end.

91.9204.2. Foundations.

91.9204.2.1. New Perimeter Foundations. (Amended by Ord. No. 185,587, Eff. 7/16/18.) New perimeter foundations shall be provided for structures with the structural weaknesses noted in Items 1 and 2 of LAMC Subsection 91.9203.1. Soil investigations or geotechnical studies are not required for this work unless the building shows signs of excessive settlement or creep.

91.9204.2.2. Foundation Evaluation by Engineer or Architect. Partial perimeter foundations or unreinforced masonry foundations shall be evaluated by an engineer or architect for the force levels noted in Formula (92-1). Test reports or other substantiating data to determine existing foundation material strengths shall be submitted for review. When approved by the Superintendent of Building, these foundation systems may be strengthened in accordance with the recommendations included with the evaluation in lieu of being replaced.

EXCEPTION: In lieu of testing existing foundations to determine material strengths and when approved by the Superintendent of Building, a new nonperimeter foundation system, designed for the forces noted in Formula (92-1), may be used to resist all exterior wall lateral forces.

91.9204.2.3. Details for New Perimeter Foundations. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) All new perimeter foundations shall be continuous and constructed according to the standards for new buildings.

EXCEPTIONS:

1. When approved by the Superintendent of Building, the existing clearance between existing floor joists or girders and existing grade below the floor need not comply with CBC Section 2304.11.2.1. This exception shall not be permitted when buildings are relocated on new foundations.
2. When approved by the Superintendent of Building, and when designed by an engineer or architect, partial perimeter foundations may be used in lieu of a continuous perimeter foundation.

91.9204.3. Foundation Sill Plate Anchorage.

91.9204.3.1. Existing Perimeter Foundations. (Amended by Ord. No. 185,587, Eff. 7/16/18.) When the building has an existing continuous perimeter foundation, all perimeter wall sill plates shall be connected to the foundation in accordance with LAMC Table 92-A and this section.

Anchors shall be installed with the plate washer installed between the nut and the sill plate. The nut shall be tightened to a snug-tight condition after curing is complete for adhesive anchors and after expansion wedge engagement for expansion anchors. The installation of nuts on all anchors shall be subject to verification by the Superintendent of Building. Torque testing shall be performed for 25 percent of all adhesive or expansion anchors. Minimum test values shall be 30 foot pounds (41 N-m) for 1/2-inch (12.7 mm) and 40 foot pounds (55 N-m) for 5/8-inch (15.9 mm) diameter anchors.

Anchor side plates shall be permitted when conditions prevent anchor installation vertically through the sill plate. Anchor side plates shall be spaced as required for adhesive or expansion anchors but only one anchor side plate is required on individual pieces of sill plate less than 32 inches (813 mm) in length. Wood structural panel shims shall be used on sill plates for single plate anchor side plates when the foundation stem wall is from 3/16 inch (4.8 mm) to 3/4 inch (19 mm) wider than the sill plate. The shim length shall extend a minimum of two inches (50.8 mm) past each end of the anchor side plate. Two plate anchor side plates shall be used when the total thickness of the required shim exceeds 3/4 inch (19 mm).

All anchor side plates, which use lag or wood screws shall pre-drill the sill plate to prevent splitting as required by CBC Section 2304.9. Lag or wood screws shall be installed in the center of the thickness of the existing sill plate.

Expansion anchors shall not be used in unreinforced masonry or concrete or masonry grout of poor quality. Adhesive anchors shall be required when expansion anchors will not tighten to the required torque or their installation causes surface cracking of the foundation wall.

91.9204.3.2. Placement of Anchors. Anchors shall be placed within 12 inches (305 mm), but not less than nine inches (229 mm), from the ends of sill plates and shall be placed near the center of the stud space closest to the required spacing. New sill plates may be installed in pieces when necessary because of existing conditions. The minimum length of new sill plate pieces shall be 30 inches (762 mm).

EXCEPTION: Where physical obstructions such as fireplaces, plumbing or heating ducts interfere with the placement of an anchor, the anchor shall be placed as close to the obstruction as possible, but not less than nine inches (229 mm) from the end of the plate. Center-to-center spacing of the anchors shall be reduced as necessary to provide the minimum total number of anchors required based on the full length of the wall. Center-to-center spacing shall not be less than 12 inches (305 mm).

91.9204.3.3. New Perimeter Foundations. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Sill plates for new perimeter foundations shall be anchored as required by CBC Chapter 19.

91.9204.4. Cripple Wall Bracing.

91.9204.4.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Exterior cripple walls, not exceeding 4 feet (1219.2 mm) in height shall use the prescriptive bracing method listed below. Cripple walls more than 4 feet (1219.2 mm) in height require analysis by an engineer or architect in accordance with Division 16, Article 1, Chapter IX of the LAMC.

91.9204.4.1.1. Sheathing Requirements. Wood structural panel sheathing shall not be less than 15/32-inch (12 mm) thick. When used, plywood panels shall be constructed of five or more plies. All wood structural panels shall be nailed with 8d common nails spaced four inches (102 mm) on center at all edges and at 12 inches (305 mm) on center at each intermediate support with not less than two nails for each stud. Nails shall be driven so that their head or crown is flush with the surface of the sheathing and shall penetrate the supporting member a minimum of 1-1/2 inch (38 mm). When a nail fractures the surface, it shall be left in place and not counted as part of the required nailing. A new 8d nail shall be located within two inches (51 mm) of the discounted nail and hand driven flush with the sheathing surface.

EXCEPTION: No. 6 × 1-1/2 inch (38 mm) wood screws may be used for sheathing nailing when bracing materials are installed on the interior face of studs and cement plaster or other brittle finishes are on the exterior of the sheathed wall.

All horizontal joints must occur over nominal two-inch by four-inch (51 mm by 102 mm) blocking installed with the nominal four-inch (102 mm) dimension against the face of the plywood. All vertical joints must occur over studs. Vertical joints at adjoining pieces of wood structural panels shall be centered on existing studs such that there is a minimum 1/8 inch (3.2 mm) between the panels. Nails shall be placed a minimum of 1/2 inch (12.7 mm) from the edges of the existing stud. When such edge distance cannot be maintained because of the width of the existing stud, a new stud shall be added adjacent to the existing and connected with 16d common nails at eight inches (206 mm) on center. A minimum of three such nails shall be provided.

91.9204.4.2. Distribution and Amount of Bracing. (Amended by Ord. No. 185,587, Eff. 7/16/18.) See LAMC Table 92-A for the distribution and amount of bracing required. Bracing for a building with three or more floor levels above cripple wall studs exceeding 14 inches (355.6 mm) in height must be designed in accordance with Division 16, Article 1, Chapter IX of the LAMC.

The braced panel must be at least two times the height of the cripple stud wall but not less than 48 inches (1219 mm) in width. All panels along a wall shall be nearly equal in length and shall be nearly equally spaced along the length of the wall. Braced panels at ends of walls shall be located as near the end as possible.

Where physical obstructions such as fireplaces, plumbing or heating ducts interfere with the placement of cripple wall bracing, the bracing shall then be placed as close to the obstruction as possible. The total amount of bracing required shall not be reduced because of obstructions but the required length of bracing need not exceed the length of the wall.

Underfloor ventilation openings shall be maintained in accordance CBC Section 1203. Braced panels may include underfloor ventilation openings when the height of the solid portion of the panel meets or 75% of the height of the cripple stud wall. When the minimum amount of bracing prescribed in LAMC Table 92-A cannot be installed due to obstructions along any wall, the bracing must be designed by an architect or engineer in accordance with CBC Section 1203.3.

91.9204.4.3. Stud Space Ventilation. When bracing materials are installed on the interior face of studs forming an enclosed space between the new bracing and existing exterior finish, each braced stud space must be ventilated. Adequate ventilation and access for future inspection shall be provided by drilling on two-inch to three-inch (51 mm to 76 mm) diameter round hole through the sheathing nearly centered between each stud at the top and bottom of the cripple wall. Such holes should be spaced a minimum of one-inch (25 mm) clear from the sill or top plates. In stud spaces containing sill bolts, the hole shall be located on the center line of the sill bolt but not closer than one-inch (25 mm) clear from the nailing edge of the sheathing.

When existing blocking occurs within the stud space, additional ventilation holes shall be placed above and below the blocking or the existing block shall be removed and a new nominal two-inch (51 mm) by four-inch (102 mm) block installed with the nominal four-inch (102 mm) dimension against the face of the plywood. For stud heights less than 18 inches (457 mm) only one ventilation hole need be provided.

91.9204.4.4. Existing Underfloor Ventilation. Existing underfloor ventilation shall not be reduced without providing equivalent new ventilation as close to the existing as possible. New sheathing may be installed around existing vent openings in braced panels when the length of the panel is increased a distance equal to the length of the vent opening or one stud space minimum.

EXCEPTION: For residential buildings with a post and pier foundation system where a new continuous perimeter foundation system is being installed, ventilation shall be provided in accordance with this Code.

SEC. 91.9205. QUALITY CONTROL.

(Added by Ord. No. 171,259, Eff. 8/30/96.)

91.9205.1. Inspection by the Department. All work shall be subject to inspection by the Superintendent of Building including, but not limited to:

1. Placement and installation of new adhesive or expansion anchors or anchor side plates installed in existing foundations.
2. Placement of required blocking and framing anchors.
3. Installation and nailing of new cripple wall bracing.

The torque testing of sill plate anchors per LAMC Subdivision 91.9204.3.1 shall be performed by the building inspector. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.9205.2. Special Inspection. Special inspection is not required for sill plate anchors installed in existing foundations regulated by the provisions of this division. Any work may be subject to special inspection when required by the Superintendent of Building or when so designated by the architect or engineer of record.

91.9205.3. Structural Observation. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) Structural observation is not required for work done under the prescriptive provisions of this division. When construction documents for strengthening are prepared by an architect or engineer and alternate materials or methods are used, structural observation shall be provided as required in CBC Section 1709.

91.9205.4. Engineer's or Architect's Statement. (Amended by Ord. No. 185,587, Eff. 7/16/18.) When an alternative design is provided per LAMC Subsection 91.9201.3,

the responsible engineer or architect shall place the following statement on the approved plans:

1. "I am responsible for this building's seismic strengthening design for the underfloor cripple walls and sill bolting in compliance with the minimum seismic resistance standards of Division 92, Article 1, Chapter IX of the LAMC."
- or when applicable:
2. "The Registered Deputy Inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me as required by LAMC Section 91.1704."

TABLE 92-A
SILL PLATE ANCHORAGE AND CRIPPLE WALL BRACING ^{1, 2, 3}

Number of Stories above Cripple Walls	Minimum Sill Plate Connection and Maximum Spacing	Amount of Wall Bracing
One Story	Adhesive or expansion anchors shall be 1/2-inch (12.7 mm) minimum diameter spaced at six feet (1829 mm) maximum center to center.	Each end and not less than 50% of the wall length.
Two Story	Adhesive or expansion anchors shall be 1/2-inch (12.7 mm) minimum diameter spaced at four feet (1219 mm) maximum center to center; or 5/8 inch (15.9 mm) spaced at six feet maximum center to center.	Each end and not less than 70% of the wall length.
Three Story	Adhesive or expansion anchors shall be 1/2- inch minimum (12.7 mm) diameter spaced at two feet eight inches (813 mm) maximum center to center; or 5/8-inch minimum (15.9 mm) diameter spaced at four feet (1219 mm) maximum center to center.	100% of the wall length.

1. Plate washers for use with adhesive or expansion anchors shall be two-inch (51 mm) by two- inch (51 mm) by 3/16-inch (4.8 mm) for 1/2-inch (12.7 mm) diameter anchors and 2-1/2-inch (64 mm) by 1/4-inch (6 mm) for 5/8 inch (15.9 mm) diameter anchors.
2. Existing sill plate anchor bolts shall be permitted to provide all or a portion of the sill plate connection requirement if: (Amended by Ord. No. 185,587, Eff. 7/16/18.)

a. the anchor bolt is cast in concrete and in sound condition; and

b. the diameter size and maximum spacing meets or exceeds the requirements of LAMCTable 92-A; and

c. a new plate washer conforming to footnote 1 is installed; and

d. the sill plate is connected to a snug tight condition and torque tested per LAMC Subdivision91.9204.3.1.
3. Anchor side plates shall be permitted when conditions prevent anchor installation vertically through the sill plate.

DIVISION 93

MANDATORY EARTHQUAKE HAZARD REDUCTION IN EXISTING WOOD-FRAME BUILDINGS WITH SOFT, WEAK OR OPEN-FRONT WALLS

(Amended in Entirety by Ord. No. 183,893, Eff. 11/22/15.)

- Section
- 91.9301 Purpose.
- 91.9302 Scope.
- 91.9303 Definitions.
- 91.9304 Priority Designations.
- 91.9305 Compliance Requirements.
- 91.9306 Administration.
- 91.9307 Occupant and Tenant Advisory.
- 91.9308 Historical Buildings.
- 91.9309 Engineering Analysis.
- 91.9310 Information Required on Plans.
- 91.9311 Violation / Penalty.
- 91.9312 Severability.

SEC. 91.9301. PURPOSE.

The purpose of this division is to promote public welfare and safety by reducing the risk of death or injury that may result from the effects of earthquakes on existing wood-frame multi-story buildings with soft, weak or open front walls. In the Northridge Earthquake, many multi-story wood-frame buildings with tuck-under parking performed poorly and collapsed, causing the loss of human life, personal injury and property damage. It has been determined that the structural vulnerability of this building type is typically due to soft, weak or open front walls. This division creates minimum standards to mitigate hazards from these deficiencies. Adherence to these minimum standards will improve the performance of these buildings during earthquakes and reduce, but not necessarily prevent, the loss of life, injury or earthquake-related damage.

SEC. 91.9302. SCOPE.

The provisions of this division shall apply to all existing buildings of wood-frame construction, or wood-frame portions thereof, where:

1. A permit for construction of a new building was applied for before January 1, 1978, or, if no permit can be located, the structure is determined by the Department to have been built under building code standards enacted before January 1, 1978; and
2. The ground floor portion of the structure contains parking or other similar open floor space that causes soft, weak or open-front wall lines, and there exists one or more stories above.
- EXCEPTIONS: This division shall not apply to any building containing three dwelling units or less if the building is used solely for residential purposes. Moreover, notwithstanding any provision of this Code, compliance with this division shall not require existing electrical, plumbing, mechanical or fire-safety systems to be altered to comply with existing code unless they constitute a hazard to life or property.

SEC. 91.9303. DEFINITIONS.

The following words and phrases, whenever used in this division, shall be construed as defined in this section. Words and phrases not defined here shall be construed as defined in Division 2 of this Code.

CRIPPLE WALL is a wood-framed stud wall extending from the top of the foundation wall to the underside of the lowest floor framing of the building.

DWELLING UNIT shall include any individual residential unit within either an R-1 or R-2 occupancy building, including a mixed-occupancy building when part of it is either an R-1 or R-2 occupancy. A dwelling unit shall include the area of a building that is occupied as a dwelling unit, whether the building is approved or unapproved for residential use.

GROUND FLOOR is any floor within the wood-frame portion of a building whose elevation is immediately accessible from an adjacent grade by vehicles or pedestrians. The ground floor portion of the structure does not include any floor that is completely below adjacent grades.

OPEN-FRONT WALL LINE is an exterior wall line, without vertical elements of the lateral force-resisting system, which requires tributary seismic forces to be resisted by diaphragm rotation or excessive cantilever beyond parallel lines of shear walls. Diaphragms that cantilever more than 25 percent of the distance between lines of lateral force resisting elements from which the diaphragm cantilevers shall be considered excessive. Exterior exit balconies of six feet or less in width shall not be considered excessive cantilevers.

QUALIFIED HISTORICAL BUILDING is any building designated or currently in the process of being designated as a "qualified historical building" as defined in Part 8, Title 24 of the California Code of Regulations.

RETROFIT is an improvement of the lateral force-resisting system by alteration of existing structural elements or addition of new structural elements.

SOFT WALL LINE is a wall line, the lateral stiffness of which is less than what is required by story drift limitations or deformation compatibility requirements of this division. In lieu of the engineering analysis required by this division to determine whether a wall line's lateral stiffness is less than the aforementioned story drift limitations or deformation compatibility requirements, a soft wall line may be defined as a wall line in a story where the wall stiffness is less than 70 percent of the stiffness of the exterior wall above for the direction under consideration.

STORY is as defined in this Code, but includes any basement or underfloor space of a building with cripple walls exceeding four feet in height.

STORY STRENGTH is the total strength of all seismic-resisting elements sharing the same story shear in the direction under consideration.

WALL LINE is any length of a wall along a principal axis of the building used to provide resistance to lateral loads.

WEAK WALL LINE is a wall line at the ground floor where the wall strength is less than 80 percent of the strength of the wall above in the direction under consideration.

SEC. 91.9304. PRIORITY DESIGNATIONS.

The Department shall prioritize its enforcement of this division as follows:

- Priority I. Buildings containing 16 or more dwelling units.
- Priority II. Buildings with three stories or more, containing fewer than 16 dwelling units.
- Priority III. Buildings not falling within the definition of Priority I or II.

SEC. 91.9305. COMPLIANCE REQUIREMENTS.

91.9305.1. General. The owner of each building within the scope of this division shall cause a structural analysis to be made of the building by a civil or structural engineer or architect licensed by the state of California, and if the building does not meet the minimum earthquake standards specified in this division, the owner shall cause the building to be structurally altered to conform to such standards or, at the owner's option, cause it to be demolished within the time limits stated in Section 91.9305.2.

91.9305.2. Time Limits for Compliance. (Amended by Ord. No. 184,081, Eff. 2/19/16.) The owner of a building within the scope of this division shall comply with its requirements within the following time limits:

1. Within two (2) years after service of the order described in Section 91.9306, submit to the Department for review and approval:
 - a. A structural analysis and plans which shall demonstrate the building, as is, meets or exceeds the requirements set forth in Section 91.9309; or
 - b. A structural analysis and plans which shall demonstrate that the proposed structural alteration of the building meets or exceeds the requirements set forth in Section 91.9309; or
 - c. Plans for the demolition of the building.
2. Within three and a half (3.5) years after service of the order, obtain all necessary permits for rehabilitation or demolition.
3. Within seven (7) years after service of the order, complete construction or demolition work under all necessary permits.

Time limits for compliance shall be based on the service date of the original order from the Department. Transfer of title shall not change compliance dates.

SEC. 91.9306. ADMINISTRATION.

91.9306.1. Issuance of Order. When the Department determines that a building is within the scope of this division, the Department shall issue an order as described in Section 91.9306.4 to the owner of the building.

91.9306.2. Service of Order. The Department shall serve the order in writing, either personally or by certified or registered mail, upon the owner as shown on the last equalized assessment roll. Service by mail shall be deemed complete at the time of deposit in the post office. Proof of giving notice may be made by an affidavit of an employee of the City that shows service in conformity with this division.

91.9306.3. Failure to Receive Order. Failure of the owner to receive an order shall not relieve the owner of any obligation to comply with this division.

91.9306.4. Contents of Order. The order shall specify that the building has been determined by the Department to be within the scope of this division and, therefore, is required to meet the minimum seismic standards described in Section 91.9309. The order shall specify the priority designation of the building and shall be accompanied by a

copy of Section 91.9305, which sets forth the owner's alternatives and time limits for compliance.

91.9306.5. Appeal from Order. The owner of any building subject to this division may appeal the Department's initial determination that the building is within the scope of this division to the Board of Building and Safety Commissioners. Such appeal shall be filed with the Board within 60 days from the service date of the order. Any such appeal shall be decided by the Board no later than 60 days after the date that the appeal is filed. Such appeal shall be made in writing upon appropriate forms provided by the Department, and the grounds of the appeal shall be stated clearly and concisely. Each appeal shall be accompanied by a filing fee as set forth in Table No. 4-A of Division 4 of Article 8 of Chapter IX of the Los Angeles Municipal Code.

Requests for slight modifications from any other determinations, orders or actions by the Department pursuant to this division shall be made in accordance with the procedures established in Section 98.0403.2 of the Los Angeles Municipal Code.

91.9306.6. Recordation. At the time that the Department serves the order described in this section, the Department shall file with the Office of the County Recorder a certificate stating that the subject building has been determined to be within the scope of this division, and that it has been ordered to be structurally analyzed and structurally altered or demolished (if the owner so decides), pursuant to Section 91.9305.2, if the Department determines that it does not conform to the minimum design standards of this division.

The Department shall file with the Office of the County Recorder a certificate terminating the above recorded status of the subject building if the building is thereafter demolished by owner pursuant to Section 91.9305.2, found not to be within the scope of this division, or is determined to be structurally capable of resisting minimum seismic forces as a result of structural alterations or analysis required by this division.

SEC. 91.9307. OCCUPANT AND TENANT ADVISORY.

91.9307.1. Notification to Tenants and Occupants. When the Department determines that a building falls within the scope of this division, the owner shall advise all current and prospective residential and non-residential tenants, subtenants, lessees, sublessees, or any other person(s) entitled to the use and/or occupancy of the building of such determination. With respect to current and prospective residential tenants, subtenants, lessees, sublessees, or other person(s) entitled to the use and/or occupancy of the building, the property owner shall advise such persons of the Department's determination in a method and written format approved and promulgated by the Los Angeles Housing Department. With respect to current and prospective non-residential tenants, subtenants, lessees, sublessees, or other person(s) entitled to the use and/or occupancy of the building, the owner shall advise such persons of the Department's determination in a method and written format approved and promulgated by the Department. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

91.9307.2. Tenant Habitability Plan. If required by the Rent Stabilization Ordinance, the property owner shall be required to submit to the Los Angeles Housing Department a Tenant Habitability Plan pursuant to Article 2, Chapter XV of the Los Angeles Municipal Code (LAMC Section 152.03 B.). If, upon review of the Tenant Habitability Plan, it is determined by the Los Angeles Housing Department that work required under this division affects the tenantability of any building or residential unit as defined in California Civil Code Section 1941.1, the owner shall be required to pay relocation benefits pursuant to Article 1, Chapter XV of the Los Angeles Municipal Code (LAMC Section 151.09 G.) to any tenant, subtenant, lessee, sublessee, or other person(s) entitled to the use and/or occupancy of the building that is affected by the untenable conditions or displaced from the residential unit. However, the mere undertaking and completion of work performed by the owner pursuant to this division shall not, in and of itself, result in any building or residential unit being deemed untenable or uninhabitable as defined in California Civil Code Section 1941.1. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

SEC. 91.9308. HISTORICAL BULDINGS.

Qualified historical buildings shall comply with requirements of the California Historical Building Code established under Part 8, Title 24 of the California Code of Regulations.

SEC. 91.9309. ENGINEERING ANALYSIS.

91.9309.1. Scope of Analysis. This division requires the alteration, repair, replacement or addition of structural elements and their connections to meet the strength and stiffness in conformance with this Code except as modified herein. The lateral-load-path analysis shall include the resisting elements and connections from the wood diaphragm immediately above any soft, weak or open wall lines to the foundation. Stories above the weak wall line shall be considered in the analysis but need not be modified.

91.9309.2. Design Base Shear and Design Parameters. **(Amended by Ord. No. 184,081, Eff. 2/19/16.)** The design force in a given direction shall be 75% of the design base shear specified in the seismic provision of ASCE 7. The value of response modification coefficient, R, need not be less than 3.5, provided the strengthening systems are not cantilevered column systems and the strengthened structure will not have vertical structural irregularities of either type 1a, 1b, 5a or 5b listed in ASCE 7, "Vertical Structural Irregularities" Table.

91.9309.3. Lateral Vertical Systems. **(Amended by Ord. No. 184,081, Eff. 2/19/16.)** Strengthening systems with concrete walls or masonry walls, or steel braced frames shall not be permitted.

91.9309.4. Horizontal Structural Irregularities in Buildings with Three or More Stories. Structures with three or more stories having horizontal structural irregularities of either type 2, 3, 4, or 5 listed in ASCE 7, "Horizontal Structural Irregularities" Table, shall be altered to meet the additional requirements of those sections referenced in the table for the entire story with weak or open wall lines.

91.9309.5. Alternate Analysis, Base Shear and Design Parameters. Pursuant to Section 91.104.2.6, the Department may approve alternate design methodologies that improve the whole first story seismic performance that are at least equivalent to those prescribed by this division and that achieve the life safety objectives established by this division.

91.9309.6. Additional Anchorage Requirements for Buildings on Hillside. Where any portion of a building within the scope of this division is constructed on or into a slope steeper than one unit vertical in three units horizontal (33-percent slope), the lateral-force-resisting system, at and below the base level diaphragm, shall also be analyzed for the effects of concentrated lateral loads caused at the building base from the hillside conditions and comply with the provisions of Division 94 of the Los Angeles Building Code.

91.9309.7. Story Drift Limitations. The calculated story drift for each retrofitted story shall not exceed the allowable deformation compatible with all vertical load-resisting elements and 0.025 times the story height. The calculated story drift shall not be reduced by the effects of horizontal diaphragm stiffness, but shall be increased when these effects produce rotation. Drift calculations shall be in accordance with ASCE 7 requirements.

91.9309.8. Pole Structures. The effects of rotation and soil stiffness shall be included in the calculated story drift where lateral loads are resisted by vertical elements whose required depth of embedment is determined by pole formulas. The coefficient of subgrade reaction used in deflection calculations shall be based on an approved geotechnical investigation conducted in accordance with approved geotechnical engineering reports.

91.9309.9. P-Delta Effect. The requirements of the Los Angeles Building Code shall apply, except as modified herein. All structural framing elements and their connections not required by the design to be part of the lateral force resisting system shall be designed and detailed to be adequate to maintain support of design dead plus live loads when subject to the expected deformations caused by seismic forces. The stress analysis of cantilever columns shall use an effective length factor of 2.1 for the direction normal to

the axis of the beam.

91.9309.10. Ties, Continuity and Collectors. All parts of the structure included in the scope of analysis shall be interconnected and the connection shall be capable of resisting the seismic force created by the parts being connected as required per the Los Angeles Building Code.

SEC. 91.9310. INFORMATION REQUIRED ON PLANS.

91.9310.1. General. For existing and new construction, the plans and specifications shall be of sufficient clarity to indicate the nature, design methodology, and extent of the proposed work and to show in detail that it will conform to the provisions of this division and the Los Angeles Building Code.

91.9310.2. Engineer's or Architect's Statement. The responsible engineer or architect shall provide the following statements on the approved plans:

1. I am responsible for designing this building's seismic strengthening in compliance with the minimum standards of the Mandatory Earthquake Hazard Reduction In Existing Wood-Frame Buildings with Soft, Weak or Open-Front Walls (Ordinance No. _____)."

SEC. 91.9311. VIOLATION / PENALTY.

Notwithstanding any other provision of this Code to the contrary, it shall be unlawful for any person, firm or corporation to maintain, use or occupy any building within the scope of this division that fails to meet the minimum earthquake standards specified in this division after receiving an order described in Section 91.9306.

Any person who violates or causes or permits another person to violate this division is guilty of a misdemeanor, and shall be subject to prosecution and/or administrative enforcement under the Los Angeles Municipal Code. For purposes of this paragraph, "any person" includes an owner, lessor, sublessor, manager or person in control of a building subject to this division. This term shall not include any person who is merely a tenant or other individual occupying any dwelling unit, efficiency dwelling unit, guest room or suite in a building. The legal owner of a building is that person, firm, corporation, partnership or other entity whose name or title appears on the record with the Office of the County Recorder, as well as all successors or assignees of these persons.

EXCEPTION: This section shall not apply to any building on which work is proceeding in compliance with the time limits set forth in this division, or in compliance with any extensions of time granted by the Department or the Board; or any action, order or determination made by the Department or the Board in the implementation of this division.

SEC. 91.9312. SEVERABILITY.

If any subsection, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction or by reason of any preemptive legislation, such decision or legislation shall not affect the validity of the remaining portions of this ordinance. The City Council hereby declares that it would have adopted this section, and each and every subsection, sentence, clause and phrase thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would be subsequently declared invalid or unconstitutional.

DIVISION 94

VOLUNTARY – EARTHQUAKE HAZARD REDUCTION IN EXISTING HILLSIDE BUILDINGS

(Division 94 Added by Ord. No. 171,258, Eff. 8/30/96.)

Section	Purpose.
91.9401	Purpose.
91.9402	Scope.
91.9403	Definitions.
91.9404	General Requirements.
91.9405	Pre-design Investigation.
91.9406	Analysis and Design.
91.9407	Historical Buildings.
91.9408	Quality Control.
91.9409	Information Required on Plans.

SEC. 91.9401. PURPOSE.

(Amended by Ord. No. 172,592, Eff. 6/28/99, Oper. 7/1/99.)

The purpose of this division is to promote public safety and welfare by reducing the risk of death or injury that may result from the effects of earthquakes on existing hillside buildings constructed on or into slopes in excess of one unit vertical in three units horizontal (33.3% slope). Such buildings have been recognized as life hazardous as a result of partial or complete collapse that occurred during the Northridge Earthquake.

The provisions of this division are minimum standards for structural systems established primarily to reduce the risk of loss of life or injury resulting from earthquakes and will not necessarily prevent loss of life or injury or prevent earthquake damage to an existing building which complies with these standards.

This division provides voluntary retrofit standards under which buildings shall be permitted to be structurally analyzed and retrofitted. When fully followed, these standards will strengthen the portion of the structure that is most vulnerable to earthquake damage.

SEC. 91.9402. SCOPE.

(Added by Ord. No. 171,258, Eff. 8/30/96.)

The provisions of this division may be applied to all existing hillside buildings designed under building codes effective prior to June 19, 1995. If only a portion of the building is supported on or into the slope, these regulations may be applied to the entire building.

Seismic retrofit work as described in this division may be applied to the portion of the structure defined as the base-level-diaphragm and below. Non-habitable accessory buildings, decks not supporting the main building, and existing conditions above the base-level-diaphragm are exempt from these regulations.

Seismic strengthening constructed prior to the effective date of the ordinance may be evaluated in accordance with the provisions of this division.

SEC. 91.9403. DEFINITIONS.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

For the purpose of this division, in addition to the applicable definitions, symbols and notations in this Code, certain additional terms are defined as follows:

BASE (BASE LEVEL) is the level at which the earthquake motions are considered to be imparted to the structure or the level at which the structure as a dynamic vibrator is supported.

BASE-LEVEL-DIAPHRAGM is the floor at, or closest to, the top of the highest level of the foundation.

DIAPHRAGM ANCHORS are assemblies that connect a diaphragm to the adjacent foundation at the uphill diaphragm edge.

DIAPHRAGM BACKSPAN is the horizontal cantilevered distance parallel to the direction of the lateral force, between the outermost vertical lateral force resisting elements and the edge of the diaphragm.

DOWNHILL-DIRECTION. The descending direction of the slope approximately perpendicular to the slope approximately perpendicular to the slope contours. (Amended by Ord. No. 186,488, Eff. 12/27/19.)

FOUNDATION is the concrete or masonry which supports a building, including footings, stem walls, retaining walls, and grade beams.

FOUNDATION EXTENDING IN THE DOWNHILL-DIRECTION. A foundation running downhill and approximately perpendicular to the uphill foundation. (Amended by Ord. No. 186,488, Eff. 12/27/19.)

FOUNDATION, UPHILL is a foundation parallel and closest to the uphill diaphragm edge, as defined herein.

HILLSIDE BUILDING. Any building or portion thereof constructed on or into a slope steeper than one-unit vertical in three-units horizontal (33.3% slope). If only a portion of the building is supported on or into the slope, these regulations apply to the entire building. (Amended by Ord. No. 186,488, Eff. 12/27/19.)

PRIMARY ANCHORS are diaphragm anchors designed for and providing direct connection as described in LAMC Subsections 91.9406.2 and 91.9406.3 between the diaphragm and the uphill foundation. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

RETROFIT is an improvement of the lateral force resisting system of the structure by an alteration of existing or addition of new structural elements.

SECONDARY ANCHORS are diaphragm anchors designed for and providing a redundant diaphragm to foundation connection, as described in LAMC Subsection 91.9406.4. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

UPHILL DIAPHRAGM EDGE is the edge of the diaphragm adjacent to or closest to the highest ground level at the perimeter of the diaphragm.

SEC. 91.9404. GENERAL REQUIREMENTS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Except as modified herein, the analysis and design of the work within the scope of this division shall be in accordance with Division 16, Article 1, Chapter IX of the LAMC.

SEC. 91.9405. PRE-DESIGN INVESTIGATION.

(Added by Ord. No. 171,258, Eff. 8/30/96.)

The engineer or architect shall prepare a pre-design field investigation report in accordance with Department guidelines and shall file the report when the plans are filed for permit. The plans shall include a description of the existing lateral force resisting system at and below the base.

SEC. 91.9406. ANALYSIS AND DESIGN.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

91.9406.1. General. Every hillside building within the scope of this division shall be analyzed, designed, and constructed in accordance with the following provisions.

91.9406.1.1. Base for Seismic Design Defined. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The base for seismic design is defined as follows:

1. **Downhill-Direction.** For seismic forces acting in the downhill-direction, the base of the building shall be the floor at or closest to the top of the highest level of the foundation.

2. **Normal to the Downhill-Direction.** For seismic forces acting normal to the downhill-direction, the distribution of seismic forces over the height of the building using Section 12.8.3 of ASCE 7 shall be determined using the height measured from the top of the lowest level of the building foundation. Retrofitting, however, shall only be required at the base-level-diaphragm and below.

91.9406.1.2. Design Base Shear. The design base shear shall be that required at the time of the original building permit, or not less than 75 percent of the currently required by Section 12.8.1 of ASCE 7, but in no case not less than the following:

$$V = 0.133 W$$

Where:

V = The total design lateral force or shear at the base.

W = The total seismic dead load defined in Section 12.7.2 of ASCE 7.

91.9406.2. Base Shear Resistance in the Downhill-Direction.

91.9406.2.1. General. The base shear in the downhill-direction, including forces from the base-level-diaphragm, shall be resisted through primary anchors from diaphragm struts or collectors provided in the base level framing to the foundation.

91.9406.2.2. Location of Primary Anchors. A primary anchor and diaphragm strut or collector shall be provided in line with each foundation extending in the downhill-direction. Primary anchors and diaphragm struts or collectors shall also be provided where interior vertical lateral force resisting elements occur above and in contact with the base-level-diaphragm.

The base-level-diaphragm shall be provided with primary anchors designed for the tributary forces spaced at a maximum 30 feet (9145 mm) on center. Where the floor below the base extends to the uphill foundation, and the foundation at the base is not adequate to resist the forces from the primary anchors, the base shear may be transferred to that lower level and the primary anchorage made at that lower level. The connection shall be made directly to the foundation. The existing foundation shall be evaluated as specified in LAMC Subsection 91.9406.11. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.9406.3. Seismic Forces on Floor Levels Below the Base in the Downhill- Direction.

91.9406.3.1. General. All floor diaphragm connections between floor diaphragms below the base level diaphragm shall be designed in accordance with the provisions of this section.

91.9406.3.2. Design. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Each floor level below the base defined in LAMC Subdivision 91.9406.1.1 shall be designed for all tributary loads at that level using a minimum seismic force factor not less than the base shear coefficient.

91.9406.3.3. Direct Connections. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Each floor level shall be directly connected to the foundation through a system of primary anchors at that level as required for the base as specified in LAMC Subdivision 91.9406.1.1.

91.9406.4. Secondary Anchors from Diaphragm to Foundation for Seismic Forces at and Below the Base in the Downhill-Direction.

91.9406.4.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) In addition to the anchors required by LAMC Subsections 91.9406.2 and 91.9406.3, the floor diaphragm for levels at and below the base shall be anchored to the uphill foundation at the level of the diaphragm, as specified in this section.

EXCEPTION: Secondary anchors are not required where:

1. the concrete or masonry foundations in the downhill-direction are spaced at not more than 30 feet (9145 mm) on center and extend up to and are directly connected to the base-level-diaphragm for at least 70 percent of the diaphragm depth; or
2. the diaphragm is separated from the mudsill at the uphill foundation by a cripple wall which has anchor bolts and is braced in the plane of the wall and constructed with studs that are no less than 12 inches (305 mm) in height and primary anchors are spaced a maximum of 20 feet (6096 mm) on center; or
3. the deflection of the plywood floor diaphragm between adjacent primary anchors is calculated to be less than 1/4 of an inch (6.4 mm).

91.9406.4.2. Diaphragm Anchors. Secondary anchors required by this section shall be provided at each level at and below the base of the building. Diaphragm anchors shall be fully developed into the diaphragm and be connected to the foundation at the uphill diaphragm edge to develop the forces required by this section.

91.9406.4.3. Anchor Spacing. Secondary anchors required by this section shall be uniformly distributed along the uphill diaphragm edge and shall be spaced a maximum of four feet (1219 mm) on center.

91.9406.4.4. Anchor Capacity for Floor Diaphragms at the Base and Below. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Secondary anchors at the base and below shall be designed for a uniformly distributed mini-mum force equal to the total primary anchorage design force at that level divided by the length of the uphill diaphragm edge, but shall not be less than 300 pounds per lineal foot (4.37 kN/m). The existing foundation need not be checked to resist the additional forces induced by the system of secondary anchors; however, the existing foundation shall be evaluated as specified in LAMC Subsection 91.9406.11.

91.9406.5. Design of Anchorage.

91.9406.5.1. General. Primary and secondary anchors, and diaphragm struts and collectors, shall be designed in accordance with the provisions of this section.

91.9406.5.2. Anchorage. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The structure shall be anchored to the foundation as specified in LAMC Subsections 91.9406.2, 91.9406.3 and 91.9406.4.

91.9406.5.3. Fasteners. All bolted fasteners used to develop connections to wood members shall be provided with square plate washers at all bolt heads and nuts. Washers shall be minimum 3/16 inch (4.8 mm) thick and two inch (51 mm) square for 1/2-inch (12.7 mm) diameter bolts, and 1/4 inch (6.4 mm) thick and 2-1/2 inch (64 mm) square for 5/8 inch (15.9 mm) diameter or larger bolts. Nuts shall be wrench tightened prior to covering.

91.9406.5.4. Fastening. The diaphragm to foundation anchorage shall not be accomplished by the use of toe nailing, nails subject to withdrawal, or wood in cross grain bending or cross grain tension.

91.9406.5.5. Size of Wood Members. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Wood diaphragm struts, collectors, and other wood members connected to primary anchors shall not be less than three-inch (76 mm) nominal width members or doubled two-inch (51 mm) nominal width members. Fastening doubled two-inch (51 mm) nominal width members shall be designed in accordance to the provisions of CBC Chapter 23. Secondary diaphragm anchors as specified in LAMC Subsection 91.9406.4 may be developed through existing 2 inch (50.8 mm) nominal width framing members. The effects of eccentricity on wood members shall be evaluated as required per LAMC Subdivision 91.9406.5.9.

91.9406.5.6. Design. Primary and secondary anchorage, including diaphragm struts, splices, and collectors shall be designed for 125 percent of the tributary force.

91.9406.5.7. Allowable Stress Increase. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The one- third allowable stress increase shall not be permitted for materials using allowable stress design methods.

91.9406.5.8. Seismic Load Factor. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Steel elements of the diaphragm anchorage systems and continuity ties shall be designed by the allowable stress design method using a load factor of 1.7. The strength design specified in CBC Section 1908 using a load factor of 2.0 in lieu of 1.4 for earthquake loading shall be used for the design of embedment in concrete.

91.9406.5.9. Symmetry. All seismic lateral force foundation anchorage and diaphragm strut connections shall be symmetrical. Eccentric connections may be permitted when demonstrated by calculation or tests that all components of force have been provided for in the structural analysis or tests.

91.9406.5.10. Load Path.

91.9406.5.10.1. Primary Anchors. The load path for primary anchors shall be fully developed into the diaphragm and into the foundation. The foundation must be shown to be adequate to resist the concentrated loads from the primary anchors and must be shown to comply with the following:

1. Soil maximum bearing capacity for conventional footings shall be limited to 3000 psf (143.7 kPa) unless an approved geotechnical report permits higher bearing values.

2. Conventional continuous footings shall be analyzed for uplift forces induced by primary anchors.
3. Soil capacities need not be investigated for grade beam and caisson or pile foundations.
4. Shear stress in grade beams and tie beams shall be investigated for vertical component of primary anchor forces. Unless otherwise known, a maximum 2000 psi (13.8 MPa) concrete strength shall be assumed.

91.9406.5.10.2. Secondary Anchors. The load path for secondary anchors need not be developed beyond the connection to the foundation.

91.9406.5.10.3. Above Base Uplift Forces. The load path for uplift forces generated from above the base shall be analyzed and fully developed into the below base structural system.

91.9406.6. Base Shear Resistance Normal to the Downhill-Direction.

91.9406.6.1. General. Lateral force resisting elements acting in the normal to the downhill-direction shall be designed in accordance with the requirements of following Sections.

91.9406.6.2. Base Shear. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The design base shear shall be 75% less than currently required by Section 12.8.1 of ASCE 7, but not less than the following :

$$V = 0.133 W$$

Where:

V = The total design lateral force or shear at the base.

W = The total seismic dead load defined in Section 12.7.2 of ASCE 7.

91.9406.6.3. Vertical Distribution of Seismic Forces. (Amended by Ord. No. 179,324, Eff. 12/10/07, Oper. 1/1/08.) The distribution of seismic forces acting normal to the downhill-direction shall be determined using Section 12.8.3 of ASCE 7. The height of the structure in Equation (12.8-12) of Section 12.8.3 of ASCE 7 shall be taken from the base, which shall be measured from the top of the lowest level of the building foundation.

91.9406.6.4. Drift Limitations. The interstory drift below the base-level-diaphragm shall not exceed 0.005 times the story height. The total drift from the base-level-diaphragm to the top of the foundation shall not exceed 3/4 inch (19 mm). Where the story height or the height from the base-level-diaphragm to the top of the foundation varies because of a stepped footing or story offset, the height shall be measured from the average height of the top of the foundation. The calculated story drift shall not be reduced by the effect of horizontal diaphragm stiffness.

91.9406.7. Lateral Force Resisting Systems at the Base and Below in the Downhill-Direction.

91.9406.7.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) As an alternative to providing primary anchor connections from diaphragms to foundation in the downhill-direction, the following systems may be used, provided their location and spacing is maintained as specified in LAMC Subdivision 91.9406.2.2 for primary anchors.

91.9406.7.2. Wood Shear Walls. Wood structural panels or existing wood diagonal sheathed shear walls may be used provided:

1. The minimum length of shear wall shall be eight feet (2438 mm).
2. The minimum level length between steps in the shear wall sill shall be eight feet (2438 mm) and the maximum step height between adjacent sills shall be two feet eight inches (813 mm).
3. Sill plates do not slope and they bear on a level surface.
4. The design lateral forces shall be distributed to lateral force resisting elements of varying heights in accordance with the stiffness of each individual element. The stiffness of a stepped wood structural panel shear wall may be determined by dividing the wall into adjacent rectangular elements, subject to the same top of wall deflection. Deflections of shear walls may be estimated by CBC Section 2305 and AWC SDPWS Section 4.3.2 or other equivalent methods. Sheathing and fastening requirements for the stiffest section shall be used for the entire wall. Each section of wall shall be anchored for shear and uplift at each step as an independent shear wall. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
5. Actual configuration of steps shall be determined in the field at the time of pre-design investigation.
6. The drift limitations of LAMC Subdivision 91.9406.6.4 are not exceeded. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

91.9406.7.3. Braced Frames. Structural steel braced frames with concentric connections may be used as part of the lateral force resisting system. All members in braced frames shall be designed to resist tension and compression forces. Seismic forces shall not induce flexural stresses in any member of the frame, in diaphragm struts, or in the collectors. Where existing anchor bolts are used for anchorage, existing confinement shall be verified and additional confinement provided where necessary. When the braced frame is not rectangular, distribution of forces to members shall account for the variations in slope.

91.9406.7.4. Rod-Braced Frames and Diaphragms. Existing tension only braces may be used provided they resist five times the design force, and the connections have the capacity to resist the yield strength of the braces. Tension braces and their connections shall be exposed for evaluation. Existing anchor bolts shall be tested in shear and tension to five times the design force.

91.9406.7.5. Cement Plaster and Lath and Gypsum Wallboard. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The sheathing materials listed in Division 25, Article 1, Chapter IX of the LAMC are not permitted to resist seismic lateral forces below the base-level-diaphragm.

91.9406.8. Lateral Force Resisting Systems at the Base and Below and Normal to the Downhill-Direction. Lateral force resisting systems acting normal to the downhill-direction may include steel moment frames and those systems permitted under LAMC Subsection 91.9406.7, provided the drift limitations of LAMC Subdivision 91.9406.6.4 are not exceeded. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

91.9406.9. Diaphragms.

91.9406.9.1. General. Diaphragms at the base and below may be of straight one- inch by six-inch (25 mm by 152 mm) or two-inch by six-inch (51 mm by 152 mm) sheathing, provided vertical lateral force resisting elements in the downhill-direction or primary anchors are spaced no more than 20 feet (6096 mm) apart and the diaphragm shear forces do not exceed 100 plf (1.46 kN/m).

91.9406.9.2. Existing Diaphragms. Existing plywood and diagonally sheathed diaphragms need not be investigated.

91.9406.9.3. Existing Cantilevered Diaphragms. Existing cantilevered wood diaphragms are acceptable provided they do not cantilever more than one-half the diaphragm backspan (anchor span).

91.9406.9.4. Wood Diaphragm Rotation. Diaphragm rotation is not permitted in resisting lateral forces.

91.9406.10. Steel Beam to Column Connections.

91.9406.10.1. General. All steel beam to column connections shall be braced at supports and locations of concentrated loads. The beam to column connection shall be designed to prevent rotation of the beam.

91.9406.10.2. Steel Beams. Steel beams shall have stiffener plates installed on each side of the beam web at the column supports and points of concentrated load. The stiffener plates shall be welded to each beam flange and beam web. This requirement applies at the base and below and only to those connections which are part of the lateral load resisting system or lateral load path.

91.9406.10.3. Column Bracing. All single length multi-level height columns shall be braced in each orthogonal direction at each diaphragm level.

91.9406.11. Foundations.

91.9406.11.1. Existing Foundations. Foundation soundness shall be verified by the engineer or architect. Foundation types such as unreinforced masonry, stone and ungrouted concrete block and unreinforced concrete shall be retrofitted to resist lateral loads applied through the diaphragm anchors.

91.9406.11.2. Damaged Foundations. Damaged foundations shall be evaluated by the engineer or architect. Cracks in excess of 1/8 inch (3.2 mm) or differential displacement in excess of 1/4 inch (6.4 mm) shall be further investigated and repaired where necessary. Specifications for the restoration of the earth to wood separation shall be included and be made a part of the plans.

91.9406.11.3. Stud Wall Attachment. Shot pinned anchors shall not be used to resist lateral forces. Lateral force resisting systems which utilize shot pins shall be retrofitted with approved drilled anchors.

91.9406.11.4. Existing Framing Connections. Deteriorated framing and connections shall be repaired or replaced.

91.9406.11.5. Metal Connectors. Metal connectors shall not be in contact with, or below earth unless the connectors are hot dipped galvanized and further protected from earth with four inches of concrete.

91.9406.12. Existing Materials.

91.9406.12.1. Allowable Stresses. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Existing materials may be used as part of the lateral load-resisting system provided that the stresses in these materials do not exceed the values shown in LAMC Table 94-A in this division.

SEC. 91.9407. HISTORICAL BUILDINGS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Qualified Historical Buildings shall be allowed to use alternate building regulations or deviations from this division in order to preserve their original or restored architectural elements and features. See LAMC Section 91.8119 for these standards.

SEC. 91.9408. QUALITY CONTROL.

(Amended by Ord. No. 182,850, Eff. 1/3/14.)

91.9408.1. General. All hillside building construction shall comply with the requirements specified in this section.

91.9408.2. Department Called Inspections. (Amended by Ord. No. 185,587, Eff. 7/16/18.) All anchors installed in accordance with LAMC Subsections 91.9406.2, 91.9406.3 and 91.9406.4 shall be inspected by the Department prior to installation of any construction which might restrict access to the anchors or prevent a visual inspection from the floor level above the anchors.

91.9408.3. Structural Observation by the Engineer or Architect of Record. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The owner shall employ the engineer or architect of record, or other engineer or architect designated by the engineer or architect of record, to perform structural observations as required by CBC Section 1704.6.

91.9408.4. Anchor Installation. No installed anchor shall be covered prior to all required Department framing inspections and structural observation by the architect or engineer.

SEC. 91.9409. INFORMATION REQUIRED ON PLANS.

(Added by Ord. No. 171,258, Eff. 8/30/96.)

91.9409.1. General. The licensed engineer or architect responsible for the seismic analysis of the building shall record the information required by this section on the approved plans. The plans shall accurately reflect the results of the engineering investigation and design and show all pertinent dimensions and sizes for plan review and construction. The plans shall show existing framing construction, diaphragm construction, proposed primary, alternate and secondary anchors, proposed shear walls and collectors for the base and below. All structural elements that are part of the design including existing nailing, anchors, ties, and collectors, shall be shown on the plans. The plans shall indicate existing construction that has not been exposed and needs verification at the time of construction.

91.9409.2. Building Elevations. Elevations showing the existing conditions shall be drawn to scale. Elevations shall show roof and floor heights, dimensions of openings, location and extent of existing damage, and proposed repair and strengthening.

91.9409.3. Shear Walls. Plans shall include all information pertinent to shear walls, including typical wall panel thickness, length, and the location and size of all anchors.

91.9409.4. Details. Details shall include the existing lateral bracing systems to be utilized including work required for the lateral and vertical load systems and new anchors and the method of development of anchor forces into the diaphragm framing.

91.9409.5. Engineer's or Architect's Statement. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The responsible engineer or architect shall state on the approved plans the following:

1. "I am responsible for designing the strengthening for this building's base level and below in compliance with the minimum regulations of Division 94, Article 1, Chapter IX of the LAMC; and either I or someone under my responsible charge has performed the pre-design investigation."

or when applicable:

2. "The Registered Deputy Inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me as

**TABLE 94-A
VALUES FOR EXISTING MATERIALS**

Existing Materials or Configuration of Materials ¹	Allowable Values
1. Plain or reinforced concrete footings	$f'_c = 2000$ psi (13.8 MPa) unless otherwise shown by tests.
2. Douglas fir wood	Allowable stress same as No. 2 D.F.
3. Reinforcing steel	$f_s = 0.4 F_y$, maximum 16 ksi (110 MPa).
4. Structural steel	$f_b = 0.6 F_y$, maximum 22 ksi (152 MPa).
5. Anchor bolts	Current code values.
6. Wood structural panels/diagonal sheathing	Current code values.

¹ Material must be sound and in good condition.

DIVISION 95

MANDATORY EARTHQUAKE HAZARD REDUCTION IN EXISTING NON-DUCTILE CONCRETE BUILDINGS

(Amended in Entirety by Ord. No. 183,893, Eff. 11/22/15.)

Section	
91.9501	Purpose.
91.9502	Scope.
91.9503	Definitions.
91.9504	Compliance Requirements.
91.9505	Administration.
91.9506	Occupant and Tenant Advisory.
91.9507	Historical Buildings.
91.9508	Engineering Analysis.
91.9509	Information Required on Plans.
91.9510	Violation / Penalty.
91.9511	Severability.

SEC. 91.9501. PURPOSE.

The purpose of this division is to promote the public welfare and safety by reducing the risk of death or injury that may result from the effects of earthquakes on existing concrete buildings. In the Northridge Earthquake, many concrete buildings constructed prior to the 1976 Los Angeles City Building Code provisions performed poorly and collapsed, causing loss of human life, personal injury and property damage. Similar loss of life, injury and property damage occurred in the Great Hanshin Earthquake, Mexico City Earthquake, and Christchurch New Zealand Earthquake due to the outdated building codes in those communities. The poor performance of these older concrete buildings is typically due to deficiencies in the lateral force resisting system (beams, columns and joints) that render the building incapable of sustaining gravity loads when the building is subjected to earthquake-induced lateral displacements. This division creates minimum standards to mitigate hazards from these structural deficiencies. Adherence to these minimum standards will improve the performance of these buildings during earthquakes and reduce, but not necessarily prevent, the loss of life, injury or earthquake-related damage.

SEC. 91.9502. SCOPE.

The provisions of this division shall apply to any existing concrete building built pursuant to a permit application for a new building that was submitted before January 13, 1976, or, if no permit can be located, the structure is determined by the Department to have been built under building code standards enacted before January 13, 1976. (Amended by Ord. No. 186,583, Eff. 4/30/20.)

EXCEPTIONS: This division shall not apply to detached single-family dwellings or detached duplexes. Moreover, notwithstanding any provision of this Code, compliance with this division shall not require existing electrical, plumbing, mechanical or fire-safety systems to be altered to comply with existing code unless they constitute a hazard to life or property.

SEC. 91.9503. DEFINITIONS.

The following words and phrases, whenever used in this division, shall be construed as defined in this section. Words and phrases not defined here shall be construed as defined in Division 2 of this Code.

CONCRETE BUILDING is a building having concrete floors and/or roofs, either with or without beams, supported by concrete walls and/or concrete columns, and/or concrete frames with or without masonry infills, or any combination thereof.

DUPLEX is a building containing only two single-family dwelling units.

DWELLING UNIT shall include any individual residential unit within either an R-1 or R-2 occupancy building, including a mixed-occupancy building when part of it is either an R-1 or R-2 occupancy. A dwelling unit shall include the area of a building that is occupied as a dwelling unit, whether the building is approved or unapproved for residential use.

QUALIFIED HISTORICAL BUILDING is any building designated or currently in the process of being designated as a "qualified historical building" as defined in Part 8, Title 24 of the California Code of Regulations.

MASONRY INFILL is the unreinforced or reinforced masonry wall construction within a reinforced concrete frame.

RETROFIT is an improvement of the lateral force-resisting system by alteration of existing structural elements or addition of new structural elements.

SINGLE-FAMILY DWELLING is any building with one dwelling unit which contains living facilities, including provisions for sleeping, eating, cooking and sanitation, as required by this Code.

SEC. 91.9504. COMPLIANCE REQUIREMENTS.

91.9504.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The owner of each building within the scope of this division shall cause a structural analysis to be made of the building by a civil or structural engineer or architect licensed by the state of California, and if the building does not meet the minimum engineering standards specified in this division, the owner shall cause the building to be structurally altered to conform to such standards or, at the owner's option, cause it to be demolished within the time limits stated in LAMC Subsection 91.9504.2.

91.9504.2. Time Limits for Compliance. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The owner of a building within the scope of this division shall comply with its requirements by completing the following actions within the time limits stated below:

1. Within three (3) years after service of the order described in LAMC Section 91.9505, submit on the form provided by the Department a completed checklist for the Department to review and approve.
2. If the building is determined to be a non-ductile concrete building pursuant to LAMC Subsection 91.9504.1, within ten (10) years after service of the order, submit a detailed evaluation of the building documenting whether the building meets or exceeds the requirements set forth in LAMC Section 91.9508. The evaluation shall include one of the following:
 - (a) Proof that the building was previously retrofitted in conformity with the provisions in either Chapter 85 or former Chapter 95 (Ordinance Nos. 171,260 and 176,673) of the Los Angeles Building Code (LABC); or **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**
 - (b) Proof that the building was previously retrofitted in conformity with the engineering requirements of this division; or
 - (c) A report consisting of a structural analysis that shows the building meets the engineering requirements of this division; or
 - (d) A report consisting of a structural analysis and plans for the proposed structural alteration of the building to comply with the engineering requirements of this division; or
 - (e) Plans for demolition of the building.
3. Within twenty-five (25) years after service of the order, complete all necessary demolition or retrofit work on the building.

Time limits for compliance shall be based on the service date of the original order from the Department. Transfer of title shall not change compliance dates.

SEC. 91.9505. ADMINISTRATION.

91.9505.1. Issuance of Order. (Amended by Ord. No. 185,587, Eff. 7/16/18.) When the Department determines that a building is within the scope of this division, the Department shall issue an order to the owner as described in LAMC Subsections 91.9505.2 and 91.9505.4.

91.9505.2. Service of Order. The Department shall serve the order in writing, either personally or by certified or registered mail, upon the owner as shown on the last equalized assessment roll. Service by mail shall be deemed complete at the time of deposit in the post office. Proof of giving notice may be made by an affidavit of an employee of the City that shows service in conformity with this division.

91.9505.3. Failure to Receive Order. Failure of the owner to receive an order shall not relieve the owner of any obligation to comply with the provisions of this division.

91.9505.4. Contents of Order. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The order shall specify that the building has been determined by the Department to be within the scope of this division and, therefore, is required to meet the minimum seismic standards described in LAMC Section 91.9508. The order shall be accompanied by a copy of LAMC Section 91.9504, which sets forth the owner's alternatives and time limits for compliance.

91.9505.5. Appeal from Order. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The owner of any building subject to this division may appeal the Department's initial determination that the building is within the scope of this division to the Board of Building and Safety Commissioners. Such appeal shall be filed with the Board within 60 days from the service date of the order. Any such appeal shall be decided by the Board no later than 60 days after the date that the appeal is filed. Such appeal shall be made in writing upon appropriate forms provided by the Department, and the grounds of the appeal shall be stated clearly and concisely. Each appeal shall be accompanied by a filing fee as set forth in LAMC Table No. 4-A, located in Division 4, Article 8, Chapter IX of the LAMC.

Requests for slight modifications from any other determinations, orders or actions by the Department pursuant to this division shall be made in accordance with the procedures established in LAMC Section 98.0403.2.

91.9505.6. Recordation. (Amended by Ord. No. 185,587, Eff. 7/16/18.) At the time that the Department serves the order described in LAMC Subsection 91.9505.1 the Department shall file with the Office of the County Recorder a certificate stating that the subject building has been determined to be within the scope of this division and that it has been ordered to be structurally analyzed and structurally altered or demolished (if the owner so decides), pursuant to LAMC Subsection 91.9504.2, if the Department determines that it does not conform to the minimum design standards of this division.

The Department shall file with the Office of the County Recorder a certificate terminating the above recorded status of the subject building if the building is thereafter demolished by owner pursuant to LAMC Subsection 91.9504.2, found not to be within the scope of this division, or is determined to be structurally capable of resisting minimum seismic forces as a result of structural alterations or analysis required by this division.

SEC. 91.9506. OCCUPANT AND TENANT ADVISORY.

91.9506.1. Notification to Tenants and Occupants. When the Department determines that a building falls within the scope of this division, the owner shall advise all current and prospective residential and non-residential tenants, subtenants, lessees, sublessees, or any other person(s) entitled to the use and/or occupancy of the building of such determination. With respect to current and prospective residential tenants, subtenants, lessees, sublessees, or other person(s) entitled to the use and/or occupancy of the building, the property owner shall advise such persons of the Department's determination in a method and written format approved and promulgated by the Los Angeles Housing Department. With respect to current and prospective non-residential tenants, subtenants, lessees, sublessees, or other person(s) entitled to the use and/or occupancy of the building, the owner shall advise such persons of the Department's determination in a method and written format approved and promulgated by the Department. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

91.9506.2. Tenant Habitability Plan. If required by the Rent Stabilization Ordinance, the property owner shall be required to submit to the Los Angeles Housing Department

a Tenant Habitability Plan pursuant to Article 2, Chapter XV of the Los Angeles Municipal Code (LAMC Section 152.03 B.). If, upon review of the Tenant Habitability Plan, it is determined by the Los Angeles Housing Department that work required under this division affects the tenantability of any building or residential unit as defined in California Civil Code Section 1941.1, the owner shall be required to pay relocation benefits pursuant to Article 1, Chapter XV of the Los Angeles Municipal Code (LAMC Section 151.09 G.) to any tenant, subtenant, lessee, sublessee, or other person(s) entitled to the use and/or occupancy of the building that is affected by the untenable conditions or displaced from the residential unit. However, the mere undertaking and completion of work performed by the owner pursuant to this division shall not, in and of itself, result in any building or residential unit being deemed untenable or uninhabitable as defined in California Civil Code Section 1941.1. **(Amended by Ord. No. 187,122, Eff. 8/8/21.)**

SEC. 91.9507. HISTORICAL BUILDINGS.

Qualified historical buildings shall comply with requirements of the California Historical Building Code established under Part 8, Title 24 of the California Code of Regulations.

SEC. 91.9508. ENGINEERING ANALYSIS.

91.9508.1. Scope of Analysis. This division requires the alteration, repair, replacement or addition of structural elements and their connections to meet the following requirements in this section.

91.9508.2. Building Structural Analysis, Design and Evaluation. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** The building shall meet one of the following criteria:

1. Strength of the lateral-force resisting system shall meet or exceed 75% of the seismic base shear specified in "The Equivalent Lateral Force Procedure" of the current Los Angeles Building Code. Elements not designated to be part of the lateral-force resisting system shall be adequate for gravity load effects and seismic displacement due to the full (100%) of the design story drift specified in the current Los Angeles Building Code seismic provisions.
2. Meet or exceed the requirements specified for "Basic Performance Objective for Existing Buildings" of ASCE 41, using a Tier 3 procedure and the two level performance objective for existing buildings (BPOE) in Table 2-1 of ASCE 41 for the applicable risk category, and using ground motions and procedures established by the Department. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**
3. Pursuant to LAMC Subdivision 91.104.2.6, other methods approved by the Department deemed to be equivalent to the standards set forth in Items 1 and 2 above.

SEC. 91.9509. INFORMATION REQUIRED ON PLANS.

91.9509.1. General. For existing and new construction, the plans and specifications shall be of sufficient clarity to indicate the nature and extent of the proposed work and to show in detail that it will conform to the provisions of this division and the Los Angeles Building Code.

91.9509.2. Engineer's or Architect's Statement. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** The responsible engineer or architect shall provide the following statements on the approved plans:

1. "I am responsible for designing this building's seismic strengthening in compliance with the minimum standards of Division 95, Article 1 of the LAMC using the design criteria of 75% of ASCE 7 or ASCE 41."

and when applicable:

2. "The Registered Deputy Inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me as required by LAMC Section 91.1704."
3. "Structural Observation will be performed in accordance with the current Los Angeles Building Code."

SEC. 91.9510. VIOLATION / PENALTY.

Notwithstanding any other provision of this Code to the contrary, it shall be unlawful for any person, firm, or corporation to maintain, use, or occupy any building within the scope of this division that fails to meet the minimum earthquake standards specified in this division after receiving an order described in LAMC Section 91.9505. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

Any person who violates or causes or permits another person to violate this division is guilty of a misdemeanor, and shall be subject to prosecution and/or administrative enforcement under the Los Angeles Municipal Code. For purposes of this paragraph, "any person" includes an owner, lessor, sublessor, manager or person in control of a building subject to this division. This term shall not include any person who is merely a tenant or other individual occupying any dwelling unit, efficiency dwelling unit, guest room or suite in a building. The legal owner of a building is that person, firm, corporation, partnership or other entity whose name or title appears on the record with the Office of the County Recorder, as well as all successors or assignees of these persons.

EXCEPTION: This section shall not apply to any building on which work is proceeding in compliance with the time limits set forth in this division, or in compliance with any extensions of time granted by the Department or the Board; or any action, order or determination made by the Department or the Board in the implementation of this division.

SEC. 91.9511. SEVERABILITY.

If any subsection, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a court of competent jurisdiction or by reason of any preemptive legislation, such decision or legislation shall not affect the validity of the remaining portions of this ordinance. The City Council hereby declares that it would have adopted this section, and each and every subsection, sentence, clause and phrase thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would be subsequently declared invalid or unconstitutional.

DIVISION 96

VOLUNTARY – EARTHQUAKE HAZARD REDUCTION IN EXISTING REINFORCED CONCRETE AND REINFORCED MASONRY WALL BUILDINGS WITH FLEXIBLE DIAPHRAGMS

Section	
91.9601	Purpose.
91.9602	Scope.
91.9603	Definitions.
91.9604	Analysis and Design.
91.9605	Materials of Construction.
91.9606	Information Required on Plans.

SEC. 91.9601. PURPOSE.

(Added by Ord. No. 171,261, Eff. 8/30/96.)

The purpose of this division is to promote public safety and welfare by reducing the risk of death or injury that may result from the effects of earthquakes on reinforced concrete and masonry wall buildings with flexible diaphragms designed under the building codes in effect prior to January 1, 1995. These buildings are potentially hazardous and prone to significant damage, including possible collapse, in a moderate to major earthquake. These structures typically shelter large numbers of persons and property for retail, food markets, food distribution centers, warehousing, aerospace, industrial/manufacturing and general business and office use. Their continued use after an earthquake is also essential to the local economy and its post-earthquake recovery.

The provisions of this division are minimum standards for structural seismic resistance established primarily to reduce the risk of loss of life or injury on both subject and adjacent properties and will not necessarily prevent all earthquake damage to an existing building which complies with these standards. This division shall not require existing electrical, plumbing, mechanical or fire-safety systems to be altered unless they constitute a hazard to life or property.

This division provides voluntary retrofit standards for deficient wall anchorage systems on structures **that are not subject to the mandatory provisions of Division 91, Article 1, Chapter IX of the LAMC.** When fully followed, these standards will strengthen the portion of the structure that is most vulnerable to earthquake damage. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

SEC. 91.9602. SCOPE.

(Added by Ord. No. 171,261, Eff. 8/30/96.)

The voluntary provisions of this division shall apply to existing buildings of the following types:

1. Cast-in-place reinforced concrete or masonry wall buildings with flexible diaphragms designed under building codes in effect prior to January 1, 1995.
2. Tilt-up concrete wall buildings with flexible diaphragms designed under the building codes in effect prior to January 1, 1995, but after January 1, 1976.

All tilt-up concrete wall buildings designed under the Building Code in effect prior to January 1, 1976, are subject to the mandatory provisions of Division 91, Article 1, Chapter IX of the LAMC. All existing reinforced masonry or concrete buildings with flexible diaphragms, including tilt-up concrete wall buildings, designed under the Building Code in effect on or after January 1, 1995, shall be designed in conformance with Division 16, Article 1, Chapter IX of the LAMC. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

SEC. 91.9603. DEFINITIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

For the purposes of this division, the applicable definitions in CBC Sections 1602, 1613.2, 1902 and 2302; ASCE 7 Sections 1.2, 3.1, 4.1 and 11.2; and the following shall apply:

ANCHORAGE SYSTEM is the system of all structural elements and connections, which support the concrete or masonry wall in the lateral direction, including diaphragms and subdiaphragms, wall anchorage and continuity or cross tie connectors in subdiaphragms and main diaphragms.

COMMENCED CONSTRUCTION is construction pursuant to a valid building permit that has progressed to the point that one of the called inspections as required by the Department has been made and the work for which the inspection has been called has been judged by the Department to be substantial and has been approved by the Department.

EXISTING BUILDING is an erected building for which a legal building permit and a certificate of occupancy have been issued.

FLEXIBLE DIAPHRAGM is any diaphragm constructed of wood structural panel, diagonal or straight wood sheathing, metal decking without a structural concrete topping, or horizontal rod bracing.

HISTORICAL BUILDING is any building designated or currently in the process of being designated as a historical building by an appropriate federal, state or City jurisdiction.

REINFORCED CONCRETE WALL. A concrete wall that has 50% or more of the reinforcing steel required for reinforced concrete in Division 19, Article 1, Chapter IX of the LAMC.

REINFORCED MASONRY WALL. A masonry wall that has 50 percent or more of the reinforcing steel required by Section 2.3 or Section 3.3 of ACI 530-05/ASCE 5-05/TMS 402/602-16 (MSJC). (Amended by Ord. No. 186,488, Eff. 12/27/19.)

RETROFIT is strengthening or structurally improving the lateral force resisting system of an existing building by alteration of existing or addition of new structural elements.

TILT-UP CONCRETE WALL is a form of precast concrete panel construction either cast in the horizontal position at the site and after curing, lifted and moved into place in a vertical position, or cast off-site in a fabricator's shop.

SEC. 91.9604. ANALYSIS AND DESIGN.

(Added by Ord. No. 171,261, Eff. 8/30/96.)

91.9604.1. Wall Panel Anchorage. (Amended by Ord. No. 181,758, Eff. 8/8/11.) Concrete and masonry walls shall be anchored to all floors and roofs which provide lateral support for the wall. The anchorage shall provide a positive direct connection between the wall and floor or roof construction capable of resisting a horizontal force equal to 30 percent of the tributary wall weight for all buildings, and 45 percent of the tributary wall weight for essential buildings, or a minimum force of 250 pounds per linear foot

of wall, whichever is greater.

EXCEPTION: Using 75% of the design force as specified in Section 12.11 of ASCE 7 and completely complying with all the requirements as specified in Section 12.11 of ASCE 7 is considered equivalent to the requirements specified in this LAMC section and LAMC Subsection 91.9604.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

The required anchorage shall be based on the tributary wall panel assuming simple supports at floors and roof.

EXCEPTION: An alternate design may be approved by the Superintendent of Building when justified by well established principles of mechanics.

91.9604.2. Special Requirements for Wall Anchors and Continuity Ties. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The steel elements of the wall anchorage systems and continuity ties shall be designed by the allowable stress design method using a load factor of 1.7. The 1/3 stress increase permitted by CBC Section 1605.3.1.1 shall not be permitted for materials using allowable stress design methods.

The strength design shall be per Section 17.2.3 of ACI 318-14, unless modified by CBC Section 1905.1.8.

Wall anchors shall be provided to resist out-of-plane forces, independent of existing shear anchors.

EXCEPTION: Existing cast-in-place shear anchors may be used as wall anchors if the tie element can be readily attached to the anchors and if the engineer or architect can establish tension values for the existing anchors through the use of approved as-built plans or testing, and through analysis showing that the bolts are capable of resisting the total shear load while being acted upon by the maximum tension force due to seismic loading. Criteria for analysis and testing shall be determined by the Superintendent of Building.

Expansion anchors are not allowed without special approval of the Superintendent of Building. Attaching the edge of plywood sheathing to steel ledgers is not considered as complying with the positive anchoring requirements of the Code; and attaching the edge of steel decks to steel ledgers is not considered as providing the positive anchorage of this Code unless testing and analysis are performed, which establish shear values for the attachment perpendicular to the edge of the deck.

91.9604.3. Development of Anchor Loads into the Diaphragm. (Amended by Ord. No. 182,850, Eff. 1/3/14.) Development of anchor loads into roof and floor diaphragms shall comply with Section 12.11 of ASCE 7.

EXCEPTION: If continuously tied girders are present, then the maximum spacing of the continuity ties is the greater of the girder spacing or 24 feet (7315 mm).

In wood diaphragms, anchorage shall not be accomplished by use of toe nails or nails subject to withdrawal, nor shall wood ledgers, top plates or framing be used in cross-grain bending or cross-grain tension. The continuous ties required by LAMC Subsection 91.1613.5.3 and Section 12.11 of ASCE 7 shall be in addition to the diaphragm sheathing. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

Lengths of development of anchor loads in wood diaphragms shall be based on existing field nailing of the sheathing unless existing edge nailing is positively identified on the original construction plans or at the site.

At reentrant corners, continuity collectors may be required for existing return walls not designed as shear walls, to develop into the diaphragm a force equal to the lesser of the rocking or shear capacity of the return wall, or the tributary shear but not exceeding the capacity of the diaphragm. Shear anchors for the return wall shall be commensurate with the collector force. If a truss or beam other than rafters or purlins is supported by the return wall or by a column integral with the return wall, an independent secondary column is required to support the roof or floor members whenever rocking or shear capacity of the return wall is governing.

91.9604.4. Anchorage at Pilasters. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Anchorage of pilasters shall be designed for the tributary wall anchoring load per LAMC Subsection 91.9604.1, considering the wall as a two-way slab. The edge of the two-way slab shall be considered "**fixed**" when there is continuity at pilasters, and considered "**pinned**" at roof or floor levels. The pilasters or the walls immediately adjacent to the pilasters shall be anchored directly to the roof framing such that the existing vertical anchor bolts at the top of the pilasters are by-passed without causing tension or shear failure at the top of the pilasters.

EXCEPTION: If existing vertical anchor bolts at the top of the pilasters are used for the anchorage, then additional exterior confinement shall be provided.

The minimum anchorage at a floor or roof between the pilasters shall be that specified in LAMC Subsection 91.9604.1.

91.9604.5. Symmetry. Symmetry of connectors in the anchorage system is required. Eccentricity may be allowed when it can be shown that all components of forces are positively resisted and justified by calculations or tests.

91.9604.6. Minimum Roof Member Size. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Wood members used to develop anchorage forces to the diaphragm shall be of minimum three-inch nominal width for new construction and replacement. All such members must be designed for gravity and earthquake forces as part of the wall anchorage system. For existing structural members, the allowable stresses shall be without the 1/3 stress increase per LAMC Subsection 91.9604.2.

91.9604.7. Combination of Anchor Types. To repair and retrofit existing buildings, a combination of different anchor types of different behavior or stiffness shall not be permitted. The capacity of the new and existing connectors cannot be added.

91.9604.8. Prohibited Anchors. Usage of connectors that were bent or stretched from the intended use shall be prohibited.

91.9604.9. Crack and Damage Repairs, Evaluation of Existing Structural Alterations. The engineer or architect shall report any observed structural conditions and structural damage that have imminent life safety effects on the buildings and recommend repairs. This includes alterations such as openings cut in existing wall panels without a building permit. Evaluations and repairs shall be reviewed and approved by the Department.

91.9604.10. Miscellaneous. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Existing mezzanines relying on the concrete or masonry walls for vertical or lateral support shall be anchored to the walls for the tributary mezzanine load. Walls depending on the mezzanine for lateral support shall be anchored per LAMC Subsections 91.9604.1, 91.9604.2 and 91.9604.3.

EXCEPTION: Existing mezzanines that have independent lateral and vertical support need not be anchored to the concrete or masonry walls.

Existing interior masonry or concrete walls not designed as shear walls, which extend to the floor above or to the roof diaphragm shall also be anchored for out-of-plane forces per LAMC Subsections 91.9604.1, 91.9604.2 and 91.9604.3. In the in-plane direction, the walls may be isolated or shall be developed into the diaphragm for a lateral force equal to the lesser of the rocking or shear capacity of the wall, or the tributary shear but not exceeding the diaphragm capacity.

91.9604.11. Historical Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Qualified historical buildings shall be permitted to use alternate building standards or deviations from this division in order to preserve their original or restored architectural elements and features. See LAMC Section 91.2.1200 for these alternatives.

SEC. 91.9605. MATERIALS OF CONSTRUCTION. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

All materials permitted by this Code, including their appropriate allowable stresses and those existing configurations of materials specified in Division 88, Article 1, Chapter

IX of the LAMC, may be utilized to meet the requirements of this division.

SEC. 91.9606. INFORMATION REQUIRED ON PLANS.

(Added by Ord. No. 171,261, Eff. 8/30/96.)

91.9606.1. General. In addition to the seismic analysis required elsewhere in this division, the licensed engineer or architect responsible for the seismic analysis of the building shall record the information required by this section on the approved plans.

91.9606.2. Information Required. The plans shall accurately reflect the results of the engineering investigation and design and show all pertinent dimensions and sizes for plan review and construction. The following shall be provided:

1. Floor plans and roof plans shall show the existing framing construction, diaphragm construction, proposed wall anchors, cross-ties and collectors. Existing nailing, anchors, ties and collectors shall also be shown on the plans if these are part of the design, and these structural elements need to be verified in the field.
2. At elevations where there is alterations or damage, the details shall show the roof and floor heights, dimensions of openings, location and extent of existing damage, and proposed repair.
3. Typical concrete or masonry wall sections with wall thickness, height, and location of anchors shall be provided.
4. Details shall include the existing and new anchors and the method of development of anchor forces into the diaphragm framing; existing and new cross-ties, existing and new or improved support of the roof and floor girders at pilasters or walls.

91.9606.3. Engineer's or Architect's Statement. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The responsible engineer or architect shall state on the approved plans, the following:

1. "I am responsible for this building's seismic strengthening design of the tilt-up concrete wall anchorage system in compliance with the minimum seismic resistance standards of Division 96, Article 1, Chapter IX of the LAMC."

or when applicable:

2. "The Registered Deputy Inspector, required as a condition of the use of structural design stresses requiring continuous inspection, will be responsible to me as required by LAMC Section 91.1704."

DIVISION 97

EXISTING BUILDINGS ENERGY AND WATER EFFICIENCY PROGRAM

(Division 97 Added by Ord. No. 184,674, Eff. 1/29/17.)

Section

- 91.9701 Title.
- 91.9702 Purpose.
- 91.9703 Scope.
- 91.9704 Definitions.
- 91.9705 Benchmarking and Self-Reporting of Energy and Water Consumption Information.
- 91.9706 Energy and Water Audits and Retro-Commissioning.
- 91.9707 Record Maintenance.
- 91.9708 Schedule for Compliance.
- 91.9709 Noncompliance Fee.
- 91.9710 Submittal Fees.
- 91.9711 Building and Safety Development Surcharge.
- 91.9712 Severability.

SEC. 91.9701. TITLE.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

This division shall be known as the City of Los Angeles Existing Buildings Energy and Water Efficiency (EBEWE) Program.

SEC. 91.9702. PURPOSE.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

It is the purpose of this division to reduce energy and water consumption in buildings, including existing buildings, in the City of Los Angeles. These efficiency improvements will lower the use of energy, water, and greenhouse gas emissions citywide.

SEC. 91.9703. SCOPE.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

This division shall apply to all buildings, including existing buildings, that are either:

1. Owned by the City of Los Angeles and are 7,500 square feet or more;

EXCEPTION: Buildings owned by the City that are less than 15,000 square feet are not subject to the requirements of Section 91.9706.

2. Privately owned and are 20,000 square feet or more; or

3. Owned by a local agency of the state that is required to comply with the City's building ordinances pursuant to Government Code Section 53090, et seq., or successor legislation, and are 20,000 square feet or more.

EXCEPTION: This division shall not apply to one- and two-family dwellings and related accessory structures; residential hotels as defined by the California Health and Safety Code Section 50519; broadcast antennas; vehicle charging stations; utility pumping stations; treatment facilities; sound stages; structures primarily used for the production and post-production of motion pictures and television, and similar uses; and other buildings not meeting the purpose of this division, as determined by the Department of Building and Safety.

SEC. 91.9704. DEFINITIONS.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

The following words and phrases, whenever used in this division, shall be construed as defined in this section unless context indicates otherwise. Words and phrases not defined here shall be construed as defined in LAMC Sections 91.201 and 91.202:

BASE BUILDING SYSTEMS. The systems and subsystems of a building that use or distribute energy and/or water and/or impact the energy and/or water consumption, including the building envelope; the heating ventilating and air conditioning (HVAC) systems; air conveying systems; electrical and lighting systems; domestic hot water systems; water distribution systems; plumbing fixtures and other water-using equipment; and landscape irrigation systems and water features. Base building systems shall not include:

1. Systems or subsystems owned by a tenant or for which a tenant bears full maintenance responsibility, that are within the tenant's leased space and exclusively serve such leased space, and for which the tenant pays all the energy and water bills according to usage and demand as measured by a meter or sub-meter.
2. Systems or subsystems owned by a residential unit owner that exclusively serve the residential unit of that owner.
3. Systems or subsystems that operate industrial applications such as manufacturing.

BENCHMARKING REPORT. A report, generated by ENERGY STAR® Portfolio Manager, summarizing the annual energy and water performance of a building.

DEPARTMENT. The City of Los Angeles Department of Building and Safety.

ENERGY. Electricity, natural gas, steam, heating oil, or other products sold by a utility to a customer of a building, or renewable on-site electricity generation, for purposes of providing heat, cooling, lighting, water heating, or for powering or fueling other end-uses in the building and related facilities.

ENERGY AUDIT. A systematic evaluation to identify potential modifications and improvements to a building's equipment and systems which utilize energy in order to optimize a building's overall energy performance.

ENERGY STAR® PORTFOLIO MANAGER. The United States Environmental Protection Agency's (US EPA) online tool for measuring, tracking, and managing a building's energy, water and greenhouse gas emission data and to benchmark the performance of a building.

ENERGY STAR® PORTFOLIO MANAGER ENERGY STAR SCORE. A number ranging from 1 to 100 assigned by the US EPA's Energy Star Portfolio Manager as a measurement of a building's energy efficiency, normalized for a building's characteristics, operations, and weather, according to methods established by US EPA's ENERGY STAR® Portfolio Manager.

RETRO-COMMISSIONING. A systematic process for optimizing existing systems relating to building performance through the identification and correction of deficiencies in such systems.

RETRO-COMMISSIONING MEASURES. Work relating to retro-commissioning such as repairs, maintenance, adjustments, changes to controls or related software, or operational improvements that optimize a building's energy and/or water performance.

RETROFIT MEASURES. Upgrades or alterations of building systems involving the installation of energy and/or water efficiency technologies that reduce energy and/or water consumption and improve the efficiency of such systems.

TREATMENT FACILITY. A facility where industrial processes take place for the treatment of substances, which include, but are not limited to, water, waste, sewage, rain water, oil, and chemicals. Paper mills, foundries, and similar operations are also covered by this definition, which is restricted to the building or buildings where the treatment takes place. **(Added by Ord. No. 186,789, Eff. 11/12/20.)**

WATER AUDIT. A systematic evaluation to identify potential modifications and improvements to a building's equipment and systems which utilize water in order to optimize a building's overall water performance.

SEC. 91.9705. BENCHMARKING AND SELF-REPORTING OF ENERGY AND WATER CONSUMPTION INFORMATION.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

91.9705.1. Annual Energy and Water Benchmarking and Reporting. For every building subject to this division, the building owner shall annually submit to the Department an energy and water benchmarking report according to the schedule set forth in Section 91.9708. The energy and water benchmarking report shall be based on an assessment in the ENERGY STAR® Portfolio Manager of the total energy and water consumed by the whole building for the entire calendar year being reported. The energy and water benchmarking report shall, at minimum, include the following:

1. **Descriptive Information.** Basic descriptive information to track and report a building's compliance with this division, including but not limited to the building address, facility gross square footage, property type, and the individual or entity responsible for the benchmarking report.
2. **Energy and Water Benchmarking Information.** Information necessary to benchmark energy and water usage, including, at a minimum, the following data:
 - (a) The ENERGY STAR® Portfolio Manager ENERGY STAR score for the building, where available;
 - (b) The weather-normalized site and source energy use intensity (EUI) per unit area per year (kBtu per square foot per year) for the building;
 - (c) The site and source energy use intensity (EUI) per unit area per year (kBtu per square foot per year) for the building;
 - (d) The annual carbon dioxide equivalent emissions due to energy use for the building as estimated by ENERGY STAR® Portfolio Manager;
 - (e) Indoor water use, indoor water intensity, outdoor water use (when available), total water use, and irrigated area (if any); and **(Amended by Ord. No. 186,789, Eff. 11/12/20.)**
 - (f) Number of years the building has been ENERGY STAR® Certified and the last approval date, if applicable.

Nothing in this division shall be construed to permit a building owner to use tenant utility usage data for purposes other than compliance with benchmarking report requirements. Nor shall the reporting requirements of this division be construed to excuse building owners from compliance with federal or state laws governing direct access to tenant utility data from the responsible utility.

91.9705.2. Quality Check of Benchmarking Report Submission. The building owner or the owner's authorized representative shall run all automated data quality checker functions available within ENERGY STAR® Portfolio Manager, and shall correct all missing or incorrect information as identified by ENERGY STAR® Portfolio Manager prior to submitting the benchmarking report to the Department.

91.9705.3. Exemptions from Benchmarking Report Submission. The owner of a building subject to this division shall not be required to file a benchmarking report for a reporting year if any of the following conditions apply:

1. The building did not have a Certificate of Occupancy or Temporary Certificate of Occupancy for the entire calendar year required to be benchmarked;
2. The entire building was not occupied, due to renovation, for the entire calendar year required to be benchmarked;
3. The demolition permit for the entire building has been issued and demolition work has commenced on or before the date the benchmarking report is due for that calendar year;
4. The building did not receive energy or water services for the entire calendar year required to be benchmarked.

For each reporting cycle, the Department shall determine whether an exemption under this subsection applies to a building. Appeal of a determination that a building is not exempt shall be made according to the procedures set forth in Subsection 98.0403.2 of the Los Angeles Municipal Code.

91.9705.4. Publication of Limited Summary Data. The Department shall make the following information available to the public on the internet, as reported by building owners, and update the information at least annually:

1. Summary statistics on overall compliance with this division;
2. Summary statistics on overall energy and water consumption of buildings subject to this division derived from aggregation of annual benchmarking reports; and
3. For each building subject to this division:
 - (a) Building address and property use type;
 - (b) Annual summary statistics for the whole building derived from the submitted benchmarking report, including all information required under Subsection 91.9705.1, except for Subdivision 2.(f); and
 - (c) The status of compliance with the requirements of this division.

SEC. 91.9706. ENERGY AND WATER AUDITS AND RETRO-COMMISSIONING.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

91.9706.1. Energy Audits and Retro-Commissioning Requirements. Any building subject to this division shall undergo an energy audit and retro-commissioning of the base building systems.

91.9706.1.1. Energy Audit and Retro-Commissioning Standards. Energy auditing and retro-commissioning standards shall comply with both of the following:

1. **Energy Auditing.** Energy audits required by this division shall meet or exceed Level II audit standards in conformance with the American Society of Heating Refrigerating and Air-Conditioning Engineers (ASHRAE) *Procedures for Commercial Building Energy Audits* (latest edition at the time the audit is initiated) and shall be performed under the direct supervision of a California licensed engineer or architect.
2. **Energy Retro-Commissioning.** Energy retro-commissioning shall be performed in accordance with industry standard practices, including ASHRAE Guideline 0.2 *Commissioning Process for Existing Systems and Assemblies*, and under the direct supervision of a California licensed engineer or architect. The retro-commissioning of the base building systems shall include, at minimum, the following:
 - (a) Heating, ventilation, air conditioning (HVAC) systems and controls;
 - (b) Indoor lighting systems and controls;
 - (c) Water heating systems; and
 - (d) Renewable energy systems.

91.9706.1.2. Energy Audit and Retro-Commissioning Report. A report of the energy audit and retro-commissioning, completed and signed by a California licensed engineer or architect, shall be maintained by the building owner as required in Section 91.9707. The report shall meet the requirements of Subsection 91.9706.1.1 and shall include, at a minimum, the following:

1. The date(s) that the audit and retro-commissioning were performed;
2. Identifying information on the auditor and retro-commissioning provider;
3. Information on the base building systems and equipment;
4. A list of all retrofit measures that can reduce energy use, and/or cost of operating the building, costs of each measure, and an estimate of the energy savings associated with each measure;
5. All the retro-commissioning process activities undertaken and retro-commissioning measures completed;
6. Functional performance testing reports;
7. Operational training conducted; and
8. Acknowledgment that an ASHRAE level II audit was conducted.

91.9706.1.3. Exemptions. An energy audit and retro-commissioning are not required if one of the following conditions is met and proof is submitted to the Department:

1. The building has received ENERGY STAR® Certification from the EPA for the year of the building's compliance due date in Section 91.9708;
2. The building has received ENERGY STAR® Certification from the EPA for two of the three years preceding the building's compliance due date in Section 91.9708;
3. For buildings not eligible to receive an ENERGY STAR® score, a California licensed engineer or architect certifies that the energy performance of the building is at least 25% better than the median energy performance of similar buildings by comparing against the national source energy data provided in the Commercial Buildings Energy Consumption Survey (CBECS) conducted by the U.S. Energy Information Administration or other relevant national data set as approved by the Department effective at the time of reporting;
4. A California licensed engineer or architect certifies that the building has reduced its weather normalized source energy use intensity as calculated by the benchmarking tool by 15%, when compared to five years preceding the building's compliance due date in Section 91.9708;
5. A building that does not have a central cooling system or has a cooling system having an aggregate input capacity of less than 100 refrigeration tons (1,200,000 Btu/h) and, in either case, where four of the following six measures listed in Paragraphs (a) to (f) below were completed within the five-year compliance cycle being reported in accordance with Section 91.9708. A report, certified by a California licensed engineer or architect, detailing the measures performed is required: **(Amended by Ord. No. 186,789, Eff. 11/12/20.)**
 - (a) **Common area and exterior lighting.** Common area (lighting outside of tenant spaces) and exterior lighting fixtures were installed in accordance with the California Building Standards Code (California Code of Regulations, Title 24) in effect at any time during the five-year compliance cycle being reported.
 - (b) **Pipe insulation.** All exposed pipes used to convey heat or hot water were insulated in accordance with the California Building Standards Code (California Code of Regulations, Title 24) in effect at any time during the five-year compliance cycle being reported.
 - (c) **Cool roof.** A cool roof was installed in accordance with the Los Angeles Green Building Code and the California Building Standards Code (California Code of Regulations, Title 24) in effect at any time during the five-year compliance cycle being reported.
 - (d) **Demand response.** The building owner participates in a utility sponsored Demand Response Program and complies with the terms and conditions thereof.
 - (e) **Solar thermal.** A solar water heating system was installed.
 - (f) **Domestic hot water.** A new water heater was installed in accordance with the California Building Standards Code (California Code of Regulations, Title 24) in effect at any time during the five-year compliance cycle being reported.
6. The building is new and has been occupied for less than five years from its first due date, based on its Temporary Certificate of Occupancy or Certificate of Occupancy.

For each reporting cycle, the Department shall determine whether an exemption under this subsection applies to a building. Appeal of a determination that a building is not exempt shall be made according to the procedures set forth in Subsection 98.0403.2 of the Los Angeles Municipal Code.

91.9706.2. Water Audits and Retro-Commissioning Requirements. Any building subject to this division shall undergo a water audit and retro-commissioning of the base building systems.

91.9706.2.1. Water Audit and Retro-Commissioning Standards. Water audits and retro-commissioning shall be performed in accordance with industry standard practices, including ASHRAE Guideline 0.2 *Commissioning Process for Existing Systems and Assemblies*, and under the direct supervision of a California licensed engineer or architect. The water audit and retro-commissioning of the base building systems shall include, at a minimum, the following:

1. Potable water distribution systems;
2. Landscape irrigation systems;
3. Water reuse systems; and
4. Water features.

91.9706.2.2. Water Audit and Retro-Commissioning Report. A report of the water audit and retro-commissioning, completed and signed by a California licensed engineer or architect, shall be maintained by the building owner as required in Section 91.9707. The report shall meet the requirements of Subsection 91.9706.2.1 and shall include, at a minimum, the following:

1. The date(s) that the audit and retro-commissioning were performed;
2. Identifying information on the auditor and retro-commissioning provider;
3. Information on the base building systems and equipment;
4. A list of all retrofit measures that can reduce water use, and/or cost of operating the building; costs of each measure; and an estimate of the water savings associated with each measure;
5. All the retro-commissioning process activities undertaken and retro-commissioning measures completed;
6. Functional performance testing reports; and
7. Operational training conducted.

91.9706.2.3. Exemptions. A water audit and retro-commissioning are not required if one of the following conditions is met:

1. A California licensed engineer or architect certifies that the building has reduced its water use intensity by at least 20% when compared to the five years preceding the building's due date for compliance; or
2. A building with a cooling system which does not operate by the consumption of water as part of the cooling process and where two of the three following measures were installed within five years of the due date in Section 91.9708. A report, detailing the measures performed, certified by a California licensed engineer or architect, is required: **(Amended by Ord. No. 186,789, Eff. 11/12/20.)**
 - (a) **Low flow faucets and shower heads.** All faucets and showerheads within the building were replaced and meet the Los Angeles Municipal Code and the California Building Standards Code (California Code of Regulations, Title 24) in effect at any time during the five-year compliance cycle being reported.

(b) **Washing machines.** Front loading clothes washing machines were installed in all common laundry facilities.

(c) **Water closets and urinals.** All water closets and urinals within the building were replaced and meet the Los Angeles Municipal Code and the California Building Standards Code (California Code of Regulations, Title 24) in effect at any time during the five-year compliance cycle being reported.

3. A California licensed engineer or architect certifies that the building's water use conforms to the requirements of the Los Angeles Municipal Code and the California Building Standards Code (California Code of Regulations, Title 24) in effect at any time during the five-year compliance cycle being reported; or

4. The building is new and has been occupied for less than five years from its first due date, based on its Temporary Certificate of Occupancy or Certificate of Occupancy.

For each reporting cycle, the Department shall determine whether an exemption under this subsection applies to a building. Appeal of a determination that a building is not exempt shall be made according to the procedures set forth in Section 98.0403.2 of the Los Angeles Municipal Code.

91.9706.3. Required Submittal to the Department. The building owner shall submit to the Department a Confirmation of Audit and Retro-Commissioning for each building, or proof of meeting one of the exemptions, subject to this division, in accordance with the schedule set forth in LAMC Section 91.9708. The Confirmation of Audit and Retro-Commissioning shall, at minimum, include the information required under Subsections 91.9706.1.1, 91.9706.1.2, 91.9706.2.1 and 91.9706.2.2.

SEC. 91.9707. RECORD MAINTENANCE.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

The building owner shall maintain records related to benchmarking, audits and retro-commissioning, including, but not limited to, the energy and water bills and reports or forms received from tenants and/or utilities. Such records shall be preserved for a period of five years. When the building is sold, the records shall be given to the new building owner.

SEC. 91.9708. SCHEDULE FOR COMPLIANCE.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

91.9708.1. Schedule for Benchmarking Report Compliance. (Amended by Ord. No. 185,198, Eff. 11/22/17.) An annual benchmarking report in compliance with LAMC Section 91.9705 shall be submitted to the Department according to the following schedule:

1. For buildings owned by the City with gross floor area of 7,500 square feet or more, the owner must complete and submit the initial benchmarking report on or before December 1, 2017, and annually no later than June 1 thereafter.

2. For a privately-owned building or a building owned by a local agency of the State with gross floor area of 100,000 square feet or more, the owner must complete and submit the initial benchmarking report on or before December 1, 2017, and annually no later than June 1 thereafter.

3. For a privately-owned building or a building owned by a local agency of the State with gross floor area of 50,000 square feet or more but less than 100,000 square feet, the owner must complete and submit the initial benchmarking report on or before June 1, 2018, and annually no later than June 1 thereafter.

4. For a privately-owned building or a building owned by a local agency of the State with gross floor area of 20,000 square feet or more, but less than 50,000 square feet, the owner shall complete and submit the initial benchmarking report on or before June 1, 2019, and annually no later than June 1st thereafter. **(Amended by Ord. No. 186,789, Eff. 11/12/20.)**

91.9708.2. Schedule for Audits and Retro-Commissioning Report Compliance or Exemption. Compliance with Section 91.9706 shall be due once every five years, as provided in Table 9708.2 based on the last digit of the Los Angeles Department of Building and Safety Building Identification Number (LADBS Building ID) assigned by LADBS to each building subject to this Division under Section 91.9703. Reports or requests for exemption must be received by LADBS by the compliance due date, but not earlier than 90 calendar days prior to the compliance due date. **(Amended by Ord. No. 186,789, Eff. 11/12/20.)**

Table 9708.2

(Amended by Ord. No. 186,789, Eff. 11/12/20.)

Last digit of LADBS Building ID	Initial compliance due date	Subsequent compliance due dates
0 or 1	December 1, 2021	Every five years thereafter
2 or 3	December 1, 2022	Every five years thereafter
4 or 5	December 1, 2023	Every five years thereafter
6 or 7	December 1, 2024	Every five years thereafter
8 or 9	December 1, 2025	Every five years thereafter

91.9708.2.1. Timing of Audit and Retro-Commissioning or Exemption. Except as otherwise provided in Subsection 91.9708.3, the audits and retro-commissioning activities shall be completed no earlier than five years prior to a building's reporting compliance due date. **(Amended by Ord. No. 186,789, Eff. 11/12/20.)**

EXCEPTION: Buildings with an AIN (Assessor Identification Number) ending in 0 or 1 that had an initial compliance due date on January 1, 2021 or December 1, 2021 may choose one of the following options for submitting the initial report:

1. Submit the Audit and Retro-Commissioning report or request an exemption by December 1, 2021. All subsequent reports or requests for exemptions shall be completed in accordance with Table 9708.2, which is based on the last digit of the LADBS Building ID.

2. Submit the initial Audit and Retro-Commissioning report or request an exemption based on the last digit of the LADBS Building ID in accordance with Table 9708.2.

If the December 1, 2021, deadline is not met for buildings covered under this exception, then the compliance due dates for the initial and subsequent Audit and Retro-Commissioning reports or requests for exemptions shall be based on the last digit of the LADBS Building ID in accordance with Table 9708.2.

91.9708.3. Time Extensions. A building owner may be granted an extension of time to file any submittal required by this Division provided satisfactory proof that one of the following conditions applies. Further, the Department may, at its discretion, grant an extension of time without a filing fee for reviewing and approving the request for an extension of time for conditions 4. through 8.: **(Amended by Ord. No. 186,789, Eff. 11/12/20.)**

1. The building is under temporary financial or legal distress, as verified by recent financial statements, legal filings and other relevant documents showing one or more of the following:

- (a) The building is under the control of a court-appointed receiver as a result of financial distress;
- (b) The building is owned by a financial institution as a result of borrower default;
- (c) The building has been acquired by a financial institution via deed in lieu of foreclosure;
- (d) The building is encumbered by a senior mortgage subject to a notice of default;
- (e) The building is an asset subject to probate proceedings;
- (f) The building was subject to property tax arrearages that resulted in the building's inclusion, within the prior two years, on the Los Angeles County annual tax lien sale list; or
- (g) The building is subject to a State of California Board of Equalization (BOE) Welfare Property Tax Exemption and the cost of complying with reporting requirements will exceed or significantly deplete existing cash flow. Proof of a BOE-issued Organizational Clearance Certificate and, where the building owner is a limited partnership, a Supplemental Clearance Certificate must be shown.

2. The building is a residential building currently in the Rent Escrow Account Program (REAP) and compliance with this division will materially interfere with compliance with REAP.

3. The owner is unable to timely comply due to a substantial hardship, as determined by the Department.

4. There was a delay receiving energy and or water usage data from the utilities even though it was requested by the owner as directed by the respective utility. Additionally, the owner must have properly submitted the initial request for usage data at least eight weeks prior to the compliance deadline and provided any subsequent information requested by the utilities within the timeframe the utilities specified or within 10 business days if a timeframe was not specified by the utilities.

5. There was an error on the part of the City in providing the building owner with notification pursuant to Subsection 91.9708.4 Notification.

6. Information provided by the City was in conflict with the requirements or intent of the EBEWE Program.

7. The Energy Star Portfolio Manager system malfunctioned or was inaccessible through no fault of the building owner or owner's designee responsible for filing the report.

8. The building owner became the owner less than 90 calendar days prior to the benchmark compliance date.

91.9708.4. Notification. For buildings with compliance dates of January 1, 2018 or later, the Department shall notify the owner of each building subject to the scope of this division at least six months prior to the due dates specified in Subsections 91.9708.1 and 91.9708.2.

SEC. 91.9709. NONCOMPLIANCE FEE.

(Amended by Ord. No. 186,789, Eff. 11/12/20.)

Failure to comply with this division shall subject the owner to noncompliance fees as specified in Section 98.0411 of the Los Angeles Municipal Code, except that the amount of the noncompliance fee shall be \$202.

EXCEPTION: The Department may, at its discretion, waive an EBEWE noncompliance fee and associated late fees and interest if it determines, based on satisfactory and verifiable proof, that late compliance or noncompliance was due to any condition described in Subdivisions 4. through 8. of LAMC Subsection 91.9708.3. The waiver of these fees and interest may be applied retroactively, at the discretion of the Department, to December 1, 2017, as applicable.

SEC. 91.9710. SUBMITTAL FEES.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

The owner shall pay to the Department the following fees for each building:

91.9710.1. Annual Disclosure Compliance Fee. The Department shall charge the owner a fee in the amount of \$61.00 for each Annual Benchmarking Report submitted to the Department.

91.9710.2. Audit and Retro-Commissioning Compliance Fee. The Department shall charge the owner a fee in the amount of \$183.00 for each submittal of a Confirmation of Audit and Retro-Commissioning to the Department.

SEC. 91.9711. BUILDING AND SAFETY DEVELOPMENT SURCHARGE.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

There shall be added to the total of all fees imposed under this division a surcharge in the amount equal to the greater of six percent of the fee or one dollar. All monies received from this surcharge shall be deposited to and expended as the "Building and Safety Systems Development Account" of the Department of Building and Safety Building Permit Enterprise Fund pursuant to Section 5.121.8 of the Los Angeles Administrative Code.

SEC. 91.9712. SEVERABILITY.

(Added by Ord. No. 184,674, Eff. 1/29/17.)

If any provision of this ordinance is found to be unconstitutional or otherwise invalid by any court of competent jurisdiction, that invalidity shall not affect the remaining provisions of this ordinance, which can be implemented without the invalid provisions and, to this end, the provisions of this ordinance are declared to be severable. The City Council hereby declares that it would have adopted each and every provision and portion thereof not declared invalid or unconstitutional, without regard to whether any portion of the ordinance would subsequently be declared invalid or unconstitutional.

ARTICLE 1.2

EXISTING BUILDING CODE

(Article 1.2 Added by Ord. No. 184,691, Eff. 12/30/16.)

Division

- 1 [Scope and Administration]
 - 2 [Definitions]
 - 3 [Provisions for All Compliance Methods]
 - 4 [Prescriptive Compliance Method]
 - 5 [Classification of Work]
 - 6 [Repairs]
 - 7 [Alterations – Level 1]
 - 8 [Alterations – Level 2]
 - 9 [Alterations – Level 3]
 - 10 [Change of Occupancy]
 - 11 [Additions]
 - 12 [Historic Buildings]
 - 13 [Relocated or Moved Buildings]
 - 14 [Performance Compliance Methods]
 - 15 [Construction Safeguards]
 - 16 [Referenced Standards]
- Appendix A, Chapter A1
Appendix A, Chapter A2
Appendix A, Chapter A3
Appendix A, Chapter A4
Appendix A, Chapter A5
Resource A

DIVISION 1

[SCOPE AND ADMINISTRATION]

Section

- 91.2.100 Basic Provisions.
91.2.101 Title.
91.2.102 Scope.

SEC. 91.2.100. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

The Los Angeles Existing Building Code adopts by reference portions of the 2022 California Existing Building Code (CEBC). Chapter 1 of the CEBC is not adopted. Article 1, Division 1 of Chapter IX of the Los Angeles Municipal Code is adopted by reference with the following additions and amendments.

SEC. 91.2.101. TITLE.

Article 1.2 of Chapter IX of the Los Angeles Municipal Code (LAMC) shall collectively be known as the Los Angeles Existing Building Code or LAEBC.

SEC. 91.2.102. SCOPE.

The provisions of the LAEBC shall apply to repair, alteration, change of occupancy, addition to and relocation of every existing building or structure or any appurtenances connected or attached to such buildings or structures throughout the City of Los Angeles (City). Wherever the word "Code" is used in this article it shall mean the Los Angeles Existing Building Code.

DIVISION 2

[DEFINITIONS]

Section

- 91.2.200 Basic Provisions.
91.2.201 Definitions.

SEC. 91.2.200. BASIC PROVISIONS.

Chapter 2 of the CEBC is hereby adopted by reference with the following exceptions, modifications and additions.

SEC. 91.2.201. DEFINITIONS.

Section 202 of the CEBC is adopted by reference, except that the following CEBC definitions are not adopted:

CODE OFFICIAL.

BUILDING OFFICIAL.

The following definitions are adopted:

CODE OFFICIAL. See Building Official.

BUILDING OFFICIAL. See Los Angeles Municipal Code Section 91.202.

DIVISION 3

[PROVISIONS FOR ALL COMPLIANCE METHODS]

Section
91.2.300 Basic Provisions.

SEC. 91.2.300. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 3 of the 2022 CEBC is hereby adopted by reference except as amended herein.

91.2.302.3. Existing Materials. Materials already in use in a building in compliance with requirements or approvals in effect at the time of their erection or installation shall be permitted to remain in use unless determined by the Building Official to be unsafe pursuant to CEBC Section 115.

Replacement, Retention and Extension of Original Materials. The replacement, retention and extension of original materials, and the use of original methods of construction, for any building or accessory structure may remain, provided the aggregate value of work in any 12 month period does not exceed 10% of the replacement value, and provided further that no hazardous conditions exist and provided such building or structure complied with the building code provision in effect at the time of original construction and the building or accessory structure does not become or continue to be a substandard building.

EXCEPTIONS:

1. Replacement, retention and extension of unreinforced masonry wall is not permitted.
2. Alteration, repair or rehabilitation of the existing portion in excess of 10% of the replacement value of a building or structure may be made provided that all the work conforms to this Code for a new building and that no hazardous condition or substandard building is continued or created in the remainder of the building as a result of such work.

91.2.302.6. Maintenance. Buildings and structures, and parts thereof, shall be maintained in a safe and sanitary condition. Devices or safeguards which are required by the CBC and this Code shall be maintained in conformance with the code edition under which installed. The owner or the owner's designated agent shall be responsible for the maintenance of buildings and structures. To determine compliance with this subsection, the Department shall have the authority to require a building or structure to be reinspected. The requirements of this division shall not provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structures. Maintenance of buildings and structures shall comply with Divisions 81 and 86 of Article 1, Chapter IX of the LAMC.

91.2.302.7. Compliance. Alterations, repairs, additions and changes of occupancy to, or relocation of, existing structure shall comply with the provisions for alterations, repairs, additions and changes of occupancy in the Los Angeles Fire Code, Los Angeles Mechanical Code, Los Angeles Plumbing Code, Los Angeles Residential Code and Los Angeles Electrical Code.

Where there are different requirements in this Code, the most restrictive requirement shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

DIVISION 4

[PRESCRIPTIVE COMPLIANCE METHOD]

(Division 4 Repealed and Replaced by Ord. No. 186,488, Eff. 12/27/19.)

Section
91.2.400 Basic Provisions.

SEC. 91.2.400. BASIC PROVISIONS.

Chapter 4 of the CEBC is hereby adopted by reference except as amended herein

91.2.401. Scope. Repairs shall comply with the requirements of this division. Repair to historic buildings need only comply with Chapter 12 of the CEBC. [OSHPD 1R, 2, 4, & 5] repairs to historic buildings not adopted by OSHPD shall comply with the requirements in the California Building Code, Sections 1224.2, 1225.2, 1226.2, 1227.2 and 1228.2 for functional requirements. In addition to the requirements of the CEBC, existing buildings and structures shall comply with the applicable regulations of Divisions 81, 82, 83, 84, 85, 86, 88, 89, 91, 93, 95 and 97 of the Los Angeles Building Code (LABC) at Article 1, Chapter IX of the LAMC, Appendix A Chapters A1 and A2 of the LAEBC, and the voluntary earthquake hazard reduction standards of Divisions 92, 94 and 96 of Article 1, Chapter IX of the LAMC.

DIVISION 5

[CLASSIFICATION OF WORK]

Section
91.2.500 Basic Provisions.

SEC. 91.2.500. BASIC PROVISIONS.

Chapter 5 of the CEBC is hereby adopted by reference except as amended herein.

91.2.501.1. Scope. The provisions of this division shall control the alternation, addition and change of occupancy of existing buildings and structures, [BSC] including state-regulated structures in accordance with Section 501.1.2 of the CEBC. In addition to the requirements of the CEBC, existing buildings and structures shall comply with the applicable regulations of Divisions 81, 82, 83, 84, 85, 86, 88, 89, 91, 93, 95 and 97 of the Los Angeles Building Code (LABC) at Article 1, Chapter IX of the LAMC, Appendix A Chapters A1 and A2 of the LAEBC, and the voluntary earthquake hazard reduction standards of Divisions 92, 94 and 96 of Article 1, Chapter IX of the LAMC.

91.2.502.5. Existing Structural Elements Carrying Lateral Load. (Amended by Ord. No. 188,739, Eff. 9/23/25.) Where the addition is structurally independent of the existing structure, existing lateral load-carrying structural elements shall be permitted to remain unaltered. Where the addition is not structurally independent of the existing structure, the existing structure and its addition acting together as a single structure shall be shown to meet the requirements of Sections 1609 and 1613 of the California Building Code using full seismic forces. For purposes of CEBC Section 502, compliance with ASCE 41, using a Tier 3 procedure and the two-level performance objective in CEBC Table 304.3.1 for the applicable risk category, shall be deemed to meet the requirements of CBC Section 1613, with procedures established by the Department.

EXCEPTIONS:

1. Except for Unreinforced Masonry (URM) Buildings: Any existing lateral load-carrying structural element whose demand-capacity ratio with the addition considered is no more than 10% greater than its demand-capacity ratio with the addition ignored shall be permitted to remain unaltered. For purposes of calculating demand-capacity ratios, the demand shall consider applicable load combinations with design lateral loads or forces in accordance with CBC Sections 1609 and 1613. For purposes of this exception, comparisons of demand-capacity ratios and calculations of design lateral loads, forces and capacities shall account for the cumulative effects of additions and alterations since original construction.

This exception shall not apply if the addition creates a structural irregularity as defined in ASCE 7 or makes an existing structural irregularity more severe.

2. Unreinforced Masonry (URM) Buildings: Any existing lateral load-carrying structural element on an unreinforced masonry building whose demand-capacity ratio with the addition considered is less than 10% greater than its demand-capacity ratio with the addition ignored shall comply with CEBC Appendix Chapter A1. When the demand-capacity ratio with the addition considered is 10% or greater than its demand-capacity ratio with the addition ignored, the addition shall be designed in accordance with Division 16, Article 1, Chapter IX of the LAMC (Chapter 16 of the Building Code).

3. Buildings of Group R occupancy with not more than five dwelling or sleeping units used solely for residential purposes where the existing building and the addition together comply with the conventional light-frame construction methods of the California Building Code or the provisions of the California Residential Code.

91.2.503.4. Existing Structural Elements Carrying Lateral Load. (Amended by Ord. No. 188,739, Eff. 9/23/25.) Except as permitted by CEBC Section 503.13, where the alteration increases design lateral loads in accordance with CBC Sections 1609 or 1613, or where the alteration results in a prohibited structural irregularity as defined in ASCE 7, or where the alteration decreases the capacity of any existing lateral load-carrying structural element, the structure of the altered building or structure shall be shown to meet the requirements of CBC Sections 1609 and 1613. Reduced seismic loads shall be permitted providing the reduced seismic load is not less than the original building permitted seismic loads. For purposes of CEBC Section 503, compliance with ASCE 41, using the performance objective in CEBC Table 304.3.1 for the applicable risk category, shall be deemed to meet the requirements of CBC Section 1613. Also, for purposes of CEBC Section 503, compliance with ASCE 41, using the performance objective in CEBC Table 304.3.2 for the applicable risk category, shall be deemed to meet the requirements of reduced seismic loads, with procedures established by the Department.

EXCEPTIONS:

1. Except for Unreinforced Masonry Buildings (URM): Any existing lateral load-carrying structural element whose demand-capacity ratio with the alteration considered is no more than 10% greater than its demand-capacity ratio with the alteration ignored shall be permitted to remain unaltered. For purposes of calculating demand-capacity ratios, the demand shall consider applicable load combinations with design lateral loads or forces in accordance with CBC Sections 1609 and 1613. Reduced seismic forces shall be permitted. For purposes of this exception, comparisons of demand-capacity ratios and calculations of design lateral loads, forces and capacities shall account for the cumulative effects of additions and alterations since original construction.

This exception shall not apply if the alteration creates structural irregularity as defined in ASCE 7 or makes an existing structural irregularity more severe.

2. Unreinforced Masonry (URM) Buildings: Any existing lateral load-carrying structural element on an URM building whose demand-capacity ratio with the alteration considered is less than 10% greater than its demand-capacity ratio with the alteration ignored shall comply with CEBC Appendix Chapter A1. When the demand-capacity ratio with the alteration considered is 10% or greater than its demand-capacity ratio with the alteration ignored, the entire building shall be designed in accordance with Division 16, Article 1, Chapter IX of the LAMC (Chapter 16 of the Building Code.). Reduced seismic loads shall be permitted.

A structural analysis per CEBC Appendix Chapter A1 is required for any alterations to crosswalls or diaphragms.

3. Buildings in which the increase in the demand-capacity ratio is due entirely to the addition of rooftop-supported mechanical equipment individually having an operating weight less than 400 pounds (181.4 kg) and where the total additional weight of all rooftop equipment placed after initial construction of the building is less than 10 percent of the roof dead load. For purposes of this exception, roof shall mean the roof level above a particular story.

91.2.506.5.3. Seismic Loads (seismic force-resisting system). (Amended by Ord. No. 188,739, Eff. 9/23/25.) Where a change of occupancy results in a building being assigned to a higher risk category, or where the change is from a Group S or U occupancy to an occupancy other than Group S or Group U, the building shall satisfy the requirements of Section 1613 of the California Building Code for the new risk category using full seismic forces. For purposes of this section, compliance with ASCE 41, using a Tier 3 procedure and the two-level performance objective in CEBC Table 304.3.1 for the applicable risk category, shall be deemed to meet the requirements of CBC Section 1613, with procedures established by the Department.

EXCEPTIONS:

1. Where the area of the new occupancy is less than 10% of the building area, the occupancy is not changing from a Group S or Group U, and the new occupancy is not assigned to Risk Category IV, compliance with this Section is not required. The cumulative effect of occupancy changes over time shall be considered.

2. When a change of use results in a structure being reclassified from Risk Category I or II to Risk Category III and the structure is located where the seismic coefficient, SDS, is less than 0.33, compliance with the seismic requirements of CBC Section 1613 is not required.

3. Unreinforced masonry bearing wall buildings assigned to Risk Category III and to Seismic Design Category A or B shall be permitted to use Appendix Chapter A1 of this code.

4. Where the change is from a Group S or Group U occupancy and there is no change of risk category, use of reduced seismic forces shall be permitted.

For a change of occupancy of an existing commercial or industrial building to residential use, all existing buildings shall be analyzed for 75% of the design earthquake ground motion, as defined in CBC Section 1613, but in no event shall there be a reduction in the capacity of the seismic force resisting system where that system provides a greater level of protection than the minimum requirements established by this Code.

For an existing URM building, structural analysis per CBC Chapter 16 is required if the risk category is changed to III or IV. Structural analysis per CEBC Appendix A1 is required if the rating classification per LABC Division 88, Table 88-A is changed to I or II.

For URM buildings with an approved occupant load greater than 100, the occupant load may be increased by a maximum of 10% without changing the rating class or risk category.

The most restrictive requirement of CEBC Sections 502 (Addition), 503 (Alteration), 405 (Repair) and 506 (Change of Occupancy) shall apply.

DIVISION 6

[REPAIRS]

Section
91.2.600 Basic Provisions.

SEC. 91.2.600. BASIC PROVISIONS.

Chapter 6 of the CEBC is hereby adopted by reference.

DIVISION 7

[ALTERATIONS – LEVEL 1]

Section
91.2.700 Basic Provisions.

SEC. 91.2.700. BASIC PROVISIONS.

Chapter 7 of the CEBC is hereby adopted by reference.

DIVISION 8

[ALTERATIONS – LEVEL 2]

Section
91.2.800 Basic Provisions.

SEC. 91.2.800. BASIC PROVISIONS.

Chapter 8 of the CEBC is hereby adopted by reference.

DIVISION 9

[ALTERATIONS – LEVEL 3]

Section
91.2.900 Basic Provisions.

SEC. 91.2.900. BASIC PROVISIONS.

Chapter 9 of the CEBC is hereby adopted by reference.

DIVISION 10
[CHANGE OF OCCUPANCY]

Section
91.2.1000 Basic Provisions.

SEC. 91.2.1000. BASIC PROVISIONS.

Chapter 10 of the CEBC is hereby adopted by reference.

DIVISION 11
[ADDITIONS]

Section
91.2.1100 Basic Provisions.

SEC. 91.2.1100. BASIC PROVISIONS.

Chapter 11 of the CEBC is hereby adopted by reference.

DIVISION 12
[HISTORIC BUILDINGS]

Section
91.2.1200 Basic Provisions.

SEC. 91.2.1200. BASIC PROVISIONS.

Chapter 12 of the CEBC is hereby adopted by reference.

DIVISION 13
[RELOCATED OR MOVED BUILDINGS]

Section
91.2.1300 Basic Provisions.

SEC. 91.2.1300. BASIC PROVISIONS.

Chapter 13 of the CEBC is hereby adopted by reference.

DIVISION 14
[PERFORMANCE COMPLIANCE METHODS]

Section
91.2.1400 Basic Provisions.

SEC. 91.2.1400. BASIC PROVISIONS.
(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Chapter 14 of the CEBC is hereby adopted by reference except CEBC Section 1401.2 is not adopted and in lieu, LAMC Subsection 91.2.1401.2 is added.

91.2.1401.2. Conformance. Structures moved into or within the City shall comply with the provisions of Division 83, Article 1, Chapter IX of the LAMC.

DIVISION 15
[CONSTRUCTION SAFEGUARDS]

Section
91.2.1500 Basic Provisions.

SEC. 91.2.1500. BASIC PROVISIONS.

Chapter 15 of the CEBC is hereby adopted by reference.

DIVISION 16
[REFERENCED STANDARDS]

Section
91.2.1600 Basic Provisions.

SEC. 91.2.1600. BASIC PROVISIONS.

Chapter 16 of the CEBC is hereby adopted by reference.

APPENDIX A, CHAPTER A1

Section
91.2.1700 Basic Provisions.

SEC. 91.2.1700. BASIC PROVISIONS.

Appendix A, Chapter A1 of the CEBC is hereby adopted by reference.

APPENDIX A, CHAPTER A2

Section
91.2.1800 Basic Provisions.

SEC. 91.2.1800. BASIC PROVISIONS.

Appendix A, Chapter A2 of the CEBC is hereby adopted by reference.

APPENDIX A, CHAPTER A3

Section
91.2.1900 Basic Provisions.

SEC. 91.2.1900. BASIC PROVISIONS.

Appendix A, Chapter A3 of the CEBC is hereby adopted by reference.

APPENDIX A, CHAPTER A4

Section
91.2.2000 Basic Provisions.
91.2.2100 Reserved.

SEC. 91.2.2000. BASIC PROVISIONS.

Appendix A, Chapter A4 of the CEBC is hereby adopted by reference.

SEC. 91.2.2100. RESERVED.

APPENDIX A, CHAPTER A5

Section	
91.2.2200	Referenced Standards.
91.2.2300	Reserved.
91.2.2400	Reserved.

SEC. 91.2.2200. REFERENCED STANDARDS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Appendix A, Chapter A5 of the CEBC is hereby adopted by reference.

SEC. 91.2.2300. RESERVED.

SEC. 91.2.2400. RESERVED.

RESOURCE A

Section	
91.2.2500	Basic Provisions.

SEC. 91.2.2500. BASIC PROVISIONS.

Resource A of the International Existing Building Code is hereby adopted by reference.

ARTICLE 1.5

LOS ANGELES RESIDENTIAL CODE

(Article 1.5, Chapter IX, Added by Ord. No. 181,756, Eff. 7/6/11;

Amended by Ord. No. 182,845, Eff. 1/3/14.)

- Division
- 1 [Scope and Application]
 - 2 [Definitions]
 - 3 [Building Planning]
 - 4 [Foundations]
 - 5 [Floors]
 - 6 [Wall Construction]
 - 7 [Wall Covering]
 - 8 [Roof-Ceiling Construction]
 - 9 [Roof Assemblies]
 - 10 [Chimneys and Fireplaces]

ARTICLE 1.5, DIVISION 1

[SCOPE AND APPLICATION]

Section	
91.5.100	Basic Provisions.
91.5.101	Title.

SEC. 91.5.100. BASIC PROVISIONS.
(Amended by Ord. No. 188,739, Eff. 9/23/25.)

The Los Angeles Residential Code adopts by reference portions of the California Residential Code (CRC). Chapter 1 of the CRC is not adopted and in lieu thereof Division

1, Article 1, Chapter IX of the Los Angeles Municipal Code is hereby adopted by reference with the following amendments. Appendix AS of the CRC is not adopted.

SEC. 91.5.101. TITLE.
(Amended by Ord. No. 186,488, Eff. 12/27/19.)

91.5.101.1. Title. Article 1.5, Chapter IX of the LAMC shall be known as the Los Angeles Residential Code or LARC, a portion of the Los Angeles Municipal Code (LAMC), and wherever the word Code is used in this article, it shall mean the Los Angeles Residential Code.

91.5.101.2. Scope. (Amended by Ord. No. 187,719, Eff. 1/23/23.) The provisions of the LARC for one- and two-family dwellings shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal, and demolition of detached one- and two-family dwellings, efficiency dwelling units, and townhouses not more than three stories above grade plane in height with a separate means of egress and their accessory structures. In addition to the LARC, Divisions 1, 11, 17, 31, 33, 63, 67, 70, 71, 72, 81, 89, 92, 93 and 96 of the LABC shall also be applicable to one- and two-family dwellings, efficiency dwelling units, and townhouses unless stated otherwise.

The LABC and LARC adopt by indicated reference portions of the 2022 California Building Code (CBC) or the 2022 California Residential Code (CRC) located at Title 24 of the California Code of Regulations (CCR).

EXCEPTION: The following shall be permitted to be constructed in accordance with this code where provided with a residential fire sprinkler system complying with Section R313:

1. Live/work units located in townhouses and complying with the requirements of Section 508.5 of the California Building Code.
2. Owner-occupied lodging houses with five or fewer guestrooms.
3. A care facility with five or fewer persons receiving custodial care within a dwelling unit.
4. A care facility with five or fewer persons receiving medical care within a dwelling unit.
5. A care facility for five or fewer persons receiving care that are within a single-family dwelling.

For additions, alterations, moving, and maintenance of buildings and structures, see Article 1.2, Chapter IX of the Los Angeles Municipal Code. For temporary buildings and structures, see CBC Section 3103.

ARTICLE 1.5, DIVISION 2

[DEFINITIONS]

Section
91.5.200 Basic Provisions.
91.5.202 Definitions.

SEC. 91.5.200. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 2 of the CRC is hereby adopted by reference with the following exceptions, modifications and additions.

SEC. 91.5.202. DEFINITIONS.
(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Chapter 202 of the CRC is adopted by reference, except that the following CRC definitions are not adopted:

ATTIC, HABITABLE.

BUILDING OFFICIAL.

LOT.

The following definitions are adopted:

BUILDING OFFICIAL. See Los Angeles Municipal Code Section 91.202.

LOT. See Los Angeles Municipal Code Section 12.03.

SUPERINTENDENT OF BUILDING. See Los Angeles Municipal Code Section 91.202.

ARTICLE 1.5, DIVISION 3

[BUILDING PLANNING]
(Amended by Ord. No. 182,845, Eff. 1/3/14.)

Section
91.5.300 Basic Provisions.

SEC. 91.5.300. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 3 of the CRC is adopted by reference except for the following Sections are not adopted: R301.1.3, R301.1.3.2, R301.2.2.6, R311.2, R313.1, R313.2, R321.1, R321.2, R322.1.4.1, and Table R301.2(1); and the following LAMC Sections are added: 91.5.301.1.3, 91.5.301.1.3.2, 91.5.301.1.5, 91.5.301.2.2.6, 91.5.301.2.2.11, 91.5.311.2, 91.5.313.1, 91.5.313.2, 91.5.321.1, 91.5.321.2, 91.5.322.1.4.1, and Table R301.2(1).

91.5.301.1.3. Engineered Design. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Where a building of otherwise conventional construction contains structural elements exceeding the limits of CRC Section R301 or otherwise not conforming to this Code, these elements shall be designed in accordance with accepted engineering practice. The extent of such design need only demonstrate compliance of nonconventional elements with other applicable provisions and shall be compatible with the performance of the conventional framed system. Engineered design in accordance with the Los Angeles Building Code is permitted for all buildings and structures, and parts thereof, included in the scope of this Code.

Buildings with masonry or concrete walls or of light frame construction exceeding two stories shall have an engineered design in accordance with the Los Angeles Building Code.

91.5.301.1.3.2. Woodframe Structures. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The Building Official shall require construction documents to be approved and stamped by a California licensed architect or engineer for all dwellings of wood frame construction more than two stories in height with basement located in Seismic Design Category A, B, or C. Notwithstanding other provisions of law, the law establishing these provisions is found in Business and Professions Code Sections 5537 and 6737.1.

The Building Official shall require construction documents to be approved and stamped by a California licensed architect or engineer for all dwellings of woodframe construction more than one story in height located in Seismic Design Category D₀, D₁, D₂, or E.

91.5.301.1.5. Seismic Design Provisions for Buildings Constructed on or into Slopes Steeper than One Unit Vertical in Three Units Horizontal (33.3 Percent Slope). (Amended by Ord. No. 186,488, Eff. 12/27/19.) The design and construction of new buildings and additions to existing buildings when constructed on or into slopes steeper than one-unit vertical in three-units horizontal (33.3% slope) shall comply with LAMC Subsection 91.1613.8.

Table R301.2(1)

Climatic and Geographic Design Criteria

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

GROUND SNOW LOAD	WIND DESIGN				SEISMIC DESIGN CATEGORY ^f	SUBJECT TO DAMAGE FROM			WINTER DESIGN TEMP ^e	ICE BARRIER UNDERLAYMENT REQUIRED ^h	FLOOD HAZARDS ^g	AIR FREEZING INDEX ⁱ	MEAN ANNUAL TEMP ^j
	Speed ^d (mph)	Topographic effects ^k	Special wind region ^l	Wind-borne debris zone ^m		Weathering ^a	Frost line depth ^b	Termite ^c					
0	85	No	No	No	D ₂ /E	Negligible	12"	Yes	39 ^o to 44 ^o	No	See Flood Map	0	61.1 ^o

For SI: 1 pound per square foot = 0.0479 kPa, 1 mile per hour = 0.447 m/s.

- Where weathering requires a higher strength concrete or grade of masonry than necessary to satisfy the structural requirements of this Code, the frost line depth strength required for weathering shall govern. The weathering column shall be filled in with the weathering index (i.e., "negligible", "moderate" or "severe") for concrete as determined from the Weathering Probability Map [CRC Figure R301.2(4)].
- The frost line depth may require deeper footings than indicated in CRC Figure R403.1(1). The jurisdiction shall fill in the frost line depth column with the minimum depth of footing below finish grade.
- The jurisdiction shall fill in this part of the table to indicate the need for protection depending on whether there has been a history of local subterranean termite damage.
- The jurisdiction shall fill in this part of the table with the wind speed from the basic wind speed map [CRC Figure R301.2 (5) A]. Wind exposure category shall be determined on a site-specific basis in accordance with CRC Section R301.2.1.4.
- Temperatures shall be permitted to reflect local climates or local weather experience as determined by the Building Official.
- The jurisdiction shall fill in this part of the table with the seismic design category determined from CRC Section R301.2.2.1.
- The jurisdiction shall fill in this part of the table with (a) the date of the jurisdiction's entry into the National Flood Insurance Program (date of adoption of the first code or ordinance for management of flood hazard areas), (b) the date(s) of the Flood Insurance Study and (c) the panel numbers and dates of all currently effective FIRMs and FBFMs or other flood hazard map adopted by the authority having jurisdiction, as amended.
- In accordance with CRC Sections R905.1.2, R905.4.3.1, R905.5.3.1, R905.7.3.1, and R905.8.3.1, where there has been a history of local damage from the effects of ice damming, the jurisdiction shall fill in this part of the table with "YES". Otherwise, the jurisdiction shall fill in this part of the table with "NO".
- The jurisdiction shall fill in this part of the table with the 100-year return period air freezing index (BF-days) from CRC Figure R403.3(2) or from the 100-year (99%) value on the National Climatic Data Center data table "Air Freezing Index - USA Method (Base 32°F)" at www.ncdc.noaa.gov/fpsf.html.
- The jurisdiction shall fill in this part of the table with the mean annual temperature from the National Climatic Data Center data table "Air Freezing Index - USA Method (Base 32°F)" at www.ncdc.noaa.gov/fpsf.html.
- In accordance with CRC Section R301.2.1.5, where there is local historical data documenting structural damage to buildings due to topographic wind speed-up effects, the jurisdiction shall fill in this part of the table with "YES". Otherwise, the jurisdiction shall indicate "NO" in this part of the table.
- In accordance with CRC Figure R301.2(5) A, where there is local historical data documenting unusual wind conditions, the jurisdiction shall fill in this part of the table with "YES" and identify any specific requirements. Otherwise, the jurisdiction shall indicate "NO" in this part of the table.
- In accordance with CRC Section R301.2.1.2, the jurisdiction shall indicate the wind-borne debris wind zone(s). Otherwise, the jurisdiction shall indicate "NO" in this part of the table.

91.5.301.2.2.6. Irregular Buildings. Prescriptive construction as regulated by this code shall not be used for irregular structures located in Seismic Design Categories C, D₀, D₁, and D₂. Irregular portions of structures shall be designed in accordance with accepted engineering practice to the extent the irregular features affect the performance of the remaining structural system. When the forces associated with the irregularity are resisted by a structural system designed in accordance with accepted engineering practice, design of the remainder of the building shall be permitted using the provisions of this code. A building or portion of a building shall be considered to be irregular when one or more of the following conditions occur:

- When exterior shear wall lines or braced wall panels are not in one plane vertically from the foundation to the uppermost story in which they are required;
- When a section of floor or roof is not laterally supported by shear walls or braced wall lines on all edges;

Exception: Portions of floors that do not support shear walls or braced wall panels above, or roofs, shall be permitted to extend no more than 6 feet (1829 mm) beyond a shear wall or braced wall line.

- When the end of a braced wall panel occurs over an opening in the wall below;
- When an opening in a floor or roof exceeds the lesser of 12 feet (3658 mm) or 50 percent of the least floor or roof dimension;
- When portions of a floor level are vertically offset;
- When shear walls and braced wall lines do not occur in two perpendicular directions;

7. When stories above-grade are partially or completely braced by wood wall framing in accordance with CRC Section R602 or steel wall framing in accordance with CRC Section R603 include masonry or concrete construction; (**Amended by Ord. No. 185,587, Eff. 7/16/18.**)

Exception: Fireplaces, chimneys and masonry veneer as permitted by this code. When this irregularity applies, the entire story shall be designed in accordance with accepted engineering practice.

91.5.301.2.2.11. Anchorage of Mechanical, Electrical, or Plumbing Components and Equipment. (Renumbered and Amended by Ord. No. 186,488, Eff. 12/27/19.) Mechanical, electrical, or plumbing components and equipment shall be anchored to the structure. Anchorage of the components and equipment shall be designed to resist loads in accordance with the International Building Code and ASCE 7, except where the component is positively attached to the structure and flexible connections are provided between the component and associated ductwork, piping, and conduit.

91.5.311.2. Egress Door. (Amended by Ord. No. 186,488, Eff. 12/27/19.) At least one egress door shall be provided for each dwelling unit. The egress door shall be side-hinged, and shall provide a minimum clear width of 32 inches (813 mm) when measured between the face of the door and the stop, with the door open 90 degrees (1.57 rad). The minimum clear height of the door opening shall not be less than 78 inches (1981 mm) in height measured from the top of the threshold to the bottom of the stop. This is accomplished by providing a door not less than 3 feet in width and 6 feet 8 inches in height. Egress doors shall be readily openable from inside the dwelling without the use of a key or special knowledge or effort. Every interior door shall have a minimum width of 32 inches (813 mm), except for closets less than 10 square feet in size, which shall comply with CBC Section 1010.1.1, Exception 3.

91.5.313.1. Townhouse Automatic Fire Sprinkler Systems. (Added by Ord. No. 186,503, Eff. 3/11/20.) Every newly constructed townhouse must include an automatic residential fire sprinkler system. Where additions or alterations are made to an existing townhouse that does not have an automatic residential fire sprinkler system, and the aggregate value of the additions and alterations within a one-year period equals or exceeds 50% of the replacement cost of the existing building, an automatic residential fire sprinkler system must be installed in the entire townhouse.

91.5.313.2. One and Two-family Dwelling Automatic Fire Sprinkler Systems. (Amended by Ord. No. 186,503, Eff. 3/11/20.) Every newly constructed one or two-family dwelling must include an automatic residential fire sprinkler system. Where additions or alterations are made to an existing one or two-family dwelling, and the aggregate value of the additions and alterations within a one-year period equals or exceeds 50% of the replacement cost of the existing building, an automatic residential fire sprinkler system must be installed in the entire one or two-family dwelling.

An automatic residential fire sprinkler system is not required in an Accessory Dwelling Unit, provided that all of the following are met:

1. The unit meets the definition of an Accessory Dwelling Unit as defined in the Government Code Section 65852.2.
2. The existing primary residence does not have automatic fire sprinklers.
3. The detached accessory dwelling unit does not exceed 1,200 square feet in size.
4. The unit is on the same lot as the primary residence.

91.5.321. Elevator and Platform Lifts. (Added by Ord. No. 185,587, Eff. 7/16/18.)

91.5.321.1. Elevators. Where provided, passenger elevators, limited-use and limited-application elevators or private residence elevators shall comply with the City of Los Angeles Elevator Code.

91.5.321.2. Platform Lifts. Where provided, platform lifts shall comply with the City of Los Angeles Elevator Code.

91.5.322.1.4.1. Determination of Design Flood Elevations. (Amended by Ord. No. 186,503, Eff. 3/11/20.) If design flood elevations are not specified, the building official is authorized to require the applicant to comply with either of the following:

1. Obtain and reasonably use data available from a federal, state or other source; or
2. Determine the design flood elevation in accordance with accepted hydrologic and hydraulic engineering practices used to define special flood hazard areas. Determinations shall be undertaken by a registered civil engineer who shall document that the technical methods used reflect currently accepted engineering practice. Studies, analyses and computations shall be submitted in sufficient detail to allow thorough review and approval.

ARTICLE 1.5, DIVISION 4

[FOUNDATIONS]

Section
91.5.400 Basic Provisions.

SEC. 91.5.400. BASIC PROVISIONS.

Chapter 4 of the CRC is hereby adopted by reference with the following exceptions, modifications and additions.

91.5.401.1. Application. The provisions of this Division shall control the design and construction of the foundation and foundation spaces for all buildings. In addition to the provisions of this division, the design and construction of foundations in flood hazard areas as established by CRC Table R301.2(1) shall meet the provisions of CRC Section R322. Wood foundations shall be designed and installed in accordance with AF&PA PWF. (**Amended by Ord. No. 185,587, Eff. 7/16/18.**)

Exception: The provisions of this Chapter shall be permitted to be used for wood foundations only in the following situations:

1. In buildings that have no more than two floors and a roof;
2. When interior basement and foundation walls are constructed at intervals not exceeding 50 feet (15 240 mm).

Wood foundations in Seismic Design Category D₀, D₁, or D₂ shall not be permitted.

Exception: In non-occupied, single-story, detached storage sheds and similar uses other than carport or garage, provided the gross floor area does not exceed 200

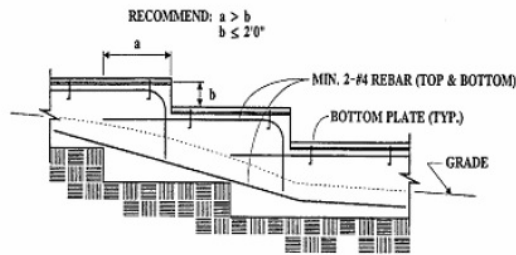
square feet, the plate height does not exceed 12 feet in height above the grade at any point, and the maximum roof projection does not exceed 24 inches.

91.5.403.1.2. Continuous Footing in Seismic Design Categories D₀, D₁, D₂. Exterior walls of buildings located in Seismic Design Categories D₀, D₁, and D₂ shall be supported by continuous solid or fully grouted masonry or concrete footings. All required interior braced wall panels in buildings located in Seismic Design Categories D₀, D₁, and D₂ shall be supported on foundations. (Amended by Ord. No. 184,692, Eff. 12/30/16.)

91.5.403.1.3.6. Isolated Concrete Footings. In detached one- and two-family dwellings located in Seismic Design Category A, B or C that are three stories or less in height and constructed with stud bearing walls, isolated plain concrete footings supporting columns or pedestals are permitted in accordance with CRC Section R403.1.3.4. (Added by Ord. No. 184,692, Eff. 12/30/16.)

91.5.403.1.5. Slope. The top surface of footings shall be level. The bottom surface of footings shall not have a slope exceeding one unit vertical in 10 units horizontal (10-percent slope). Footings shall be stepped where it is necessary to change the elevation of the top surface of the footings or where the slope of the bottom surface of the footings will exceed one unit vertical in ten units horizontal (10-percent slope).

For structures located in Seismic Design Categories D₀, D₁, and D₂, or E, stepped footings shall be reinforced with four 1/2-inch diameter (12.7 mm) deformed reinforcing bars. Two bars shall be placed at the top and bottom of the footing as shown in figure 91.5.403.1.5.



STEPPED FOUNDATIONS

Figure 91.5.403.1.5
Stepped Footing

91.5.404.2. Wood Foundation Walls. Wood foundation walls shall be constructed in accordance with the provisions of CRC Sections R404.2.1 through R404.2.6 and with the details shown in CRC Figures R403.1(2) and R403.1(3). Wood foundation walls shall not be used for structures located in Seismic Design Category D₀, D₁, or D₂. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

ARTICLE 1.5, DIVISION 5

[FLOORS]

Section
91.5.500 Basic Provisions.

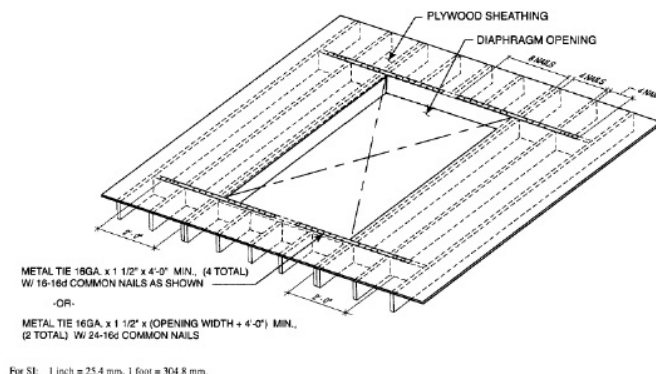
SEC. 91.5.500. BASIC PROVISIONS.

Chapter 5 of the CRC is hereby adopted by reference with the following exceptions, modifications and additions.

91.5.501.1. Application. (Amended by Ord. No. 186,488, Eff. 12/27/19.) The provisions of this division shall control the design and construction of the floors for buildings, including the floors of attic spaces used to house mechanical or plumbing fixtures and equipment. Mechanical, plumbing fixtures, and equipment shall be attached (or anchored) to the structure in accordance with LAMC Subsection 91.5.301.2.2.11.

91.5.503.2.4. Openings in Horizontal Diaphragms. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Openings in horizontal diaphragms with a dimension perpendicular to the joist that is greater than 4 feet (1219.2 mm) shall be constructed in accordance with LAMC Figure 91.5.503.2.4.

Figure 91.5.503.2.4
(Amended by Ord. No. 186,488, Eff. 12/27/19.)



- a. Blockings shall be provided beyond headers.
- b. Metal ties not less than 0.058 inch [1.47 mm (16 galvanized gage)] by 1.5 inches (38 mm) wide with eight 16d common nails on each side of the header-joist intersection. The metal ties shall have a minimum yield of 33,000 psi (227 MPa).

c. Openings in diaphragms shall be further limited in accordance with CRC Section R301.2.2.2.5.

ARTICLE 1.5, DIVISION 6

[WALL CONSTRUCTION]

(Amended by Ord. No. 182,845, Eff. 1/3/14.)

Section
91.5.600 Basic Provisions.

SEC. 91.5.600. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 6 of the CRC is hereby adopted by reference with the exceptions, modifications and additions set forth below.

Table 91.5.602.3(1)

Fastener Schedule for Structural Members

[Table R602.3(1) Fastening Schedule]
(Amended by Ord. No. 184,692, Eff. 12/30/16.)

ITEM	DESCRIPTION OF BUILDING ELEMENTS	NUMBER AND TYPE OF FASTENER ^{a, b, c}	SPACING AND LOCATION
ITEM	DESCRIPTION OF BUILDING ELEMENTS	NUMBER AND TYPE OF FASTENER ^{a, b, c}	SPACING AND LOCATION
Roof			
1	Blocking between ceiling joists or rafters to top plate	4-8d box (2 1/2" × 0.113") or 3-8d common (2 1/2" × 0.131"); or 3-10d box (3" × 0.128"); or 3-3" × 0.131" nails	Toe nail
2	Ceiling joists to plate, toe nail	4-8d box (2 1/2" × 0.113") or 3-8d common (2 1/2" × 0.131"); or 3-10d box (3" × 0.128"); or 3-3" × 0.131" nails	Per joist, toe nail
3	Ceiling joist not attached to parallel rafter, laps over partitions [see Sections R802.3.1, R802.3.2 and Table R802.5.1(9)]	4-10d box (3" × 0.128"); or 3-16d common (3 1/2" × 0.162"); or 4-3" × 0.131" nails	Face nail
4	Ceiling joist attached to parallel rafter (heel joint) [see Sections R802.3.1 and R802.3.2 and Table R802.5.1(9)]	Table R802.5.1(9)	Face nail
5	Collar tie to rafter, face nail or 1 1/4" × 20 ga. ridge strap to rafter	4-10d box (3" × 0.128"); or 3-10d common (3" × 0.148"); or 4-3" × 0.131" nails	Face nail each rafter
6	Rafter or roof truss to plate	3-16d box nails (3 1/2" × 0.135"); or 3-10d common nails (3" × 0.148"); or 4-10d box (3" × 0.128"); or 4-3" × 0.131" nails	2 toe nails on one side and 1 toe nail on opposite side of each rafter or truss ⁱ
7	Roof rafters to ridge, valley or hip rafters or roof rafter to minimum 2" ridge beam	4-16d (3 1/2" × 0.135"); or 3-10d common (3 1/2" × 0.148"); or 4-10d box (3" × 0.128"); or 4-3" × 0.131" nails	Toe nail
		3-16d box (3 1/2" × 0.135"); or 2-16d common (3 1/2" × 0.162"); or 3-10d box (3" × 0.128"); or 3-3" × 0.131" nails	End nail
Wall			
8	Stud to stud (not at braced wall panels)	16d common (3 1/2" × 0.162")	24" o.c. face nail
		10d box (3" × 0.128"); or 3" × 0.131" nails	16" o.c. face nail
9	Stud to stud and abutting studs at intersecting wall corners (at braced wall panels)	16d box (3 1/2" × 0.135"); or 3" × 0.131" nails	12" o.c. face nail
		16d common (3 1/2" × 0.162")	16" o.c. face nail
10	Built-up header (2" to 2" header with 1/2" spacer)	16d common (3 1/2" × 0.162")	16" o.c. each edge face nail
		16d box (3 1/2" × 0.135")	12" o.c. each edge face nail
11	Continuous header to stud	5-8d box (2 1/2" × 0.113"); or 4-8d common (2 1/2" × 0.131"); or 4-10d box (3" × 0.128")	Toe nail
12	Top plate to top plate	16d common (3 1/2" × 0.162")	16" o.c. face nail
		10d box (3" × 0.128"); or 3" × 0.131" nails	12" o.c. face nail
13	Double top plate splice for SDCs A-D ₂ with seismic braced wall line spacing < 25'	8-16d common (3 1/2" × 0.162"); or 12-16d box (3 1/2" × 0.135"); or 12-10d box (3" × 0.128"); or 12-3" × 0.131" nails	Face nail on each side of end joint (minimum 24" lap splice length each side of end joint)
	Double top plate splice SDCs D ₀ , D ₁ , or D ₂ ; and braced wall line spacing ≥ 25'	12-16d (3 1/2" × 0.135")	
14	Bottom plate to joist, rim joist, band joist or blocking (not at braced wall panels)	16d common (3 1/2" × 0.162")	16" o.c. face nail
		16d box (3 1/2" × 0.135"); or 3" × 0.131" nails	12" o.c. face nail
15	Bottom plate to joist, rim joist, band joist or blocking (at braced wall panel)	3-16d box (3 1/2" × 0.135"); or 2-16d common (3 1/2" × 0.162"); or 4-3" × 0.131" nails	3 each 16" o.c. face nail 2 each 16" o.c. face nail 4 each 16" o.c. face nail
16	Top or bottom plate to stud	4-8d box (2 1/2" × 0.113"); or 3-16d box (3 1/2" × 0.135"); or 4-8d common (2 1/2" × 0.131"); or 4-10d box (3" × 0.128"); or 4-3" × 0.131" nails	Toe nail
		3-16d box (3 1/2" × 0.135"); or 2-16d common (3 1/2" × 0.162"); or 3-10d box (3" × 0.128"); or 3-3" × 0.131" nails	End nail

17	Top plates, laps at corners and intersections	3-10d box (3" × 0.128"); or 2-16d common (3 1/2" × 0.162"); or 3-3" × 0.131" nails	Face nail
18	1" brace to each stud and plate	3-8d box (2 1/2" × 0.113"); or 2-8d common (2 1/2" × 0.131"); or 2-10d box (3" × 0.128"); or 2 staples 1 3/4"	Face nail
19	1" × 6" sheathing to each bearing	3-8d box (2 1/2" × 0.113"); or 2-8d common (2 1/2" × 0.131"); or 2-10d box (3" × 0.128"); or 2 staples, 1" crown, 16 ga., 1 3/4" long	Face nail
20	1" × 8" and wider sheathing to each bearing	3-8d box (2 1/2" × 0.113"); or 3-8d common (2 1/2" × 0.131"); or 3-10d box (3" × 0.128"); or 3 staples, 1" crown, 16 ga., 1 3/4" long	Face nail
		Wider than 1" × 8" 4-8d box (2 1/2" × 0.113"); or 3-8d common (2 1/2" × 0.131"); or 3-10d box (3" × 0.128"); or 4 staples, 1" crown, 16 ga., 1 3/4" long	
Floor			
21	Joist to sill, top plate or girder	4-8d box (2 1/2" × 0.113"); or 3-8d common (2 1/2" × 0.131"); or 3-10d box (3" × 0.128"); or 3-3" × 0.131" nails	Toe nail
22	Rim joist, band joist or blocking to sill or top plate (roof applications also)	8d box (2 1/2" × 0.113")	4" o.c. toe nail
		8d common (2 1/2" × 0.131"); or 10d box (3" × 0.128"); or 3" × 0.131" nails	6" o.c. toe nail
23	1" × 6" subfloor or less to each joist	3-8d box (2 1/2" × 0.113"); or 2-8d common (2 1/2" × 0.131"); or 3-10d box (3" × 0.128"); or 2 staples, 1" crown, 16 ga., 1 3/4" long	Face nail
24	2" subfloor to joist or girder	3-16d box (3 1/2" × 0.135"); or 2-16d common (3 1/2" × 0.162")	Blind and face nail
25	2" planks (plank & beam - floor & roof)	3-16d box (3 1/2" × 0.135"); or 2-16d common (3 1/2" × 0.162")	At each bearing, face nail
26	Band or rim joist to joist	3-16d common (3 1/2" × 0.162") 4-10 box (3" × 0.128"), or 4-3" × 0.131" nails; or 4-3" × 14 ga. staples, 7/16" crown	End nail
27	Built-up girders and beams, 2-inch lumber layers	20d common (4" × 0.192"); or	Nail each layer as follows: 32" o.c. at top and bottom and staggered.
		10d box (3" × 0.128"); or 3" × 0.131" nails	24" o.c. face nail at top and bottom staggered on opposite sides
		And: 2-20d common (4" × 0.192"); or 3-10d box (3" × 0.128"); or 3-3" × 0.131" nails	Face nail at ends and at each splice
28	Ledger strip supporting joists or rafters	4-16d box (3 1/2" × 0.135"); or 3-16d common (3 1/2" × 0.162"); or 4-10d box (3" × 0.128"); or 4-3" × 0.131" nails	At each joist or rafter, face nail
29	Bridging to joist	2-10d (3" × 0.128")	Each end, toe nail

ITEM	DESCRIPTION OF BUILDING ELEMENTS	NUMBER AND TYPE OF FASTENER ^{a, b, c}	SPACING OF FASTENERS	
			SPACING OF FASTENERS	
ITEM	DESCRIPTION OF BUILDING ELEMENTS	NUMBER AND TYPE OF FASTENER ^{a, b, c}	Edges (inches) ^h	Intermediate supports ^{c, e} (inches)
Wood structural panels, subfloor, roof and interior wall sheathing to framing and particleboard wall sheathing to framing [see Table R602.3(3) for wood structural panel exterior wall sheathing to wall framing]				
30	3/8" - 1/2"	6d common (2" x 0.113") nail (subfloor, wall) ⁱ 8d common (2 ½" x 0.131") nail (roof)	6	12 ^f
31	19/32" - 1"	8d common nail (2 1/2" x 0.131")	6	12 ^f
32	1 1/8" - 1 1/4"	10d common (3" x 0.148") nail; or 8d (2 1/2" x 0.131") deformed nail	6	12
Other wall sheathing				
33	1/2" structural cellulosic fiberboard sheathing	11/2" galvanized roofing nail, 7/16" head diameter, or 1" crown staple 16 a., 11/4" long	3	6
34	25/32" structural cellulosic fiberboard sheathing	1 3/4" galvanized roofing nail, 7/16" head diameter, or 1" crown staple 16 ga., 11/4" long	3	6
35	1/2" gypsum sheathing ^{d, j}	1 1/2" galvanized roofing nail; staple galvanized, 1 1/2" long; 1 1/4" screws, Type W or S	7	7
36	5/8" gypsum sheathing ^{d, j}	1 3/4" galvanized roofing nail; staple galvanized, 1 5/8" long; 1 5/8" screws, Type W or S	7	7
Wood structural panels, combination subfloor underlayment to framing				
37	3/4" and less	6d deformed (2" x 0.120") nail; or 8d common (2 1/2" x 0.131") nail	6	12
38	7/8" - 1"	8d common (2 1/2" x 0.131") nail; or 8d deformed (2 1/2" x 0.120") nail	6	12
39	1 1/8" - 1 1/4 "	10d common (3" x 0.148") nail; or 8d deformed (2 1/2" x 0.120") nail	6	12

- Nails are smooth-common, box or deformed shanks except where otherwise stated. Nails used for framing and sheathing connections shall have minimum average bending yield strengths as shown: 80 ksi for shank diameter of 0.192 inch (4.87 mm) (20d common nail), 90 ksi for shank diameters larger than 0.142 inch (3.60 mm) but not larger than 0.177 inch (4.49 mm), and 100 ksi for shank diameters of 0.142 inch (3.60 mm) or less.
- Staples are 16 gage wire and have a minimum 7/16 inch (11.11 mm) on diameter crown width.
- Nails shall be spaced at not more than 6 inches (152.4 mm) on center at all supports where spans are 48 inches (1219.2 mm) or greater.
- 4 foot by 8 foot (1219.2 mm x 2438.1 mm) or 4 foot by 9 foot (1219.2 mm x 2743.2 mm) panels shall be applied vertically.
- Spacing of fasteners not included in this table shall be based on LAMC Table 91.5.602.3(2).
- Where the ultimate design wind speed is greater than 130 mph, nails for attaching panel roof sheathing to intermediate supports shall be spaced 6 inches on center for minimum 48 inch distance from ridges, eaves and gable end walls; and 4 inches on center to gable end wall framing.
- Gypsum sheathing shall conform to ASTM C 1396 and shall be installed in accordance with GA 253. Fiberboard sheathing shall conform to ASTM C 208.
- Spacing of fasteners on floor sheathing panel edges applies to panel edges supported by framing members and required blocking and at floor perimeters only. Spacing of fasteners on roof sheathing panel edges applies to panel edges supported by framing members and required blocking. Blocking of roof or floor sheathing panel edges

perpendicular to the framing members need not be provided except as required by other provisions of this Code. Floor perimeter shall be supported by framing members or solid blocking.

- i. Where a rafter is fastened to an adjacent parallel ceiling joist in accordance with this schedule, provide two toe nails on one side of the rafter and toe nails from the ceiling joist to top plate in accordance with this schedule. The toe nail on the opposite side of the rafter shall not be required.
- j. Use of staples in braced wall panels shall be prohibited in Seismic Design Category D₀, D₁, or D₂.

Table 91.5.602.3(2)

Alternate Attachments to Table 91.5.602.3(1)
(Amended by Ord. No. 184,692, Eff. 12/30/16.)

NOMINAL MATERIAL THICKNESS (inches)	DESCRIPTION ^{a, b} OF FASTENER AND LENGTH (inches)	SPACING ^c OF FASTENERS	
		Edges (inches)	Intermediate supports (inches)
Wood structural panels subfloor, roof ^g and wall sheathing to framing and particleboard wall sheathing to framing ^f			
Up to 1/2	Staple 15 ga. 1 3/4	4	8
	0.097 - 0.099 Nail 2 1/4	3	6
	Staple 16 ga. 1 3/4	3	6
19/32 and 5/8	0.113 Nail 2	3	6
	Staple 15 and 16 ga. 2	4	8
	0.097 - 0.099 Nail 2 1/4	4	8
23/32 and 3/4	Staple 14 ga. 2	4	6
	Staple 15 ga. 1 3/4	3	8
	0.097 - 0.099 Nail 2 1/4	4	8
	Staple 16 ga. 2	4	8
1	Staple 14 ga. 2 1/4	4	8
	0.113 Nail 2 1/4	3	6
	Staple 15 ga. 2 1/4	4	8
	0.097 - 0.099 Nail 2 1/2	4	8

NOMINAL MATERIAL THICKNESS (inches)	DESCRIPTION ^{a,b} OF FASTENER AND LENGTH (inches)	SPACING ^c OF FASTENERS	
		Edges (inches)	Body of Panel ^d (inches)
Floor underlayment; plywood - hardboard - particleboard ^f - fiber - cement ^h			
Fiber-cement			
1/4	3d, corrosion-resistant, ring shank nails (finished flooring other than tile)	3	6
	Staple 18 ga., 7/8 long, 1/4 crown (finished flooring other than tile)	3	6
	1 1/4 long × .121 shank × .375 head diameter corrosion-resistant (galvanized or stainless steel) roofing nails (for tile finish)	8	8
	1 1/4 long, No. 8 × .375 head diameter, ribbed wafer-head screws (for tile finish)	8	8
Plywood			
1/4 and 5/16	1 1/4 ring or screw shank nail - minimum 12 1/2 ga. (0.099") shank diameter	3	6
	Staple 18 ga., 7/8, 3/16 crown width	2	5
11/32, 3/8, 15/32, and 1/2	1 1/4 ring or screw shank nail - minimum 12 1/2 ga. (0.099") shank diameter	6	8 ^e
19/32, 5/8, 23/32, and 3/4	1 1/2 ring or screw shank nail - minimum 12 1/2 ga. (0.099") shank diameter	6	8
	Staple 16 ga. 1 1/2	6	8
Hardboard ^f			
0.200	1 1/2 long ring-grooved underlayment nail	6	6
	4d cement-coated sinker nail	6	6
	Staple 18 ga., 7/8 long (plastic coated)	3	6
Particleboard			
1/4	4d ring-grooved underlayment nail	3	6
	Staple 18 ga., 7/8 long, 3/16 crown	3	6
3/8	6d ring-grooved underlayment nail	6	10
	Staple 16 ga., 1 1/8 long, 3/8 crown	3	6
1/2, 5/8	6d ring-grooved underlayment nail	6	10
	Staple 16 ga., 1 5/8 long, 3/8 crown	3	6

For SI: 1 inch = 25.4 mm.

- a. Nail is a general description and shall be permitted to be T-head, modified round head or round head.
- b. Staples shall have a minimum crown width of 7/16-inch on diameter except as noted. Use of staples in roof, floor, subfloor, and braced wall panels shall be prohibited in Seismic Design Category D₀, D₁ or D₂.
- c. Nails or staples shall be spaced at not more than 6 inches on center at all supports where spans are 48 inches or greater. Nails or staples shall be spaced at not more than 12 inches on center at intermediate supports for floors.
- d. Fasteners shall be placed in a grid pattern throughout the body of the panel.
- e. For 5-ply panels, intermediate nails shall be spaced not more than 12 inches on center each way.
- f. Hardboard underlayment shall conform to CPA/ANSI A135.4
- g. Specified alternate attachments for roof sheathing shall be permitted where the ultimate design wind speed is less than 130 mph. Fasteners attaching wood structural panel roof sheathing to gable end wall framing shall be installed using the spacing listed for panel edges.
- h. Fiber-cement underlayment shall conform to ASTM C1288 or ISO 8336, Category C.

91.5.602.3.2. (Amended by Ord. No. 184,692, Eff. 12/30/16.) Wood stud walls shall be capped with a double top plate installed to provide overlapping at corners and intersections with bearing partitions. End joints in top plates shall be offset at least 24 inches (609.6 mm). Joints in plates need not occur over studs. Plates shall be not less than 2 inches (50.8 mm) nominal thickness and have a width at least equal to the width of the studs.

EXCEPTION: In other than Seismic Design Category D₀, D₁, or D₂, a single top plate used as an alternative to a double top plate shall comply with the following:

1. The single top plate shall be tied at the corners, intersecting walls, and at in-line splices in straight wall lines in accordance with LAMC Table

91.5.602.3.2.

2. The rafters or joists are centered over the studs with a tolerance of no more than 1 inch (25 mm).

3. Omission of the top plate is permitted over headers where the headers are adequately tied to adjacent wall sections in accordance with LAMC Table 91.5.602.3.2.

Table 91.5.602.3.2

Single Top-Plate Splice Connection Details
(Added by Ord. No. 184,692, Eff. 12/30/16.)

CONDITION	TOP-PLATE SPLICE LOCATION			
	Corners and intersecting walls		Butt joints in straight walls	
	Splice plate size	Minimum nails each side of joint	Splice plate size	Minimum nails each side of joint
Structures in SDC A-C	3" x 6" x 0.036"	(6) 8d box	3' x 12" x 0.036"	(12) 8d box
	galvanized steel plate or equivalent	(2 1/2" x 0.113") nails	galvanized steel plate or equivalent	(2 1/2" x 0.113") nails

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

91.5.602.10.2.3. Minimum Number of Braced Wall Panels. (Added by Ord. No. 182,845, Eff. 1/3/14.) Braced wall lines with a length of 16 feet (4877 mm) or less shall have a minimum of two braced wall panels of any length or one braced wall panel equal to 48 inches (1219 mm) or more. Braced wall lines greater than 16 feet (4877 mm) shall have a minimum of two braced wall panels. No braced wall panel shall be less than 48 inches in length in Seismic Design Category D₀, D₁, or D₂.

Table 91.5.602.10.3(3)

Bracing Requirements Based on Seismic Design Category
(Added by Ord. No. 182,845, Eff. 1/3/14.)

• SOIL CLASS D^b • WALL HEIGHT = 10 FEET • 10 PSF FLOOR DEAD LOAD • 15 PSF ROOF/CEILING DEAD LOAD • BRACED WALL LINE SPACING 25 FEET			MINIMUM TOTAL LENGTH (FEET) OF BRACED WALL PANELS REQUIRED ALONG EACH BRACED WALL LINE ^a				
Seismic Design Category	Story Location	Braced Wall Line Length (feet)	Method LIB ^c	Method GB ^e	Methods DWB, SFB, PBS, PCP ^e , HPS, CS-SFB ^d	Method WSP	Methods CS-WSP, CS-G
• SOIL CLASS D^b • WALL HEIGHT = 10 FEET • 10 PSF FLOOR DEAD LOAD • 15 PSF ROOF/CEILING DEAD LOAD • BRACED WALL LINE SPACING 25 FEET			MINIMUM TOTAL LENGTH (FEET) OF BRACED WALL PANELS REQUIRED ALONG EACH BRACED WALL LINE ^a				
Seismic Design Category	Story Location	Braced Wall Line Length (feet)	Method LIB ^c	Method GB ^e	Methods DWB, SFB, PBS, PCP ^e , HPS, CS-SFB ^d	Method WSP	Methods CS-WSP, CS-G
C (townhouses only)		10	2.5	2.5	2.5	1.6	1.4
		20	5.0	5.0	5.0	3.2	2.7
		30	7.5	7.5	7.5	4.8	4.1
		40	10.0	10.0	10.0	6.4	5.4
		50	12.5	12.5	12.5	8.0	6.8
		10	NP	4.5	4.5	3.0	2.6
		20	NP	9.0	9.0	6.0	5.1
		30	NP	13.5	13.5	9.0	7.7
		40	NP	18.0	18.0	12.0	10.2
		50	NP	22.5	22.5	15.0	12.8
		10	NP	6.0	6.0	4.5	3.8
		20	NP	12.0	12.0	9.0	7.7
		30	NP	18.0	18.0	13.5	11.5
		40	NP	24.0	24.0	18.0	15.3
		50	NP	30.0	30.0	22.5	19.1
D ₀		10	NP	5.6	5.6	1.8	1.6
		20	NP	11.0	11.0	3.6	3.1
		30	NP	16.6	16.6	5.4	4.6
		40	NP	22.0	22.0	7.2	6.1
		50	NP	27.6	27.6	9.0	7.7
		10	NP	NP	NP	3.8	3.2
		20	NP	NP	NP	7.5	6.4
		30	NP	NP	NP	11.3	9.6
		40	NP	NP	NP	15.0	12.8
		50	NP	NP	NP	18.8	16.0
		10	NP	NP	NP	5.3	4.5
		20	NP	NP	NP	10.5	9.0
		30	NP	NP	NP	15.8	13.4
		40	NP	NP	NP	21.0	17.9
		50	NP	NP	NP	26.3	22.3
		10	NP	6.0	6.0	2.0	1.7

D ₁		20	NP	12.0	12.0	4.0	3.4
		30	NP	18.0	18.0	6.0	5.1
		40	NP	24.0	24.0	8.0	6.8
		50	NP	30.0	30.0	10.0	8.5
		10	NP	NP	NP	4.5	3.8
		20	NP	NP	NP	9.0	7.7
		30	NP	NP	NP	13.5	11.5
		40	NP	NP	NP	18.0	15.3
		50	NP	NP	NP	22.5	19.1
		10	NP	NP	NP	6.0	5.1
		20	NP	NP	NP	12.0	10.2
		30	NP	NP	NP	18.0	15.3
		40	NP	NP	NP	24.0	20.4
		50	NP	NP	NP	30.0	25.5
		10	NP	8.0	8.0	2.5	2.1
D ₂		20	NP	16.0	16.0	5.0	4.3
		30	NP	24.0	24.0	7.5	6.4
		40	NP	32.0	32.0	10.0	8.5
		50	NP	40.0	40.0	12.5	10.6
		10	NP	NP	NP	5.5	4.7
		20	NP	NP	NP	11.0	9.4
		30	NP	NP	NP	16.5	14.0
		40	NP	NP	NP	22.0	18.7
		50	NP	NP	NP	27.5	23.4
		10	NP	NP	NP	NP	NP
		20	NP	NP	NP	NP	NP
		30	NP	NP	NP	NP	NP
		40	NP	NP	NP	NP	NP
		50	NP	NP	NP	NP	NP
		10	NP	NP	NP	7.5	6.4
	Cripple wall below one- or two-story dwelling	20	NP	NP	NP	15.0	12.8
		30	NP	NP	NP	22.5	19.1
		40	NP	NP	NP	30.0	25.5
		50	NP	NP	NP	37.5	31.9

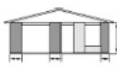
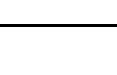
For SI: 1 inch = 25.4 mm, 1 foot = 305 mm, 1 pound per square foot = 0.0479 kPa.

- Linear interpolation shall be permitted.
- Wall bracing lengths are based on a soil site class "D". Interpolation of bracing length between the S_{ds} values associated with the Seismic Design Categories shall be permitted when a site-specific S_{ds} value is determined in accordance with CBC Section 1613.3. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**
- Method LIB (methods defined by LAMC Table 91.5.602.10.4) shall have gypsum board fastened to at least one side with nails or screws per CRC Table R602.3(1) for exterior sheathing or CRC Table R702.3.5 for interior gypsum board. Spacing of fasteners at panel edges shall not exceed 8 inches (203.2 mm). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- Method CS-SFB applies in SDC C only.
- Methods GB and PCP braced wall panel h/w ratio shall not exceed 1:1 in SDC D₀, D₁, and D₂. Methods DWB, SFB, PBS, and HPS are not permitted in SDC D₀, D₁, and D₂.

Table 91.5.602.10.4

Bracing Methods^f
(Added by Ord. No. 182,845, Eff. 1/3/14.)

METHODS, MATERIAL		MINIMUM THICKNESS	FIGURE	CONNECTION CRITERIA ^a	
METHODS, MATERIAL		MINIMUM THICKNESS	FIGURE	Fasteners	Spacing
METHODS, MATERIAL		MINIMUM THICKNESS	FIGURE	CONNECTION CRITERIA ^a	
METHODS, MATERIAL		MINIMUM THICKNESS	FIGURE	Fasteners	Spacing
	LIB Let-in-bracing	1 × 4 wood or approved metal straps at 45° to 60° angles for maximum 16" stud spacing		Wood: 2-8d common nails or 3-8d (2 1/2" long × 0.113" dia.) nails Metal strap: per manufacturer	Wood: per stud and top and bottom plates Metal: per manufacturer
	DWB Diagonal wood boards	3/4"(1" nominal) for maximum 24" stud spacing		2-8d (2 1/2" long × 0.113" dia.) nails or 2 - 1 3/4" long staples	Per stud
	WSP Wood structural panel (See Section R604)	15/32"		Exterior sheathing using 8d common nails (2.5" × 0.131") per Table R602.3(3) Interior sheathing per Table 91.5.602.3(1) or 91.5.602.3(2)	6" edges 12" field Varies by fastener
	BV-WSP^e Wood structural Panels with stone or masonry veneer (See Section R602.10.6.5)	15/32"	See Figure R602.10.6.5	8d common (2 1/2" × 0.131) nails	4" at panel edges 12" at intermediate supports 4" at braced wall panel end posts
	SFB Structural fiberboard sheathing	1/2" or 25/32" for maximum 16" stud spacing		1 1/2" long × 0.12" dia. (for 1/2" thick sheathing) 1 3/4" long × 0.12" dia. (for 25/32" thick sheathing) galvanized roofing nails or 8d common (2 1/2" long × 0.131" dia.) nails	3" edges 6" field

Intermittent Bracing Methods	GB Gypsum board	1/2"		Nails or screws per Table 91.5.602.3(1) for exterior locations Nails or screws per Table R702.3.5 for interior locations	For all braced wall panel locations: 7" edges (including top and bottom plates) 7" field
	PBS Particleboard sheathing (See Section R605)	3/8" or 1/2" for maximum 16" stud spacing		For 3/8", 6d common (2" long × 0.113" dia.) nails For 1/2", 8d common (2 1/2" long × 0.131" dia.) nails	3" edges 6" field
	PCP Portland cement plaster	See Section R703.6 for maximum 16" stud spacing		1 1/2" long, 11 gage, 7/16" dia. head nails	6" o.c. on all framing members
	HPS Hardboard panel siding	7/16" for maximum 16" stud spacing		0.092" dia., 0.225" dia. head nails with length to accommodate 1 1/2" penetration into studs	4" edges 8" field
	ABW Alternate braced wall	15/32"		See Section R602.10.6.1	See Section R602.10.6.1
	PFH Portal frame with hold-downs	15/32"		See Section R602.10.6.2	See Section R602.10.6.2
	PFG Portal frame at garage	15/32"		See Section R602.10.6.3	See Section R602.10.6.3
Continuous Sheathing Methods	CS-WSP Continuously sheathed wood structural panel	15/32"		Exterior sheathing per Table R602.3(3)	6" edges 12" field
				Interior sheathing per Table 91.5.602.3(1) or 91.5.602.3(2)	Varies by fastener
	CS-G^{b, c} Continuously sheathed wood structural panel adjacent to garage openings	15/32"		See Method CS-WSP	See Method CS-WSP
	CS-PF Continuously sheathed portal frame	15/32"		See Section R602.10.6.4	See Section R602.10.6.4
	CS-SFB^d Continuously sheathed structural fiberboard	1/2" or 25/32" for maximum 16" stud spacing		1 1/2" long × 0.12" dia. (for 1/2" thick sheathing) 1 3/4" long × 0.12" dia. (for 25/32" thick sheathing) galvanized roofing nails or 8d common (2 1/2" long × 0.131" dia.) nails	3" edges 6" field

For SI: 1 inch = 25.4 mm, 1 foot = 305 mm, 1 degree = 0.0175 rad, 1 pound per square foot = 47.8 N/m², 1 mile per hour = 0.447 m/s.

- Adhesive attachment of wall sheathing, including Method GB, shall not be permitted in Seismic Design Categories C, D₀, D₁ and D₂.
- Applies to panels next to garage door opening when supporting gable end wall or roof load only. May only be used on one wall of the garage. In Seismic Design Categories D₀, D₁ and D₂, roof covering dead load may not exceed 3 psf.
- Garage openings adjacent to a Method CS-G panel shall be provided with a header in accordance with CRC Table 602.7(1). A full height clear opening shall not be permitted adjacent to a Method CS-G panel. (Amended by Ord. No. 185,587, Eff. 7/16/18.)
- Method CS-SFB does not apply in Seismic Design Categories D₀, D₁ and D₂ and in areas where the wind speed exceeds 100 mph.
- Method applies to detached one- and two-family dwellings in Seismic Design Categories D₀ through D₂ only.
- Methods GB and PCP braced wall panel h/d ratio shall not exceed 1:1 in SDC D₀, D₁, and, D₂. Methods LIB, DWB, SFB, PBS, HPS, and PFG are not permitted in SDC D₀, D₁, and, D₂.

Table 91.5.602.10.5

Minimum Length Of Braced Wall Panels
(Amended by Ord. No. 184,692, Eff. 12/30/16.)

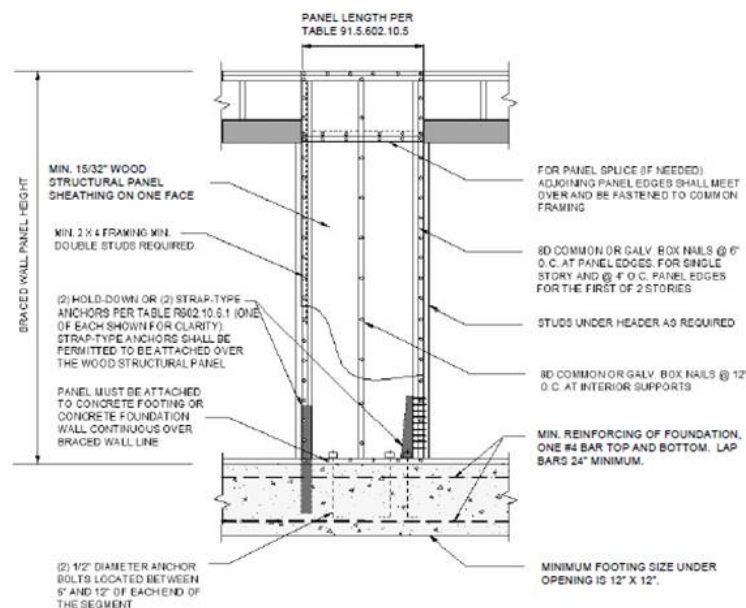
	MINIMUM LENGTH ^a (inches)	CONTRIBUTING LENGTH
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METHOD (See Table R602.10.4)		Wall Height					(inches)
		8 feet	9 feet	10 feet	11 feet	12 feet	
METHOD (See Table R602.10.4)		MINIMUM LENGTH ^a (inches)					CONTRIBUTING LENGTH (inches)
		8 feet	9 feet	10 feet	11 feet	12 feet	
DWB, WSP, SFB, PBS, PCP, HPS, BV-WSP		48	48	48	53	58	Actual ^b
GB		48	48	48	53	58	Double sided = Actual Single sided = 0.5 × Actual
LIB		55	62	69	NP	NP	Actual ^b
ABW	SDC A, B and C,	28	32	34	38	42	48
	wind speed < 110 mph						
	SDC D ₀ , D ₁ and D ₂ ,	32	32	34	NP	NP	
PFH	wind speed < 110 mph						48
	Supporting roof only	24	24	24	24 ^c	24 ^c	
	Supporting one story and roof	24	24	24	27 ^c	29 ^c	
PFG		24	27	30	33 ^d	36 ^d	1.5 × Actual ^b
CS-G		24	27	30	33	36	Actual ^b
CS-PF		24	24	24	24 ^e	24 ^e	Actual ^b
CS-WSP, CS-SFB	Adjacent clear opening height (inches)						Actual ^b
	64	24	27	30	33	36	
	68	26	27	30	33	36	
	72	27	27	30	33	36	
	76	30	29	30	33	36	
	80	32	30	30	33	36	
	84	35	32	32	33	36	
	88	38	35	33	33	36	
	92	43	37	35	35	36	
	96	48	41	38	36	36	
	100	—	44	40	38	38	
	104	—	49	43	40	39	
	108	—	54	46	43	41	
	112	—	—	50	45	43	
	116	—	—	55	48	45	
	120	—	—	60	52	48	
	124	—	—	—	56	51	
	128	—	—	—	61	54	
	132	—	—	—	66	58	
	136	—	—	—	—	62	
	140	—	—	—	—	66	
	144	—	—	—	—	72	

For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm, 1 mile per hour = 0.447 m/s.

NP = Not Permitted.

- Linear interpolation shall be permitted.
- Use the actual length when it is greater than or equal to the minimum length.
- Maximum header height for PFH is 10 feet (3048 mm) in accordance with CRC Figure R602.10.6.2, but wall height may be increased to 12 feet (3657.6 mm) with pony wall.
- Maximum opening height for PFG is 10 feet (3048 mm) in accordance with CRC Figure R602.10.6.3, but wall height may be increased to 12 feet (3657.6 mm) with pony wall.
- Maximum opening height for CS-PF is 10 feet (3048 mm) in accordance with CRC Figure R602.10.6.4, but wall height may be increased to 12 feet (3657.6 mm) with pony wall.



For SI: 1 inch = 25.4 mm.

Figure 91.5.602.10.6.1

Method ABW – Alternate Braced Wall Panel
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

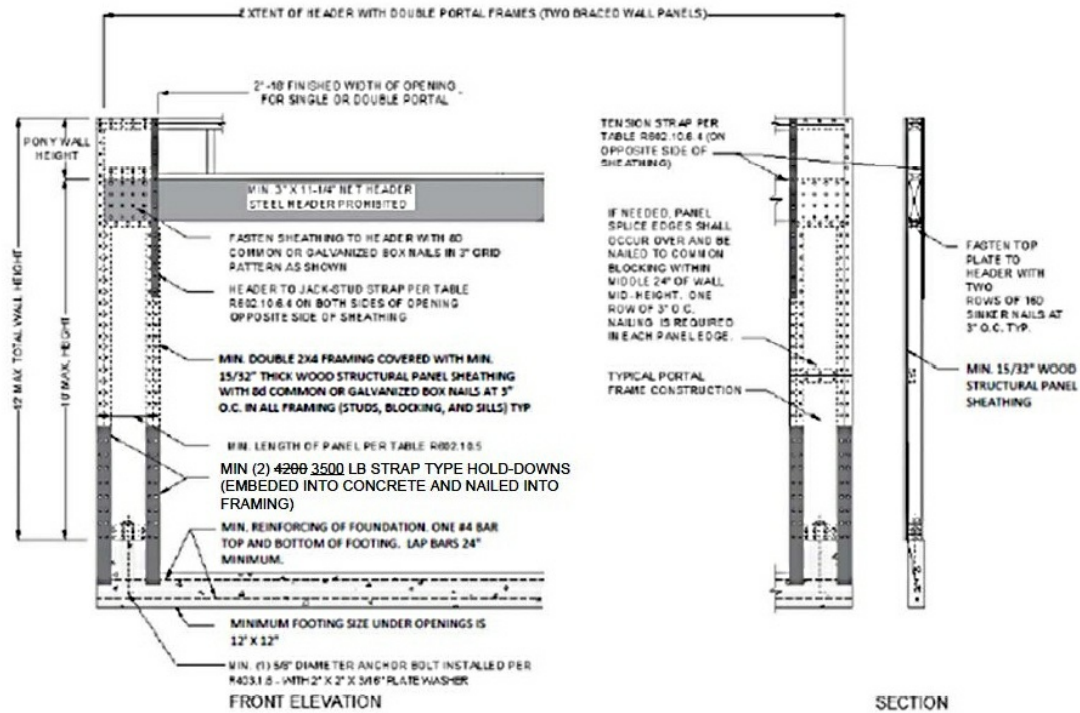
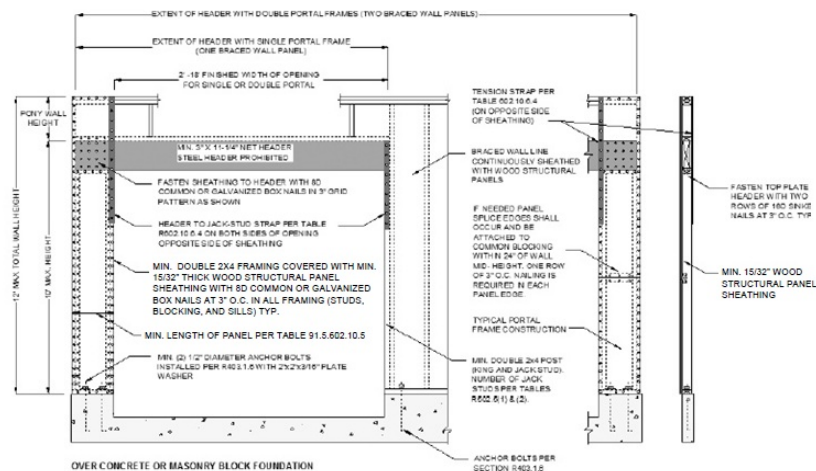


Figure 91.5.602.10.6.2

Method PFH – Portal Frame with Hold-downs at Garage Door Openings
(Amended by Ord. No. 184,692, Eff. 12/30/16.)



For SI: 1 inch = 25.4 mm, 1 foot = 304.8 mm.

Figure 91.5.602.10.6.4

Method CS-PF – Continuously Sheathed Portal Frame Construction
(Added by Ord. No. 182,845, Eff. 1/3/14.)

91.5.606.12.2.2.3. Reinforcement of Requirements for Masonry Elements. Masonry elements listed in CRC Section R606.12.2.2.2 shall be reinforced in either the horizontal or vertical direction as shown in CRC Figure R606.11(2) and in accordance with the following: (Amended by Ord. No. 184,692, Eff. 12/30/16.)

1. Horizontal reinforcement. Horizontal joint reinforcement shall consist of at least one No. 4 bar spaced not more than 48 inches (1219 mm). Horizontal reinforcement shall be provided within 16 inches (406 mm) of the top and bottom of these masonry elements.
2. Vertical reinforcement. Vertical reinforcement shall consist of at least one No. 4 bar spaced not more than 48 inches (1219 mm). Vertical reinforcement shall be within 16 inches (406 mm) of the ends of masonry walls.

ARTICLE 1.5, DIVISION 7

[WALL COVERING]

SEC. 91.5.700. BASIC PROVISIONS.

Chapter 7 of the CRC is hereby adopted by reference.

ARTICLE 1.5, DIVISION 8

[ROOF-CEILING CONSTRUCTION]

Section
91.5.800 Basic Provisions.

SEC. 91.5.800. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 8 of the CRC is hereby adopted by reference with the following exceptions, modifications and additions.

91.5.802.8. Lateral Support. Roof framing members and ceiling joists having a depth-to-thickness ratio exceeding 2 to 1 based on nominal dimensions shall be provided with lateral support at points of bearing to prevent rotation. For roof rafters with ceiling joists attached per CRC Table R602.3(1), the depth-thickness ratio for the total assembly shall be determined using the combined thickness of the rafter plus the attached ceiling joist. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

91.5.802.10.2. Design. Wood trusses shall be designed in accordance with accepted engineering practice. The design and manufacture of metal-plate-connected wood trusses shall comply with ANSI/TPI 1. The truss design drawings shall be prepared by a registered professional.

91.5.803.2.4. Openings in Horizontal Diaphragms. Openings in horizontal diaphragms shall conform to LAMC Paragraph 91.5.503.2.4. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

ARTICLE 1.5, DIVISION 9

[ROOF ASSEMBLIES]

Section
91.5.900 Basic Provisions.

SEC. 91.5.900. BASIC PROVISIONS.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Chapter 9 of the CRC is hereby adopted by reference except as amended or modified herein. Section R902.2 of the 2019 California Residential Code is not adopted.

91.5.902.2. Fire-retardant-treated Shingles and Shakes. Fire-retardant-treated wood shakes and shingles are wood shakes and shingles complying with UBC Standard 15-3 or 15-4 which are impregnated by the full-cell vacuum-pressure process with fire-retardant chemicals, and which have been qualified by UBC Standard 15-2 for use on Class A, B or C roofs. Fire-retardant-treated wood shakes and shingles shall comply with ICC-ES EG107 and with the weathering requirements contained in California Health and Safety Code Section 13132.7(j). Each bundle shall bear labels from an ICBO accredited quality control agency identifying their roof-covering classification and indicating their compliance with ICC-ES EG107 and with the weathering requirements contained in California Health and Safety Code Section 13132.7(j).

No wood shake or shingle roof covering is permitted as provided by LAMC Subsection 91.1505.1.

ARTICLE 1.5, DIVISION 10

[CHIMNEYS AND FIREPLACES]

Section
91.5.1000 Basic Provisions.

SEC. 91.5.1000. BASIC PROVISIONS.

Chapter 10 of the CRC is hereby adopted by reference with the following exceptions, modifications and additions.

91.5.1001.3.1. Vertical Reinforcing. (Amended by Ord. No. 186,488, Eff. 12/27/19.) For chimneys up to 40 inches (1016 mm) wide, four No. 4 continuous vertical bars adequately anchored into the concrete foundation shall be placed between wythes of solid masonry or within the cells of hollow unit masonry and grouted in accordance with CRC Section R606. Grout shall be prevented from bonding with the flue liner so that the flue liner is free to move with thermal expansion. For chimneys more than 40 inches (1016 mm) wide, two additional No. 4 vertical bars adequately anchored into the concrete foundation shall be provided for each additional flue incorporated into the chimney or for each additional 40 inches (1016 mm) in width or fraction thereof.

ARTICLE 2

ELEVATOR CODE

(Article 2, Chapter IX, Amended by Ord. No. 179,328, Eff. 12/10/07, Oper. 1/1/08.)

Incorporating by Reference Portions of the Elevator Safety Orders of Title 8 and the 2007 Edition of Part 7 of Title 24 of the California Code of Regulations.)

Division

- 1 Administration
- 2 General
- 3 Private Residence Inclined Elevators, Inclined Stairway Chairlifts, Inclined and Vertical Wheelchair Lifts and Private Residence Elevators
- 4 Manlifts

DIVISION 1

ADMINISTRATION

Section

Part 1 – General

- 92.0101 Title.
- 92.0102 Purpose.
- 92.0103 Scope.
- 92.0104 Interpretation.
- 92.0105 Reports of Elevator Safety Engineers.
- 92.0106 Equipment Found Unsafe.
- 92.0107 Power to Seal Equipment Out of Service and Stop Work.
- 92.0109 Required Elevators.
- 92.0110 Test of New Equipment.
- 92.0111 Approval of Plans and Equipment.
- 92.0112 Retroactive Provisions.
- 92.0113 Authority to Enter Building or Premise.
- 92.0114 Certificate of Inspection (Operating Permit).
- 92.0115 Request for Inspection.
- 92.0116 Accidents – Reports – Repair.
- 92.0117 Enforcement.
- 92.0118 Certificate of Registration.
- 92.0119 Journey-Level Elevator Mechanic – Certificate Required.
- 92.0120 Application for Journey-Level Elevator Mechanic.
- 92.0121 Helpers or Apprentices.
- 92.0122 Expiration of Certificate.
- 92.0123 Renewal Certificate Fees.

Part 2 – Permits, Plan Checks, Fees, Inspections

- 92.0126 Inspection and Inspection Fees.
- 92.0127 Special Enforcement of Procedures Fees.
- 92.0128 Investigation Fee.
- 92.0129 Installation Permit Fees.
- 92.0130 Fees for Plan Checking.
- 92.0131 Off Hours Inspections.
- 92.0132 Permit Fees for Repair, Replacement, Alteration, or Modification.
- 92.0132.1 Fees for Additional Inspections.
- 92.0133 Approvals.
- 92.0134 Responsibility of Owners, Lessees, Managers, Etc.

Part 3 – Enforcement

- 92.0135 Powers of Department and Board.
- 92.0136 Appeals.
- 92.0137 Expiration of Permit and Plan Check.
- 92.0138 Scope of Permits.
- 92.0139 Non-responsibility of City.
- 92.0140 Procedure for Revocation or Suspension.
- 92.0141 Alternate Materials and Methods of Construction.

PART 1

GENERAL

SEC. 92.0101. TITLE.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

This article shall be known as the "Los Angeles Elevator Code" a portion of the "Los Angeles Municipal Code" and wherever the word "Code" is used in this article, it shall mean the "Los Angeles Elevator Code". Wherever the word "City" is used in this article, it shall mean the "City of Los Angeles". Wherever the word "Department" is used in this article, it shall mean the "Department of Building and Safety".

SEC. 92.0102. PURPOSE.

- (a) The purpose of this Code is to provide for the safety of life and limb, and to promote the public welfare.
- (b) **Other Limitations.** The permissive provisions of this Code shall not be presumed to waive any limitations imposed by other statutes or ordinances of the City of Los Angeles or State of California.

SEC. 92.0103. SCOPE.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

This Code covers the design, construction, installation, alteration, inspection, maintenance, testing, operation, repairing and licensing of elevators, escalators, moving walks, dumbwaiters, manlifts (including any other personnel lifts), private residence elevators and inclined elevators, inclined lifts, reciprocating conveyors, wheelchair lifts, inclined stairway chairlifts, private residence inclined stairway chairlifts and wheelchair lifts, their hoistways, and their appurtenances, in the City of Los Angeles.

No person shall construct, install, remove, alter, repair, use or maintain any elevator equipment or related devices regulated by this Code without complying with all applicable provisions.

This Code does not apply to belts, buckets, scoops or roller conveyors, tiering and piling machine hoists, automobile grease hoists, building hoists, skip hoists, mine devices, lift bridges, or freight platform hoists.

SEC. 92.0104. INTERPRETATION.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

- (a) If two or more requirements of this Code are not identical or are in conflict, the Code requirement that provides the greater safety to person, property or public welfare shall prevail.
- (b) The Superintendent of Building or the Superintendent's duly authorized representative is empowered to make all interpretations concerning the provisions of this Code.

SEC. 92.0105. REPORTS OF ELEVATOR SAFETY ENGINEERS.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

The Elevator Safety Engineers of the Elevator Division, Department of Building and Safety, shall make a written report of each inspection and file that report in the records of the Department. A copy of the report shall be mailed to the owner or person having custody of the elevator.

SEC. 92.0106. EQUIPMENT FOUND UNSAFE.

If, upon inspection of equipment covered by this Code such equipment is found in an unsafe condition, the Department shall thereupon serve a written notice of the findings upon the holder of the operating license stating the time when recommended repairs must be completed except that where the work or repair required is in the nature of an emergency, the neglect of which would endanger human life, such work or repairs may be ordered to be done at once and the equipment ordered sealed and taken out of service.

SEC. 92.0107. POWER TO SEAL EQUIPMENT OUT OF SERVICE AND STOP WORK.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

- (a) The Department shall have the power to order the use of any equipment regulated by this Code discontinued for the following reasons:
- (1) When in case of emergency, in the opinion of the Safety Engineer, any device covered by this Code is in a condition rendering it unsafe for operation.
 - (2) For willful failure to comply with requirements issued by the Department for the correction of violations.
 - (3) For failure to pay fees prior to the issuance of any permit to operate an elevator. Failure to obtain proper permits and to pay permit fees and inspection fee within 60 days after notification shall constitute cause for the Department to prohibit the use of the elevator.
- (b) Whenever any construction or work is being done contrary to the provisions of any law, ordinance, rule, regulation or safety standard enforced by the Department, the Superintendent of Building shall issue a written notice to the responsible party to stop work on that portion of the work on which the violation has occurred. The notice shall state the nature of the violation, and no work shall be done on that portion until the violation has been corrected and approval obtained from the Department.
- (c) The owner of any building for which equipment regulated by this Code is installed shall notify the Department in writing within 30 days of any change of ownership, managing company or change of address of the party responsible for the equipment.

SEC. 92.0108. RESERVED.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

SEC. 92.0109. REQUIRED ELEVATORS.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

Every inhabited building provided with a passenger elevator after the effective date of this Section shall maintain at least one operational passenger elevator serving all occupied levels of the building, regardless of the number or stories.

EXCEPTION: The building may be inhabited for a limited period of time, subject to the approval of the Department, without an operational elevator during periods of elevator maintenance, repair or replacement.

SEC. 92.0110. TEST OF NEW EQUIPMENT.

The person who installs or constructs equipment covered by this Code shall notify the Department before such installation is covered and shall in the presence of a representative of the Department subject the equipment and installation to tests of capacity, speed, safety devices, governors, buffers and general operating conditions. All tests shall be made as hereinafter provided.

SEC. 92.0111. APPROVAL OF PLANS AND EQUIPMENT.

No person shall construct, reconstruct or install any elevator, dumbwaiter, escalator and other equipment covered in this Code, without obtaining a permit therefor from the Department prior to the commencement of such construction, reconstruction or installation. Before any permit is issued, plan drawings of the equipment intended to be constructed or installed shall be filed with the Department. If they are in compliance with the provisions of this Code, the Department shall endorse thereon by stamping approval, and issuing a permit for the construction, reconstruction or installation of such equipment.

SEC. 92.0112. RETROACTIVE PROVISIONS.

The provisions of the Code are not retroactive except as specifically provided hereinafter; provided however, that any device covered by this Code, found to be in a dangerous condition, or if the design or method of operation in combination with devices used is considered inherently dangerous, or if there is an immediate hazard to those riding on or using such equipment, it shall be the duty of the Department to notify the holder of the operating license of such installation in writing of the existing condition and to order alterations or additions as the Department finds are necessary to eliminate the existing dangerous condition.

SEC. 92.0113. AUTHORITY TO ENTER BUILDING OR PREMISE.

The authority of personnel of the Department to enter any building or upon any premise for the purpose of enforcing any provisions of or perform any duty imposed by this Code is set forth in Section 98.0105 of the Los Angeles Municipal Code.

Any person refusing to comply with or assisting in the violation of any provision of this section shall be guilty of a misdemeanor as specified in Section 98.0105 of the Los Angeles Municipal Code.

SEC. 92.0114. CERTIFICATE OF INSPECTION (OPERATING PERMIT).

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

A Certificate of Inspection (Operating Permit) to use any equipment listed in this article is required to be obtained for each location at which the equipment inspected is located. These certificates shall be issued, provided the equipment is found to be in a safe condition and in conformity with the provisions of this Code. The certificate shall specify the expiration date, the number of passengers and maximum weight to be carried on or in the equipment for which the certificate is issued.

A Certificate of Inspection (Operating Permit) issued by the Department to operate a passenger elevator, freight elevator or inclined elevator shall be posted in the elevator car. For other devices, the Certificate of Inspection (Operating Permit) shall be available on the premises.

SEC. 92.0115. REQUEST FOR INSPECTION.

(a) The Department shall require that every request for inspection be filed at least one day before such inspection is desired: such request may be in writing or by telephone at the option of the Department.

(b) It shall be the duty of the person requesting inspection of any equipment regulated by this Code to provide access to and means for proper inspection for such equipment.

(c) The removal of any material necessary to permit an inspection shall be required by the Superintendent of Building by written order. The City shall not be liable for any expense incurred in the removal or replacement of any material required to permit the inspection.

SEC. 92.0116. ACCIDENTS – REPORTS – REPAIR.

(Amended by Ord. No. 171,668, Eff. 8/28/97.)

Any injury to any person resulting from or caused by equipment, machinery or apparatus as herein mentioned, shall be reported promptly by a responsible party and in no case later than 12 o'clock noon of the first day the office of the Department is open for public business following such accident, to the Department. The responsible party shall immediately remove the equipment from service upon knowledge of any injury. No person shall adjust, repair or replace any part of the equipment on which such injury occurred, until after the Department has made an inspection, which inspection shall be made within 18 hours after receipt of the report of any accident or injury, and shall have authorized such removal, adjustments, repairs or replacement to be made or equipment to be returned back into service. For the purposes of this section, "responsible party," shall mean any person having possession or custody of or authority or control over any premises whereon any equipment, or device mentioned in this code is installed, whether as owner, lessee, licensee, trustee, mortgagee, management company, or representative, officer, employer or agent thereof, or as building manager or custodian, or in any capacity whatsoever.

SEC. 92.0117. ENFORCEMENT.

The Superintendent of Building shall have the authority to make rules and regulations and to fix safety standards, and to provide for the proper enforcement thereof, as to any equipment or apparatus mentioned in this Code and violation of or failure to comply with any of said rules and regulations or safety standards shall be deemed to be a violation of this Code and shall be punishable as a misdemeanor.

SEC. 92.0118. CERTIFICATE OF REGISTRATION.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

(a) The Superintendent of Building shall appoint a Board of Examiners consisting of three qualified persons for the purpose of examining Journey-Level Elevator Mechanics, Wheelchair and Inclined Stairway Chairlifts Mechanics, and Vertical Reciprocating Conveyors Mechanics. The Superintendent of Building shall have the authority to establish rules and regulations for the conduct of these examinations.

(b) The Board of Examiners shall hold examinations for Journey-Level Elevator Mechanics, Wheelchair and Inclined Stairway Chairlifts Mechanics, and Vertical Reciprocating Conveyors Mechanics in accordance with rules prescribed by the Superintendent of Building.

SEC. 92.0119. JOURNEY-LEVEL ELEVATOR MECHANIC – CERTIFICATE REQUIRED.
(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

(a) No person shall, without a Certificate of Registration from the Board of Examiners as a Journey-Level Elevator Mechanic, install, construct, repair, maintain, or reconstruct any elevator, wheelchair and inclined stairway chairlift, vertical reciprocating conveyor or related device regulated by this Code, or its parts, for which a permit is specifically required in LAMC Sections 92.0126 and 92.0129. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

EXCEPTIONS:

1. A person who holds a Certificate of Registration from the Board of Examiners as a Wheelchair Lift Mechanic may install, construct, repair, maintain, or reconstruct any wheelchair and inclined stairway chairlift for which a permit is specifically required in LAMC Sections 92.0126 and 92.0129.

2. A person who holds a Certificate of Registration from the Board of Examiners as a Vertical Reciprocating Conveyors Mechanic may install, construct, repair, maintain, or reconstruct any vertical reciprocating conveyor for which a permit is specifically required in LAMC Sections 92.0126 and 92.0129.

(b) The Certificate of Registration shall be required whether the Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Mechanic is employed by an Elevator, Chairlift or Vertical Reciprocating Conveyor Contractor or by an owner of a building or the owner's agent.

(c) The term "Journey-Level Elevator Mechanic" or "Elevator Mechanic" for the purpose of this Code shall mean a person who is qualified and registered by the City of Los Angeles to perform or supervise performance of work installing, altering, repairing, servicing, adjusting, maintaining or inspecting all equipment within the scope of this Code.

(d) The term "Wheelchair Lift Mechanic" for the purpose of this Code shall mean a person who is qualified and registered by the City of Los Angeles to perform or supervise performance of work installing, altering, repairing, servicing, adjusting, maintaining or inspecting limited to wheelchair lifts and inclined stairway chairlifts within the scope of this Code.

(e) The term "Vertical Reciprocating Conveyor Mechanic" for the purpose of this Code shall mean a person who is qualified and registered by the City of Los Angeles to perform or supervise performance of work installing, altering, repairing, servicing, adjusting, maintaining or inspecting limited to vertical reciprocating conveyors within the scope of this Code.

SEC. 92.0120. APPLICATION FOR JOURNEY-LEVEL ELEVATOR MECHANIC.
(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

(a) Every person who desires to be registered as a Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Conveyor Mechanic shall make application to the Department on a form to be provided by the Department.

(b) Each application or registration as a Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Conveyor Mechanic shall be filed with the Department. At the time of filing, the applicant shall pay a filing fee as specified in LAMC Section 98.0414(a). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(c) To be eligible for the certificate, the applicant shall have had at least three years experience as an apprentice or helper to an Elevator Mechanic.

SEC. 92.0121. HELPERS OR APPRENTICES.
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Each registered Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Conveyor Mechanic may have assisting them in the performance of their duties, helpers or apprentices who shall not be required to be registered under the provisions of this Code. However, no helper or apprentice shall do or perform any work upon any elevator or its parts of the kind for which a permit is required by LAMC Sections 92.0126 and 92.0129, except when the registered Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Conveyor Mechanic is actually upon the premises on which the work is being done and is personally supervising and directing the work of the helpers or apprentices.

SEC. 92.0122. EXPIRATION OF CERTIFICATE.
(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

Each Certificate of Registration issued to a Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Conveyor Mechanic pursuant to the provisions of this Code shall be valid for a period of one year from the date of issuance, unless revoked or suspended. The Superintendent of Building shall have the power to revoke or suspend the certificate for good cause.

SEC. 92.0123. RENEWAL CERTIFICATE FEES.
(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

(a) Any Certificate of Registration not previously revoked or suspended for cause shall be renewed on or before 30 days after its expiration date.

(b) The Department shall collect a fee as specified in LAMC Section 98.0414(a)3. from every applicant applying for a renewal of a Registration Certificate for a Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Mechanic. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(c) A delinquent Elevator Registration Certificate for a Journey-Level Elevator Mechanic, Wheelchair Lift Mechanic or Vertical Reciprocating Conveyor Mechanic may be renewed at any time within 12 months following the date of expiration. After the first month, the renewal fee shall be increased by 10% for each additional month that the Registration Certificate remains delinquent for up to 12 months following the date of expiration.

PART 2

PERMITS, PLAN CHECKS, FEES, INSPECTIONS

SEC. 92.0126. INSPECTION AND INSPECTION FEES.

(a) The Department shall cause to be inspected and tested once every year all elevator equipment or related devices governed by this Code. **(Amended by Ord. No.**

158,949, Eff. 6/21/84.)

(b) The Department shall have its representative present to witness all tests made on elevator safety devices, governors and other safety equipment. Every such device shall be stamped with the proper identification and date before the Department may approve such device for use. **(Relettered (b) by Ord. No. 158,949, Eff. 6/21/84.)**

(c) The Department shall charge and collect a fee for each periodic inspection made by the Department as follows: **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

Private residence elevator.....\$58.00
Dumbwaiter.....\$71.00
(with automatic transfer).....\$123.00
Sidewalk elevator.....\$162.00
Hand elevator.....\$58.00
Escalator and Moving Walk.....\$162.00
Inclined Elevator.....\$162.00
Hydraulic Elevator - Direct Plunger and Cabled.....\$162.00
Cabled elevator:
10 landings or under.....\$214.00
11 landings but under 20 landings.....\$286.00
21 landings and over.....\$357.00
Fire or Emergency Operation.....\$84.00
Seismic device operation.....\$84.00
Manlift.....\$156.00
Vertical Platform (wheelchair) Lift.....\$71.00
Inclined Platform (wheelchair) Lift.....\$71.00
Stairway Chair lift.....\$71.00
Material Lift with Automatic Transfer Device.....\$214.00
Vertical and Inclined Reciprocating Conveyor.....\$214.00
Rack and Pinion Elevator.....\$214.00
Special Purpose Personnel Elevator.....\$214.00
Automated Guided Vehicles on Guide Ways.....\$143.00 per hour
Conveyance used for Construction.....\$143.00 per hour

(d) The periodic inspection fees for any conveyance not listed in Subsection (c), above, that is required to be inspected pursuant to this section, shall be based on similar devices as determined by LAMC Section 92.0202. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 92.0127. SPECIAL ENFORCEMENT OF PROCEDURES FEES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Whenever special enforcement procedures are required to obtain compliance with properly executed Department notices or orders, a fee, as specified in LAMC Section 98.0407, shall be assessed.

SEC. 92.0128. INVESTIGATION FEE.

Whenever any work for which a permit is required under the provisions of this Code has been commenced without the authorization of such permit, a special investigation shall be made before a permit may be issued for such work. In addition to the permit fee, an investigation fee shall be collected under LAMC Section 98.0402. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

No permit shall be issued when an investigation fee is due until such fee has been paid.

The payment of the investigation fee shall not exempt any person from compliance with the provisions of this Code nor from any penalty prescribed by law.

SEC. 92.0129. INSTALLATION PERMIT FEES.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

(a) No person shall install, construct or reconstruct any device regulated by this Code without first obtaining a permit from the Department.

(b) No person shall perform any work in or on any existing elevator, dumbwaiter, escalator, moving walk, inclined elevator, manlift (including any other personnel lift), private residential elevator, private residential inclined elevator, private residential inclined stairway chairlift, private residential wheelchair lift, reciprocating conveyor, wheelchair lift and inclined stairway chair lift and related devices regulated by this Code so as to change its type, design or purpose to a different type, design or purpose without first obtaining a permit from the Department.

(c) **(Amended by Ord. No. 180,868, Eff. 10/22/09.)** The Department shall, before issuance of a Certificate of Inspection, charge and collect a fee of \$26.00 for each installation permit.

The fees specified in this subsection shall be increased by 12.5% for all construction or work required to comply with Title 24, California Administrative Code, Section 1-110, *et seq.*, the state's handicapped access and adaptability requirements.

(d) Upon completion of any of the work enumerated in this section for which an installation permit has been issued, the Department shall inspect the work and collect a fee of \$143.00 for each hour or portion of an hour for each acceptance inspection and issue a Certificate of Inspection, if and when the work is found to comply with the requirements of this Code. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

The fees specified in this section shall be increased by 12.5% for all construction or work required to comply with the State's disabled access and adaptability requirements in Title 24, of the California Code of Regulations. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(e) Application for all permits shall be made upon forms provided by the Department.

(f) The fee for field consultations shall be \$143.00 per hour or any fraction of an hour. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

SEC. 92.0130. FEES FOR PLAN CHECKING.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) Before formally accepting a set of plans and specifications for checking, the Department shall collect a plan check fee.

(b) Plan checking fees shall be as follows:

Dumbwaiter, each.....\$100.00
Sidewalk elevators, each.....\$100.00
Private residential elevator, each.....\$100.00
Escalators and moving walks, each.....\$158.00
Hydraulic elevator-Direct Plunger, each.....\$129.00
Hydraulic Elevator-Cabled, each.....\$432.00
Cabled elevators, each.....\$432.00
Inclined elevator, each.....\$432.00
Vertical Platform (Wheelchair) Lift, each.....\$100.00
Inclined Platform (Wheelchair) Lift, each.....\$100.00
Stairway Chair Lift, each.....\$100.00
Material Lift, each.....\$129.00
Reciprocating Conveyer, each.....\$129.00
Rack and Pinion Elevator, each.....\$432.00
Conveyances not covered in this list.....\$208.00/unit.

If plan check time exceeds 2 hours, the Department will collect a plan check fee as specified in LAMC Section 98.0415(e).

Modernizations and Alterations.....\$208.00.

If plan check time exceeds 2 hours, the Department will collect a fee as specified in LAMC Section 98.0415(e).

(c) The plan check fees required by the provisions of this section are in addition to the inspection fees required elsewhere in this Code. The total plan check fee shall be paid at the time plans are submitted for plan check.

(d) The Department may collect a plan check fee as specified in LAMC Section 98.0415(e) for the plan checking of any custom, specialized or non-standard elevator or related equipment, or for any elevator or related equipment not included in the above plan check schedule.

(e) **Off-hour Plan Check.** Upon request by an applicant and accepted by the Department, an off-hour plan check fee per LAMC Section 98.0422 may be collected.

SEC. 92.0131. OFF HOURS INSPECTIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Department may, at its discretion, make emergency inspections at other than normal working hours, upon the request of a permittee, provided that additional fees are paid as specified in LAMC Section 98.0406.

SEC. 92.0132. PERMIT FEES FOR REPAIR, REPLACEMENT, ALTERATION, OR MODIFICATION.

(a) No person shall cause or permit any repairs, replacements, alterations, or modifications to any elevator or equipment regulated by this Code unless a permit has first been obtained from the Department.

For the purposes of this section, the term "alteration" shall include any work which entails the installation or replacement of any of the mechanical devices or apparatus specified in Subsection (d) or Notes A, B, C of this section and any alterations, repairs and replacements listed in the California Code of Regulations, Title 8, Section 3000(h).

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

(b) The Department shall charge and collect the sum of \$26.00 for each inspection permit to do any work and the sum of \$143.00 per hour or any portion of an hour for the inspection of the work specified in Notes A, B, C of this section and alterations, repairs and replacements listed in the California Code of Regulations, Title 8, Sections 3000(h), 3141.0 and 3141.2, on each particular elevator, escalator or dumbwaiter including lifts or moving walks. No repair, replacement, alteration or modification permit shall allow any person to alter the type or design of the installation, and in the event that the work is of a nature that would alter the type, design or purpose of the installation, then a permit shall be obtained pursuant to the provisions of LAMC Section 92.0129. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(c) Application for all such permits shall be made upon forms provided by the Department.

(d) The fee for any repairs, replacements, alterations or modifications for which a permit is required, but for which no fee is provided here, shall be as provided under LAMC Sections 92.0129 or 92.0132(b). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(e) The fee for field consultations will be \$143.00 per hour or any fraction thereof. **(Former Subsec. (f) re-lettered (e) and Amended by Ord. No. 180,868, Eff. 10/22/09.)**

NOTE A: For the purpose of this section, the following shall be considered alterations for electric elevators:

1. Increase in rated load or speed
2. Increase in dead weight of car
3. Increase or decrease in travel
4. Change in type of operation or control (including modification of fire and emergency operation)
5. Change in size or number of hoisting or counterweight ropes
6. Change in size or type of guide rails
7. Replacement of or change in type of car or counterweight safety
8. Permissive use of freight elevators to transport employees
9. Change in classification from freight to passenger service
10. Change in power supply
11. Replacement of an existing driving machine by a new driving machine

12. Replacement of an existing controller by a new controller
13. Replacement of an existing driving machine brake by a new brake
14. Replacement of hoistway doors
15. Addition or replacement of hoistway door locking devices or car door or gate electric contact
16. Addition of hoistway access switches
17. Addition of top-of-car operating devices
18. Addition of hoistway door and/or car-door or gate operating devices
19. Addition of rope equalizers
20. Addition of auxiliary rope-fastening devices
21. Addition of car-leveling or truck zoning devices
22. Addition of roller guide shoes
23. Replacement of elevator ropes
24. Land Elevator

NOTE B: For the purpose of this section, the following shall be considered alterations for hydro-electric elevators: **(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)**

1. Replacement of an existing control valve with a valve of a different type;
2. Replacement and repair of existing relief and check valves;
3. Replacement of existing supply piping and fittings;
4. Replacement of existing tanks;
5. Replacement of cylinder and/or plunger with a cylinder or plunger of different material, size or design;
6. Increase of working pressure;
7. Earthquake restraints.

NOTE C: For the purpose of this section, replacements or additions to elevators, escalators, dumbwaiters, inclined lifts and moving walks and other related devices regulated by this Code beyond those necessary for normal maintenance shall be considered alterations. **(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)**

SEC. 92.0132.1. FEES FOR ADDITIONAL INSPECTIONS.

(Added by Ord. No. 154,596, Eff. 12/7/80.)

- (a) Each periodic inspection shall be entitled to a maximum of two inspection trips. **(Amended by Ord. No. 171,185, Eff. 7/22/96.)**
- (b) A fee as specified in LAMC Section 98.0412(b) shall be paid for each additional inspection trip in excess of the two trips allowed in Subsection (a) of this section. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- (c) The fees charged under this section are in addition to any other fees shown in this division, and the payment of the fees required by this section shall not exempt any person from compliance with other provisions of the Code, nor from any penalty prescribed by law.

SEC. 92.0133. APPROVALS.

All elevator equipment, including controls, doors, interlocks, machinery, governor, safety devices, switches and any other devices designed for the operation of the equipment governed by this Code shall be approved by the Superintendent of Building before they may be in stalled or used. The Superintendent of Building shall have the authority to establish rules and regulations in connection therewith.

SEC. 92.0134. RESPONSIBILITY OF OWNERS, LESSEES, MANAGERS, ETC.

(Amended by Ord. No. 171,668, Eff. 8/28/97.)

(a) It shall be unlawful for any person having possession or custody of or authority or control over any premises where any equipment or device mentioned in this Code is installed, whether as owner, lessee, licensee, trustee, mortgagee, management company, or representative, officer, employer or agent thereof, or as building manager or custodian, or in any capacity whatsoever: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

1. To permit on such premises the installation of any elevator or other equipment or device for which a permit is required by this article unless such permit shall first have been obtained from the Department.
2. To permit on such premises the doing of any work for which a Certificate of Registration is required by this article except by a person holding such Certificate.
3. To use or permit the use of any elevator or other equipment or device required by this article to be inspected and approved by the Department unless such equipment shall first have been inspected and approved and all fees paid.
4. To use or permit the use of any elevator, equipment or device the use or operation of which has been prohibited by the Department.
5. To obstruct or interfere with the Department or any Safety Engineer thereof in making any inspection required by law or ordered by the Superintendent of Building.

(b) Any person having possession or custody of or authority or control over any premises whereon any equipment or device mentioned in this code is installed, whether as owner, lessee, licensee, trustee, mortgagee, management company, or representative, officer, employer or agent thereof, or as building manager or custodian, or in any capacity whatsoever shall be responsible to install and maintain the following signs:

1. Elevators

A. A sign of durable material with letters of not less than 1/8-inch in height shall be posted in each elevator machine room displaying the telephone number or numbers to call for emergency service. The number or numbers shall be for an individual possessing a current Journey-Level Elevator Mechanic Certificate issued by the City or elevator service company employing an individual so certified. The person or company must be able to provide service at the hours the elevators are expected to be operating. A similar sign shall be posted in the building manager's premises or other appropriate location.

B. A sign shall be posted in each elevator car in letters of not less than 1/8-inch in height instructing passengers on the procedure for seeking assistance should the elevator become inoperative and instructing them to remain in the car until assistance arrives and not to attempt to force the doors or hatch open.

2. **Escalators.** All escalators shall have conspicuously displayed at each entrance a sign of durable material in accordance with ASME 17.1-1996, Rule 805.9. (Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

3. **Landings.** An approved pictorial sign of a standardized design shall be posted adjacent to each elevator corridor call station to indicate that, in case of fire, the elevator will not operate and the exit stairways should be used. The pictograph shall be at least five inches (127 mm) wide and eight inches (230 mm) high. (See ASME A-17.1-96, Appendix H). (Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

PART 3

ENFORCEMENT

SEC. 92.0135. POWERS OF DEPARTMENT AND BOARD.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

The powers of the Department and the Board are enumerated in LAMC Section 98.0403.1.

SEC. 92.0136. APPEALS.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Appeals or requests for slight modifications in individual cases from the requirements of this Code shall be made in accordance with the procedures established in LAMC Section 98.0403.2.

SEC. 92.0137. EXPIRATION OF PERMIT AND PLAN CHECK.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Permits and plan checks shall expire as provided in LAMC Sections 98.0602, 98.0603 and 98.0604.

SEC. 92.0138. SCOPE OF PERMITS.

(a) The issue of a permit is not an approval or authorization of the work specified therein. A permit is merely an application for inspection, the issuance of which entitles the permittee to inspection of the work which is described therein.

(b) Neither the issuance of a permit nor the approval by the Department of any document shall constitute an approval of any violation of any provision of this Code or of any other law or ordinance; and a permit or other document purporting to give authority to violate any law shall not be valid with respect thereto.

SEC. 92.0139. NON-RESPONSIBILITY OF CITY.

Neither the City of Los Angeles, nor any department, board, commission, officer or employee thereof shall be held liable or responsible for any damage or injury caused by or resulting from the issuance of any permit, or any inspection or approval made under the provisions of this Code.

SEC. 92.0140. PROCEDURE FOR REVOCATION OR SUSPENSION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Any suspension or revocation authorized herein shall be done in accordance with the provisions of Article 8, Chapter IX of the LAMC.

SEC. 92.0141. ALTERNATE MATERIALS AND METHODS OF CONSTRUCTION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

New or alternate materials and methods of construction may be approved by the Department in accordance with the provisions of Article 8, Chapter IX of the LAMC.

DIVISION 2

GENERAL

- 92.0202 General.
- 92.0203 Sections not Adopted from the California Code of Regulations.
- 92.0205 Retroactive Provisions.
- 92.0206 Mechanical Locks and Electric Contacts.
- 92.0207 Additional Requirements.

SEC. 92.0201. RESERVED.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

SEC. 92.0202. GENERAL.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

The California Code of Regulations, Title 8, Division 1, Chapter 4, Subchapter 6 and its amendments are adopted by reference, with exceptions, modifications and additions as specifically provided in this article.

SEC. 92.0203. SECTIONS NOT ADOPTED FROM THE CALIFORNIA CODE OF REGULATIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The following sections from the California Code of Regulations, Title 8, Division 1, Chapter 4, Subchapter 6 are not adopted:

- Section 3001(a)(1), (2), (3), (4) and (5)
- Section 3001(b)(4)
- Section 3001(c)(3) thru (6).

SEC. 92.0204. RESERVED.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

SEC. 92.0205. RETROACTIVE PROVISIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The retroactive provisions of the California Code of Regulations, Title 8, Division 1, Chapter 4, Subchapter 6 are adopted by reference and made applicable to any equipment regulated by this article.

SEC. 92.0206. MECHANICAL LOCKS AND ELECTRIC CONTACTS.

Door locks such as bar type or magnetic, which no longer provide the safety of positive locking or self-closing, shall be ruled unsafe by the Department.

The Department shall thereupon serve a written notice of the findings upon the holder of the operating license stating the time when recommended repairs or replacements must be completed. In cases of immediate urgency, such work or repairs may be ordered to be done at once, and the elevator unit sealed and taken out of service.

SEC. 92.0207. ADDITIONAL REQUIREMENTS.

(Amended by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

(a) **Access to Pits.**

(1) Access to pits extending two feet or more below the sill of the pit access door shall be by means of a permanent ladder or stairway of incombustible material. The ladder or stairway shall be adequately guarded to prevent contact between a person on the ladder or stairway and any moving part of any adjacent elevator machinery. The ladder shall extend at least 36 inches above the sill or the access door unless handgrips are provided to the same height. The ladder shall be located adjacent to the strike jamb of and accessible from the access door to the pit. The distance from the ladder rung to the wall shall be at least four inches. Access to pits of elevators in multiple hoistways may be by means of a single hoistway door and ladder.

(2) Vertical ladders shall not be permitted in pits having a depth of more than 12 feet below the lowest hoistway door sill. A separate access door shall be provided for pit access.

(3) When the means of determining the oil level of the car or counterweight buffers is located more than seven feet above the pit floor, a permanent steel platform and ladder shall be provided for inspection and maintenance of the buffer.

(4) If the pit access door is contacted, a sign shall be posted reading, "DOOR CONTACTED" or equivalent.

EXCEPTION: The elevator pit access door has a vision panel of at least six inches by eight inches.

(b) An adequate means of supporting the elevator car shall be provided prior to landing the elevator car or repacking the hydraulic elevator plungers or performing other elevator equipment maintenance that requires the elevator car to be in a static position.

(c) **Guiding Members.** (This requirement is in lieu of Rule 203.2 of ASME A17.1). The car top roller guides shall be shielded by roller guards.

(d) **Materials For Enclosures and Enclosure Linings.** (These requirements are in addition to California Code of Regulations, Title 8, Section 3121.4).

Materials for car enclosure framing and car enclosure linings shall conform to the following:

1. **Material for Car Enclosures Framing:** Metal, approved incombustible materials, or fire retardant treated wood, defined as any lumber or plywood impregnated with chemicals that when tested in accordance with ASTM E84, UL 723 or NFPA 255 for a period of 30 minutes shall have a flame spread rating of 25 or less and a smoke contribution of 25 or less. The fire retardant wood shall have visible identification mounted on the crosshead, showing the fire performance, and issued by an approved testing agency having a reexamination service.

2. **Materials for Enclosure Wall and Ceiling Lining:** Materials used to furnish the inside surfaces of the enclosure shall be incombustible or shall be bonded flat to the enclosure and have a flame spread rating of 50 or less and a smoke density of 300 or less when tested in accordance with ASTM E84, UL 723 or NFPA 255.

3. Plastic Luminous Ceilings in Elevator Enclosures:

- (a) Flame spread shall not exceed 50 and smoke density shall not exceed 300 when tested according to ASTM E84, UL 723 or NFPA 255.
- (b) The self-ignition temperature shall be 650 or greater when tested according to ASTM D 1929-68.

4. Combustible materials used in the enclosure wall and ceiling shall be specifically approved by the Department.

(e) **Speed Governor Marking Plate.** The manufacturer's type designation shall be added to the data shown on the Speed-Governor marking plate required by Rule 206. 9 of ASME A17.1-1996.

(f) **Clearance Between Balustrade and Steps.** (This requirement is in lieu of Rule 802.3(e) of ASME A17.1-1996). The clearance on either side of the steps between the steps and the adjacent skirt guard shall be not more than 3/16-inch, and the sum of the clearance on both sides shall be not more than 1/4-inch.

(g) **Reinspection Periods.** (This requirement is in lieu of California Code of Regulations, Title 8, Section 3001(b)(4)). Periodic reinspections shall be made at intervals not longer than twelve months for all elevator equipment or related devices regulated by this Code.

(h) **Electrical Code.** Electrical equipment, devices and wiring shall conform to Article 3, Chapter IX of the LAMC (Electrical Code). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(i) **Hoistway Door Vision Panels.** (This requirement is in addition to the requirements of Rule 110.7(a) through (g) ASME A17.1).

All passenger elevator hoistway doors containing glass (including vision panels) are required to be covered within 60 days after notification by the Department.

The elevator hoistway door glass panels shall be covered as follows:

- 1. The covering shall be a minimum of 1/8-inch thick steel plate or expanded steel sheet metal having sufficient holes or perforations to determine the location of the elevator car;
- 2. The holes or perforations shall not exceed one inch across;
- 3. Installations of the steel plates or sheet metal coverings shall be made with welds or bolts (carriage type) installed with the nuts on the hoistway side to discourage the unauthorized dismantling of the installation;
- 4. The installation shall not have protruding parts nor shall any of the parts have sharp edges.

EXCEPTIONS:

- 1. Plates of special design, such as those that swing out or provide quick removal for cleaning the glass, may be approved after details of the proposed installation are submitted to the Department for consideration.
- 2. Plates designed with a multitude of holes or perforations, not larger than 1/8-inch each, may be used in lieu of the glass in vision panels.
- 3. Glass hoistway doors meeting the requirements of ASME A17.1-1996, Rule 110.7b.

(j) **Vision Panels.** (This requirement is in addition to the requirements of Rule 204.2(e) Subsections 1 through 4 of ASME A17.1). All passenger elevator car doors containing glass vision panels are required to be covered in the manner prescribed in LAMC Section 92.0207(i) for hoistway door vision panels. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

EXCEPTION: Glass car doors meeting the requirements of ASME A17.1-1996, Rule 204.5i(2).

(k) **Elevator Controls/Machinery Spaces.** Required workspace clearance for elevator control and/or machinery spaces shall be located entirely within the interior of the building. The elevator controllers shall not be located in the elevator hoistway. **(Amended by Ord. No. 182,846, Eff. 1/3/14.)**

(l) **Elevator Earthquake Operation.** An elevator, which has been shut down by the activation of a seismic device, shall not return to normal operation until an inspection of the hoistway and related equipment has been made and deemed safe and code compliant by a Certified Journey-Level Elevator Mechanic. The owner of the building shall keep a record of the inspection and approval by the Certified Journey-Level Elevator Mechanic to allow the reactivation of the elevator. **(Added by Ord. No. 179,328, Eff. 12/10/07, Oper. 1/1/08.)**

DIVISION 3

PRIVATE RESIDENCE INCLINED ELEVATORS, INCLINED STAIRWAY CHAIRLIFTS, INCLINED AND VERTICAL WHEELCHAIR LIFTS AND PRIVATE RESIDENCE ELEVATORS

(Amended in Entirety by Ord. No. 174,861, Eff. 11/14/02, Oper. 11/1/02.)

Section
92.0301 Scope.
92.0302 Private Residence Inclined Elevators.
92.0303 Private Residence Vertical Platform Lifts.
92.0304 Private Residence Elevators.

SEC. 92.0301. SCOPE.

This Division applies to Inclined Elevators, Inclined Stairway Chairlifts, Inclined and Vertical Wheelchair Lifts and Elevators located in a Private Residence.

SEC. 92.0302. PRIVATE RESIDENCE INCLINED ELEVATORS.
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

All inclined elevators in private residences shall comply with the provisions of ASME A 17.1 and this article. Part 5, Section 5.4 of ASME A 17.1-2004 is adopted by reference, with the following exceptions and modifications: ASME Sections 5.3.1.7.7, 5.3.1.18.4, 5.3.1.18.5 and 5.4.8 are not adopted.

(a) **Suspension Means.** Suspension means shall comply with Part 5, Section 5.3.1.12 of ASME A 17.1-2004.

(b) **Machine and Controls.** Machine and controls shall be located as follows:

1. Machines, controls and disconcerting means shall not be mounted on cars, and shall be located outside of the hoistway in spaces dedicated to the elevator equipment.
2. The machine room shall have a head clearance of at least seven feet, and shall be provided with permanent electric lighting and a duplex receptacle rated at not less than 15A at 120V.
3. Required workspace clearance for elevator control and/or machinery spaces shall be located entirely within the interior of the building.

(c) **Maintenance.** The owner shall develop, implement, and maintain a written maintenance program for Private Residence Inclined Elevators in accordance with the manufacturer's recommendations. The maintenance shall be performed by a registered Journey-Level Elevator Mechanic as required by LAMC Section 92.0119. A log of all repairs and maintenance shall be kept at the location.

SEC. 92.0303. PRIVATE RESIDENCE VERTICAL PLATFORM LIFTS.

(Title and Section Amended by Ord. No. 182,846, Eff. 1/3/14.)

Part 5 of ASME A18.1-2003 is adopted by reference, with the following exceptions: Rule 5.1.4.1 and Rule 5.10.9.1 are not adopted.

92.0303.1. Private Residence Inclined Platform Lifts. Part 6 of ASME A18.1-2003 is adopted by reference, with the following exceptions: Rule 6.1.6.1 and Rule 6.10.6.1 are not adopted.

92.0303.2. Private Residence Inclined Stairway Chairlifts. Part 7 of ASME A18.1-2003 is adopted by reference, with the following exceptions: Rule 7.1.3 and Rule 7.10.3.1 are not adopted.

SEC. 92.0304. PRIVATE RESIDENCE ELEVATORS.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

All elevators in private residences shall comply with the provisions of ASME A17.1-2004 and this article. Part 5, Section 5.3 of ASME A17.1-2004 is adopted by reference, with the following exceptions and modifications: Sections 5.3.1.7.7, 5.3.1.8.1(a), 5.3.1.8.1(d), 5.3.1.18.4(a) and 5.3.1.18.5 are not adopted.

(a) **Car Enclosure.** Except at entrances, cars shall be enclosed on all sides and on the top. The enclosure shall be constructed of solid material, except openwork material may be provided for ventilation. When openwork material for ventilation is provided, it shall meet the requirement of ASME A17.1-2004, Rule 2.14.2.3.

(b) **Machine and Controls.** Machine and controls shall be located as follows:

1. Machines, controls and disconcerting means shall not be mounted on cars, and shall be located outside of the hoistway in spaces dedicated to the elevator equipment.
2. The machine room shall have a head clearance of at least 7 feet, and shall be provided with permanent electric lighting and a duplex receptacle rated at not less than 15A at 120V.
3. Required workspace clearance for elevator control and/or machinery spaces shall be located entirely within the interior of the building.

(c) **Cars Doors and Gates.** A car door, when closed, shall guard the full opening of the entrance to the car. Car doors or gates shall be of solid construction. Scissors type gates are prohibited.

(d) **Glass in Hoistway Landing Doors.** Glass used in hoistway landing doors shall comply with ASME A17.1-2004, Section 2.11.7.

(e) **Car Platform and Landing Sills.** Sills shall be of metal and shall comply with ASME A17.1-2004, Rule 2.11.10.1.1 except 2.11.10.1.1(c).

(f) **Projections or Setbacks in the Hoistway.** Any projection or setbacks in the hoistway shall comply with ASME A17.1-2004, Section 2.1.6 except Rule 2.1.6.2(b) and Rule 2.1.6.2(d) where projections or setbacks allow 4 inches (101.6 mm), this shall be reduced to 2 inches (50.8 mm).

(g) **Glass Used in a Hoistway of a Non-Fire Resistive Construction.** Glass used in the hoistway shall comply with ASME A17.1-2004, Rule 2.1.1.2.1, Rule 2.1.1.2.2(d) and Rule 2.1.1.5 and shall also comply with the following:

1. Entrance into the bottom (below car) of the hoistway or at the top (above car) of the hoistway for cleaning and maintenance purposes shall comply with ASME A17.1-2004, Rule 5.2.1.4.2 (Bottom) and Rule 5.2.1.4.4 (top).

2. The cleaning and maintenance of the glass in the hoistway shall comply with the following:

(i) The cleaning of glass car enclosure and/or hoistway enclosures from inside the hoistway shall be performed by a City of Los Angeles Licensed Journey Level Elevator Mechanic as required by LAMC Section 92.0119 and employed by a State of California C11 Licensed Elevator Company.

(ii) A written cleaning procedure shall be developed by the original installation elevator company and kept on the premises where the elevator controller is located. The procedure shall identify the hazards and shall also detail safety precautions to be utilized.

(iii) A maintenance data plate with lettering a minimum size of 6 mm (0.25 inch) high on a contrasting background shall be fastened in a conspicuous place inside the elevator stating: "ALL MAINTENANCE OF ELEVATOR, INCLUDING THE CLEANING OF GLASS, SHALL BE PERFORMED AS REQUIRED BY LAMC Section 92.0119."

(iv) A copy of the glass cleaning procedure from the original elevator installation company, on the original elevator installation company's letterhead, shall be made available on the acceptance inspection to the LADBS Elevator Division.

SEC. 92.0305. CAR ENCLOSURE.

(Deleted by Ord. No. 179,328, Eff. 12/10/07, Oper. 1/1/08.)

SEC. 92.0306. MACHINE AND CONTROLS.

(Deleted by Ord. No. 179,328, Eff. 12/10/07, Oper. 1/1/08.)

SEC. 92.0307. CAR DOORS AND GATES.

(Deleted by Ord. No. 179,328, Eff. 12/10/07, Oper. 1/1/08.)

SEC. 92.0312. NAMEPLATE.

(Deleted by Ord. No. 179,328, Eff. 12/10/07, Oper. 1/1/08.)

SEC. 92.0313. MAINTENANCE.

(Deleted by Ord. No. 179,328, Eff. 12/10/07, Oper. 1/1/08.)

DIVISION 4

MANLIFTS

Section
92.0401 Scope.
92.0402 General.

SEC. 92.0401. SCOPE.

This part applies to manlifts (including any other personnel lifts).

SEC. 92.0402. GENERAL.

(Amended by Ord. No. 158,169, Eff 8/3/83.)

- (a) **Definition.** A device consisting of a power driven endless belt provided with steps or platforms and handholds attached to it for the vertical transportation of personnel.
- (b) **Installation and Limitation of Use.** The installation of new manlifts is hereby prohibited, and any presently existing manlifts shall be removed from use not later than May 23, 1984 unless expressly excepted in this section.

EXCEPTIONS: The installation of manlifts in flour mills is not prohibited. The requirement of removal from use not later than May 23, 1984 is not applicable to flour mills, borax silos, parking structures, or electric generating stations, provided that any manlift in such facility is completely enclosed by a fence, and access gates thereto are locked so as to prevent unauthorized and untrained personnel from using the device, and provided further that the City has authority to enter the premises in order to insure that the fence and locked gates are provided and properly maintained. (Amended by Ord. No. 182,846, Eff. 1/3/14.)

ARTICLE 3

ELECTRICAL CODE

(Amended by Ord. No. 182,851, Eff. 1/3/14.)

Division

- 1 General Administrative Provisions
- 2 Permits, Plans and Fees
- 3 Enforcement
- 4 Approved Equipment
- 5 Registration
- 6 Definitions and Requirements for Electrical Installations
- 7 Requirements for Installation Methods and Materials

DIVISION 1

GENERAL ADMINISTRATIVE PROVISIONS

Section
93.0101 Title.
93.0102 Purpose.
93.0103 Scope.
93.0104 Prohibited Acts.
93.0105 Interpretation.
93.0106 Other Limitations.
93.0107 Distracting, Confusing or Nuisance Lighting Viewed from Public Streets, Highways or Other Public Thoroughfares Used by Vehicular Traffic.
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- 93.0109 Existing Construction.
- 93.0110 Relocated Buildings.
- 93.0111 Change of Occupancies.
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- 93.0114 Right of Entry.
- 93.0115 Code Arrangement.
- 93.0116 Fire Damaged Wiring System.
- 93.0117 Outdoor Lighting Affecting Residential Property.

SEC. 93.0101. TITLE.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

This article shall be known as the "**Los Angeles Electrical Code**" a portion of the "**Los Angeles Municipal Code**". Wherever the word "**Code**" is used in this article, it shall mean the "**Los Angeles Electrical Code**" and whenever "**LAMC**" is used, it shall refer to the "**Los Angeles Municipal Code**". References to the "**CEC**" and the "**CBSC**" shall mean the 2022 "**California Electrical Code**" and the 2022 "**California Building Standards Codes**" respectively. Whenever the word "**City**" is used, it shall mean the "**City of Los Angeles**". Whenever the word "**Department**" is used, it shall mean the "**Department of Building and Safety**".

SEC. 93.0102. PURPOSE.

(a) The purpose of this Code is to reduce the personnel hazard and the fire hazard from electrical causes. To accomplish this, the requirements set forth herein are intended to provide a minimum standard for electrical installations in the City of Los Angeles.

(b) Whenever compliance with the provisions of this Code fail to reduce the demonstrable hazards due to electrical causes to an acceptable level and the hazard is such that the time required to effect a change through normal processes would not be in the common interest, the Superintendent of the Department may require additional safeguards to meet the intent and purpose of this Code.

SEC. 93.0103. SCOPE.

(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)

The provisions of this Code shall apply to all electrical systems or equipment installed, used, maintained, rented, leased, or offered for sale or distributed for use in the City of Los Angeles, except those electrical systems and equipment exempted from the provisions of this Code.

It is the intent of this Code to place jurisdiction of electrical wiring on the supply side of service points with the electric utility or serving agency.

SEC. 93.0104. PROHIBITED ACTS.

(Amended by Ord. No. 185,198, Eff. 11/22/17.)

No person shall install, operate or maintain electrical systems or equipment which do not comply with all of the applicable provisions of this Code.

SEC. 93.0105. INTERPRETATION.

(a) If two or more pertinent limitations are not identical, those limitations which provide the greater safety to life and limb, property or public welfare shall prevail.

(b) The Superintendent of Building is empowered to make all interpretations concerning the provisions of this Code.

SEC. 93.0106. OTHER LIMITATIONS.

(Amended by Ord. No. 154,234, Eff. 9/1/80.)

(a) The permissive provisions of this Code shall not be presumed to waive any limitation imposed by the statutes or ordinances of the City or other governmental agencies.

(b) The provisions of this Code which allow exposed live parts or open wiring systems or which permit access to, or operation or maintenance of such systems by qualified persons shall be subject to the further requirement that special permission must be obtained in each instance.

(c) No person shall cause to be used or energize any electrical systems or equipment installed in, or connected to, any building, vehicle or movable structure which does not conform to, or is in violation of the LAMC, except where the Department determines that a limited or temporary occupancy may be permitted. **(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)**

SEC. 93.0107. DISTRACTING, CONFUSING OR NUISANCE LIGHTING VIEWED FROM PUBLIC STREETS, HIGHWAYS OR OTHER PUBLIC THOROUGHFARES USED BY VEHICULAR TRAFFIC.

(Added by Ord. No. 161,316, Eff. 7/7/86.)

(a) No person shall construct, establish, create, or maintain any stationary exterior electric lighting or illumination system or any interior system which is visible from a public street, highway or other public thoroughfare used for vehicular traffic, that contains or utilizes:

1. An exposed incandescent lamp with a rated wattage in excess of 40 watts.
2. An exposed incandescent lamp with an internal metallic reflector.
3. An exposed incandescent lamp with an external reflector.
4. A revolving beacon light.
5. A continuous or sequential flashing operation in which more than one- third of the lights are turned on or off at one time.
6. An illuminating device or devices which produce illumination in excess of what is permitted in Section 21466.5 of the State of California Vehicle Code.

(b) The provisions of this section shall not apply to: **(Amended by Ord. No. 171,858, Eff. 1/23/98.)**

1. Lighting systems owned or controlled by any public agency for the purpose of directing or controlling navigation, traffic, or for highway or street illumination.
2. Aircraft warning lights.
3. Systems which only display the time of day and/or the atmospheric temperature or programmable electronic messages.
4. Temporary lighting used for repair or construction as required by governmental agencies.
5. Lights that are provided in compliance with Sections 12.21 A.5.(k), 91.6305.2 and 91.8607 of the LAMC. **(Amended by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**

SEC. 93.0108. EXEMPTED FROM CODE.

(Amended by Ord. No. 154,234, Eff. 9/8/80.)

(a) **Railways.** The provisions of this Code shall not apply to the following electric wiring installed, owned, maintained or controlled by an interstate, interurban or street railway;

1. Electric wiring in any generating plant, central station or substation used for generating, transforming or transmitting electrical power used exclusively for operating trains, engines, car or trolley coaches; or
2. Overhead and underground distribution systems used exclusively for the operation of equipment listed in Subdivision 1 of this subsection; or **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
3. Electric wiring used exclusively for signaling and communication purposes.

(b) **Serving Agency.** The provisions of this Code shall not apply to the following electric wiring installed, owned, and controlled by an electrical utility or serving agency which supplies electricity to 100 or more separate premises:

1. Any generating plant, receiving station, switching station, distributing station, or industrial or commercial station under the control of such utility or serving agency. However, nothing contained in this subdivision shall be construed to exempt any electric wiring which is used for general lighting or general power purposes such as heating, cooling, ventilating, elevators, or pumping equipment; nor to exempt any feeder, service, switchboard, branch circuit panelboard or standby power generator used in whole or in part for general building operation purposes; and **(Amended by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**
2. Any electrical wiring for its supply lines or mains; and
3. Service drops to the service point which are attached to a structure or the outermost exterior wall of a building, or a roof immediately adjacent to an exterior wall of a building; and **(Amended by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**
4. Service laterals and their raceways where installed under not less than two inches of concrete beneath a building or other structure and not located in a hazardous location; and **(Amended by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**
5. All service wiring located within a customer owned station and the high voltage conductors to such station which have all enclosing conduit encased in three inches of concrete; and
6. Service conductors and raceways encased in not less than two inches of concrete, or raceways that are not concealed, which extend from an interior station to service equipment located adjacent to the station; and
7. Meters of metering equipment.

(c) **Communication Public Utility Systems.** **(Amended by Ord. No. 161,316, Eff. 7/7/86.)**

1. The provisions of this Code shall not apply to installation of communications equipment under the exclusive control of communications public utilities, located outdoors or in building spaces used exclusively for communications purposes in the exercise of its communications utility functions, except where such communications equipment is located in a hazardous location or penetrates any fire-resistive wall or floor system of cable systems that are located in a plenum area or access floor area. **(Amended by Ord. No. 162,834, Eff. 10/26/87.)**
2. Nothing contained in Subdivision 1 of this subsection shall be construed to exempt any electric wiring which is used for external, internal, alternating or direct current power supplies and/or rectifiers exceeding 500va used to supply power to communication public utility equipment or used for general lighting or general power purposes such as heating, cooling, ventilating, elevators, or pumping equipment, nor to exempt any feeder, service, switchboard, branch circuit panelboard or standby power generator used in whole or in part for general building operation purposes, except as to communication public utility equipment for the transmission of audio, data, video and other services housed within a central office exclusively operated by a communications public utility where such equipment is not located in hazardous locations. **(Amended by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**

(d) **Vehicles.** The provisions of this Code shall not apply to any vehicle which complies with the California State Vehicle Act. This exemption does not include transportable generating, transforming and related control equipment which is mounted on vehicles and used for the supply of wiring regulated by this Code.

(e) **Municipal Systems.** The provisions of this Code shall not apply to a Municipal System for street lighting, traffic signal or police and fire alarm where installed outside of buildings on public property.

(f) **Mobile Homes, Travel Trailers, Camp Cars and Mobile Home Parks.** This Code shall not apply to mobile homes, travel trailers, camp cars and mobile home parks, including permanent buildings, accessory buildings and wiring outside of buildings within such parks.

(g) **Hazardous Locations Not Exempted.** **(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)** The foregoing exceptions from the requirements of this Code shall not apply to any electric wiring located in an area classified as a hazardous location by Article 500 of the CEC.

SEC. 93.0109. EXISTING CONSTRUCTION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Except as specified in LAMC Section 93.0111 and LAMC Section 93.0311(f), nothing contained in this Code shall be construed to curtail the uses of, nor to require any person to reinstall, reconstruct, alter, change or remove any electric wiring or equipment which had complied with the laws and regulations in effect at the time of installation.

SEC. 93.0110. RELOCATED BUILDINGS.

(Added by Ord. No. 154,234, Eff. 9/8/80.)

(a) In any building relocated from one place to another within the City and any one- family, two-family or multi-family dwelling moved into the City, may retain the existing electrical wiring provided any such residential building does not become or continue to be a substandard residential building or residential building subject to repair, as those terms are defined in the Municipal Code. However, any electrical wiring which is not in good and safe condition or not working properly shall be corrected. Existing electrical wiring in any building moved into the City, other than one-family, two-family or multi-family dwellings, shall comply with all the requirements of this Code.

(b) New electrical wiring which is installed in any building moved into or within the City shall comply with all the requirements of this Code.

SEC. 93.0111. CHANGE OF OCCUPANCIES.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

(a) Any building or portion of a building in which there has been a change of occupancy or location, after July 1, 1986, to one of the following, shall be wired in accordance with this Code. (See LAMC Section 91.8203.)

1. Locations defined by CEC Division 500 or this Code as hazardous locations.
2. Occupancies defined in Article 1, Chapter IX of the LAMC, and which are required by Article 7, Chapter V, of the LAMC, or where the owner or designer has installed a fire alarm system.
3. Occupancies where the new occupant load exceeds the original or previous value in the building. The occupant load is determined according to the provisions of this the Los Angeles Building Code.
4. Occupancies where the proposed new load density exceeds that of the original or previously used space. Load density is determined based on the load per square foot of area under consideration for the permit.
5. Change in use or occupancy requiring a more restrictive wiring method.

SEC. 93.0112. EFFECTIVE DATE.

Electric wiring installed under a permit issued before the effective date of this Code may be installed in accordance with the laws in effect when the permit was issued; and all work begun before the expiration of the permit may be done in accordance with such laws. **(Added by Ord. No. 154,234, Eff. 9/8/80.)**

SEC. 93.0113. REFERRED DOCUMENTS – COPIES.

Three copies of every law, ordinance, regulation, and specification, or portion thereof which is specifically referred to, or which is mentioned by title and serial designation, or by date of publication, approval or adoption in this Code, shall be kept on file and available for public inspection in the office of the Superintendent of Building. **(Added by Ord. No. 154,234, Eff. 9/8/80.)**

SEC. 93.0114. RIGHT OF ENTRY.

Right of entry shall be governed by the provisions of Section 98.0105 of the Los Angeles Municipal Code. **(Added by Ord. No. 154,234, Eff. 9/8/80.)**

SEC. 93.0115. CODE ARRANGEMENT.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

CEC Chapters 1, 2, 3 and 4 and the tables of Chapter 9 apply as general rules. CEC Chapters 5, 6 and 7 apply to special occupancies, special equipment or their special conditions and supplement or modify the general rules. CEC Chapter 8 covers communication systems and is not subject to the requirements of CEC Chapters 1 through 7 except where specifically referenced in CEC Chapter 8.

SEC. 93.0116. FIRE DAMAGED WIRING SYSTEM.

(Added by Ord. No. 184,692, Eff. 12/30/16.)

- (a) When the Department determines by field verification that the extent of damage to the wiring system installation in a building, structure or area:
- (i) Exceeds 50%, the entire electrical wiring system has to be reinstalled in compliance with the current code;
 - (ii) Is 50% or less, only the damaged wiring system has to be reinstalled in compliance with the current code.

SEC. 93.0117. OUTDOOR LIGHTING AFFECTING RESIDENTIAL PROPERTY.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

(a) The provisions of this section shall apply to any exterior luminaire, multi-head luminaire, lamp holder or sign light source.

(b) No person shall construct, establish, create, or maintain any stationary exterior light source that may cause the following locations to be either illuminated by more than two footcandles (21.5 lx) of lighting intensity or receive direct glare from the light source. Direct glare, as used in this subsection is a glare resulting from high luminances or insufficiently shielded light sources that is in the field of view.

1. Any exterior glazed window or sliding glass door on any other property containing a residential unit or units.
2. Any elevated habitable porch, deck or balcony on any other property containing a residential unit or units.
3. Any ground surface intended for use but not limited to recreation, barbecue, or lawn areas on any other property containing a residential unit or units.

EXCEPTIONS: Subsection (b) shall not apply to:

1. Any frosted light source emitting 800 lumens or less.
2. Any other light source emitting more than 800 lumens where the light source is not visible to persons on other residential property.
3. Any new or existing tennis or paddle tennis court exterior light source which conforms to the following:
 - A. Tennis courts shall be lighted by a maximum of eight full cut-off, horizontally mounted 1,000 watts or less luminaires, shielded in such a manner that the light source cannot be viewable from abutting residential properties. A luminaire shall not have a light intensity of more than 7,500 cd in rural areas, and 25,000 cd in the urban areas as these areas are defined by the 2010 US Census. The luminaire shall be mounted at a height of 20 feet (6096 mm) or less above the court surface and produce not more than 50 footcandles (538 lx) of lighting intensity on the court surface.
 - B. Paddle Tennis Courts shall be subject to all the provisions of Subparagraph 3.A., except that the number of luminaires shall be limited to four.
 - C. Tennis or Paddle Tennis Court lights shall not be turned on or left on between the hours of 10:00 p.m. and 7:00 a.m., Monday through Friday, and between the hours of 10:00 p.m. and 8:00 a.m., Saturday and Sunday.
 - D. The allowed light source intensity at locations indicated in Subsection (b) shall not exceed three footcandles (32.3 lx).
4. Decorative lights with individual light sources emitting 300 lumens or less and temporarily installed between November 25 and January 15 of the next year.
5. Emergency lights or temporary lighting sources used for repair or construction as required by governmental agencies.
6. Lighting sources owned or controlled by any public agency for the purpose of directing or controlling navigation, traffic or for highway or street illumination.
7. Aircraft warning lights.
8. Any other light source which is a minimum of 2,000 feet (609.6 m) in distance from any other property with a residential unit or units.
9. Lights that are provided in compliance with LAMC Sections 12.21 A.5(k), Subsection 91.6305.2 and Section 91.8607.

(c) The owner of property with any existing light source shall bring such light source into compliance with this section upon receipt of written notice from the Department.

DIVISION 2

PERMITS, PLANS AND FEES

(Division and Sections Renumbered by Ord No. 154,234, Eff. 9/8/80.)

Section	
93.0201	Permit Required.
93.0202	Exceptions, Permits Not Required.
93.0203	Scope of Permit.
93.0204	Permit Applications.
93.0206	Plans and Specifications.
93.0207	Information Required on Plans or Specifications.
93.0208	Transfer of Permits and Plan Checks.
93.0209	Revocation of Permits.
93.0210	Separate Permits Required.
93.0211	Expiration of Permits.
93.0212	Investigation Fee.
93.0213	Fees Required.
93.0214	Fees for New General Use Branch Circuits.
93.0215	Fees for Adding Lighting Fixtures, and Other Loads to Existing Branch Circuits, and for Lampholding Devices.
93.0216	Fees for Motors, Transformers, Heating Appliances, Studio Effects Lighting and Miscellaneous Equipment or Appliances.
93.0217	Fees for Fire Alarm and Signaling System, Communications, Control or Signal Systems and Smoke Detectors.
93.0218	Fees for Services and Switchboard Sections.
93.0219	Fees for Busways, Power Duct, Trolley Duct, Cable Trays, Cable Bus and Similar Equipment.
93.0220	Minimum Inspection Fee.
93.0222	Fees for Gas Tube Lighting, Signs and Sign Flashers.
93.0223	Fees for Swimming Pools.
93.0224	Fee for Miscellaneous Permit.
93.0227	Fees for Changing Address.
93.0228	Fees for Moved Buildings and Structures.
93.0229	Fees for Additional Inspections.
93.0230	Special Inspections.
93.0233	Fees for Plan Checking.
93.0235	Fees for Witnessing Tests of Emergency Systems and Fire Warning Systems.
93.0240	Fees for Registration of Premises Covered by a Maintenance Certificate of Registration.
93.0242	Fees for Certificate of Qualifications.
93.0243	Inspection Fees for Off-site Inspections.

SEC. 93.0201. PERMIT REQUIRED.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

No person shall, install, alter, reconstruct, or repair any electrical wiring unless a permit therefor has been obtained from the Department except as otherwise provided in this Code. A permit is required for solar powered, stand-alone equipment, including, but not limited to, solar powered pole-mounted luminaires.

EXCEPTIONS:

1. A separate electrical permit shall not be required for any electrical wiring for which a combined building-mechanical permit has been obtained pursuant to LAMC Subsection 91.107.2.2.
2. No person shall be subject to fine, imprisonment or payment of an investigation fee for starting or doing any electrical wiring without a permit being first obtained if a permit is obtained therefor on or before 12:00 noon on the third day the office of the Department is open for public business after the electrical wiring was started.

SEC. 93.0202. EXCEPTIONS, PERMITS NOT REQUIRED.

- (a) No permit shall be required in the following cases: **(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)**
1. Electric wiring expressly declared to be exempt from permit requirements of this Code by any other sections of the Code or by any other provisions of the LAMC. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
 2. Wiring for temporary theater sets on the theater stages or temporary motion picture or television sets on any property belonging to or under the control of the City, privately owned studios, theaters, or similar locations designed for that usage. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
 3. Installation of any portable motor or other portable appliance energized by means of a cord or cable having an attachment plug end, when that cord or cable is permitted by this Code.
 4. Repair or replacement of fixed motors or fixed appliances, supplied by branch circuits not exceeding 20 amperes and not exceeding 240 volts nominal, of the same type and rating in the same location where not located in an area classed as "hazardous" under CEC Article 500. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
 5. Festive temporary decorative lighting in dwelling occupancies only, for a period not to exceed 90 days. **(Amended by Ord. No. 179,325, Eff. 12/10/07, Oper. 1/1/08.)**
 6. Repair or replacement of current-carrying parts of any switch, contactor or control device. **(Amended by Ord. No. 173,704, Eff. 1/27/01.)**
 7. Reinstallation of attachment plug receptacle, but not the outlets for it.
 8. Replacement of any overcurrent device of the same rating and in the same location.
 9. Replacement of gas tube electrodes, transformers, tubes, drivers and power supplies with the same original manufactured parts having the same size, type, capacity and ratings for electric signs, or luminaries. **(Amended by Ord. No. 181,561, Eff. 3/22/11.)**
 10. Taping of joints.
 11. Removal of electric wiring.
 12. Temporary wiring for experimental purposes in suitable experimental laboratories.
 13. The following electrical wiring: **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
 - (i) Non-required signaling circuits supplied by an approved Class 2 limited power source, capable of supplying not more than 30 volts and 100 volt-amperes; and
 - (ii) Non-required communication circuits which have the power limited in accordance with CEC Section 725.121; and
 - (iii) Non-required amplifier output circuits which are permitted by CEC Section 640.9(C) to employ Class 2 or Class 3 wiring; and
 - (iv) Any non-required circuit which operates at 12.4 volts or less and does not generate, transmit, transform, utilize or control more than 25 watts or volt-amperes of electric power.
- EXCEPTION:** No permit is required provided the above-described wiring is not located in any of the following locations:
- a. Area classified as "hazardous" under CEC Article 500; or
 - b. Appurtenant to a required fire alarm and signaling system as classified under CEC Article 760; or
 - c. Penetrating any fire-resistive wall or floor system; or
 - d. In a plenum, duct or other space used for environmental air including access floors.
14. Any similar repair or replacement determined by the Department not to involve any hazard to life or property.
15. Repair or replacement of like in kind luminaires in single-family dwellings. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
16. Any electric wiring, except wiring located in an area classified as "hazardous" under CEC Article 500 after the branch circuit distribution panelboards used exclusively to supply or interconnect equipment installed, owned, operated or maintained by a communication public utility and used exclusively for communication purposes, in the exercise of its communication public utility functions within the communication public utility controlled areas. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
17. The replacement of defective smoke detectors, smoke alarms or carbon monoxide alarms in a single-family dwelling when the work is performed by a contractor with a valid Certificate of Registration pursuant to LAMC Section 91.1704. A Certificate of Compliance pursuant to LAMC Subsection 91.108.12 must be filed with the City in lieu of a permit. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
18. Electric wiring in the Harbor District pursuant to Section 98.0102.1(a) of the Los Angeles Municipal Code. **(Added by Ord. No. 182,851, Eff. 1/3/14.)**
- (b) The provisions of the foregoing exceptions shall not apply to any repairs or replacements of electrical devices, apparatus, or appliances which were originally installed without a permit when such permit is required for the original installation, or when energized by, or which is a part of any hazardous or illegal wiring system.
- (c) The foregoing exceptions from permit requirements shall not be deemed to allow any electric wiring to be done in a manner contrary to other provision's of this Code.

SEC. 93.0203. SCOPE OF PERMIT.

(a) **(Amended by Ord. No. 157,619, Eff. 5/31/83.)** The issuance of a permit is not an approval or an authorization of the work specified therein. A permit is merely an application for inspection, the issuance of which entitles the permittee to inspection of the work which is described therein.

EXCEPTION: Where the wiring exceeds the amount described in the original permit, the Department is authorized to make such additional inspection as is required and collect supplementary fee therefor by the supplemental permit system subject to the following provisions:

1. The fees charged shall be the difference in cost between the total fees due upon final inspection and fees paid at the time of the original application for inspection.
2. A fee as specified in LAMC Section 98.0415(d) shall be paid for issuing the supplemental permit. The fee required by this section shall be in addition to fees required elsewhere in the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
3. All fees shall apply only to that work installed for the same person as the "owner" in the permit.
4. All fees shall apply to installations where work has not been discontinued for a continuous period of more than 180 days.

(b) Neither the issuance of a permit nor the approval by this Department of any document shall constitute an approval of any violation of any provision of this Code, California Energy Code, or of any other law or ordinance, and a permit or other document purporting to give authority to violate any law shall not be valid with respect thereto. **(Amended by Ord. No. 188,739, Eff. 9/23/25.)**

SEC. 93.0204. PERMIT APPLICATIONS.

(Amended by Ord. No. 188,739, Eff. 9/23/25.)

(a) To obtain a permit, the applicant shall file an application on forms furnished by the Department. The application shall contain all information necessary to the lawful enforcement of the provisions of this Code and the California Energy Code.

(b) The application shall be accompanied by approved plans and specifications or a suitable diagram when and as required by LAMC Section 93.0206.

(c) When the Department determines that the information on the application and plans is in conformance with this Code and the California Energy Code, the Department shall issue a permit upon receipt of the total fees.

(d) Nothing contained in this Code shall be construed to require the Department to immediately accept or reject any application, whenever it is necessary to investigate the proposed wiring and premises as to its compliance with this Code, or it is necessary to check plans and specifications accompanying the application.

SEC. 93.0206. PLANS AND SPECIFICATIONS.

(Amended by Ord. No. 188,739, Eff. 9/23/25.)

(a) Plans and specifications required by the provisions of Subsection (b) of this section shall be prepared by and bear the signature and registration number of an appropriate State of California Civil Engineer, Structural Engineer, Geotechnical Engineer (when the work is supplementary to Civil Engineering work), Electrical Engineer or Licensed Architect.

EXCEPTION: Plans and specifications required for Subdivisions 1, 2, and 4 through 9 of Subsection (b) of this section may be prepared and signed by a person holding a state license as a contractor who will perform the work. The work must be within the classification for which the license is issued.

(b) Plans and specifications for all wiring intended to be installed on the premises shall be submitted to and approved by the Department before a permit is issued and before installing any wiring related to the following:

1. Theaters or motion picture theaters;
2. Places of assembly;
3. All health care facilities within the scope of CEC Article 517;
4. A new building or an addition to a building if the computed area exceeds 30,000 square feet ($2,787 \text{ m}^2$), any first-time tenant(s), any installation if the new total connected load exceeds 400 amperes, or the installation of equipment rated 600 amperes or more. The computed area shall be the sum of the areas on each floor bounded by the outside surfaces of the exterior walls and shall include floor areas beneath building projections that extend more than 6 feet (182.8 mm);
5. All electrical installations over 600 volts;
6. Installation in locations classified as hazardous locations, unless otherwise satisfactory to the Department;
7. Projects which include the installation of exit signs, egress lighting, or security lighting;
8. Installation of a complicated electrical system as determined by the Department, such as Emergency, Legally Required Standby, Fire Alarm and Signaling, and Gas Detection Systems, except for the following:
 - (i) The addition of strobe power supplies and their attached devices connected to any existing fire control unit or panel. (Note: This exception does not apply for a first-time tenant);
 - (ii) The installation of special extinguishing, central station monitoring systems, dialers, and their attached devices;
 - (iii) The addition of any fire alarm and signaling devices connected to an existing addressable fire alarm and signaling system. (Note: this exception does not apply for a first-time tenant);
9. Installation of lighting fixtures weighing more than 300 pounds;
10. Installation of renewable energy system(s) (i.e., photovoltaic, wind, fuel cell, etc.);

EXCEPTION: Department approved online permitted Standard plans.

11. Installation of Energy Storage System(s) (ESS); and

EXCEPTION: Department approved online permitted Standard plans.

12. Engineering calculation(s) and analysis.

(c) The applicant shall submit two sets of plans and specifications to the Department for approval. The applicant shall keep one set of approved plans on the job site, and shall make the plans available to the authorized representative of the Department upon request.

(d) When the plans or specifications do not comply with all provisions of this Code, the necessary changes or revisions shall be made thereto by the person specified in Subsection (a) of this section or by the person's duly authorized agent.

(e) Every plan shall be a print or other type of plan approved by the Department. The information contained on a plan shall be clearly legible and specifically indicated, and shall comply with LAMC Section 93.0207. No plan for electrical wiring in a building shall be of a scale smaller than 1/8 inch (3.2 mm) per foot (304.8 mm) unless a smaller scale is approved by the Department. Symbols satisfactory to the Department shall be used on all plans.

(f) Specifications, legibly and definitely stated, shall be included either on the plan or on separate sheets.

(g) The approval of any plan or specification shall not be construed to sanction any violation of this Code.

(h) No person shall materially deviate from any approved plan, or fail, neglect or refuse to comply therewith, unless permission to do so has first been obtained from the Department.

(i) A Plan Check may be expired within the time limit specified in LAMC Section 98.0603.

SEC. 93.0207. INFORMATION REQUIRED ON PLANS OR SPECIFICATIONS.

The following information is required to be shown on plans, specifications and diagrams submitted for review by the Department: **(Amended by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**

(a) A complete plan showing the layout of the proposed electric systems for each floor or area, including dimensions of all working spaces, a full scope of the project and a legend of all symbols used. **(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)**

(b) The type, location and capacity of all service equipment.

(c) The size and the length of all service raceways to the maintenance hole, vault or pole of the serving agency or to the service head.

(d) The size of all raceways and the length of all feeder raceways.

(e) The dimensions of all pull or junction boxes larger than four inches trade size.

(f) The number, size, and type of all conductors to be installed in wiring enclosures.

(g) The location of every proposed outlet and switch in all parts of the building or structure including all fixed showcases, wall cases, and similar wiring.

(h) The wattage or ampere ratings of each outlet for noninductive loads and the volt-ampere rating of each unit or transformer for electric discharge lighting.

(i) The location, voltage, and H.P. rating of every motor and the K.W. rating of every generator. The type and code letter of every A.C. motor shall be given unless otherwise satisfactory to the Department.

(j) The location and K.V.A., or equivalent rating of each transformer, capacitor, ballast, converter, frequency changer, and similar equipment and the location and ampere or wattage rating of other appliances of the noninductive type.

(k) Details of panelboard, switchboard, and distribution centers, showing type and arrangement of switches, overcurrent devices, and general control equipment.

(l) Panelboard and switchboard schedules showing wattage and amperage, the number of active branch circuits to be installed, and the number of spare branch circuits for future use. This shall include identifying the circuits to which the outlets are connected.

(m) The existing load, as calculated in accordance with Articles 210 and 220 of the CEC. or by other methods satisfactory to the Department, shall be indicated for existing installations having alterations or additions made to them. **(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)**

(n) Other additional information as the Department may consider necessary for proper enforcement of this Code.

(o) On all occupancies indicating location, rating and method being served for all new and existing power distribution equipment. **(Added by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)**

(p) Any or all engineering calculations as applicable for the installation. **(Added by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**

(q) Interconnected wiring between all devices in each branch circuit from any panelboard or switch-board to the last device or load. **(Added by Ord. No. 176,775, Eff. 8/1/05, Oper. 8/1/05.)**

(r) Scope of the work. **(Added by Ord. No. 184,692, Eff. 12/30/16.)**

SEC. 93.0208. TRANSFER OF PERMITS AND PLAN CHECKS.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

No permit shall be transferable for the original permittee to any other person, unless the property owner authorizes the transfer in writing with a notarized letter. Upon authorization, the new permittee shall file with the Department a new permit and pay to the Department a fee as specified in LAMC Section 98.0415 for issuing the new permit. This fee includes the issuing permit fee specified in LAMC Section 93.0213(b).

NOTE: No plan check shall be transferable from one contractor to another contractor. Where the original plans were submitted by a properly state licensed engineer, the plans are valid for use by any installing contractor.

SEC. 93.0209. REVOCATION OF PERMITS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Permits may be revoked as provided for in LAMC Section 98.0601.

SEC. 93.0210. SEPARATE PERMITS REQUIRED.

A separate permit shall be required for each building or structure.

EXCEPTIONS:

1. A permit for a main building for an dwelling occupancy may include electric wiring for an accessory building having a floor area of 1,000 square feet or less located on the same premises as the main building and supplied by a feeder or circuit from the main building.
2. Wiring for structures which are not buildings, or outdoor wiring may be included in any other permit for the same premises. However, a separate permit shall be obtained for each derrick or similar structure erected for the purpose of drilling or maintenance of an oil well.
3. Wiring for temporary construction sheds or structures may be included in any permit for temporary wiring on the same premises.

SEC. 93.0211. EXPIRATION OF PERMITS.

(Amended by Ord. No. 147,576, Eff. 9/15/75, Oper. 1/15/76.)

- (a) A permit may expire as set forth in LAMC Section 98.0602. **(First Sentence Amended by Ord. No. 179,325, Eff. 12/10/07, Oper. 1/1/08.)**

EXCEPTION: The Superintendent of Building may extend the period of validity of a permit, providing that prior to the date of expiration the applicant submits satisfactory evidence that the work could not be started or continued within the allotted time, either because of its magnitude, its unusual construction difficulties, or for causes beyond the control of the applicant.

- (b) Before the work authorized by any expired permit shall be started, recommenced or continued, a new permit shall be obtained as provided in this Code for the original permit and the fee or fees to be paid therefor shall be determined on the basis of the uncompleted portion of the work, and the work that has deteriorated or has been damaged to the point where replacement is necessary.

SEC. 93.0212. INVESTIGATION FEE.

Whenever any work, for which a permit is required under the provisions of this Code, has been commenced without the authorization of such permit, a special investigation shall be made before a permit may be issued for such work. In addition to the permit fee, an investigation fee shall be collected. (For fee charge, see Los Angeles Municipal Code Section 98.0402 in the appendix.)

SEC. 93.0213. FEES REQUIRED.

- (a) The fees described in this division must be paid to the Department for each electrical installation for which a permit is required by this Code, and must be paid before any such permit is issued except as hereinafter provided.

- (b) An issuing fee as specified in LAMC Section 98.0415(c) shall be paid for issuing each permit. The fee required by this subsection shall be in addition to fees required elsewhere in this Code. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

- (c) The fees prescribed in this division shall apply to equipment, appliances, fixtures, and devices that are intended to remain in fixed positions and are connected to permanent wiring either directly or through receptacles provided to facilitate servicing and replacement.

- (d) Fees shall be paid for new branch circuits as prescribed in LAMC Section 93.0214. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

EXCEPTIONS:

1. Fees prescribed in LAMC Section 93.0216 shall be paid for new branch circuits for the supply of motors, transformers, heating appliances, studio effects lighting and miscellaneous equipment or appliances not specifically set forth in LAMC Section 93.0214.
2. Fees prescribed in LAMC Section 93.0223 shall be paid for each swimming pool.
3. Fees for new branch circuits supplying signs and gas tube systems shall be paid as prescribed in LAMC Section 93.0222.
4. Fees prescribed in LAMC Section 93.0215 shall be paid for new branch circuits supplying temporary lighting.

- (e) Where otherwise not covered in this Code, fees shall be paid for outlets, lighting fixtures, appliances, motors, or other utilization equipment added to existing branch circuits as prescribed in LAMC Section 93.0215. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

- (f) Fees shall be paid for any wiring for which a permit is required and no fees provided. **(Added by Ord. No. 171,185, Eff. 7/22/96.)**

- (g) Fees shall be paid for any conduit installed by special permission prior to plan approval. **(Added by Ord. No. 171,185, Eff. 7/22/96.)**

SEC. 93.0214. FEES FOR NEW GENERAL USE BRANCH CIRCUITS.

- (a) The fees prescribed in this section apply to new branch circuit wiring and the lighting fixtures, switches, receptacles, appliances or other utilization equipment permitted to be supplied by these branch circuits. Fees shall also be collected for branch circuits which are temporarily installed for trade shows or carnivals and shall be 50% of the fees prescribed in this subsection. **(Amended by Ord. No. 171,185, Eff. 7/22/96.)**

The term lighting as used in this section applies to general illumination, outdoor and similar lighting except as provided in LAMC Section 93.0216 for studio stage effects lighting and in LAMC Section 93.0215 for temporary lighting. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

FEES FOR NEW GENERAL USE BRANCH CIRCUITS **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

Rating Type or Use of Branch Circuits	Fees for Each Branch Circuits
Rating Type or Use of Branch Circuits	Fees for Each Branch Circuits
15 or 20 ampere 120V lighting or general use receptacle; and dwelling appliances 15 to 50 amperes; and non-dwelling motors or appliances supplying aggregate loads not exceeding 3HP or K.V.A.*	
1 to 10 branch circuits inclusive	\$17.00 Ea.
11 to 40 branch circuits	\$16.00 Ea.
41 or more branch circuits	\$15.00 Ea.
15 or 20 ampere 208V to 277V lighting	\$30.00 Ea.
All other lighting branch circuits 600 V or less	\$36.00 Ea.
* The fees are prescribed in LAMC Section 93.0216 shall be charged for equipment loads exceeding those set forth in this section.	

(b) For the purposes of this section, each ungrounded conductor of a multi-wire branch circuit is counted as one circuit.

EXCEPTION: Individual multi-wire branch circuits supplying one appliance may be counted as one circuit.

(c) For the purposes of this section, three-phase lighting branch circuits are counted as two branch circuits.

SEC. 93.0215. FEES FOR ADDING LIGHTING FIXTURES, AND OTHER LOADS TO EXISTING BRANCH CIRCUITS, AND FOR LAMPHOLDING DEVICES.

(Title Amended by Ord. No. 151,218, Eff. 8/17/78.)

(a) **(Amended by Ord. No. 161,316, Eff. 7/7/86.)** The fees for outlets and lighting fixtures added to existing circuits and for lampholding devices for temporary lighting for construction purposes or for a fair, carnival, convention, exhibition or similar temporary purposes shall be as given in this section.

For the purpose of determining fees, and where not otherwise provided for in this Code, each outlet added to an existing branch circuit shall be counted as one unit and each lighting fixture connected thereto shall be counted as an additional unit, except as modified in the following provisions of this section.

(b) **(Amended by Ord. No. 171,185, Eff. 7/22/96.)** The fees for units and lamp holders for temporary lighting shall be as follows:

FEES FOR ADDING UNITS OR TEMPORARY LAMP HOLDERS (Amended by Ord. No. 180,868, Eff. 10/22/09.)

Number of Units	Fees
Number of Units	Fees
1 to 5 units, total	\$18.00
6 to 10 units, total	\$22.00
Each additional 10 units or fraction thereof	\$11.00
Lamp holders for temporary lighting 50 or less lamp holders total fee	\$14.00
More than 50 lamp holders but less than 101 lamp holders total fee	\$27.00
More than 100, but less than 501 lamp holders, total fee	\$48.00
Each 100 or less lamp holders in excess of the initial 500, additional fee	\$11.00

(c) For the purpose of determining fees, an outlet shall mean a point or place on a fixed-wiring installation from which electric current is controlled, or is supplied to a lamp, lighting fixture, fan, clock, heater, range, motor, or other electrical appliance or equipment.

(d) For the purpose of determining fees, an outlet box for two or more switches or receptacles shall be considered as one unit.

(e) For the purpose of determining fees, each five feet or fraction thereof of multioutlet assemblies or continuous incandescent trough lighting fixtures shall be considered equivalent to one unit.

(f) Where electric discharge lighting fixtures or sections thereof are joined in end-to- end or through construction, a fee of two units shall be charged for each fixture or section of fixture containing one or more ballasts, reactors or transformers. (This fee covers both the outlets and lighting fixtures.)

(g) A fee of five units shall be charged for each ballast or transformer where not an integral part of an electric discharge lighting fixture and the primary voltage exceeds 150 volts or the secondary voltage exceeds 1,000 volts.

A fee of two units shall be charged for each ballast or transformer not contained within an electric discharge lighting fixture and not included in the foregoing paragraph. (The fees specified in this subsection include the lighting fixture applied therefrom.)

(h) A fee of one unit for the outlet shall be charged for each outdoor lighting standard used for floodlighting, or for each conduit used for floodlights on buildings or structures

(i) An additional fee of one unit for the fixture shall be charged for each lighting fixture used on an outdoor lighting standard. Each lampholder in a cluster of such fixtures shall be considered a separate fixture. The fee for floodlights on buildings or structures shall be computed in the same manner.

(j) A fee of \$16.00 shall be paid for each appliance, motor or other utilization equipment not exceeding three HP, KVA, or KW in rating that is connected to one existing branch circuit. This fee shall cover any switch outlet or other control equipment for the appliance, motor or equipment. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

(k) **(Amended by Ord. No. 157,618 Eff. 5/30/83.)** The fee for permanent yard lighting shall be twice the amount prescribed in Subsection (a) above. The fee for any temporary or yard lighting other than lampholders connected to open wiring shall be that prescribed for permanent wiring.

(l) No fee shall be required for any switch on a switchboard, panelboard or control board. **(Amended by Ord. No. 161,316, Eff. 7/7/86.)**

SEC. 93.0216. FEES FOR MOTORS, TRANSFORMERS, HEATING APPLIANCES, STUDIO EFFECTS LIGHTING AND MISCELLANEOUS EQUIPMENT OR APPLIANCES.

The fees prescribed in this section cover the inspection of the supply branch circuit and the utilization equipment supplied therefrom and the control equipment therefor.

(a) **(Amended by Ord. No. 171,185, Eff. 7/22/96.)** Except where supplied by branch circuits rated over 50 amperes, the fees required by this section apply only to nondwelling occupancies. The fee for each motor, transformer, heating appliance, welder, rectifier, x-ray machine, storage battery system, infrared industrial heating appliance, cooking or baking equipment, studio effects lighting, and other miscellaneous equipment or appliances shall be given in the following table for the rating thereof:

**FEES FOR MOTORS, TRANSFORMERS, HEATING APPLIANCES,
STUDIO EFFECTS LIGHTING AND MISCELLANEOUS EQUIPMENT OR APPLIANCES
(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

H.P., K.W., or K.V.A. Rating of Equipment	Fees
Over 3 and not over 5	\$19.00
Over 5 and not over 20	\$29.00
Over 20 and not over 50	\$41.00
Over 50 and not over 100	\$76.00
Over 100	\$118.00

(b) The fees listed in the foregoing table shall be required for all fixed equipment. Where fixed equipment is supplied by flexible cords to facilitate servicing or replacement, those fees shall apply to the receptacle outlet supplying the equipment. Those fees shall also apply for each receptacle outlet installed for the supply of portable equipment rated larger than three H.P., K.W., or K.V.A.

(c) For any equipment or appliance containing more than one motor, or other current consuming utilization components in addition to the motor or motors, the combined electrical ratings converted to K.V.A. of all utilization equipment shall be used to determine the fee. For the purpose of this subsection, one H.P. or one K.W. is equivalent to one K.V.A. The total ampere ratings of all receptacles installed on a factory fabricated wireway assembly for studio effects lighting may be used in computing the fees therefor. **(Amended by Ord. No. 161,316, Eff. 7/7/86.)**

(d) The fees for a change of location or replacement of equipment on the same premises shall be the same as that for a new installation. However, no fees shall be required for moving any temporary construction motor from one place to another on the same site during the time of actual construction work after a permit has once been obtained for such motor and the fees required therefor have been paid.

(e) The fees for equipment described in this section which are temporarily installed for trade shows or carnivals shall be 50% of the amount shown in the fee table specified in Subparagraph (a) of this section. **(Added by Ord. No. 151,218 Eff. 8/17/78.)**

SEC. 93.0217. FEES FOR FIRE ALARM AND SIGNALING SYSTEM, COMMUNICATIONS, CONTROL OR SIGNAL SYSTEMS AND SMOKE DETECTORS.

(Title Amended by Ord. No. 182,851, Eff. 1/3/14.)

(a) The fees for installing, replacing or relocating each fire alarm and signaling system, communication, control or signal system equipment, or portion thereof, shall be as follows: **(Amended by Ord. No. 182,851, Eff. 1/3/14.)**

Number or Devices	Fees
1 to 10 total devices	\$48.00
11 to 40 devices	\$4.00 each
41 or more devices	\$3.00 each
Each control panel, standby power supply panel, annunciator panel or similar main piece of control equipment for one of the above systems	\$36.00

For the purpose of this subsection, devices shall include all signaling equipment, stations, power equipment such as damper actuators or door holding devices, communication jacks or outlets, control sensors, or switches or remote indicators, and smoke detectors that are part of fire alarm and signaling systems or process control systems.

EXCEPTION: Communications equipment installed, owned or operated and maintained by a communications public utility and exempt under the provisions of LAMC Section 93.0108(c). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(b) The fees for installing, replacing or relocating individual smoke detectors in residential units which are energized from the building wiring shall be as follows:

1 residential unit	\$15.00
Each additional residential unit in a multiple dwelling occupancy	\$12.00
Each additional residential unit over 20 in a hotel, motel, boarding house or lodge	\$7.00

For the purpose of this subsection, a residential unit shall include a single family dwelling, every dwelling unit in a multiple dwelling and every guest room in a hotel, motel, boarding house or lodge.

SEC. 93.0218. FEES FOR SERVICES AND SWITCHBOARD SECTIONS.

(a) **(Amended by Ord. No. 171,185, Eff. 7/22/96.)** The fees for the installation, reinstallation, replacement or alteration of each service, each panel board and each switchboard section shall be as specified below. Fees shall also be collected for panel boards which are temporarily installed for trade shows or carnivals and shall be 50% of the fees specified in this subsection.

**FEES FOR SERVICES, SWITCHBOARD SECTIONS, PANEL BOARDS AND SOLAR VOLTAIC SYSTEMS
(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

Ampacity and Voltage Ratings of Service Entrance Conductors, Service Switches or Circuit Breakers, Panel Boards or Switchboard Sections	Services	Panel board and Switchboard Sections
Ampacity and Voltage Ratings of Service Entrance Conductors, Service Switches or Circuit Breakers, Panel Boards or Switchboard Sections	Services	Panel board and Switchboard Sections
200-ampere or less rating	\$16.00	\$ 16.00
201 to and including 600 ampere	\$34.00	\$38.00
601 to and including 1200 ampere	\$62.00	\$48.00
Over 1200 ampere	\$76.00	\$90.00
Over 600-volt rating	\$132.00	\$138.00
Solar Voltaic System		
Combiner Box	\$6.00 each	
Solar Voltaic Module DC or AC	\$6.00 each	
Per Roll of Solar Voltaic Roofing Material	1st 100 sq. ft. \$25.00 \$0.25 sq. ft. thereafter	
Solar Voltaic Roofing Tiles	1st 100 sq. ft. \$25.00 \$0.25sq. ft. thereafter	
Inverters K.W., or K.V.A. Rating of Equipment	Fees	
Not exceeding 3KW or K.V.A.*	\$8.00	
Over 3 and not over 5	\$18.00	
Over 5 and not over 20	\$27.00	
Over 20 and not over 50	\$39.00	
Over 50 and not over 100	\$71.50	
Over 100	\$111.00	

(b) For the purpose of this section, a switchboard section means any portion of complete switchboard, distribution board, or motor control center which is prevented by the structural framework from being, separated into smaller units.

(c) The fees for services shall be determined from the ampacity of the set of service entrance conductors or the total ampere rating of the service equipment.

(d) No fee need be paid for a switchboard section which incorporates service equipment for which service fees were paid.

SEC. 93.0219. FEES FOR BUSWAYS, POWER DUCT, TROLLEY DUCT, CABLE TRAYS, CABLE BUS AND SIMILAR EQUIPMENT.
(Title Amended by Ord. No. 159,709, Eff. 4/8/85.)

(a) The fees for busways, power ducts, trolley duct, cable bus and similar equipment shall be as follows: (Amended by Ord. No. 171,185, Eff. 7/22/96.)

FEES FOR BUSWAYS, POWER DUCT, TROLLEY DUCT, CABLE BUS AND SIMILAR EQUIPMENT
(Amended by Ord. No. 180,868, Eff. 10/22/09.)

Ampere Ratings	Less Than 100 Feet	Over 100 Feet Per Foot
0 to 99 amperes	\$34.00	\$0.34 per foot
100 to 400 amperes	\$41.00	\$0.41 per foot
Over 400 amperes	\$62.00	\$0.62 per foot

(b) The fee for lighting fixtures, motors and other equipment which are plugged in shall be that given in LAMC Sections 93.0214 and 93.0216 and shall be in addition to the fees required by this section. Portable hand tools are not included. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

(c) The fee for the inspection of the circuit supplying the busway, power duct, trolley duct and cable bus and similar equipment shall be that given in LAMC Sections 93.0214 and 93.0216 and shall be in addition to the fees required by this section. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

(d) The fee for the inspection of the installation of cable trays shall be \$48.00 for 1 to 100 feet, plus \$0.49 per foot for each foot over 100 feet. (Amended by Ord. No. 180,868, Eff. 10/22/09.)

SEC. 93.0220. MINIMUM INSPECTION FEE.
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

A minimum fee as specified in LAMC Section 98.0412(a) must be paid to the Department for each electrical installation for which a permit is required by this Code. Where the cumulative equipment fees described in this division total less than the minimum fee required by this section, the minimum fee shall be paid. The fee required by this section shall be in addition to the issuing fee required by LAMC Section 98.0415(c).

SEC. 93.0222. FEES FOR GAS TUBE LIGHTING, SIGNS AND SIGN FLASHERS.
(Title Amended by Ord. 151,218, Eff. 8/17/78.)

(a) **Equipment:** (Amended by Ord. No. 171,185, Eff. 7/22/96.)

FEES FOR GAS TUBE LIGHTING, SIGNS AND SIGN FLASHERS
(Amended by Ord. No. 180,868, Eff. 10/22/09.)

Type of Service	Fees
Each sign, gas tube or LED lighting system utilizing not more than one branch circuit	\$36.00
For each additional sign, gas tube or LED lighting system utilizing not more than one branch circuit	\$13.00
For each additional branch circuit utilized by a sign, gas tube or LED lighting system	\$15.00

(b) For the purposes of this section: **(Amended by Ord. No. 163,488, Eff. 5/22/88.)**

1. A gas tube system shall mean that electric discharge tubing installed continuously or contiguously for the purpose of illumination or to form a single outline, border, symbol or to convey a message and operating at more than 1,000 volts; and

2. Each ungrounded conductor of a multi-wire branch circuit shall be counted as one circuit and each three-phase branch circuit shall be counted as two circuits.

(c) A fee of \$12.00 shall be charged for each flasher, time clock or other automatic control device that is not an integral component of an approved sign, but is installed separately for the control of signs or gas tube systems. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

SEC. 93.0223. FEES FOR SWIMMING POOLS.

(Amended by Ord. No. 171,185, Eff. 7/22/96.)

The fee for constructing each swimming pool shall be not less than \$65.00. The fee specified in this section shall include payment for inspection of the branch-circuit wiring, bonding, grounding, underwater pool light, pool pump and similar electrically operated equipment directly related to the operation of the pool.

SEC. 93.0224. FEE FOR MISCELLANEOUS PERMIT

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) The fee for any electric wiring for which a permit is required, but for which no fee is provided herein, shall be as specified in LAMC Section 98.0412(c); provided, however, that no such fee shall be charged when a fee is paid for one or more outlets, fixtures, motors, appliances or other equipment. The fee is in addition to the permit fee under LAMC Section 98.0415(c).

(b) When special permission has been obtained from the Department, a miscellaneous permit may be issued for electrical raceways, and enclosures which are to be installed in the ground or masonry floors or installations, where an electrical permit cannot be issued until the required plans have been approved. This special permission shall not include permission to install any raceways, enclosures, wiring, or devices of any description related to a fire alarm, or life safety system until those specific system plans have been approved and permits have been issued. The miscellaneous permit shall not be an authorization to install any additional wiring other than the specified raceways and enclosures.

A miscellaneous inspection fee as specified in LAMC Section 98.0412(c) shall be paid for the inspection and shall be limited to one inspection and one reinspection trip. This fee is in addition to the permit fee specified in LAMC Section 93.0213(b).

SEC. 93.0227. FEES FOR CHANGING ADDRESS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Whenever it shall become necessary to make an extra inspection trip because the applicant has given an incorrect or wrong location when obtaining a permit required by the Code, a fee as specified in LAMC Section 98.0415(a) shall be paid for correcting the address location in such permit.

SEC. 93.0228. FEES FOR MOVED BUILDINGS AND STRUCTURES.

(Amended by Ord. No. 171,185, Eff. 7/22/96.)

A fee of \$100.00 shall be charged for the inspection of the existing electrical wiring, if any, in or on a moved building or structure. Fees as required elsewhere in this division shall be paid before any other electrical wiring installed except that necessary to connect the existing electrical wiring to the grounding electrode.

SEC. 93.0229. FEES FOR ADDITIONAL INSPECTIONS.

(a) Each permit shall be entitled to four inspection trips when the job is of a type requiring an inspection before covering or concealing the work. On jobs which may be completely inspected on one inspection trip, two inspection trips will be allowed.

EXCEPTION: The number of inspection trips will not be limited on progress jobs; provided, however, that only one inspection will be permitted for checking a correction. For the purpose of this section, progress jobs are those where circumstances beyond the control of the qualified installer make it impossible for the electrical work to be completed at any specific time.

(b) If more inspection trips than are specified in Subsection (a) of this section are required due to fault or error on the part of the qualified installer or the qualified installer's employees, an additional fee as specified in LAMC Section 98.0412(b) shall be paid for each such additional inspection trip. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(c) Corrections shall be completed within 30 days of the date of issuance of a written notice to the qualified installer by the Department. Installations on which a written notice has been issued shall be rechecked by the Department after 30 days have elapsed from the date of issuance of the notice.

(d) The Department may recheck installations upon which violations continue to exist at intervals of 30 days or more until either the violations are eliminated or a total of three rechecks are made. The fees specified in Subsection (b) of this section shall apply for each recheck inspection.

(e) The fees charged under this section are in addition to any other fees shown in this Code and the payment of the fees required by this section shall not exempt any person from compliance with other provisions of this Code, nor from any penalty prescribed by law. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(f) Whenever special enforcement procedures are required to obtain compliance with properly executed Department notices or orders, a fee, as specified in LAMC Section 98.0407, shall be assessed in addition to the added trip fee specified in Subsection (b) of this section. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 93.0230. SPECIAL INSPECTIONS.

(a) **Off-Hours Inspection. (Amended by Ord. No 166,524, Eff. 1/29/91.)** The Department may, at its discretion, make emergency inspections at other than normal working hours, upon the request of a permittee, provided that additional fees are paid as specified in Section 98.0406 of the Los Angeles Municipal Code.

(b) **Special Equipment. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** The Department may inspect special equipment that is exempt from approval as set forth in the Exceptions to LAMC Section 93.0402 upon application by the owner or lessee of the equipment.

The fees for a special equipment inspection shall be charged at the rate specified in LAMC Section 98.0412(d), per hour for each inspector. The fee required by this section shall be in addition to the fees required elsewhere in this Code.

(c) **Existing Buildings. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** The owner may apply for inspection of the electric wiring in an existing building. The inspector shall notify the owner of any alterations necessary. A Certificate of Inspection will be issued to the building owner when all applicable CEC and Los Angeles Electrical Code requirements are met.

Where a reinspection is required in order to authorize the serving agency to reconnect an existing service, an owner may apply for inspection in accordance with the above. A fee equal to 50% of those specified in Subsection (b) of this section shall be paid.

SEC. 93.0233. FEES FOR PLAN CHECKING.
(Amended by Ord. No. 180,868, Eff. 10/22/09.)

- (a) Before formally accepting a set of plans and specifications for checking, the Department shall collect a plan check fee.
- (b) The plan check fee shall be 80% of the fees specified in LAMC Sections 93.0214 through 93.0233 for each of the items shown on the plans, with a minimum fee of \$90.00. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- (c) A fee of \$13.00 per thousand square feet, or major fraction thereof, of the floor, illuminated building façade, and display surface areas which is required to comply with the rules and regulations adopted by the California Energy Commission shall be charged for plan checking for conformity to such rules and regulations. The minimum fee shall not be less than \$69.00. The fee required here shall be in addition to those fees required by Subsection (b), above. This fee shall not be subject to the percentage set forth in Subsection (b), above.
- (d) A complete schedule of the fees due shall be included with each set of plans submitted to the Department.
- (e) The plan check fees required by the provisions of this section are in addition to the permit fees required elsewhere in this Code. The total plan check fees shall be paid regardless of whether or not the plans are approved or the proposed wiring as indicated on the plans is abandoned. The plans shall not be approved until the total plan check fees are paid.
- (f) Electrical installations for which plan checking fees are not specified in the fee schedules, or which receive more than three sets of plan corrections, shall be checked and a fee shall be paid as specified in LAMC Section 98.0415(e). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- (g) In addition to the fees charged under LAMC Sections 93.0217(a) and 93.0233(b), when replacing, installing or relocating each fire alarm and signaling system, communication, control or signal system equipment, or portion thereof, the Department may collect a plan check fee as specified in LAMC Section 98.0415(e). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- (h) **Off-hour Plan Check.** Upon request by an applicant and accepted by the Department, an off-hour plan check fee per Section 98.0422 of the Los Angeles Municipal Code may be collected.

SEC. 93.0235. FEES FOR WITNESSING TESTS OF EMERGENCY SYSTEMS AND FIRE ALARM AND SIGNALING SYSTEMS.
(Title Amended by Ord. No. 182,851, Eff. 1/3/14.)

- (a) The fees for conducting or witnessing the original test of an Emergency System or Fire Alarm and Signaling System shall be collected as specified in LAMC Section 98.0412(f) for each inspector. The fees required by this section shall be in addition to the fees required elsewhere in the Code. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
- (b) The fees for conducting or witnessing an annual test for each existing emergency system, other than unit equipment, shall be prescribed in Table A of this section. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

TABLE A
FEES FOR CONDUCTING ANNUAL TEST OF EMERGENCY SYSTEMS

Combined K.W. of K.V.A. Rating of Supply System	Fees
10 or less	\$69.00
10.1 to 50, total fee	\$104.00
50.1 to 100, total fee	\$132.00
For each additional 100 K.W. or K.V.A.	\$38.00

Where a building contains more than ten occupied floors, a fee of \$41.00 shall be paid for each additional group or portion of a group of ten floors.

The fees for conducting or witnessing an annual test of an existing emergency system comprised of unit equipment shall be as prescribed in Table B of this subsection.

TABLE B
FEES FOR CONDUCTING ANNUAL TESTS OF UNIT EQUIPMENT

Units	Fees
1-5 units, inclusive	\$41.00
Each additional unit	\$2.00

(c) A Certificate of Approval, valid for a period of one year, shall be issued by the Department following each test when the system is found to be in compliance. The Certificate of Approval shall be prominently posted adjacent to the generator or battery system.

EXCEPTION: The Certificate of Approval need not be posted by the equipment provided it is on display on the premises and the location of posting is noted at the

generator or battery system location. The Certificate shall show:

1. A technical description of the system;
2. The electrical rating; and
3. Date of issuance.

When systems are found to be defective and additional inspection trips are required, added trip fees shall be paid as specified in LAMC Section 93.0229. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(d) Certificates of Approval are subject to revocation by the Superintendent of Building when: **(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)**

1. It is found that the tests and maintenance prescribed in Article 700 of the CEC are not being accomplished; or
2. The supply system is found to be defective.

SEC. 93.0240. FEES FOR REGISTRATION OF PREMISES COVERED BY A MAINTENANCE CERTIFICATE OF REGISTRATION.

(Amended by Ord. No. 147,537, Eff. 9/15/75.)

(a) An annual registration fee as specified in LAMC Section 98.0414 shall be paid for premises covered by a maintenance certificate of registration. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(b) The payments of the annual registration fee shall not be construed as waiving any provisions of this division concerning the issuance of a permit or the payment of fees therefor.

SEC. 93.0242. FEES FOR CERTIFICATE OF QUALIFICATIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) Every applicant for a Certificate of Qualification shall file an application and shall pay an initial application fee specified in LAMC Section 98.0414.

An additional subsequent application and examination fee as specified in LAMC Section 98.0414 shall be required for each subsequent application and examination if the applicant fails to pass the first time.

(b) An annual renewal fee as specified in LAMC Section 98.0414 shall be paid within 30 days of expiration.

SEC. 93.0243. INSPECTION FEES FOR OFF-SITE INSPECTIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Upon a written request, the Department may, at its discretion make inspections at locations other than the site upon which a building will be located provided such location is within 60 miles of the Los Angeles City Hall.

A fee as specified in LAMC Section 98.0412(e), in addition to fees charged elsewhere in this Code, shall be charged for such inspections. The time shall include travel to and from the place of inspection.

DIVISION 3

ENFORCEMENT

(Division and Sections Renumbered by Ord. No 154,234, Eff. 9/8/80.)

Section

- 93.0301 Powers of Department and Board.
- 93.0302 Appeals.
- 93.0303 New Materials and Methods of Construction.
- 93.0304 Inspections.
- 93.0305 Request for Inspection.
- 93.0306 Inspection of Electrical Wiring and Equipment Installation.
- 93.0307 Reinspection of Electric Wiring.
- 93.0308 Temporary Use of Current.
- 93.0310 Power to Stop Work.
- 93.0311 Authority to Condemn Installations.
- 93.0312 Abandoned Wiring.
- 93.0313 Wiring Standards.
- 93.0314 Responsibility for Compliance.
- 93.0315 Non-responsibility of City.

SEC. 93.0301. POWERS OF DEPARTMENT AND BOARD.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The powers of the Department and the Board are those enumerated in LAMC Section 98.0403.1.

SEC. 93.0302. APPEALS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Appeals or requests for slight modifications in individual cases from the requirements of this Code shall be made in accordance with the procedure established in LAMC Section 98.0403.2.

SEC. 93.0303. NEW MATERIALS AND METHODS OF CONSTRUCTION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

New or alternate materials and methods of construction may be approved by the Department in accordance with the provisions of LAMC Section 98.0502.

SEC. 93.0304. INSPECTIONS.

- (a) All electric wiring, for which a permit is required shall be inspected and approved by the Department before being concealed, energized or used. All fees required by this Code shall be paid by the permittee prior to the energizing or use of such wiring.
- (b) No person shall use, operate or maintain, or cause or permit to be used, operated or maintained, any electric wiring until it is inspected and approved.
- (c) No serving agency shall supply, or cause or permit to be supplied, electric energy to any electric wiring until the wiring has been inspected and approved.
- (d) Nothing contained in this section shall prohibit the temporary use of electric energy when and as specifically provided for in LAMC Section 93.0308. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
- (e) Nothing contained in this section shall prohibit the inspection of any electric wiring even though no permit is required therefor.
- (f) Inspections shall be required for construction or installation of electrical work done on the premises of a Fabricator to whom an approval has been issued pursuant to the provisions of Division C, Article 6, Chapter IX of the LAMC. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

EXCEPTION: State of California approved manufactured mobile homes or building.

SEC. 93.0305. REQUEST FOR INSPECTION.

(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)

- (a) Whenever any work regulated by this Code, or any portion thereof, is ready for inspection, the Department shall be notified by the qualified installer that the work is ready for inspection. The notice shall be on forms furnished by the Department website, by telephone or to Department personnel. The notice shall be filed with the Department no later than 2:00 p.m. on the regular business day prior to the requested inspection date and not more than 72 hours before any inspection is desired. Inspections are performed on regular business days between the hours of 8:45 a.m. and 3:30 p.m. Alternate inspection times may be scheduled upon request. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
- (b) Requests for Fire Life Safety Inspections are made on an appointment basis only. Appointments for these inspections shall be made in person with a Fire Life Safety Inspector and the required pretest inspection sheet shall be completed prior to any scheduling.

SEC. 93.0306. INSPECTION OF ELECTRICAL WIRING AND EQUIPMENT INSTALLATION.

- (a) No person shall conceal, close or cover, or cause or permit to be concealed, enclosed or covered, any portion of any electrical wiring or equipment in any manner which will interfere with or prevent the inspection and approval thereof.
- (b) Each obstruction which makes impracticable the making of a complete and thorough inspection of electrical wiring shall be removed upon notice (either verbal or in writing) to do so, and shall be kept removed until the electrical wiring has been inspected and approved by the Department.
- (c) Before final inspection of any electric wiring, all plaster, concrete or other foreign material shall be thoroughly removed from every box and wiring enclosure, and not less than six inches of jointless conductor shall extend out of each lighting outlet box for future connection thereto.
- (d) In any case where one or more taped joints made without splicing devices are found not soldered at the time of inspection, the inspector may require every joint for such electric wiring to be left untaped until the inspection and approval thereof.
- (e) In any case where a splicing device is found not in conformity with all the requirements of Subsection (B) of CEC Section 110.14, the inspector may require that all covers, tape or other separate sheaths be removed from every splicing device in the installation and all the splices be pulled out of all boxes or other enclosures, and be left exposed for inspection. A ladder or other acceptable means shall be provided by the qualified installer to enable the inspector to make a thorough inspection of all the splices that are out of reach of the ground or floor. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- (f) Where there is reasonable evidence that conductors are damaged or do not comply with the requirements of this Code, the inspector may require them to be removed from raceways to determine their condition.
- (g) Fixtures, appliances, devices or equipment shall not be connected to any electrical wiring until the rough electrical wiring, including conductors, has been inspected and approved, except as otherwise satisfactory to the Department.
- (h) All wiring shall be free from grounds, shorts, or other defects before approval thereof.
- (i) Whenever any electrical wiring or equipment has been inspected and found to comply with the provisions of this Code, the Department inspector shall leave a notice of approval on the inspection record card, Department website or other suitable place. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**
- (j) The qualified installer shall upon request by the inspector, provide ladders or other means suitable to the inspector, to facilitate inspections of all electric wiring which is not accessible from the ground or floor.
- (k) The qualified installer shall arrange for inspection, during the progress of installation of concealed supports for lighting fixtures and appliances, and for the inspection of fixtures assembled on the ceiling, and shall provide for all means necessary for weight tests and other inspections the Department considers necessary.
- (l) In addition to the requirements of Division 3, Article 3, Chapter IX of the LAMC for inspections, a satisfactory acceptance testing of the entire emergency systems, legally required standby and critical operations systems installation and function shall be made on the complete system in the presence and under the direction of a representative of the Department and the Los Angeles City Fire Department prior to final approval.

The annual testing of the fire warning, emergency, legally required standby and critical operations systems shall be conducted by the Los Angeles City Fire Department. **(Amended by Ord. No. 184,692, Eff. 12/30/16.)**

SEC. 93.0307. REINSPECTION OF ELECTRIC WIRING.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

(a) The Department is hereby authorized to inspect or reinspect electric wiring installed prior to or after the effective date of this Code.

(b) When any unapproved wiring is found, the Department may condemn the installation under the provisions of LAMC Section 93.0311. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 93.0308. TEMPORARY USE OF CURRENT.

(a) The Department may permit, at its discretion, the temporary use of electrical energy for electrical wiring, before final approval thereof, whenever unnecessary hardship would otherwise result, and inspection can effectively be made after the commencement of the temporary use.

(b) The Department shall place those restrictions upon temporary use as necessary to insure safety, to secure compliance with all other provisions of this Code, and to facilitate inspection.

(c) No temporary use of electrical energy shall be permitted in any case where a hazard to life and property would be created.

(d) The temporary use of electrical energy may be ordered discontinued and the supply disconnected upon proper notice as prescribed in LAMC Section 93.0311. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(e) Nothing contained in this section shall be considered to permit or authorize the sale or use of any electrical equipment not "APPROVED" in accordance with Division 4, Article 3, Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 93.0310. POWER TO STOP WORK.

(a) The Department is hereby authorized to stop the installation of electric wiring or the concealment thereof, whenever an installation is being done in violation of this Code, or where a hazard to life and property is created until the hazard or violation has been eliminated. **(Amended by Ord. No. 161,316, Eff. 7/7/86.)**

(b) The notice to stop work shall be in writing, served as provided in the Los Angeles Municipal Code, upon the person violating or responsible for the violation of this Code.

(c) No person shall fail, neglect or refuse to comply with a stop work notice.

SEC. 93.0311. AUTHORITY TO CONDEMN INSTALLATIONS.

(a) When the Department determines that an electrical installation is in violation of this Code, an order shall be given to the owner or person in responsible charge of the installation to either remove or replace the installation. The order shall be in writing and shall specify the particulars in which the installation is in violation and shall fix a reasonable time for compliance with the order. In cases of extreme danger to life or property, as determined by the Department, the order shall further require that all persons cease using electric current through the installation and to disconnect the installation at once.

(b) If the violations continue to exist by the expiration of the time fixed by the order, or should the Department find that persons are using an installation that has been ordered disconnected, the Department is hereby authorized to physically disconnect the portion of the installation in violation, or to order the serving agency to disconnect electric service to the consumer's wiring system.

(c) Where a disconnection has been made by the Department a seal shall be attached to the electric wiring at the point of disconnection.

(d) The seal shall be of metal and shall be attached to a tag not less than three inches by four inches in size of substantial paper or cardboard, red in color, and bearing a printed warning that the installation has been sealed by the Department. No person shall break, mutilate, destroy or remove the seal or tag, or energize the wiring until the seal has been removed by the Department. When the required changes or repairs have been made and the work inspected and approved, the Department shall cause the seal to be removed.

(e) When an electric wiring installation has been sealed by the Department, a person who causes, permits or allows their agent, servant, employee or other persons to use such installation prior to the removal of the seal by the Department or after the seal has been removed or broken by any person other than a representative of the Department, shall be guilty of a misdemeanor.

(f) Nothing contained in this section shall be construed to require a person to change wiring which complied with the laws and regulations in effect at the time of installation and which is maintained to comply with those regulations. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

EXCEPTIONS:

1. When the Department determines that the wiring may become a hazard to life and property.
2. Where the occupancy of the building or premises has been changed in accordance with LAMC Sections 91.8203 and 93.0111.
3. Where cord wiring is found in dwelling occupancies it shall be replaced by not less than two approved receptacle outlets in each kitchen, living room and bedroom. A receptacle outlet, which may be one of the kitchen receptacle outlets, must be provided for each washing machine. Kitchen receptacle outlets shall be supplied by at least two branch circuits, one of which may also supply lighting circuits.
4. Where existing plug fuseholders are used in new circuits or in existing circuits with new electric wiring they shall be provided with TYPE S fuse adapters. The Department shall require all the fuseholders in an existing panelboard to be provided with TYPE S adapters where evidence of bridging, tampering or conditions of over-fusing are found in over 10% of the total number of fuses.
5. Where changes are made to utility company transformers or distribution system of existing electrical installations that causes an increase of available short-circuit currents, provisions shall be made as required by CEC Article 110, Sections 110.9 and 110.10 to protect the equipment.

SEC. 93.0312. ABANDONED WIRING.

When a circuit is abandoned or discontinued, its conductors shall be removed from the raceways, or shall be insulated and maintained in wiring enclosures as if in use.

(Added by Ord. No. 154,234, Eff. 9/8/80.)

SEC. 93.0313. WIRING STANDARDS.

(Added by Ord. No. 182,851, Eff. 1/3/14.)

By special permission, premises wiring not covered by this Code may be installed per recognized provisions of wiring standards approved by the Department.

SEC. 93.0314. RESPONSIBILITY FOR COMPLIANCE.

Every person installing, altering, repairing, using or maintaining electric wiring shall be responsible for compliance with this Code.

SEC. 93.0315. NON-RESPONSIBILITY OF CITY.

Neither the City of Los Angeles, nor any department, board, commission, officer or employee thereof shall be held liable or responsible for any damage or injury caused by or resulting from the issuance of any permit issued, or any inspection or approval made under the provisions of this Code.

DIVISION 4

APPROVED EQUIPMENT

(Division and Sections Renumbered by Ord. No. 154,234, Eff. 9/8/80.)

Section

93.0401 Power to Regulate.

93.0402 Electrical Equipment.

93.0403 Used Equipment.

SEC. 93.0401. POWER TO REGULATE.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Department is authorized, empowered and directed by Division 3, Article 3, Chapter IX of the LAMC to enforce all of the provisions of Division 4, Article 3, Chapter IX of the LAMC; to adopt standards to which all equipment referred to in LAMC Section 93.0402 must conform before its approval; and to make reasonable rules and regulations for the governmental enforcement of such provisions and standards. Such rules and regulations, declared by LAMC Section 93.0113 to be a part of this Code, shall be reduced to writing and shall be filed in accordance with LAMC Section 93.0113 in the office of the Superintendent of Building.

SEC. 93.0402. ELECTRICAL EQUIPMENT.

(Title and Section Amended by Ord. No. 185,198, Eff. 11/22/17.)

Electrical equipment as defined in CEC Article 100 shall either be approved by the Department or be listed or certified by a Department approved Electrical Testing Agency.

Listed or certified electrical equipment shall bear the label, symbol or other identifying mark of the approved testing agency. The equipment shall be installed, used and maintained in conformance with its listing or certification and the Los Angeles Electrical Code.

SEC. 93.0403. USED EQUIPMENT.

(Added by Ord. No. 154,234, Eff. 9/8/80.)

(a) Any used or secondhand material, including any fitting, device, appliance, apparatus, or other equipment reinstalled for electric wiring shall comply with the following provisions:

1. All such equipment shall be in good, satisfactory and durable condition, and adequate and satisfactory for the purpose intended or used, all of the foregoing to be determined by the Department. Such equipment must also comply with all requirements of Division 4 of Article 3, Chapter IX of the LAMC regarding approval.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

2. No used or secondhand insulated conductors shall be used for services or for circuits operating at more than 250 volts.

3. No used, reconditioned, or refurbished molded or electronic trip molded case circuit breakers. (Added by Ord. No. 182,851, Eff. 1/3/14.)

(b) Nothing contained in this section shall be construed to waive any other specific requirements of the Code, including requirements for nameplates, enclosure of live parts, horsepower rating of switches, or protection from corrosion.

DIVISION 5

REGISTRATION

(Division and Sections Renumbered by Ord. No. 154,234, Eff. 9/8/80.)

Section

93.0501 Qualified Installer.

93.0502 Certificate of Registration.

93.0503 Maintenance Certificate of Registration.

SEC. 93.0501. QUALIFIED INSTALLER.

(Amended by Ord. No. 174,828, Eff. 10/27/02, Oper. 11/1/02.)

It is unlawful for any person who is not a qualified installer to install, alter, reconstruct or repair any electric system unless the person is under the direct supervision of a qualified installer.

A qualified installer is:

- (a) A person who holds a valid contractor's license in the proper classification issued by the State of California; or
- (b) A person who holds a valid Maintenance Certificate of Registration issued pursuant to the provisions of this Code; or
- (c) A person who is the owner of a single- family dwelling and has demonstrated to the satisfaction of the Department their qualifications to satisfactorily perform electric wiring in the dwelling which is occupied by the owner, and their accessory buildings, provided that all of the following conditions are met:
 - (1) The work is performed prior to sale of the dwelling.
 - (2) The homeowner actually resides in the residence. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)**
 - (3) The homeowner has not availed themselves of this exemption on more than two structures during any three year period; or
- (d) A person who is employed by a governmental agency that is required to comply with the provisions of this Code, and who is qualified, as determined by the Department, to supervise or control any work regulated by this Code.

SEC. 93.0502. CERTIFICATE OF REGISTRATION.

(a) A Certificate of Registration may be issued for maintenance electrical work as set forth in LAMC Section 93.0503. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(b) To obtain a Certificate of Registration, the person, firm or corporation shall make an application giving:

- 1. The business name and address; and
- 2. The names of the owners or officers of a corporation; and
- 3. License Tax Registration Certificate number; and
- 4. The name of the holder and the registration number of a valid Certificate of Qualification.

(c) Each Certificate of Registration shall be subject to the following regulations;

- 1. Certificates of Registration shall not be transferable.
- 2. Certificates of Registration shall become void 30 days after the holder of a valid Certificate of Qualification ceases to have effective control over the worked performed.
- 3. Certificates of Registration shall expire one year from the date of issuance unless sooner revoked or suspended by the Department.
- 4. Certificates of Registration may be renewed upon the payment of the annual registration fee as prescribed in LAMC Section 98.0414. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- 5. The Department may revoke or suspend any Certificate of Registration for failure, refusal, or neglect of the holder to comply with the provisions of this Code or for any reason set forth in Article 8 of Chapter IX of the Los Angeles Municipal Code.
- 6. No Certificate of Registration shall authorize any person to do work which is not within the specific classification of the Certificate of Registration.
- 7. The holder of a Certificate of Registration shall be responsible for all electrical work installed.

SEC. 93.0503. MAINTENANCE CERTIFICATE OF REGISTRATION.

(a) A Maintenance Certificate of Registration may be issued to an owner or occupant of an existing building for the sole purpose of the repair, addition or alteration of existing facilities.

(b) The owner or occupant shall register a Maintenance Supervisor who is the holder of a valid Certificate of Qualification in the proper classification.

(c) An annual registration fee shall be paid for premises covered by a Maintenance Certificate of Registration as required by LAMC Section 98.0414. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 93.0505. CERTIFICATE OF QUALIFICATION.

(a) No person shall act as a Maintenance Supervisor without having a valid Certificate of Qualification of the proper classification issued pursuant to the provisions of this section. **(Amended by Ord. No. 161,316, Eff. 7/7/86.)**

(b) Every applicant for a Certificate of Qualification shall successfully pass an examination to determine their ability to perform the work. The examination shall include a written test and may include a practical and oral interview. The Department shall determine the scope of the examination and shall establish the regulations for the conduct of the examination.

EXCEPTION: The examination may be waived for applicants who hold a valid State of California Electrical Contractor's C-10 License.

(c) Every applicant for Certificate of Qualification shall pay a fee as required by LAMC Section 98.0414. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(d) Every Certificate of Qualification for maintenance supervisor shall expire three years following the date of issuance. **(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)**

(e) An expired Certificate of Qualification may be renewed at any time within 12 months after expiration without making application as set forth in Subsections (a) and (b) of this section, provided that after the first month, the renewal fee is paid as required by LAMC Section 98.0414. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(f) The Department may revoke or suspend any Certificate of Qualification for failure, refusal or neglect of the holder to comply with the provisions of the Code or for any reason set forth in Article 8 of Chapter IX of the Los Angeles Municipal Code. **(Amended by Ord. No. 147,537, Eff. 9/15/80.)**

DIVISION 6

DEFINITIONS AND REQUIREMENTS FOR ELECTRICAL INSTALLATIONS

(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)

Section
93.0600 Basic Provisions.

SEC. 93.0600. BASIC PROVISIONS. **(Amended by Ord. No. 187,719, Eff. 1/23/23.)**

Chapter 1 of the California Electrical Code (CEC) is adopted by reference for the purpose of providing definitions and requirements for electrical installations except as those definitions are modified or new definitions added as provided herein.

ACCESS FLOOR. An assembly consisting of panels mounted on pedestals to provide an underfloor space for the installation of electrical, communications, or mechanical systems.

AMBIENT TEMPERATURE. **(Added by Ord. No. 181,561, Eff. 3/22/11.)** The air temperature of locations in the City of Los Angeles as described in the Table below:

LOCATION	TEMPERATURE
In normally heated building	30°C (86°F)
Poorly or unventilated rooms or spaces such as attics, transformer, machinery (refrigeration) or elevator rooms*, etc.	45°C (113°F)
Ventilated transformer rooms, machinery (refrigeration) rooms, elevator rooms* or spaces, etc	37°C (99°F)
In buildings with major heat sources such as power stations or industrial processes	45°C (113°F)
Furnace and boiler rooms	60°C (140°F) within 2 ft. of a furnace or boiler 40°C (104°F)
In thermal insulation	45°C (113°F)
Outdoors un-shaded areas	39°C (102°F)
Outdoors in shaded areas	34°C (93°F)
Outdoors lowest expected temperature	-7°C (20°F)
Behind stand-off (i.e., parallel to the roof) or integral flat photovoltaic crystalline-silicon cell module, panel or array (up to 6 inches, add 4°C to the ambient temperature, where channels (rails) are installed under the modules as part of the mounting system)	Within 1 inch = 60°C (140°F) Over 1 to 3 inches = 56°C (133°F) Over 3 to 6 inches = 55°C (131°F) Over 6 inches = 39°C (102°F)
Behind rack mounted (i.e., at an angle to the roof) flat photovoltaic crystalline-silicon cell module, panel or array	Within 1 inch = 54°C (129 °F) Over 1 inch = 39°C (102°F)
Behind direct mounted flat photovoltaic crystalline-silicon cell module, panel or array	63°C (145°F)

* Lower ambient temperature in elevator room is permitted when it is required to be maintained at a specified maximum ambient temperature per equipment manufacturer as permitted in the Los Angeles Elevator Code.

APPROVED LABORATORY. A laboratory that is approved by the Department when it complies with the provisions of LAMC Section 98.0503. **(Added by Ord. No. 184,692, Eff. 12/30/16.)**

CEC. California Electrical Code

CORD WIRING. The use of cord as substitute for the wiring methods permitted by this Code.

DEPARTMENT. The Department of Building and Safety.

DESIGN LOAD. The maximum connected and expected future loads. This load shall not exceed the branch circuit, feeder or service respective overcurrent protective devices or conductor ratings. **(Added by Ord. No. 182,851, Eff. 1/3/14.)**

ELECTRIC WIRING. Any device or equipment constituting a part of, or connected to, any electrical installation attached or fastened to any building, structure or premise and which installation, or some portion thereof, is designed, intended or used to generate, transmit, transform, utilize or control electrical energy.

EXISTING. (As applied to electric wiring, buildings or portions of buildings) Having a final approval by the Department of Building and Safety.

FIRE ALARM AND SIGNALING SYSTEM. A system or portion of a system that consists of equipment and circuits arranged to monitor, supervise (or unsupervised), and annunciate the status of the system by indicating appliances (i.e., bell, horn, speaker, light, or text display, etc.) as a result of the activation of any signal initiation device (i.e., manual pull station, water flow switch, smoke detector, heat detector, etc.); provide emergency communications systems (when installed or required); and to control emergency control functions (i.e., fan control, smoke damper operation, elevator recall, elevator power shutdown, door holder release, shutter release, door unlocking, etc.) when required. These systems may incorporate an approved means (such as a dialer) to inform the status of the system to a remote location. **(Added by Ord. No. 182,851, Eff. 1/3/14.)**

GROUND RESISTANCE. The resistance of the ground soil, as determined by field measurement by a qualified engineer, and the associated grounding electrode system as determined by calculation. **(Added by Ord. No. 174,828, Eff. 10/27/02, Oper. 11/1/02.)**

HAZARDOUS WIRING. Any wiring which did not conform with all applicable laws in effect at the time of installation, or wiring which is not in good condition or is being used in an unsafe manner.

INSTALL. The act of attaching or fastening electric systems, temporarily or permanently, in any manner, including the attaching or connecting of portable equipment even though designed to be moved, removed or disconnected at will.

INSTALLATION. That which is installed, regardless of whether or not it is energized.

N.E.C. National Electrical Code. **(Amended by Ord. No. 179,325, Eff. 12/10/07, Oper. 1/1/08.)**

NFPA 72. The National Fire Alarm Code published by the National Fire Protection Association. **(Added by Ord. No. 179,325, Eff. 12/10/07, Oper. 1/1/08.)**

NON-RESIDENTIAL. Where used in this Code, the term “non-residential” shall apply to any building or premises other than hotels, motels, lodging houses, apartment houses, dwellings, or portions thereof, or buildings and structures accessory thereto.

PREMISES. Any parcel of land, regardless of the number of contiguous lots, occupied by or under the control of the same person or firm and including all buildings, structures or improvements thereon.

SALE OR SELLING. Any act of selling, offering for sale, advertising or displaying for sale, disposing of by way of lease or premium any equipment as defined therein.

SATISFACTORY. Acceptable to the Department.

SERVING AGENCY. A public or privately owned electric utility authorized by the City of Los Angeles to distribute electric energy to 100 or more separate premises.

SIGNALING EQUIPMENT. Any contrivance which produces an audible or visual signal, including doorbells, buzzers, code calling systems and signal lights. This equipment shall not include those audible or visual signals which are part of motor control circuits, data processing systems, fire-warning systems and nurse call systems.

SPECIAL PERMISSION. The express permission in writing from the Superintendent of Building, obtained prior to the commencement of any work for which special permission is required.

STATION. (Industrial or Commercial.) A building, room or outside enclosure on a customer’s premises designed, intended or used to house or enclose the electric distribution and control equipment of the serving agency.

USED MATERIAL. Previously used equipment as defined in Article 100 of the California Electrical Code. **(Added by Ord. No. 174,828, Eff. 10/27/02, Oper. 11/1/02.)**

Vault. A chamber (over 80 cubic feet in volume) in an underground conduit distribution system containing sufficient working space and an entrance for personnel. **(Added by Ord. No. 174,828, Eff. 10/27/02, Oper. 11/1/02.)**

VOLTAGE, NOMINAL. A nominal value assigned to a circuit or system for the purpose of conveniently designating its voltage class (e.g., 120/240, 480Y/277, 600). The actual voltage at which a circuit operates can vary from the nominal within a range that permits satisfactory operation of equipment. **(Amended by Ord. No. 179,325, Eff. 12/10/07, Oper. 1/1/08.)**

DIVISION 7

REQUIREMENTS FOR INSTALLATION METHODS AND MATERIALS.

(Amended by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)

Section
93.0700 The California Electrical Code.

SEC. 93.0700. THE CALIFORNIA ELECTRICAL CODE. **(Amended by Ord. No. 187,719, Eff. 1/23/23.)**

Chapters 1 through 9, Annex C, H, G and I of the National Electrical Code (NEC), as published by the National Fire Protection Association (N.F.P.A. 70), the California Electrical Code (CEC) and the California Building Standards Code are adopted by reference as part of the Code. When there is a conflict between the NEC, the CEC and the Los Angeles Municipal Code (LAMC), LAMC Section 93.0105 shall prevail. Except as specified in Divisions 1 through 7 of Article 3, Chapter IX of the LAMC, all electrical installations and materials shall be in conformity with the California Electrical Code, as adopted by reference to be part of this Code; and Subsections 93.0700.19, 93.515.17 and 93.515.18 are added as provided here.

93.0700.19. Illuminated Exit Signs. Illuminated exit signs used as part of emergency system shall be supplied from two independent branch circuits. One branch circuit shall be supplied from an emergency system, and the other branch circuit shall be supplied from a normal system.

EXCEPTION: Unit equipment branch circuits as permitted in CEC Section 700.12(I).

93.515.17. Oil and Gas Wells. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) This subsection shall be applicable to oil or gas wells located over water, on human-made islands offshore or at land-based locations. Area adjacent to oil or gas wells shall be classified as Class I locations as outlined below, and installations shall comply with the requirement for those locations.

(b) Definitions.

ADEQUATE VENTILATION. (as applied to enclosed areas) A mechanical ventilation system supplied from a nonhazardous source that provides for a minimum of 12 air changes per hour.

ENCLOSED AREA. Roofed areas having at least three walls, or open sumps or pits into which highly volatile liquids are run, or areas surrounded by buildings or walls in which flammable vapors may accumulate.

LOCOMOTIVE CABLE. Cable having the physical property of being oil resistant and constructed as to be suitable for application on power and control circuits in diesel or electric locomotives and suitable for oil rigging applications.

POSITIVE PRESSURE VENTILATION. A mechanical ventilation system capable of providing a minimum outward air velocity of 60 feet per minute through all openings.

(c) Drilling Wells.

1. **Class I, Division I Locations.** The following areas shall be classified as Class I, Division I locations:

- A. Below-grade well cellars, sumps or ditches. See Figures 2 and 6 of Division 7, Article 3, Chapter IX of the LAMC.
- B. Enclosed and inadequately ventilated areas below the derrick floor. See Figure 1 of Division 7, Article 3, Chapter IX of the LAMC.
- C. Enclosed areas containing mud tanks or shale shakers. See Figures 3 through 6 of Division 7, Article 3, Chapter IX of the LAMC.

EXCEPTIONS:

- 1. Adequately ventilated enclosed areas shall be permitted to be classified as Class I, Division 2 locations.
- 2. (Over 600 volts, nominal): Oil or gas well in the process of drilling shall have a Division 2 classification within 25 feet (7.62 m) of the casing, with the 18 inch (457.2 mm) height limitation adjacent to the drilling platform. The entire area directly above and below the drilling platform proper shall be considered as Division 2 without height limitation.

2. **Class I, Division 2 Locations.** The following areas shall be classified as Class I, Division 2 locations:

- A. Within 10 feet (3048 mm) horizontally and 18 inches (457.2 mm) vertically from the edge of the well cellars or other below grade, Class I, Division I locations.
- B. Within 10 feet (3048 mm) radially of the center of the bell nipple in open derricks.
- C. The entire area above the derrick floor in enclosed derricks.
- D. Areas adjacent to mud tanks as required in Figures 3 and 4; pits as required in Figure 2; shale shakers as required in Figure 5; or openings as required in Figure 2. The figures referenced in this paragraph are located in Division 7, Article 3, Chapter IX of the LAMC.

EXCEPTION: In enclosures classified as Class I, Division I locations in Subsection (c) 1 above.

(d) Producing Wells.

1. **Class I, Division I locations.** The following areas shall be classified as Class I, Division I locations:

- A. Below-grade well cellars. See Figures 7 and 9 of Division 7, Article 3, Chapter IX of the LAMC.
- B. Enclosed areas such as, wellhead, compressor or pump rooms where volatile, flammable liquids or gases may be present in concentrations sufficient to render the area a hazardous location.

NOTE: See Figures 8 through 10 of Division 7, Article 3, Chapter IX of the LAMC.

EXCEPTIONS:

- 1. Adequately ventilated enclosed areas shall be permitted to be classified as Class I, Division 2 locations.

NOTE: See Figure 7 of Division 7, Article 3, Chapter IX of the LAMC.

- 2. (Over 600 volts, nominal): In case of producing oil wells, the Division 2 classification shall include an area within 3 feet (914.4 mm) of the well casing to a height of 3 feet around the stuffing box or lubricator, and the area extending 10 feet (3048 mm) from the well casing to a height of 18 inches (457.2 mm) above the grade level of all producing oil wells (pumped, flowing or gas injected) having a gas pressure sufficient to cause gas to be liberated to the atmosphere in quantities to create a hazard to employees should liberated gas become ignited. Producing gas wells shall have a similar classified area.

2. **Class I, Division 2 Locations.** The following areas shall be classified as Class I, Division 2 locations:

- A. Within 10 feet (3048 mm) horizontally and 18 inches (457.2 mm) vertically from the well casing and three feet radially from the stuffing box of all producing wells equipped with beam pumping units.

NOTE: See Figures 8 and 9 of Division 7, Article 3, Chapter IX of the LAMC.

- B. Within ten feet horizontally and 18 inches (457.2 mm) vertically above grade from the edge of well cellars or other below grade Class I, Division I locations.

- C. Within 10 feet (3048 mm) horizontally and vertically from openings in enclosed areas classified as Class I, Division I locations in Subsection (d) 1 above.

NOTE: See Figures 3, 5 and 10 of Division 7, Article 3, Chapter IX of the LAMC.

3. **Class I, Division 1 and 2.** Areas within a 10 foot (3048 mm) radius of oil field auxiliary equipment such as gas vents, oil-gas separator vessels, tanks, pumps, compressors and similar equipment shall be classified in accordance with Figures 11 through 19 of Division 7, Article 3, Chapter IX of the LAMC.

(e) **Overload Protection.** No overload protection will be required for drilling rigs using railroad locomotive power systems for the draw works, rotary tables and mud pumps.

NOTE: In this electrical system, generators, generator power leads, and DC motors are automatically protected against overload by inherent characteristics of compound and differential field windings in the DC motor and generator, respectively.

(f) **Wiring Methods.**

1. **General.** Where drilling platforms are not enclosed around the drilling operation, all wiring and equipment within 25 feet of the casing of the well being drilled shall be of the type required for Class I, Division 2 locations, or be installed in enclosed areas supplied with adequate ventilation. The electrical power supply to wiring and equipment within positive pressure ventilated areas shall be arranged to prevent energizing the electrical wiring and apparatus until air pressure has been established, for not less than two minutes, and arranged to automatically actuate an audible and visual alarm with a 5-minute shutdown time delay to allow safe operational shutdown prior to de-energizing the wiring and apparatus when the ventilation fails.

Enclosed areas supplied with positive pressure ventilation from a nonhazardous area shall be permitted to be classified as nonhazardous areas, provided no flammable vapor source exists within the enclosed areas.

2. **Locomotive Type Cables.** Special locomotive cables and other equivalent portable cables may be run in cable trays under the following conditions in all locations:

- A. Open cable trays may be run horizontally under floors or ceilings.
- B. In all locations, solid covers shall be installed on horizontal runs where persons or materials may accidentally contact the conductors.
- C. Vertical runs of trays shall be totally enclosed.
- D. Where the rig moves over a series of well holes and a transverse section of cable tray drops trailing cables in a long fixed runway tray, cleats or other means shall be used to secure the cable against shifting in the moving section of the tray.
- E. For single hole setups onshore, cables may be buried in the earth or run in covered, wooden troughs between outdoor units of equipment. A substantial, nominal 2-inch thick wooden cover or equivalent, shall be installed over the trough.

(g) **Lighting.** Lighting systems for oil or gas well drilling rigs, production hoists, derricks or masts shall be permitted to be wired using an approved prefabricated assembly of flexible cables with vulcanized, molded or other approved terminating receptacle devices so designed that electric arcs will be confined within the receptacle enclosure which shall be the concealed contact-type. The lighting fixture shall be of the type permitted for Class I, Division I locations, or of the enclosed gasketed-type. These assemblies shall be securely fastened to the drilling rig or hoist structure and so located that they will be protected from physical damage.

(Figures 1 - 19 Inclusive, Relocated from Division 11 by Ord. No. 172,593, Eff. 6/28/99, Oper. 7/1/99.)

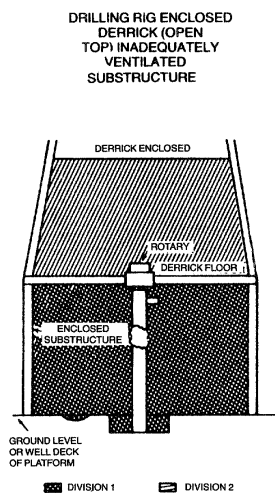


FIGURE 1

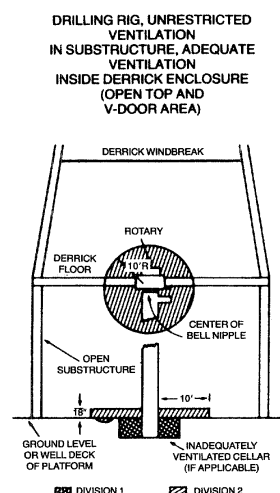


FIGURE 2

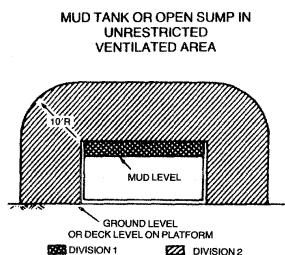


FIGURE 3

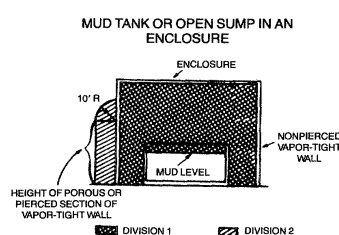


FIGURE 4

VIBRATING TYPE SHALE SHAKER
IN
OPEN AREA

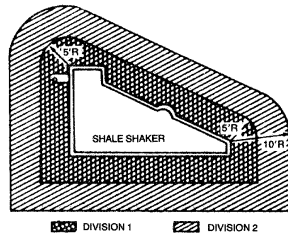


FIGURE 5

DESANDER-DESILTER IN FREELY
VENTILATED AREA

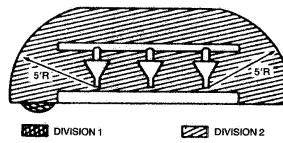


FIGURE 6

FLOWING WELL WITH CHRISTMAS TREE
(LAND INSTALLATION)

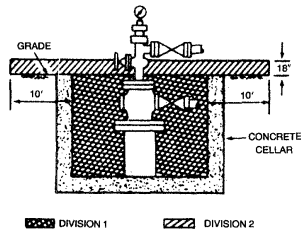


FIGURE 7

BEAM PUMPING WELL AND
TYPICAL WELLHEAD EQUIPMENT

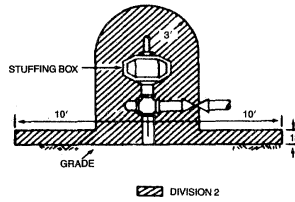


FIGURE 8

BEAM PUMPING WELL WITH CELLAR AND
TYPICAL WELLHEAD EQUIPMENT

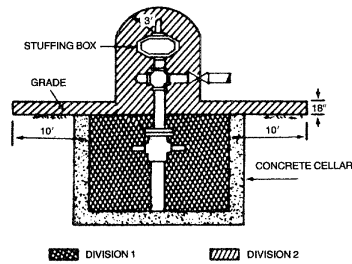


FIGURE 9

FLOWING WELL IN AN ENCLOSURE

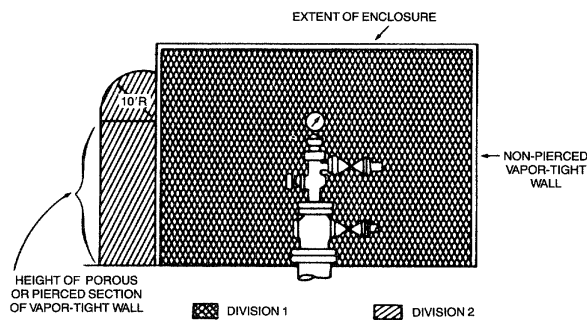


FIGURE 10

COMPRESSOR OR PUMP IN AN
ADEQUATELY VENTILATED
BUILDING OR ENCLOSURE

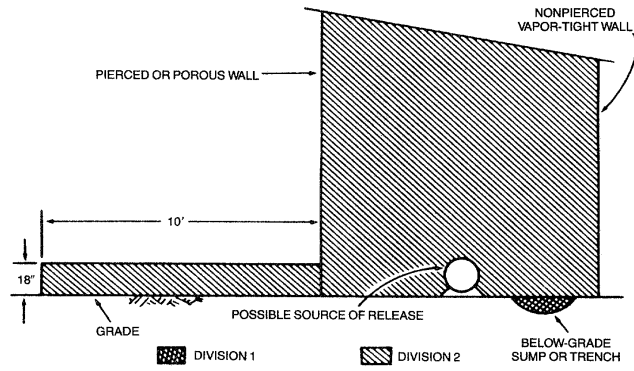


FIGURE 11

COMPRESSOR OR PUMP IN AN
INADEQUATELY VENTILATED
BUILDING OR ENCLOSURE

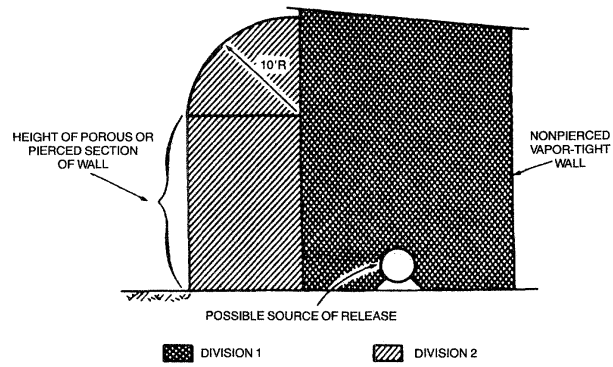


FIGURE 12

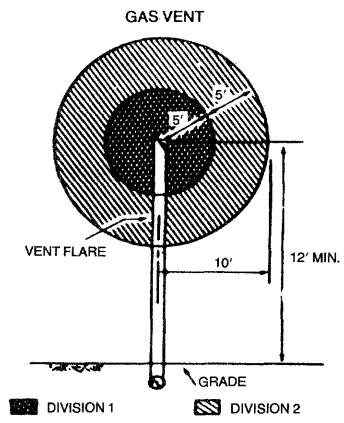


FIGURE 13

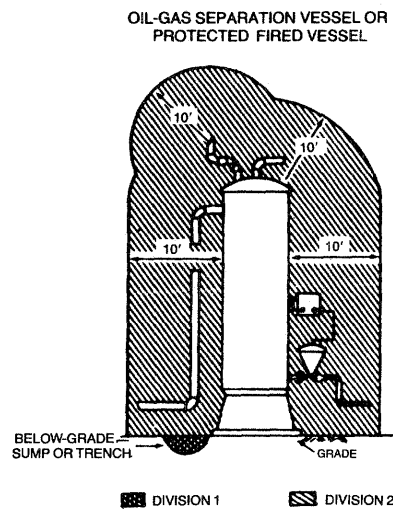


FIGURE 14

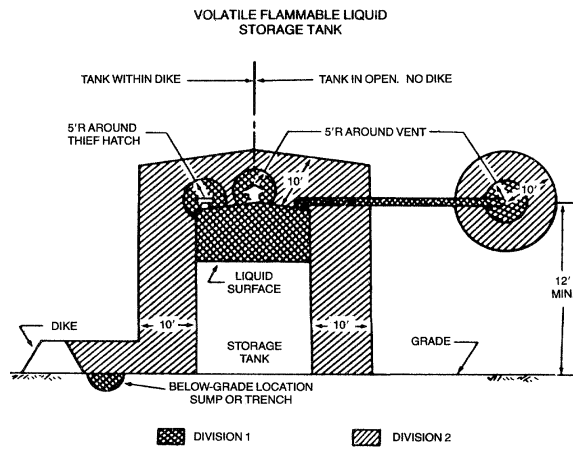


FIGURE 15

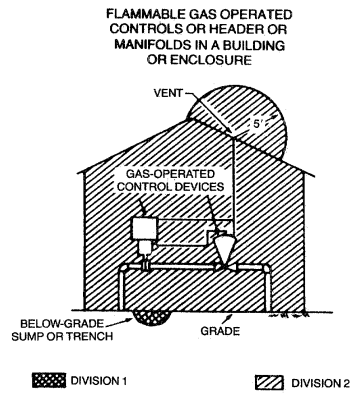


FIGURE 16

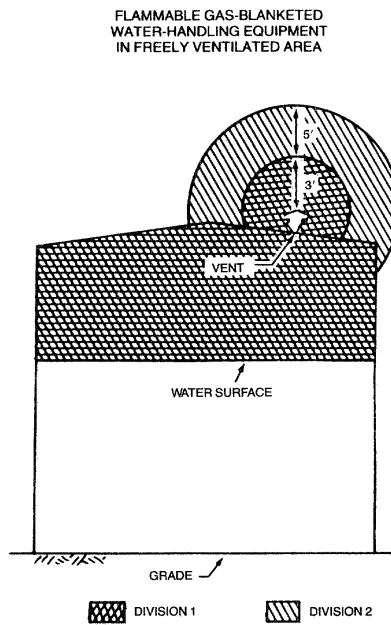
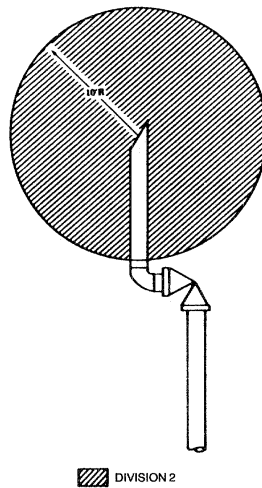


FIGURE 17

RELIEF VALVE



DIVISION 2

NOTE: No electrical equipment to be placed in direct path of relief discharge.

FIGURE 18

COMPRESSOR OR PUMP IN AN OPEN AREA OR FREELY VENTILATED SHED TYPE

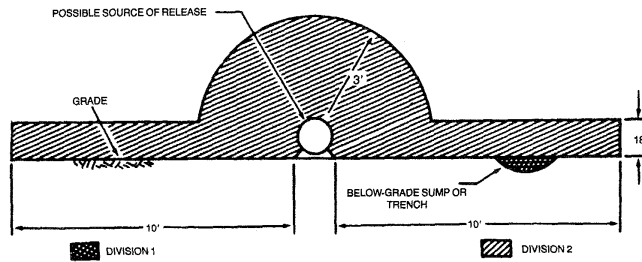
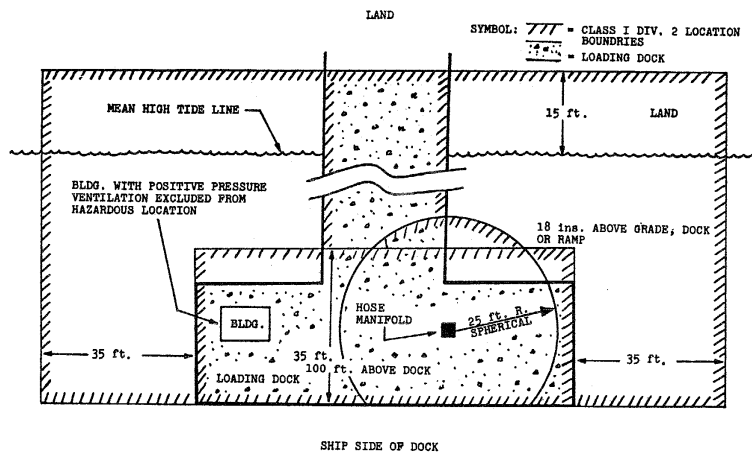
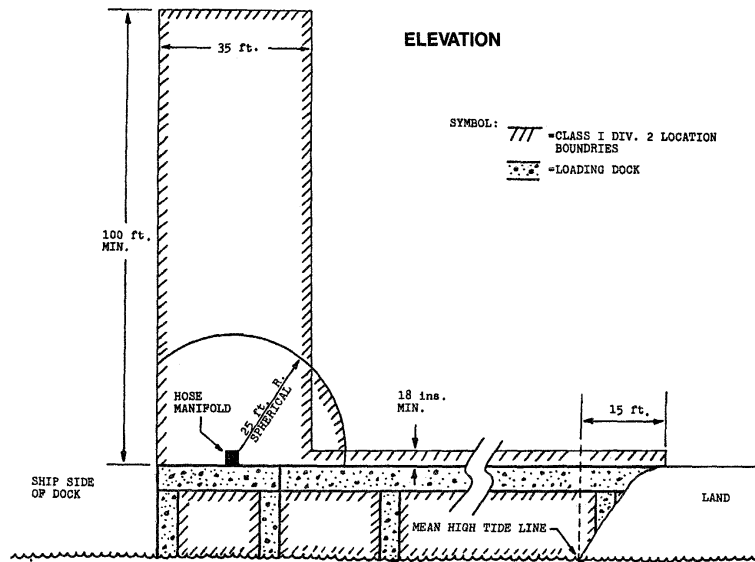


FIGURE 19



SHIP SIDE OF DOCK

PLAN VIEW



93.515.18. Bulk-storage Plants – Tanker Loading Docks. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

- (a) **Scope.** The provisions of this section shall apply in addition to the requirements of Article 515 of the CEC.
- (b) **Definitions. (Amended by Ord. No. 179,325, Eff. 12/10/07, Oper. 1/1/08.)**

BULK STORAGE PLANT or TANKER LOADING DOCK DESIGNATIONS. The bulk storage plant and tanker loading dock designation shall also include locations where ships carrying bulk cargoes of gasoline or other volatile flammable liquids are loaded or unloaded.

WATER LEVEL. The water level shall be the measured mean value of the high tide lines.

- (c) **Loading and Unloading Tanker Ships. (Amended by Ord. No. 179,325, Eff. 12/10/07, Oper. 1/1/08.)**

1. The interior of a building, any portion of which is located in a Class I, Division 2 location, shall be classified as a Class I, Division 2 location.

EXCEPTION: Buildings that are provided with satisfactory positive pressure ventilation, and safeguards, with air taken from a clean air source may be considered to be a nonhazardous location.

2. All electrical power drive pumps and transfer apparatus for flammable liquids shall be provided with an identified “stop” or normal control switch within sight and readily accessible to the person operating the equipment.

- (d) **Existing Tanker Loading Dock Installations.** All existing electrical installations at tanker loading docks shall comply with the provisions of this section and Article 515 of the CEC.

ARTICLE 4

PLUMBING CODE

(Amended by Ord. No. 182,847, Eff. 1/3/14.)

Division

- 1 Administration
- 2 Definitions
- 3 General Regulations
- 4 Plumbing Fixtures and Fixture Fittings
- 5 Water Heaters
- 6 Water Supply and Distribution
- 7 Sanitary Drainage
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- 11 Storm Drainage
- 12 Fuel Gas Piping
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- 14 Firestop Protection
- 15 Alternate Water Sources for Nonpotable Applications
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DIVISION 1

ADMINISTRATION

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section

- 94.100.0 Basic Provisions.
- 94.101.0 Title, Scope and General.
- 94.102.0 Organization and Enforcement.
- 94.103.0 Permits and Inspections.

SEC. 94.100.0. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 1 of the California Plumbing Code (CPC) is not adopted.

SEC. 94.101.0. TITLE, SCOPE AND GENERAL.

94.101.1. Title. (Amended by Ord. No. 187,719, Eff. 1/23/23.) This article shall be known as the "**Los Angeles Plumbing Code**", a portion of the Los Angeles Municipal Code, and wherever the word "**Code**" is used in this article, it shall mean the "**Los Angeles Plumbing Code**" and whenever "**LAMC**" is used, it shall mean the Los Angeles Municipal Code. Whenever the word "**City**" is used in this article, it shall mean "**City of Los Angeles**". Whenever the word "**Department**" is used in this article, it shall mean "**Department of Building and Safety**".

The Los Angeles Plumbing Code adopts by indicated reference portions of the 2022 California Plumbing Code (CPC) of Title 24 of the California Code of Regulations (CCR).

94.101.2. Scope. The provisions of this Code shall apply to the erection, installation, alteration, repair, relocation, replacement, addition to, use, or maintenance of plumbing systems within the City.

94.101.3. Purpose. The purpose of this Code is to safeguard health, life, property and public welfare by regulating the design, alteration, construction, installation, repair, and quality of materials for plumbing, fire sprinkler, rainwater piping, standpipe, subsurface drainage piping, swimming pool piping, reclaimed water piping, underground fire-protection piping, and graywater piping systems installed in the City.

94.101.4. Conflicts Between Codes. Where the requirements of this Code conflict with the requirements of the mechanical code, this Code shall prevail. In instances where the Code, applicable standards, or the manufacturer's installation instructions conflict, the most restrictive requirement shall prevail. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall prevail.

94.101.5. Plans Required.

94.101.5.1. General. Before starting any work and at any time during the progress of any work regulated by this Code, the Department may require the submission of plans, specifications, drawings and other information it deems necessary. The issuance of a permit upon approved plans shall not prevent the Department from requiring the correction of errors in them and stopping work on construction based on these plans when in violation of this Code or of any other applicable ordinance or statute; or from revoking any approval when issued in error.

94.101.5.2. Signature. Plans and specifications shall bear the signature and registration or license number of an engineer, contractor or other person licensed in the appropriate classification by the State of California.

94.101.5.3. Risers and Isometrics. System riser or isometric diagrams shall be provided for all drainage, waste and vent, fuel gas, potable water, storm drain, rain water, sump pump, combination waste and vent and standpipe systems. Plans shall be suitable for use by office engineers and field inspectors.

94.101.5.4. Quality of Plans. Plans shall be legible, clear, of 1/8 inch (3.175 mm) per foot scale or larger, except risers and isometrics need not be to scale.

94.101.5.5. Stamped Plans on Job. The set of plans and specifications stamped and issued to the applicant by the Department shall be kept at the site of the construction or work and shall be available to an authorized representative of the Department. There shall be no deviation from the stamped or approved applications, plans or specifications without Department approval.

94.101.5.6. Types of Plans Required to be Submitted. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Plans signed by a qualified submitter shall be filed with and approved by the Department before any work listed below is started:

1. Drainage systems.
 - a. Drainage and vent systems involving fixtures that discharge 217 or more fixture units.
 - b. Drainage pumps and ejectors.
2. Combination waste and vent systems.
3. Fuel gas piping with any of the following:
 - a. Systems having more than ten outlets.
 - b. Medium pressure gas systems.
 - c. High pressure gas systems.
 - d. Methane gas extraction systems.
4. Potable water piping with any of the following: **(Amended by Ord. No. 188,739, Eff. 9/23/25.)**
 - a. Systems requiring a 2-inch (50.80 mm) or larger supply;

- b. Systems designed from the procedure in CPC Section 610.5;
- c. Systems utilizing cross-linked polyethylene tubing (PEX) requiring a 2-inch (50.80 mm) or larger supply or when required by the conditions of approval of the City of Los Angeles Mechanical Testing Laboratory Research Report; and
- d. Systems utilizing CPVC piping requiring a 2-inch (50.88 mm) or larger supply or when required by the conditions of approval of the City of Los Angeles Mechanical Testing Laboratory Research Report.

EXCEPTION: Plan Check is not required for existing systems that are added to or altered, with branch lines that serve fewer than 20 fixture units and are sized by CPC Table 610.4.

- 5. Rainwater piping systems with more than ten interconnected rainwater or overflow drains, or a rainwater pump.
- 6. Siphonic roof drainage systems.
- 7. Special water piping for alternative water source system installations.
- 8. Non-potable rainwater catchment systems where the water is collected from the footprint of building or is reused in the building as alternative water source for non-potable applications into the building.
- 9. Swimming pool circulating water systems.

EXCEPTION: Private swimming pools.

10. Fire Protection.

- a. Class H. Standpipes.
- b. Standpipes: Class I, II, III.
- c. Fire pump systems.
- d. Fire hydrant systems.
- e. Hand hose systems connected to fire sprinkler piping.
- f. Monitor nozzle systems.
- g. Underground fire protection piping.
- h. Fire sprinkler systems.

EXCEPTIONS:

- 1. Raising or lowering of sprinklers due to change in ceiling height.
- 2. Replacing of sprinklers of the same type, orifice size and temperature rating.
- 3. Relocation of sprinklers in previously occupied buildings or tenant spaces, when using the same or larger pipe sizes and the same material.

94.101.6. Repairs and Alterations. In existing buildings or premises in which plumbing installations are to be altered, repaired, or renovated, deviations from this Code are permitted, provided such deviations are found to be necessary and are first approved by the Authority Having Jurisdiction.

94.101.6.1. Building Sewers and Drains. Existing building sewers and building drains shall be permitted to be used in connection with new buildings or new plumbing and drainage work where they are found on examination and test to be in accordance with the requirements governing new work, and the proper Authority Having Jurisdiction shall notify the owner to make changes necessary to be in accordance with this Code. No building, or part thereof, shall be erected or placed over a part of a drainage system that is constructed of materials other than those approved elsewhere in the LAMC for use under or within a building.

94.101.6.2. Openings. Openings into a drainage or vent system, excepting those openings to which plumbing fixtures are properly connected or which constitute vent terminals, shall be permanently plugged or capped in an approved manner using the appropriate materials in accordance with this Code.

94.101.7. Maintenance. The plumbing and drainage system of a premises under the Authority Having Jurisdiction shall be maintained in a sanitary and safe operating condition by the owner or the owner's agent.

94.101.8. Existing Construction. No provision of this Code shall be deemed to require a change in a portion of a plumbing or drainage system, or other work regulated by this Code, in or on an existing building or lot where such work was installed and is maintained in accordance with law in effect prior to the effective date of this Code, except where a plumbing or drainage system or other work regulated by this Code is determined by the Authority Having Jurisdiction to be in fact dangerous, unsafe, insanitary, or a nuisance and a menace to life, health, or property.

94.101.9. Additions, Alterations, or Repairs. Additions, alterations, repairs, and replacements of plumbing systems shall comply with the provisions for new systems except as otherwise provided in LAMC Subsection 94.101.11.

94.101.10. Appendices. The provisions in the appendices are intended to supplement the requirements of this Code and shall not be considered part of this Code unless formally adopted as such.

94.101.11. Application to Existing Plumbing System. Additions, alterations, or repairs shall be permitted to be made to a plumbing system without requiring the existing plumbing system to be in accordance with the requirements of this Code, provided the addition, alteration, or repair is in accordance with that required for a new plumbing system. Additions, alterations, or repairs shall not cause an existing system to become unsafe, insanitary, or overloaded.

94.101.11.1. Health and Safety. Where compliance with the provisions of this Code fails to eliminate or alleviate a nuisance, or other dangerous or insanitary condition that involves health or safety hazards, the owner or the owner's agent shall install such additional plumbing and drainage facilities or shall make such repairs or alterations as ordered by the Authority Having Jurisdiction.

94.101.11.2. Existing Installation. Plumbing system lawfully in existence at the time of the adoption of this Code shall be permitted to have their use, maintenance, or repair continued where the use, maintenance, or repair is in accordance with the original design and location, and no hazard to life, health, or property has been created by such plumbing system.

94.101.11.3. Changes in Building Occupancy. Plumbing systems that are a part of a building or structure undergoing a change in use or occupancy, as defined in Article 1, Chapter IX of the LAMC, shall be in accordance with the requirements of this Code that are applicable to the new use or occupancy.

94.101.11.4. Operating Condition. Plumbing systems, materials, and appurtenances, both existing and new, and parts thereof shall be maintained in operating condition. Devices or safeguards required by this Code shall be maintained in accordance with the code edition under which installed. The owner or the owner's designated agent shall be responsible for maintenance of plumbing systems. To determine compliance with this subdivision, the Authority Having Jurisdiction shall be permitted to cause a plumbing system to be reinspected.

94.101.11.5. Moved Buildings. Plumbing systems that are part of buildings or structures moved into this jurisdiction shall be in accordance with the provisions of this Code for new installations, except as provided for in CBC Section 103.5.8.2.

94.101.11.6. Prohibited Acts.

94.101.11.6.1. No person shall add, alter, change, construct, install, locate, maintain, move, occupy, relocate, remove, renovate, repair, replace, or use any plumbing system, water-connected appliances, products or devices, fire sprinkler system, rainwater piping, standpipe, subsurface drainage piping, swimming pool piping, reclaimed water piping, underground fire protection piping, or graywater piping systems except as provided by this Code.

94.101.11.6.2. No person shall use or maintain any private sewage disposal system on any lot or parcel of land, that has failed, is in an overflowing condition, or in the judgment of the Department is unsanitary or is a menace to life, health or property. If the private system fails, all drainage piping shall be connected to the public or private sewer when the lot or parcel of land abuts any public way or sewer easement in which a public or private sewer exists and is available.

94.101.11.6.3. No person shall alter, add to or relocate any private sewage-disposal system on any lot or parcel of land that abuts any public way or sewer easement in which a public sewer exists and is ready for use.

94.101.11.6.4. No person shall sell, offer for sale, display for sale, advertise for sale, loan, rent or lease, dispose of by way of gift or premium or otherwise for reuse or use, the following:

1. Any plumbing fixture, appliance, apparatus, equipment, device, material or domestic gas appliance that has not been approved as to its fitness and safety for its intended use or purpose.

EXCEPTION: The sale of used gas ranges and used gas ovens is not prohibited.

2. Any water-operated or water-using device, mechanism or equipment, the use of which may cause the pollution or contamination of the domestic water supply. Any such device, mechanism or equipment may be allowed when properly equipped with approved backflow protection.

94.101.11.7. Exemptions From Code. The provisions of this Code shall not apply to the following:

94.101.11.7.1. Public Sewers. Any sewer entirely within a public way or any private sewer installed under the jurisdiction of the Los Angeles City Department of Public Works or the Los Angeles County Flood Control District as an incident to improvement of a public way when no portion of the private sewer extends more than 6 feet (1828.8 mm) into private property, as measured from the property line abutting the public way.

94.101.11.7.2. Street Water Mains. Any water main, water service or water meter of the Los Angeles City Department of Water and Power or other utility.

94.101.11.7.3. Street Gas Mains. Any street gas main or any gas service piping.

94.101.11.7.4. Refineries and Wells (Gas Piping). Fuel gas piping that is part of a refinery or gas well, provided piping for fuel gas used on the premises shall conform to the provisions of this Code.

94.101.11.7.5. Portable Gas Cooking Appliances. Any portable gas cooking appliance designed for outdoor use and installed outdoors.

94.101.11.7.6. Vehicles. Any work within an aircraft, railroad car, ship or other vehicle, which is not classified as a building or structure.

94.101.11.7.7. Manufactured Homes, Recreational Vehicles, Commercial Coaches, Special Purpose Commercial Coaches, Mobile Homes, Mobile Home Parks. Any work within any manufactured home, recreational vehicle, commercial coach, special purpose commercial coach, mobile home or any mobile home park, including accessory buildings, permanent buildings and on-site piping outside of buildings.

SEC. 94.102.0. ORGANIZATION AND ENFORCEMENT.

94.102.1. Authority Having Jurisdiction. The Authority Having Jurisdiction shall be the Authority duly appointed to enforce this Code. For such purposes, the Authority Having Jurisdiction shall have the powers of a law enforcement officer. The Authority Having Jurisdiction shall have the power to render interpretations of this Code and to adopt and enforce rules and regulations supplemental to this Code as deemed necessary in order to clarify the application of the provisions of this Code. Such interpretations, rules, and regulations shall comply with the intent and purpose of this Code.

In accordance with the prescribed procedures and with the approval of the appointing authority, the Authority Having Jurisdiction shall be permitted to appoint such number of technical officers, inspectors, and other employees as shall be authorized from time to time. The Authority Having Jurisdiction shall be permitted to deputize such inspectors or employees as necessary to carry out the functions of the code enforcement agency.

94.102.2. Duties and Powers of the Authority Having Jurisdiction. The Authority Having Jurisdiction shall be permitted to request the assistance and cooperation of other officials of this jurisdiction so far as required in the discharge of the duties in accordance with this Code or other pertinent law or ordinance.

94.102.2.1. Right of Entry. (Amended by Ord. No. 185,198, Eff. 11/22/17.) Where it is necessary to make an inspection to enforce the provisions of this Code, or where the Authority Having Jurisdiction has reasonable cause to believe that there exists in a building or upon a premises a condition or violation of this Code that makes the building or premises unsafe, insanitary, dangerous, or hazardous, the Authority Having Jurisdiction shall be permitted to enter the building or premises at reasonable times to inspect or to perform the duties imposed upon the Authority Having Jurisdiction by this Code, provided that where such building or premises is occupied, the Authority Having Jurisdiction shall present credentials to the occupant and request entry. Where such building or premises is unoccupied, the Authority Having Jurisdiction shall first make a reasonable effort to locate the owner or other person having charge or control of the building or premises and request entry. Where entry is refused, the Authority Having Jurisdiction has recourse to every remedy provided by law to secure entry.

Where the Authority Having Jurisdiction shall have first obtained an inspection warrant or other remedy provided by law to secure entry, no owner, occupant or person having charge, care or control of a building or premises shall fail or neglect, after a request is made as herein provided, to promptly permit entry herein by the Authority Having Jurisdiction for the purpose of inspection and examination pursuant to this Code.

94.102.2.2. Stop Orders. Where work is being done contrary to the provisions of this Code, the Authority Having Jurisdiction shall be permitted to order the work stopped by notice in writing served on persons engaged in the doing or causing such work to be done, and such persons shall forthwith stop work until authorized by the Authority Having Jurisdiction to proceed with the work.

94.102.2.3. Authority to Disconnect Utilities in Emergencies. The Authority Having Jurisdiction shall have the authority to disconnect a plumbing system to a building, structure, or equipment regulated by this Code in case of emergency where necessary to eliminate an immediate hazard to life or property.

94.102.2.4. Authority to Condemn. Where the Authority Having Jurisdiction ascertains that a plumbing system or portion thereof, regulated by this Code, has become hazardous to life, health, or property, or has become insanitary, the Authority Having Jurisdiction shall order in writing that such plumbing either be removed or placed in a safe or sanitary condition. The order shall fix a reasonable time limit for compliance. No person shall use or maintain defective plumbing after receiving such notice.

When such plumbing system is to be disconnected, written notice shall be given. In cases of immediate danger to life or property, such disconnection shall be permitted to be made immediately without such notice.

94.102.3. Appeals. Appeals of orders, decisions, or determinations made by the Authority Having Jurisdiction relative to the application and interpretations of this Code, shall be made to the Los Angeles Department of Building and Safety Board of Building and Safety Commissioners (Board). The Authority Having Jurisdiction shall be an ex-officio member and shall act as secretary to the Board but shall have no vote upon a matter before the Board. Members of the Board shall be appointed and serve pursuant to the City of Los Angeles Charter. The Board shall adopt rules of procedure for conducting its business and shall render decisions and findings in writing to the appellant with a duplicate copy to the Authority Having Jurisdiction.

94.102.3.1. Limitations of Authority. The Board shall have no authority relative to interpretation of the administrative provisions of this Code, nor shall the Board be empowered to waive requirements of this Code.

94.102.4. Violations. It shall be unlawful for a person, firm, or corporation to erect, construct, enlarge, alter, repair, move, improve, remove, convert, demolish, equip, use, or maintain plumbing or permit the same to be done in violation of this Code.

SEC. 94.103.0. PERMITS AND INSPECTIONS.

94.103.1. Permits Required.

94.103.1.1. General. Except as otherwise provided in this Code, no person shall add, alter, construct, install, move, reconstruct, relocate, remove, repair or replace any plumbing, fire sprinkler, rainwater piping, standpipe, subsurface drainage piping, swimming pool piping, reclaimed water piping, underground fire protection piping, or graywater piping system unless a plumbing or fire sprinkler permit for it has been obtained from the Department.

94.103.1.1.1. A permit shall be required where the Department has determined that the gas piping shall be retested for the following:

1. The system has been out of service for a period of one year.
2. Where the Department has determined there is system leakage creating an immediate hazard to persons or property.

94.103.1.1.2. Relocated Buildings. Except as otherwise provided in this Code, no person shall connect any work in a relocated building to a supply pipe or drain pipe unless a permit for all the work in the relocated building has been obtained from the Department.

94.103.1.1.3. Separate Permits Required. A separate plumbing and/or fire sprinkler permit shall be obtained for the work indicated on each building permit.

94.103.1.1.4. No person shall be subject to fine, imprisonment, or payment of an investigation fee for starting or doing work without a permit being first obtained, if a permit is obtained for the work on or before 12:00 noon of the third day the office of the Department is open for public business after the work was started.

94.103.1.1.5. Transfer of Permits and Plan Checks. No permit shall be transferable from the original permittee to any other person unless the property owner authorizes the transfer in writing. Upon authorization, the new permittee shall file with the Department a new permit and pay to the Department a fee as specified in LAMC Section 98.0415 for issuing the new permit. This fee includes the issuing permit fee as specified in LAMC Subsection 94.103.4. No plan check is transferable from one contractor to another unless prepared and signed by a state-licensed engineer in the proper classification.

94.103.1.2. Permits Not Required.

94.103.1.2.1. General. The work described in this subsection shall not require a permit. However this waiver of permit shall not be deemed to allow any work to be added, altered, constructed, demolished, installed, reconstructed, relocated, removed, repaired or replaced contrary to the provisions of this Code.

94.103.1.2.2. General Repairs. No permit shall be required for the repairing or replacement of faucets, ball cocks, exposed fixture traps or shut-off valves, or a residential garbage disposal.

94.103.1.2.3. Stoppages and Leaks. No permit shall be required for the clearing of stoppages or repairing of leaks, except in gas piping, when the repairs do not require the removal and replacement of plumbing fixtures or any portion of the drainage system.

94.103.1.2.4. Gas Piping. No permit shall be required for the installation or repair of a gas utility meter, nor for gas piping between the gas main and the nearest gas utility meter, nor for gas piping installed by the gas utility outside of private property, nor for the gas utility to disconnect defective gas piping and/or equipment when authorized by CPC Section 1206, nor for any piping connection less than six feet (1828.8 mm) in length between an existing gas outlet and a gas appliance in the same room.

94.103.1.2.5. A separate plumbing permit shall not be required for the installation of any plumbing system for which a combined building-mechanical permit has been obtained pursuant to LAMC Subdivision 91.107.2.2.

94.103.1.2.6. No permit shall be required for the capping of a private sewage disposal system where a grading permit is required.

94.103.1.2.7. Water Heater Repair. No permit shall be required for the repair of any gas-fired water heater, provided the water heater is not disconnected.

94.103.1.2.8. Resetting of Fixtures. No permit shall be required for the resetting of existing plumbing fixtures on existing rough-in, which have been removed for the sole purpose of repairing or replacing walls or floors.

94.103.1.2.9. High Efficiency Fixtures.

(a) **Residential.** Whenever new fixtures are installed, all water closets, shower heads, faucets and dishwashers shall be High Efficiency fixtures installed in accordance with the regulations of the City's Water Conservation Plan. A plumbing permit is not required for the installation of High Efficiency water closets, shower heads, faucets and dishwashers in existing one and two family dwelling units when done as part of the City's "**Water Conservation Retrofit Program**" pursuant to the City's water conservation regulations. These permit exempted installations shall be limited to the replacement of non-water efficient water closets, shower heads, faucets and dishwashers with new High Efficiency water closets, shower heads, faucets, and dishwashers installed on the existing rough-in plumbing outlets. Plumbing permits shall be required for all High Efficiency fixtures in new buildings. This section does not waive the requirement for a licensed plumbing contractor to perform the installation of a High Efficiency water fixture in an apartment unit or non-owner-occupied single-family dwellings.

(b) **Commercial.** Whenever new fixtures are installed, all water closets, urinals, shower heads, faucets and dishwashers shall be High Efficiency fixtures installed in accordance with the regulations of the City's Water Conservation Ordinance. A plumbing permit shall be obtained for both new and replacement installations of all

High Efficiency water closets, urinals, and dishwashers to confirm that the new installation or replacement is in accordance with the regulations of the City's Water Conservation Ordinance. In all commercial occupancies, a Qualified Installer, as defined in LAMC Section 94.219.0 shall perform the installation of any High Efficiency water fixture or appliance.

94.103.1.2.10. Rainwater Systems. No permit shall be required for exterior exposed rainwater leaders.

94.103.1.2.11. Exhibition. No permit shall be required for work set up for exhibition or for a television or motion picture set without any direct connection to any system for which a permit is required.

94.103.1.2.12. Certified Licensed Contractors. No permit shall be required for the replacement of the following items when the work is done on a detached, single-family dwelling and the work is performed by a contractor with a valid Certificate of Registration as a certified licensed contractor pursuant to LAMC Subdivision 91.108.12.3:

1. Replacement of defective hot water heaters with one of equivalent gallons, BTU rating, and vent capacity when the vent does not require relocation or replacement.
2. Replacement of plumbing fixtures and solar panels with equal kind and quality.
3. Replacement of defective domestic water piping within a dwelling with piping of equivalent size and quality.
4. Replacement of defective metallic water service piping with piping of equivalent size, quality, and conductivity. Metallic water service piping cannot be replaced with PVC under this provision.
5. Replacement of shower pans with the same size and capacity.

A Certificate of Compliance pursuant to LAMC Subdivision 91.108.12.3 must be filed with the City in lieu of a permit.

94.103.2. Application for Permit. To obtain a permit, the applicant shall first file an application therefor, in writing, on a form furnished by the Authority Having Jurisdiction for that purpose. Such application shall:

1. Identify and describe the work to be covered by the permit for which application is made.
2. Describe the land upon which the proposed work is to be done by legal description, street address, or similar description that will readily identify and definitely locate the proposed building or work.
3. Indicate the use or occupancy for which the proposed work is intended.
4. Be accompanied by plans, diagrams, computations, and other data in accordance with LAMC Subdivision 94.103.2.1.
5. Be signed by the permittee or the permittee's authorized agent. The Authority Having Jurisdiction shall be permitted to require evidence to indicate such authority.
6. Give such other data and information in accordance with the Authority Having Jurisdiction.

94.103.2.1. Plans and Specifications. Plans, engineering calculations, diagrams, and other data shall be submitted in one or more sets with each application for a permit. The Authority Having Jurisdiction shall be permitted to require plans, computations, and specifications to be prepared and the plumbing designed by, an engineer, an architect, or both who shall be licensed by the state to practice as such.

EXCEPTION: The Authority Having Jurisdiction shall be permitted to waive the submission of plans, calculations, or other data where the Authority Having Jurisdiction finds that the nature of the work applied for is such that reviewing of plans is not necessary to obtain compliance within this Code.

94.103.2.2. Information on Plans and Specifications. Plans and specifications shall be drawn to scale upon substantial paper or cloth and shall indicate the location, nature, and extent of the work proposed and show in detail that it is in accordance with the provisions of this Code and relevant laws, ordinances, rules, and regulations.

94.103.3. Permit Issuance. The application, plans, specifications and other data filed by an applicant for a permit shall be reviewed by the Authority Having Jurisdiction. Such plans shall be permitted to be reviewed by other departments of this jurisdiction to verify compliance with applicable laws under their jurisdiction. Where the Authority Having Jurisdiction finds that the work described in an application for permit and the plans, specifications, and other data filed therewith are in accordance with the requirements of this Code and other pertinent laws and ordinances, and that the fees specified in LAMC Subsection 94.103.4 have been paid, the Authority Having Jurisdiction shall issue a permit therefor to the applicant.

Where the Authority Having Jurisdiction issues the permit where plans are required, the Authority Having Jurisdiction shall endorse in writing or stamp the plans and specifications "APPROVED". Such approved plans and specifications shall not be changed, modified, or altered without authorization from the Authority Having Jurisdiction, and the work shall be done in accordance with approved plans.

The Authority Having Jurisdiction shall be permitted to issue a permit for the construction of a part of a plumbing system before the entire plans and specifications for the whole system have been submitted or approved, provided adequate information and detailed statements have been filed in accordance with the pertinent requirements of this Code.

The holder of such a permit shall be permitted to proceed at the holder's risk without assurance that the permit for the entire building, structure, or plumbing system will be granted.

94.103.3.1. Retention of Plans. One set of approved plans, specifications, and computations shall be retained by the Authority Having Jurisdiction until final approval of the work covered therein. One set of approved plans and specifications shall be returned to the applicant and said set shall be kept on the site of the building or work at times during which the work authorized thereby is in progress.

94.103.3.2. Validity of Permit. The issuance of a permit or approval of plans and specifications shall not be construed to be a permit for, or an approval of, a violation of the provisions of this Code or other ordinance of the jurisdiction. No permit presuming to give authority to violate or cancel the provisions of this Code shall be valid.

The issuance of a permit based upon plans, specifications, or other data shall not prevent the Authority Having Jurisdiction from thereafter requiring the correction of errors in said plans, specifications, and other data or from preventing building operations being carried on thereunder where in violation of this Code or other ordinances of this jurisdiction.

94.103.3.3. Expiration of Permits. Permits shall expire as provided for in LAMC Section 98.0602.

94.103.3.4. Suspension or Revocation. Permits may be revoked as provided in LAMC Section 98.0601.

94.103.4. Fees.

94.103.4.1. Permit Fees. Before any permit required by this Code is issued, the applicant shall pay to the Department the fees specified in LAMC Table 103.4 for each building or structure.

TABLE 103.4

PLUMBING PERMIT FEE SCHEDULE

Permit:	Fee
Permit:	Fee
1. For issuing permits:	
a. Permit issuing fee	\$24.00
b. Supplementary permit issuing fee	\$20.00
Plumbing fixtures and water systems:	
2. For each plumbing fixture and waste discharging device, such as, toilet, urinal, bathtub, shower, lavatory, kitchen sink and other type of sink, garbage disposal, clothes washer, drinking fountain, floor drain, laundry tray, floor sink, dental cuspidor and chemical waste fixture:	
a. Original installation	\$23.00
b. Replacement or Removal	\$10.00
3. For each piece of water treating, dispensing equipment or trap primer connected to a potable water system	\$17.00
4. For replacing water piping in a building, each fixture, each water treating device or each water using device	\$14.00
5. For each water pressure regulator	\$17.00
6. For atmospheric-type vacuum breakers not included in Item 2 each	\$7.00
7. For each backflow protective device other than atmospheric-type vacuum breakers, each	\$24.00
8. For each water heater and vent or heat exchanger	\$28.00
9. For each thermal expansion tank	\$15.00
10. For booster pumps for potable water systems (including tanks that are an integral part of the pump package), each system	\$86.00
11. For water storage tanks for potable water systems that are not part of a listed appliance or part of a booster pump package, each tank	\$72.00
12. a. On-site water distribution system (Multiple buildings)	\$194.00
b. Water service (Single building)	\$64.00
Waste systems:	
13. For repair or alteration of drainage and/or vent piping, per fixture	\$10.00
14. For each sewage ejector	\$79.00
15. For each industrial waste, pretreatment clarifier, sand or grease interceptor	\$36.00
16. a. For each complete private sewage disposal system, each system	\$158.00
b. For each separate septic tank, cesspool, seepage pit or drain field	\$64.00
17. For building sewer installations:	
a. For each connection to the public sewer or dry sewer, each building drain	\$40.00
b. For each on-site maintenance hole	\$158.00
c. For sewer alterations, repairing or capping, each building or structure	\$24.00
d. For each backwater valve	\$24.00
18. For graywater piping system; includes a maximum of two inspections	\$79.00
Rainwater systems:	
19. For each rainwater drain (including roof, overflow, area and deck drains, etc.)	\$23.00
20. For each subsurface drainage piping system (not including sump pumps)	\$79.00
21. For each sump pump	\$79.00
Gas systems:	
22. For each gas system outlet	\$10.00
23. For each earthquake valve or each gas pressure regulator (not applicable to appliance regulator)	\$23.00
24. Methane Gas Extraction System: includes a maximum of two inspections	\$121.00
Other plumbing systems:	
25. Lawn sprinklers, each valve	\$7.00
26. Solar systems components: (including collectors, related storage tanks piping and regulating devices)	\$21.00
27. Each public swimming pool or spa (per system)	\$242.00
Fire protection:	
28. Standpipes: wet, dry or combination (Class I, II or III) Class H or hand hoses for fire protection:	
Each outlet that has an integral pressure regulator	\$72.00
Other outlets without pressure regulators	\$50.00
Capping of outlets (each outlet)	\$10.00
29. Water pressure regulators for fire protection systems (except regulators that are part of a standpipe outlet valve), each regulator	\$63.00
30. Fire sprinkler piping removal or alteration, or the replacement or addition of valves, attachments or devices, each	\$61.00

31. Underground fire sprinkler piping, or yard piping system for fire sprinklers (when permit has not been obtained for complete fire sprinkler system)	\$144.00
32. Replacing fire sprinkler heads (except fused or broken heads):	
1 to 10 heads	\$28.00
11 to 50 heads	\$57.00
51 to 100 heads	\$117.00
Plus \$117.00 for each 100 heads or fraction thereof over 100 heads	
33. Fire sprinkler piping installations:	
From 1 to 10 sprinkler heads	\$64.00
From 11 to 25 sprinkler heads	\$122.00
From 26 to 50 sprinkler heads	\$194.00
From 51 to 100 sprinkler heads	\$360.00
From 101 to 200 sprinkler heads	\$547.00
From 201 to 300 sprinkler heads	\$648.00
From 301 to 500 sprinkler heads	\$1,225.00
From 501 to 1,000 sprinkler heads	\$1,730.00
From 1,001 to 2,000 sprinkler heads	\$2,884.00
From 2,001 to 3,000 sprinkler heads	\$4,326.00
From 3,001 to 4,000 sprinkler heads	\$5,047.00
From 4,001 to 5,000 sprinkler heads	\$5,768.00
From 5,001 to 6,000 sprinkler heads	\$6,489.00
Over 6,000 fire sprinkler heads	\$7,931.00
Plus \$144.00 for each 100 heads or fraction of 100 heads over 6,000 heads.	
34. Fire hydrant:	
1 to 3 hydrants	\$348.00
Over 3, each	\$117.00
35. The fee for relocation of heads or for converting a system from upright to pendant heads, or from pendant heads to upright heads, shall be as set forth for a new installation.	
36. Fire pumps:	
Serving Class II (wet) or Class H standpipes:	
For each installation pump	\$115.00
Original test of pump	\$115.00
Additional test of pump	\$115.00
Serving Class III (combination) combined and/or Fire sprinkler systems:	
For each installation of pump	\$288.00
Test of each pump (each test)	\$540.00
37. Tanks for fire protection systems, each tank	\$63.00
38. Class I (dry) standpipe flush:	
One or two risers	\$134.00
Each additional riser	\$80.00
39. Minimum Inspection Fee: A permittee shall pay a minimum fee as specified in LAMC Section 98.0412(a) of this Code to the Department for each plumbing installation for which a permit is required by this Code. Where the cumulative fees set forth in this Code are less than the minimum fee, the minimum fee shall be paid. The fee required by this subsection shall include the issuing fee required by Item 1 of this table.	
a. Minimum inspection fee	\$93.00
b. Single fixtures	\$57.00

94.103.4.2. Plan Check Fees. Before plans are checked, the applicant shall pay the following plan check fees to the Department:

94.103.4.2.1. Plumbing drainage and vent piping, fuel gas piping, gas vents, rainwater piping, subsurface drainage piping and water piping.

All projects:

70% of the permit fee,

\$93.00 minimum per building.

EXCEPTION: Portions of installations:

Plan checking of potable water:

60% of the above fee,

\$93.00 minimum per building.

Plan checking of conventional waste and vent systems, only:

50% of the above fee,

\$93.00 minimum per building.

94.103.4.2.2. In addition to the fee specified in LAMC Paragraph 94.103.4.2.1, a plan checking fee shall be assessed for checking the following systems:

Combination waste and vent piping systems, each	\$216.00
Sump pump and sewage ejector systems, each	\$208.00
Greywater systems, each	\$312.00
Irrigation sprinkler piping systems,	
First 5,000 square feet (464.515 m ²) of irrigated area	\$312.00
Every additional 5,000 square feet (464.515 m ²) or fraction thereof	\$108.00
Soil remediation systems, each	\$216.00
Methane gas venting systems, each	\$216.00
Hydraulic calculations of standpipe systems serving 2-1/2 inch (63.50 mm) fire hose valves and fire sprinklers, each fire protection zone	\$721.00

Fire protection, swimming pool piping and all other systems not covered by LAMC Paragraph 94.103.4.2.1:

70% of the permit fee,

\$93.00 minimum per building.

94.103.4.3. Expiration of Permit and Plan Check. Permits may expire as provided in LAMC Section 98.0602. Plans may expire as provided in LAMC Section 98.0603.

94.103.4.4. Investigation Fees. Investigation Fees may be assessed as provided in LAMC Section 98.0402.

94.103.4.5. Refund of Fees. Refund of fees may be requested as provided in LAMC Section 98.0420.

94.103.4.6. Additional Permit and Inspection Fees.

94.103.4.6.1. Miscellaneous Equipment. A minimum fee as specified in LAMC Section 98.0412(c) shall be paid for inspection of any installation of equipment regulated by this Code which requires inspection for determination of Code compliance and where the installation inspection is not provided for in the permit fee schedule specified in LAMC Subdivision 94.103.4.1. This fee is in addition to the permit issuing fee specified in LAMC Table 103.4.

94.103.4.6.2. Miscellaneous Piping. When special permission has been obtained from the Department, a miscellaneous permit shall be issued for fire sprinkler, fire protection underground, domestic water, waste or vent piping installed underground or in walls or ceilings of installations where a fire protection or a plumbing permit cannot be issued until the required plans have been approved. The miscellaneous permit shall not be an authorization to install any additional piping. A fee as specified in LAMC Section 98.0412(c) shall be collected for the inspection of this installation and shall be limited to one inspection trip and one reinspection trip. This fee is in addition to the permit issuing fee specified in LAMC Table 103.4.

94.103.4.6.3. Additional Inspections. If more inspection trips than specified in this article are found necessary due to fault or error on the part of the qualified installer or the qualified installer's employees, the permittee shall pay an additional fee as specified in LAMC Section 98.0412(b) for each additional inspection trip. This fee is in addition to the permit issuing fee specified in LAMC Table 103.4.

94.103.4.6.4. Off-Hour Inspections. The Department may, at its discretion, make inspections at other than normal working hours upon application by a permittee as specified in LAMC Section 98.0406.

94.103.4.6.5. Off-Site Inspection. The Department may, at its discretion, make inspections at locations other than the site upon which a building will be located, provided the location is within 60 miles of the Los Angeles City Hall. A fee as specified in LAMC Section 98.0412(e), in addition to fees charged elsewhere in this Code, shall be charged for the inspections. The time shall include travel to and from the place of inspections.

94.103.4.6.6. Change of Address and Transfer of Permit or Plan Checks. Applications for plan check and permits shall indicate the correct legal street address. If the Department determines a job address or the location of a job is incorrect, then the permit becomes void. If the applicant files a separate application (showing the correct information) and pays a filing fee as specified in LAMC Section 98.0415(a), then no additional permit fee will be required.

94.103.4.6.7. Critical Soil Survey. The fee for a survey of location for a proposed private sewage disposal system, and/or percolation test, shall be \$92.00. On premises where a public sewer is not available for use, a survey and percolation test may be required to determine if a private sewer disposal system can be installed to adequately serve the intended use.

94.103.4.7. Additional Plan Check Fees.

94.103.4.7.1. Hourly Plan Check Fee. The Department may collect a plan check fee, based on an hourly rate, for any item not included in the plan check schedule as provided in LAMC Section 98.0415(e).

94.103.4.7.2. Off-hour Plan Check Fee. The Department may, at its discretion, provide plan check at other than normal working hours upon application by an applicant as specified in LAMC Section 98.0422.

94.103.4.7.3. Energy Plan Check Fee. The Department shall impose an energy plan check fee of 10% of the permit fee for the service of checking plans when the work is required to comply with Part 6, Title 24, of the California Code of Regulations (California Energy Code).

94.103.4.8. Systems Development Surcharge. A permittee shall pay a surcharge for the development and implementation of a City-wide automated permit processing service as provided in LAMC Section 98.0416.

94.103.4.9. Development Services Centers Surcharge. A permittee shall pay a surcharge as provided in LAMC Section 98.0410.

94.103.5. Inspections. Plumbing systems for which a permit is required by this Code shall be inspected by the Authority Having Jurisdiction.

No portion of a plumbing system shall be concealed until inspected and approved. Neither the Authority Having Jurisdiction nor the jurisdiction shall be liable for expense entailed in the removal or replacement of material required to permit inspection. When the installation of a plumbing system is complete, an additional and final inspection shall be made. Plumbing systems regulated by this Code shall not be connected to the water, the energy fuel supply, or the sewer system until authorized by the Authority Having Jurisdiction.

94.103.5.1. Water Supply System. No water supply system or portion thereof shall be covered or concealed until it first has been tested, inspected, and approved.

94.103.5.2. New Plumbing Work. New plumbing work and such portions of existing systems as affected by new work, or changes, shall be inspected by the Authority Having Jurisdiction to ensure compliance with the requirements of this Code and to ensure that the installation and construction of the plumbing system is in accordance with approved plans.

94.103.5.3. Covering or Using. No plumbing or drainage system, building sewer, private sewer disposal system, or part thereof, shall be covered, concealed, or put into use until it has been tested, inspected, and accepted as prescribed in this Code.

94.103.5.4. Uncovering. Where a drainage or plumbing system, building sewer, private sewage disposal system, or part thereof, which is installed, altered or repaired, is covered or concealed before being inspected, tested and approved as prescribed in this Code, it shall be uncovered for inspection after notice to uncover the work has been issued to the responsible person by the Authority Having Jurisdiction.

94.103.5.5. Operation of Plumbing Equipment. The requirements of this section shall not prohibit the operation of plumbing installed to replace existing equipment or fixtures serving an occupied portion of the building in the event a request for inspection of such equipment or fixture has been filed with the Authority Having Jurisdiction not more than 72 hours after such replacement work is completed, and before a portion of such plumbing system is concealed by a permanent portion of the building.

94.103.5.6. Testing of Systems. Plumbing systems shall be tested and approved in accordance with this Code or the Authority Having Jurisdiction.

94.103.5.6.1. Test. Tests shall be conducted in the presence of the Authority Having Jurisdiction or the Authority Having Jurisdiction's duly appointed representative.

94.103.5.6.2. Test Waived. No test or inspection shall be required where a plumbing system, or part thereof, is set up for exhibition purposes and has no connection with a water or drainage system.

94.103.5.6.3. Exceptions. In cases where it would be impractical to provide the required water or air tests, or for minor installations and repairs, the Authority Having Jurisdiction shall be permitted to make such inspection as deemed advisable in order to be assured that the work has been performed in accordance with the intent of this Code.

94.103.5.6.4. Tightness. Joints and connections in the plumbing system shall be gastight and watertight for the pressures required by the test.

94.103.5.7. Inspection Requests. It shall be the duty of the person doing the work authorized by a permit to notify the Authority Having Jurisdiction that such work is ready for inspection. The Authority Having Jurisdiction shall be permitted to require that a request for inspection be filed not less than one (1) working day before such inspection is desired. Such request shall be in writing or by telephone, at the option of the Authority Having Jurisdiction.

It shall be the duty of the person requesting inspections in accordance with this Code to provide access to and means for inspection of such work.

94.103.5.7.1. Advance Notice. It shall be the duty of the person doing the work authorized by the permit to notify the Authority Having Jurisdiction, orally or in writing, that said work is ready for inspection. Such notification shall be given not less than 24 hours before the work is to be inspected.

94.103.5.7.2. Responsibility. It shall be the duty of the holder of a permit to make sure that the work will stand the test prescribed before giving the notification.

The equipment, material, and labor necessary for inspection or tests shall be furnished by the person to whom the permit is issued or by whom inspection is requested.

94.103.5.7.3. Test Equipment. The equipment, material, and labor necessary for inspection or tests shall be furnished at no cost to the City.

94.103.5.8. Other Inspections. In addition to the inspections required by this Code, the Authority Having Jurisdiction shall be permitted to require other inspections of plumbing work to ascertain compliance with the provisions of this Code and other laws that are enforced by the Authority Having Jurisdiction.

94.103.5.8.1. Defective Systems. An air test shall be used in testing the sanitary condition of the drainage or plumbing system of building premises where there is reason to believe that it has become defective. In buildings or premises condemned by the Authority Having Jurisdiction because of an insanitary condition of the plumbing system, or part thereof, the alterations in such system shall be in accordance with the requirements of this Code.

94.103.5.8.2. Moved Structures. Parts of the plumbing systems of a building or part thereof that is moved from one foundation to another, or from one location to another, shall be completely tested as prescribed elsewhere in this section for new work, except that walls or floors need not be removed during such test where other equivalent means of inspection acceptable to the Authority Having Jurisdiction are provided.

94.103.5.9. Reinspections. A reinspection fee shall be permitted to be assessed for each inspection or reinspection where such portion of work for which inspection is called is not complete or where required corrections have not been made.

This provision is not to be interpreted as requiring reinspection fees the first time a job is rejected for failure to be in accordance with the requirements of this Code, but as controlling the practice of calling for inspections before the job is ready for inspection or reinspection.

Reinspection fees shall be permitted to be assessed where the approved plans are not readily available to the inspector, for failure to provide access on the date for which the inspection is requested, or for deviating from plans requiring the approval of the Authority Having Jurisdiction.

To obtain reinspection, the applicant shall file an application in writing upon a form furnished for that purpose and pay the reinspection fee in accordance with LAMC Table 103.4.

In instances where reinspection fees have been assessed, no additional inspection of the work will be performed until the required fees have been paid.

94.103.5.9.1. Corrections. Notices of correction or violation shall be written by the Authority Having Jurisdiction and shall be permitted to be posted at the site of the work or mailed or delivered to the permittee or the permittee's authorized representative.

Refusal, failure, or neglect to comply with such notice or order within 10 days of receipt, shall be considered a violation of this Code and shall be subject to the penalties set forth elsewhere in this Code for violations.

94.103.5.9.2. Retesting. Where the Authority Having Jurisdiction finds that the work will not pass the test, necessary corrections shall be made, and the work shall be resubmitted for test or inspection.

94.103.5.9.3. Approval. Upon the satisfactory completion and final test of the plumbing system, a certificate of approval shall be issued by the Authority Having Jurisdiction to the permittee on demand.

94.103.6. Connection Approval. No person shall make connections from a source of energy or fuel to a plumbing system or equipment regulated by this Code and for which a permit is required until approved by the Authority Having Jurisdiction.

94.103.6.1. Other Connections. No person shall make a connection from a water-supply line nor connect to a sewer system regulated by this Code and for which a permit is required until approved by the Authority Having Jurisdiction.

94.103.6.2. Temporary Connections. The Authority Having Jurisdiction shall be permitted to authorize temporary connection of the plumbing equipment to the source of energy or fuel for the purpose of testing the equipment.

94.103.7. Unconstitutional. Where a section, subsection, sentence, clause, or phrase of this Code is, for a reason, held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this Code. The legislative body hereby declares that it would have passed this Code, and each section, subsection, sentence, clause, or

phrase thereof, irrespective of the fact that one or more sections, subsections, sentences, clauses, and phrases are declared unconstitutional.

94.103.8. Validity. Where a provision of this Code, or the application thereof to a person or circumstance, is held invalid, the remainder of the Code, or the application of such provision to other persons or circumstances, shall not be affected thereby.

94.103.9. Reserved.

94.103.10. Certificate of Final Inspection.

94.103.10.1. Fees. No Certificate of Final Inspection shall be issued until all fees required by this Code have been paid to the Department.

94.103.10.2. Approval. A Certificate of Final Inspection shall be issued for work that has been inspected and approved, upon demand, provided that no Certificate of Final Inspection for gas piping shall be issued until all required fire sprinklers, standpipes and fire hydrants are approved and ready for use.

94.103.10.3. To Whom Issued. No Certificate for Final Inspection shall be issued to any person, other than the owner of the building, structure, or premises, the person who did the work, or the agent of the owner or person.

94.103.11. Qualified Installer. It is unlawful for any person who is not a Qualified Installer as defined in Division 2, Article 4, Chapter IX of the LAMC to alter, install, or repair any plumbing regulated by this Code, except as provided in LAMC Subdivision 94.103.12.1 and Subsection 94.103.13.0.

94.103.12.0. Maintenance Certificate of Registration.

94.103.12.1. A Maintenance Certificate of Registration as defined in Division 2, Article 4, Chapter IX of the LAMC may be issued to the owner or occupant of specified premises for the sole purpose of adding to, altering, maintaining or repairing existing plumbing only on the premises designated.

94.103.12.2. Issuance. Every applicant who passes the required examination or has in their employ a qualified maintenance supervisor as defined in Division 2, Article 4, Chapter IX of the LAMC who is properly registered with the Department shall be issued a Maintenance Certificate of Registration for specified premises upon payment of a fee.

94.103.12.3. Validity. A Maintenance Certificate of Registration issued to an owner or occupant of premises by virtue of the fact that an employee of that person is registered with the Department as a holder of a valid Certificate of Qualification as a maintenance supervisor shall become invalid when the owner or occupant ceases to have in their employ a certified maintenance supervisor properly registered with the Department.

94.103.12.4. Maintenance Permits. Permits may be issued to the holder of a valid Maintenance Certificate of Registration for the addition to, alteration, maintenance or repair of existing plumbing on premises owned by or under the legal control of the applicant, provided all work authorized by the permit is performed by or is under the direct supervision of the holder of a Certificate of Qualification as a Maintenance Supervisor, registered with the Department for the premises.

94.103.13.0. Certificate of Qualification Required.

94.103.13.1. Scope. No person except a Qualified Installer as defined in Division 2, Article 4, Chapter IX of the LAMC shall supervise or perform the labor of altering, installing or repairing any plumbing regulated by this Code.

EXCEPTION: A person in the employ of a Qualified Installer and who supervises plumbing work shall be required to have a Certificate of Qualification.

94.103.13.1.1. Apprentices and Helpers. No Certificate of Qualification shall be required for an apprentice or helper, as defined in Division 2, Article 4, Chapter IX of the LAMC, who is working under the continuous supervision of a Qualified Installer or journey level plumber. Supervision shall be considered continuous if the Qualified Installer or journey level plumber is not absent for more than one hour continuously nor more than two hours total during any one day. No more than three apprentices or helpers shall be employed for each Qualified Installer or journey level plumber on any lot.

94.103.13.2. Gas Fitting. A person who holds a valid Certificate of Qualification as a journey level gas fitter may perform the labor of gas fitting in the employ of and under the supervision of a Qualified Installer.

94.103.13.3. Maintenance Supervisor. No person shall act as a Maintenance Supervisor unless that person holds a valid Certificate of Qualification in the proper classification issued pursuant to the provisions of this article. No person shall act in the capacity of a Maintenance Supervisor for more than one firm at any one time.

94.103.13.4. Employment. No Qualified Installer, Maintenance Supervisor or any other person shall employ any journey level plumber for the installation of plumbing work covered in this Code unless that journey level plumber holds a valid Certificate of Qualification in the proper classification except by special permission of the Department. No person shall hire or employ an apprentice or helper in violation of any provision of this Code.

94.103.14. Applications.

94.103.14.1. Forms. Application for any certificate shall be made on a form furnished by the Department.

94.103.14.2. Information Necessary. The application shall bear the name and address of the applicant, and if a corporation, the names of the principal officers. The application shall carry other information deemed necessary by the Department.

94.103.14.3. Notarization. The application shall be verified under oath by the applicant.

94.103.14.4. Fees. The application shall be accompanied by the required examination fee as follows:

FEE SCHEDULE

Application	Fees
For application for Certificate of Registration	\$115.00
For Certificate of Qualification issued as a result of examination given by Board of Examiners of Plumbing and Gas Fitters	\$42.00
For Certificate of Qualification issued under a reciprocal licensing agreement (Amended by Ord. No. 179,326, Eff. 12/10/07, Oper. 1/1/08.)	\$42.00

94.103.15. Examinations.

94.103.15.1. Examination Required. Before any person shall be issued a Certificate of Registration or Qualification, the person shall have successfully passed the examination required for the issuance of the Certificate within 90 days preceding the date of issuance.

In lieu of an examination, the Superintendent of Building may accept a valid journey level plumber qualification certificate issued pursuant to an examination by other

organizations or governmental agencies within the County of Los Angeles, provided that the examination shall be, in the opinion of the Department, equivalent in scope and character to the examination for journey level plumbers given by the City. The Department's acceptance of this certificate shall be in writing and renewable every three years.

94.103.15.2. Experience Required. To be eligible for the examination for a Certificate of Registration, the applicant shall have had at least two years' experience as a journey level plumber.

To be eligible for the examination for journey level plumber, the applicant shall have had at least four years' experience as an apprentice or helper.

Special training or education acceptable to the Department may be credited as the equivalent of up to one year of the required experience.

The applicant shall be required to furnish satisfactory evidence of their experience and training.

94.103.15.3. Board of Examiners. Examinations may be conducted by a Board of Examiners composed of three qualified persons appointed by the Superintendent of Building.

The results of every examination shall be subject to the approval of the Superintendent of Building.

Each examiner shall be appointed by the Superintendent of Building. Each Examiner shall serve for a period of two years unless reappointed by the Superintendent.

94.103.15.4. Scope of the Examination. The examination shall, in the judgment of the Department, be designed to fairly determine the ability of the applicant to perform properly the work which the applicant would be authorized to do by the certificate. The examination shall include a written part and may also include the following:

- (1) Practical test as may be required.
- (2) An oral interview as may be required.
- (3) Other tests as may be required by the Department.

94.103.15.5. Rules and Regulations. The Department shall have the authority to establish rules and regulations for the conduct of examinations.

94.103.15.6. Fitness of Applicant. Any applicant for a Certificate may be required to submit satisfactory proof of their fitness to carry out the intent of this Code.

94.103.16. Issuance of Certificate.

94.103.16.1. Certificate of Registration. Every applicant who passes the required examination for a Maintenance Certificate of Registration or who registers with the Department the holder of a valid Certificate of Qualification as a maintenance supervisor shall be issued a Maintenance Certificate of Registration upon the payment of a fee.

94.103.16.2. Certificate of Qualification. Every applicant who passes the required examination for journey level plumber, journey level gas fitter or Maintenance Supervisor shall be issued a Certificate of Qualification upon the payment of a fee.

94.103.16.3. Every Certificate of Registration or Qualification shall be issued only by the Department.

94.103.16.4. Public Utility Corporation. A public utility corporation engaged in the distribution or sale of gas in the City shall be issued, without examination, a Certificate of Registration as Master Gas Fitter upon the payment of a fee as specified in LAMC Section 98.0414(b)1. That public utility corporation shall be subject to this Code with respect to the certifying and examination of journey level gas fitters.

94.103.16.5. Partnership, Firm and Corporation. Upon the payment of a fee as specified in LAMC Section 98.0414(b)1., a partnership firm or corporation may be issued a Certificate of Registration as a Master Gas Fitter. If a person in effective authority and control over all work regulated by Chapter 5 and 12 of the Uniform Plumbing Code has passed the required examination within the time prescribed by LAMC Section 98.0406(a).

94.103.17. Renewal of Certificates.

94.103.17.1. Certificate of Registration. Every Certificate of Registration shall expire three years from the date of issuance. The certificate may be renewed, upon application, within the 30 days following the date of expiration upon the payment of a renewal fee.

94.103.17.2. Certificate of Qualification. Every Certificate of Qualification shall expire three years from the date of issuance. Applications for renewal shall be made within 30 days following the date of expiration.

94.103.17.3. Delinquent Certificates. Expired certificates may be renewed at any time within 12 months following the date of expiration provided that, after the first month, the renewal fee shall be increased by 10% for each month after the first.

After a certificate has been expired for one year, it may not be renewed.

94.103.18. Exhibition of Certificate.

94.103.18.1. All persons having a fixed place of business shall keep their Certificates of Registration posted in some conspicuous portion of their place of business during the time the Certificate of Registration is in force.

94.103.18.2. Every person not having a fixed place of business shall carry their Certificate of Registration at all times while doing any construction or work regulated by this Code.

94.103.18.3. Every journey level plumber shall carry their Certificate of Qualification at all times while doing any construction or work regulated by this Code.

94.103.19. Revocation of Certificate. Any certificate may be suspended or revoked in accordance with the provisions of Article 8, Chapter IX of the LAMC.

94.103.20. Transfer of Certificate. No certificate shall be transferable. A Certificate of Registration issued to a firm or corporation shall be the property of that firm and may be transferred along with the other assets but may not be transferred separately. The dissolution of a firm, partnership, or corporation renders the Certificate of Registration void.

DIVISION 2

DEFINITIONS

(Amended by Ord. No. 182,847, Eff. 1/3/14.)

Section	
94.200.0	Basic Provisions.
94.201.0	General.
94.202.0	Definition of Terms.
94.203.0	A.
94.204.0	B.
94.205.0	C.
94.206.0	D.
94.207.0	E.
94.208.0	F.
94.209.0	G.
94.210.0	H.
94.211.0	I.
94.212.0	J.
94.213.0	K.
94.214.0	L.
94.215.0	M.
94.216.0	N.
94.217.0	O.
94.218.0	P.
94.219.0	Q.
94.220.0	R.
94.221.0	S.
94.222.0	T.
94.223.0	U.
94.224.0	V.
94.225.0	W.
94.226.0	X.
94.227.0	Y.
94.228.0	Z.

SEC. 94.200.0. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 2 of the California Plumbing Code (CPC) is adopted by reference with the following exceptions: CPC Sections 203, 204, 205, 206, 207, 208, 210, 212, 215, 219, 220, and 221 are not adopted and, in lieu, LAMC Sections 94.203.0, 94.204.0, 94.205.0, 94.206.0, 94.207.0, 94.208.0, 94.210.0, 94.212.0, 94.215.0, 94.219.0, 94.220.0, and 94.221.0 are added.

SEC. 94.201.0. GENERAL.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 201.0 of the CPC is adopted by reference.

SEC. 94.202.0. DEFINITION OF TERMS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 202.0 of the CPC is adopted by reference.

SEC. 94.203.0. A.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 203.0 of the CPC is adopted by reference with the following additions and amendments:

Administrative Authority. The Superintendent of Building or an authorized agent.

Applicant. The person signing the application and paying the fees.

Apprentice. A person who is enrolled in an apprenticeship program approved by the Department of Industrial Relations of the State of California.

Authority Having Jurisdiction. The City of Los Angeles Department of Building and Safety. **(Added by Ord. No. 179,326, Eff. 12/10/07, Oper. 1/1/08.)**

SEC. 94.204.0. B.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 204.0 of the CPC is adopted by reference with the following addition:

Board. The Board of Building and Safety Commissioners of the City of Los Angeles.

SEC. 94.205.0. C.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

\ Section 205.0 of the CPC is adopted by reference with the following additions and amendments:

California Plumbing Code (CPC). The 2022 Edition of the California Plumbing Code, also known as Part 5, Title 24 of the California Code of Regulations (CCR), a portion of the California Building Standards Code.

SEC. 94.206.0. D.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 206.0 of the CPC is adopted by reference with the following amendment:

Department. The Department of Building and Safety of the City of Los Angeles.

SEC. 94.207.0. E.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 207.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Equipment. A general term including materials, fittings, devices, appliances, fixtures or apparatus used in connection with installations covered in this Code.

SEC. 94.208.0. F.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 208.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Fire Separation Area. A fire separation area is an area enclosed by construction having a fire-resistive rating of at least one hour with all openings protected by minimum three-fourths-hour self-closing fire assemblies or a water curtain.

SEC. 94.209.0. G.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 209.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Gas, High Pressure. Natural gas pressure in excess of five (5) psig (34.5 kPa) or propane gas pressure in excess of ten (10) psig (68.9 kPa).

Gas, Low Pressure. Pressure less than two (2) psig (13.8 kPa).

Gas, Medium Pressure. Natural gas pressure between two (2) psig (13.8 kPa) and five (5) psig (34.5 kPa) or propane gas pressure between two (2) psig (13.8 kPa) and ten (10) psig (68.9 kPa).

SEC. 94.210.0. H.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 210.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Handwashing Sink. A lavatory for hand and arm washing in commercial food preparation areas. A handwashing sink shall be considered Private or Private Use as defined in this Code.

Health Officer. The person representing the Los Angeles County Health Department.

Helper. A person who is employed full-time by a qualified installer and whose primary duty is to assist a qualified installer or journeylevel plumber in the installation or repair of plumbing systems.

High-Rise Building. A building (over 75 feet high) included within the scope of Section 403 of the California Building Code.

Hot Water Recirculation System. A hot water system that uses the hot water return line and/or supply line connected to a water heater to enable continuous delivery of hot water to fixtures. (Added by Ord. No. 184,248, Eff. 6/6/16.)

Hot Water System. A system that distributes hot water, consisting of a water heater, piping, and related equipment and devices. (Added by Ord. No. 184,248, Eff. 6/6/16.)

SEC. 94.211.0. I.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 211.0 of the CPC is hereby adopted by reference.

SEC. 94.212.0. J.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 212.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Journeylevel Gas Fitter. A person who has a valid Certificate of Qualification as provided in this Code, to perform the labor of gas fitting, when in the employ of and under the supervision of a qualified installer.

Journeylevel Plumber. A person who has a valid Certificate of Qualification, to install, alter, construct or repair any plumbing when in the employ of and under the supervision of a qualified installer.

SEC. 94.213.0. K.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 213.0 of the CPC is hereby adopted by reference.

SEC. 94.214.0. L.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 214.0 of the CPC is hereby adopted by reference.

SEC. 94.215.0. M.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 215.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Maintenance Certificate of Registration. A certificate issued to the owner or occupant of specified premises for the sole purpose of adding to, altering, maintaining or repairing existing plumbing, only on the premises specified.

Maintenance Supervisor. A person holding a valid Certificate of Qualification as a maintenance supervisor and who is in the employ of a person holding a valid Maintenance Certificate of Registration.

SEC. 94.216.0. N.

Section 216 of the CPC is hereby adopted by reference.

SEC. 94.217.0. O.

Section 217 of the CPC is hereby adopted by reference.

SEC. 94.218.0. P.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section 218 of the CPC is hereby adopted by reference.

SEC. 94.219.0. Q.

(Amended by Ord. No. 174,826, Eff. 11/2/02, Oper. 11/1/02.)

Section 219 of the CPC is adopted by reference with the following additions and amendments.

Qualified Installer. A qualified installer is:

- (a) A person who holds a valid contractor's license in the proper classification issued by the State of California; or
- (b) A person who holds a valid Maintenance Certificate of Registration issued pursuant to the provisions of this Code; or
- (c) A person who is the owner of a single- family dwelling and has demonstrated to the satisfaction of the Department their qualifications to satisfactorily perform plumbing work in the dwelling which is occupied by the owner, and their accessory buildings, provided that all of the following conditions are met:
 - 1. The work is performed prior to sale of the dwelling.
 - 2. The homeowner has actually resided in the residence for the 12 months prior to completion of the work.
 - 3. The homeowner has not availed themselves of this exemption on more than two structures during any three-year period; or
- (d) A person who is employed by a governmental agency that is required to comply with the provisions of this Code, and who is qualified, as determined by the Department, to supervise or control any work regulated by this Code.

SEC. 94.220.0. R.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 220.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Rainwater Drains. Drains that serve roofs or other drains for the purpose of conveying rainwater. This definition does not include emergency drains, site drains or subsurface drains.

SEC. 94.221.0. S.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 221.0 of the CPC is hereby adopted by reference with the following additions and amendments:

Self-Closing Faucet. A faucet designed to close itself as the activating mechanism is released.

Smart Hot Water Recirculation System. A hot water recirculation system that is capable of monitoring and recording hot water usage patterns for optimal pump activation. **(Added by Ord. No. 184,248, Eff. 6/6/16.)**

SEC. 94.222.0. T.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 222.0 of the CPC is hereby adopted by reference.

SEC. 94.223.0. U.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 223.0 of the CPC is hereby adopted by reference.

SEC. 94.224.0. V.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 224.0 of the CPC is hereby adopted by reference.

SEC. 94.225.0. W.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 225.0 of the CPC is hereby adopted by reference.

SEC. 94.226.0. X.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 226.0 of the CPC is hereby adopted by reference.

SEC. 94.227.0. Y.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 227.0 of the CPC is hereby adopted by reference.

SEC. 94.228.0. Z.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 228.0 of the CPC is hereby adopted by reference.

DIVISION 3

GENERAL REGULATIONS

Section
94.300.0 Basic Provisions.

SEC. 94.300.0. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 3 of the CPC is adopted by reference.

DIVISION 4

PLUMBING FIXTURES AND FIXTURE FITTINGS

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
94.400.0 Basic Provisions.

SEC. 94.400.0. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 4 of the CPC is adopted by reference except CPC Sections 412.1 and 412.1.2 are not adopted, and LAMC Subsections 94.407.2.4, 94.412.1, 94.412.1.2, 94.414.4, and 94.414.5 are amended or added to read as follows:

94.407.2.4. All faucets in public restrooms shall be self-closing or self-closing metering faucets. Metered faucets shall deliver a maximum of 0.20 gallons (0.76 L) per metering cycle.

94.412.1. Application. Urinals shall comply with ASME A112.19.2/CSA B45.1, ASME A112.19.19, or CSA B45/1APMO Z124. Wall-mounted urinals shall have an average water consumption not to exceed 0.125 gallons (0.47 L) per flush. Other urinals shall have an average water consumption not to exceed 0.125 gallons (0.47 L) per flush.

94.412.1.2. Floor-Mounted Urinals. [BSC-CG, DSA-SS, DSA-SS/CC]. The effective flush volume of floor-mounted or other urinals shall not exceed 0.125 gallons (0.47 L) per flush in compliance with Chapter 5, Division 5.3, of the California Green Buildings Standards Code (CAL Green).

94.414.4. Commercial Dishwashers. Water use for commercial dishwashers shall meet the following requirements:

Type	High-Temperature Maximum Gallons Per Rack	Chemical Maximum Gallons Per Rack
Conveyer	0.7	0.62
Door	0.95	1.16
Under-counter	0.9	0.98
Note: All installed dishwashers shall be Energy Star® rated		

94.414.5. Domestic Dishwashers. The maximum water use per washing cycle for domestic dishwasher shall be 5.8 gallons (21.95L).

DIVISION 5

WATER HEATERS

Section
94.500.0 Basic Provisions.

SEC. 94.500.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 5 of the CPC is adopted by reference.

DIVISION 6

WATER SUPPLY AND DISTRIBUTION

Section
94.600.0 Basic Provisions.

SEC. 94.600.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 6 of the CPC is adopted by reference with the following exceptions: CPC Sections 603.5.12 and 610.5 are not adopted and Los Angeles Municipal Code Subsections 94.603.5.12, 94.610.4.1, 94.610.4.1.1, 94.610.4.1.2, 94.610.4.1.3, and 94.610.5 are added.

94.603.5.12. Beverage Dispensers. Potable water supply to carbonated beverage dispensers shall be protected by an air gap or vented backflow preventer that complies with ASSE 1022. For carbonated beverage dispensers, piping material installed downstream of the backflow preventer shall not be affected by carbon dioxide gas. Potable water supply to non-carbonated beverage dispensers, such as ice makers and coffee machines, shall be protected by an air gap or dual check backflow preventer that comply with ASSE 1032 or ASSE 1024.

94.610.4.1. Hot Water Delivery. Hot water systems shall comply with LAMC Subdivisions 94.610.4.1.1, 94.610.4.1.2 or 94.610.4.1.3.

EXCEPTIONS:

1. Multi-family buildings where each unit is submetered and where the building has a central hot water heating system.
2. Additions that are supplied by any portion of the existing water heating system.
3. Alterations that do not include replacing all of the potable water piping.

94.610.4.1.1. The hot water system shall not allow more than 0.6 gallons of water to be delivered to any fixture before hot water arrives.

94.610.4.1.2. Where a hot water recirculation or electric resistance heat trace wire system is installed, the branch from the recirculating loop or electric resistance heat trace wire to the fixture shall contain a maximum of 0.6 gallons. Hot water recirculation systems may include, but are not limited to, the following:

1. Timer-initiated systems.
2. Temperature sensor-initiated systems.
3. Occupancy sensor-initiated systems.
4. Smart hot water recirculation systems.
5. Other systems acceptable to the Department.

94.610.4.1.3. Residential units having individual water heaters shall have a compact hot water system that meets all of the following:

1. The hot water supply piping from the water heater to the fixtures shall take the most direct path;
2. The total developed length of pipe from the water heater to the farthest fixture shall not exceed the distances specified in Table 3.6.5 of the 2019 California Energy Code Residential Appendix; and

3. The hot water supply piping shall be installed and insulated in accordance with Section RA3.6.2 of the 2019 California Energy Code Residential Appendix.

94.610.5. Sizing Per Appendix A. Except as provided in CPC Section 610.4, the size of each water piping system shall be determined in accordance with the procedure set forth in Appendix A.

DIVISION 7

SANITARY DRAINAGE

Section
94.700.0 Basic Provisions.

SEC. 94.700.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 7 of the CPC is adopted by reference.

DIVISION 8

INDIRECT WASTES

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
94.800.0 Basic Provisions.

SEC. 94.800.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 8 of the CPC is adopted by reference.

DIVISION 9

VENTS

Section
94.900.0 Basic Provisions.

SEC. 94.900.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 9 of the CPC is adopted by reference.

DIVISION 10

TRAPS AND INTERCEPTORS

Section
94.1000.0 General.

SEC. 94.1000.0. GENERAL.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 10 of the CPC is adopted by reference.

DIVISION 11

STORM DRAINAGE

SEC. 94.1100.0. BASIC PROVISIONS.
(Amended by Ord. No. 188,739, Eff. 9/23/25.)

Chapter 11 of the CPC is adopted by reference with the following exceptions: CPC Sections 1101.12.2.2, 1101.12.2.2.2, and 1101.14 are not adopted and, in lieu, LAMC Subsections 94.1101.12.2.2, and 94.1101.14 are added.

94.1101.12.2.2. Secondary Roof Drain. Secondary roof drains shall be provided. The secondary roof drains shall be located not less than 2 inches (50.8 mm) above the roof surface. The maximum height of the roof drains shall be a height to prevent the depth of ponding water from exceeding that for which the roof was designed as determined by CPC Section 1101.12.1. The secondary roof drains shall connect to a piping system in accordance with CPC Section 1101.12.2.2.1.

94.1101.14. Rainwater Sumps. All rain water shall drain by gravity to a place of disposal satisfactory to the Department. If the rainwater cannot be drained by gravity, discharge into a sump may be permitted. Rainwater sumps serving "public use" occupancy buildings shall be provided with dual pumps arranged to function alternatively in case of overload or mechanical failure. Pumps rated 600 V or less shall comply with UL 778 and shall be installed in accordance with the manufacturer's installation instructions.

DIVISION 12

FUEL GAS PIPING

SEC. 94.1200.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 12 of the CPC is adopted by reference and LAMC Section 94.1217.0 is added.

SEC. 94.1217.0. SEISMIC GAS SHUTOFF VALVES.
(Amended by Ord. No. 182,847, Eff. 1/3/14.)

94.1217.1. Definitions. For purposes of this section, certain terms shall be defined as follows:

Downstream of the Gas Utility Meter shall refer to all customer owned gas piping, downstream of the bypass valve, as specified by the public gas utility company.

Excess Flow Shutoff Valve shall mean a shutoff system activated by significant gas leaks or overpressure surges downstream of the valves.

Residential Building shall mean any single-family dwelling, duplex, apartment building, condominium, townhouse, lodging house, congregate residence, hotel or motel.

Seismic Gas Shutoff Valve shall mean a system consisting of a seismic sensing means and actuating means designed to automatically actuate a companion gas shutoff means installed in a gas piping system in order to shutoff the gas downstream of the location of the gas shutoff means in the event of a severe seismic disturbance. The system may consist of separable components or may incorporate all functions in a single body. The terms "Seismically Activated Gas Shutoff Valves" and "Earthquake Sensitive Gas Shutoff Valves" are synonymous.

Upstream of the Gas Utility Meter shall refer to all gas piping installed by the utility up to and including the meter and the utility's bypass tee at the connection to the customer owned piping.

94.1217.2. Scope. An approved seismic gas shutoff valve or excess flow shutoff valve shall be installed downstream of the gas utility meter on each fuel gas line where the gas line serves the following buildings or structures:

94.1217.2.1. A building or structure containing fuel gas piping for which a building permit was first issued on or after September 1, 1995.

94.1217.2.2. An existing building or structure which is altered or added to; and

94.1217.2.2.1. That building or structure has fuel gas piping supplying the existing building or structure or the addition to the building or structure; and

94.1217.2.2.2. The alteration or addition is valued at more than \$10,000 and a building permit for the work in commercial buildings was first issued on or after September 1, 1995. Alterations or additions to individual units or tenant spaces shall require a seismic gas shutoff valve or excess flow shutoff valve to be installed for all gas piping serving that individual unit or tenant space; or

94.1217.2.2.3. The alteration or addition is valued at more than \$10,000 and a building permit for the work in residential buildings, including condominium units, is first issued on or after January 10, 1998. Alterations or additions to an individual condominium unit shall require a seismic gas shutoff valve or excess flow shutoff valve to be installed for all gas piping serving that individual condominium unit; or

94.1217.2.2.4. The alteration or addition is to the fuel gas piping system and involves the alteration or replacement of the gas meter.

94.1217.2.3. Prior to entering into an agreement of sale, or prior to the close of escrow when an escrow agreement has been executed in connection with the sale,

1. Buildings or structures which contain fuel gas piping shall have a seismic gas shutoff valve or excess flow shutoff valve installed.
2. The sale of an individual condominium unit in a building shall require the installation of a seismic gas shutoff valve or excess flow shutoff valve for all gas piping serving that individual unit.

EXCEPTIONS:

- (a) Seismic gas shutoff valves or excess flow shutoff valve may be installed upstream of a gas utility meter provided they meet the requirements of this section.
- (b) Seismic gas shutoff valves or excess flow shutoff valve installed on a building or structure prior to September 1, 1995, are exempt from the requirements of this section provided they remain installed on the building or structure and are maintained for the life of the building or structure.
- (c) Notwithstanding LAMC Subdivisions 94.1217.2.1, 94.1217.2.2 and 94.1217.2.3 above, these provisions shall not apply to a building or structure if the Department determines that a building or structure satisfies all three of the following criteria: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
 - (i) That the building or structure is owned, operated, and maintained by a governmental entity or public utility; or that the building or structure is owned by a private concern and provides a public benefit, such as a co-generation facility which shares its excess power with a public utility or with a large industrial facility which has governmental contracts;
 - (ii) That the building or structure has available 24-hour, year round maintenance staffing; and
 - (iii) That the gas piping system contained in the building or structure is designed to withstand seismic effects of earthquakes.
- (d) A single seismic gas shutoff valve or excess flow shutoff valve may be installed upstream of the gas utility meter at the discretion of the gas utility.

94.1217.3. General Requirements. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Seismic gas shutoff valves or excess flow shutoff valves installed either in compliance with LAMC Subsection 94.1217.2, *et seq.*, or voluntarily with a permit issued on or after September 1, 1995, shall comply with the following requirements:

94.1217.3.1. Seismic gas shutoff valves or excess flow shutoff valve shall be installed by a contractor licensed in the appropriate classification by the State of California.

EXCEPTIONS:

- (a) A person who has been determined by the Department to meet the qualifications of a Qualified Installer pursuant to the definition of a Qualified Installer set forth in Article 4, Chapter IX of the LAMC may install a seismic gas shutoff valve or excess flow shutoff valve to a single-family dwelling which is or is intended to be occupied by the Qualified Installer. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- (b) Seismic gas shutoff valves or excess flow shutoff valve may be installed, without a permit, by a gas utility or a contractor authorized by the gas utility when the valves are installed upstream of the gas utility meter and the valves are installed and approved in accordance with this section.

94.1217.3.2. Seismic gas shutoff valves or excess flow shutoff valve shall be mounted rigidly to the exterior, or other approved location, of the building or structure containing the fuel gas piping.

EXCEPTION: If the Department determines that the seismic gas shutoff valve or excess flow shutoff valve has been tested and listed for an alternate method of installation, then a seismic gas shutoff valve or excess flow shutoff valve need not be mounted rigidly to the exterior of the building or structure containing the fuel gas piping.

94.1217.3.3. Be certified by the Office of the State Architect.

94.1217.3.4. Be approved by the Department of Building and Safety, Mechanical Testing Laboratory.

94.1217.3.5. Have a thirty (30) year warranty which warrants that the valve is free from defects and will continue to properly operate for thirty (30) years from the date of installation.

94.1217.3.6. Where seismic gas shutoff valves or excess flow shutoff valve are installed as required by this section, they shall be maintained for the life of the building or structure or be replaced with a valve complying with the requirements of this section.

94.1217.3.7. Seismic gas shutoff valves must be in compliance with all requirements of California Referenced Standard 12-16-1, at Part 12, Title 24, of the California Code of Regulations (CCR). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

94.1217.3.8. Excess flow shutoff valves must be in compliance with all requirements of California Referenced Standard 12-16-2. (Part 12, Title 24, of the CCR). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

DIVISION 13

HEALTH CARE FACILITIES AND MEDICAL GAS AND VACUUM SYSTEMS

Section
94.1300.0 Basic Provisions.

SEC. 94.1300.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)
Chapter 13 of the CPC is not adopted.

DIVISION 14

FIRESTOP PROTECTION

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
94.1400.0 Basic Provisions.

SEC. 94.1400.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 14 of the CPC is not adopted.

DIVISION 15

ALTERNATE WATER SOURCES FOR NONPOTABLE APPLICATIONS

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
94.1500.0 General.

SEC. 94.1500.0. GENERAL.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 15 of the CPC is adopted by reference.

DIVISION 16

NONPOTABLE RAINWATER CATCHMENT SYSTEMS

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
94.1600.0 Basic Provisions.

SEC. 94.1600.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 16 of the CPC is adopted by reference.

DIVISION 16A

NONPOTABLE WATER REUSE SYSTEMS

(Added by Ord. No. 184,692, Eff. 12/30/16.)

SEC. 94.1600A.0. BASIC PROVISIONS.
(Repealed by Ord. No. 186,488, Eff. 12/27/19.)

DIVISION 17

REFERENCED STANDARDS

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
94.1700.0 Basic Provisions.

SEC. 94.1700.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 17 of the CPC is adopted by reference.

DIVISION 18

UNIFORM SOLAR ENERGY AND HYDRONICS CODE

Section
94.1800.0 Basic Provisions.

SEC. 94.1800.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

The 2021 Uniform Solar Energy, Hydronics, and Geothermal code is adopted by reference, except Chapters 1, 8, and the Appendices are not adopted.

DIVISION 19

UNIFORM SWIMMING POOL, SPA AND HOT TUB CODE

Section
94.1900.0 Basic Provisions.

SEC. 94.1900.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

The 2021 Uniform Swimming Pool, Spa, and Hot Tub Code is adopted by reference, except Chapters 1, 3, 4, 8, and 9 are not adopted.

DIVISION 20

FIRE PROTECTION SYSTEMS

(Division amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
94.2000.0 General.
94.2001.0 Scope.
94.2005.0 Location.
94.2006.0 [Protection from Mechanical Damage.]
94.2010.0 NFPA 13.
94.2013.0 NFPA 13R.
94.2014.0 NFPA 13D.
94.2020.0 NFPA 14.
94.2030.0 NFPA 20 Fire Pump and Drivers.
94.2040.0 NFPA 24 Installation of Private Fire Service Mains and Their Appurtenances.
94.2050.0 NFPA 22 Fire Protection Tanks.

SEC. 94.2000.0. GENERAL.

SEC. 94.2001.0. SCOPE.
(Added by Ord. No. 185,198, Eff. 11/22/17.)

The standards of this Division 20 provide the minimum requirements for the design and installation of automatic fire protection systems. The design of all fire protection systems shall be in conformity with accepted engineering practices and the provisions of the LAMC.

Automatic fire sprinkler systems shall be installed in locations required by the Los Angeles Building Code, and all fire sprinkler systems shall be in conformance with the approved plans and the LAMC.

SEC. 94.2005.0. LOCATION.

No fire protection system shall be located on any lot other than the lot that is the site of the building, structure or premises served by that system.

SEC. 94.2006.0. [PROTECTION FROM MECHANICAL DAMAGE.]

All fire-protection equipment and piping shall be adequately protected from mechanical damage.

SEC. 94.2010.0. NFPA 13.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 35 of the 2022 California Building Code to the extent it adopts and amends NFPA 13 is adopted by reference and the following Subsections are added to read as follows:

94.2010.1. Comply with the sprinkler provisions in Chapters 4 and 9 of the 2022 California Building Code as they pertain to sprinkler systems.

94.2010.2. NFPA 13 Section 3.3.243 is added to read as follows:

3.3.243. Water Curtain is a line of closely spaced fire sprinklers (or a single sprinkler) aligned adjacent to openings to keep fire from penetrating those openings.

94.2010.3. NFPA 13 Section 9.3.5.5 is added to read as follows:

9.3.5.5. Water curtains shall consist of closely spaced sprinklers and draft stops that are made of noncombustible or limited combustible material. The draft stops shall be located immediately adjacent to the opening and shall be at least 18 inches (47.2 mm) deep measured from the sprinkler deflector to the bottom of the draft stop and shall be of noncombustible or limited-combustible material. Sprinklers shall be spaced not more than 6 feet (1929.8 mm) apart and placed 6 to 12 inches (152.4 mm to 304.8 mm) from the draft stop on the side away from the opening. Where sprinklers are closer than 6 feet (1828.8 mm), cross baffles shall be provided in accordance with NFPA 13 Section 10.2.5.4.2.

94.2010.4. NFPA 13 Section 16.9.10.5 is added to read as follows:

Locations. Floor control valves shall be within a stairway enclosure or within the vestibule or on the access balcony of a smoke proof enclosure.

EXCEPTIONS:

1. In buildings with three or fewer stories or where there is no stairway that serves a floor, control valves may be located elsewhere on the floor level.
2. Unenclosed stairways in parking garages.

94.2010.5. NFPA 13 Section 19.3.3.6 is added to read as follows:

19.3.3.6. Water curtains shall be hydraulically calculated in accordance with NFPA 13 Section 19.3.

SEC. 94.2013.0. NFPA 13R.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 35 of the 2022 California Building Code to the extent it adopts and amends NFPA 13R is adopted by reference and LAMC Subsection 94.2013.1 is added to read as follows:

94.2013.1. Comply with the sprinkler provisions in Chapters 4 and 9 of the 2022 California Building Code as they pertain to NFPA 13R.

SEC. 94.2014.0. NFPA 13D.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 35 of the 2022 California Building Code to the extent it adopts and amends NFPA 13D is adopted by reference and LAMC Subsection 94.2014.1 is added to read as follows:

94.2014.1. Comply with the sprinkler provisions in Chapters 4 and 9 of the 2022 California Building Code as they pertain to sprinkler systems in residential occupancies within the scope of NFPA 13D.

SEC. 94.2020.0. NFPA 14.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 35 of the 2022 California Building Code to the extent it adopts and amends NFPA 20 is adopted by reference and the following Los Angeles Municipal Code subsections are added to read as follows:

94.2020.1. Comply with the fire sprinkler provisions in Chapters 4, 9, and 33 of the 2022 California Building Code as they pertain to NFPA 14.

94.2020.2. NFPA 14 Section 6.4.5.3.1 is hereby added to read as follows:

6.4.5.3.1. Where the Fire Department inlet connection does not serve the entire building, the portion served shall be suitably identified.

94.2020.3. NFPA 14 Section 9.1.5 is hereby added to read as follows:

9.1.5. Water supplies from the following sources shall be permitted:

1. A public waterworks system where pressure and flow rate are adequate;
2. Automatic fire pumps connected to an approved water source in accordance with NFPA 20, Standard for the Installation of Stationary Pumps for Fire Protection.

94.2020.4. Pressure Regulator Hose Valve Test.

94.2020.4.1. Test Required. When required by the Fire Department, 2 1/2 inch (63.5 mm) pressure regulator hose valves installed on standpipe outlets shall be tested for proper operation at a flow of 300 g.p.m. with a minimum residual pressure of 125 psi in the presence of a representative of the Fire Department.

94.2020.4.2. Safety. Test nozzles and other equipment shall be adequately secured so as to eliminate danger to personnel.

94.2020.4.3. Opening. An accessible 2 1/2 inch (63.5 mm) capped or plugged test opening shall be installed adjacent to each pressure regulator valve.

94.2020.4.4. Drain. The test openings shall drain to a minimum 3 inch (76.2 mm) drain line constructed and installed as required for fire sprinkler drains. The drains shall not discharge where they may cause damage. Where available, drains shall terminate to the fire water storage tank. When test openings are located below tank elevation alternate means for testing and drainage shall be provided as needed.

94.2020.4.5. Interconnection. The test drain shall either be separate or connect to a fire sprinkler drain. Low point Auxiliary drains shall be added if required.

94.2020.5. NFPA 14 Section 11.2.3 is amended to read as follows:

11.2.3. Flushing the System Riser. Water shall flow from the topmost outlet of each riser until the system is clear of debris.

11.2.3.1. Roof Outlets. Standpipe risers going through the last floor of the building, through a floor under a roof, or adjacent to a roof shall be designed so that they can be flushed through outlets located on roof.

11.2.3.2. Flow. All standpipes shall be flushed individually through the roof, or in the absence of roof outlets, through the topmost outlet at a residual pressure of at least 65 psi. The flow for Class I and Class III standpipes shall be at least 500 g.p.m through each riser.

SEC. 94.2030.0. FIRE PUMPS AND DRIVERS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 35 of the 2022 California Building Code to the extent it adopts and amends NFPA 20 is adopted by reference and Los Angeles Municipal Code Subsections 94.2030.1, 94.2030.2, and 94.2030.3 are amended or added to read as follows:

94.2030.1. Comply with the fire pump provisions in Chapters 4 and 9 of the 2022 California Building Code.

94.2030.2. NFPA 20 Sec. 3.16.11 is added to read as follows:

3.16.11. Fire Department Connections. Fire Department connections shall not be connected to on suction side of the pump.

94.2030.3. The discharge from the test header shall terminate to the fire storage tank when available and shall be readily accessible for testing and maintenance.

SEC. 94.2040.0. NFPA 24 INSTALLATION OF PRIVATE FIRE SERVICE MAINS AND THEIR APPURTENANCES.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 35 of the 2022 California Building Code to the extent it adopts and amends NFPA 24 is adopted by reference.

94.2040.1. Comply with the provisions in Chapter 9 of the 2022 California Building Code as it pertains to the installation of private fire service mains and their appurtenances.

SEC. 94.2050.0. NFPA 22 FIRE PROTECTION TANKS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 35 of the 2022 California Building Code to the extent it adopts and amends NFPA 22 is adopted by reference.

94.2050.1. Comply with the fire tank provisions in Chapters 4 and 9 of the California Building Code as it pertains to NFPA 22.

94.2050.2. Water Tanks in High-Rise Buildings.

1. One or more water tanks shall be installed to serve the fire sprinklers and standpipes in a high-rise building. No tanks shall serve more than one building, however, one water service may supply tanks for more than one building, structure or tower.

2. The tank shall be supplied from the City water main via an automatic fill line. The auto-fill system shall be sized to replenish the water in the tank at a rate equal to, or greater than, the required fire pump capacity. The auto-fill lines shall be a minimum of two inches in diameter and shall not exceed a maximum of four inlets into the tank. The auto-fill system bypass shall be provided around all fill lines with a shut off valve that is normally closed. Means shall be provided to flow test the automatic fill valves individually and collectively. A minimum 2 inches tank auxiliary drain valve shall be required for all water storage tanks to accommodate testing.

3. The capacity of the tank shall be based on the required standpipe demand capacity for the duration as specified in Table 19.2.3.1.2 of NFPA 13 or the requirements in Section 403.3.3 of the 2022 California Building Code, whichever is greater.

DIVISION 21

APPENDICES

Section
94.2100.0 Basic Provisions.

SEC. 94.2100.0. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Appendices B, D, H, I, and J of the 2022 California Plumbing Code are adopted by reference. Appendices C, E, F, G, K, L, M, and N of the 2022 California Plumbing Code are not adopted, and Appendix A of the 2022 California Plumbing Code is adopted by reference with the following amendment:

A 104.1. Residual Pressures. Decide what is the desirable minimum residual pressure that shall be maintained at the highest fixture in the supply system. The available residual pressure shall be not less than 15 psi (103 kPa). Where fixtures, fixture fittings or both are installed that require residual pressure exceeding 15 psi (103 kPa), that minimum residual pressure shall be provided.

ARTICLE 5

MECHANICAL CODE

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

1	Administration
2	Definitions
3	General Requirements
4	Ventilation Air
5	Exhaust Systems
6	Duct Systems
7	Combustion Air
8	Chimneys and Vents
9	Installation of Specific Appliances
10	Boilers and Pressure Vessels
11	Refrigeration
12	Hydronics
13	Fuel Gas Piping
14	Process Piping
15	Solar Energy Systems
16	Stationary Power Plants
17	Referenced Standards
18	Appendices

DIVISION 1

ADMINISTRATION

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

Section

Part I – General

- 95.100 Basic Provisions.
- 95.101 Title, Scope, and General.
- 95.102 Application to Existing Mechanical Systems.
- 95.103 Alternate Materials and Methods of Construction.
- 95.104 Modifications.
- 95.105 Testing.

Part II – Organization and Enforcement

- 95.106 Powers and Duties of the Department.
- 95.107 Unsafe Equipment.
- 95.108 Appeals.
- 95.109 Prohibited Acts.

Part III – Permits and Inspections

- 95.111 Permits.
- 95.112 Application for Permit.
- 95.113 Permit Issuance.
- 95.114 Permit Fees.
- 95.115 Inspections.
- 95.116 Connection Approval.
- 95.117 Unconstitutional.
- 95.118 Validity.
- 95.119 Registration.

PART I

GENERAL

SEC. 95.100. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 1 of the California Mechanical Code (CMC) is not adopted.

SEC. 95.101. TITLE, SCOPE, AND GENERAL.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

95.101.1. Title. (Amended by Ord. No. 187,719, Eff. 1/23/23.) This article is a portion of the Los Angeles Municipal Code and shall be known as the Los Angeles Mechanical Code. Whenever the word Code is used in this article, it shall mean the Los Angeles Mechanical Code.

The Los Angeles Mechanical Code adopts by indicated reference portions of the 2022 California Mechanical Code (CMC) which is Part 4 of Title 24 of the California Code of Regulations (CCR).

95.101.2. Purpose. The purpose of this article is to safeguard life, health, property and public welfare by regulating the design, construction, installation, alteration, repair, quality of materials, location, operation and maintenance of heating, ventilating, air-conditioning and refrigeration equipment and other miscellaneous heat-producing appliances installed in the City. The provisions of this Code are not intended to apply to equipment installed on railroad cars, motor vehicles, aircraft or on shipboards that are not used as permanent occupancies for longer than six months.

95.101.3. Scope. The provisions of this Code shall apply to the addition to or erection, installation, alteration, repair, relocation, replacement, use, or maintenance of heating, ventilation, cooling, refrigeration systems; incinerators; or other miscellaneous heat-producing appliances within this jurisdiction.

Additions, alterations, repairs to, and replacement of equipment or systems shall be in accordance with the provisions for new equipment and systems, except as otherwise provided in LAMC Section 95.102.0.

95.101.3.1. Conflicts. Where, in a specific case, different sections of this Code or referenced standards specify different materials, methods of construction, or other requirements, the most restrictive shall govern as determined by the Authority Having Jurisdiction. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall prevail. [OSHDP 1, 2, 3 & 4]

95.101.3.1.1. Conflicts Between Codes. Where the requirements within the jurisdiction of this Mechanical Code conflict with the requirements of the Plumbing Code, the Plumbing Code shall prevail.

95.101.3.2. Design and Testing. The design and testing of equipment regulated by this Code shall be subject to the approval of the Authority Having Jurisdiction.

95.101.3.3. Appendices. The provisions in the appendices are intended to supplement the requirements of this Code and shall not be considered part of this Code unless formally adopted as such.

SEC. 95.102. APPLICATION TO EXISTING MECHANICAL SYSTEMS.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Sections 104.0 through 104.4 of Chapter 1, Division II of the CMC are adopted by reference, Section 104.5 of Chapter 1, Division II of the CMC is not adopted, and in lieu thereof, Section 95.102.5 of this Code shall apply.

95.102.1. Additions, alterations, or Repairs. Additions, alterations, or repairs shall be permitted to be made to a mechanical system without requiring the existing mechanical system to be in accordance with the requirements of this Code, provided the addition, alteration, or repair is in accordance with that required for a new mechanical system. Additions, alterations, or repairs shall not cause an existing system to become unsafe or create unhealthy or overloaded conditions.

Minor additions, alterations, and repairs to existing mechanical systems shall be permitted to be installed in accordance with the law in effect at the time the original installation was made, where approved by the Authority Having Jurisdiction.

95.102.2. Existing Installations. Mechanical systems lawfully in existence at the time of the adoption of this Code shall be permitted to have their use, maintenance, or repair continued where the use, maintenance, or repair is in accordance with the original design and location and no hazard to life, health, or property has been created by such mechanical systems.

95.102.3. Changes in Building Occupancy. Mechanical systems that are a part of a building or structure undergoing a change in use or occupancy, as defined in Article 1, Chapter IX of the LAMC, shall be in accordance with the requirements of this Code that are applicable to the new use or occupancy.

95.102.4. Maintenance. Mechanical systems, materials, and appurtenances, both existing and new, and parts thereof, shall be maintained in operating condition in accordance with the original design and in a safe and hazard-free condition. Devices or safeguards that are required by this Code shall be maintained in accordance with the code edition under which installed. The owner or the owner's designated agent shall be responsible for maintenance of mechanical systems and equipment. To determine compliance with this subsection, the Authority Having Jurisdiction shall be permitted to cause mechanical systems or equipment to be reinspected.

95.102.4.1. Commercial HVAC Systems. Commercial HVAC systems both existing and new, and parts thereof shall be inspected and maintained in operating condition in accordance with ASHRAE/ACCA 180. The owner or the owner's designated agent shall be responsible for maintenance of mechanical systems and equipment. To determine compliance with this subsection, the Authority Having Jurisdiction shall be permitted to cause a HVAC system to be reinspected.

95.102.4.2. Residential HVAC Systems. Residential HVAC systems both existing and new, and parts thereof shall be inspected in accordance with ACCA 4 QM. The owner or the owner's designated agent shall be responsible for maintenance of mechanical systems and equipment. To determine compliance with this subsection, the Authority having Jurisdiction shall be permitted to cause a HVAC system to be reinspected.

95.102.5. Moved Buildings. Apartment houses and dwellings moved into or within the City and all other buildings moved within the City, may retain the existing heating, ventilation, air-conditioning and refrigeration equipment and other miscellaneous heat-producing appliances, provided the building does not become or continue to be a substandard residential building or a residential building subject to repair. However, existing mechanical equipment, including vents, which is not in good and safe condition and not working properly shall be corrected.

Existing heating, ventilation, air-conditioning and refrigeration equipment and other miscellaneous heat-producing appliances in any building, other than an apartment house or dwelling, moved from outside the City to inside the City shall comply with all the requirements of this Code.

New heating, ventilating, air-conditioning and refrigeration equipment and miscellaneous heat-producing appliances that are installed in any building relocated into or within the City shall conform to the provisions of this Code.

95.102.6. Existing Buildings. In existing buildings or premises in which mechanical systems are to be altered, repaired, replaced, or renovated, the Authority Having Jurisdiction has discretionary powers to permit deviation from the provisions of this Code, provided that such proposal to deviate is first submitted for determination in order that health and safety requirements, as they pertain to mechanical, shall be observed.

SEC. 95.103. ALTERNATE MATERIALS AND METHODS OF CONSTRUCTION EQUIVALENCY.

(Title and Section Amended by Ord. No. 184,692, Eff. 12/30/16.)

95.103.1. General. Nothing in this Code is intended to prevent the use of systems, methods, or devices of equivalent or superior quality, strength, fire resistance, effectiveness, durability, and safety over those prescribed by this Code. Technical documentation shall be submitted to the Authority Having Jurisdiction to demonstrate equivalency. The Authority Having Jurisdiction shall have the authority to approve or disapprove the system, method or device for the intended purpose.

SEC. 95.104. MODIFICATIONS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Appeals or requests for slight modifications in individual cases from the requirements of this Code shall be made in accordance with the procedure established in LAMC Sections 98.0403.1 and 98.0403.2.

SEC. 95.105. TESTING.

(Title and Section Amended by Ord. No. 184,692, Eff. 12/30/16.)

95.105.1. General. The Authority Having Jurisdiction shall have authority to require tests, as proof of equivalency.

95.105.2. Approved Standards. Tests shall be made in accordance with approved testing standards by an approved testing agency at the expense of the applicant. In the absence of such standards, the Authority Having Jurisdiction shall have the authority to specify the test procedure.

95.105.3. Request by the Authority Having Jurisdiction. The Authority Having Jurisdiction shall have the authority to require tests to be made or repeated where there is reason to believe that a material or device no longer is in accordance with the requirements on which its approval was based.

PART II

ORGANIZATION AND ENFORCEMENT

SEC. 95.106. POWERS AND DUTIES OF THE DEPARTMENT.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

95.106.1. General. The powers of the Department and the Board are enumerated in Section 98.0403.1 of the Los Angeles Municipal Code.

95.106.2. Interpretation.

1. If two or more pertinent limitations are not identical, those limitations shall prevail that provide the greater safety to persons, property or public welfare.
2. The Superintendent of Building or a duly authorized representative is empowered to make all interpretations concerning the provisions of this Code.

95.106.3. (Deleted by Ord. No. 184,692, Eff. 12/30/16.)

95.106.4. Stop Orders. Where work is being done contrary to the provisions of this Code, the Authority Having Jurisdiction shall have the authority to order the work stopped by notice in writing served on persons engaged in doing or causing such work to be done, and such persons shall forthwith stop work until authorized by the Authority Having Jurisdiction to proceed with the work.

95.106.5. Authority to Disconnect Utilities in Emergencies. The Authority Having Jurisdiction or authorized representative shall be permitted to disconnect fuel gas utility service or energy supplies to a building, structure, premises, or equipment regulated by this Code in case of emergency where necessary to eliminate an immediate hazard to life or property. The Authority Having Jurisdiction shall, wherever possible, notify the serving utility, the owner, and the occupant of the building, structure, or premises of the decision to disconnect prior to taking such action, and shall notify such serving utility, owner, and occupant of the building, structure, or premises in writing of such disconnection immediately thereafter.

95.106.6. Authority to Condemn Equipment. Where the Authority Having Jurisdiction ascertains that an equipment, or portion thereof, regulated by this Code has become hazardous to life, health, or property, it shall order in writing that the equipment either be removed or restored to a safe or sanitary condition. The written notice shall contain a fixed time limit for compliance with such order. Persons shall not use or maintain defective equipment after receiving a notice.

Where equipment or an installation is to be disconnected, written notice of the disconnection and causes therefore shall be given within 24 hours to the serving utility, owner, and occupant of the building, structure, or premises. Where equipment is maintained in violation of this Code, and in violation of a notice issued pursuant to the provisions of this section, the Authority Having Jurisdiction shall institute an action to prevent, restrain, correct, or abate the violation.

95.106.7. Connection after Order to Disconnect. Persons shall not make connections from an energy, fuel, or power supply nor supply energy or fuel to any equipment regulated by this Code that has been disconnected or ordered to be disconnected by the Authority Having Jurisdiction until it has authorized the reconnection and use of such equipment.

95.106.8. (Deleted by Ord. No. 184,692, Eff. 12/30/16.)

95.106.9. Cooperation of Other Officials and Officers. The Authority Having Jurisdiction shall be permitted to request the assistance and cooperation of other officials of this jurisdiction so far as required in the discharge of the duties required by this Code or other pertinent law or ordinance.

SEC. 95.107. UNSAFE EQUIPMENT.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

95.107.1. General. Equipment regulated by this Code that is unsafe or that constitutes a fire or health hazard or is otherwise dangerous to human life is, for the purpose of this section, unsafe. Use of equipment regulated by this Code constituting a hazard to safety, health, or public welfare by reason of inadequate maintenance, dilapidation, obsolescence, fire hazard, disaster, damage, or abandonment is, for the purpose of this section, an unsafe use. Unsafe equipment is hereby declared to be a public nuisance and shall be abated by repair, rehabilitation, demolition, or removal in accordance with procedures as may be adopted by this jurisdiction. As an alternative, the Authority Having Jurisdiction or other employee or official of this jurisdiction, as designated by the governing body, shall be permitted to institute other action to prevent, restrain, correct, or abate the violation.

SEC. 95.108. APPEALS.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

In order to hear and decide appeals of orders, decisions or determinations made by the building official relative to the application and interpretations of this Code, the appeal process shall be made in accordance with the procedure established in Sections 98.0403.1 and 98.0403.2 of the Los Angeles Municipal Code.

SEC. 95.109. PROHIBITED ACTS.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

No person shall sell, offer for sale, display for sale, advertise for sale, loan, rent, or lease, dispose of by way of gift, premium or otherwise, any equipment regulated by this Code unless such equipment is listed by an approved testing agency or is of a type and construction approved by the Department.

PART III

PERMITS AND INSPECTIONS

SEC. 95.111. PERMITS.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

95.111.1. General. No person shall install or alter, repair, relocate, replace or add to any installed heating, ventilating, air-conditioning, or refrigeration equipment or other miscellaneous heat-producing appliances unless a permit for the work has been obtained from the Department, except as provided in this Code. (Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)

EXCEPTION:

1. A separate permit shall not be required for installation of any heating, ventilating, air-conditioning, or refrigeration equipment or other miscellaneous heat-producing appliances for which a combined building/mechanical permit has been obtained pursuant to LAMC Subdivision 91.107.2.2. (Amended by Ord. No. 185,587, Eff. 7/16/18.)
2. No person shall be subject to a fine or payment of an investigation fee for starting and doing any emergency repair work without a permit being first obtained, if a permit for the work is obtained on or before 12:00 noon on the third day the office of the Department is open for public business after the work was started. (See Section 98.0402 of the Los Angeles Municipal Code.) (Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)
3. No permit shall be required for:
 - A. Any portable ventilating equipment.
 - B. Any portable comfort-cooling unit.
 - C. Any steam, hot or chilled water piping within any comfort- heating or cooling system regulated by this Code.
 - D. Any portable evaporative cooler.
 - E. Any unit refrigeration system. (Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)
 - F. Any cooking range, broiler unit or domestic-type clothes dryer.
 - G. Any replacement or repairing of a compressor, provided the compressor replaced or repaired is of the same horsepower rating and is installed in the same location.
 - H. Any replacement or repair of controls, motors and components which are not part of, or used for, any emergency smoke-control system required by the Building Code or the Fire Code.
 - I. Any replacement or repair of any component part of listed factory-assembled comfort-heating or comfort-cooling equipment which does not alter its original approval and complies with all other applicable requirements of this Code.
 - J. Any repair of equipment not specified here, if the total value of the repair is less than \$500.00 for labor and material. For the purpose of this requirement, no permit shall be required where the work is performed on more than one piece of equipment or duct system that is located in the same building, provided the total value of material and labor for any separate and individual repair does not exceed \$500.00. (Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)
 - K. The replacement of defective forced-air units with one of equivalent size, Btu/hr (W) rating and vent capacity when the vent does not require replacement or relocation in a detached single-family dwelling and the replacement is performed by a contractor with a valid Certificate of Registration pursuant to LAMC Subsection 91.1704.1. A Certificate of Compliance pursuant to LAMC Subsection 91.108.12 must be filed with the City in lieu of a permit. (Amended by Ord. No. 185,587, Eff. 7/16/18.)
 - L. The replacement of defective air-conditioning units when they are replaced with one of equivalent size and Btu/hr (W) rating by a contractor with a valid Certificate of Registration pursuant to LAMC Subsection 91.1704.1. A Certificate of Compliance pursuant to LAMC Subsection 91.108.12 must be filed with the City in lieu of a permit. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

The foregoing exemptions for permit requirements shall not apply where the equipment is regulated by the California Energy Commission, or the equipment is used to provide the required heating capacity for any residential occupancy, or the equipment is used as part of an emergency smoke-control system.

The foregoing exemptions from permit requirements shall not be deemed to allow any equipment regulated by this Code to be installed in a manner contrary to other provisions of this Code.

95.111.2. Permit Required. A permit shall be obtained for all heating, ventilating, air-conditioning or refrigeration equipment or other miscellaneous heat-producing appliances moved with, or installed in, a relocated building in the City.

95.111.3. Separate Permit. A separate permit shall be obtained for the equipment installed in each separate building or structure and for the work required by each building permit.

95.111.4. Incidental Gas. Any qualified installer as specified in LAMC Subsection 95.112.4 may install incidental gas piping to connect any heating appliance or absorption unit to the existing gas piping system, provided: (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. The incidental piping installation complies with the requirements as set forth in the Los Angeles Plumbing Code; and
2. There is an existing gas supply meter on the premises serving the gas piping system.

SEC. 95.112. APPLICATION FOR PERMIT.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

95.112.1. Applications.

1. To obtain a permit, the applicant shall file an application on forms furnished by the Department. The application shall contain all information necessary to the lawful enforcement of the provisions of this Code.
2. The application shall be accompanied by approved plans and specifications when required by this Code.

3. When the Department determines that the information on the application is in conformance with this Code, the Department shall issue a permit upon receipt of the total fees.

95.112.2. Plans and Specifications.

1. Except for minor installations satisfactory to the Department, plans and specifications for the complete installation of comfort-heating systems, comfort-cooling systems, absorption units, ventilation systems and hoods shall be filed with the Department and approved before the issuance of any permit for the following: **(Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)**

A. Comfort-Heating, Comfort-Cooling, Absorption Unit and Ventilation Systems: (Title Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)

1. Installations where the aggregate Btu/h input capacity is 500,000 Btu/h (146,500 W) and over for comfort heating, or for comfort cooling, or for absorption units. **(Amended by Ord. No. 181,685, Eff. 5/2/11.)**

EXCEPTIONS:

1. Duct alterations.
2. Addition of air conditioning equipment having a rating of 5 tons or less.
3. Addition of general ventilation exhaust fans having a rating of 2000 cfm or less.
4. Replacing air conditioning equipment with the same size and type.

2. (Deleted by Ord. No. 181,685, Eff. 5/2/11.)

B. Smoke-control systems.

C. Any comfort-cooling compressor or refrigeration compressor for any system which requires a machinery room. (Amended by Ord. No. 181,685, Eff. 5/2/11.)

D. Any commercial cooking hood and ventilation system, except for approved vent-less hoods that are installed in accordance with the manufacturer's installation instructions and other conditions of approval as determined by the Los Angeles City Testing Laboratory. (Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)

E. Product conveying ventilation systems.

2. One complete set of plans and specifications shall be filed for checking before approval is given by the Department. After approval, the plans shall be returned to the applicant. The approved set of plans shall be on the job site for availability during construction and inspection. **(Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)**

3. When the plans and specifications do not comply with provisions of this Code, the necessary changes or revisions shall be made.
4. The information contained on the plans shall be clearly legible and specifically indicated. No plan shall be of a scale smaller than 1/8 inch per foot .
5. Specifications, when submitted, shall be legible and definitively stated, and be included either on the plans or on separate sheets.
6. The approval of any plans or specifications shall not be construed to sanction any violation of this Code.
7. No person shall materially deviate from approved plans or specifications or fail, neglect or refuse to comply with those plans or specifications unless permission to do so has first been obtained from the Department.
8. Plans and specifications shall be prepared by and bear the signature and registration number of a professional engineer in an appropriate discipline who is duly registered by the State of California Board of Registration for Professional Engineers and Land Surveyors, except as provided by the State of California Business and Professions Code.

95.112.3. Information on Plans and Specifications.

1. The plans or specifications shall show all of the following: **(Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)**

- A. The layout for each floor with dimensions of all working spaces and a legend of all symbols used;
- B. The location, size and materials of all air ducts, air inlets and air outlets;
- C. The location of all fans, warm-air furnaces, boilers, absorption units, refrigerant compressors and condensers;
- D. The rated capacity or horsepower of all boilers, warm-air furnaces, heat exchangers, blower fans, refrigerant compressors and absorption units;
- E. The location, size and materials of all combustion products, vents and chimneys;
- F. The location and area of all ventilation and combustion-air openings and ducts;
- G. The location of all air dampers, fire dampers, smoke-control dampers and combustion-products-type smoke detectors;
- H. The information necessary to show compliance of the mechanical equipment with the state energy standards;
- I. The occupancy of each area served by any heating, air-conditioning or ventilation system;
- J. The location of all required fire- resistive separations that are penetrated by ducts or openings of any heating, air-conditioning or ventilation system;
- K. The complete drawings of all commercial hoods and ventilation systems, including the cooking appliances served by the hoods, and verify:
 1. The interconnection of the fire- extinguishing system and fuel shutoff devices;
 2. Compliance with Health Department requirements; and

3. Compliance with South Coast Air Quality Management District requirements.

L. The weight of the equipment. (Amended by Ord. No. 181,685, Eff. 5/2/11.)

2. All plans and specifications required by this section shall be drawn with indelible pencil or drawn or printed in ink, or made by reproduction process which produces a permanent print. Every sheet of each set of plans and specifications shall show the address of the proposed work and the name and address of the owner or lessee of the premises.

The plans and specifications shall be of sufficient clarity to show that the proposed installation will conform to the provisions of this Code and of all applicable laws, ordinances, rules, regulations and orders.

95.112.4. Qualified Installer. It is unlawful for any person who is not a qualified installer to install, alter, reconstruct or repair any equipment regulated by this Code unless the person is under the direct supervision of a qualified installer.

A qualified installer is:

1. A person who holds a valid contractor's license in the proper classification issued by the State of California; or
2. A person who holds a valid Maintenance Certificate of Registration issued pursuant to the provisions of this Code; or
3. A person who is the owner of a single- family dwelling and has demonstrated to the satisfaction of the Department their qualifications to satisfactorily perform mechanical work in the dwelling which is occupied by the owner, and their accessory buildings, provided that all of the following conditions are met:
 - A. The work is performed prior to sale of the dwelling.
 - B. The home owner has actually resided in the residence for the 12 months prior to completion of the work.
 - C. The homeowner has not availed themselves of this exemption on more than two structures during any three year period.
4. A person who is employed by a governmental agency that is required to comply with the provisions of this Code, and who is qualified, as determined by the Department, to supervise or control any work regulated by this Code.

SEC. 95.113. PERMIT ISSUANCE.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

95.113.1. Issuance. The issuance of a permit is not an approval or an authorization of the work specified therein. A permit is merely an application for inspection, the issuance of which entitles the permittee to inspection of the work described therein.

95.113.2. Effect of Issuance. Neither the issuance of a permit nor the approval by the Department of any plans or specifications shall constitute an approval of any work or material that is in violation of any provision of this Code or of any other applicable law.

95.113.3. Expiration of Permits. Permits shall expire as provided for in Section 98.0602 of the Los Angeles Municipal Code.

95.113.4. Revocation of Permits. Permits may be revoked as provided for in Section 98.0601 of the Los Angeles Municipal Code.

SEC. 95.114. PERMIT FEES.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

95.114.1. Permit Fees. (Amended by Ord. No. 180,868, Eff. 10/22/09.) Before any permit required by this Code is issued, the applicant shall pay to the Department the following fees:

**PERMIT FEE SCHEDULE FOR HEATING, VENTILATING, AIR-CONDITIONING AND REFRIGERATION EQUIPMENT
AND MISCELLANEOUS HEAT-PRODUCING APPLIANCES**

Permit	Fee
1. a. For issuing permit	\$24.00
b. For issuing a supplementary permit (the fee for which shall be the difference between the fee paid for the original permit and the fee which would have been required had the original permit included the entire installation, repair, relocation or alteration plus	\$20.00
2. For the installation or relocation of each fuel-burning heating appliance regulated by this Code	\$19.00
3. For each air inlet and air outlet served by any heating, air-conditioning or ventilation system	\$5.00
or for each 1,000 square feet (92.9 m ²) or fraction thereof of conditioned area for any heating or air-conditioning system using perforated building material in lieu of conventional air inlets and outlets	\$38.00
4. a. For the installation of each appliance vent system, factory-built chimney and each absorption unit vent system regulated by this Code	\$12.00
b. For the installation of each unlisted single-wall metal chimney (smokestack)	\$57.00
Note: This fee shall not apply to a vent system which is an integral part of an appliance or an absorption unit, which is listed for outdoor installation.	
5. For the repair of, alteration of or addition to each refrigeration system, fuel- burning heating appliance, comfort-cooling unit, absorption unit, or each comfort-heating, cooling, absorption, ventilation or evaporative cooling system, including the installation of controls regulated by this Code	\$24.00
6. a. For each ventilation system which is serving a commercial cooking hood	\$33.00
b. For each environmental air and commercial-type clothes dryer ventilation system regulated by this Code	\$12.00

	c. For each product-conveying duct system regulated by this Code	\$59.00
7.	For the installation of each hood	\$33.00
8.	a. For the installation of each comfort-cooling compressor of 25-horsepower (87.9 k/W) rating or less and each absorption unit having an input capacity of 500,000 Btu/h (2299.3 L/W) or less	\$24.00
	b. For the installation of each refrigeration compressor of 25-horsepower rating (87.9 k/W) or less, other than a compressor for a unit refrigeration system	\$38.00
9.	a. For the installation of each comfort-cooling compressor over 25-horsepower (87.9 k/W) rating and under 50-horsepower (175.8 k/W) rating, and each absorption unit having an input capacity over 500,000 Btu/h (2299.3 L/W) and under 1,000,000 Btu/h (4598.6 L/W)	\$59.00
	b. For the installation of each refrigeration compressor over 25-horsepower (87.9 k/W) rating and under 50-horsepower (175.8 k/W) rating	\$77.00
10.	a. For the installation of each comfort-cooling compressor of 50-horsepower (175.8 k/W) rating and over, and each absorption unit having an input capacity of 1,000,000 Btu/h (4598.6 L/W) and over	\$116.00
	b. For the installation of each refrigeration compressor of 50-horsepower (175.8 k/W) rating and over	\$158.00
11.	For the installation of each air-handling unit used for the distribution of conditioned air supply	\$24.00
	Note: This fee shall not apply to an air-handling unit which is a portion of a factory-assembled appliance, comfort-cooling unit, evaporative cooler or absorption unit for which a permit is required elsewhere in this Code.	
12.	For the installation of each evaporative cooler which is not classified as a portable evaporative cooler	\$24.00
13.	When it shall be necessary to make an extra inspection trip due to the applicant having given an incorrect address or wrong location for any permit when obtaining a permit required by this Code, a fee shall be paid by the applicant for correcting the address or location given in such permit	\$36.00
14.	For the installation of incidental gas piping for each existing individual metered system up to and including five outlets (see LAMC Subsection 95.111.4) (Amended by Ord. No. 185,587, Eff. 7/16/18.)	\$25.00
	For each outlet over five	\$7.00
	Note: For the purpose of this fee, incidental gas piping shall mean any addition made to an existing low-pressure gas piping system to accommodate gas-burning equipment regulated by this Code. This fee shall not apply if such piping is less than six feet (1.8 m) in length and connects to an existing gas outlet.	
15.	For the installation of each fire damper	\$12.00
16.	For the installation of each smoke-control damper which is a portion of a smoke-control system that is required by the Los Angeles Municipal Code	\$12.00
17.	For each smoke detector which is required by the Los Angeles Mechanical Code	\$10.00
18.	For witnessing the performance test of any emergency mechanical smoke-control system, stair shaft pressurization system, smoke detector or smoke damper which is a portion of that system. For each hour or fraction thereof	\$108.00
19.	For witnessing the performance test of any heating or cooling equipment for automatic shutoff. For each hour or fraction thereof	\$108.00
20.	For witnessing the performance test of any ventilating system serving commercial food heat-processing equipment. For each hour or fraction thereof	\$108.00
21.	For the minimum inspection	\$93.00
22.	For each additional inspection	\$93.00
23.	Minimum inspection fee. LAMC Section 98.0412: (Amended by Ord. No. 185,587, Eff. 7/16/18.)	
	a. For the installation of a single fixture described in this section	\$57.00
	b. Where the cumulative fees described in this section total less than the minimum fee required by the Los Angeles Mechanical Code	\$93.00
24.	For transfer of a permit	\$50.00

Note: Items 18, 19 and 20. For the purpose of witness fee requirements, more than one system of the same category can be inspected in the same building spaces if completed within the same hour. For each additional category or additional hour or fraction thereof a fee of \$75.00 is required. These fees are not to be included in determining plan check fee.

95.114.2. Plan Check Fees. (Amended by Ord. No. 180,868, Eff. 10/22/09.)

- (a) Before formally accepting a set of plans and specifications for checking, the Department shall collect a plan check fee.

A complete schedule of the permit fees due shall be included with each set of plans submitted to the Department.

The plan check fees required by the provisions of this section are in addition to the inspection fees required by LAMC Subsections 95.114.5 and 95.114.8. (**Amended by Ord. No. 185,587, Eff. 7/16/18.**)

A fee as specified in Paragraph 1 of LAMC Subsection 95.114.2 shall be collected by the Department prior to approval for each set of plans submitted beyond the two required by this Code containing more than 10 sheets including calculations and documentation. (**Amended by Ord. No. 185,587, Eff. 7/16/18.**)

Plan check fee shall be as follows:

1. All projects

Type of Installation	Standard Design	Additional Fee for Checking Analysis of Annual Energy Budget
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Installation of equipment as listed in Section 95.114.1	70% of permit fee	
	\$93.00 minimum; plus a surcharge of 10% of permit fee, \$72.00 minimum, for checking compliance with State Energy Standards	60% of permit fee, \$144.00 minimum,
	NOTE: For conditioned areas where the number of air inlets and air outlets is unknown, \$12.00 for each 1000 sq. ft. or fraction thereof.	\$4,037.00 maximum

2. In addition to the above fee, a plan checking fee shall be assessed for checking the following systems:

- a. Commercial cooking ventilation systems, serving type I hoods, each \$216.00
- b. Commercial cooking ventilation systems, serving type II hoods each \$144.00
- c. Type I, Type II or fume hoods, each \$72.00
- d. Product conveying ventilation systems \$216.00
- e. Engineering calculations of smoke control systems, each \$1,081.00
- f. Engineering calculations of stair shaft pressurization systems, each \$216.00
- g. Engineered and/or proprietary duct joints, each HVAC system, minimum \$144.00

h. The Department may collect a plan check fee as specified in LAMC Section 98.0415(e) for the following plan check services: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

1. Specially engineered systems;
2. Engineered systems not listed in LAMC Subsection 95.114.1;
3. Review of expired plans, provided that the original approved plans are submitted along with the new plans and the new plans have no changes other than those required to comply with the current code;
4. Review of plans revised for reasons other than to comply with plan check corrections;
5. Review of "As Built" plans provided that the original approved plans are submitted along with the new plans;
6. Any time not included in the original plan check fee.

(b) **Off-hour Plan Check.** Upon request by an applicant and accepted by the Department, an off-hour plan check fee per LAMC Section 98.0422 may be collected. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

95.114.3. Expiration of Plan Check. Plan check approval shall expire as provided for in Section 98.0603 of the Los Angeles Municipal Code.

95.114.4. Minimum Inspection Fee.

1. A minimum fee as specified in LAMC Section 98.0412 shall be paid to the Department for each mechanical installation for which a permit is required by this Code. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

2. When the cumulative fees and the issuing fee set forth in this Code are less than the minimum fee, the minimum fee shall be paid, which shall include the issuing fee.

3. The fee for single fixture shall apply to the installation of only one mechanical fixture/equipment and shall include the issuing fee. Where the fee for a single fixture exceeds the minimum fee for single fixtures, this fee shall not apply.

95.114.5. Fees for Miscellaneous Permits. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. When permission has been obtained from the Department, a permit may be issued for that portion of equipment to be concealed if the permit cannot be issued until required plans have been approved. The miscellaneous permit shall not be an authorization for the installation of any other equipment.

The permittee shall submit plans along with this permit application which shall clearly designate the equipment to be concealed and the building area involved. If the work done on the miscellaneous permit is not in accordance with the final approved plans, the permittee shall be responsible for making all necessary corrections for compliance with the Code.

A fee as specified in LAMC Section 98.0412 shall be paid for the inspection of this installation and shall be limited to one inspection trip and one re-inspection trip. This fee is in addition to the permit-issuing fee specified in LAMC Subsection 95.114.1.

2. A miscellaneous permit fee as specified in LAMC Section 98.0412 shall be paid for inspection of the installation of equipment regulated by this Code which requires an inspection for determination of Code compliance and where such installation inspection is not provided for in the permit fee schedule specified in LAMC Subsection 95.114.1. This fee is in addition to the permit issuing fee specified in LAMC Subsection 95.114.1.

95.114.6. Investigation Fee. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Except as provided in LAMC Subsection 95.111.1, whenever any work for which a permit is required under the provisions of this Code has been commenced without the authorization of a permit, a special investigation shall be made before a permit may be issued for the work. In addition to the permit fee, an investigation fee shall be collected as provided for in LAMC Section 98.0402.

95.114.7. Transfer of Permits and Plan Checks. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No permit shall be transferable from the original permittee to any other person, unless the property owner authorizes the transfer in writing. Upon authorization, the new permittee shall file with the Department a new permit and pay to the Department a fee as specified in LAMC Section 98.0415 for issuing the new permit. This fee includes the issuing permit fee specified in the fee schedule set forth in LAMC Subsection 95.114.1.

NOTE: No plan check shall be transferable from one contractor to another unless the original plans were prepared and signed by a state-licensed engineer in the proper classification.

95.114.8. Fees for Additional Inspections. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. Each permit shall be entitled to three inspection trips when the job is of a type requiring an inspection before covering or concealing the work. On jobs which may be completely inspected on one inspection trip, two inspection trips will be allowed.

EXCEPTION: The number of inspection trips will not be limited on progress jobs, provided, however, that only one inspection will be permitted for checking a correction. For the purpose of this section, progress jobs are those in which circumstances beyond the control of the applicant make it impossible for the installation to be completed at any specific time.

2. If more inspection trips than are specified in Subdivision 1 of this subsection are required due to the fault or error on the part of the applicant or the applicant's employees, an additional fee as specified in LAMC Section 98.0412 shall be paid by the applicant for each additional inspection trip.

3. The Department may recheck installations at intervals of 30 days or more, where violations continue to exist, until either the violations are cleared or a total of three rechecks are made. The fees specified in Subdivision 2 of this subsection shall apply for each recheck inspection.

4. The fees charged under this section are in addition to any other fees shown and the payment of the fees required by this section shall not exempt any person from compliance with other provisions of this Code nor from any penalty prescribed by law.

5. Whenever special enforcement procedures are required to obtain compliance with properly executed Department notices or orders, a fee, as specified in LAMC Section 98.0407, shall be assessed in addition to the added trip fee specified in Subdivision 2 of this subsection.

95.114.9. Inspection Fees for Off-Hours Inspections. The Department may, at its discretion, make emergency inspections at other than normal working hours upon the request of a permittee, provided that additional fees are paid as specified in Section 98.0406 of the Los Angeles Municipal Code.

95.114.10. Fees for Off-Site Inspections. Upon written request, the Department may, at its discretion, make inspections at locations other than the site upon which a building will be located, provided that location is within 60 miles (96.56 km) of the Los Angeles City Hall.

A fee, in addition to fees charged elsewhere in this Code, at the rate specified in Section 98.0412 of the Los Angeles Municipal Code per hour shall be charged for such inspections, time to include travel to and from the place of inspection, with the minimum fee as specified in Section 98.0412 of the Los Angeles Municipal Code.

SEC. 95.115. INSPECTIONS.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

95.115.1. Inspection.

1. All equipment for which a permit is required by this Code shall be inspected by an authorized inspector of the Department.

EXCEPTION: Contractors holding a Certificate of Registration complying with Section 91.108.12 of the Los Angeles Municipal Code for detached single-family dwellings.

2. No portion of any equipment intended to be enclosed by any permanent portion of the building shall be enclosed until inspected and approved.

3. When the installation of any equipment is complete, a second or final inspection shall be made.

4. The first and second inspections may be made at the same time if no portion of the equipment is concealed by any permanent portion of any building.

5. **Approved fabricators.** The inspections provided for in this section shall not be required for construction or installation work done on the premises of a Type II fabricator to whom an approval has been issued pursuant to the provisions of Division C of Article 6 of Chapter IX of the Los Angeles Municipal Code.

95.115.2. Request for Inspection.

1. The Department shall require that every request for inspection be filed at least one day before the inspection is desired. This request may be in writing or by telephone at the option of the Department.

2. It shall be the duty of the person requesting inspection of any equipment regulated by this Code to provide access to and means for proper inspection for the equipment.

3. The removal of any material necessary to permit an inspection shall be required by the Department by written order. The City shall not be liable for any expense entailed in the removal or replacement of any material required to permit the inspection.

SEC. 95.116. CONNECTION APPROVAL.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

95.116.1. Connection Approval. No equipment regulated by this Code shall be connected to the fuel or power supply until it complies with all applicable requirements of this Code and a final inspection tag of approval has been issued by the Department.

EXCEPTION: The requirements of this subsection shall not be considered to prohibit the operation of any equipment installed to replace defective equipment serving an occupied portion of a building, in the event a request for inspection of that equipment has been filed with the Department not more than 48 hours after the replacement work is completed and before any portion of the equipment is concealed by any permanent portion of the building.

95.116.2. Final Inspection. A final inspection tag of approval may, upon notice, be revoked by the Department if the Department finds that the equipment fails in any respect to comply with the requirements of this Code or that the installation is unsafe, dangerous or a hazard to life or property.

SEC. 95.117. UNCONSTITUTIONAL.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

95.117.1. Validity of Code. Where a section, subsection, sentence, clause, or phrase of this Code is, for a reason, held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this Code. The legislative body hereby declares that it would have passed this Code, and each section, subsection, sentence, clause, or phrase thereof, irrespective of the fact that one or more sections, subsections, sentences, clauses, and phrases are declared unconstitutional.

SEC. 95.118. VALIDITY.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

95.118.1. Code. Where a provision of this Code, or the application thereof to a person or circumstance, is held invalid, the remainder of the Code, or the application of such provision to other persons or circumstances, shall not be affected.

SEC. 95.119. REGISTRATION.

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

95.119.1. Maintenance Supervisor. (Amended by Ord. No. 185,587, Eff. 7/16/18.) No person shall act in the capacity of a maintenance supervisor or air balancer for smoke-control systems, unless the person has paid the filing fee and successfully passed an examination as specified in LAMC Subsection 95.119.3.

EXCEPTION: One who holds a valid contractor's license in the proper classification issued by the State of California and personally performs the work.

95.119.2. Applications. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. Every applicant for Certificate of Qualification as a maintenance supervisor or air balancer shall make an application in writing to the Department on forms furnished for that purpose.
2. Every application for a Certificate of Qualification as a comfort heating and cooling or refrigeration maintenance supervisor or air balancer shall be accompanied by a filing fee as specified in LAMC Section 98.0414.
3. Every applicant for a Certificate of Qualification as a comfort heating and cooling or refrigeration maintenance supervisor or air balancer shall be examined as required by the provisions of LAMC Subsection 95.119.3.

Note: For the purpose of this Code, an air balancer holding a Certificate of Qualification may qualify to perform work to comply with the State Energy requirements (Parts 1 and 6, Title 24 of the California Code of Regulations).

95.119.3. Examinations.

1. Every applicant for a Certificate of Qualification as a comfort-heating and cooling maintenance supervisor or a refrigeration maintenance supervisor or air balancer shall be given an examination to evaluate that applicant's knowledge and experience. The extent and scope of the examination shall, in the judgement of the Superintendent of Building, be sufficient to indicate that a person who successfully passes the examination has the necessary ability to repair, maintain, alter and service refrigeration equipment, heating appliances, heating systems, gas piping, gas-control devices, vents for gas appliances, and air balancing in compliance with this Code. The examination shall include a written test and an oral interview.

2. The Superintendent of Building is hereby granted the power and authority to make and establish such rules and regulations as the Superintendent may consider necessary for the proper conduct of the examination. The results of each examination shall be subject to review and approval by the Superintendent.

95.119.4. Failure to Pass Examination. No part of any filing fee shall be returned to any applicant who fails to pass the examination for which the fees were paid. If any applicant shall fail to receive the percentage required at the first examination, the applicant shall be entitled to take a second examination without payment of a second fee, but shall be required to wait at least two weeks before taking the second examination. In case any applicant fails to pass the second examination, the applicant shall be required to wait at least six months before the applicant may file another application for examination, at which time the applicant shall pay another filing fee.

95.119.5. Issuance of Maintenance Certificate of Registration. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. Every applicant for a Maintenance Certificate of Registration shall make application to the Department on forms furnished for that purpose. The application shall provide the following information:

- A. Business name and address of applicant.
- B. The signature of the responsible managing officer.
- C. The name of the maintenance supervisor.

2. Before a Maintenance Certificate of Registration is issued to any person, that person shall pay a registration fee as specified in Section 98.0414 of the Los Angeles Municipal Code.

3. Each Maintenance Certificate of Registration issued shall expire one year following the date of issuance, but may be renewed from year to year upon payment of an annual renewal fee as specified in Section 98.0414 of the Los Angeles Municipal Code, which must be paid not later than 30 days after the date of expiration.

4. The Department shall issue a Certificate of Qualification as a maintenance supervisor or air balancer to any person who has successfully passed the examination prescribed in Section 95.119.3.

5. Every Certificate of Qualification as maintenance supervisor or air balancer shall expire one year following the date of issuance, but may be renewed from year to year by the payment of an annual fee as specified in Section 98.0414 of the Los Angeles Municipal Code within 30 days after the date of expiration.

6. A maintenance supervisor shall be limited to perform only the labor for maintenance, repair, addition to or alteration of existing equipment on premises owned by or under control of the holder of a valid Maintenance Certificate of Registration.

95.119.6. Revocation, Suspension and Voiding of Certificates.

1. Any Certificate of Registration or Certificate of Qualification required by this Code may be suspended or revoked in accordance with the provisions of Article 8, Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

2. Any person whose certificate is revoked hereunder shall not, for a period of 30 days thereafter, be eligible for a new certificate and shall receive a new certificate only after passing the required examination and paying the required fee.

3. The revocation of any Certificate of Registration or Certificate of Qualification shall not exempt the holder from any other penalty provided in this Code.

4. A Certificate of Registration shall become void 30 days after a maintenance supervisor is no longer in the employ of a holder of a Certificate of Registration.

5. A Certificate of Qualification shall become void when the maintenance supervisor is no longer in the employ of the holder of a Certificate of Registration.

95.119.7. Exhibition of Maintenance Certificate. Every person holding a Certificate of Qualification as a maintenance supervisor or air balancer shall exhibit that certificate to authorized personnel of the Department upon demand.

95.119.8. Transfer of Certificates. No Certificate of Registration or Qualification shall be transferable.

95.119.9. Expired Certificates.

1. Expired certificates may be renewed at any time within 12 months following the date of expiration provided that, after the first month, the renewal fee shall be increased by 10 percent for each month after the first.
2. After a certificate has been expired for one year, it may not be renewed. A new application and payment of the filing fees set forth in LAMC Section 95.119 will be required. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

DIVISION 2

DEFINITIONS

Section

95.200.0	Basic Provisions.
95.203.0	A.
95.204.0	B.
95.205.0	C.
95.206.0	D.
95.207.0	E.
95.208.0	F.
95.209.0	G.
95.210.0	H.
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95.215.0	M.
95.216.0	N.
95.217.0	O.
95.219.0	Q.
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95.221.0	S.
95.222.0	T.
95.223.0	U.
95.224.0	V.
95.225.0	W.
95.226.0	X.
95.227.0	Y.
95.228.0	Z.

SEC. 95.200.0. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 2 of the California Mechanical Code (CMC) is adopted by reference with the following exceptions: CMC Sections 203, 204, 205, 206, 207, 208, 215, 217, 219 and 221 are not adopted and, in lieu, Los Angeles Mechanical Code Sections 95.203, 95.204, 95.205, 95.206, 95.207, 95.208, 95.215, 95.217, 95.219, and 95.221 are added as provided in this article.

SEC. 95.201.0. GENERAL.
(Repealed by Ord. No. 187,719, Eff. 1/23/23.)

SEC. 95.202.0. ACCEPTED MEANINGS.
(Repealed by Ord. No. 187,719, Eff. 1/23/23.)

SEC. 95.203.0. A.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 203.0 of the CMC is adopted by reference, except that the CMC definition of the following term is not adopted:

AUTHORITY HAVING JURISDICTION

The following definitions are added:

- ADMINISTRATIVE AUTHORITY.** The Superintendent of Building or an authorized agent.
- APPLICANT.** The person signing the application and paying the fees.
- APPRENTICE.** A person who is enrolled in an apprenticeship program approved by the Department of Industrial Relations of the State of California.
- AUTHORITY HAVING JURISDICTION.** The City of Los Angeles Department of Building and Safety.

SEC. 95.204.0. B.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 204.0 of the CMC is adopted by reference, except that the CMC definition of the following term is not adopted:

BUILDING CODE

The following definitions are added:

BOARD. The Board of Building and Safety Commissioners of the City of Los Angeles.

BUILDING CODE. The City of Los Angeles Building Code, set forth in Article 1, Chapter IX of the Los Angeles Municipal Code.

SEC. 95.205.0. C.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 205.0 of the CMC is adopted by reference and the following definitions are added:

CENTRAL COOLING PLANT OR COOLING PLANT. Environmental cooling equipment installed in a manner to supply cold by means of ducts or pipes to areas other than the room or space in which the equipment is located.

CERTIFICATE OF QUALIFICATION. A Certificate of Qualification as a maintenance supervisor or air balancer as issued by the Department.

CERTIFICATE OF REGISTRATION. A Maintenance Certificate of Registration as issued by the Department.

COMPRESSOR, COMFORT-COOLING. A compressor, which is a portion of a comfort-cooling system or a comfort-cooling unit.

SEC. 95.206.0. D.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 206.0 of the CMC is adopted by reference, except that the CMC definition of the following term is not adopted:

DEPARTMENT

The following definition is added:

DEPARTMENT. The Department of Building and Safety of the City of Los Angeles.

SEC. 95.207.0. E.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 207.0 of the CMC is adopted by reference, except that the CMC definition of the following term is not adopted:

ELECTRICAL CODE

The following definition is added:

ELECTRICAL CODE. The City of Los Angeles Electrical Code, set forth in Article 3, Chapter IX of the Los Angeles Municipal Code.

SEC. 95.208.0. F.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 208.0 of the CMC is adopted by reference, except that the CMC definition of the following term is not adopted.

FIRE CODE

The following definition is added:

FIRE CODE. The City of Los Angeles Fire Code, set forth in Article 7, Chapter V of the Los Angeles Municipal Code.

SEC. 95.209.0. G.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 209.0 of the CMC is adopted by reference.

SEC. 95.210.0. H.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 210.0 of the CMC is adopted by reference.

SEC. 95.211.0. I.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 211.0 of the CMC is adopted by reference.

SEC. 95.212.0. J.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 212.0 of the CMC is adopted by reference.

SEC. 95.213.0. K.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 213.0 of the CMC is adopted by reference.

SEC. 95.214.0. L.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 214.0 of the CMC is adopted by reference.

SEC. 95.215.0. M.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 215.0 of the CMC is adopted by reference. The following definitions are added:

MAINTENANCE CERTIFICATE OF REGISTRATION. A certificate issued to the owner or occupant of specified premises for the sole purpose of adding to, altering, maintaining or repairing existing heating, ventilating, air-conditioning, or refrigeration equipment on the premises.

MAINTENANCE SUPERVISOR. Comfort heating and cooling maintenance supervisor or a refrigeration maintenance supervisor.

SEC. 95.216.0. N.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 216.0 of the CMC is adopted by reference.

SEC. 95.217.0. O.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 217.0 of the CMC is adopted by reference, except that the CMC definition of the following term is not adopted.

OCCUPANCY CLASSIFICATION

The following definition is added:

OCCUPANCY CLASSIFICATION. Classifications are defined in the Los Angeles Building Code at Article 1, Chapter IX of the Los Angeles Municipal Code.

SEC. 95.218.0. P.

(Repealed by Ord. No. 187,719, Eff. 1/23/23.)

SEC. 95.219.0. Q.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 219.0 of the CMC is adopted by reference, except that the CMC definition of the following term is not adopted:

QUALIFIED

The following definition is added:

QUALIFIED INSTALLER is:

- (A) A person who holds a valid contractor's license in the proper classification issued by the State of California; or
- (B) A person who holds a valid Maintenance Certificate of Registration issued pursuant to the provisions of this Code; or
- (C) A person who is the owner of a single- family dwelling and has demonstrated to the satisfaction of the Department their qualifications to satisfactorily perform mechanical work in the dwelling which is occupied by the owner, and their accessory buildings, provided that all of the following conditions are met:
(Amended by Ord. No. 185,198, Eff. 11/22/17.)
 - (1) The work is performed prior to sale of the dwelling.
 - (2) The homeowner has actually resided in the residence for the 12 months prior to completion of the work.
 - (3) The homeowner has not availed themselves of this exemption on more than two structures during any three-year period; or
- (D) A person who is employed by a governmental agency that is required to comply with the provisions of this Code, and who is qualified, as determined by the Department, to supervise or control any work regulated by this Code.

SEC. 95.220.0. R.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 220.0 of the CMC is adopted by reference.

SEC. 95.221.0. S.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 221.0 of the CMC is adopted by reference with the following additions:

SUPERINTENDENT OF BUILDING. The Superintendent of Building is the General Manager of the Department of Building and Safety.

SEC. 95.222.0. T.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 222.0 of the CMC is adopted by reference.

SEC. 95.223.0. U.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 223.0 of the CMC is adopted by reference.

SEC. 95.224.0. V.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 224.0 of the CMC is adopted by reference.

SEC. 95.225.0. W.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 225.0 of the CMC is adopted by reference.

SEC. 95.226.0. X.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 226.0 of the CMC is adopted by reference.

SEC. 95.227.0. Y.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 227.0 of the CMC is adopted by reference.

SEC. 95.228.0. Z.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 228.0 of the CMC is adopted by reference.

DIVISION 3

GENERAL REQUIREMENTS

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Section
95.300 Basic Provisions.

SEC. 95.300. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 3 of the CMC is hereby adopted by reference with the following amendment:

311.3. Prohibited Source. Outside or return air for heating or cooling air systems shall not be taken from the following locations:

- (1) less than 10 feet (3048 mm) in distance from an appliance vent outlet, a vent opening of a plumbing drainage system, or the discharge outlet of an exhaust fan or a medical-surgical vacuum outlet, unless the outlet is 3 feet (914 mm) above the outside-air inlet.

DIVISION 4

VENTILATION AIR

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
95.400 Basic Provisions.

SEC. 95.400. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 4 of the CMC is hereby adopted by reference.

DIVISION 5

EXHAUST SYSTEMS

(Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)

Section
95.500 Basic Provisions.

SEC. 95.500. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 5 of the CMC is hereby adopted by reference.

DIVISION 6

DUCT SYSTEMS

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

Section
95.600 Basic Provisions.

SEC. 95.600. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 6 of the CMC is hereby adopted by reference.

DIVISION 7

COMBUSTION AIR

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

Section
95.700 Basic Provisions.

SEC. 95.700. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 7 of the CMC is hereby adopted by reference.

DIVISION 8

CHIMNEYS AND VENTS

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

Section
95.800 Basic Provisions.

SEC. 95.800. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 8 of the CMC is hereby adopted by reference.

DIVISION 9

INSTALLATION OF SPECIFIC APPLIANCES

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

Section
95.900 Basic Provisions.

SEC. 95.900. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 9 of the CMC is hereby adopted by reference.

DIVISION 10

BOILERS AND PRESSURE VESSELS

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
95.1000 Basic Provisions.

SEC. 95.1000. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 10 of the CMC is hereby adopted by reference.

DIVISION 11

REFRIGERATION

(Amended by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)

Section
95.1100 Basic Provisions.

SEC. 95.1100. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 11 of the CMC is hereby adopted by reference.

DIVISION 12

HYDRONICS

(Division amended in entirety by Ord. No. 174,827, Eff. 10/27/02, Oper. 11/1/02.)

Section
95.1200 Basic Provisions.

SEC. 95.1200. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 12 of the CMC is hereby adopted by reference.

DIVISION 13

FUEL GAS PIPING

(Added by Ord. No. 172,595, Eff. 6/28/99, Oper. 7/1/99.)

Section
95.1300 Basic Provisions.

SEC. 95.1300. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 13 of the CMC is hereby adopted by reference.

DIVISION 14

PROCESS PIPING

(Added by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)

Section
95.1400 Basic Provisions.

SEC. 95.1400. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 14 of the CMC is hereby adopted by reference.

DIVISION 15

SOLAR ENERGY SYSTEMS

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
95.1500 Basic Provisions.

SEC. 95.1500. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 15 of the CMC is hereby not adopted by reference.

DIVISION 16

STATIONARY POWER PLANTS

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

Section
95.1600 Basic Provisions.

SEC. 95.1600. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 16 of the CMC is hereby adopted by reference.

DIVISION 17

REFERENCED STANDARDS

(Amended by Ord. No. 182,848, Eff. 1/3/14.)

Section

SEC. 95.1700. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 17 of the CMC is hereby adopted by reference.

DIVISION 18

APPENDICES

(Added by Ord. No. 179,327, Eff. 12/10/07, Oper. 1/1/08.)

Section
95.1800 Basic Provisions.

SEC. 95.1800. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Appendices B and C of the CMC are adopted by reference. Appendices A, D, E, F, G and H of the CMC are not adopted.

ARTICLE 6

MISCELLANEOUS

Division
A (Miscellaneous)
C Fabricator Approvals
D Report of Residential Property Records and Pending and Recorded Liens

DIVISION A

(MISCELLANEOUS)

Section
96.02 Excavating, Depositing, Dumping – Earth, Sand, Gravel, Etc. – Where Prohibited.
96.05 Declaring Certain Area Subject to Inundation and Prohibiting Construction of Certain Buildings Therein.

SEC. 96.02. EXCAVATING, DEPOSITING, DUMPING – EARTH, SAND, GRAVEL, ETC. – WHERE PROHIBITED.

(a) No person shall, upon any private property within any residence district as described in the zoning laws of this City, dig, excavate, separate, screen or dredge for sand, gravel, earth, rock, stone, minerals, or any other substance so as to cause sand, dust or dirt to be either blown or deposited over and upon the inhabited premises of others or across or upon any public way, and no person shall, in connection with any such operation, cause loud noises by the use of steam shovels, tractors, trucks or other power machinery to be made, to the annoyance of occupants of adjacent or nearby habitations.

(b) No person shall, upon any private property within any residence district, as described in the zoning laws of this City, dump or deposit, to a level above the official grade of an abutting street, any loose earth, sand, gravel or any other similar material so as to cause or result in sand, dust or dirt being blown over and upon the inhabited premises of others, or across any public way, or so as to cause or allow such materials to be washed or eroded over and upon the premises of another or upon any public way.

(c) The foregoing prohibitions shall not apply to work necessary for the erection or alteration of a building or structure pursuant to a valid building permit issued under the provisions of Article 1, Chapter IX of the LAMC; nor to improvement work done pursuant to a plan for subdividing and improving land carried out as contemplated by Ordinance No. 79,310; nor to work done pursuant to an express permit therefor issued under Article 4, Chapter VI of the LAMC or under any other ordinance of this City. Provided, however, that no person shall claim the benefit of this exception who does not, diligently and without unnecessary or unreasonable delay, prosecute such exempted improvement work to completion, in a manner calculated to avoid undue annoyance to the occupants of nearby habitations. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(d) No person shall dump, deposit, move or place any earth, sand, gravel, rock, debris or other material, or maintain, permit or allow the same to remain in a condition so as to create the danger, possibility or probability that the same will roll, slip, slide, erode, flow or wash upon or over any public, or privately owned property without prior written consent of the owner thereof, or upon or over any public place, highway, street, alley or way.

(e) No person shall, when hauling any earth, sand, gravel, rock, stone, debris, paper or any other substance over any public street, alley or other public place, allow such materials to blow or spill over and upon the public street, alley or other public place or adjacent private property.

(f) No person shall, when excavating, compacting, hauling or moving earth, sand, gravel, rock, stone, debris, or any other similar substance, cause, allow, or permit any mud, earth, sand, gravel, rock, stone, debris or other substance to drop, be deposited, or fall from the body, tires, or wheels of any vehicle so used upon any public street or alley without immediately and permanently removing the same therefrom.

SEC. 96.05. DECLARING CERTAIN AREA SUBJECT TO INUNDATION AND PROHIBITING CONSTRUCTION OF CERTAIN BUILDINGS THEREIN.

(a) Every part and portion of that territory hereinafter described, which constitutes a part of the area known as Laguna-Dominguez area, and located within the corporate limits of the City of Los Angeles, which is less than fifteen and one-half feet elevation above sea level, United States Geological Survey, is hereby declared to be subject to inundation, and is, therefore, declared to be unfit for human habitation. Said territory is more particularly described as follows:

Beginning at the intersection of the easterly prolongation of the center line of that portion of One Hundred Seventieth Street (in the City of Gardena) extending westerly from Vermont Avenue with the westerly boundary of the City of Los Angeles as said boundary existed January 1, 1942; thence southerly along said westerly boundary of the City of Los Angeles in its various courses to the northeasterly prolongation of the center line of that portion of One Hundred Eighty-second Street tending southwesterly from Vermont Avenue; thence northeasterly along said last-mentioned northeasterly prolongation to the center line of Vermont Avenue; thence southerly along said last-mentioned center line in its various courses to the westerly prolongation of the southerly line of Lot 109, McDonald Tract, as per map recorded in Book 15, pages 21 and 22, Miscellaneous Records of Los Angeles County; thence easterly along said last-mentioned prolongation and said last-mentioned southerly line to a point in the northerly prolongation of the westerly line of Lot 75 of Tract No. 4671, as per map recorded in Book 56, pages 30 and 31 of Maps, Records of said County; thence southerly along said last-mentioned northerly prolongation to the center line of One Hundred Ninetieth Street; thence northeasterly long said last-mentioned center line to the northerly prolongation of the center line of that portion of Hamilton Street extending southerly from One Hundred Ninetieth Street; thence southerly along said last-mentioned northerly prolongation to the southeasterly boundary line of the City of Los Angeles as said boundary existed January 1, 1942; thence northeasterly along said last-mentioned boundary of the City of Los Angeles and continuing along said boundary to the easterly prolongation of the center line of that portion of One Hundred Eighty-ninth Street extending westerly from Figueroa Street; thence westerly along said last-mentioned easterly prolongation and along said center line of One Hundred Eighty-ninth Street to the southerly prolongation of the westerly line of Lot 8, M. E. Woods Gardena Tract, as per map recorded in Book 10, page 172 of Maps, Records of said County; thence northerly along said last-mentioned southerly prolongation and said westerly line of Lot 8 to the northwesterly corner thereof; thence southwesterly along the southeasterly line of Lot 21 of Stimson Bros.' Resubdivision of Farm Lots 18 and 19 South Gardena Tract, as per map recorded in Book 52, page 98, Miscellaneous Records of said County, to the most southerly corner of said Lot 21; thence northerly along the westerly line of said Lot 21 and the northerly prolongation thereof to the center line of One Hundred Eighty-fourth Street; thence southwesterly along said last-mentioned center line to the southerly prolongation of the westerly line of Lot 27, said Stimson Bros. Resubdivision of Farm Lots 18 and 19, South Gardena tract; thence northerly along said last-mentioned southerly prolongation and said westerly line and the northerly prolongation thereof to the easterly prolongation of the hereinbefore mentioned center line of One Hundred Seventieth Street; thence westerly along said last-mentioned easterly prolongation to the point of beginning.

(b) No building or portion thereof which is designed for residential purposes or as a place of public assembly as hereinafter described, or for both, may be constructed, and no existing building may be altered so as to be used either in whole or in part for such use, upon any part or portion of the premises described in Subdivision (a) hereof, which is less than fifteen and one-half feet elevation above sea level, United States Geological Survey.

(c) A "place of public assembly", as used in Subdivision (b) hereof means and includes every place designed for or used for the congregation or gathering of twenty (20) or more persons, whether such gathering be of a public, restricted, or private nature. Assembly halls, churches, schools, auditoriums, recreation halls, pavilions, places of amusement, dance halls, opera house, motion picture theatres, and the like, are included within this term.

(d) No permit shall be issued by any officer or employee of the City for the doing of any act for which such permit is required by any provision of Chapter IX of the LAMC when such act, if performed, would constitute a violation of this section. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

DIVISION C

FABRICATOR APPROVALS

(Added by Ord. No. 143,200, Eff. 5/7/72.)

Section	
96.200	Statement of Purpose.
96.201	Definitions.
96.203	Scope and Effect of Approvals.
96.204	Issuance of Approvals – Procedures.
96.205	Suspension and Revocation of Approvals.

SEC. 96.200. STATEMENT OF PURPOSE.

If it is the purpose of this division to safeguard the life, health, property and general welfare of the people of this City by regulating work performed at locations other than construction sites which work, if performed at such construction sites, would be subject to certain inspection requirements of the Los Angeles Municipal Code.

SEC. 96.201. DEFINITIONS.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

The following terms are defined for purposes of this division.

DEPARTMENT. The Department of Building and Safety of the City of Los Angeles.

GENERAL MANAGER. The General Manager of the Department.

PERSON. Any natural person and any firm, association, partnership, corporation or other business entity.

TYPE I FABRICATOR. (Amended by Ord. No. 180,619, Eff. 5/12/09.) A person who, at a place or location other than the site of a particular building or structure to be erected or under construction in the City of Los Angeles, performs work which:

1. If performed at such construction site would be subject to the inspection requirements of Section 91.1704 of the Los Angeles Municipal Code; or
2. Is required by a provision of Article I, Chapter IX, of the Los Angeles Municipal Code to be performed by a Type I Fabricator.

TYPE II FABRICATOR. Any person who, at the place or location other than the site of a particular building or structure to be erected or under construction in the City of Los Angeles, performs work which if performed at the construction site would be subject to the inspection requirements of Sections 91.108, 93.0304, 94.103.5, or 95.115 of the Los Angeles Municipal Code. (Amended by Ord. No. 180,619, Eff. 5/12/09.)

APPROVAL. A written authorization issued to Type I and Type II Fabricators pursuant to the provisions of this division containing the name of the fabricator and the exact facility or physical plant where the work that is subject to these provisions will be performed.

SEC. 96.203. SCOPE AND EFFECT OF APPROVALS.
(Amended by Ord. No. 180,619, Eff. 5/12/09.)

An approval issued pursuant to this division shall constitute authorization for the persons named in the approval to perform work as Type I or Type II Fabricators at the locations designated in the approval and shall constitute authorization to utilize the work so produced without the inspections which, if the work were performed at the construction site of a building or structure in the City, would be required by LAMC Sections 91.108, 91.1704, 93.0304, Subsection 94.103.5 and Section 95.115; provided, however, that any Type I Fabricator who performs work described in LAMC Subdivision 91.1705.13.1 shall not be exempt from the inspection requirements of that subsection. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

No approval issued pursuant to the provisions of this division shall be construed as authority to violate any law or regulation applicable in the City of Los Angeles, nor shall any approval be construed as having any effect whatsoever upon the laws or regulations of the State of California applicable to contractors.

SEC. 96.204. ISSUANCE OF APPROVALS – PROCEDURES.

(a) **Applications.** Applications for initial approvals shall be made on forms provided by the Department, which forms shall include a statement that the applicant agrees to pay all inspection charges imposed pursuant to Subsection (i) of this section. No application will be accepted unless accompanied by the appropriate fee as hereinafter set forth, which fee is unrelated to the inspection charges imposed pursuant to Subsection (i) of this section. **(Amended by Ord. No. 165,310, Eff. 12/31/89.)**

(b) **Fees. (Amended by Ord. No. 180,868, Eff. 10/22/09.)** A fee of \$1,207.00 shall accompany each application for approval and a renewal fee of \$905.00 shall accompany each application for renewal. A fee of \$679.00 shall be charged for the approval of each branch plant and shall be in addition to fees required for the main fabricator plant. A renewal fee of \$264.00 shall be charged for the renewal of each branch plant in addition to the main fabricator plant. A fee of \$679.00 shall accompany each application for a major modification (includes changes in a quality control system or key management personnel) and a fee of \$226.00 shall accompany each application for a clerical modification.

A fee of \$ 377.00 shall accompany each request for acceptance of a material fabricated by an unauthorized fabricator. This request will be accepted only once from any individual fabrication company. Inspection and travel charges shall be the same as those charged to an applicant seeking to become an authorized fabricator.

EXCEPTION: An unauthorized fabricator who has filed a complete and acceptable application and submittal requesting to become an authorized fabricator and has paid the application fee may submit additional requests provided:

1. A separate application is made for each request, and
2. A fee of \$362.00 accompanies each request.

The fees for approval of new fabricators include four hours of Departmental processing time. The fees for major modifications of fabricators and for approval of a branch plant include four hours of Departmental processing time.

The fees for a material fabricated by an unauthorized fabricator include two hours of Departmental processing time. The fees for renewals and minor modifications include three hours and one and one-half hours, respectively, of Departmental processing time.

The applicant shall agree in writing as part of the application, to pay supplemental fees at the rate of \$113.00 per hour to cover the time of processing that is in excess of the time provided for in the approval, renewal or modification fee specified in this section. Processing shall include those activities directly related to the approval of fabricators for which an application has been made and shall include all research, review, investigation, plant inspection, travel, correspondence, clerical and consultation time pertinent to the application. The Department may require an estimated supplemental fee to cover the cost of time and travel expense to be paid at the time of filing the application and/or before any travel to plants outside of the State of California. However, the applicant shall pay the supplemental fee in full prior to final action on the application by the Department.

The fees specified in this section, including supplemental fees, and application fees are not refundable once work has been performed by the Department, regardless of whether the action taken is approval or denial.

EXCEPTION: Supplemental fees paid in advance, which are in excess of the total actual fees, may be refundable.

(c) **Duration of Approval.** Any approval issued pursuant to the provisions of this division shall remain valid for a period of one year from the date of issuance thereof unless revoked by the Department pursuant to the provisions of this division.

(d) **Investigation of Application. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** The Superintendent of Building shall investigate every application submitted pursuant to Subsection (a) of this section to determine whether the applicant possesses qualifications sufficient to justify the issuance of the requested approval. In making this determination the Superintendent of Building may consider the experience, education and training of the applicant and the applicant's employees; the quality control standards maintained by the applicant; the equipment and facilities of the applicant; and the physical plant which will be designated in the requested approval if the same is issued. The Superintendent of Building may also consider any other factors pertaining to the manufacturing processes of the applicant as the Superintendent may, in the reasonable exercise of the Superintendent's discretion, deem to be relevant.

(e) **Action Upon Applications. (Amended by Ord. No. 165,310, Eff. 12/31/89.)** If it is determined that an applicant possesses qualifications sufficient to justify the issuance of the requested approval, the Department shall issue the same to the applicant. If a contrary determination is made, the application shall be denied and the Department shall notify the applicant of that action. Such notification shall be in writing and shall specify the reasons for the denial. Initial applications will expire 12 months after the filing date if the request for approval of a fabricator has not been cleared of corrections and approved. No approval shall be issued until the application is refiled and a new fee paid.

EXCEPTION: The Department or the Board may grant extensions of time if an applicant submits in writing sufficient evidence that unusual conditions or circumstances precluded the approval within the allocated time.

(f) **Conditional Approvals.** The Department may impose reasonable conditions precedent upon the issuance of approvals and may include in any approval special conditions deemed necessary to insure that the work to be performed under such approval will comply with the provisions of Chapter IX of the Los Angeles Municipal Code. Such special conditions may include, but are not limited to, special quality control procedures and requirements for specific identification of particular materials. Any special conditions included in an approval shall impose mandatory duties on the fabricator to comply therewith.

(g) **Rules and Regulations. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** The Superintendent of Building shall establish such rules and regulations as the Superintendent may deem appropriate relative to the following:

1. The implementation of the investigatory duties imposed upon the Superintendent by Subsection (d) of this section;
2. The maintenance of standards applicable to the facilities, equipment, employees and physical plants of approved fabricators;
3. Such other matters as are within the scope of this division.

(h) **Inspections. (Amended by Ord. No. 185,587, Eff. 7/16/18)**

1. The Superintendent of Building shall cause to be made such inspections of a fabricator's facilities, equipment, procedures, materials and construction sites upon delivery of fabricated products as, in the reasonable exercise of discretion, shall be deemed necessary to carry out the purpose of this division.

Initial Inspections. Inspections conducted prior to the issuance of an approval for which an application has been made.

Annual Inspections. In-plant inspection at least once a year.

Periodic Monitoring Inspections. Unannounced in-plant inspections of the premises of a fabricator to whom an approval has been issued.

Job Inspections. On-site or in-plant inspection of fabricated material to be used at construction sites within the City.

Requested Inspections. Inspections conducted at the specific written request of a fabricator at a prearranged time and inspections conducted of fabricated material of an unlicensed fabricator.

2. All in-plant inspections of fabrication facilities will be performed by Department personnel, except that an initial inspection conducted prior to the issuance of a Type I approval applicable to facilities situated more than 60 miles from the Los Angeles City Hall may, at the election of the applicant, be performed by an approved testing agency. Such inspection by an approved testing agency, however, will not preclude such further investigation relative to the application as the Superintendent of Building, pursuant to Subdivision (d) hereof, may deem necessary.

(i) **Inspection Charges. (Amended by Ord. No. 180,868, Eff. 10/22/09.)**

1. Whenever an inspection is conducted by Department personnel at facilities located more than 60 air miles from the Los Angeles City Hall, whether such inspection be conducted pursuant to Subsection (d) or Subsection (h) of this section, or both, the fabricator shall reimburse the City of Los Angeles for the cost thereof in accordance with the following:

A. **Automobile Travel.** Mileage at the City rate per mile for all miles driven, both ways, between a point 60 miles from Los Angeles City Hall to the facilities where the inspection is to be conducted, plus \$98.00 per hour for all inspection and travel time for each inspector required.

B. **Air Travel.** The coach-class fare of a regularly scheduled airline from and to Los Angeles International Airport and the airport closest in proximity to the facilities to be inspected; the cost of motor vehicle transportation to and from such airport and such facilities; inspection and travel time at the rate of \$98.00 per hour for each inspector required.

C. **Per Diem.** Per diem at the rate of \$52.00 per day for inspections requiring more than eight hours of combined travel and inspection time. The cost of lodging and meals required during the combined travel and inspection time.

2. Whenever periodic monitoring inspections, requested inspections, or job inspections are conducted by Department personnel at facilities or sites 60 air miles or less from the Los Angeles City Hall, the fabricator shall pay the City of Los Angeles a fee of \$98.00 per inspection, per inspector, plus \$98.00 per hour for all inspection and travel time in excess of one hour.

3. The Department may require an estimated travel expense fee to be paid prior to inspection.

The initial application for approval, and the renewal application, shall include a statement that the applicant agrees to pay all inspection charges imposed pursuant to this subsection.

(j) **Notification.** Prior to fabrication of products to be used within the City, the licensed fabricator shall notify the Department of all fabrication schedules and delivery dates. **(Added by Ord. No. 165,310, Eff. 12/31/89.)**

(k) **Identification.** All fabricated products to be used within the City shall be identified in a manner acceptable to the Department. **(Added by Ord. No. 165,310, Eff. 12/31/89.)**

SEC. 96.205. SUSPENSION AND REVOCATION OF APPROVALS.

(a) **Ground.** An approval issued pursuant to the provisions of this division may be suspended or revoked upon the following grounds:

1. The performance of work for which the approval was issued which fails to comply with the applicable provisions of Chapter IX of the Los Angeles Municipal Code.

2. Failure of the fabricator to satisfy any condition of the approval, or to comply with applicable rules and regulations established pursuant to Subsection (g) of Section 96.204 of this Code. **(Amended by Ord. No. 143,447, Eff. 7/16/72.)**

3. Any of the reasons specified in Section 98.0202 of the Los Angeles Municipal Code.

In addition to the foregoing, any approval may be temporarily suspended for failure to reimburse the City of Los Angeles for inspection costs as required by Subsection (i) of Section 96.204 of this division.

DIVISION D

REPORT OF RESIDENTIAL PROPERTY RECORDS AND PENDING AND RECORDED LIENS

(Division D Added to Ch. 9, Art. 6 by Ord. No. 144,942, Eff. 8/24/73.)
(Title Amended by Ord. No. 151,841, Eff. 2/17/79.)

Section	
96.300	Intent.
96.301	Definitions.
96.302	Reports Required.
96.303	Application.
96.304	Contents of Reports.

- 96.305 Fee for Reports.
- 96.306 Effective Period of Report.
- 96.307 Delivery of the Report.
- 96.308 Exceptions.
- 96.309 Non-compliance Not to Invalidate Sale or Exchange: Exception.
- 96.309.1 Information Furnished as Ground for Rescission.
- 96.310 Effective Date.

SEC. 96.300. INTENT.

(Amended by Ord. No. 174,478, Eff. 4/27/02.)

Pursuant to Article 6.5 (commencing with Section 38780) of Chapter 10, Part 2, Division 3, Title 4, of the California Government Code, it is the intent of the Council of this City to assure that the purchasers of residential property within the City are furnished with reports of matters of City record pertaining to the authorized use, occupancy and zoning classification of residential property prior to sale or exchange. It is further the intent of the City Council to assure that purchasers of residential property within the City are furnished with reports of certain pending special assessment liens listed below; information regarding the installation of metal bars, grilles, grates, security roll-down shutters, and similar devices over emergency escape windows in sleeping rooms; smoke detectors; impact hazard glazing; water conservation devices; seismic gas shutoff valves; certificates of occupancy and sewer permits.

SEC. 96.301. DEFINITIONS.

For the purposes of this division:

- (a) **“Owner”** shall mean any person, partnership, association, company, corporation or fiduciary in whom or which is vested legal title to residential property as defined herein, or who or which possesses the power to convey legal title to such residential property.
- (b) **“Residential property”** shall mean:
 - (1) Any real property improved with one or more buildings or structures which in whole or in part are used for or are legally permitted to be used for dwelling units or guest room purposes.
 - (2) Any vacant real property located in a zone wherein dwelling or guest room uses are legally permitted.
- (c) **“Agreement of sale”** shall mean any agreement, reduced to writing, which provides that legal title of any real property shall thereafter be conveyed from one owner to another.
- (d) **“Brush abatement”** shall mean those proceedings initiated by the City under the authority of Title 4, Division 3, Part 2, Chapter 13, of the Government Code of the State of California, where the Fire Department has determined that a fire hazard exists by reason of the presence upon real property of brush which the City Council may order removed under the authority of the above-mentioned chapter of the Government Code.

SEC. 96.302. REPORTS REQUIRED.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Prior to entering into an agreement of sale or contracting for an exchange of any residential property, or, where an escrow agreement has been executed in connection therewith, prior to close of escrow, the owner or the owner’s agent shall obtain from the Department a report of the Superintendent of Building and a report of the City Engineer; said reports, containing the information specified in LAMC Section 96.304.

SEC. 96.303. APPLICATION.

(Amended by Ord. No. 180,619, Eff. 5/12/09.)

Upon written application by the owner or the owner’s agent to the Department of Building and Safety on forms provided by the City and the payment of a fee specified herein to the Department of Building and Safety, the Superintendent of Building and the City Engineer shall review the appropriate City records. This application shall contain the name and address of the owner, the legal description, the county assessor’s map book page and parcel number and, if available, the street address of the residential property for which the reports are sought.

The application for the report regarding a sale or exchange of a residential property shall not be accepted by the Department of Building and Safety until such time as the applicant provides the Department of Building and Safety with one of the following:

1. A declaration under penalty of perjury by the owner certifying that in the residential property for which the report is sought:
 - (a) Smoke detectors have been installed in accordance with Section 91.8603 of the Los Angeles Municipal Code; and
 - (b) Impact hazard glazing has been installed in accordance with Section 91.6101 of the Los Angeles Municipal Code; and
 - (c) Water conservation devices have been installed in accordance with Section 122.03 of the Los Angeles Municipal Code;
 - (d) Metal bars, grilles, grates, security roll-down shutters, and similar devices over emergency escape windows in sleeping rooms have been installed in accordance with Section 91.6304.3 of the Los Angeles Municipal Code; and
 - (e) Lights and locks have been installed in accordance with Section 91.8607 of the Los Angeles Municipal Code; and
 - (f) Seismic gas shutoff valves have been installed in accordance with Section 94.1217 of the Los Angeles Municipal Code.
2. A declaration under penalty of perjury by the owner certifying that in the residential property for which the report is sought:
 - (a) Smoke detectors will be installed in accordance with Section 91.8603 of the Los Angeles Municipal Code; and
 - (b) Impact hazard glazing will be installed in accordance with Section 91.6101 of the Los Angeles Municipal Code.

The owner shall further certify that such smoke detectors and/or impact hazard glazing will be installed prior to entering into an agreement of sale or contracting for an exchange of a residential property, or, where an escrow agreement has been executed in connection therewith, prior to close of escrow, and that within ten days after the smoke detectors and/or impact hazard glazing is/are installed the owner will so advise the Department of Building and Safety in

writing; and

(c) Water conservation devices will be installed in accordance with Section 122.03 of the Los Angeles Municipal Code;

(d) Metal bars, grilles, grates, security roll-down shutters, and similar devices over emergency escape windows in sleeping rooms will be installed in accordance with Section 91.6304.3 of the Los Angeles Municipal Code; and

(e) Lights and locks will be installed in accordance with Section 91.8607 of the Los Angeles Municipal Code; and

(f) Seismic gas shutoff valves will be installed in accordance with Section 94.1217 of the Los Angeles Municipal Code.

3. A declaration under penalty of perjury by the buyer certifying that in the residential property for which the report is sought:

(a) Smoke detectors will be installed in accordance with 91.8603 of the Los Angeles Municipal Code Section; and

(b) Impact hazard glazing will be installed in accordance with Section 91.6101 of the Los Angeles Municipal Code.

The buyer shall further certify that such smoke detectors and/or impact hazard glazing will be installed within 30 days after entering into an agreement of sale or contracting for an exchange of a residential property, or, where an escrow agreement has been executed in connection therewith, within 30 days after close of escrow, and that within 10 days after the smoke detectors and/or impact hazard glazing is/are installed the buyer will so advise the Department of Building and Safety in writing; and

(c) Water conservation devices have been installed in accordance with Section 122.03 of the Los Angeles Municipal Code;

(d) Metal bars, grilles, grates, security roll-down shutters, and similar devices over emergency escape windows in sleeping rooms have been installed in accordance with Section 91.6304.3 of the Los Angeles Municipal Code; and

(e) Lights and locks have been installed in accordance with Section 91.8607 of the Los Angeles Municipal Code; and

(f) Seismic gas shutoff valves will be or have been installed in accordance with Section 94.1217 of the Los Angeles Municipal Code.

4. The Department of Building and Safety shall deliver to the applicant, either in person or by mail, the reports required within 15 calendar days after the date of the acceptance of the application.

5. The owner must also provide a declaration under penalty of perjury that the owner has inspected the property for the existence of protected trees and the number of protected trees, if any, located on the subject property. For the purposes of this section, the definition of “**protected tree**” set forth in Section 46.01 the Los Angeles Municipal Code shall apply. The declaration shall also authorize the Bureau of Street Services within the Department of Public Works to verify this information by entry upon the subject property. A fee may be collected for any inspection required to verify the declaration. The fee shall be determined and adopted in the same manner as provided in Section 12.37 I.1 of the Los Angeles Municipal Code for establishing fees.

SEC. 96.304. CONTENTS OF REPORTS.

(a) **Report of Superintendent of Building.** The report of the Superintendent of Building shall contain the following information so far as it is available in the records of the Department of Building and Safety:

(1) The zoning classification of the property in question.

(2) The authorized occupancy and use of the subject property as shown by building permits or certificates of occupancy of record.

(3) Existing orders or the estimated amount of pending assessments of record which are the result of the Superintendent of Building having awarded a contract for the demolition of buildings or structures upon the subject residential property which demolitions were ordered to be performed by the Superintendent of Building under the provisions of the Los Angeles Municipal Code.

(4) The declaration made pursuant to the provisions of LAMC Section 96.303. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(5) A copy of any Certificate of Occupancy issued with respect to the subject property pursuant to LAMC Section 91.109. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(6) A listing of all document and reference numbers written or printed directly on the individual lot for which the report is requested as shown on the Zoning Map maintained by the Department of Building and Safety. **(Added by Ord. No. 157,177, Eff. 11/28/82.)**

(7) Any current resolution by the City Council placing the property into the Rent Escrow Account Program of the City of Los Angeles. Notice of this resolution shall also be filed in the Office of the County Recorder. **(Added by Ord. No. 170,445, Eff. 5/6/95, Oper. 7/5/95.)**

(b) **City Engineer Reports. (Amended by Ord. No. 151,841, Eff. 2/17/79.)** The City Engineer report shall contain the following information:

(1) An estimate of pending assessment liens on residential properties for public maintenance of private streets. Such estimate shall be provided upon determination of the cost of correcting any hazardous condition upon a private street whenever such corrective work is ordered by the Board of Public Works pursuant to the provisions of Section 65.13 of this Code.

(2) An estimate of pending special assessment liens for public improvements proposed under assessment procedures authorized by State law for which an ordinance of intention has been adopted by the City Council of this City.

(3) Pending special assessment liens for weed clearance originating under the provisions of Title 4, Division 3, Part 2, Chapter 13 of the Government Code of the State of California.

(4) Notices of record to repair sidewalks issued by the Department of Public Works under the authority of Chapter 22 of Part 3 of Division 7 of the Streets and Highways Code of the State of California.

(5) Existing orders or notices of record received by the Department of Public Works from the Fire Department requesting the initiation of proceeding for brush abatement under the provisions of Title 4, Division 3, Part 2, Chapter 13, of the Government Code of the State of California.

(6) All recorded assessment liens as known to the City Engineer except for street lighting maintenance assessment liens.

(7) Whether or not a house sewer connection permit has been issued pursuant to Section 64.12 of the Los Angeles Municipal Code. **(Added by Ord. No. 154,431, Eff. 11/6/80.)**

(8) Notices of making of application for essential public utilities assessments pursuant to Chapter 8 of Division 6 of the Los Angeles Administrative Code, which have not yet been acted upon by the City Council, or, if acted upon, have resulted in an assessment lien which is not yet delinquent. **(Added by Ord. No. 162,383, Eff. 6/13/87.)**

SEC. 96.305. FEE FOR REPORTS.

(Amended by Ord. No. 166,567, Eff. 2/18/91.)

Every owner or agent for the owner, who applies for a Report of Residential Property Records and Pending Special Assessment Liens shall pay to the Department of Building and Safety a fee therefor in the sum of sixty-five dollars (\$65.00). Of this amount, eighteen dollars (\$18.00) shall be credited to the department's receipts of the Bureau of Engineering, Department of Public Works, and the balance shall be credited to the department receipts of the Department of Building and Safety.

SEC. 96.306. EFFECTIVE PERIOD OF REPORT.

No new report need be obtained by a owner for a residential property for a period of six months after the issuance of a report under the provisions of this division. During said six-months period the City may notify the applicant, at no extra charge to the applicant, of new information of City record that makes the original report obsolete.

SEC. 96.307. DELIVERY OF THE REPORT.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The reports of the Superintendent of Building and the City Engineer shall be delivered by the owner or the owner's agent to the buyer or transferee of the subject residential property prior to entering into an agreement of sale or exchange of said property. Except that where in connection with said sale or exchange an escrow agreement has been executed, the seller or the seller's agent may transmit said reports to the escrow agent with an instruction that said agent present these reports to the buyer or transferee prior to close of escrow, or may instruct the escrow agent to obtain said reports pursuant to the provisions of LAMC Sections 96.303 and 96.305 and present them to the buyer or transferee prior to close of escrow.

SEC. 96.308. EXCEPTIONS.

(Amended by Ord. No. 153,077, Eff. 11/30/79.)

The provisions of the division shall not apply to:

- (a) Property exempt from taxation under the Documentary Transfer Tax Act of the State of California.
- (b) The first sale of a residential building or condominium located in a subdivision whose final map has been approved and recorded in accordance with the Subdivision Map Act not more than two years prior to the first sale. Provided, however, that such exception shall not apply to a condominium created in a condominium conversion project, as said terms are defined in LAMC Section 12.03. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 96.309. NON-COMPLIANCE NOT TO INVALIDATE SALE OR EXCHANGE: EXCEPTION.

No sale or exchange of residential property subject to the provisions of this division shall be invalidated because of the failure of any person responsible for furnishing the report required by this division to furnish such report unless such failure is an act or omission which would be sufficient ground for the rescission of such sale or exchange in the absence of this division.

SEC. 96.309.1. INFORMATION FURNISHED AS GROUND FOR RESCISSION.

Any contract for the sale or exchange of residential property subject to the provisions of this division, including escrow contracts, shall not be invalidated as a result of the information furnished in said report unless it reveals a material misrepresentation or concealment by the owner or unless it reveals a material mistake by both owner and prospective buyer or transferee which would justify a rescission of the sale or exchange in the absence of this division. Should such report reveal such misrepresentation, concealment, or mistake, the sale or exchange may be rescinded or cancelled at the option of the buyer or transferee.

SEC. 96.310. EFFECTIVE DATE.

For the first six months after the effective date of the ordinance creating this division, compliance with its provisions by owners of residential property or their agents shall be on a voluntary basis. After the expiration of the aforesaid six-month period, compliance with the provisions of this division shall be mandatory upon those owners of residential property or their agents to whom by its terms it applies.

ARTICLE 7

BOILERS, UNFIRED PRESSURE VESSELS AND OTHER EQUIPMENT

(Article 7, Chapter IX, Amended by Ord. No. 179,329 Eff. 12/10/07, Oper. 1/1/08.

Incorporating by Reference Provisions of Title 8 of the California Code of Regulations.)

Division
1 General
2 Licensing
3 Boiler Permits

DIVISION 1

GENERAL

Section

- 97.0101 Definitions.
- 97.0102 Powers of Department.
- 97.0103 Duty to Examine Applicants.
- 97.0104 Duty of Enforcement.
- 97.0105 Certificate of License and Inspection.
- 97.0106 Department – Condemnation – Notice.
- 97.0108 Department – Revocation of License.

SEC. 97.0101. DEFINITIONS.

For the purpose of this article, the following words are defined:

1. **“Boiler”** means any High Pressure Boiler, Low Pressure Boiler or Hot Water Boiler.
2. **“Board”** means the Board of Building and Safety Commissioners.
3. **“Department”** means the Department of Building and Safety.
4. **“High Pressure Boiler”** means any boiler furnishing steam in excess of 15 pounds per square inch or hot water at temperatures in excess of 250 degrees F. or at pressures in excess of 160 pounds per square inch.
5. **“Low Pressure Boiler”** means a boiler furnishing steam at pressures not exceeding 15 pounds per square inch.
6. **“Hot Water Boiler”** means a boiler greater than 120 gallons or 400,000 BTU per hour input furnishing hot water at pressures not exceeding 160 pounds per square inch or 210 degrees F. (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)
7. **“Deputy Inspector”** or **“Deputy Pressure Vessel Inspector”** means an inspector who has a valid California State Certificate of Competency to inspect boiler and pressure vessels, who has passed the Deputy Pressure Vessel Inspector exam administered by the City of Los Angeles and who is employed by an organization other than this Department. The organization shall be authorized by the State of California to inspect boilers and pressure vessels.
8. **“Pressure Vessel”** or **“Unfired Pressure Vessel”** means a closed container, having a nominal internal diameter, width, height, or cross section exceeding six inches regardless of length, containing liquids, gases or vapors subjected to pressures exceeding 15 pounds per square inch.
9. **“Superintendent”** means the Superintendent of Building or an authorized representative.

SEC. 97.0102. POWERS OF DEPARTMENT.

(a) **Authority and Jurisdiction.** (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.) The Department shall have authority and jurisdiction over all boilers, pressure vessels and automotive hoists, any of which are operated by or contain steam, air, gas, gasoline, electricity or diesel or semi-diesel engines, and steam engines or turbines or their multiple units, developing 50 horsepower or more, and shall inspect and license the use and operation of these apparatus, machinery or equipment, including those owned, operated or controlled by the City, as provided in this article.

EXCEPTIONS:

1. Boilers, pressure vessels and automotive hoists in private residences.
2. Boilers, pressure vessels and automotive hoists owned and operated by entities of the United States Government, County of Los Angeles, and the State of California.
3. Boilers, pressure vessels and automotive hoists operated or engaged in interstate commerce.

SEC. 97.0103. DUTY TO EXAMINE APPLICANTS.

(Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)

It shall be the duty of the Department to examine all applicants for steam engineer's license, steam engineer's turbine endorsement, boiler operator, gas and electric hoist operator's license, and diesel engineer license as provided in this article.

SEC. 97.0104. DUTY OF ENFORCEMENT.

The Department shall have the authority to make rules, regulations and safety standards to provide for the proper enforcement of this article. A violation of or failure to comply with any of the rules and regulations or safety standards shall be deemed to be a violation of this Code and shall be punishable as provided in this Code.

SEC. 97.0105. CERTIFICATE OF LICENSE AND INSPECTION.

(a) **Certificate of License.** (Amended by Ord. No. 185,587, Eff. 7/16/18.) A certificate of license shall be issued by the Superintendent of Building to any applicant who successfully passes the required examinations for license classifications set forth in LAMC Section 97.0103. The certificates of license shall show the classifications for which the applicant was examined and shall contain any other information the Superintendent deems necessary.

The certificates of license shall be serially numbered and shall be valid for a period of one year unless otherwise stated in this Code.

(b) **Certificate of Inspection (Operating Permit).** A Certificate of Inspection (Operating Permit) shall be issued by the Department for any equipment that has been inspected in accordance with and found in compliance with the provisions of this article. The Certificate of Inspection (Operating Permit) shall contain any information the

Superintendent deems necessary, shall be serially numbered and shall show the name of the certifying inspector.

SEC. 97.0106. DEPARTMENT – CONDEMNATION – NOTICE.

(a) **Equipment Found Unsafe.** The Department is authorized to condemn any boiler, engine or other machine, apparatus, or mechanical device from use or operation for which a license or Certificate of Inspection (Operating Permit) from the Department is required, or by any provision of this article, if it is found by the Department to be dangerous or unsafe, or to constitute a hazard to life or property, regardless of whether or not that condition has resulted from deterioration, from wear and tear, from inherent defect, from defective installation, operation or maintenance.

(b) **Condemnation and Notice.** If the Department at any time finds any equipment or apparatus listed in this article is unsafe, the Department shall give written notice immediately to the owner or user.

(c) **Operation of Condemned Equipment. (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)** No person shall use or operate any condemned apparatus or equipment until it has been reconstructed and repaired. The Department may reinstate a revoked Certificate of Inspection (Operating Permit) or issue a new Certificate of Inspection (Operating Permit) or approval.

SEC. 97.0107. RESERVED.

SEC. 97.0108. DEPARTMENT – REVOCATION OF LICENSE.

The Department shall have the right and authority to revoke any license issued by the Department for violating any provisions of this Code.

Any revocation shall be in accordance with the provisions of Article 8, Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

DIVISION 2

LICENSING

Section

- 97.0201 Licenses Required.
- 97.0202 Application for the License Examination.
- 97.0203 Examinations – Fees – Exemptions.
- 97.0204 Minimum Experience Requirements for Examination.
- 97.0205 Conduct of Examination.
- 97.0206 Posting of License.
- 97.0207 Steam Boiler – Licensed Engineer to Be in Charge.
- 97.0208 Suspension or Revocation of Licenses.

SEC. 97.0201. LICENSES REQUIRED.

(a) **Scope. (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)** No person shall use or operate any boiler or steam generating apparatus of over five horsepower, carrying over 15 pounds of steam, or any steam engine or turbine or their multiple unit, developing 50 horsepower or more, or any diesel or semi-diesel engine of over 50 horsepower, unless the person has a valid license issued by the Department for its use or operation. The license shall clearly list the particular apparatus, machine or equipment for which it was issued.

A person having a valid unlimited horse power Steam Engineer's License issued by the Department, shall be entitled, without further license, to operate steam engines or their multiple units of any horsepower.

EXCEPTION: No license shall be required to operate any Diesel or semi-Diesel engine used for the purpose of providing standby power or emergency power.

(b) **Equipment Used for Agricultural Purposes.** Nothing in this article shall be deemed or construed to require the licensing of any operator of any apparatus, machinery or equipment used for agricultural purposes.

(c) **Unlicensed Operator.** No person shall employ or permit any Unlicensed person to operate any of the equipment enumerated in Subsection (a) of this section.

SEC. 97.0202. APPLICATION FOR THE LICENSE EXAMINATION.

(Title and Section Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)

Any person who meets the requirements set forth in LAMC Section 97.0204 may file with the Department a written application upon forms furnished by the Department. The application shall include the following information: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

- (1) The type of the machinery or equipment the applicant intends to operate.
- (2) The applicant's previous experience in the use or operation of similar machinery or equipment, and its size, type and capacity.
- (3) The names and addresses of previous employers and the length of time of each engagement.
- (4) The type of license requested.

SEC. 97.0203. EXAMINATIONS – FEES – EXEMPTIONS.

(a) **Fees.** The Department shall collect from every applicant for a license required by this article, the following fee:

LICENSE EXAMINATION FEES

Application	Initial Fee	Renewal Fee
Boiler Operator (35 HP)	\$50.00	\$25.00
Steam Engineer (500 HP)	\$50.00	\$25.00
Steam Engineer (unlimited HP)	\$50.00	\$25.00
Diesel Engineer	\$50.00	\$25.00
Equipment Operator	\$50.00	\$25.00
Deputy Pressure Vessel Inspector	\$125.00	\$50.00

On the initial application, licenses to operate up to three pieces of equipment are included. For a license to operate each additional piece of equipment, an additional \$15.00 fee shall be added to the application fee for each piece of equipment beyond the first three.

(b) **Failure to Pass.** No part of any sum shall be returned to any applicant who fails to pass the examination for which the fees were paid. If any applicant fails to receive the percentage required at the first examination, the applicant shall be entitled to take a second examination without payment of a second fee. In case any applicant fails to pass the second examination, the applicant shall be required to wait one month before the applicant may file another application for examination.

(c) **Reserved.**

(d) **Scope of License. (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)** The licensee is authorized to operate only the type or types of equipment specified on the license. The fee shall be no more than set forth in Subsection (a) of this section, regardless of the number of types of equipment shown on the license.

(e) **Existing Licenses. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** A license to operate any of the equipment specified in Subsection (a) of LAMC Section 97.0201 that is valid on the effective date of this ordinance shall be renewable. The types of equipment covered shall be established by the Department, with consideration given to similarity between various types of equipment.

(f) **Expiration and Renewal of Operator's or Deputy Inspector's License. (Title Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)**

- (1) All certificates of license issued under the provisions of this article shall expire at the end of one year following the date of issuance, unless sooner revoked.
- (2) Expired certificates of license may be renewed at any time within 12 months following the date of expiration. After the first month, the renewal fee shall be increased by 10% for each additional month that the license remains delinquent.
- (3) Each certificate of license may be renewed from year to year without examination upon payment of the renewal fee.

SEC. 97.0204. MINIMUM EXPERIENCE REQUIREMENTS FOR EXAMINATION.

In the issuance of licenses required by this article, and in the making of authorized appointments, the following minimum requirements as to experience shall govern:

- (1) Every Boiler Operator shall have had at least six months' experience in the operation of boilers over five horsepower.
- (2) Every Steam Engineer shall have had at least one year's experience as an engineer, or, in lieu, three years' experience as an assistant steam engineer.
- (3) Every Deputy Pressure Vessel Inspector shall have a valid Certificate of Competency to inspect boilers and pressure vessels issued by the State of California.
- (4) Every applicant for a license to operate any machinery or equipment listed in this article shall have had at least six months' experience operating that apparatus, machinery or equipment, or shall have completed a course of training that is, in the opinion of the Department, equivalent to six months' experience. **(Renumbered by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)**
- (5) **(Deleted by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)**

SEC. 97.0205. CONDUCT OF EXAMINATION.

The Department shall make a careful and thorough examination of the qualifications of every applicant for any license required by this article. The examination shall test the applicant's knowledge of the operation, care and maintenance of the apparatus, machinery or equipment set forth in the application.

SEC. 97.0206. POSTING OF LICENSE.

(Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)

Every license issued pursuant to the provisions of this article shall be posted by the owner at or near the apparatus, machinery or equipment, which the owner is operating. Operators of portable apparatus, machinery or equipment may post their valid license cards in lieu of the license certificate required by this article, and no owner of any license shall fail, refuse or neglect to keep their license or license card posted at all times when operating any apparatus, machinery or equipment.

SEC. 97.0207. STEAM BOILER – LICENSED ENGINEER TO BE IN CHARGE.

No person operating any steam boiler or engine under a license required by LAMC Section 97.0201 shall be absent for more than ten consecutive minutes while the steam boiler or engine is in operation, without leaving a licensed person in charge; nor shall any person, firm or corporation in control of the operation cause or permit the licensed person to be absent except as provided. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

Whenever any steam boiler or steam engine is operated within sight of the person having charge of the boiler or engine, or where the person has unobstructed access, the operation shall be deemed to comply with the requirements of this section.

SEC. 97.0208. SUSPENSION OR REVOCATION OF LICENSES.

The Department shall have the power and authority to suspend any license for a maximum of 60 days, or to revoke the license, for the violation of any of the provisions of this Code.

DIVISION 3

BOILER PERMITS

Section
97.0301 Boiler Permit – Fees.
97.0302 Qualified Installer.
97.0303 Safety Orders.
97.0304 Apparatus – Operation at Excessive Pressure.
97.0305 Safety Valve – Installation – Sealing.
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SEC. 97.0301. BOILER PERMIT – FEES.

(a) **Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** No person shall erect, install, operate, use or cause or permit to be erected, installed, operated or used, any equipment listed in LAMC Sections 97.0310 or 97.0314 or covered by the safety orders incorporated by LAMC Section 97.0303(b) without first obtaining an installation permit in writing from the Department for its installation and a Certificate of Inspection (Operating Permit) for its use and location.

(b) **Installation Permit Fee.** The Department shall charge and collect a fee of \$20.00 for each and every piece of equipment for which an installation permit is issued pursuant to this section.

Any expiration or revocation of a permit shall be done in accordance with Division 6 of Article 8, Chapter IX of this Code.

SEC. 97.0302. QUALIFIED INSTALLER.

No person shall install any boiler regulated by this Code, including any electrical and plumbing work that is incidental to installation, unless that person is a qualified installer or a person working under the direct supervision of a qualified installer.

For the purpose of this section, a qualified installer is a person who holds a valid contractor's license in the proper classification issued by the State of California.

SEC. 97.0303. SAFETY ORDERS.

(a) **General.** Except for those installed in private residences, every hot water boiler, every steam boiler, or unfired pressure vessel shall be constructed, installed and maintained in accordance with the provisions of this article and in accordance with the American Society of Mechanical Engineers Boiler and Pressure Vessel Construction Code.

(b) **State of California Safety Orders. (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)** Subchapters 1, 2, and 7 (Group 3 Article 19) of Chapter 4, Division 1, Title 8 of the California Code of Regulations are adopted by reference, with exceptions, modifications and additions as specifically provided in this article.

SEC. 97.0304. APPARATUS – OPERATION AT EXCESSIVE PRESSURE. (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)

No person shall operate any equipment or apparatus listed in this Division at a pressure greater than is shown by the Certificate of Inspection (Operating Permit), or at a pressure greater than is specified by the manufacturer of the equipment.

SEC. 97.0305. SAFETY VALVE – INSTALLATION – SEALING.

No person shall install any steam safety valve, unless the valve is constructed so that the discharge can be piped to some point acceptable to the Department as being safe.

No person shall remove the seal, tamper with, change the setting or repair any safety valve or safety relief valve without having first received permission from the Department.

SEC. 97.0306. RESERVED.

SEC. 97.0307. REQUESTS FOR INSPECTION.
(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Department may, upon the request of any person, make an inspection or re- inspection of any of the equipment listed, and a charge shall be made as provided for in LAMC Section 97.0314.

SEC. 97.0308. PREPARATION FOR INSPECTION.
(Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)

The owner or user of any equipment or apparatus shall prepare the equipment or apparatus for a test or internal inspection as outlined by the Department, and shall furnish all necessary labor. No equipment or apparatus shall be enclosed or reassembled until the test or internal inspection has been completed by the Department.

SEC. 97.0309. RECHECKING OF INSPECTION.

(a) **Superintendent – Authority to Check Inspection.** The Superintendent shall have the right and authority to check or recheck the inspection of any Deputy City Inspector, but no charge shall be made.

The Superintendent of Building may, upon the request of any person, make an inspection or re-inspection of any of the equipment listed in this article, and a charge shall be made as provided for in LAMC Section 97.0314. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(b) **Superintendent – Inspection During Revocation of Commission or License.** Pending the re-issuance of authority or commission of any Deputy Inspector, whose authority, commission, or license has been revoked, the Superintendent shall have the right and authority to make inspections of any equipment listed in this article where the certificate of inspection has expired, and a charge shall be made in accordance with the provisions of this article.

SEC. 97.0310. PRESSURE VESSELS AND OTHER EQUIPMENT TO BE INSPECTED ANNUALLY.

The Superintendent of Building shall cause the following to be carefully inspected as provided in this article: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(a) **Equipment To Be Inspected.** Any equipment listed in LAMC Sections 97.0301, 97.0303 or 97.0314 shall be inspected once each year and a new Certificate of Inspection (Operating Permit) issued. This includes every steam boiler, high pressure boiler, low pressure boiler, hot water boiler, electric boiler, hot water storage tank or hydro-pneumatic tank of over 120 gallons, steam mangle, steam kettle, steam cooker, vulcanizer, sprinkler tank, clothes press (regardless of where steam is obtained), rendering tank, retort or steam kettle, dryer, steam vacuum tank, automotive hoist, heat exchanger, and steam receiver. Air tanks shall be inspected once every 3 years. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

EXCEPTIONS:

- (1) Unfired pressure vessels (other than those that receive steam) including air tanks having a volume of 1-1/2 cubic feet or less which have safety valves set to open at not more than 150 psi.
- (2) Portable boilers and portable unfired pressure vessels that require an Operating Permit from the State of California.
- (3) Oxygen, hydrogen and non flammable bulk industrial gas tanks. **(Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)**
- (4) Pressure vessels used in refrigerating systems.
- (5) Cylinders used in Department of Transportation Service.

(b) **Inspection.** Unless required elsewhere, an external inspection of equipment shall be required. Where construction and operating conditions permit, the equipment may be subject to inspection internally. The Superintendent may also require a hydrostatic or other test. The Department may accept ultrasonic thickness determination in lieu of, or in conjunction with, internal inspection of air tanks of 36 inch diameter or less. The Department may also require an internal inspection or other non-destructive examination for any equipment listed in this article.

SEC. 97.0311. INSPECTION BY DEPUTY PRESSURE VESSEL INSPECTORS.

(a) **Authorized Inspection.** After the initial inspection and approval by the Department, any equipment listed in this article that is insured and inspected by an insurance company or inspected by any other organization authorized by the State of California to issue Operating Permits employing a Deputy Pressure Vessel Inspector, may be issued a Certificate of Inspection (Operating Permit). After the initial inspection, the equipment may be relieved from further inspection by the Department if the required documentation is received within 21 days as required in LAMC Section 97.0318. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(b) **Certificates of Inspection (Operating Permit).** Every Deputy Pressure Vessel Inspector for any insurance company, or other organization authorized by the State of California, shall issue to the owner or user of the equipment, upon a completed inspection, a Certificate of Inspection (Operating Permit) for equipment listed in this article. A copy of the certificate and the inspection report shall be forwarded to the Department. **(Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)**

SEC. 97.0313. DEPUTY INSPECTORS – EQUIPMENT TO INSPECT.

No Deputy Inspector shall be allowed to inspect equipment for any other person than the applicant.

SEC. 97.0314. INSPECTION FEES.
(Amended by Ord. No. 180,868, Eff. 10/22/09.)

The Department shall collect from every owner or user of any apparatus or equipment a fee of inspection as follows:

INSPECTION FEES - BOILERS AND PRESSURE VESSELS

BOILERS AND PRESSURE VESSELS	FEE
(a) High Pressure and Hot Water Boilers:	

0 to 10 sq. ft. of heating surface	\$58.00 each
Over 10 to 20 sq. ft. of heating surface	\$71.00 each
Over 20 to 35 sq. ft. of heating surface	\$97.00 each
Over 35 to 75 sq. ft. of heating surface	\$117.00 each
Over 75 to 250 sq. ft. of heating surface	\$156.00 each
Over 250 to 500 sq. ft. of heating surface	\$169.00 each
Over 500 sq. ft. of heating surface	\$195.00 each
(b) Low Pressure Boilers:	
Steel plate boilers with maintenance hole	\$143.00 each
Steel plate boilers without maintenance hole	\$110.00 each
Cast iron boilers	\$110.00 each
(c) Boilers and fixed pressure vessels erected and assembled on site:	\$143.00 per hour (with a one hour minimum)
	Internal & Ultra-sonic Inspection
	External Inspection
(d) Unfired pressure vessels:	
Vessels 36 inches or less in diameter	\$84.00 each
Vessels more than 36 inches, but less than 54 inches in diameter	\$97.00 each
Vessels 54 inches or more, but less than 96 inches in diameter	\$143.00 each
Vessels 96 inches or more in diameter	
BOILERS AND PRESSURE VESSELS	
FEE	
(e) Unfired pressure vessels erected and assembled on site.	\$143.00 per hour
(f) Unfired vessels:	
Unfired pressure vessels, such as, steam mangles, cookers, kettles, etc.	\$26.00 each
Steam clothes presses and vulcanizers	\$10.00 each
Unfired pressure vessels subjected to external pressure	\$23.00 each
(g) Automotive hoists, including surge tanks (Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)	\$41.00 each
(h) Other inspections:	
For all inspections not covered in the above schedule	\$143.00 per hour
Where it becomes necessary for the inspector to witness either hydrostatic tests, or proof tests, as prescribed by the code, or the drilling of shell plates to determine minimum thickness, or to perform ultrasonic thickness tests, or if extensive repairs are necessary, a charge of \$143.00 per hour shall be made.	
(i) Shop inspection: The Department shall have the right to make shop and resale inspections of fired or unfired pressure vessels in the process of manufacture upon the request of the manufacturer. The following fee shall be charged at the rate of \$143.00 per hour per shop visit, with a 2 hour minimum	
(j) Resale inspection of all fired and unfired pressure vessels shall be at the rate of \$143.00 per hour, with a 2 hour minimum.	
(k) Fees for consultation shall be at the rate of \$143.00 per hour, with a 2 hour minimum.	
(l) Processing of inspection reports. A processing fee of \$19.00 shall be charged and collected for each report of each piece of equipment or apparatus which is required by Section 97.0318.	
(m) Fees for the inspection of repairs to boilers or pressure vessels shall be at the rate of \$143.00 per hour.	

SEC. 97.0314.1. FEES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) **Issuing Fee.** Prior to issuance of a permit pursuant to Division 3, Article 1, Chapter IX of the LAMC, the owner shall pay the issuing fee specified in LAMC Section 98.0415.

(b) **Minimum Inspection Fee.** The owner shall pay a minimum inspection fee, as specified in LAMC Section 98.0412, to the Department to use any equipment, machinery or apparatus for which a certificate, license or permit is required by this Code. Where the cumulative fees set forth in LAMC Section 97.0314 are less than the minimum inspection fee, the minimum inspection fee shall be paid.

SEC. 97.0315. PAYMENT OF FEES AND POWER TO DISCONTINUE THE USE OF EQUIPMENT.

The Department shall have the power to order the use of any equipment governed by this code discontinued for the following reasons:

1. No person shall use or operate any of the equipment or apparatus listed in this article until the equipment or apparatus has been inspected, all permit and inspection fees paid, and a certificate issued. The Certificate of Inspection (Operating Permit) shall be good for the periods provided in this article. Failure to obtain proper permits and to pay permit fees and inspection fees within 60 days after notification shall constitute cause for the Department to prohibit use of the equipment.
2. In the case of an emergency or in the opinion of the Superintendent of Building, any equipment or apparatus covered by this Code is in any condition as to render it unsafe for operation.
3. For willful failure to comply with requirements issued by the Department for the correction of violations.

SEC. 97.0316. DEPUTY INSPECTOR – APPOINTMENT AS CITY INSPECTOR.

An inspector of an insurance company, or other qualified organization, may be deputized as a Deputy City Inspector, but shall receive no compensation from the City for

this service.

SEC. 97.0317. DEPUTY INSPECTORS – APPLICATIONS.

(Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)

Every Deputy Inspector of any insurance company or other organization making an application for a permit to be deputized as Deputy Inspector to inspect any of the equipment listed in this article, shall designate in the application for appointment the name of the insurance company or other organization, and the application shall be countersigned by that insurance company or other organization. No Deputy City Inspector shall be allowed to inspect any equipment for any organization other than that for which the application has been made and approved.

SEC. 97.0318. DEPUTY INSPECTOR.

(Amended by Ord. No. 179,329, Eff. 12/10/07, Oper. 1/1/08.)

Every Deputy Inspector shall, within 21 days after inspecting any equipment or apparatus listed in this article, forward to the Department reports and copies of operating permits on forms approved by the Department. These reports shall be in addition to those furnished to the Division of Industrial Safety of the State of California.

SEC. 97.0319. DEPUTY INSPECTOR – FAILURE TO REPORT INSPECTION – PENALTY.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Every Deputy Inspector that fails to render reports of inspection in writing within 21 days to the Department shall be deemed guilty of negligence, and the Department shall have the right and authority to cancel or revoke the commission and authority of that inspector as a Deputy City Inspector. Revocations shall be in accordance with the provisions of Article 8, Chapter IX of the LAMC.

SEC. 97.0320. FALSIFYING REPORTS – PENALTY.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Any Deputy Inspector who willfully falsifies a report or Certificate of Inspection (Operating Permit) of any equipment or apparatus shall, in addition to any other penalties provided in this Code, have their license revoked by the Superintendent of Building. Any revocation shall be in accordance with the provisions of Article 8, Chapter IX of the LAMC.

SEC. 97.0321. INJURIES – REPORTS – REPAIRS.

Any injury to any person resulting from, or caused by, any equipment, machinery or apparatus listed in this article shall be reported immediately to the Superintendent. No person shall repair or replace any part of the equipment on which the injury occurred until after the Superintendent has made an inspection and authorized the removal, repairs or replacement. The Superintendent shall inspect within 18 hours after receipt of the report of any accident or injury.

SEC. 97.0321.1. NOTIFICATION OF WELDED REPAIRS.

The Department shall be notified prior to the commencement of welded repairs or alterations of a boiler or pressure vessel. The Department shall receive a copy of any State required approvals, authorization or documentation for equipment listed in this article.

SEC. 97.0322. MOVING OF EQUIPMENT – PERMITS.

No person shall transfer or relocate any apparatus, machinery or equipment listed in this article without first obtaining a new permit and a new Certificate of Inspection (Operating Permit) from the Department.

SEC. 97.0323. CANCELLATION OF INSURANCE – NOTICE REQUIRED.

Every insurance company, or organization employing a Deputy Inspector, shall immediately notify the Department of the issuance, refusal, cancellation, suspension or discontinuance of any insurance upon any apparatus or equipment, giving the name of the owner or user, the location, and State serial number of the apparatus or equipment, and the reason for the suspension or cancellation of insurance.

SEC. 97.0324. RESPONSIBILITY OF PERSONS IN CONTROL.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

It shall be unlawful for any person having possession or custody of or authority or control over any premises where any equipment or apparatus listed in this Code is installed, whether as owner, lessee, licensee, trustee, mortgagee, management company, or representative, officer, employer or agent, or as building manager or custodian:

1. To permit on the premises the installation of any equipment or apparatus for which a permit is required by this article unless the permit has first been obtained from the Department.
2. To permit on the premises any work for which a Certificate of Registration is required by this article, except by a person holding the certificate.
3. To use or permit the use of any equipment or apparatus required by this article to be inspected and approved by the Department unless the equipment has been inspected and approved and all fees paid.
4. To use or permit the use of any equipment or apparatus, the use or operation of which has been prohibited by the Department.
5. To obstruct or interfere with the Department in making any inspection required by law or ordered by the Superintendent of Building.

ARTICLE 8

GENERAL ADMINISTRATIVE PROVISIONS

(Amended by Ord. No. 120,178, Eff. 11/16/61.)

Division

- 1 General
- 2 Regulation of Licensee
- 3 Procedural Rules for the Conduct of Hearings
- 4 Appeals and Request for Slight Modification – Appeal Fees – Availability of Records for Inspection – Board Related Services – Investigation – Powers of Department and Board and Penalties
- 5 Testing Procedures, Regulations and Administration
- 6 Expiration and Revocation of Permits, Plan Check and Slight Modifications and Alternatives
- 7 Abatement of Vacant Buildings

DIVISION 1

GENERAL

Section

- 98.0101 Scope of Chapter.
- 98.0102 Purpose and Scope of Article.
 - 98.0102.1 Enforcement Authority of the Harbor Department Within the Harbor District.
- 98.0103 Definitions.
- 98.0104 Conflicting Sections.
- 98.0105 Inspections.
- 98.0106 Authority to Accept Underpayments and Overpayments.
- 98.0107 Contractor Permit Applicants – Business and Payroll Expense Tax Registration Information and Certificates.
- 98.0108 Posting of Orders.
- 98.0109 Express Permits.

SEC. 98.0101. SCOPE OF CHAPTER.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The provisions of Chapter IX of the Los Angeles Municipal Code shall apply to the City of Los Angeles, to any County, and to any other municipal or quasi-municipal corporation or government, and to any department, commission, board or officer thereof.

SEC. 98.0102. PURPOSE AND SCOPE OF ARTICLE.

(a) **Purpose.** The purpose of this article is to supplement the specific provisions of Chapter IX and other applicable portions of the LAMC concerning the administration of all ordinances, laws and regulations under the jurisdiction of the Board of Building and Safety Commissioners or the Department. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

(b) **Scope.** The provisions of this article insofar as they are substantially the same as existing ordinances relating to the same subject matter, shall be construed as restatements and continuation of those ordinances.

SEC. 98.0102.1. ENFORCEMENT AUTHORITY OF THE HARBOR DEPARTMENT WITHIN THE HARBOR DISTRICT.

(Added by Ord. No. 182,330, Eff. 1/14/13.)

(a) **Grant of Authority.** The Los Angeles City Council hereby grants the power and duty to enforce all ordinances and laws applicable to the following specified types of work projects as related to the construction, alteration, repair and demolition, or removal of buildings or structures, and to the installation, alteration, repair, use and operation of all heating, plumbing, lighting, ventilating, refrigerating, electrical and mechanical appliances and equipment within the Harbor District currently within the Department of Building and Safety to the Harbor Department; provided, however, that said grant is effective only with respect to the following types of projects within the Harbor District.

(1) All work within the automated portion of an Automated Container Terminal. An Automated Container Terminal is defined as a fenced in facility within the Harbor District that moves, sorts, or stores ocean going containers through the use of remotely or automatically controlled container handling equipment, to or from vessels, rail cars, trucks, Automated Guided Vehicles (AGVs), Automated Stacking Cranes (ASCs), shuttle carriers or other container movers;

(2) Cranes and Terminal Cargo Handling Equipment (self-propelled or electrified);

(3) Electrical Power Cables and their associated plug connectors for Cranes and Terminal Cargo Handling Equipment;

(4) Heavy duty pavement for storage (non-building);

(5) Earthwork and Terminal Grading and paving (non-building or non-structure);

(6) Stone Columns, Deep Dynamic Compaction, Jet Grouting and other ground improvements for seawall, dike, wharf and terminal when associated with non-buildings or non-structure;

(7) Non-electrical installation for Wharves and Utility Systems for Wharves;

(8) Floating docks (non-electrical installation only);

(9) Storm drains (non-building) installations on Harbor property that are designed and installed per the City of Los Angeles Public Works guidelines and comply with all City and State ordinances related to storm water (such as SUSAMP, LID and PMP) required by the Department of Public works or other City and State agencies;

(10) Sewers main installations on Harbor property that are designed and installed per the City of Los Angeles Public Works guidelines; and

(11) Dikes, dolphins, navigation aids, channel crossings, dredging, reclaimed landfills and any improvements under the jurisdiction or permit authority of the United States Army Corps of Engineers.

(b) **Collection for Services Rendered.** Effective upon the grant of authority provided for in Subsection (a), above, the Harbor Department is authorized to collect all fees, charges, costs, fines or penalties which are applicable to enforcement of those same ordinances and laws pursuant to this Code.

SEC. 98.0103. DEFINITIONS.

(a) **General.** For the purpose of this article, certain words and terms are defined as follows: **(Amended by Ord. No. 147,576, Eff. 9/15/75, Oper. 1/15/76.)**

BOARD. The Board of Building and Safety Commissioners of the City of Los Angeles.

BOARD OF EXAMINERS. Any examining board regularly appointed by the Board of Building and Safety Commissioners or the Superintendent. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

CODE. Los Angeles Municipal Code.

DEPARTMENT. The Department of Building and Safety.

E-PERMITS. Any Express Permits issued via facsimile or Internet. **(Added by Ord. No. 174,610, Eff. 7/7/02.)**

EXAMINER. A member of an examining board as hereinafter provided for, or any person designated by the Board or the Superintendent to conduct any hearing provided for in this article. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

EXPRESS PERMITS. Any Building, Electrical, Mechanical or Plumbing permits that do not require plans pursuant to LAMC Paragraph 91.106.3.2.2. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

LICENSE. A certificate, registration, license, authority or approval given or issued by the Department pursuant to the provisions of this Code. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

LICENSEE. The holder of any license as the word "license" is defined in this article.

PARTY. Includes the Board, the Department, the respondent, and any other person who has an interest or estate in a proceeding under this article.

PERMIT. An approved application for the inspection of any work accomplished on or in buildings, structures or sites regulated by Chapter IX of the LAMC, but shall not include an application for inspection to obtain a Certificate of Inspection and Permit to Operate. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

PLAN CHECK. The review of plans, specifications, and/or details required as condition prior to the issuance of a permit.

PROCEEDING. Any process relative to a hearing as provided in this article. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

RESPONDENT. Any person against whom an accusation is filed pursuant to this article.

SLIGHT MODIFICATION. A waiver, granted by the Superintendent of Building or the Board, of the strict requirements of the provisions of Chapter IX or Article 2, Chapter I, of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SUPERINTENDENT OF BUILDING OR SUPERINTENDENT. The General Manager of the Department of Building and Safety of the City of Los Angeles, or the General Manager's duly authorized representative. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

Where the word "Examiner" or "Hearing Examiner" appears hereinafter, the words "Board of Examiners" may be substituted.

SEC. 98.0104. CONFLICTING SECTIONS.

(Amended by Ord. No. 133,738, Eff. 2/5/67.)

(a) Insofar as any provision of any other article of this chapter conflicts with any provision of this article, such provision shall be deemed to be superseded by the provision of this article with which it is in conflict.

(b) Notwithstanding any provision in Chapter IX of the LAMC to the contrary, the revocation or suspension of any license as defined herein shall be done in accordance with this article. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 98.0105. INSPECTIONS.

(Amended by Ord. No. 186,839, Eff. 1/4/21.)

(a) **General.** Whenever it is necessary to make an inspection to enforce any of the provisions of or perform any duty imposed by this chapter or other applicable law, or whenever the Superintendent of Building or the Superintendent's authorized representative has reasonable cause to believe that there exists in any building or upon any premises any violation of Chapter IX of the LAMC, or other applicable law, or any condition which makes such building or premises hazardous, unsafe or dangerous, the Superintendent of Building or the Superintendent's authorized representative is hereby authorized to enter such property at any reasonable time and to inspect the same and perform any duty imposed upon the Superintendent of Building by Chapter IX of the LAMC or other applicable law, provided that:

(1) If such property is occupied, the Superintendent or the Superintendent's authorized representative shall first present proper credentials to the occupant, explain the reasons for the inspection, and request consent to enter; and

(2) If such property is unoccupied, the Superintendent or the Superintendent's authorized representative shall first make a reasonable effort to locate the owner or other person having charge or control of the property, explain the reasons for the inspection, and request consent to enter; and

(3) If consent to enter is refused or cannot be obtained, whether a property is occupied or unoccupied, the Superintendent of Building or the Superintendent's authorized representative shall obtain an inspection warrant.

(b) **Exigent Circumstances.** Notwithstanding the foregoing, if the Superintendent of Building or the Superintendent's authorized representative has reasonable cause to believe that the building or premises is so hazardous, unsafe or dangerous as to require immediate inspection to safeguard the public health or safety, the Superintendent or the

Superintendent's authorized representative shall have the right to immediately enter and inspect such property, and may use any reasonable means required to effect such entry and make such inspection, whether such property is occupied or unoccupied and whether or not permission to inspect has been obtained. If the property is occupied, the Superintendent or the Superintendent's authorized representative shall first present proper credentials to the occupant and demand entry, explaining the reasons therefor and the purpose of the inspection. No person shall fail or refuse, after proper demand has been made upon them, as provided above, to promptly permit the Superintendent of Building or the Superintendent's authorized representative to make any necessary inspection in the exigent circumstances. Any person violating this subsection shall be guilty of a misdemeanor.

(c) The applicant, by accepting any permit issued pursuant to Chapter IX of the LAMC, does thereby consent and agree to the entry upon the premises described in the permit by Department personnel for the purpose of conducting such inspections as are required by Chapter IX of the LAMC or other applicable laws.

SEC. 98.0106. AUTHORITY TO ACCEPT UNDERPAYMENTS AND OVERPAYMENTS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) The Superintendent of Building, when processing permit applications received through the United States postal service, may retain any overpayment up to and including one dollar (\$1.00) in excess of the amount legally due pursuant to the LAMC, and shall place all overpayments in a special account to be used for the purpose of making up deficiencies in payments received pursuant to Subsection (b) of this section.

(b) The Superintendent of Building, when processing permit applications received through the United States postal service, may accept as full payment of the amount legally due pursuant to the LAMC, any payment which is deficient by no more than fifty cents (\$0.50) of the amount legally due.

(c) Notwithstanding the authority conferred by Subsection (a) hereof, the Superintendent of Building may refund any such excess payment upon the filing of a claim therefor as required by law.

SEC. 98.0107. CONTRACTOR PERMIT APPLICANTS – BUSINESS AND PAYROLL EXPENSE TAX REGISTRATION INFORMATION AND CERTIFICATES.

(Added by Ord. No. 168,612, Eff. 4/2/93.)

(a) In connection with any permit or application for inspection, as provided for in Articles 1, 2, 3, 4, 5 and 7 of Chapter IX of the LAMC by or on behalf of any contractor, as that term is defined in Subsection (b) below, the Department shall be furnished the business or payroll expense tax registration certificate number or evidence of exemption from business and payroll expense taxes for such contractor. No permit shall be issued by the Department to any contractor, as defined herein, unless such contractor has a business or payroll expense tax registration certificate or is determined by the Office of Finance to be exempt from business and payroll expense taxes. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

(b) The term “**contractor**” means any person who undertakes to or offers to undertake to or purports to have the capacity to undertake to or submits a bid to, or does himself or by or through others, construct, alter, repair, add to, subtract from, improve, move, wreck or demolish any building, highway, road, parking facility, railroad, excavation or other structure, project, development or improvement, or to do any part thereof, including the erection of scaffolding or other structures or works in connection therewith, or the cleaning of grounds or structures in connection therewith, and whether or not the performance of work herein described involves the addition to or fabrication into any structure, project, development or improvement herein described of any material or article of merchandise. The term “**contractor**” includes subcontractor and specialty contractor.

SEC. 98.0108. POSTING OF ORDERS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

All Orders to Correct issued pursuant to Chapter IX of the LAMC shall be posted in a visible location on the residential rental building cited.

SEC. 98.0109. EXPRESS PERMITS.

(Added by Ord. No. 174,610, Eff. 7/7/02.)

(a) **Guaranteed Express Permit Program (GEP).** The Department shall offer a walk-in Express Permit customer a money-back guarantee if:

- (1) the customer waits longer than 30 minutes for service to begin; or
- (2) the customer waits longer than 60 minutes for the processing of the permit from the time that service begins.

(b) **Guaranteed Express Permit (GEP) Program Guidelines.** If a customer waits longer than the time limits stated in LAMC Section 98.0109(a), and the wait can be verified by the Department through the use of electronic equipment, then the Department shall waive the permit fee. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

(c) **Program Limitations.** The GEP applies only to those permits issued at the Express Permit Counter. The Department may add or delete certain permit types from the list of Express Permits at its discretion. GEP does not apply to E-Permits and is limited to one permit per person, per permit application. GEP does not apply to those permits requiring clearance or review by other agencies. The GEP program shall be suspended during power failures, computer system failures, or during times of emergency including, but not limited to, fire, earthquake, or other human-made or natural disaster.

DIVISION 2

REGULATION OF LICENSEE

Section

98.0201 Authority to Make Rules and Regulations.

98.0202 Revocation, Suspension, Limitation of Licenses.

SEC. 98.0201. AUTHORITY TO MAKE RULES AND REGULATIONS.

(a) **General.** The Superintendent may, from time to time, promulgate rules and regulations, not in conflict with this Code, governing the duties, capabilities, and conduct of licensees. Any person violating such rules and regulations shall be guilty of a misdemeanor. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(b) **Publishing of Rules and Regulations.** All such rules and regulations shall be published once in a daily newspaper of general circulation in the City of Los Angeles, and shall take effect upon publication, in accordance with applicable regulations.

(c) **Revocation, Suspension or Limitation.** The Superintendent of Building may, upon the Superintendent's own initiative, or upon the verified complaint in writing of any person, investigate the action of any licensee, and may temporarily suspend, for a period not exceeding one year, or revoke the licensee's license for any one or more of the acts or omissions constituting grounds for disciplinary action provided by LAMC Section 98.0202. The procedure on suspension or revocation shall comply with Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(d) **Hearing Available.** In any action to suspend, revoke, limit, or refuse the renewal of any license, a hearing by the Board shall be available to the licensee as set forth and in the manner specifically provided for in Article 8, Chapter IX of the LAMC. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(e) **New Application After Denial or Revocation.** When any license is revoked for cause, no new or other application for a similar license from the same applicant shall be accepted within one year after such revocation. When an application for renewal of a license is denied for cause, no new or other application shall be accepted within one year after denial unless the applicant can show a material change in the applicant's situation which would justify the issuance.

(f) **Special Renewal Provisions for Service in Armed Forces.** Whenever, under Chapter IX of the LAMC, a person who previously held a license applies for a renewal thereof and shows to the satisfaction of the Superintendent of Building that the person's failure to renew such license within the time provided herein resulted from the person's induction or entrance into the armed forces of the United States or of any allied nation, and that the application for renewal is made within six months after the person's honorable discharge from the service, the person's application shall be deemed an application for renewal and the renewal fee only shall be charged therefor. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(g) **Lapse or Suspension – Jurisdiction of the Department.** The lapse or suspension of a license by operation of law, or the voluntary surrender of such, shall not deprive the Department of jurisdiction to proceed with any investigation of, or disciplinary proceedings against, the licensee, or to render a decision denying, suspending or revoking the licensee's license. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

(h) **Prior Acts No Bar to Department Action.** The Department may take disciplinary action against a licensee as provided in Article 8, Chapter IX of the LAMC even though the grounds for disciplinary action arose prior to the granting of the license. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 98.0202. REVOCATION, SUSPENSION, LIMITATION OF LICENSES.

(a) **Causes of Revocation, Suspension or Limitation.** The Department may revoke, limit, suspend or refuse to issue or renew any license, for any of the following: **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

1. Failure to timely pay the fees as set forth in the particular article of this Code regulating the work, act, trade, or profession for which such license was issued.
2. Falsification of any record, fact or information required by this Code or any rule or regulation of the Department in granting any license to any person, whether such person is the licensee or not. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**
3. Withholding of any record, fact or information required by this Code or by rule or regulation of the Department in granting any license to any person, whether such person is the licensee or not. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**
4. Incompetence in performance of any of the duties, tasks, skills or functions for which the license has been issued.
5. Inability to properly perform any of the duties, tasks, skills, or functions for which the license has been issued.
6. If any reason exists which would have been cause for denial of such license.
7. Failure to maintain any of the equipment, conditions, personnel, or provisions precedent to the issuance of any license.
8. Failure to carry out any of the conditions or provisions precedent to the issuance or maintenance of any license.
9. Violation of any provision of this Code in doing any act or work authorized to be done by such license.
10. Willful, gross, or negligent failure to observe violations of this Code when such observation is the duty of the licensee.
11. Willful, gross, or negligent failure to report violations of this Code, when such report is the duty of the licensee.
12. Willful complicity in any act designed to circumvent or violate any provisions of this Code or of any rule or regulation of the Department. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**
13. Willful omission or misrepresentation of any material fact in an application for any permit required for any work or act regulated by this Code.
14. Conspiring to secure for another, by misrepresentation, fraud, or deceit, any license required by this Code.
15. Permitting any person to use such license to perform any act of work of the kind authorized by such license for the purpose of avoiding compliance with any provision of this Code or of any Department rule or regulation. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**
16. Willful or gross disregard of this Code or Department rules or regulations governing the act, trade, occupation, profession, process, installation of work for which the license is granted. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**
17. Gross neglect or duty or insobriety.
18. Absence while work is in progress, which work requires the attendance, act, or supervision of the licensee.
19. Misrepresentation in any contract or agreement to perform any act or work authorized to be done by such license.
20. Publishing, uttering or disseminating any false, deceptive or misleading statements or advertisements in connection with any work, service or act authorized to be done under any license granted by the Department. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**
21. Willfully failing to comply with any reasonable terms of any contract made as a part of the exercise of the permitted trade, work, or profession.
22. For any reason set forth elsewhere in this Code governing the work, act, trade, or profession for which the license is issued.
23. Failure to timely make any required report to the Superintendent. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

DIVISION 3

PROCEDURAL RULES FOR THE CONDUCT OF HEARINGS

Section	
98.0301	Purpose.
98.0302	General Provisions.
98.0303	Accusation re Suspension or Revocation of Licenses or Permits.
98.0304	Notice of Defense to Accusation.
98.0305	Notice of Hearing on Accusation.
98.0306	Amendment of Accusation after Submission.
98.0307	Subpoenas.
98.0308	Evidence.
98.0309	Official Notices.
98.0310	Method of Decision in Contested Cases.
98.0311	Defaults and Uncontested Cases.
98.0312	Reconsideration.

SEC. 98.0301. PURPOSE.

(Amended by Ord. No. 139,419, Eff. 11/30/69.)

It is the purpose of this division to establish certain procedural requirements for the conduct of hearings by the Superintendent, the Board, boards of examiners, and hearing examiners.

SEC. 98.0302. GENERAL PROVISIONS.

(a) **Hearing Examiners.** The Board or the Superintendent may appoint one or more hearing examiners or the Board may designate one or more of its members to serve as hearing examiners to conduct hearings. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(b) **Conduct of Hearing.** The examiner hearing the case shall exercise all powers relating to the conduct of hearings.

(c) **Reporting.** The proceedings at the hearing shall be reported by a phonographic reporter if requested by any party thereto. A transcript of the proceedings shall be made available to all parties upon request and upon payment of the prescribed fee therefor.

(d) **Continuances.** The Board or the Superintendent may grant continuances; however, when a hearing examiner has been assigned to such hearing, no continuances may be granted except by the hearing examiner for good cause shown so long as the matter remains before the hearing examiner. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(e) **Oaths – Certification.** In any proceedings under this article, the Superintendent, the Board, any board member, any examining board, the Secretary of the Board or the hearing examiner has the power to administer oaths and affirmations and to certify to official acts. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(f) **Reasonable Dispatch.** The Superintendent, the Board, or the hearing examiner shall proceed with reasonable dispatch to conclude any matter being heard. Due regard shall be shown for the convenience and necessity of any parties or their representatives. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(g) **Time and Place of Hearing.** The Superintendent or the Board shall determine the time and place of hearing. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(h) **Attendance of City Attorney.** The City Attorney, upon the request of the Superintendent or the Board, may assign one of the City Attorney's deputies or assistants to attend any hearing, and to give advice on any and all legal matters pertaining to the proceeding. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(i) **Maintenance of Order.** The Superintendent, the Board or examiner shall require the maintenance of order in the hearing room, may order the exclusion of witnesses, may expel anyone who disturbs the hearing, and may secure the aid of the Police Department for such purposes. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

SEC. 98.0303. ACCUSATION RE SUSPENSION OR REVOCATION OF LICENSES OR PERMITS.

(a) **Contents.** Whenever a hearing is required or available by this Code to determine whether a license as defined herein should be revoked suspended, limited or conditioned, such hearing shall be initiated by filing an accusation. The accusation shall be verified unless made by a public officer acting in their official capacity or by a duly appointed representative of the Department. The verification may be on information and belief. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(b) **Service.** Upon the filing of an accusation, the Superintendent shall serve a copy thereof on the respondent. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(c) **Method of Service.** The accusation may be served on the respondent personally or by registered or certified mail.

(d) **Proof of Service – Time of Taking Effect.** Service by registered mail shall be effective on the date of mailing, if a registered letter containing the accusation is mailed, postage prepaid, addressed to the respondent at the latest address on file with the Department, or as known by the City Clerk. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(e) **Appearance – Objections to Service Waived.** Where a respondent files a notice of defense or otherwise appears in a proceeding, all objections to the validity of service shall be deemed waived.

(f) **Instructions With Accusation.** The copy of the accusation shall include or be accompanied by a statement that respondent may request a hearing by filing a notice of defense as provided hereinafter within ten days after service upon the respondent of the accusation, and that failure to do so will constitute a waiver of the respondent's right to a hearing. A postcard or other form, entitled "Notice of Defense," shall be included with the accusation, which, when signed by or on behalf of the respondent and returned to the Department, will acknowledge service of the accusation and constitute a notice of defense as provided for hereinafter. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

SEC. 98.0304. NOTICE OF DEFENSE TO ACCUSATION.

(a) **Form and Purpose.** Within ten days after service upon the respondent of the accusation, the respondent may file one or more notices of defense in which the respondent may: request a hearing; object to the accusation upon the ground that it does not state acts or omissions upon which the Department may proceed; object to the form of the accusation on the ground that it is so indefinite or uncertain that the respondent cannot identify the transaction or prepare their defense; admit the accusation in whole or in part. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(b) **Failure to File Notice of Defense – Waiver.** The respondent shall be entitled to a hearing on the merits if the respondent files a notice of defense within ten days, and any such notice shall be deemed a specific denial of all parts of the accusation not expressly admitted. Failure to file such notice shall constitute a waiver of respondent's right to a hearing, but the Department, in its discretion, may nevertheless conduct a hearing. Unless objection is taken as provided in this section, all objections to the form of the accusation shall be deemed waived. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

(c) **Written Notice of Defense.** The notice of defense shall be in writing signed by or on behalf of the respondent and shall state the respondent's mailing address. It must be verified but need not follow any particular form.

(d) **Amendment of Accusation.** At any time before the matter is submitted for decision, the Board, Superintendent or hearing examiner may order or permit the filing of an amended or supplemental accusation. All parties shall be notified thereof. If the amended or supplemental accusation presents new charges, the respondent shall be afforded a reasonable opportunity to prepare a defense thereto. Any new charges shall be deemed controverted and any objections to the amended or supplemental accusation may be made orally and shall be noted in the record. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

SEC. 98.0305. NOTICE OF HEARING ON ACCUSATION.

(a) **Service.** The notice of hearing shall be delivered or mailed to all parties at least five days prior to the hearing. The date of the hearing shall not be prior to the expiration of the time within which the respondent is entitled to file a notice of defense. The respondent may file a written waiver of time and request an immediate hearing. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

(b) **Form.** The notice to respondent shall be substantially in the following form, but may include other information: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

You are hereby notified that a hearing will be held before (the Board, Superintendent of Building or name of hearing examiner) at _____ on the ____ day of _____ 20 ___, at the _____ hour of ___, upon the charges made in the accusation served upon you. You may be present at the hearing; you may, but need not, be represented by counsel; you may present any relevant evidence and will be given full opportunity to cross-examine all witnesses testifying against you. You may request the issuance of subpoenas to compel the attendance of witnesses and the production of books, documents or other things by filing an affidavit therefor with (Board, Superintendent of Building or name of hearing examiner).

SEC. 98.0306. AMENDMENT OF ACCUSATION AFTER SUBMISSION. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

The Board, Superintendent or hearing examiner may order amendment of the accusation after submission of the case for decision. Each party shall be given notice of the intended amendment and opportunity to show that the party will be prejudiced thereby unless the case is reopened to permit the introduction of additional evidence in the party's behalf. If such prejudice is shown, the Board, Superintendent or hearing examiner shall reopen the case to permit the introduction of additional evidence.

SEC. 98.0307. SUBPOENAS.

(a) **Filing of Affidavit.** The Board, Superintendent or examiner may obtain the issuance and service of a subpoena for the attendance of a witness or the production of other evidence at a hearing or upon the written demand of any party. The issuance and service of such subpoena shall be obtained upon the filing of an affidavit therefor which states the name and address of the proposed witness; specifies the exact things sought to be produced and the materiality thereof in detail to the issues involved; and states that the witness has the desired things in their possession or under their control. A subpoena need not be issued when the affidavit is defective in any particular. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

(b) **Cases Referred to Examiner or Committee.** In cases where a hearing is referred to an examiner or committee of examiners, all subpoenas shall be obtained through the examiner or chairperson of the committee.

(c) The City Clerk shall issue all such subpoenas upon demand of the Board, Superintendent or examiner. **(Amended by Ord. No. 139,419, Eff. 11/30/69.)**

(d) **Penalties.** Any person who refuses without lawful excuse to attend any hearing, or to produce material evidence in their possession or under their control as required by any subpoena served upon such person as provided for herein shall be guilty of a misdemeanor.

SEC. 98.0308. EVIDENCE.

(a) **Rules.** Hearings need not be conducted according to the technical rules relating to evidence and witnesses.

(b) **Oral Evidence.** Oral evidence shall be taken only on oath or affirmation.

(c) **Hearsay Evidence.** Hearsay evidence may be used for the purpose of supplementing or explaining any direct evidence, but shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions in courts of competent jurisdiction.

(d) **Admissibility of Evidence.** Any relevant evidence shall be admitted if it is the type of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs, regardless of the existence of any common law or statutory rule which might make improper the admission of such evidence over objection in civil actions.

(e) **Exclusion of Evidence.** Irrelevant and unduly repetitious evidence shall be excluded.

(f) **Rights of Parties.** Each party shall have these rights:

1. To call and examine witnesses;
2. To introduce exhibits;
3. To cross-examine opposing witnesses on any matter relevant to the issues;
4. To impeach any witness regardless of which party first called the witness to testify;
5. To rebut the evidence against them;
6. To represent themselves or be represented by anyone of their choice.

(g) **Failure of Respondent to Testify.** If respondent does not testify in their own behalf, the respondent may be called and examined as if under cross-examination.

(h) **Testimony at Direction of Board, Superintendent or Examiner.** The Board, Superintendent or examiner may direct any person present to testify in a hearing whether or not such person was subpoenaed to testify. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(i) **Penalty for Failure to Testify at Hearing.** Any person who is present at any hearing either in obedience to a subpoena or otherwise, and who willfully refuses to be sworn or to answer any material or proper question when directed by the Board, Superintendent or an examiner shall be guilty of a misdemeanor. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

SEC. 98.0309. OFFICIAL NOTICES.

(a) **What May be Noticed.** In reaching a decision, official notice may be taken, either before or after submission of the case for decision, of any fact which may be judicially noticed by the courts of this State or of official records of the Board or Department, ordinances of the City of Los Angeles, or rules and regulations of the Department. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(b) **Parties to be Notified.** Parties present at the hearing shall be informed of the matters to be noticed, and these matters shall be noted in the record, referred to therein, or appended thereto.

(c) **Opportunity to Refute.** Parties present at the hearing shall be given a reasonable opportunity, on request, to refute the officially noticed matters by evidence or by written or oral presentation of authority, the manner of such refutation to be determined by the Board, Superintendent or hearing examiner. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

SEC. 98.0310. METHOD OF DECISION IN CONTESTED CASES.

(a) **Hearing Before Board Itself.** Where a contested case, originally heard before the Board or an examiner or examiners for said Board, is heard before the Board itself, no member thereof who did not hear the evidence or has not read the record or proceedings shall vote on the decision. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(b) **Hearing Before Examiner.** If a contested case is heard by a hearing examiner alone, the hearing examiner shall, within a reasonable time, submit a written report to the Board as to matters within its jurisdiction, otherwise, to the Superintendent. Such report shall contain a brief summary of the evidence considered and state the examiner's findings, conclusions and recommendations. The report shall contain a proposed decision, in such form that it may be adopted by the Board or the Superintendent as the decision in the case. All examiner's reports shall be filed by the Department as a public record. A copy of each proposed decision so filed shall then be mailed to each party. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(c) **Consideration of Report by Board or the Superintendent Notice.** The Board or the Superintendent shall fix a time to consider the examiner's report. Notice thereof shall be mailed to each interested party not less than five days prior to the date fixed, unless it is otherwise stipulated. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(d) **Exceptions to Report.** Not later than two days before the date set to consider the report, any party may file written exceptions to any part or all of the examiner's report and may attach thereto a proposed decision together with written argument in support of such decision. By leave of the Board or the Superintendent, any party may present oral argument at the time of consideration of the examiner's report. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(e) **Disposition by the Board or Superintendent.** The Board or the Superintendent may adopt or reject the proposed decision in its entirety, or may increase or reduce the proposed penalty, if any, and may adopt the balance of the proposed decision of the hearing examiner. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(f) **Proposed Decision Not Adopted.** If the proposed decision is not adopted as provided in Subsection (e), the Board or the Superintendent may decide the case upon the record, including the transcript, either in whole or in part, with or without taking additional evidence, or may refer the case to the same or another hearing examiner to take additional evidence. If the case is so assigned to another hearing examiner, the hearing examiner shall prepare a report and proposed decision as provided in Subsection (b) hereof upon any additional evidence submitted, the transcript of the previous hearing, and other papers which are part of record of the prior hearing. Consideration of such proposed decision by the Board or said Superintendent shall comply with the provisions of this section. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(g) **Form of Decision.** The decision shall be in writing and shall contain findings of fact, a determination of the issues presented, and the penalty, if any. The findings may be stated in the language of the accusation or charges, or by reference thereto, or may be stated in the terms of the applicable rule, regulation or statute ordinance, a copy of the decision shall be delivered to the respondent personally or sent to the respondent by registered mail.

(h) **Effective Date of Decision.** The effective date of the decision shall be stated therein.

SEC. 98.0311. DEFAULTS AND UNCONTESTED CASES.

If the respondent files a notice of defense admitting all parts of the accusation, or fails to file a notice of defense or fails to appear at the hearing, the Superintendent may take action based on the respondent's express admissions or upon other evidence, including official reports, except that where the burden of proof is on the respondent to establish that the respondent is entitled to the action sought, the Superintendent may act without taking evidence. Nothing herein shall be construed to deprive the respondent of the right to make any showing by way of mitigation. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

SEC. 98.0312. RECONSIDERATION.

(a) **Time Limit.** The Board, as to matters within its jurisdiction, or the Superintendent may order a reconsideration of all or part of the case on their own motion, or on petition of any party. The power to order a reconsideration shall expire five days after the effective date of the decision. If no action is taken on a petition within the time allowed for ordering reconsideration, the petition shall be deemed denied. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

(b) **Procedure on Reconsideration.** The case may be reconsidered on all the pertinent parts of the record and on such additional evidence and argument as may be permitted, or may be assigned to a hearing examiner. A reconsideration assigned to a hearing examiner shall be subject to the procedure provided in LAMC Section 98.0310. If oral evidence is introduced before the Board as to matters within its jurisdiction, no Board member may vote unless the Board member heard the evidence or read the transcript of the proceedings heard in that Board member's absence. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

DIVISION 4

APPEALS AND REQUEST FOR SLIGHT MODIFICATION – APPEAL FEES – AVAILABILITY OF RECORDS FOR INSPECTION – BOARD RELATED SERVICES – INVESTIGATION – POWERS OF DEPARTMENT AND BOARD AND PENALTIES

Section

- 98.0401 Superintendent of Buildings May Inspect Records.
- 98.0402 Code Enforcement Costs Incurred: Investigation Costs, Fees and Fines.
- 98.0403.1 Powers of the Department and the Board.
- 98.0403.2 Procedures for Appeals to the Department and to the Board.
- 98.0404 Extra Territorial Inspections.
- 98.0405 Charges for Printed Materials and Miscellaneous Type Services.
- 98.0406 Inspection Fees for Off Hours Inspection.
- 98.0407 Special Enforcement Procedure Fees.
- 98.0408 Issuance of Citations by Designated Employees.
- 98.0410 Surcharge for Development Services Centers.
- 98.0411 Non-compliance Fees.
- 98.0412 Inspection Fees.
- 98.0414 Certification Fees.
- 98.0415 Clerical, Issuing or Research Fees and Miscellaneous Fees.
- 98.0416 Building and Safety Systems Development Surcharge.
- 98.0417 Processing Fees for Miscellaneous Certificates of Compliance.
- 98.0418 Surcharges for Development of Automated Systems and General Plan Maintenance for the Department of City Planning.
- 98.0419 Waiver of Fees for Structures Damaged in the 1994 Northridge Earthquake.
- 98.0420 Refunds of Department Fees.
- 98.0421 Code Violation Inspection Fee.
- 98.0422 Fees for Off Hours Plan Check and Other Service.

SEC. 98.0401. SUPERINTENDENT OF BUILDING MAY INSPECT RECORDS.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Any person engaged in the business of selling, installing or constructing equipment or appliances for which a permit is required under Chapter IX of the LAMC, shall keep written permanent records of all such installations, showing the permit number and date, the address of the place where equipment was installed, the type of installation, and the name of the owner for whom such installation was made. The Superintendent of Building, or the Superintendent's duly authorized representative, shall have the power to examine, at any reasonable hour, all necessary books and records of any such person for the purpose of ascertaining whether or not permits have been secured for selling, installing or constructing equipment or appliances as required under Chapter IX of the LAMC.

SEC. 98.0402. CODE ENFORCEMENT COSTS INCURRED: INVESTIGATION COSTS, FEES AND FINES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) **Investigation Fee Required.** Whenever any work has been commenced without authorization by a permit or application for inspection, and that work violates any provision of Articles 1 through 8 of Chapter IX of the LAMC, and if no order has been issued by the Department or a court of law requiring said work to proceed, a special investigation shall be made prior to the issuance of any permit, license or application for inspection.

An Investigation Fee, which shall be double the amount charged for an application for inspection, license or permit fee, shall be collected on each permit, license or application for inspection so investigated. The required investigation fee shall be in addition to any other fees required by Articles 1 through 8 of Chapter IX of the LAMC. In no event shall the Investigation Fee be less than \$400.00.

The payment of the Investigation Fee shall not exempt any person from compliance with the provisions of the Code nor from any penalty prescribed by law.

(b) **Collection Fee for Delinquent Invoice For Boilers, Pressure Vessels, Elevators and Emergency Systems.** Whenever an owner or user of any apparatus, equipment or emergency system fails to pay the fees required by LAMC Sections 92.0126, 92.0129(d), 92.0132(b), (d) and (e), 93.0235 and 97.0314 within 60 days after notification, the owner or user shall additionally pay, a collection fee equal to 50% of the required fee specified under these same LAMC sections.

(c) An investigation fee of \$15.00 per report shall be charged and collected for each boiler or pressure vessel insurance report not submitted as required by LAMC Section 97.0318. This investigation fee shall become due 30 days after the date the inspection has been performed and remains unreported and is in addition to the insurance processing fee.

(d) **Non-Compliance Inspection Fee Required.** See LAMC Section 98.0411.

(e) **Annual Inspection Fee. (Amended by Ord. No. 187,248, Eff. 12/13/21.)** Whenever the Department makes annual inspections pursuant to Sections 12.26 F.3., 12.26 I.5., and 13.03 of the Los Angeles Municipal Code (or any other provision of this Code), the Department shall collect a fee from the property owner or business operator for inspection of each "recycling center" and "yard" business as defined in Section 12.26 F.1., each "automotive repair garage" and "used vehicle sales area" business as defined in Section 12.26 I.1., each "surface mining operation" as defined in Section 13.03 B., and each "Collection Bin" as defined in Section 12.03. The annual inspection fees shall be as follows:

1. For each recycling center, yard, automotive repair garage, used vehicle sales area or Collection Bin, \$457.00.
2. For each surface mining operation, \$265.00.

(f) The Department shall collect an amount levied by penalty fine from every property owner or business operator of a recycling center, yard, automotive repair garage, used vehicle sales area, or Collection Bin, as described in Subsection (e) above, for the following violations of the Los Angeles Municipal Code: **(Amended by Ord. No. 187,248, Eff. 12/13/21.)**

1. **Repeat Violation.** Pursuant to Sections 12.26 F.15. and 12.26 I.17. of the Los Angeles Municipal Code, a penalty fine of \$200.00 shall be levied when cited in a subsequent notice to comply for the same violation.

2. **Notice of Revocation or Failure to Pay Repeat Violation Fine.** In addition to any revocation, pursuant to Sections 12.26 F.14. and 12.26 I.16. of the Los Angeles Municipal Code, a penalty fine in the amount of \$750.00 shall be levied for each violation specified in a notice of intent to revoke or as a result of failure to pay a repeat violation fine.

(g) In addition to any other remedy provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

SEC. 98.0403.1. POWERS OF THE DEPARTMENT AND THE BOARD.
(Former Sec. 98.0403 Redesignated by Ord. No. 165,310, Eff. 12/31/89.)

(a) Powers of the Department.

1. **(Amended by Ord. No. 173,159, Eff. 5/7/00, Oper. 7/1/00.)** The Department is granted the power to enforce all ordinances and laws relating to the construction, alteration, repair and demolition, or removal of buildings or structures in the City, and to the installation, alteration, repair, use, and operation of all heating, plumbing, lighting, ventilating, refrigerating, electrical and mechanical appliances and equipment in those buildings or structures.
2. **(Amended by Ord. No. 173,159, Eff. 5/7/00, Oper. 7/1/00.)** The Department is granted the power to enforce all ordinances and laws relating to the construction, alteration, repair, removal or installation of elevators, escalators, console and/or stage lifts, incline cars, manlifts (including any other personnel lifts), personnel hoists, steam boilers, pressure vessels and all connections and appurtenances pertaining to their proper functioning.
3. **(Amended by Ord. No. 173,159, Eff. 5/7/00, Oper. 7/1/00.)** The Department is granted the power to enforce the zoning ordinances of the City.
4. **(Amended by Ord. No. 171,455, Eff. 1/30/97.)** The Department shall have the power and duty to enforce all ordinances and laws relating to grading and control of excessive dust emission.
5. The Department shall have the power and duty to enforce all portions of the Rules and Regulations of the State Fire Marshal which relate to the construction, alteration, repair, demolition, or removal of buildings, or structures, and to the use and operation of all heating, plumbing, lighting, ventilating, refrigerating, electrical, and mechanical appliances therein. Provided, however, that no application for modification of specific provisions of the Rules and Regulations of the State Fire Marshal shall be granted by the Department, unless and until such application shall be first submitted to the Chief Engineer of the Fire Department or the Chief's representative for report and recommendation with respect thereto.
6. The Department shall have the power to enforce those building regulations mandated by State or Federal law to be enforced by the local building Department or building official.
7. The Department shall have the power to enforce States laws relating to buildings, structures and construction activities provided the authority to do so has been allowed or granted by the State and the Department has determined to undertake such enforcement.
8. The Department shall have the power to enforce other ordinances and laws when designated to do so by law.
9. In the exercise of the powers enumerated in this subsection, the Department shall have the power to apply the building ordinances of the City (Chapter IX of the LAMC) and those building regulations mandated by state law to be enforced by the local agency, building Department or Building Official to buildings and structures containing one or more air space lots as defined in Article 2, Chapter I of the LAMC so as to treat the entirety of such buildings or structures as if they were on or within a single lot, provided: **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
 - i. That such buildings or structures or portions thereof would otherwise conform to such ordinances and regulations, but for the creation of such air space lots; and
 - ii. That a covenant and agreement, in a form designed to run with the land and satisfactory to the Department be recorded with the Office of the County Recorder and a copy filed with the Department by the owners binding themselves and future owners and assigns to keep, preserve and maintain all portions of such buildings or structures in accordance with and pursuant to such building ordinances and regulations.
10. **(Amended by Ord. No. 170,141, Eff. 1/2/95.)** The Department shall have the power to hear and act upon requests for slight modifications in individual cases to the building ordinances of the City, and regulations under Articles 1 through 8 of Chapter IX of the Los Angeles Municipal Code.

In granting a request for a slight modification, the Department shall determine that the slight modification is reasonably equivalent to the ordinance requirement involved, that a special individual reason makes the strict letter of the ordinance impractical and that the slight modification is in conformity with the spirit and purpose of the code or codes involved.
11. **(Added by Ord. No. 170,141, Eff. 1/2/95.)** The Department shall have the power to hear and determine requests for slight modifications for individual cases in the yard area requirements of the zoning ordinance, provided that in each such modification, the Superintendent shall first find that a special, individual reason makes the strict letter of the ordinance impractical and that the modification is in conformity with the spirit and purpose of the ordinance involved. Any action granting a modification shall be recorded and entered in the files of the Department.

For structures and additions constructed after January 1, 1995, slight modifications from the yard requirements shall be limited to deviations permitting portions of buildings to extend into a required yard or other open space a distance of not to exceed 20 percent of the width or depth of such required yard or open space. However, for structures and additions existing prior to January 1, 1995, slight modifications may be granted for yard deviations slightly over 20 percent.

Except as expressly provided herein, the Superintendent of Building shall not grant deviations from the lot area, height, or density requirements. Further, the Superintendent shall not grant deviations from the yard requirements relating to the height of fences and walls, or including those for tennis or paddle tennis courts and other game courts.

If the yard regulations cannot reasonably be complied with or it is difficult to determine their application on lots of peculiar shape or location, then the regulations may be modified or determined by the Superintendent of Building. The Superintendent may also waive all or part of the required loading space on unusually shaped lots, oddly located lots, or hillside lots, when such space cannot reasonably be provided or utilized.

Requests for yard modifications as provided in this subsection shall be made in accordance with the procedures established in Section 98.0403.2 of the Los Angeles Municipal Code.
12. **(Amended by Ord. No. 173,364, Eff. 7/29/00.)** The Department shall have the power to enforce any administrative nuisance abatement determination made by the Zoning Administrator, former Board of Zoning Appeals, City Planning Commission, Director of Planning or City Council. There shall be no administrative appeal to any City official or Board from such an enforcement action by the Department.

(b) Powers of the Board.

1. **(Amended by Ord. No. 175,428, Eff. 9/28/03.)** The Board shall have the power to hear and act upon appeals filed by any person aggrieved by the Department requesting a slight modification under this section, except for those actions permitted in subsection (a)11.

If the Board grants a slight modification on appeal, then the Board shall make the same findings as required by the Department when acting on a slight modification.
2. **(Amended by Ord. No. 175,428, Eff. 9/28/03.)** The Board shall have the power to hear and determine appeals from orders, interpretations, requirements, determinations, or actions of the Department pertaining to enforcement of specific ordinances, regulations, or laws in site-specific cases. These appeals shall state how the Department has erred or abused its discretion in the matter of the appeal. The Department shall provide the Board with a written report on the appeal. The Department, however, may reverse or modify the action appealed at any time prior to final action by the Commission. The Board shall hear and make its determination on the appeal no later than the 30th calendar day after the appeal is heard.

Notwithstanding the above, the Board shall have no authority to hear and determine appeals from orders, interpretations, requirements, determinations, or actions of the Department pertaining to enforcement of specific ordinances, regulations, or laws contained in Chapter I of the LAMC and in other land use ordinances. Any appeal concerning these requirements shall be made to the Director of Planning in accordance with the provisions set forth in LAMC Section 12.26 K. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

The Department shall maintain a file of requests from individuals or groups who wish to be notified of certain determinations on individual job addresses. These requests shall be submitted to the Department in writing and shall specify the subject job address, and the address and telephone number where they wish to be notified. The request shall be in force until the end of the calendar year in which the request is filed and the request may be renewed at any time during the subsequent calendar year.

The Department shall provide a copy of board agendas by U.S. mail to individuals or groups who wish to receive them. The mailing of agendas shall be maintained by a yearly subscription fee of \$50.00. A subscription fee of \$25.00 will be charged if there is less than six months remaining in the calendar year. Fees for individual and/or mail requests for copies of board agendas and other documents shall be as set forth in Los Angeles Administrative Code Sections 12.31 and 12.32.

3. The Board shall have the power to act in other situations as provided by ordinance or law.
4. The Board shall have the power to refuse to hear an appeal if the Board determines that the appeal is basically a restatement of a previous appeal on the same job and no substantial additional justification has been presented by the appellant.
5. The power of the Board shall not include the right to hear and act upon any of the following:
 - i. An appeal from the Department's action on a request for a slight modification, an appeal of a legitimate Department order or an appeal objecting to the Department's determination, if such appeal is:
 - a) Filed on or after the date a citation is issued charging a person with a violation of the Code or any other ordinance or law enforced by the Department, and the appeal in any way involves the citation issuance, an arrest associated with the citation issuance, or the facts or Code issues underlying the citation issuance.
 - b) **(Amended by Ord. No. 170,324, Eff. 3/6/95.)** Filed on or after evidence of a violation of the Code or any other ordinance or law enforced by the Department is presented to and accepted by the City Attorney for criminal prosecution.If an appeal or request for a slight modification is not filed with 15 days after the Department's action on the violation, the action and/or determination of the Department shall be final.
 - ii. An appeal in violation of limitations placed upon the Board's powers as specified in other ordinances, regulations, or law.
 - iii. **(Repealed by Ord. No. 175,428, Eff. 9/28/03.)**
 - iv. If the Board or Superintendent determines that an appeal or request for a slight modification, filed with the Board, relates to Department enforcement of laws or access to public accommodations and housing by the physically handicapped, then the matter shall be referred to the Handicapped Access Appeals Commission for its action. The Board's jurisdiction shall not include the right to hear appeals from or otherwise review any action, order, or determination of the Handicapped Access Appeals Commission.
 - v. **(Amended by Ord. No. 173,159, Eff. 5/7/00, Oper. 7/1/00.)** An appeal dealing with financial, personnel, or administrative issues or other similar matters.
 - vi. **(Amended by Ord. No. 173,364, Eff. 7/29/00.)** An appeal seeking relief from any nuisance abatement determination or enforcement decision of the Department relating to any administrative nuisance abatement determination made by the Zoning Administrator, former Board of Zoning Appeals, City Planning Commission, Director of Planning or City Council.

SEC. 98.0403.2. PROCEDURES FOR APPEALS TO THE DEPARTMENT AND TO THE BOARD.

(Amended by Ord. No. 181,758, Eff. 8/8/11.)

(a) Appeals to the Department Under Power Granted in LAMC Section 98.0403.1. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. Such appeals shall be made in writing, upon appropriate forms provided by the Department.
2. An appeal processing fee of \$130.00 for the first item and \$39.00 for each additional item shall be paid by the appellant prior to the Department processing the appeal and making a determination.

In addition to the appeal processing fee required above, an inspection fee of \$84.00 per inspection shall be paid by the appellant when, in the opinion of the Department, the appeal requires field inspections to verify site conditions. Miscellaneous Fees as provided for in LAMC Section 98.0415(f) may be collected to prepare a written report.

An additional inspection fee as described in LAMC Section 98.0412(a) may be charged by the Department for each inspection necessary to verify compliance with the conditions established by the determination of the Department.

EXCEPTIONS:

- A. No appeal fee shall be required on any appeal from an order arising from an area-wide survey, conducted by the Department, of buildings used for one family housing, if the work required to bring the unit into compliance with the LAMC is the same as specified in the order.
 - B. No appeal fee shall be required for any appeal on a child-care facility if the owner or operator is a nonprofit child-care organization that has filed a notarized affidavit to that effect with the Department.
 - C. No appeal fee shall be required for any appeal filed to request an extension of time to comply with an order issued by the Department. This exception shall expire on September 24, 2020. **(Added by Ord. No. 186,639, Eff. 5/29/20.)**
 3. If the Superintendent of Building determines that an item of request involves a material, device or method of construction appropriate for a General Approval under LAMC Section 98.0501, such request shall be accompanied by a filing fee of \$165.00 for each request submitted which includes such item.
- A supplemental fee as specified in LAMC Section 98.0501(b)4. shall be charged to cover processing time in excess of one hour. If the Department determines that the material submitted with the appeal request substantiates the claim made therein, and no request to hold a hearing is pending, the Department may grant a conditional approval of such request.
4. In any appeal the appellant making the request shall cause to be made, at the appellant's own expense, any tests required by the Department to substantiate the

claims therein.

5. The Department may hold any hearings it deems appropriate to consider the appeal.

(b) Appeals to the Board under the Power Granted by LAMC Section 98.0403.1(b). (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. Such appeals shall be made in writing, upon appropriate forms provided by the Department.
2. Appeals shall be accompanied by a filing fee based upon the subject of the request as set forth in LAMC Tables 4-A or 4-B of this division.

EXCEPTIONS:

A. No filing fee shall be required on any appeal from an order arising from an area-wide survey, conducted by the Department, of buildings used for one family housing, if the work required to bring the unit into compliance with the LAMC is the same as specified in the order.

B. No filing fee shall be required for any appeal on a child care facility if the owner or operator is a nonprofit child care organization that has filed a notarized affidavit to that effect with the Department.

3. If the Board determines that evidence is required to be taken or that further investigation is necessary to decide any such appeal, the Board may refer the matter to a hearing examiner for hearing and report in accordance with provisions of Los Angeles City Charter Section 217 or to an ordinance-established advisory board, or may refer the matter to the Department for further investigation and report, whichever the Board deems most appropriate.

4. In any appeal, the appellant or person making such request shall cause to be made, at the appellant's own expense, any tests required by the Board to substantiate the claims therein.

5. In addition to any other appeal fees required by this subsection, each appeal shall be accompanied by an inspection fee of \$84.00 per inspection when, in the opinion of the Department, the appeal requires field inspections to verify site conditions. The Department may charge an additional inspection fee as specified in LAMC Section 98.0412(a) for each inspection necessary to verify compliance with the conditions established by the Board in any approval or conditional approval.

6. Miscellaneous Fees as provided for in LAMC Section 98.0415(f) may be collected to prepare a written report.

**TABLE NO. 4-A
FILING FEES* FOR APPEALS**

Group Occupancy	FIRST ITEM FOR SINGLE BUILDING				Each Additional Item
	TYPE OF BUILDING**				
	V	IV	III	I & II	
R-3 & U	\$215.00	\$215.00	\$215.00	\$215.00	\$76.00
All Others	\$354.00	\$354.00	\$354.00	\$632.00	\$215.00
All other filing fees not covered in the above schedule including appeals pursuant to Los Angeles Municipal Code Section 12.26, shall be \$500.00 for the first item and \$150.00 for each additional item.					

* See LAMC Subsection 91.105.4 for fees for referral to the Sign Advisory Committee. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

** Accessory building, structures or appendages will be considered the same as main building and occupancy.

**TABLE NO. 4-B
FILING FEES* FOR APPEALS GRADING AND SOIL REQUIREMENTS**

Number of Lots	Construction Requirements	Unstable Soil of Geology	Each Additional Item
1-5 Lots	\$280	\$480	\$115
6 or more lots	\$580	\$880	\$280

* See LAMC Subsection 91.105.3 for fees for referrals to the Engineering Geology Advisory Committee. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

SEC. 98.0404. EXTRA TERRITORIAL INSPECTIONS.

(a) The Department of Building and Safety may make inspections outside the territorial boundaries of the City of Los Angeles when the Superintendent of Building determines that such inspection is necessary for the City's public health, safety or general welfare. Such inspections may include the inspection of items intended to be used in building construction or as building equipment in the City of Los Angeles. Employees of the Department of Building and Safety shall inspect such items that are manufactured or fabricated during the process of such manufacturing or fabrication in accordance with the requirements of the Los Angeles Municipal Code.

(b) The Superintendent shall adopt reasonable rules and regulations governing such inspections made outside the City boundaries. (Amended by Ord. No. 139,419, Eff. 11/30/69.)

**SEC. 98.0405. CHARGES FOR PRINTED MATERIALS AND MISCELLANEOUS TYPE SERVICES.
(Amended by Ord. No. 168,231, Eff. 10/18/92.)**

The Department shall charge and collect the following amounts for the items shown in LAMC Table 4-C of this division prior to providing such materials and/or service to members of the public. The charges herein established shall be sufficient to fully compensate the City for all expenses incurred in the preparation, production, handling and distribution of the items listed and including general overhead expenses. The Superintendent of Building shall periodically review such charges to insure that all applicable expenses to the City are fully compensated. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

**TABLE 4-C
CHARGES FOR PRINTED MATERIALS
(Amended by Ord. No. 168,231, Eff. 10/18/92.)**

ITEM	CHARGE
"Certificate of Inspection and Permit to Operate Steam Boiler or Pressure Vessel" Form M-1	\$11.00 pad (100)
"Research Report Index"	\$30.00 per copy

SEC. 98.0406. INSPECTION FEES FOR OFF HOURS INSPECTION.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Department may, at its discretion, make inspections at other than normal working hours upon application therefor by a permittee. A fee in addition to fees charged elsewhere in this Code, at a rate of \$100.00 per hour shall be charged for such inspection, time to include travel to and from place of inspection, with a minimum of \$300.00.

SEC. 98.0407. SPECIAL ENFORCEMENT PROCEDURE FEES.

(Amended by Ord. No. 168,231, Eff. 10/18/92.)

Whenever special enforcement procedures are required to obtain compliance with properly executed Departmental orders that apply to application for inspection of Construction Permits, a fee of \$ 32.00 shall be assessed in addition to fees specified elsewhere in the Municipal Code.

SEC. 98.0408. ISSUANCE OF CITATIONS BY DESIGNATED EMPLOYEES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) In the performance of their duties, Senior Safety Engineers-Pressure Vessels, Senior Safety Engineers- Elevators, Safety Engineers-Pressure Vessels, Safety Engineers-Elevators, Senior Electrical Equipment Testers, Electrical Equipment Testers, Equipment Safety Investigators, Electrical and Mechanical Engineering Assistants, Building Electrical and Building Mechanical Engineering Associates assigned to the Electrical and Mechanical Test Laboratories, and Senior Inspectors and Inspectors in the classifications of Building, Building- Mechanical, Electrical, Heating and Refrigeration and Plumbing shall have the power, authority and immunity of a public officer or employee, as set forth in California Penal Code Section 836.5, to make arrests without a warrant whenever any of them has reasonable cause to believe that the person to be arrested has committed a misdemeanor or an infraction in their presence in violation of an ordinance or statute which such employee has the duty to enforce. Those ordinances or statutes shall include any law set forth in Subsection (b) of this section. In accordance with LAMC Section 11.06, in any case in which a person is arrested pursuant to this authority and the person arrested does not demand to be taken before a magistrate, the public officer or employee making the arrest shall prepare a written notice to appear and shall release the person on the person's promise to appear as prescribed by California Penal Code Sections 853.5 and 853.6. If such person signs the written notice to appear, thereby promising to appear, the person shall not be taken into physical custody.

(b) Any person designated in LAMC Section 98.0408(a) shall have the power, authority and immunity of a public officer or employee under California Penal Code Section 836.5 to make arrests without a warrant whenever that person has reasonable cause to believe that the person to be arrested has committed a misdemeanor or an infraction in their presence which is a violation of any of the following LAMC Sections:

41.14	62.51 1.(e)	66.25
41.45	62.79	67.02(a)
42.00	62.80	80.73(b)2.A.(4)
56.08	62.96(a)	80.73(b)2.C., D., E.
56.11	62.130	85.01(a)
62.45(b)	64.30 with respect to storm drain	114.04
62.49(a)	systems and waters of the State	114.05

or a violation of State of California Penal Code Section 556 or 556.1.

(c) Those persons designated in LAMC Section 98.0408(a) are hereby authorized to issue parking citations as provided in LAMC Section 80.01.1 for the violation of LAMC Sections 80.53, 80.56, 80.73(b)2.A.(1), (2), (3), 80.73(b)2.F., 80.73.2, 80.77 and 85.01(b); and California Vehicle Code Section 22500(f).

SEC. 98.0410. SURCHARGE FOR DEVELOPMENT SERVICES CENTERS.

(Title and Section Amended by Ord. No. 184,548, Eff. 12/11/16.)

(a) There shall be added to the total of all fees imposed for registration of medical marijuana collectives provided for in Article 5.1, Chapter IV of the LAMC and for any permit, plan check, license, application, report, and inspection provided for in Articles 1 through 8, Chapter IX of the LAMC, excluding LAMC Sections and Subsections 91.6205.18, 91.107.4.4, 91.107.4.6, 98.0402, 98.0411, 98.0416, 98.0418 and 98.0716, a surcharge in an amount equal to the greater of 3% of the fees or \$1.00. All monies received from this surcharge shall be deposited to and expended as provided for the Construction Services Trust Fund pursuant to Los Angeles Administrative Code Section 5.321. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(b) The previous surcharge amount of two percent is increased solely to pay for the \$21.76 million cost of developing and implementing BuildLA, a comprehensive enterprise wide development services system, and shall not be used to pay for ongoing BuildLA costs such as maintenance or system hosting services.

(c) The surcharge increase shall be returned to the greater of two percent or one dollar when the City Administrative Officer determines the surcharge increase has recovered the \$21.76 million cost of BuildLA.

SEC. 98.0411. NON-COMPLIANCE FEES.

(Amended by Ord. No. 168,231, Eff. 10/18/92.)

(a) **Noncompliance Fee. (Amended by Ord. No. 171,175, Eff. 7/25/96.)** If, in the course of enforcing any state law or local ordinance, the Department issues an order to a person and the person fails to comply with that order within 15 days following the due date for compliance specified in the order and any extension thereof, then the Department shall have the authority to collect a noncompliance fee.

The purpose of this fee is to recover a portion of the cost of any additional inspection and administrative or appeal proceedings incurred by the Department in order to enforce the Code or secure compliance with the order. No more than one such fee shall be collected for failure to comply with an order. This noncompliance fee shall be in addition to fees specified elsewhere in the Los Angeles Municipal Code.

The Department shall not impose a noncompliance fee unless the order states that "a proposed noncompliance fee may be imposed for failure to comply with the order within 15 days after the compliance date specified in the order or unless an appeal or slight modification is filed within 15 days after the compliance date".

EXCEPTION: If a person against whom an order is issued appeals that order within 15 days after the compliance date set forth in the order, then the Department may not impose a noncompliance fee until a final appeal determination upholding or modifying the underlying Department order has been made. The Department may then impose a noncompliance fee only for failure to comply with the final appeal determination within 15 days after the compliance date or dates specified in the determination.

(b) **Appeal. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** Any person served with an order and notice of proposed non-compliance fee may appeal the order and proposed imposition of the non-compliance fee or request a slight modification pursuant to the procedures set forth in LAMC Section 98.0403.1.

The Department or the Board may rescind or modify the proposed non-compliance fee under the authority granted by LAMC Section 98.0403.1.

If the appeal or request for slight modification is not filed within 15 days after the compliance date or extensions granted therefrom, the determination of the Department to impose and collect a non-compliance fee shall be final.

(c) **Collection of the Noncompliance Fee. (Amended by Ord. No. 175,596, Eff. 12/7/03.)** If the Department determines pursuant to Subsections (a) and (b) of this section that a noncompliance fee is due, then it shall notify the person cited, by United States mail in a sealed envelope, with postage paid, addressed to the last known address of the person cited as that address appears in the last equalized assessment roll. The notice of noncompliance fee shall state that:

“if the noncompliance fee incurred is not remitted to the Department within 30 days after the date of mailing of this notice, the Department shall impose a late charge equal to two times the noncompliance fee and a collection fee equal to 50 percent of the original noncompliance fee. Any person who fails to pay the noncompliance fee, late charge or collection fee shall also pay interest. Interest shall be calculated at the rate of one percent per month, or fraction of a month, on the amount of the noncompliance fee, late charge and collection fee imposed, from the 60th day after the date of mailing of this notice until the date of payment.”

Service of the notice of noncompliance fee shall be deemed to have been completed at the time of deposit in the United States mail.

The person cited shall remit the noncompliance fee to the Department within 30 days after the date of mailing the notice of noncompliance fee. If the person cited fails to do so, then the Department may demand payment of the noncompliance fee from the person cited and may withhold the issuance of building permits, licenses or approvals to the cited person until the noncompliance fee has been paid.

A late charge equal to two times the noncompliance fee and a collection fee equal to 50 percent of the original noncompliance fee shall be imposed if the fee is not paid within 30 days after the date of mailing the notice of noncompliance fee. Any person who fails to pay the noncompliance fee, late charge or collection fee shall also pay interest. Interest shall be calculated at the rate of one percent per month, or fraction of a month, on the amount of the noncompliance fee, late charge and collection fee imposed, from the 60th day after the date of mailing the notice of noncompliance fee until the date of payment. Any partial payments of the noncompliance fee, late charge, collection fee or interest received shall be applied first to interest, then late charge and collection fee, and lastly to the noncompliance fee.

The City shall have the right to bring legal action in any court of competent jurisdiction to enforce the order and collect the amount of these fees. In addition to any other remedy provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

Notwithstanding the foregoing, the noncompliance fee payment deadline shall be 90 days from the invoice print date instead of 30 days after the date of mailing the notice of noncompliance fee. This 90-day deadline for payment of the fee shall apply to all invoices issued up to and including September 24, 2020. **(Added by Ord. No. 186,638, Eff. 5/29/20.)**

(d) The amount of the non-compliance fee shall be as shown in Table No. 4 D.

TABLE NO. 4-D
(Amended by Ord. No. 184,674, Eff. 1/29/17.)
NONCOMPLIANCE INSPECTION FEES
BUILDINGS, OTHER STRUCTURES, OPEN USES, SIGNS, LICENSES AND EQUIPMENT

Item	Fee
Buildings, Other Structures, Open Uses, Signs, Licenses and Equipment	\$660.00

NON-COMPLIANCE FEE
EXISTING BUILDING ENERGY AND WATER EFFICIENCY (EBEWE) PROGRAM

Item	Fee
Buildings Noncompliant with City EBEWE Program	\$202.00

GRADING

Item	Fee
Class I Slope Failure*	\$3,474.00
Class II Slope Failure	\$2,779.00
Class III Slope Failure	\$2,084.00
Other Grading Code Violations	\$1,389.00

* Refer to LAMC Section 91.7003 for definition of slope failure classification. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 98.0412. INSPECTION FEES.
(Amended by Ord. No. 180,868, Eff. 10/22/09.)

The following fees when referenced to this section by other sections of Chapter IX of the Los Angeles Municipal Code shall be collected by the Department for the following types of inspections:

- | | |
|---|------------------------|
| (a) Minimum inspection fee ¹ | \$90.00 per inspection |
| (a1) Single fixtures ² | \$55.00 per inspection |

EXCEPTION: No permit or inspection shall be required for the installation or replacement of garbage disposals within individual dwelling units.

- | | |
|---------------------------|----------------------|
| (b) Additional inspection | 90.00 per inspection |
|---------------------------|----------------------|

(c) Miscellaneous permits or inspections	90.00 each
(d) Special equipment inspection	104.00 per hour or fraction thereof
(e) Off-site inspection	104.00 per hour, minimum \$277.00
(f) Witnessing performance test	104.00 per hour or fraction thereof

¹ When the cumulative fees set forth in this Code are less than the minimum fee, the minimum fee shall be paid which shall include the issuing fee.

² The fee for single fixture shall apply to the installation of only one electrical, plumbing or mechanical fixture/ equipment and shall include the issuing fee.

SEC. 98.0413. SURCHARGE FOR ELECTRICAL AND MECHANICAL TESTING.

(Deleted by Ord. No. 178,883, Eff. 7/26/07.)

SEC. 98.0414. CERTIFICATION FEES.

(Amended by Ord. No. 171,185, Eff. 7/22/96.)

Before accepting for filing any application for a Certificate of Qualification or a Maintenance Certificate of Registration, the Department shall collect from the applicant the following fees:

(a) Certification of Qualification	
1. Initial application fee	\$50.00
2. Subsequent application and examination fee	50.00
3. Annual renewal fee	25.00
(b) Maintenance Certificate of Registration	
1. Initial certificate fee	150.00
2. Annual renewal fee	150.00

SEC. 98.0415. CLERICAL, ISSUING OR RESEARCH FEES AND MISCELLANEOUS FEES.

(Amended by Ord. No. 181,758, Eff. 8/8/11.)

The Department may collect a fee from the applicant or appellant for the following types of services:

(a) Correction of address for permit	\$34.00
(b) Transfer of name of permittee to any other person	\$48.00
(c) Permit issuing fee for:	
Electrical, plumbing, mechanical and elevator permits	\$23.00
Building permits	\$27.00
(d) Supplementary permit issuing fee	\$19.00
	\$104.00 per staff
(e) Supplementary or preliminary plan check or study fee	hour or portion thereof
	\$104.00 per staff
(f) Fee for report *	hour or portion thereof

* A minimum fee of \$104.00 shall be payable when a request for a written report on a property or code item is made and any balance shall be due prior to the release of the report. Written reports for which this fee is applicable shall include, but not limited to, interpretation of the public records for the property (document research), termination of covenants and agreements, written interpretation or request for modification of the codes (municipal and/or other codes and regulations), and issuance of reports seeking the status of code violations, permitted use, etc. of a property or other similar purposes.

SEC. 98.0416. BUILDING AND SAFETY SYSTEMS DEVELOPMENT SURCHARGE.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

There shall be added to the total of all fees imposed for registration of medical marijuana collectives provided for in Article 5.1, Chapter IV of the LAMC and for any permit, plan check, license, application, report and inspection provided for in Articles 1 through 8, Chapter IX of the LAMC, excluding LAMC Sections and Subsections 91.6205.18, 91.107.4.4, 91.107.4.6, 98.0402(f), 98.0410, 98.0411, 98.0416, 98.0418 and 98.0716, a surcharge in the amount equal to the greater of 6% of the fee or \$1.00. All monies received from this surcharge shall be deposited to and expended as the "Building and Safety Systems Development Account" of the Department of Building and Safety Building Permit Enterprise Fund pursuant to Los Angeles Administrative Code Section 5.121.8.

SEC. 98.0417. PROCESSING FEES FOR MISCELLANEOUS CERTIFICATES OF COMPLIANCE.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Department of Building and Safety shall charge a fee of \$29.00 for the processing of each Certified Licensed Contractor Certificate of Compliance. Such certificates shall be provided for each retrofit of a hot water heater, forced air unit, air-conditioning unit, plumbing fixture, solar panel, domestic water piping within a dwelling or accessory swimming pool, metallic water service piping, reroof, smoke detector, shower pan, masonry and concrete fences not exceeding 6 feet (1828.8 mm) in height replaced or installed, and masonry chimneys repaired as specified in the LAMC.

SEC. 98.0418. SURCHARGES FOR DEVELOPMENT OF AUTOMATED SYSTEMS AND GENERAL PLAN MAINTENANCE FOR THE DEPARTMENT OF CITY PLANNING.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) There shall be added to the total of all fees imposed for any building permit required by the provisions of Article 1, Chapter IX of the LAMC, an automated systems

development surcharge in an amount equal to the greater of 6% of the fee or \$1.00, except that any other surcharge shall be excluded from the computation of the surcharge under this Subsection (a). The Fire Hydrant Fee in LAMC Subdivision 91.107.4.4, and the Arts Development Fee in LAMC Subdivision 91.107.4.6 shall also be excluded from the computation of the surcharge under this Subsection (a). In addition, an administrative fee of \$5.00 shall be collected each time the surcharge is collected. Monies received from this surcharge shall be deposited into the City Planning Systems Development Fund pursuant to Los Angeles Administrative Code Section 5.457, except that the \$5.00 fee shall be deposited into the Department of Building and Safety Permit Enterprise Fund and credited to the departmental receipts of the Department.

(b) There shall be added to the total of all fees imposed for any building permit required by the provisions of Article 1, Chapter IX of the LAMC, a general plan maintenance surcharge in an amount equal to the greater of 7% of the fee or \$1.00, except that any other surcharge shall be excluded from the computation of the surcharge under this Subsection (b). The Fire Hydrant Fee in LAMC Subdivision 91.107.4.4, and the Arts Development Fee in LAMC Subdivision 91.107.4.6 shall also be excluded from the computation of the surcharge under this Subsection (b). In addition, an administrative fee of \$5.00 shall be collected each time the surcharge is collected. Monies received from this surcharge shall be deposited into the Department of City Planning Long-Range Planning Special Revenue Fund pursuant to Los Angeles Administrative Code Section 5.400, except that the \$5.00 fee shall be deposited into the Department of Building and Safety Permit Enterprise Fund and credited to the departmental receipts of the Department.

The monies received pursuant to this section shall be used for the maintenance of the City's General Plan and all associated underlying plans or elements, ordinances, and other associated planning initiatives. Fifty percent (50%) of the monies received after the effective date of this ordinance shall be used for costs directly related to updating the City's 35 Community Plans.

SEC. 98.0419. WAIVER OF FEES FOR STRUCTURES DAMAGED IN THE 1994 NORTHRIDGE EARTHQUAKE.

(Added by Ord. No. 169,813, Eff. 5/10/94.)

Notwithstanding any provision of the LAMC or the Los Angeles Administrative Code to the contrary, the following provisions shall apply to work performed to demolish, repair or rebuild a building or structure damaged or destroyed as a result of the 1994 Northridge Earthquake and its aftermath. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(a) The Department shall waive all fees which the Superintendent of Building determines are required by Articles 1 through 8 of Chapter IX of the LAMC to repair earthquake damage or to demolish and/or rebuild a building, structure or portion thereof destroyed as a result of the Northridge Earthquake Local Emergency. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(b) In addition, in order to qualify for the waiver of fee as provided in Subsection (a) above, at the time the owner makes application for a permit to demolish or build, the owner shall certify and execute a statement, under penalty of perjury, that any payment or settlement received or to be received from any insurance company for the loss and/or damage sustained from the January 17, 1994 Northridge Earthquake and its aftermath does not or will not include the cost of permits; and that if a payment or settlement from any insurance company does include the cost of permits, then the owner will reimburse the City for such cost.

(c) This ordinance shall apply retroactively so as to permit the full refund, upon submission of a claim therefor, of all fees heretofore paid which would have been subject to waiver by the provisions of this ordinance. In order to qualify for such reimbursement, an owner must certify and execute under penalty of perjury a statement as set forth in Subsection (b) above.

(d) The waiver of fees provided in this section shall be in effect until January 17, 1997. **(Amended by Ord. No. 171,168, Eff. 8/16/96.)**

SEC. 98.0420. REFUNDS OF DEPARTMENT FEES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

No claim for refund of Department fees shall be allowed in whole or in part unless filed with the City Clerk within 12 months from the date of expiration of the permit/application or of any extensions granted by the Department or within 12 months from the date of any Department or Board action in which a valuation, as required by Chapter IX of the LAMC, is lowered pursuant to the provisions of LAMC Section 98.0403.1. In the case a valuation is lowered, the refund shall be 100% of the difference paid and what should have been paid on all fees.

Insofar as the provisions of this section are in conflict with the provisions of LAMC Sections 22.12 and 22.13, the language of this section shall be construed to control and supersede the language of said sections as to any such conflict.

SEC. 98.0421. CODE VIOLATION INSPECTION FEE.

(Title and Section Amended by Ord. No. 181,497, Eff. 2/3/11.)

(a) **Code Violation Inspection Fee.** The Department may impose a fee equivalent to the Department's actual cost of investigation or \$336.00, whichever is less, whenever the Superintendent of Building conducts an inspection and issues an order or notice after verification of violation(s) of any provision(s) of the Los Angeles Municipal Code, Administrative Code or any Ordinance or State law enforced by the Department.

The fee may be imposed only after a violation is identified and verified upon inspection by the Superintendent. The individual(s) notified, shall be jointly and severally responsible to ensure that the fee specified in this section is paid to the Department. Notification of the fee shall be given to the property owner, person in control of the property, the actual violator, tenant in possession and/or business operator as may be relevant and determined by the Superintendent.

(b) **Notice.** Notification of the order or notice and the Code Violation Inspection Fee shall be sent by United States Mail in a sealed envelope, with postage paid, addressed to the last known address of the person cited as the address appears in the last equalized assessment roll or delivered in person. Service of the notice shall be deemed to have been completed at the time of deposit with the United States Postal Service.

(c) **Collection of the Code Violation Inspection Fee.** The person cited shall remit the Code Violation Inspection Fee to the Department within 30 days of the effective date of the order or notice. If a permit is required in order to correct a violation stated in the order or notice, the permit shall not be issued until the Code Violation Inspection Fee including any late charge is paid. Failure to pay the Code Violation Inspection Fee within 30 days after notification will result in a late charge of two (2) times the Code Violation Inspection Fee plus a 50 percent (50%) collection fee for a maximum total of \$1,176.00. The Code Violation Inspection Fee is in addition to any other applicable fee, fine or penalty specified elsewhere in the Los Angeles Municipal Code, Administrative Code or any Ordinance or State Law enforced by the Department.

In addition to any other remedy provided by law, the City may collect any judgment, fee, cost, or charge, including any permit fees, fines, late charges, or interest, incurred in relation to the provisions of this section as provided in Los Angeles Administrative Code Sections 7.35.1 through 7.35.8.

Notwithstanding the foregoing, the Code Violation Inspection Fee payment deadline shall be 90 days from the effective date of the order or notice instead of 30 days from the effective date of the order or notice. This 90-day deadline for payment of the fee shall apply to all orders and notices issued up to and including September 24, 2020. **(Added by Ord. No. 186,638, Eff. 5/29/20.)**

(d) **Noncompliance Fee.** **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** A noncompliance fee pursuant to LAMC Section 98.0411 may be charged.

(e) **Appeals.** **(Amended by Ord. No. 185,587, Eff. 7/16/18.)** Any person served with an order or notice may appeal the Code Violation Inspection Fee or request a slight modification pursuant to the procedures set forth in LAMC Section 98.0403.1.

The Department or the Board may rescind or modify the Code Violation Inspection Fee under the authority granted by LAMC Section 98.0403.1.

If the appeal or request for slight modification is not filed within 30 days after the effective date of the order or notice or extensions granted therefrom, the determination of the Department to impose a Code Violation Inspection Fee shall be final.

SEC. 98.0422. FEES FOR OFF HOURS PLAN CHECK AND OTHER SERVICES

(Added by Ord. No. 171,668, Eff. 8/28/97.)

At the request of the applicant, the Department may, at its discretion, provide plan check or other services at other than normal working hours upon application therefor by an applicant. A fee, in addition to fees charged elsewhere in this code, equal to 50 percent of the fees for plan checking or other services or processing shall be collected at the time of the request.

DIVISION 5

TESTING PROCEDURES, REGULATIONS AND ADMINISTRATION

(Added by Ord. No. 139,419, Eff. 11/30/69.)

Section

98.0501 Alternate Materials, Devices and Methods of Construction.

98.0502 Appliances, Fixtures and Equipment.

SEC. 98.0501. ALTERNATE MATERIALS, DEVICES AND METHODS OF CONSTRUCTION.

(Amended by Ord. No. 167,969, Eff. 7/11/92.)

(a) **General Approvals. (Amended by Ord. No. 188,739, Eff. 9/23/25.)** The provisions of this Code are not intended to prevent the use of any material, system, device, or method of construction not specifically prescribed by this Code, provided any such alternative has been approved and its use authorized by the Department.

When certification or listing is required by this Code for any material, system, device, or method of construction, the certification or listing shall be by a certification body that has been accredited by a US or Canada based accreditation body that is signatory to the International Accreditation Forum (IAF) Multilateral Recognition Arrangement (MLA) with ISO/IEC 17065 in its Level 3 scope and that accredits bodies certifying building materials and products. Testing of products, materials, systems or devices for the purpose of product approval shall be performed by testing laboratories meeting the applicable requirements of ISO/IEC 17025. The Department shall develop a process for accepting testing laboratories and certification bodies to ensure legitimacy and protect against conflict of interest, and such a process shall be published and made available on the Department's website.

The Department shall have the authority to grant approval for any product or method of construction, provided that sufficient evidence has been provided to the Department to demonstrate adequacy of the prescribed device, material or method of construction with the Code in terms of quality, fire resistance, strength, effectiveness, durability and safety. In granting of such approval, the Department at its own discretion, may do so in the form of a one-time approval. The Department shall develop a process for one-time approval, and such a process shall be published and made available on the Department's website.

The Department shall use Division 35, Article 1, Chapter IX of the Los Angeles Municipal Code in evaluating products, materials, systems, or devices for approval where such standard exists for the product or the material and may use other approved standards which apply.

The Department determination on a one-time approval may be appealed to the Board of Building and Safety Commissioners under the applicable provisions of this article.

(b) Fees and Term of General Approvals. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

1. The application for a general approval of a new material, device or method of construction pursuant to Article 1, Chapter IX of the LAMC, and the application for a two year renewal of a general approval shall be accompanied by a fee as set forth in Table 5-A of this division.

An application for a technical or clerical modification of a general approval shall be accompanied by a fee as set forth in Table 5-A of this division.

The fees for new general approvals and technical modifications include six hours of Department processing time.

The fees for renewals and clerical modifications include three hours and one hour of Department processing time, respectively.

2. The fees for general approval of a new material or a new method of construction pursuant to Articles 2, 3, 4, 5 and 7 of Chapter IX of the LAMC shall be as provided in LAMC Section 98.0502(d).

The initial general approval, when granted, will be valid for one year. An application for renewal must be filed before the expiration of the latest approval or subsequent renewal and, when granted, will be valid for a two year period. Sale and installation shall conform to LAMC Section 98.0502(h).

3. The application fee for the initial review for Department approval of an evaluation report, pursuant to Article 1, Chapter IX of the LAMC, shall be as set forth in Table 5-A of this division. This fee shall be paid in lieu of any other application fee for a general approval described in this section.

A fee as set forth in Table 5-A of this division shall also be required for Department review of any clerical or technical modifications of a valid evaluation report.

The fees for initial review of an evaluation report and for technical modifications of, or additions to, a previously reviewed evaluation report include six and five hours of Department processing time, respectively.

The fees for clerical modifications include one hour of Department processing time.

If a general approval or renewal is based on an evaluation report issued by a nationally recognized model code organization acceptable to the Department, then the general approval and subsequent renewal shall be valid one year and two years, respectively, or as long as the unrevised evaluation report, including any renewals, is valid, whichever is less.

The Department shall review the evaluation reports created pursuant to this section and used as a basis for general approvals, prior to their expiration in order to verify that the reevaluation due dates of the reports remain unrevised and fully accurate in the records of the issuing model code organization. Evaluation reports renewed for two years shall be reviewed bi-annually. An administrative processing fee as set forth in Table 5-A of this division covering the Department costs of the reevaluation review and report distribution shall be required from the entity holding the rights to the general approval.

The fees for review of two year reevaluation reports anticipate two hours of Department processing time;

4. The applicant shall agree in the application to pay supplemental fees at the rate of \$104.00 per hour to cover any additional time required by the Department to process general approvals, renewals, reevaluations or modifications which are specified in Subdivisions 1 and 3 of this Subsection (b), and any conditional approvals pursuant to LAMC Section 98.0403.2(a)3. Processing shall include those activities directly related to the general approval for which application has been made and shall include all research, review, correspondence, clerical and consultation time pertinent to the application. The Department may require an estimated supplemental fee to be paid when the application is filed. In any event, the supplemental fee shall be paid in full prior to final action on the application by the Department.

The fees specified in this section, including supplemental fees, are application fees and are not refundable after the Department begins processing the application, regardless of whether the application is approved or denied.

EXCEPTION: Supplemental fees paid in advance which are in excess of the total actual fee are refundable.

5. All applications shall expire 12 months after the Department begins processing the application if the request for approval of a new material, device or method of construction has not been cleared of corrective orders and approved. No approval shall be issued until the application is refilled and a new fee paid.

EXCEPTION: The Department may grant an extension of time if the applicant submits in writing sufficient evidence that unusual conditions or circumstances precluded the approval within the allocated time.

(c) **Off-hour Processing of Evaluation Reports. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** Upon request by an applicant and accepted by the Department, an off-hour processing fee per LAMC Section 98.0422 may be collected for processing of evaluation reports for alternate materials.

(d) **Renewal. (Amended by Ord. No. 169,867, Eff. 7/17/94.)** Upon expiration of an approval or upon any change in design, material, method of construction or model designation made during the period of approval, it shall be unlawful to sell, offer for sale or use a product until a renewal has been approved under provisions of this section.

(e) **Requests For Extension of Time. (Added by Ord. No. 169,867, Eff. 7/17/94.)** Request for extension of time to file for renewals or obtain approval of general approvals, clerical and technical modifications, and renewals shall be made within 90 calendar days following the date of expiration of general approvals and applications for general approvals, modifications, and renewals. If such requests for extensions of time are not received within the allocated time, then a new filing fee shall be required.

**TABLE 5-A
FEE SCHEDULE
(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

Item	General Approval of Research Reports (By Los Angeles City)	General Approval of Evaluation Reports (By a Nationally Recognized Model Code Organization)
1. Initial application filing	\$3,395.00	\$2,037.00 ³ \$226.00 ⁴
2. Renewal application filing ¹ (two year)	\$2,942.00	
3. Reevaluation application filing ² (two year)		\$905.00 ³ \$113.00 ⁴
4. Technical Modification	\$1,509.00	\$1,811.00 ³ \$226.00 ⁴
5. Clerical Modification	\$279.00	\$279.00 ³ \$150.00 ⁴

1. The Department may approve one year renewals for General Approval of Research Reports, if the applicant makes such a request in writing and submit sufficient evidence of the need for a one year renewal. The fee for a one year renewal shall be \$1,961.00 for General Approval of Research Reports.
2. The Department may approve one year reevaluations for General Approval of Fire-Safety or Life-Safety Product Evaluation Reports, if the applicant makes such a request in writing and submit sufficient evidence of the need for a one year reevaluation. The fee for a one year reevaluation shall be \$603.00 for General Approval of Fire-Safety or Life-Safety Product Evaluation Reports.
3. Fee for Fire-Safety or Life-Safety Products.
4. Fee for Non-Fire-Safety and Non-Life-Safety (non- structural) Products.

SEC. 98.0502. APPLIANCES, FIXTURES AND EQUIPMENT.

(a) **Scope.** All appliances, fixtures and equipment which are required by the respective Codes to be approved and for which standards are therein cited, or for which standards or specifications have been adopted by the Superintendent, shall be approved by the Department before they may be sold, installed or used.

For the purpose of this section, sale or selling shall refer to any act of selling, offering for sale, displaying or advertising for sale, loaning, renting, leasing, or disposing of by way of gift or premium or otherwise, in connection with the sale or disposal of equipment, fixtures or appliances as designated in this section.

A label or seal of an approved nationally recognized testing agency attached to an item or any identification marking corresponding to a published listing by an approved nationally recognized testing agency indicating that the item has been tested for compliance with the standards cited in the applicable Code or adopted by the Superintendent, and indicating that the item is included in the testing agency's factory follow-up inspection and listing service, will be accepted in lieu of approval by the Department.

This section shall not apply to general approvals issued pursuant to Section 98.0501 of this article. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

(b) **Authority of Superintendent.** The Superintendent has the authority to establish standards, specifications and special requirements for materials and methods of construction when standards or specifications are not cited in the Code. The Superintendent has the authority to establish rules and regulations for the Mechanical Testing Laboratory and for the Electrical Testing Laboratory governing requirements for tests, examinations, procedures and approvals, and to establish supplemental fees, including mileage charges for field trips, and charges for examinations and inspections. The rules and regulations shall be in writing and on file in the Department and shall have the same force and effect as if they were included in any of the respective articles.

(c) **Applications of Tests and Approvals.** Any person submitting any appliance, fixture or equipment for tests, examination, approval or renewal of approval, as required by this section, shall file an application therefore with the Department on forms provided by the Department.

A separate application shall be made for each item or appliance, fixture or equipment to be tested or examined, unless otherwise determined by the Department, and shall bear the signature of the applicant. When necessary, arrangements may be made for all or part of the tests and examinations to be conducted in the field. Should the testing facilities of the Department be inadequate to determine compliance with the standards, the Superintendent may use available facilities outside the Department, provided the applicant is first notified and the additional cost, if any, is approved by the applicant in writing, for invoicing to and payment by the applicant. The Department may, at its discretion, accept tests and reports of tests by an approved testing agency as a basis in part or in full for granting an approval.

(d) **Fees. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** Applications for initial approvals and renewals pursuant to Articles 2, 3, 4, 5 and 7 of Chapter IX of the LAMC shall be accompanied by fees as follows:

1. Mechanical Testing Laboratory Fees

Item		Laboratory Approval Fee (Including one time approval)	General Approval Fee
Item		Laboratory Approval Fee (Including one time approval)	General Approval Fee
1.	Initial application filing ¹	\$1,153.00 (Including 8 hr. Processing Time but no Field Mileage)	\$1,297.00 (Including 8 hr. Processing Time but no Field Mileage)
2.	Renewal application filing ¹	\$865.00 (Including 5 hr. Processing Time but no Field Mileage)	\$865.00 (Including 5 hr. Processing Time but no Field Mileage)
3.	Processing time exceeding amount included with application ²	\$108.00/hr	\$108.00/hr
4.	Field Mileage, when required. (Mileage based on one way, straight-line distance from Laboratory to test site)		
	0 to less than 15 miles	\$43.00/trip	\$43.00/trip
	15 to less than 30 miles	\$57.00/trip	\$57.00/trip
	30 miles and over	\$57.00/trip plus \$1.00/mile over 30 miles	\$57.00/trip plus \$1.00/mile over 30 miles
5.	Reopening file closed because required production sample not received within 60 days from date application submitted ³	\$144.00	\$144.00
6.	Reopening file closed because previous approval expired for more than 30 days. Approval file shall not be reopened more than one year after expiration date. (This fee is in addition to the renewal fee)	\$288.00	\$288.00
7.	Technical Modification ¹	\$721.00 (Including 4 hr. Processing Time, but no Field Mileage)	\$721.00 (Including 4 hr. Processing Time, but no Field Mileage)
8.	Clerical Modification (Revision of names and/or model numbers under current approval requiring no testing or examination)	\$223.00 Including 1 hr. processing time but no Field Mileage)	\$223.00 Including 1 hr. processing time but no Field Mileage)
9.	Multiple Listings (Additional models and product or firm names on approved products at time of application is submitted for approval or renewal)	\$57.00 each	\$57.00 each

1. The applicant shall agree in writing, as part of the application, to pay supplemental fees for processing time, field mileage, and file reopening fees where necessary. These fees are in addition to application filing fee. The Department may require a deposit to cover the estimated total supplemental fees to be paid in advance. Initial applications will expire 12 months after the filing date if the equipment has not been cleared of corrections and approved. No approval shall be issued until the application is refilled and a new fee paid.
2. Processing time includes office and field review and testing, office and field consultation, field standby and travel time directly related to the application.
3. This fee is in addition to other fees specified in this section. The 60 day period may be extended by the Department when the applicant submits written evidence to the Department of a satisfactory reason for the extension.

NOTE: A file shall not be reopened after one year from date of expiration. The total actual fee for the application shall be determined by the Department on the basis of fees established by ordinance and shall be paid by the applicant whether or not an approval is granted. Fees paid in advance which are in excess of the total actual fees are refundable.

2. Electrical Testing Laboratory Fees

Item	Laboratory Approval Fee	General Approval Fee	Field Approval Fee (one time approval)
Item	Laboratory Approval Fee	General Approval Fee	Field Approval Fee (one time approval)

1. Initial application filing ¹			
a. General purpose equipment	\$694.00		
(1) Simple equipment (applies only to less complex light fixtures or similar equipment)	(Including 4 hr. processing time but no Field Mileage)	\$1,389.00	\$1,181.00
(2) Complex equipment and systems	\$1,250.00	\$1,528.00	\$1,389.00
b. Equipment for hazardous areas			
(1) Simple equipment	N/A	\$1,389.00	N/A
(2) Complex equipment and systems	N/A	\$1,528.00	N/A
c. Medical Equipment			
(1) Simple equipment	\$1,250.00	\$1,389.00	\$1,250.00
(2) Complex equipment and systems	\$1,389.00	\$1,528.00	\$1,667.00
d. Equipment rated above 600 volts or above 60 Hertz (except appliances and light fixtures)			
(1) Simple equipment	N/A	\$1,389.00	\$1,250.00
(2) Complex equipment and systems	N/A	\$1,528.00	\$1,667.00
Note: All fees for initial application filing include 8 hour processing time but no Field Mileage except when noted.			
2. Annual Renewal application filing ¹	65% of initial application filing fee (Including 4 hr. processing time but no Field Mileage)	65% of initial application filing fee (Including 4 hr. processing time but no Field Mileage)	N/A
3. Processing time exceeding amount included with application ²	\$104.00/hour	\$104.00/hour	\$104.00/hour
4. Field Mileage, when required. (Mileage based on one way, straight-line distance from Laboratory to test site)			
0 to 15 miles	\$41.00/trip	\$41.00/trip	\$41.00/trip
15 to 30 miles	\$55.00/trip	\$55.00/trip	\$55.00/trip
30 miles and over	\$55.00/trip	\$55.00/trip	\$55.00/trip
	plus \$1.00/mile over 30 miles	plus \$1.00/mile over 30 miles	plus \$1.00/mile over 30 miles
5. Reopening file closed because of failure to respond to correction(s) or required production sample not received within 60 days from date of notification. ³	\$138.00	\$138.00	\$138.00
6. Reopening file closed because previous approval expired for more than 30 days. Approval file shall not be reopened if not renewed for more than one year after expiration date. (This fee is in addition to the renewal fee and penalty fee)	\$277.00	\$277.00	\$277.00
7. Technical Modification ¹	\$694.00	\$694.00	
Note: Technical Modification approval time is only up to the expiration date of the application approval. This will not set a new approval time for the application.	(Including 4 hr. processing time but no Field Mileage)	(Including 4 hr. processing time but no Field Mileage)	
8. Clerical Modification (Revision of names and/or model numbers under current approval requiring no testing or examination)	\$215.00	\$215.00	
	(Including 1 hr. processing time but no Field Mileage)	(Including 1 hr. processing time but no Field Mileage)	
9. Multiple Listings (Additional models and product or firm names on approved products at time of application is submitted for approval or renewal)	\$55.00 each	\$55.00 each	
10. Department Approval Labels:			
a. Paper	\$0.22	\$0.14	N/A
b. Water Proof	\$3.60	\$2.00	N/A
c. One time only			No cost

1. The applicant shall agree in writing, as part of the application, to pay supplemental fees for processing time, field mileage, and file reopening fees where necessary. These fees are in addition to application filing fee. The Department may require a deposit to cover the estimated total supplemental fees to be paid in advance. Initial applications will expire 12 months after the filing date if the equipment has not been cleared of corrections and approved. No approval shall be issued until the application is refilled and a new fee paid.
2. Processing time includes office and field review and testing, office and field consultation, field standby and travel time directly related to the application.
3. This fee is in addition to other fees specified in this section. The 60 day period may be extended by the Department when the applicant submits written evidence to the Department of a satisfactory reason for the extension.

NOTE: A file shall not be reopened after one year from date of expiration. The total actual fee for the application shall be determined by the Department on the basis of fees established by ordinance and shall be paid by the applicant whether or not an approval is granted. Fees paid in advance which are in excess of the total actual fees are refundable.

(e) **Test Samples.** At the time of filing the application, unless otherwise directed in writing by the Department, the applicant shall submit to the Electrical Testing Laboratory, or the Mechanical Testing Laboratory, or any testing agency as may be designated by the Department, a representative production sample of the material, device, appliance or equipment to be tested and examined, unless arrangements have been made for conducting the tests and examinations on a representative production sample in the field. Additional samples shall be made available as may be required.

All wiring diagrams and additional electrical samples, including components, special ingredients, or materials required by Subsection (f) shall be made available to the Department and conform to the standards which the electrical equipment must meet before approval can be considered as specified in Subsection (f). If the electrical item submitted for test is determined by the Department to be within the practical range of review by the Electrical Testing Laboratory, it shall be accepted and subjected to the tests required by Subsection (f). Samples shall be removed by the applicant or the applicant's authorized agent upon notification to do so by the Department, or they may be scrapped upon written authorization by the applicant. Samples unclaimed six (6) months after such notification shall be scrapped.

The Department is authorized, without liability to itself or to its authorized representatives, to subject samples to destructive tests as may be required to properly evaluate the tests and examinations.

(f) **Standards.** Equipment requiring approval for use, sale or installation which does not fall within the scope of Code standards or those standards adopted by the Superintendent shall be tested for compliance with applicable portions of these standards. The Superintendent shall determine the specific standards or portions thereof to which any specific equipment must conform.

(g) **Approvals.** Whenever any appliance, fixture or equipment has been found to comply with the provisions of this section and the applicable Code, the Department shall issue an approval therefor for a period of one year. This approval is subject in every case to continued compliance with the provisions of this section and any further amendments to this section, and is subject to the requirements of the applicable articles, except where such articles are in conflict herewith, and subject also in every case to any change in the test or approval requirements for any such material, device, appliance or equipment.

Items submitted for approval which fail to meet the test or examination requirements shall be corrected and resubmitted as set forth in the Mechanical Testing Laboratory or Electrical Testing Laboratory rules and regulations adopted by the Superintendent before an approval can be granted.

(h) **Renewal of Approval. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** Upon expiration of an approval granted for any appliance, fixture or equipment, or upon any change in design, material, method of construction or model designation made during the period of approval, it shall be unlawful to sell, offer or advertise for sale, or install the appliance, fixture or equipment until a renewal of approval has been granted under the provisions of this section.

EXCEPTION: Exact duplicates of approved products, bearing the label required by this section and manufactured before the approval expires, may be offered for sale and may be installed and used in conformance with this section and Article 3, Chapter IX of the LAMC (Electrical Code). No equipment, fixture or appliance manufactured after the expiration of its approval may be placed on sale until it has been examined and approved by the annual reexamination service provided by the rules and regulations or otherwise approved by laboratories designated by the Superintendent of Building.

(i) **Identification of Approval. (Amended by Ord. No. 185,587, Eff. 7/16/18.)** Each item of material, and each device, appliance, fixture or equipment approved under the provisions of this section, shall be identified as required by the applicable article of LAMC Chapter IX or by standards, specifications or rules and regulations under which the approval was granted.

Each item of electrical equipment, fixture or appliance approved under this article and Article 3, Chapter IX of the LAMC (Electrical Code) shall bear the approval label of the Department, attached in the manner determined by the standards, or otherwise made accessible for inspection without disassembly. Approval labels may be obtained only upon the written authorization of the applicant or the applicant's authorized representative and shall be available only during the year of approval. The applicant shall be held responsible for their use. No label shall be affixed to any item not currently approved by the Department, nor shall the labels be transferred to the possession of any unauthorized person.

(j) **Inspection.** Every person selling, offering or displaying for sale, renting or installing fixtures, appliances or equipment shall make such items available for inspection upon the request of the Department.

When equipment, fixtures or appliances are found not in accord with the provisions of this section or of the respective Codes, the Department shall give written notice to the person violating these provisions to remove them from sale or use. Any person failing to comply with the provisions of such notice shall be guilty of a misdemeanor and shall be subject to the penalties described in Section 11.00 of the Los Angeles Municipal Code.

Whenever the Superintendent learns or ascertains that any equipment, as defined in this Code, has become hazardous to life, health or property, the Superintendent shall order, in writing, that such equipment be restored to a condition of safety or be dismantled or removed from its present location. The written notice shall fix a time limit for compliance with such order. No person shall use or maintain the defective equipment after receiving such notice.

(k) **Revocation of Approvals.** The Superintendent may suspend or revoke any approval if it is determined that the article which has been approved is dangerous or unsuitable for the purpose intended, or is of a quality of material or workmanship or work quality not equivalent to that required by the Code or standards adopted by the Superintendent, or deviates from any of the conditions upon which the approval was granted, or for any of the reasons set forth in this article.

In any action to suspend or revoke an approval, the procedures prescribed by the provisions of this article shall be followed.

(l) **Testing in Applicants Premises. (Amended by Ord. No. 171,185, Eff. 7/22/96.)** Testing in applicants premises maybe conducted when the applicant submits written evidence to the Department of a satisfactory reason for such tests. The applicant shall agree in writing to pay all the expense for travel, transportation, board and lodging, and other miscellaneous expense required by ordinance.

The applicant shall agree in writing, as a part of the application, to pay supplemental fees at the rate of \$158.00 per hour to cover the time of travel and processing which is in excess of the amount of time provided for in the approval, renewal or modification fee specified in this section. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

The applicant shall provide all equipment required for testing and assistance for the test. The applicant shall provide a safe environment for testing, protective equipment, and materials needed for conducting the test.

(m) **Off-hour Review of Appliances, Fixture and Equipment. (Added by Ord. No. 171,668, Eff. 8/28/97.)** Upon request by an applicant and accepted by the Department, an off-hour processing fee per Section 98.0422 of the Los Angeles Municipal Code may be collected for all services conducted by the Electrical and Mechanical Testing Laboratory.

SEC. 98.0503. TESTING AGENCIES.

Whenever tests or certificates of any material or fabricated assembly thereof, or of any persons, are required by Chapter IX of the LAMC, such tests or certification shall be made by a testing agency approved by the Superintendent of Building to conduct such tests or provide such certifications. The testing agency shall publish the scope and limitation(s) of listed or certified equipment. Approvals of testing agencies shall be issued for a period of one year and may be renewed for additional one-year periods. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(a) The Superintendent shall establish rules and regulations setting forth conditions and provisions precedent to the issuance of any such approval and for the conduct of any person or agency so approved.

(b) A fee of \$1153.00 shall accompany each application for approval and a renewal fee of \$865.00 shall accompany each application for renewal. A fee of \$648.00 shall be charged for the approval of each branch office in addition to the main office and a renewal fee of \$252.00 shall be charged for the renewal of each branch office in addition to the main office. A fee of \$648.00 shall accompany each application for a major modification and a fee of \$252.00 shall accompany each application for clerical modification. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

EXCEPTION: Application fees shall not be required from those agencies, which are located in the United States of America, established and operating on a nonprofit basis, and

1. which have an approved reinspection service; or
2. which are public universities, colleges or testing facilities operated by a governmental agency.

The fees for approval of new Testing Agencies include four hours of Department processing time. The fees for major modifications of Testing Agencies and review of each branch testing laboratory include four hours of Department processing time. The fees for renewal and clerical modifications include three hours and one and one-half hours of Department processing time respectively.

The fees for application review, investigating and inspecting testing agencies for initial recognition, modifications or renewals shall be \$108.00 per hour for on-site laboratory inspections and follow-up laboratory inspections and are applicable to all testing and other types of product approval or evaluation agencies including those exempted from application fees in the foregoing exception. Such inspections performed at off-hours shall be charged a fee at the rate of one and one-half the hourly fee in this paragraph. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

The applicant shall agree in writing, as part of the application, to pay supplemental fees at the rate of \$108.00 per hour to cover the time of processing which is excess of the time provided for in the approval, renewal or modification fee specified in this section. Processing shall include those activities directly related to the approval of Testing or other product approval Agencies for which an application has been made and shall include all research, review, correspondence, clerical and consultation time pertinent to the application. The Department may require an estimated supplemental fee to cover the time and travel expense which shall be paid at the time of filing the application and/or before any travel to laboratories outside of the State of California; however, the supplemental fee shall be paid in full prior to final action on the application by the Department. **(Amended by Ord. No. 180,868, Eff. 10/22/09.)**

The fees specified in this section, including supplemental fees, and application fees are not refundable once work has been performed by the Department, regardless of whether the action taken is approved or denied.

EXCEPTION: Supplemental fees paid in advance, which are in excess of the total actual fee shall be refundable.

Initial applications, modifications, renewals and branch approvals shall expire 12 months after the Department has started work on the application if the request for approval of a testing agency has not been cleared of corrections and approved. No approval shall be issued until the application is filed and a new fee paid.

EXCEPTION: The Department or the Board on appeal may grant extensions of time if an applicant submits in writing sufficient evidence that unusual conditions or circumstances precluded the approval within the allocated time, provided that such appeals are submitted within the time period required by LAMC Section 98.0501(e). **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(c) The Superintendent may suspend or revoke an approval upon evidence of failure of the agency or person so approved to properly conduct any test or certify any material or assembly of material in a manner required by Chapter 9, or for any of the reasons set forth in this article.

In any action to suspend or revoke an approval, the procedure prescribed by the provisions of this article shall be followed.

(d) **(Added by Ord. No. 162,434, Eff. 7/6/87.)** In order to determine compliance with applicable rules or regulations, the Superintendent may inspect the premises of any testing agency approved or seeking Superintendent approval. Such inspection shall be conducted during regular working hours and at other reasonable times.

The Superintendent or the Superintendent's authorized representatives may, during the course of any investigation or inspection, obtain statistics, information or, other physical materials which are directly related to the purpose of the investigation or inspection.

The Superintendent may collect fees for the inspection of a testing agency as necessary to cover the actual cost of having an initial inspection performed.

An additional fee may, in the discretion of the Superintendent, be charged for necessary subsequent inspections to determine if applicable ordinances, rules, or regulations governing testing agencies have been and are being met.

The initial application for approval, and the renewal application shall include a statement that the applicant agrees to pay all inspection charges imposed pursuant to this subsection.

Whenever an inspection is conducted by Department personnel at facilities located more than 60 miles from Los Angeles City Hall, the applicant shall reimburse the City for the cost thereof in accordance with the same charges as imposed for automobile and air travel, per diem and travel time as specified in LAMC Section 96.204(i) for inspection of fabrication facilities. These charges are the same for inspections initiated by the Department or requested by the applicant and are to be paid by the testing agency. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 98.0504. ENVIRONMENTAL REPORTS.

(Added by Ord. 171,239, Eff. 9/25/96.)

(a) A processing fee of \$600.00 shall be charged each applicant when the Department is required to perform an initial study or a negative declaration, to comply with the California Environmental Quality Act (CEQA). This fee shall include eight (8) hours of processing time.

(b) A processing fee of \$1200.00 shall be charged each applicant when the Department is required to perform a mitigated negative declaration or Environmental Impact Report, to comply with the California Environmental Quality Act (CEQA) and shall be in addition to the fee charged for an initial study or a negative declaration. This fee shall include twelve (12) hours of processing time.

(c) The Department shall charge the applicant hourly fees for all staff time over the minimum number of hours specified above. The fee shall be \$75.00 per hour or fraction thereof for each additional hour involving the project California Environmental Quality Act (CEQA) review.

DIVISION 6

EXPIRATION AND REVOCATION OF PERMITS, PLAN CHECK AND SLIGHT MODIFICATIONS AND ALTERNATIVES

Section	
98.0601	Purpose.
98.0602	Expiration of Permits.
98.0603	Expiration of Plan Check.
98.0604	Expiration of Slight Modifications and Alternatives.
98.0605	Time Limits of Requests for Extension.

SEC. 98.0601. PURPOSE.

(Amended by Ord. No. 165,310, Eff. 12/31/89.)

The purpose of this division is to establish requirements and procedures for the revocation by the Department of permits issued by the Department and to establish time limits for the validity of permits, plan checks and slight modifications.

(a) **Department Authority.**

1. The Department shall have the authority to revoke any permit, slight modification, determination granted or made in reliance on a false statement or misrepresentation as to a material fact.

2. The Department shall have the authority to revoke any permit, slight modification, or determination whenever such action was granted in error or in violation of other provisions of this Code and conditions are such that the action should not have been allowed. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

(b) **Board Authority.** The Board shall have the authority to revoke any slight modification, or determination granted or made by the Board in reliance on a false statement or misrepresentation as to a material fact. The Board shall also have the authority to revoke any slight modification, determination granted or made by the Board whenever such action was granted in error or in violation of other provisions of the Code and conditions are such that the action should not have been allowed.

SEC. 98.0602. EXPIRATION OF PERMITS.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

(a) Every permit issued shall be valid for a period of two years from the date thereof, provided that any permit shall expire 12 months from date of issuance if the work authorized under any permit associated to the current scope of work has not been commenced; or shall expire whenever the Department determines the work authorized by any permit has been suspended, discontinued or abandoned for a continuous period of 12 months. (See Health and Safety Code Sections 18938.5 and 18938.6.) (Amended by Ord. No. 187,719, Eff. 1/23/23.)

EXCEPTION:

1. If the holder of any permit issued by the Department presents satisfactory evidence that unusual construction difficulties have prevented work from being started or continued without being suspended with the 12-month time period or completed within the two-year period of validity, the department or the Board may grant extensions of time reasonably necessary because of such difficulties.

2. If the permit(s) is related to or for a residential occupancy issued by the Department, and if the work authorized under any permit associated to the current scope of work for said residential occupancy has not been commenced, the permit(s) shall expire within 12 months after issuance. If the holder of any permit concerning residential occupancy issued by the Department presents satisfactory evidence that unusual construction difficulties have prevented work from being started or continued without being suspended with the 12-month time period or completed within the two-year period of validity, the Department or the Board may grant extensions of time reasonably necessary because of such difficulties.

Notwithstanding the provisions of this subsection, the validity of a permit may be further restricted in the following conditions:

1. In the case that a building or structure has been ordered repaired or demolished in accordance with Los Angeles Municipal Code Sections 91.8903, 91.8904, or 91.8905, such time limits as are specified therein shall apply.

2. The Department or the Board may, because of unusual circumstances or conditions such as, but not limited to, the demolition of an imminently hazardous building, or a grading operation which may be subject to flooding during the rainy season, impose restrictions upon the time limits for expiration of any permit.

3. The time limit for the validity of relocation permits shall be as specified in LAMC Section 91.8306.

4. The time limit for the validity of tent permits shall be as specified in LAMC Subsection 91.106.1.3.

5. The time limit for the validity of permits for the installation of metal bars, grills, grates, security roll-down shutters, and similar devices, and of quick-release systems shall be as specified in Los Angeles Municipal Code Subsection 91.107.4.5.

6. The time limit of validity of permits for temporary signs on temporary construction walls, or for temporary signs on a fence of solid wood or similar material surrounding a vacant lot, issued pursuant to the provisions of Section 14.4.17, shall be as specified in Subsection 14.4.17 C. of the Los Angeles Municipal Code.

(b) Permits which have expired shall have the site, building or project restored to the condition which existed immediately prior to the commencement of work described by such permit.

(c) It shall be unlawful for any owner, either before or after the issuance of a permit under this section, and notwithstanding the issuance of such permit, to fail to comply with any order, determination or action of the Department or Board.

SEC. 98.0603. EXPIRATION OF PLAN CHECK.

If a permit is not secured within 18 months after plans have been filed for checking such plan check shall expire and no permit shall be issued until the plans are rechecked and approved and a new plan check fee paid. (Amended by Ord. No. 167,969, Eff. 7/11/92.)

EXCEPTION: The Department or the Board may grant extensions of time if a permit applicant submits in writing sufficient evidence that unusual conditions or circumstances precluded the securing of the permit within the allocated time.

SEC. 98.0604. EXPIRATION OF SLIGHT MODIFICATIONS AND ALTERNATIVES.

(Amended by Ord. No. 171,175, Eff. 7/25/96.)

The rights and privileges granted by the Department or the Board under a slight modification shall be voided if the permit is not secured within 18 months of the date the modification was granted or if the permit expires under any of the conditions specified in Section 98.0602 of the Los Angeles Municipal Code.

EXCEPTION: The Department or the Board may grant extensions of time if a permit applicant submits in writing substantial evidence that unusual conditions or circumstances precluded the securing of the permit within the allocated time or caused the permit to expire as specified in Section 98.0603 of the Los Angeles Municipal Code.

SEC. 98.0605. TIME LIMITS OF REQUESTS FOR EXTENSION.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

Requests for extensions of time on the expiration times of permits, plan checks and slight modifications shall not be made later than 90 days after the expiration time specified in this division.

DIVISION 7

ABATEMENT OF VACANT BUILDINGS

(Division Added by Ord. No. 172,782, Eff. 9/30/99.)

Section	
98.0701	Declaration of Purpose.
98.0702	Definitions.
98.0703	Enforcement Authority.
98.0704	Enforcement Remedies.
98.0705	Strict Liability Offenses.
98.0706	Duty to Clean, Fence and Barricade.
98.0707	Administrative Abatement Procedures for Vacant and Unsecured Structures.
98.0708	Standards for Fencing and Barricading a Vacant Structure.
98.0709	Entry or Interference with Notice Prohibited.
98.0710	Continuous Abatement Authority.
98.0711	Abatement Cost.
98.0712	Continuous Public Nuisances.
98.0713	Duty to File a Statement of Intent.
98.0714	Posting Name of Responsible Person.
98.0715	Reinspection Fee.
98.0716	Vacant Structure Penalty.
98.0717	Procedures for Barricaded and Vacant Structure Penalty.
98.0718	Appeal of Barricaded and Vacant Structure Penalty.
98.0719	Administrative Enforcement Hearing.
98.0720	Failure to Pay Penalties.
98.0721	Allocation of Vacant Building Penalty.

SEC. 98.0701. DECLARATION OF PURPOSE.

(Added by Ord. No. 172,782, Eff. 9/30/99.)

The Council of the City of Los Angeles finds and declares that:

- (a) Structures that are vacant and unsecured or barricaded attract vagrants, gang members and other criminals as prime locations to conduct illegal criminal activities.
- (b) Structures that are vacant and not properly secured are extremely vulnerable to being set on fire by unauthorized persons.
- (c) Structures that are vacant and unsecured or barricaded are a blight and cause deterioration and instability in neighborhoods.
- (d) Structures that are vacant and unsecured or barricaded pose serious threats to the public's health and safety and therefore are declared to be public nuisances.
- (e) Immediate abatement and rehabilitation of these structures is necessary and can be accomplished by using the judicial or administrative procedures found in this Code.

SEC. 98.0702. DEFINITIONS.

(Added by Ord. No. 172,782, Eff. 9/30/99.)

The following words and phrases, whenever used in this division, shall be construed as defined in this section. Words and phrases not defined herein shall be construed as defined in Sections 12.03 and 91.201, *et seq.* of this Code.

"Responsible Person" means the owner and/or person in charge or control of the Vacant Structure.

"Superintendent" means the General Manager of the Department of Building and Safety or the General Manager's duly authorized representative.

"Statement of Intent" means a form filled out by the responsible person of a Vacant Structure which contains specific information regarding the structure and the owner's plan for its rehabilitation and maintenance, or demolition.

"Vacant Structure" means any structure or building that:

- (1) is unoccupied or occupied by unauthorized persons; and

- (2) is unsecured or barricaded.

SEC. 98.0703. ENFORCEMENT AUTHORITY.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Superintendent is authorized to administer and enforce the provisions of this division. The Superintendent of Building or anyone designated by the Superintendent may exercise any enforcement powers as provided in Chapter IX of the LAMC.

SEC. 98.0704. ENFORCEMENT REMEDIES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Violations of this division may be prosecuted as misdemeanors subject to the fines and custody provided in LAMC Section 11.00(m). The Superintendent of Building may also seek injunctive relief and civil penalties in the Superior Court pursuant to LAMC Section 98.0716 or pursue any administrative remedy provided in Chapter IX of the LAMC.

SEC. 98.0705. STRICT LIABILITY OFFENSES.

(Added by Ord. No. 172,782, Eff. 9/30/99.)

Violations of this division shall be treated as strict liability offenses regardless of intent.

SEC. 98.0706. DUTY TO CLEAN, FENCE AND BARRICADE.

(Added by Ord. No. 172,782, Eff. 9/30/99.)

(a) It is unlawful for the Responsible Person to fail to remove any waste, rubbish, debris, flammable, combustible, or hazardous materials from the interior of the Vacant Structure.

(b) It is unlawful for the Responsible Person to fail to remove any waste, rubbish, debris, excessive vegetation, inoperable vehicles, trailers, appliances, and any other similar materials from the yards surrounding the Vacant Structure.

(c) It is unlawful for the Responsible Person to fail to lock, barricade or secure all doors, windows, damaged walls, roofs, foundations and other openings of the Vacant Structure.

(d) It is unlawful for the Responsible Person to fail to fence the entire lot containing the Vacant Structure.

(e) It is unlawful for the Responsible Person to fail to post the property containing the Vacant Structure with signs stating "THIS PROPERTY CLOSED TO THE PUBLIC" in accordance with LAMC Section 41.24. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

(f) It is unlawful for the Responsible Person to fail to file a written trespass authorization request with the police department pursuant to LAMC Section 41.24(g) to authorize a peace officer's assistance in removing trespassers from the property containing the Vacant Structure. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 98.0707. ADMINISTRATIVE ABATEMENT PROCEDURES FOR VACANT AND UNSECURED STRUCTURES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) Whenever the Superintendent of Building determines that a vacant and unsecured structure exists within the City, an abatement notice and order may be sent to the Responsible Person directing abatement by cleaning, fencing and securing or barricading. Barricading and fencing shall be done pursuant to the standards established in LAMC Subsection 91.8904.1.

(b) The Superintendent of Building shall follow the administrative abatement procedures set forth in Division 89, Article 1, Chapter IX of the LAMC.

(c) If the Responsible Person does not comply with the abatement notice and order, and no appeal is filed, the Superintendent of Building may:

- (1) clean, remove graffiti, fence, and barricade the unsecured Vacant Structure;
- (2) post the property containing the Vacant Structure pursuant to LAMC Section 98.0714; and
- (3) recover all costs pursuant to the procedures set forth in Division 89, Article 1, Chapter IX of the LAMC.

SEC. 98.0708. STANDARDS FOR FENCING AND BARRICADING A VACANT STRUCTURE.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Responsible Person shall barricade the Vacant Structure according to the following specifications and requirements:

- (a) Remove all waste, rubbish, debris, flammable, combustible, or hazardous materials from the interior of the structure; and
- (b) Remove all waste, rubbish, debris, excessive vegetation, inoperable vehicles, trailers, appliances, and any other similar materials from the yards surrounding the Vacant Structure; and
- (c) Barricade all unsecured doorways, windows, damaged walls, roofs, foundations or exterior openings in accordance with the requirements of Division 89, Article 1, Chapter IX of the LAMC; and
- (d) Fence the entire lot surrounding the Vacant Structure in accordance with the requirements of Division 89, Article 1, Chapter IX of the LAMC; and
- (e) Post the property containing the Vacant Structure with signs stating that the property is closed to the general public in accordance with the requirements of LAMC Section 41.24.

SEC. 98.0709. ENTRY OR INTERFERENCE WITH NOTICE PROHIBITED.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) It is unlawful for any person to enter or occupy any structure or premises that has been posted pursuant to LAMC Subdivision 91.8903.1.5, Subsection 91.8904.1, or Section 98.0708(e), except to repair or demolish the structure under proper permit or for a purpose authorized by the owner.

(b) It is unlawful for any person to remove or deface any notice posted pursuant to LAMC Subdivision 91.8903.1.5, Subsection 91.8904.1, Section 98.0708(e) or Section 98.0714.

SEC. 98.0710. CONTINUOUS ABATEMENT AUTHORITY.

(Amended by Ord. No. 188,197, Eff. 4/11/24.)

(a) If a Vacant Structure, previously abated by the Responsible Person or the Superintendent of Building pursuant to a notice and order, again becomes unsecured and open to unauthorized entry, the Superintendent of Building may proceed to abate the nuisance, including securing the vacant structure and/or premises by means of outside security personnel, and recover costs pursuant to Division 89, Article 1, Chapter IX of the LAMC.

(b) If a yard surrounding a Vacant Structure, previously abated by the Responsible Person or the Superintendent of Building pursuant to a notice and order, again contains graffiti, waste, rubbish, debris, excessive vegetation, inoperable vehicles, trailers, appliances, and any other similar materials, the Superintendent of Building may proceed to abate the nuisance, including securing the vacant structure and/or premises by means of outside security personnel, and recover costs pursuant to Division 89, Article 1, Chapter IX of the LAMC.

(c) Outside security personnel may be provided immediately at any building, structure, premises, or portion thereof falling within the scope of LAMC Section 91.8905.

SEC. 98.0711. ABATEMENT COST.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) Abatement costs shall include the cost to perform the actual work and the City's cost to administer any abatement.

(b) Once the abatement is complete, the Superintendent of Building shall recover all abatement costs pursuant to the procedure found in Division 89, Article 1, Chapter IX of the LAMC.

SEC. 98.0712. CONTINUOUS PUBLIC NUISANCES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

Any Vacant Structure that was originally secured by the Responsible Person's voluntary actions or pursuant to administrative or judicial order may be declared a permanent public nuisance by the Superintendent if the structure subsequently becomes open and unsecured, thereby requiring additional reinspection and resecuring of the structure by either the Responsible Person or the Superintendent. The Superintendent of Building may seek demolition of this continuous public nuisance by seeking a court order or by following any of the administrative abatement procedures set forth in Division 89, Article 1, Chapter IX of the LAMC.

SEC. 98.0713. DUTY TO FILE A STATEMENT OF INTENT.

(Added by Ord. No. 172,782, Eff. 9/30/99.)

(a) The Superintendent shall create and make available a form entitled "Statement of Intent" to be completed by the Responsible Person.

(b) The Responsible Person shall complete the information required on the standard Statement of Intent and submit the Statement to the City within 30 days of the date the Superintendent determines that the structure meets the definition of a Vacant Structure.

(c) The Superintendent shall determine whether a submitted Statement of Intent is complete and may require the Responsible Person to provide more complete information.

(d) When a submitted Statement of Intent does not meet with the Superintendent's approval, the Responsible Person shall immediately correct and resubmit the Statement of Intent.

(e) The Statement of Intent shall include all of the following information as to:

- (1) expected period of vacancy; and
- (2) a plan for regular maintenance during the period of vacancy; and
- (3) a plan and time line for the lawful occupancy, rehabilitation or demolition of the barricaded structure; and
- (4) any additional information required by the Superintendent.

(f) It is unlawful to:

- (1) fail to submit a Statement of Intent within the time period specified by Subsection (b) of this section; or
- (2) submit a Statement of Intent which does not meet with the approval of the Superintendent or otherwise comply with the requirements of this section.

SEC. 98.0714. POSTING NAME OF RESPONSIBLE PERSON.

(Added by Ord. No. 172,782, Eff. 9/30/99.)

The Responsible Person shall permanently affix, in a conspicuous place on the Vacant Structure, a notice stating the name, address, and telephone number of both the owner and the owner's agent in charge or control of the Vacant Structure. If the Responsible Person fails to affix this notice on the Vacant Structure within 30 days of the date the Superintendent determines that the structure meets the definition of a Vacant Structure, then the Department may cause the same to be permanently affixed to the Vacant Structure, using the name, address and telephone number for the owner(s) as shown on a title report obtained from either the Division of Real Estate, Bureau of Engineering, Department of Public Works, City of Los Angeles or by contracting with one or more private title reporting agencies. Said title report shall list all persons shown on the records of the County Recorder as having an ownership interest or liens or encumbrances or other interests in the real property on which the Vacant Structure is located.

SEC. 98.0715. REINSPECTION FEE.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The Superintendent may periodically reinspect Vacant Structures to ensure compliance with the provisions of this division and all applicable court and administrative orders. The Superintendent may impose a reinspection fee against the Responsible Person for actual costs of each reinspection and continuous monitoring of the structure and premises as is reasonably necessary to determine compliance with the standards and procedures in this division. The Superintendent of Building shall follow the procedures set forth in LAMC Subsection 91.8904.3, Section 98.0411 or Section 98.0412.

SEC. 98.0716. VACANT STRUCTURE PENALTY.

(Amended by Ord. No. 181,185, Eff. 7/8/10.)

(a) Any Responsible Person in charge of a structure which meets the definition of a Vacant Structure as provided in this division for 30 consecutive calendar days may be liable for an administrative penalty in the amount of \$1000 per structure per day, not to exceed \$100,000 per property per calendar year unless:

- (1) a Statement of Intent has been filed and approved by the Superintendent; and
- (2) the building has been posted as required by LAMC Section 98.0714; and **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**
- (3) one of the following applies:

(A) The structure is the subject of an active building permit for repair, rehabilitation or demolition and the owner is proceeding diligently in good faith to complete the repair, rehabilitation or demolition; or,

(B) The structure is maintained in compliance with this division and is actively being offered for sale, lease or rent; or,

(C) The Responsible Person can demonstrate that they made a diligent and good faith effort to implement the actions set forth in the approved Statement of Intent within the time line contained within the Statement of Intent.

(b) If the structure continues to meet the definition of Vacant Structure as provided in this division beyond the initial 30 calendar days, and if the Responsible Person does not meet any of the exceptions set forth in this section, the Superintendent of Building may impose a penalty of \$1,000 per structure for each calendar day the structure continues to constitute a Vacant Structure, subject to the limitations set forth in LAMC Section 164.09 pursuant to the notice requirements in this division. At no time may the amount of the administrative penalty exceed \$100,000 per property in a calendar year. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 98.0717. PROCEDURES FOR BARRICADED AND VACANT STRUCTURE PENALTY.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) Whenever the Superintendent of Building determines that a structure meets the definition of a Vacant Structure as provided in this division for more than 30 consecutive calendar days, and the Responsible Person does not meet any of the exceptions set forth in LAMC Section 98.0716(a), a 30-day Notice of Barricaded and Vacant Structure Penalty may be issued to the Responsible Person, and any other person listed in the title report as having an interest in the real property. The Notice of Barricaded and Vacant Structure Penalty shall include a description of the conditions that gave rise to the penalty and notice of the City's intent to assess an administrative penalty pursuant to LAMC Section 98.0716 if action to correct the violation is not commenced within a period of not less than 14 days from the date the Notice is mailed, and completed within a period of not less than 30 days from the date the Notice is Mailed.

(b) A separate 30-day Notice of Barricaded and Vacant Structure Penalty shall be issued for each subsequent penalty that may be imposed pursuant to LAMC Section 98.0716.

(c) The Notice of Barricaded and Vacant Structure Penalty shall be served on each required person by any one of the methods of service listed in LAMC Subdivision 91.8903.3.4.

SEC. 98.0718. APPEAL OF BARRICADED AND VACANT STRUCTURE PENALTY.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

An appeal of a Barricaded and Vacant Structure Penalty shall follow the procedures set forth in LAMC Section 98.0411.

SEC. 98.0719. ADMINISTRATIVE ENFORCEMENT HEARING.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

(a) The appeal hearing shall follow the enforcement hearing procedures set forth in LAMC Section 98.0403.2(b).

(b) The Board shall only consider evidence that is relevant to the following issues:

- (1) whether the structure meets the definition of Vacant Structure as provided in this division for 90 consecutive calendar days;
- (2) whether an approved Statement of Intent has been filed and approved by the Superintendent; and
- (3) whether any of the exceptions set forth in LAMC Section 98.0716(a)(3)(A) through (C) have been met.

(c) The Board may impose administrative costs.

SEC. 98.0720. FAILURE TO PAY PENALTIES.

(Amended by Ord. No. 185,587, Eff. 7/16/18.)

The failure of any person to pay the penalty within the time specified in the Notice of Barricaded and Vacant Structure Penalty may result in the Superintendent of Building using any legal means to recover the civil penalties, including filing a claim with the Small Claims Court or following the procedures set forth in LAMC Section 91.8906.

SEC. 98.0721. ALLOCATION OF VACANT BUILDING PENALTY.

(Added by Ord. No. 172,782, Eff. 9/30/99.)

Administrative civil penalties collected pursuant to this division shall be deposited in the appropriate fund as determined by the Superintendent.

ARTICLE 9

GREEN BUILDING CODE

(Amended by Ord. No. 182,849, Eff. 1/3/14.)

Division

- 1 Administration
- 2 Definitions
- 3 Green Building
- 4 Residential Mandatory Measures
- 5 Nonresidential Mandatory Measures
- 6 Referenced Organizations and Standards
- 7 Installer and Special Inspector Qualifications
- 8 Compliance Forms, Worksheets, and Reference Material
- 11 Appendix A4 Residential Voluntary Measures
- 12 Appendix A5 Nonresidential Voluntary Measures

DIVISION 1

ADMINISTRATION

Section

- 99.01.101 Administration.
- 99.01.102 Construction Documents and Installation Verification.
- 99.01.107 Fees.
- 99.01.108 Powers of the Department.

SEC. 99.01.101. ADMINISTRATION.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

99.01.101.1. Title. These regulations shall be known as the Los Angeles Green Building Code and may be cited as such and will be referred to herein as "**this Code**". The Los Angeles Green Building Code is Article 9 of Chapter IX of the Los Angeles Municipal Code, and adopts by reference the 2022 California Green Building Standards Code (CALGreen) (Part 11, Title 24, of the California Code of Regulations (CCR)) except as amended herein. Whenever the word "**City**" is used, it shall mean the City of Los Angeles. Whenever the word "**Department**" is used, it shall mean the Department of Building and Safety of the City of Los Angeles. (Amended by Ord. No. 187,719, Eff. 1/23/23.)

99.01.101.3. Scope. The provisions of this code shall apply to the construction of every new building, every building alteration with a building permit valuation of \$200,000 or more, and every building addition, unless otherwise indicated in this code, throughout the City of Los Angeles. (Amended by Ord. No. 183,149, Eff. 8/20/14.)

EXCEPTION: Roof replacements of any value are subject to LAMC Subsection 99.04.106.5. (Amended by Ord. No. 185,587, Eff. 7/16/18.)

99.01.101.3.1. The provisions of this Code shall also apply to residential alterations that increase the building's conditioned volume. Conditioned space is defined as an enclosed space provided with mechanical heating that has a capacity exceeding 10 Btu/hr-ft², or is provided with mechanical cooling that has a capacity exceeding 5 Btu/hr-ft². (Added by Ord. No. 182,849, Eff. 1/3/14.)

99.01.101.5. Referenced Codes and Standards. The codes and standards referenced elsewhere in this Code, as amended by the City of Los Angeles, shall be considered part of the requirements of this Code to the prescribed extent of each such reference.

99.01.101.6.3. Conflicts. When the requirements of this code conflict with the requirements of any other part of the Los Angeles Municipal Code, the most restrictive requirement shall prevail.

99.01.101.8. Alternate Materials, Designs and Methods Of Construction. The provisions of this code are not intended to prevent the use of any alternate material, appliance, installation, device, arrangement, method, design or method of construction not specifically prescribed by this code, provided that any such alternative has been approved. An alternate shall be approved on a case-by-case basis where the Department finds that the proposed alternate is satisfactory and complies with the intent of the provisions of this code and is at least the equivalent of that prescribed in this code in planning and design, energy, water, material resource conservation and efficiency, environmental air quality, performance, safety and the protection of life and health.

99.01.101.10. Mandatory Requirements. This code contains both mandatory and voluntary green building measures. Mandatory and voluntary measures are identified in the appropriate divisions in this code.

SEC. 99.01.102. CONSTRUCTION DOCUMENTS AND INSTALLATION VERIFICATION.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

99.01.102.2. Information on Construction Documents. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Construction documents shall be of sufficient clarity to indicate the location, nature and scope of the proposed green building feature and show that it will conform to the provisions of this Code, the LAMC and other relevant laws, ordinances, rules and regulations as determined by the Department. The construction document and other data submitted to the Department for checking shall be drawn with ink or indelible pencil, or shall be made by a reproducible process approved by the Department.

99.01.102.4. Official Stamp. When construction documents and other data fully comply with the provisions of this code, the Department shall place an official stamp of approval on all applicable sheets of each set.

99.01.102.5. Validity of Approval. The stamping or approval of any construction document or other data shall not be held to permit, or to be an approval of, the violation of

any provision of this code.

99.01.102.6. Alterations to Stamped Construction Documents. No stamped or approved set of construction documents or data shall be altered in any manner, except when and as approved by the Department.

99.01.102.7. Stamped Plans on Job. The stamped set of construction documents and other data shall be kept at the site of the construction work and shall be available to the authorized representative of the Department. There shall be no deviation from the stamped or approved application, construction document, or other data without the Department's approval.

99.01.102.8. Validity of Permit. The issuance of a permit is not an approval or an authorization of the work specified therein. A permit is merely an application for inspection, the issuance of which entitles the permittee to inspection of the work which is described therein.

Permits issued under the requirements of this code shall not relieve the owner of responsibility for securing required permits for work to be done which is regulated by any other code, department or division of the City of Los Angeles.

All permits are issued subject to the following conditions:

If the work described by a valid permit is prohibited by a change in the Los Angeles Municipal Code, then such work may be completed only if the Department determined that both substantial liabilities have been incurred, and substantial work has been performed on site, in accordance with the terms of that permit. Work performed and liabilities incurred pursuant to a demolition or relocation permit shall not be considered in determining whether an owner may complete a building or structure for which a building permit has been issued.

99.01.102.9. Validity of Other Laws. Neither the issuance of a permit nor the approval by the Department of any document shall constitute an approval of any violation of any provision of this code or of any other law or ordinance, and a permit or other document purporting to give authority to violate any law shall not be valid with respect thereto.

99.01.102.10. Making False Statements to the Department. Any person who willfully or knowingly, with the intent to deceive, makes a false statement or representation, or knowingly fails to disclose a material fact in any documentation required by the Department, including any oral or written evidence presented, shall be guilty of a misdemeanor.

SEC. 99.01.107. FEES.

99.01.107.1. Plan Check and Permit Fee. (Amended by Ord. No. 185,587, Eff. 7/16/18.) A fee equal to 10% of the plan check and permit fee shall be assessed to verify compliance with the mandatory measures of this Code for projects subject to this Code. This fee shall be assessed on all building, plumbing, mechanical, electrical, and grading applications.

EXCEPTIONS: A fee shall not be assessed on grading plan check applications.

99.01.107.1.1. Tier 1 and Tier 2 Fee. (Amended by Ord. No. 185,587, Eff. 7/16/18.) When Tier 1 or Tier 2 measures (Tier 1 or Tier 2) per CALGreen Subsections A4.601.4, A4.601.5 or Section A5.601 are requested to be verified, an additional fee equal to 5% of the plan check and permit fee shall be assessed.

SEC. 99.01.108. POWERS OF THE DEPARTMENT.

99.01.108.1. General. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The powers of the Department are enumerated in LAMC Section 98.0403.1.

The Superintendent of Building shall have the duty to render interpretations of this Code and to adopt and enforce rules and supplemental regulations to clarify the application of its provisions. These interpretations, rules and regulations shall be in conformance with the intent and purpose of this Code.

99.01.108.2. Authority to Require Exposure of Work. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Whenever any work required by this Code is covered and concealed by additional work without first having been inspected, the work shall be exposed for examination upon written notice by the Department. The work of exposing and recovering shall not entail expense to the City.

99.01.108.3. Right of Entry. The authority for right of entry is enumerated in Section 98.0105 of the Los Angeles Municipal Code.

99.01.108.4. Authority to Stop Work. Whenever any construction work is being done contrary to the provision of any law or ordinance enforced by the Department, the Department shall have the authority to issue a written notice to the responsible party to stop work on that portion of the work on which the violation has occurred. The notice shall state that the nature of the violation and no work shall be done on that portion until violation has been rectified and approval obtained by the Department.

99.01.108.5. Modifications. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The Department shall have the power to hear and act upon requests for slight modification in individual cases to the green building ordinances of the City, and regulations under Article 9, Chapter IX of the LAMC.

In granting a request for a slight modification, the Department shall determine that the slight modification is reasonably equivalent to the code requirement involved, that a special individual reason makes the strict letter of the code impractical and the slight modification is in conformity with the spirit and purpose of the code or codes involved.

DIVISION 2

DEFINITIONS

Section

- 99.02.200 Basic Provisions.
- 99.02.201 General.
- 99.02.202 Definitions.

SEC. 99.02.200. BASIC PROVISIONS. (Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 2 of the California Green Building Standards Code is adopted by reference except as provided in this article.

SEC. 99.02.201. GENERAL.

(Amended by Ord. No. 182,849, Eff. 1/3/14.)

99.02.201.3. Terms Defined in Other Documents. Where terms are not defined in this Code and are defined in the Los Angeles Building Code or other referenced document, such terms shall have the meanings ascribed to them as in those publications.

99.02.201.4. Terms Not Defined. Where terms are not defined as prescribed in this section, such terms shall have ordinarily accepted meanings such as context applies. The definitions in Webster's Third New International Dictionary of the English Language, Unabridged shall be considered as providing ordinarily accepted meanings. (Amended by Ord. No. 184,248, Eff. 6/6/16.)

SEC. 99.02.202. DEFINITIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section 202 of CALGreen is adopted by reference with the following amendments:

The following definitions are added:

ACCESSIBLE. Having access thereto, but which first may require the removal of an access panel door or similar obstruction.

ALL-ELECTRIC BUILDING. A building that contains no combustion equipment, plumbing for combustion equipment, gas piping, or fuel gas serving any use including, but not limited to, space heating (including fireplaces), water heating (including pools and spas), cooking appliances (including barbeques), and clothes drying, within the building or building property lines, and instead uses electricity as the sole source of energy for all lighting, appliances and/or equipment, including, but not limited to, space heating, water heating, cooking appliances, and drying appliances.

COMBUSTION EQUIPMENT. Any equipment or appliance used for space heating, water heating, cooking, clothes drying, lighting, or other type of equipment and/or appliance that uses fuel gas.

COMMERCIAL FOOD HEAT-PROCESSING EQUIPMENT. Any equipment used in a food establishment for heat-processing food or utensils and that produces grease vapors, steam, fumes, smoke, or odors that are required to be removed through a local exhaust ventilation system, as defined in the California Mechanical Code.

ELECTRIC HEATING APPLIANCE. A device that produces heat energy to create a warm environment by the application of electric power to resistance elements, refrigerant compressors, or dissimilar material junctions, as defined in the California Mechanical Code.

ENFORCING AGENCY. The Department of Building and Safety of the City of Los Angeles.

FUEL GAS. Includes, but is not limited to, butane, coal, crude oil, ethane, fossil fuels, hydrogen, kerosene, liquefied petroleum, manufactured petroleum, methane, natural gas, natural petroleum, oil, petrol, propane, and/or any mixture of these.

DIVISION 3

GREEN BUILDING

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section

99.03.300 Basic Provisions.

99.03.301 General.

99.03.303 Phased Projects.

SEC. 99.03.300. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 3 of the California Green Building Standards Code is adopted by reference except as amended herein.

SEC. 99.03.301. GENERAL.

(Amended by Ord. No. 182,849, Eff. 1/3/14.)

99.03.301.1. Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Buildings shall be designed to include the green building measures specified as mandatory in this Code. Voluntary green building measures are also included in this Code and may be included in the design and construction of structures covered by this Code, but are not required unless they are part of Tier 1 or Tier 2. The checklists in LAMC Table A4.602 and LAMC Table A5.602 are for reference only.

99.03.301.1.1. Additions and Alterations (HCD). (Amended by Ord. No. 185,587, Eff. 7/16/18.) The mandatory provisions of Division 4, Article 9, Chapter IX of the LAMC shall be applied to additions or alterations of existing residential buildings as specified in LAMC Subsection 99.01.101.3.

EXCEPTION: On and after January 1, 2014, residential buildings undergoing permitted alterations, additions or improvements shall replace noncompliant plumbing fixtures with water-conserving plumbing fixtures. Plumbing fixture replacement is required prior to issuance of a certificate of final completion, certificate of occupancy or final permit approval by the local building Department. See Civil Code Section 1101.1, et seq. for the definition of a noncompliant plumbing fixture, types of residential buildings affected and other important enactment dates.

99.03.301.3. Nonresidential Additions and Alterations (BSC). (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of individual sections of Division 5, Article 9, Chapter IX of the LAMC apply to newly constructed buildings, building additions, and/or building alterations as specified in LAMC Subsection 99.01.101.3. Code sections relevant to additions and alterations shall only apply to the portions of the building being added or altered within the scope of the permitted work. A code section will be designated by a banner to indicate where the code section only applies to newly constructed buildings [N] or to additions and alterations [AA]. When the code section applies to both, no banner will be used.

SEC. 99.03.303. PHASED PROJECTS.
(Amended by Ord. No. 182,849, Eff. 1/3/14.)

99.03.303.1.1. Tenant Improvements. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of this Code shall apply to the initial tenant or occupant improvements to a project and to any future alteration that falls under the scope of LAMC Subsection 99.01.101.3.

DIVISION 4

RESIDENTIAL MANDATORY MEASURES

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section

99.04.100 Basic Provisions.
99.04.106

Energy Efficiency

99.04.201 General.
99.04.211 Renewable Energy.
99.04.303 Indoor Water Use.
99.04.304 Outdoor Water Use.
99.04.305 Water Reuse Systems.
99.04.407 Water Resistance and Moisture Management.
99.04.408 Construction Waste Reduction, Disposal and Recycling.
99.04.504 Pollutant Control.

SEC. 99.04.100. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 4 of the California Green Building Standards Code is adopted by reference except as amended herein.

SEC. 99.04.106.
(Amended by Ord. No. 186,488, Eff. 12/27/19.)

99.04.106.2. Storm Water Drainage and Retention During Construction. Projects which disturb soil shall manage storm water drainage during construction. In order to manage storm water drainage during construction one or more of the following measures shall be implemented to prevent flooding of adjacent property, prevent erosion and retain soil runoff on the site:

1. Retention basins of sufficient size shall be utilized to retain storm water on the site;
2. Where storm water is conveyed to a public drainage system, collection point, gutter, or similar disposal method, water shall be filtered by use of a barrier system, wattle or other method approved by the Department; or
3. Compliance with City of Los Angeles' storm water management ordinance(s).

99.04.106.4.2. New Multi-family Dwellings, Hotels and Motels and New Residential Parking Facilities. (Amended by Ord. No. 187,719, Eff. 1/23/23.) When parking is provided, parking spaces for new multi-family dwellings, hotels and motels shall meet the requirements of Sections 99.04.106.4.2.1 and 99.04.106.4.2.2. Calculations for spaces shall be rounded up to the nearest whole number. A parking space served by electric vehicle supply equipment or designed as a future EV charging space shall count as at least one standard automobile parking space only for the purpose of complying with any applicable minimum parking space requirements established by a local jurisdiction. See Vehicle Code Section 22511.2 for further details.

99.04.106.4.2.1. Multi-family Development Projects with less than 20 Dwelling Units; and Hotels and Motels with less than 20 Sleeping Units or Guest Rooms. (Added by Ord. No. 187,719, Eff. 1/23/23.) The number of dwelling units, sleeping units or guest rooms shall be based on all buildings on a project site subject to this section.

1. **EV Capable.** Thirty percent of the total number of parking spaces on a building site, provided for all types of parking facilities, shall be electric vehicle load calculations shall demonstrate that the electrical panel service capacity and electrical system, including any on-site distribution transformer(s), have sufficient capacity to simultaneously charge all EVs at all required EV spaces. An automatic load management system (ALMS) may be used to simultaneously charge all EVs at all required EV spaces at a minimum of 40 amperes.

The service panel or subpanel circuit directory shall identify the overcurrent protective device space(s) reserved for future EV charging purposes as "EV CAPABLE" in accordance with the California Electrical Code.

EXCEPTIONS:

1. When EV chargers (Level 2 EVSE) are installed in a number equal to or greater than the required number of EV capable spaces.
2. When EV chargers (Level 2 EVSE) are installed in a number less than the required number of EV capable spaces, the number of EV capable spaces required may be reduced by a number equal to the number of EV chargers installed.

NOTES:

- a. Construction documents are intended to demonstrate the project's capability and capacity for facilitating future EV charging and shall show locations of proposed EV spaces.
 - b. There is no requirement for EV spaces to be constructed or available until receptacles for EV charging or EV chargers are installed for use.
2. **EV Ready.** Twenty-five percent of the total number of parking spaces, but in no case less than one per multi-family dwelling unit, shall be equipped with low power Level 2 EV charging receptacles. For multi-family dwelling parking facilities, no more than one receptacle is required per dwelling unit when more than one

parking space is provided for use by a single dwelling unit. The number of EV Ready parking spaces may be counted toward the total number of EV Capable parking spaces required for the building per Los Angeles Municipal Code Subsection 99.04.106.4.2.1, Item 1.

EXCEPTION: Areas of parking facilities served by parking lifts.

99.04.106.4.2.2. Multi-family Development Projects with 20 or More Dwelling Units, Hotels and Motels with 20 or More Sleeping Units or Guest Rooms. (Added by Ord. No. 187,719, Eff. 1/23/23.) The number of dwelling units, sleeping units or guest rooms shall be based on all buildings on a project site subject to this section.

1. **EV Capable.** Thirty percent of the total number of parking spaces on a building site, provided for all types of parking facilities, shall be electric vehicle charging spaces (EV spaces) capable of supporting future Level 2 EVSE. Electrical load calculations shall demonstrate that the electrical panel service capacity and electrical system, including any on-site distribution transformer(s), have sufficient capacity to simultaneously charge all EVs at all required EV spaces. An automatic load management system (ALMS) may be used to simultaneously charge all EVs at all required EV spaces at a minimum of 40 amperes.

The service panel or subpanel circuit directory shall identify the overcurrent protective device space(s) reserved for future EV charging purposes as "EV CAPABLE" in accordance with the California Electrical Code.

EXCEPTION: When EV chargers (Level 2 EVSE) are installed in a number greater than five (5) percent of parking spaces required by Los Angeles Municipal Code Subsection 99.04.106.4.2.2, Item 3, the number of EV capable spaces required may be reduced by a number equal to the number of EV chargers installed over the five (5) percent required.

NOTES:

a. Construction documents are intended to demonstrate the project's capability and capacity for facilitating future EV charging and shall show locations of proposed EV spaces.

b. There is no requirement for EV spaces to be constructed or available until receptacles for EV charging or EV chargers are installed for use.

2. **EV Ready.** Twenty-five percent of the total number of parking spaces shall be equipped with low power Level 2 EV charging receptacles. For multi-family dwelling parking facilities, no more than one receptacle is required per dwelling unit when more than one parking space is provided for use by a single dwelling unit. The number of EV Ready parking spaces may be counted toward the total number of EV Capable parking spaces required for the building per Los Angeles Municipal Code Subsection 99.04.106.4.2.2, Item 1.

EXCEPTION: Areas of parking facilities served by parking lifts.

3. **EV Chargers.** Ten percent of the total number of parking spaces shall be equipped with Level 2 EVSE. Where common use parking is provided, at least one EV charger shall be located in the common use parking area and shall be available for use by all residents or guests.

When low power Level 2 EV charging receptacles or Level 2 EVSE are installed beyond the minimum required, an automatic load management system (ALMS) may be used to reduce the maximum required electrical capacity to each space served by the ALMS. The electrical system and any on-site distribution transformers shall have sufficient capacity to deliver at least 3.3 kW simultaneously to each EV charging station (EVCS) served by the ALMS. The branch circuit shall have a minimum capacity of 40 amperes and installed EVSE shall have a capacity of not less than 30 amperes. ALMS shall not be used to reduce the minimum required electrical capacity to the required EV capable spaces.

99.04.106.4.2.2.1. Electric Vehicle Charging Stations (EVCS). (Added by Ord. No. 187,719, Eff. 1/23/23.) Electric vehicle charging stations required by Los Angeles Municipal Code Subsection 99.04.106.4.2.1, Item 3, or LAMC Subsection 99.04.106.4.2.2, Item 3, shall comply with Los Angeles Municipal Code Subsection 99.04.106.4.2.3.

EXCEPTION: Electric vehicle charging stations serving public accommodations, public housing, motels, and hotels shall not be required to comply with this section. See California Building Code, Chapter 11B, for applicable requirements.

99.04.106.4.2.2.1.1. Location. (Amended by Ord. No. 188,739, Eff. 9/23/25.) EVCS shall comply with at least one of the following options:

1. The charging space shall be located adjacent to an accessible parking space meeting the requirements of the California Building Code, Chapter 11A, to allow use of the EV charger from the accessible parking space.

2. The charging space shall be located on an accessible route, as defined in the California Building Code, Chapter 2, to the building.

EXCEPTION: Electric vehicle charging stations designed and constructed in compliance with the California Building Code, Chapter 11B, are not required to comply with LAMC Subsections 99.04.106.4.2.2.1.1, and 99.04.106.4.2.2.1.2, Item 3.

99.04.106.4.2.2.1.2. Electric Vehicle Charging Stations (EVCS) Dimensions. (Added by Ord. No. 187,719, Eff. 1/23/23.) The charging spaces shall be designed to comply with the following:

1. The minimum length of each EV space shall be 18 feet (5486 mm).

2. The minimum width of each EV space shall be 9 feet (2743 mm).

3. One in every 25 charging spaces, but not less than one, shall also have an 8-foot (2438 mm) wide minimum aisle. A 5-foot (1524 mm) wide minimum aisle shall be permitted provided the minimum width of the EV space is 12 feet (3658 mm).

a. Surface slope for this EV space and the aisle shall not exceed 1 unit vertical in 48 units horizontal (2.083 percent slope) in any direction.

99.04.106.4.2.2.1.3. Accessible EV Spaces. (Added by Ord. No. 187,719, Eff. 1/23/23.) In addition to the requirements in Sections 4.106.4.2.3.1 and 4.106.4.2.3.2, all EVSE, when installed, shall comply with the accessibility provisions for EV chargers in the California Building Code, Chapter 11B. EV ready spaces and EVCS in multi-family developments shall comply with California Building Code, Chapter 11A, Section 1109A.

99.04.106.4.2.3. EV Space Requirements. (Added by Ord. No. 187,719, Eff. 1/23/23.)

1. **Single EV Space Required.** Install a listed raceway capable of accommodating a 208/240-volt dedicated branch circuit. The raceway shall not be less than trade size 1 (nominal 1-inch inside diameter). The raceway shall originate at the main service or subpanel and shall terminate into a listed cabinet, box or enclosure in close proximity to the location or the proposed location of the EV space. Construction documents shall identify the raceway termination point, receptacle or charger location, as applicable. The service panel and/or subpanel shall have a 40-ampere minimum dedicated branch circuit for EV chargers or a 20-ampere minimum dedicated branch circuit for EV Ready parking spaces, including branch circuit overcurrent protective device installed, or space(s) reserved to permit installation of a branch circuit overcurrent protective device.

EXCEPTION: A raceway is not required if a minimum 40-ampere 208/240-volt dedicated EV branch circuit is installed in close proximity to the location or the proposed location of the EV space, at the time of original construction in accordance with the California Electrical Code.

2. **Multiple EV Spaces Required.** Construction documents shall indicate the raceway termination point and the location of installed or future EV spaces, receptacles, or EV chargers. Construction documents shall also provide information on amperage of installed or future receptacles or EVSE, raceway method(s), wiring schematics and electrical load calculations. Plan design shall be based upon a 40-ampere minimum branch circuit. Required raceways and related components that are planned to be installed underground, enclosed, inaccessible, or in concealed areas and spaces shall be installed at the time of original construction.

EXCEPTION: A raceway is not required if a minimum 40-ampere 208/240-volt dedicated EV branch circuit is installed in close proximity to the location or the proposed location of the EV space at the time of original construction in accordance with the California Electrical Code.

99.04.106.4.2.4. Identification. (Added by Ord. No. 187,719, Eff. 1/23/23.) The service panel or subpanel circuit directory shall identify the overcurrent protective device space(s) reserved for future EV charging purposes as "EV CAPABLE" in accordance with the California Electrical Code.

99.04.106.4.2.5. Electric Vehicle Ready Space Signage. (Added by Ord. No. 187,719, Eff. 1/23/23.) Electric vehicle ready spaces shall be identified by signage or pavement markings, in compliance with Caltrans Traffic Operations Policy Directive 13-01 (Zero Emission Vehicle Signs and Pavement Markings) or its successor(s).

99.04.106.5. Cool Roof for Reduction of Heat Island Effect. (Amended by Ord. No. 187,208, Eff. 11/5/21.) Roofing material shall comply with both LAMC Subsections 99.04.106.5.1 and 99.04.106.5.2, or comply with LAMC Subsection 99.04.106.5.3.

EXCEPTIONS:

1. Roof repair as defined in Section 100.1(b) of the California Energy Code; or
2. Roof replacement when the roof area being replaced is equal to or less than 50% of the total roof area; or
3. Roof replacement where solar systems are being installed; or
4. Additions resulting in less than 500 square feet of added roof area or less than 50% of the total roof area, whichever is greater; or
5. Roof construction that has a thermal mass over the roof membrane, including areas of vegetated (green) roofs, weighing at least 25 pounds per square foot.

99.04.106.5.1. Solar Reflectance. Roofing material shall have a minimum three-year aged solar reflectance equal to or greater than the values specified in LAMC Tables 99.04.106.5.1 and 99.04.106.5.2. Solar reflectance shall be determined by testing by an approved agency in accordance with ASTM C1549, ASTM E1918 or CRRC-1. Solar reflectance values shall be based on the aged reflectance value of the roofing product or the equation in California Green Building Standards Code (CALGreen) Section A4.106.5.1 if aged solar reflectance values are not available. **(Amended by Ord. No. 187,208, Eff. 11/5/21.)**

99.04.106.5.2. Thermal Emittance. Roofing materials shall have an emittance value equal to or greater than those specified in LAMC Tables 99.04.106.5.1 and 99.04.106.5.2. Thermal emittance shall be determined by testing by an approved agency in accordance with ASTM C1371, ASTM E408 or CRRC-1. **(Amended by Ord. No. 187,208, Eff. 11/5/21.)**

99.04.106.5.3. Solar Reflectance Index. Roofing materials shall have a three-year aged Solar Reflectance Index equal to or greater than those specified in LAMC Tables 99.04.106.5.1 and 99.04.106.5.2. Aged Solar Reflectance Index (SRI) may be calculated using the SRI Calculation Worksheet (SRI-WS) developed by the California Energy Commission or in compliance with ASTM E1980-01 as specified in the 2019 California Energy Code. Solar reflectance values used in the SRI-WS shall be based on the aged reflectance value of the roofing product. Certified thermal emittance used in the SRI-WS may be either the initial value or the aged value listed by the Cool Roof Rating Council. **(Amended by Ord. No. 187,208, Eff. 11/5/21.)**

TABLE TABLE 99.04.106.5.1 [LOW-RISE]

(Added by Ord. No. 187,208, Eff. 11/5/21.)

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3 YEAR AGED SOLAR REFLECTANCE INDEX (SRI)
≤ 2:12	0.65	0.85	78
> 2:12	0.25	0.85	20

TABLE 99.04.106.5.2 [HIGH-RISE]

(Added by Ord. No. 187,208, Eff. 11/5/21.)

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3 YEAR AGED SOLAR REFLECTANCE INDEX (SRI)
≤ 2:12	0.65	0.75	78
> 2:12	0.25	0.75	20

99.04.106.7. Reduction of Heat Island Effect for Nonroof Areas [N]. Reduce nonroof heat islands for 50% of pathways patios, driveways or other paved areas by using one or more of the methods listed.

1. Use trees or other plantings to provide shade and that mature within 15 years of planting. Trees shall be suitable in mature size and environmental requirements for the site. Tree selection and placement shall consider location and size of areas to be shaded, location of utilities, views from the structure, distance to sidewalks and foundations, overhangs onto adjacent properties and streets; other infrastructure and adjacent to landscaping. In addition, shading shall not cast a shadow, as specified, on any neighboring solar collectors pursuant to California Public Resources Code Section 25981, et seq. (Solar Shade Control Act);
2. Use high albedo materials with an initial solar reflectance value of at least .30 as determined in accordance with American Society for Testing and Materials (ASTM) Standards E1918 or C1549;
3. Use open grid pavement system or pervious or permeable pavement system;
4. Use solar panel arrays to create a canopy shade system; or
5. Other methods of reducing heat island effects acceptable to the Department.

99.04.106.8. All-Electric Buildings. (Added by Ord. No. 187,714, Eff. 1/23/23.) All newly constructed buildings shall be all-electric buildings.

EXCEPTIONS:

1. Application for a building permit is submitted, accepted by the Department of Building and Safety, and building permit application fees are paid prior to April 1, 2023.
2. Application for a building permit for an Affordable Housing Project, as defined in the Mayor's Executive Directive 1.3, is submitted, accepted by the Department of Building and Safety, and building permit application fees are paid prior to June 1, 2023.
3. Attached accessory dwelling units using existing gas piping systems in conjunction with the primary dwelling.
4. Cooking equipment contained within kitchens located in a public use area, as defined in the California Building Code Chapter 2, such as restaurants, commissaries, cafeterias, and community kitchens provided the electrical infrastructure is installed in accordance with Section 99.04.106.8.1.
5. Gas-powered emergency life-safety systems, including emergency backup.

99.04.106.8.1. Requirements for Combustion Equipment. (Added by Ord. No. 187,714, Eff. 1/23/23.) Where required by Section 99.04.106.8, the electrical infrastructure shall be installed to accommodate the future installation of an electrical heating or cooking appliance/equipment in the following ways:

1. Branch circuit wiring, electrically isolated and designed to serve all electrical heating and cooking appliances in accordance with manufacturer requirements and the California Electrical Code, including the appropriate voltage, phase, minimum amperage, and an electrical receptacle or junction box within 5 feet of the appliance that is accessible with no obstructions. Appropriately sized conduit may be installed in lieu of conductors; and
2. Labeling of both ends of the unused conductors or conduit shall be with "For Future Electrical Appliance/Equipment"; and
3. Reserved circuit breakers in the electrical panel for each branch circuit, appropriately labeled (e.g., "Reserved for Future Electric Range/Equipment"), and positioned on the opposite end of the panel supply conductor connection; and
4. Connected subpanels, panelboards, switchboards, busbars, and transformers shall be sized to serve the future electrical heating appliances and equipment. The electrical capacity requirements shall be adjusted for demand factors in accordance with the California Electric Code.

ENERGY EFFICIENCY

SEC. 99.04.201. GENERAL.

99.04.201.1. Scope. (Amended by Ord. No. 185,587, Eff. 7/16/18.) The provisions of this division shall establish means of conserving energy.

SEC. 99.04.211. RENEWABLE ENERGY.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

99.04.211.4. Solar Ready Buildings. Buildings shall comply with the following:

1. All one- and two-family dwellings shall comply with Sections 110.10(b)1A, 110.10(b)2, 110.10(b)3, 110.10(b)4, 110.10(c), 110.10(d) and 110.10(e) of the California Energy Code (CCR, Title 24, Part 6).
2. All buildings, other than one- and two-family dwellings, shall comply with Sections 110.10(b) through 110.10(d) of the California Energy Code (CCR, Title 24, Part 6).

EXCEPTIONS:

1. Additions having less than 2,000 sq. ft. of new roof area.
2. Alterations.

SEC. 99.04.303. INDOOR WATER USE.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

99.04.303.4. Water Use Reduction. (Added by Ord. No. 184,246, Eff. 6/6/16.) A 20 percent reduction in the overall use of potable water within the building shall be provided. The reduction shall be based on the maximum allowable water use per plumbing fixture and fittings as required by the Los Angeles Building Standards. The 20 percent reduction in potable water use shall be demonstrated by the following method:

99.04.303.4.1. Performance Method. A calculation demonstrating a 20% reduction in the building "water use baseline", as established in LAMC Table 99.04.303.4.1, shall be provided.

EXCEPTIONS:

1. Projects with plumbing fixtures and fittings that comply with the maximum flow rate values in LAMC Table 99.04.303.4.2.
2. Additions and alterations to buildings where the new fixtures and fittings comply with the maximum flow rate values in LAMC Table 99.04.303.4.2.
3. Buildings utilizing recycled water in accordance with LAMC Subsection 99.04.305.2.
4. Replacement of plumbing fixtures and fittings.

TABLE 99.04.303.4.1

WATER USE BASELINE ³

FIXTURE TYPE	BASELINE FLOW RATE	DURATION	DAILY USES	OCCUPANTS ²
Showerheads	1.8 gpm @ 80 psi	8 min.	1	X ^{2a}

Lavatory Faucets, Residential	1.2 gpm @ 60 psi	.25 min.	3	X
Lavatory Faucets, Common/Public Uses	0.5 gpm @ 60 psi	.25 min.	3	X
Kitchen Faucets	1.8 gpm @ 60 psi	4 min.	1	X ^{2b}
Metering Faucets	0.20 gallons/cycle		3	X
Water Closets	1.28 gallons/flush	1 flush	1 male ¹ 3 female	X
Urinals	0.125 gallons/flush	1 flush	2 male	X

Fixture "Water Use" = Flow rate X Duration X Occupants X Daily uses

- The daily use number shall be increased to three if urinals are not installed in the room.
- Refer to Table A, Chapter 4 of the California Plumbing Code, for occupant load factors.
 - Shower use by occupants depends on the type of use of a building or portion of a building. For example, the total occupant load for a health club, but only a fraction of the occupants in an office building as determined by the anticipated number of users.
 - Kitchen faucet use is determined by the occupant load of the area served by the fixture.
- Use Worksheet WS-1 of the 2016 CALGreen Code to calculate baseline water.

TABLE 99.04.303.4.2

WATER REDUCTION FIXTURE FLOW RATES

FIXTURE TYPE	MAXIMUM ALLOWABLE FLOW RATE
Kitchen Faucets*	1.5 gpm @ 60 psi
Clothes Washers	ENERGY-STAR certified
Dishwashers	ENERGY-STAR certified

**Kitchen faucets may temporarily increase the flow to 2.2 gpm at 60 psi, and must default to 1.5 gpm at 60 psi. This requirement does not apply to a faucet in commercial kitchens or in buildings that have water closets with a maximum flush rate of 1.06 gpf installed throughout.*

SEC. 99.04.304. OUTDOOR WATER USE.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

99.04.304.3. Metering Outdoor Water Use. A landscape water meter provided by the City of Los Angeles Department of Water and Power shall be installed for landscape irrigation for the following:

- New construction projects, as defined by the California Department of Water Resources Model Water Efficient Landscape Ordinance, with aggregate landscape area over 500 square feet.
- When required by the California Department of Water Resources Model Water Efficient Landscape Ordinance.
- Additions and alterations, with a valuation of \$200,000 or more, where the entire potable water system is replaced, including all underground piping to the existing meter.

99.04.304.4. Exterior Faucets. Locks shall be installed on all publicly accessible exterior faucets and hose bibs.

EXCEPTION: Single family dwellings.

99.04.304.5. Swimming Pool Covers. For one- and two-family dwellings, any permanently installed outdoor in-ground swimming pool or spa shall be equipped with a cover having a manual or power-operated reel system. For irregular-shaped pools where it is infeasible to cover 100 percent of the pool due to its irregular shape, a minimum of 80 percent of the pool shall be covered.

EXCEPTION: Additions or alterations to existing swimming pools and spas with a building valuation not exceeding \$25,000.

Note: Safety pool covers installed pursuant to the exception to LAMC Subsection 91.3109.4 shall meet the requirements of ASTM F 1346. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

SEC. 99.04.305. WATER REUSE SYSTEMS.

(Added by Ord. No. 184,246, Eff. 6/6/16.)

99.04.305.1. Recycled Water Supply to Fixtures. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)** When City-recycled water is available for use within 200 feet of the property line, 100 percent of water for water closets, urinals, floor drains, and process cooling and heating in that building shall come from City-recycled water. Recycled water systems shall be designed and installed in accordance with the Los Angeles Plumbing Code.

EXCEPTIONS:

- Additions that use any part of the existing plumbing system.
- Alterations that do not include replacing all of the potable water piping.
- Where City-recycled water quality has been deemed non-suitable for a particular fixture or equipment, connection to the City is not required. The fixture and/or equipment shall be dual-plumbed to allow for future connection.

99.04.305.2. Graywater Ready. **(Amended by Ord. No. 186,488, Eff. 12/27/19.)** Waste piping shall be arranged to permit the discharge from the clothes washer, bathtub, showers and bathroom/restroom washbasins to be used for a future graywater irrigation system(s). The flow from the fixtures shall be piped separately, and, at a minimum, be adequate to supply the irrigation demand as determined by the California Department of Water Resources' Model Water Efficiency Landscape Ordinance (MWELO). The point(s) of connection between graywater piping and other waste piping shall be accessible (as defined in LAMC Section 99.02.202) and provided with signage that is satisfactory to the Department.

EXCEPTIONS:

1. Buildings with a graywater, rainwater harvesting, or other water reuse system.
2. Sites with landscape areas not exceeding 500 square feet.
3. Projects where graywater systems are not permitted due to geological conditions.
4. Additions and alterations that use the existing building drain.

99.04.305.3. Cooling Towers [N]. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Cooling towers shall comply with LAMC Subdivision 99.04.305.3.1 or 99.04.305.3.2.

99.04.305.3.1. Buildings 25 Stories or Less. Buildings of 25 stories or less shall comply with one of the following:

1. Cooling towers shall have a minimum of 6 cycles of concentration (blowdown); or
2. A minimum of 50 percent of makeup water supply to cooling towers shall come from non-potable water sources, including treated backwash.

99.04.305.3.2. Buildings Over 25 Stories. Buildings over 25 stories shall comply with all of the following:

1. Cooling towers shall have a minimum of 6 cycles of concentration (blowdown); and
2. 100 percent of makeup water supply to cooling towers shall come from non-potable water sources, including treated backwash.

EXCEPTION: Where the amount of graywater produced by the plumbing system is insufficient to meet the total makeup water demand, as determined by the Department, potable water can be used to compensate for the deficiency.

99.04.305.4. Groundwater Discharge [N]. Where groundwater is being extracted and discharged, a system for onsite reuse of the groundwater shall be developed and constructed. Alternatively, the groundwater may be discharged to the sewer.

SEC. 99.04.407. WATER RESISTANCE AND MOISTURE MANAGEMENT.

99.04.407.3. Flashing Details. Provide flashing details on the building plans which comply with accepted industry standards or manufacturer's instructions at the following locations:

1. Around windows and doors;
2. Roof valleys;
3. Chimneys to roof intersections.

99.04.407.4. Material Protection. Protect building materials delivered to the construction site from rain and other sources of moisture.

SEC. 99.04.408. CONSTRUCTION WASTE REDUCTION, DISPOSAL AND RECYCLING.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

99.04.408.1. Construction Waste Management. Comply with LAMC Section 66.32, et seq., of the Los Angeles Municipal Code.

SEC. 99.04.504. POLLUTANT CONTROL

(Amended by Ord. No. 186,486, Eff. 1/28/20.)

99.04.504.6. Filters. (Amended by Ord. No. 187,719, Eff. 1/23/23.) Mechanically ventilated buildings shall meet the air filtration requirements of the California Energy Code.

Tables 4.504.1, 4.504.2, and 4.504.3 of the California Green Building Standards Code, Title 24, Part 11 are not adopted. The following tables shall apply instead:

TABLE 4.504.1

ADHESIVE VOC LIMIT^{1, 2}

Less Water and Less Exempt Compounds in Grams per Liter

ARCHITECTURAL APPLICATIONS	VOC LIMIT
Indoor carpet adhesives	50
Carpet pad adhesives	50
Outdoor carpet adhesives	150
Wood flooring adhesives	100
Rubber floor adhesives	60
Subfloor adhesives	50
Ceramic tile adhesives	65
VCT and asphalt tile adhesives	50
Drywall and panel adhesives	50
Cove base adhesives	50
Multipurpose construction adhesives	70
Structural glazing adhesives	100
Single-ply roof membrane adhesives	250
Other adhesives not specifically listed	250
SPECIALTY APPLICATIONS	
PVC welding	510
CPVC welding	490

ABS welding	325
Plastic cement welding	100
Adhesive primer for plastic	550
Contact adhesive	80
Special purpose contact adhesive	250
Structural wood member adhesive	140
Top and trim adhesive	540
SUBSTRATE SPECIFIC APPLICATIONS	
Metal to metal	30
Plastic foams	50
Porous material (except wood)	50
Wood	30
Fiberglass	80

1. If an adhesive is used to bond dissimilar substrates together, the adhesive with the highest VOC content shall be allowed.
2. For additional information regarding methods to measure the VOC content specified in this table, see South Coast Air Quality Management District Rule 1168.

TABLE 4.504.2
SEALANT VOC LIMIT
Less Water and Less Exempt Compounds in Grams per Liter

SEALANTS	VOC LIMIT
Architectural	50
Marine deck	760
Non-membrane roof	300
Roadway	250
Single-ply roof membrane	450
Other	420
SEALANT PRIMERS	
Architectural	
Nonporous	250
Porous	775
Modified bituminous	500
Marine deck	760
Other	750

TABLE 4.504.3
VOC CONTENT LIMITS FOR ARCHITECTURAL COATINGS ^{2, 3}
Grams of VOC per Liter of Coating Less Water and Less Exempt Compounds

COATING CATEGORY	VOC LIMIT
Flat coatings	50
Nonflat coatings	50
Nonflat-high gloss coatings	50
SPECIALTY COATINGS	
Aluminum roof coatings	100
Basement specialty coatings	400
Bituminous roof coatings	50
Bituminous roof primers	350
Bond breakers	350
Concrete curing compounds	100
Concrete curing compounds, Roadways & Bridges	350
Concrete/masonry sealers	100
Driveway sealers	50
Dry fog coatings	50
Faux finishing coatings	
Clear Top Coat	100
Decorative Coatings	350
Glazes	350
Japan	350
Trowel Applied Coatings	50
Fire resistive coatings	150
Floor coatings	50
Form-release compounds	100
Graphic arts coatings (sign paints)	200
High temperature coatings	420
Industrial maintenance coatings	100
Low solids coatings ¹	120
Magnesite cement coatings	450
Mastic texture coatings	100

Metallic pigmented coatings	150
Multicolor coatings	250
Pretreatment wash primers	420
Primers, sealers, and undercoaters	100
Reactive penetrating sealers	350
Recycled coatings	250
Roof coatings	50
Roof coatings, aluminum	100
Rust preventative coatings	100
Shellacs	
Clear	730
Opaque	550
Specialty primers, sealers and undercoaters	100
Stains	100
Stains, Interior	250
Stone consolidants	450
Swimming pool coatings	340
Traffic marking coatings	100
Tub and tile refinish coatings	420
Waterproofing membranes	100
Wood coatings	275
Wood preservatives	350
Zinc-rich primers	100

1. Grams of VOC per liter of coating, including water and including exempt compounds.
2. The specified limits remain in effect unless revised limits are listed in subsequent columns in the table.
3. Values in this table are derived from those specified by the South Coast Air Management District (SCAQMD) Rule 1113. More information is available from the SCAQMD.

DIVISION 5

NONRESIDENTIAL MANDATORY MEASURES

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section

- 99.05.100 Basic Provisions.
- 99.05.106 Site Development.

Energy Efficiency

- 99.05.201 General.
- 99.05.211 Renewable Energy.
- 99.05.303 Indoor Water Use.
- 99.05.304 Outdoor Water Use.
- 99.05.305 Water Reuse Systems.
- 99.05.408 Construction Waste Reduction, Disposal and Recycling.
- 99.05.504

SEC. 99.05.100. BASIC PROVISIONS.

(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 5 of the California Green Building Standards Code is adopted by reference except as provided in this article.

SEC. 99.05.106. SITE DEVELOPMENT.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

99.05.106.5.3. Electric Vehicle (EV) Charging. (Amended by Ord. No. 187,719, Eff. 1/23/23.) Construction to provide electric vehicle infrastructure and facilitate electric vehicle charging shall comply with Section 99.05.106 and shall be provided in accordance with regulations in the California Building Code and the California Electrical Code. Calculations for spaces shall be rounded up to the nearest whole number.

EXCEPTIONS:

1. On a case-by-case basis where the local enforcing agency has determined compliance with this Section is not feasible based upon one of the following conditions:
 - a. Where there is no local utility power supply.
 - b. Where the local utility is unable to supply adequate power.
 - c. Where there is evidence suitable to the local enforcement agency substantiating that additional local utility infrastructure design requirements, directly related to the implementation of Los Angeles Municipal Code Subsection 99.05.106.5.3, may adversely impact the construction cost of the project.

2. Parking spaces accessible only by automated mechanical car parking systems are not required to comply with this code Section.

99.05.106.5.3.1. EV Capable Spaces. (Amended by Ord. No. 187,719, Eff. 1/23/23.) Thirty percent of the total number of parking spaces on a building site, but in no case less than one, provided for all types of parking facilities, shall be electric vehicle charging spaces (EV spaces) capable of supporting future Level 2 EVSE and shall meet the following requirements:

1. Raceways complying with the California Electrical Code and no less than 1 inch diameter shall be provided and shall originate at a service panel or a subpanel(s) serving the area, and shall terminate in close proximity to the proposed location of the EV capable space and into a suitable listed cabinet, box, enclosure or equivalent. A common raceway may be used to serve multiple EV capable spaces.
2. A service panel or subpanel(s) shall be provided with panel space and electrical load capacity for a dedicated 208/240 volts, 40-ampere minimum branch circuits for each EV capable space, with delivery of 30-ampere minimum to an installed EVSE at each EVCS.
3. The electrical system and any on-site distribution transformers shall have sufficient capacity to supply full rated amperage at each EV capable space.
4. The service panel or subpanel(s) circuit directory shall identify the reserved overcurrent protective device space(s) as "EV CAPABLE". The raceway termination location shall be permanently and visibly marked as "EV CAPABLE".

NOTE: A parking space served by electric vehicle supply equipment or designed as a future EV charging space shall count as at least one standard automobile parking space only for the purpose of complying with any applicable minimum parking space requirements established by an enforcement agency. See Vehicle Code Section 22511.2 for further details.

99.05.106.5.3.2. Electric Vehicle Charging Stations (EVCS). (Amended by Ord. No. 187,719, Eff. 1/23/23.) EV capable spaces shall be provided with EVSE to create EVCS in twenty percent of the total number of actual parking spaces. The number of EVCS shall count toward the total number of required EV capable spaces as required for the building per the Los Angeles Municipal Code Subsection 99.05.106.5.3.1. The EVCS required by this Section may be provided with EVSE in any combination of Level 2 and Direct Current Fast Charging (DCFC), except that at least one Level 2 EVSE shall be provided.

One EV charger with multiple connectors capable of charging multiple EVs simultaneously shall be permitted if the electrical load capacity required by the Los Angeles Municipal Code Subsection 99.05.106.5.3.1 for each EV capable space is accumulatively supplied to the EV charger.

The installation of each DCFC EVSE shall be permitted to reduce the minimum number of required EV capable spaces without EVSE by five and reduce proportionally the required electrical load capacity to the service panel or subpanel.

99.05.106.5.3.3. Use of Automatic Load Management Systems (ALMS). (Amended by Ord. No. 187,719, Eff. 1/23/23.) ALMS shall be permitted for EVCS. When ALMS is installed, the required electrical load capacity specified in Los Angeles Municipal Code Subsection 99.05.106.5.3.1 for each EVCS may be reduced when serviced by an EVSE controlled by an ALMS. Each EVSE controlled by an ALMS shall deliver a minimum 30 amperes to an EV when charging one vehicle and shall deliver a minimum 3.3 kW while simultaneously charging multiple EVs.

99.05.106.5.3.4. Accessible EVCS. (Added by Ord. No. 187,719, Eff. 1/23/23.) When EVSE is installed, accessible EVCS shall be provided in accordance with the California Building Code Chapter 11B Sec. 11B-228.3.

NOTE: For EVCS signs, refer to Caltrans Traffic Operations Policy Directive 13-01 (Zero Emission Vehicle Signs and Pavement Markings) or its successor(s).

99.05.106.5.3.6. Number of Required Electric Vehicle Charging Stations. (Added by Ord. No. 186,485, Eff. 1/28/20.) The number of electric vehicle charging stations (EVCS) shall be 10% of the total number of parking spaces provided for all new nonresidential buildings. Calculations for the number of required EVCS shall be rounded up to the nearest whole number. The number of EVCS can be counted towards the total number of EV spaces required for the building per Section 99.05.106.5.3.3.

99.05.106.11. Hardscape Alternatives [N]. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Use one or a combination of strategies below for 50% of site hardscape.

1. Provide shade (mature within 15 years of occupancy);
2. Use light colored materials with an initial solar reflectance value of at least .30 as determined in accordance with American Society for Testing and Materials (ASTM) Standards E 1918 or C 1549;
3. Use open-grid pavement system or pervious or permeable pavement system; or
4. Use solar panel arrays to create a canopy shade system.

99.05.106.13. Cool Roof for Reduction of Heat Island Effect. (Added by Ord. No. 187,208, Eff. 11/5/21.) Roofing material shall comply with both LAMC Subsections 99.05.106.13.1 and 99.05.106.13.2, or comply with LAMC Subsection 99.05.106.13.3.

EXCEPTIONS:

1. Roof repair as defined in Section 100.1(b) of the California Energy Code; or
2. Roof replacement when the roof area being replaced is equal to or less than 50% of the total roof area; or
3. Roof replacement where solar systems are being installed; or
4. Additions resulting in less than 500 square feet of added roof area or less than 50% of the total roof area, whichever is greater; or
5. Roof construction that has a thermal mass over the roof membrane, including areas of vegetated (green) roofs, weighing at least 25 pounds per square foot.

99.05.106.13.1. Solar Reflectance. Roofing material shall have a minimum three-year aged solar reflectance equal to or greater than the values specified in LAMC Table 99.05.106.13. Solar reflectance shall be determined by testing by an approved agency in accordance with ASTM C1549, ASTM E1918 or CRRC-1. Solar reflectance values shall be based on the aged reflectance value of the roofing product or the equation in CALGreen Section A4.106.5.1 if aged solar reflectance values are not available. **(Added by Ord. No. 187,208, Eff. 11/5/21.)**

99.05.106.13.2. Thermal Emittance. Roofing materials shall have an emittance value equal to or greater than those specified in LAMC Table 99.05.106.13. Thermal emittance shall be determined by testing by an approved agency in accordance with ASTM C1371, ASTM E408 or CRRC-1. **(Added by Ord. No. 187,208, Eff. 11/5/21.)**

99.05.106.13.3. Solar Reflectance Index. Roofing materials shall have a three-year aged Solar Reflectance Index equal to or greater than those specified in LAMC Table 99.05.106.13. Aged Solar Reflectance Index (SRI) may be calculated using the SRI Calculation Worksheet (SRI-WS) developed by the California Energy Commission or in compliance with ASTM E1980-01 as specified in the 2019 California Energy Code. Solar reflectance values used in the SRI-WS shall be based on the aged reflectance value of the roofing product. Certified thermal emittance used in the SRI-WS may be either the initial value or the aged value listed by the Cool Roof Rating Council. **(Added by**

TABLE 99.05.106.13

(Added by Ord. No. 187,208, Eff. 11/5/21.)

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3 YEAR AGED SOLAR REFLECTANCE INDEX (SRI)
≤ 2:12	0.68	0.85	82
> 2:12	0.28	0.85	27

99.05.106.14. All-Electric Buildings. (Added by Ord. No. 187,714, Eff. 1/23/23.) All newly constructed buildings shall be all-electric buildings.

EXCEPTIONS:

1. Application for a building permit is submitted, accepted by the Department of Building and Safety, and building permit application fees are paid prior to April 1, 2023.
2. Cooking equipment contained within kitchens located in a public use area, as defined in the California Building Code Chapter 2, such as restaurants, commissaries, and cafeterias provided the electrical infrastructure is installed in accordance with Section 99.05.106.14.1.
3. Gas-powered emergency life-safety systems, including emergency backup.
4. Gas-powered process equipment in I-2, F and L Occupancy Groups provided the electrical infrastructure is installed in accordance with Section 99.05.106.14.1.

99.05.106.14.1. Requirements for Combustion Equipment. (Added by Ord. No. 187,714, Eff. 1/23/23.) Where required by Section 99.05.106.14, the electrical infrastructure shall be installed to accommodate the future installation of an electrical heating or cooking appliance/equipment in the following ways:

1. Branch circuit wiring, electrically isolated and designed to serve all electrical heating appliances in accordance with manufacturer requirements and the California Electrical Code, including the appropriate voltage, phase, minimum amperage, and an electrical receptacle or junction box within 5 feet of the appliance that is accessible with no obstructions. Appropriately sized conduit may be installed in lieu of conductors; and
2. Labeling of both ends of the unused conductors or conduit shall be with "For Future Electrical Appliance"; and
3. Reserved circuit breakers in the electrical panel for each branch circuit, appropriately labeled (e.g., "Reserved for Future Electric Range/Equipment"), and positioned on the opposite end of the panel supply conductor connection; and
4. Connected subpanels, panelboards, switchboards, busbars, and transformers shall be sized to serve the future electrical heating appliances. The electrical capacity requirements shall be adjusted for demand factors in accordance with the California Electric Code.

ENERGY EFFICIENCY

SEC. 99.05.201. GENERAL.

99.05.201.1. Scope. The provisions of this chapter shall establish means of conserving energy.

SEC. 99.05.211. RENEWABLE ENERGY.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

99.05.211.1. Solar Ready Buildings. Comply with California Energy Code Section 110.10.

EXCEPTIONS:

1. Additions having less than 2,000 sq. ft. of new roof area;
2. Alterations.

SEC. 99.05.303. INDOOR WATER USE.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

99.05.303.1.1. New Buildings or Additions in Excess of 50,000 Square Feet. Separate submeters or meters shall be installed as follows:

1. For each individual leased, rented, or other tenant space within the building projected to consume more than 100 gallons per day (380 L/day).
2. Where potable water is used for industrial/process uses, for water supplied to the following subsystems:
 - a. Makeup water for cooling towers where flow through is greater than 500 gpm (30 L/s).
 - b. Makeup water for evaporative coolers greater than 6 gpm (0.04 L/s).
 - c. Steam and hot-water boilers with energy input more than 500,000 Btu/h (147 kW).
3. For each building that uses more than 100 gallons per day on a parcel containing multiple buildings.

99.05.303.2. Water Use Reduction. Each building shall demonstrate a 20% overall reduction in potable water use. The reduction shall be based on the maximum allowable water use per plumbing fixture and fittings as required by the LAMC. To comply with this subsection, a calculation demonstrating a 20% reduction in the building "water use baseline", as established in LAMC Table 99.05.303.2.2, shall be provided.

EXCEPTIONS:

1. Projects with plumbing systems having fixtures and fittings that comply with the maximum flow rate values shown in LAMC Table 99.05.303.2.3.
2. Additions and alterations to buildings with fixtures and fittings complying with the maximum flow rate values shown in LAMC Table 99.05.303.2.3. This provision shall apply only to new fixtures.
3. Buildings utilizing recycled water in accordance with LAMC Subsection 99.05.305.2.
4. Replacement of plumbing fixtures and fittings.

TABLE 99.05.303.2.2**WATER USE BASELINE³**

FIXTURE TYPE	BASELINE FLOW RATE	DURATION	DAILY USES	OCCUPANTS ²
Showerheads	1.8 gpm @ 80 psi	5 min.	1	X ^{2a}
Lavatory Faucets, Non-Residential	0.5 gpm @ 60 psi	.25 min.	3	X
Kitchen Faucets	1.8 gpm @ 60 psi	4 min.	1	X ^{2b}
Metering Faucets	0.20 gallons/cycle	.25 min.	3	X
Water Closets	1.28 gallons/flush	1 flush	1 male ¹ 3 female	X
Urinals	0.125 gallons/flush	1 flush	2 male	X

Fixture "Water Use" = Flow rate X Duration X Occupants X Daily uses

1. The daily use number shall be increased to three if urinals are not installed in the room.
2. Refer to Table A, Chapter 4 of the California Plumbing Code, for occupant load factors.
 - a. Shower use by occupants depends on the type of use of a building or portion of a building. For example, the total occupant load for a health club, but only a fraction of the occupants in an office building as determined by the anticipated number of users.
 - b. Kitchen faucet use is determined by the occupant load of the area served by the fixture.
3. Use Worksheet WS-1 of the 2016 CALGreen Code to calculate baseline water use.

TABLE 99.05.303.2.3**WATER REDUCTION FIXTURE FLOW RATES**

FIXTURE TYPE	MAXIMUM ALLOWABLE FLOW RATE
Lavatory Faucets,	0.4 gpm @ 60 psi
Non-Residential*	0.20 gallons/cycle
Kitchen Faucets**	1.50 gpm @ 60 psi
Dishwashers	ENERGY-STAR certified
Clothes Washers	ENERGY-STAR certified

* Not required if using nonwater or hybrid urinals throughout the project.

** Kitchen faucets may temporarily increase the flow to 2.2 gpm at 60 psi, and must default to 1.5 gpm at 60 psi. This requirement does not apply to a faucet in commercial kitchens.

99.05.303.6. Standards for Plumbing Fixtures and Fittings. Plumbing fixtures and fittings shall be installed in accordance with the Los Angeles Plumbing Code, and shall meet the applicable standards referenced in California Plumbing Code Table 1701.1 and in Chapter 6 of CALGreen. (Amended by Ord. No. 185,198, Eff. 11/22/17.)

SEC. 99.05.304. OUTDOOR WATER USE

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

99.05.304.7. Exterior Faucets. Locks shall be installed on all publicly accessible exterior faucets and hose bibs.

SEC. 99.05.305. WATER REUSE SYSTEMS.

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

99.05.305.1. Recycled Water Supply to Fixtures. (Amended by Ord. No. 186,488, Eff. 12/27/19.) When City-recycled water is available within 200 feet of the property line, 100 percent of water for water closets, urinals, floor drains, and process cooling and heating in that building shall come from City-recycled water. Recycled water systems shall be designed and installed in accordance with the Los Angeles Plumbing Code.

EXCEPTIONS:

1. Additions that use any part of the existing plumbing system.
2. Alterations that do not include replacing all of the potable water piping.
3. Where City-recycled water quality has been deemed non-suitable for a particular fixture or equipment, connection to the City is not required. The fixture and/or equipment shall be dual-plumbed to allow for future connection.

99.05.305.2. Graywater Ready. (Amended by Ord. No. 186,488, Eff. 12/27/19.) Waste piping shall be arranged to permit the discharge from the clothes washer, bathtub, showers and bathroom/restroom washbasins to be used for a future graywater irrigation system(s). The flow from the fixtures shall be piped separately, and shall, at a minimum, be adequate to supply the irrigation demand as determined by the California Department of Water Resources' Model Water Efficiency Landscape Ordinance (MWELo). The point(s) of connection between graywater piping and other waste piping shall be accessible (as defined in LAMC Section 99.02.202) and provided with

signage that is satisfactory to the Department.

EXCEPTIONS:

1. Buildings with a graywater, rainwater harvesting, or other water reuse system.
2. Sites with landscape areas not exceeding 500 square feet (46.45 m²).
3. Projects where graywater systems are not permitted due to geological conditions.
4. Additions and alterations that use the existing building drain.

99.05.305.3. Cooling Towers [N]. Cooling towers shall comply with one of the following:

1. Cooling towers shall have a minimum of 6 cycles of concentration (blowdown); or
2. A minimum of 50 percent of makeup water supply shall come from non-potable water sources, including treated backwash.

99.05.305.4. Groundwater Discharge [N]. Where groundwater is being extracted and discharged, a system for onsite reuse of the groundwater, shall be developed and constructed. Alternatively, the groundwater may be discharged to the sewer.

SEC. 99.05.408. CONSTRUCTION WASTE REDUCTION, DISPOSAL AND RECYCLING.

(Amended by Ord. No. 186,488, Eff. 12/27/19.)

99.05.408.1. Construction Waste Diversion. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Comply with LAMC Section 66.32 et seq.

SEC. 99.05.504.

(Amended by Ord. No. 186,486, Eff. 1/28/20.)

Tables 5.504.4.1, 5.504.4.2, and 5.504.4.3 of the California Green Building Standards Code, Title 24, Part 11 are not adopted. The following tables shall apply instead:

TABLE 5.504.4.1

ADHESIVE VOC LIMIT^{1, 2}

Less Water and Less Exempt Compounds in Grams per Liter

ARCHITECTURAL APPLICATIONS	VOC LIMIT
Indoor carpet adhesives	50
Carpet pad adhesives	50
Outdoor carpet adhesives	150
Wood flooring adhesives	100
Rubber floor adhesives	60
Subfloor adhesives	50
Ceramic tile adhesives	65
VCT and asphalt tile adhesives	50
Drywall and panel adhesives	50
Cove base adhesives	50
Multipurpose construction adhesives	70
Structural glazing adhesives	100
Single-ply roof membrane adhesives	250
Other adhesives not specifically listed	250
SPECIALTY APPLICATIONS	
PVC welding	510
CPVC welding	490
ABS welding	325
Plastic cement welding	100
Adhesive primer for plastic	550
Contact adhesive	80
Special purpose contact adhesive	250
Structural wood member adhesive	140
Top and trim adhesive	540
SUBSTRATE SPECIFIC APPLICATIONS	
Metal to metal	30
Plastic foams	50
Porous material (except wood)	50
Wood	30
Fiberglass	80

1. If an adhesive is used to bond dissimilar substrates together, the adhesive with the highest VOC content shall be allowed.

2. For additional information regarding methods to measure the VOC content specified in this table, see South Coast Air Quality Management District (SCAQMD) Rule 1168.

TABLE 5.504.4.2

SEALANT VOC LIMIT

Less Water and Less Exempt Compounds in Grams per Liter

SEALANTS	VOC LIMIT
Architectural	50
Marine deck	760
Non-membrane roof	300
Roadway	250
Single-ply roof membrane	450
Other	420
SEALANT PRIMERS	
Architectural	
Nonporous	250
Porous	775
Modified bituminous	500
Marine deck	760
Other	750

TABLE 5.504.4.3

VOC CONTENT LIMITS FOR ARCHITECTURAL COATINGS ^{2, 3}

Grams of VOC per Liter of Coating Less Water and Less Exempt Compounds

COATING CATEGORY	VOC LIMIT
Flat coatings	50
Nonflat coatings	50
Nonflat-high gloss coatings	50
SPECIALTY COATINGS	
Aluminum roof coatings	100
Basement specialty coatings	400
Bituminous roof coatings	50
Bituminous roof primers	350
Bond breakers	350
Concrete curing compounds	100
Concrete curing compounds, Roadways & Bridges	350
Concrete/masonry sealers	100
Driveway sealers	50
Dry fog coatings	50
Faux finishing coatings	
Clear Top Coat	100
Decorative Coatings	350
Glazes	350
Japan	350
Trowel Applied Coatings	50
Fire resistive coatings	150
Floor coatings	50
Form-release compounds	100
Graphic arts coatings (sign paints)	200
High temperature coatings	420
Industrial maintenance coatings	100
Low solids coatings ¹	120
Magnesite cement coatings	450
Mastic texture coatings	100
Metallic pigmented coatings	150
Multicolor coatings	250
Pretreatment wash primers	420
Primers, sealers, and undercoaters	100
Reactive penetrating sealers	350
Recycled coatings	250
Roof coatings	50
Roof coatings, aluminum	100
Rust preventative coatings	100
Shellacs	
Clear	730
Opaque	550
Specialty primers, sealers and undercoaters	100
Stains	100
Stains, Interior	250
Stone consolidants	450
Swimming pool coatings	340
Traffic marking coatings	100
Tub and tile refinish coatings	420

Waterproofing membranes	100
Wood coatings	275
Wood preservatives	350
Zinc-rich primers	100

1. Grams of VOC per liter of coating, including water and including exempt compounds.
2. The specified limits remain in effect unless revised limits are listed in subsequent columns in the table.
3. Values in this table are derived from those specified by the South Coast Air Management District (SCAQMD) Rule 1113. More information is available from the SCAQMD.

DIVISION 6

REFERENCED ORGANIZATIONS AND STANDARDS

Section
99.06.601 General.

SEC. 99.06.601. GENERAL.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

99.06.601.1. General. Chapter 6 of the California Green Building Standards Code is adopted in its entirety.

DIVISION 7

INSTALLER AND SPECIAL INSPECTOR QUALIFICATIONS

(Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
99.07.100 Basic Provisions.

SEC. 99.07.100. BASIC PROVISIONS.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 7 of the California Green Building Standards Code is adopted in its entirety.

DIVISION 8

COMPLIANCE FORMS, WORKSHEETS, AND REFERENCE MATERIAL

(Title Amended by Ord. No. 184,692, Eff. 12/30/16.)

Section
99.08.100 Basic Provision.

SEC. 99.08.100. BASIC PROVISION.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Chapter 8 of the California Green Building Code is not adopted, and, in lieu, Division 8, Article 9, Chapter IX of the Los Angeles Municipal Code is added as provided in this article.

WORKSHEET (WS-1)

BASELINE WATER USE
(Amended by Ord. No. 186,488, Eff. 12/27/19.)

BASELINE WATER USE CALCULATION TABLE									
FIXTURE TYPE	FLOW RATE		DURATION		DAILY USES		OCCUPANTS		GALLONS PER DAY
BASELINE WATER USE CALCULATION TABLE									
FIXTURE TYPE	FLOW RATE		DURATION		DAILY USES		OCCUPANTS		GALLONS PER DAY
Showerheads, residential	1.8 gpm @ 80 psi	x	8 min.	x	1	x	Note 1a	=	
Showerheads, nonresidential	1.8 gpm @ 80 psi	x	5 min.	x	1	x		=	
Lavatory faucets, residential	1.2 gpm @ 60 psi	x	0.25 min.	x	3	x		=	

Lavatory faucets nonresidential/public uses	0.5 gpm @ 60 psi	x	0.25 min	x	3	x		=	
Kitchen faucets	1.8 gpm @ 60 psi	x	4 min.	x	1	x	Note 1b	=	
Wash fountains	1.8 gpm/20 [rim space (in.) @ 60 psi]	x		x		x		=	
Metering faucets	0.25 gallons/cycle	x	0.25 min.	x	3	x		=	
Metering faucets for wash fountains	0.20 gal/cycle/20 [rim space (in.) @ 60 psi]	x	0.25 min.	x		x		=	
Water Closets	1.28 gallons/flush	x	1 flush	x	1 male ² 3 females	x		=	
Urinals	0.125 gallons/flush	x	1 flush	x	2 males	x		=	
Total daily baseline water use (BWU)								=	

- Refer to Table A, Chapter 4 of the California Plumbing Code, for occupant load factors.
 - Shower use by occupants depends on the type of use of a building or portion of a building, e.g. total occupant load for a health club, but only a fraction of the occupants in an office building as determined by the anticipated number of users.
 - Kitchen faucet use is determined by occupant load of the area served by the fixture.
- The daily use number shall be increased to three if urinals are not installed in the room.

WORKSHEET (WS-2)

BASELINE WATER USE

20-PERCENT REDUCTION WATER USE CALCULATION TABLE									
FIXTURE TYPE	FLOW RATE		DURATION		DAILY USES		OCCUPANTS		GALLONS PER DAY
20-PERCENT REDUCTION WATER USE CALCULATION TABLE									
FIXTURE TYPE	FLOW RATE		DURATION		DAILY USES		OCCUPANTS		GALLONS PER DAY
Showerheads, residential		x	8 min.	x	1	x	Note 1a	=	
Showerheads, nonresidential		x	5 min.	x	1				
Lavatory faucets, residential		x	0.25 min.	x	3	x		=	
Lavatory faucets nonresidential/public uses		x	0.25 min	x	3	x		=	
Kitchen faucets		x	4 min.	x	1	x	Note 1b	=	
Wash fountains		x		x		x		=	
Metering faucets		x	0.25 min.	x	3			=	
Metering faucets for wash fountains		x	0.25 min.	x		x		=	
Water Closets		x	1 flush	x	1 male ² 3 females	x		=	
Urinals		x	1 flush	x	2 males	x		=	
Urinals Nonwater supplied	0.0 gal/ flush	x	1 flush	x	2 males	x		=	0
Proposed water use (BWU)								=	
20% Reduction _____ (BWU from WS-1) x 0.80 = _____ Allowable water use % Reduction _____ (BWU from WS-1) x 0. _____ = _____ Allowable water use									

- For occupancies, refer to Table A, Chapter 4, California Plumbing Code, for occupant load factors.
 - Shower use by occupants depends on the type of use of a building or portion of a building, e.g., total occupant load for a health club, but only a fraction of the occupants in an office building as determined by the anticipated number of users.
 - Kitchen faucet use is determined by the occupant load of the area served by the fixture.
- Includes single and dual flush water closets with an effective flush of 1.28 gallons or less.

Single flush toilets - The effective flush volume shall not exceed 1.28 gallons (4.8 liters). The effective flush volume is the average flush volume when tested in accordance with ASME A112.19.2.

Dual flush toilets - The effective flush volume shall not exceed 1.28 gallons (4.8 liters). The effective flush volume is defined as the composite, average flush volume of two reduced flushes and one full flush. Flush volumes will be tested in accordance with ASME A112.19.2 and ASME A112.19.14.
- The daily use number shall be increased to three if urinals are not installed in the room.
- Where complying faucets are unavailable, aerators rated at 35 gpm or other means may be used to achieve reduction.

DIVISION 11

APPENDIX A4 RESIDENTIAL VOLUNTARY MEASURES

(Amended by Ord. No. 182,849, Eff. 1/3/14.)

Section

- 99.11.101 Scope.
- 99.11.102 General.
- 99.11.602

SEC. 99.11.101. SCOPE.**(Amended by Ord. No. 187,719, Eff. 1/23/23.)**

Appendix A4 of the California Green Building Standards Code (CALGreen) is adopted by reference with the following exceptions: CALGreen Section A4.105.2, A4.106.7, Table A4.106.8.3.1, Table A4.106.8.3.2, A4.305.2, A4.403.1, A4.404.1, A4.405.2, A4.405.4, A4.407.1, A4.407.3, A4.407.4, A4.407.5, A4.407.7, A4.602, and Table A4.106.5.1(1) are not adopted; and in lieu, LAMC Sections 99.11.102 and 99.11.602, and Subsections A4.105.2, A4.106.7, A4.405.2, A4.405.4, A4.407.1, A4.407.7, A4.602, and Tables A4.106.5.1(1), A4.106.5.1(2), A4.106.5.1(3), and A4.106.5.1(4) are added or amended as provided in this article.

SEC. 99.11.102. GENERAL.**(Amended by Ord. No. 187,719, Eff. 1/23/23.)**

This section shall set forth the Residential Voluntary Measures.

A4.105.2. Reuse of Materials. Use salvaged, refurbished or reused materials for a minimum of 2.5% of the total value, based on estimated cost of materials on the project. Materials which can be easily reused include but are not limited to the following:

1. Light fixtures;
2. Plumbing fixtures;
3. Doors and trim;
4. Masonry (reused masonry may only be used for flatwork);
5. Electrical devices;
6. Appliances;
7. Foundations or portions of foundations.

Note: Reused material must be in compliance with the appropriate California Code of Regulations Title 24 requirements. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

TABLE A4.106.5.1(1)**TIER 1 – LOW RISE RESIDENTIAL**

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3-YEAR AGED SRI
≤ 2 : 12	0.68	0.85	82
> 2 : 12	0.28	0.85	27

TABLE A4.106.5.1(2)**TIER 2 – LOW-RISE RESIDENTIAL**

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3-YEAR AGED SRI
≤ 2 : 12	0.70	0.85	85
> 2 : 12	0.34	0.85	35

TABLE A4.106.5.1(3)**TIER 1 – HIGH-RISE RESIDENTIAL BUILDINGS, HOTELS, AND MOTELS**

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3-YEAR AGED SRI
≤ 2 : 12	0.68	0.85	82
> 2 : 12	0.28	0.85	27

TABLE A4.106.5.1(4)**TIER 2 – HIGH-RISE RESIDENTIAL BUILDINGS, HOTELS, AND MOTELS**

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3-YEAR AGED SRI
≤ 2 : 12	0.70	0.85	85
> 2 : 12	0.34	0.85	35

A4.106.7. Reduction of Heat Island Effect for Nonroof Areas [N]. **(Added by Ord. No. 187,208, Eff. 11/5/21.)** Reduce nonroof heat islands for 75% of pathways, patios, driveways, or other paved areas by using one or more of the methods listed.

1. Use trees or other plantings to provide shade and that mature within 15 years of planting. Trees shall be suitable in mature size and environmental requirements for the site. Tree selection and placement shall consider location and size of areas to be shaded, location of utilities, views from the structure, distance to sidewalks and foundations, overhangs onto adjacent properties and streets, and other infrastructure adjacent to landscaping. In addition, shading shall not cast a shadow, as specified, on any neighboring solar collectors pursuant to Public Resources Code Section 25981, et seq. (Solar Shade Control Act);

- A4.405.2. Concrete Floors.** 75% of all slab-on-grade and structural concrete slab floors that do not require additional coverings are used including but not limited to stained, natural or stamped concrete floors.

A4.405.4. Use of Building Materials from Rapidly Renewable Sources. One or more of the following materials manufactured from rapidly renewable sources or agricultural by-products is used for a minimum of 2.5% of the total value, based on estimated cost of materials on the project:

- Note:** The intent of this section is to utilize building materials and products which are typically harvested within a 10-year or shorter cycle.

A4.407.1. Drainage Around Foundations. Where not required by code or ordinance, install foundation and landscape drains which discharge to a dry well, sump, bioswale or other approved on-site location.

A4.407.7. Roof Overhangs. When permitted by the Los Angeles Municipal Code, a permanent overhang or non-retractable awning at least 2 feet in depth is provided at all exterior walls.

SEC. 99.11.602.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)

Section A4.602 of the CALGreen Code is adopted with amendments to read as follows:

TABLE A4.602

RESIDENTIAL OCCUPANCIES APPLICATION CHECKLIST

[{''}Click here for a printable PDF version of this table{''}](#)

FEATURE OR MEASURE	LEVELS			VERIFICATIONS		
	APPLICANT TO SELECT ELECTIVE MEASURES			ENFORCING AGENCY TO SPECIFY VERIFICATION METHOD		
	Mandatory	Prerequisites and electives ¹		Enforcing Agency	Installer or Designer	Third Party
Tier 1		Tier 2	— All	— All	— All	
FEATURE OR MEASURE	LEVELS			VERIFICATIONS		
	APPLICANT TO SELECT ELECTIVE MEASURES			ENFORCING AGENCY TO SPECIFY VERIFICATION METHOD		
	Mandatory	Prerequisites and electives ¹		Enforcing Agency	Installer or Designer	Third Party
Tier 1		Tier 2	— All	— All	— All	
PLANNING AND DESIGN						
Site Selection						
A4.103.1 A site which complies with at least one of the following characteristics is selected:						
1. An infill site is selected.						
2. A greyfield site is selected.						
3. An EPA-recognized Brownfield site is selected.						
A4.103.2 Facilitate community connectivity by one of the following methods:						
1. Locate project within a 1/4-mile true walking distance of at least 4 basic services;						
2. Locate project within 1/2-mile true walking distance of at least 7 basic services;						
3. Other methods increasing access to additional resources.						
Site Preservation						
A4.104.1 An individual with oversight responsibility for the project has participated in an educational program promoting environmentally friendly design or development and has provided training or instruction to appropriate entities.						
Deconstruction and Reuse of Existing Materials						

A4.105.2 Existing buildings are disassembled for reuse or recycling of building materials. The proposed structure utilizes at least one of the following materials which can be easily reused: 1. Light fixtures 2. Plumbing fixtures 3. Doors and trim 4. Masonry (reused for flatwork) 5. Electrical devices 6. Appliances 7. Foundations or portions of foundations						
Site Development						
4.106.2 A plan is developed and implemented to manage storm water drainage during construction.	X					
4.106.3 Construction plans shall indicate how site grading or a drainage system will manage all surface water flows to keep water from entering buildings.	X					
4.106.4.1 Provide capability for electric vehicle charging in one- and two-family dwellings and in townhouses with attached private garages in accordance with Section 4.106.4.1.	X					
4.106.4.2 Provide capability for electric vehicle charging for multi-family dwellings and hotels/motels in accordance with Sections 4.106.4.2.1 or 4.106.4.2.2 as applicable.	X					
4.106.4.3 Provide capability for electric vehicle charging for existing parking lots or new parking lots for existing residential buildings in accordance with Section 4.106.4.3 as applicable.	X					
4.106.5 Roofing materials shall have a minimum 3-year aged solar reflectance and thermal emittance or a minimum 3-year aged Solar Reflectance Index (SRI) equal to or greater than the values specified in LAMC Table 4.106.5.	X					
4.106.7 Reduce nonroof heat islands for 25% of sidewalks, patios, driveways or other paved areas by using one or more of the methods listed.	X					
A4.106.1 Reserved.						
A4.106.2.1 Soil analysis is performed by a licensed design professional and the findings utilized in the structural design of the building.						
A4.106.2.2 Soil disturbance and erosion are minimized by at least one of the following: 1. Natural drainage patterns are evaluated and erosion controls are implemented to minimize erosion during construction and after occupancy. 2. Site access is accomplished by minimizing the amount of cut and fill needed to install access roads and driveways. 3. Underground construction activities are coordinated to utilize the same trench, minimize the amount of time the disturbed soil is exposed and the soil is replaced using accepted compaction methods.						
A4.106.2.3 Topsoil shall be protected or saved for reuse as specified in this section.						
Tier 1. Displaced topsoil shall be stockpiled for reuse in a designated area and covered or protected from erosion.		X ²	X ²			
Tier 2. The construction area shall be identified and delineated by fencing or flagging to limit construction activity to the construction area.			X ²			
A4.106.3 Post-construction landscape designs accomplish one or more of the following: 1. Areas disrupted during construction are restored to be consistent with native vegetation species and patterns. 2. Utilize at least 75% native California or drought tolerant plant and tree species appropriate for the climate zone region.						
A4.106.4 Permeable paving is utilized for the parking, walking or patio surfaces in compliance with the following: Tier 1. Not less than 20% of the total parking, walking or patio surfaces shall be permeable. Tier 2. Not less than 30% of the total parking, walking or patio surfaces shall be permeable.		X ²	X ²			
A4.106.5 Roofing materials shall have a minimum 3-year aged solar reflectance and thermal emittance or a minimum Solar Reflectance Index (SRI) equal to or greater than the values specified in LAMC Tables A4.106.5.1(1) and A4.106.5.1(2) for low-rise residential buildings and LAMC Tables A4.106.5.1(3) and A4.106.5.1(4) for high-rise residential buildings.						
Low-Rise Residential						
Tier 1 roof covering shall meet or exceed the values contained in LAMC Table A4.106.5.1(1).		X ²				
Tier 2 roof covering shall meet or exceed the values contained in LAMC Table A4.106.5.1(2).			X ²			
High-Rise Residential, Hotels and Motels						
Tier 1 roof covering shall meet or exceed the values contained in LAMC Table A4.106.5.1(3).		X ²				
Tier 2 roof covering shall meet or exceed the values contained in LAMC Table A4.106.5.1(4).			X ²			
A4.106.6 Install a vegetated roof for at least 50% of the roof area. Vegetated roofs shall comply with requirements for roof gardens and landscaped roofs in the <i>California Building Code</i> , Chapters 15 and 16.						
A4.106.7 Reduce nonroof heat islands for 50% of sidewalks, patios, driveways or other paved areas by using one or more of the methods listed.						
A4.106.8.1 Tier 1 and Tier 2 for one- and two-family dwellings and townhouses with attached private garages. Install a dedicated 208/240-volt branch circuit, including an overcurrent protective device rated at 40 amperes minimum per dwelling unit.		X ²	X ²			
A4.106.8.2 Provide capability for future electric vehicle charging in new multi-family dwellings, hotels and motels, as specified.						

Tier 1. 35 percent of the total number of parking spaces shall be electric vehicle (EV ready) with low power Level 2 EV charging receptacles. For projects with 20 or more dwelling units, sleeping units or guest rooms, 10 percent of the total number of parking spaces shall be equipped with Level 2 EVSE.		X ²				
Tier 2. 40 percent of the total parking spaces shall be electric vehicle (EV ready) with low power Level 2 EV charging receptacles. For projects with 20 or more dwelling units, sleeping units or guest rooms, 15 percent of the total number of parking spaces shall be equipped with Level 2 EVSE.			X ²			
See LAMC Subdivision 99.04.106.4.2 for additional requirements related to EVCS for multi-family dwellings and "R" occupancies other than one- and two-family dwellings.						
A4.106.9 Provide bicycle parking facilities as noted below or meet a local ordinance, whichever is more stringent. Number of bicycle parking spaces may be reduced, as approved by the enforcing agency, due to building site characteristics, including but not limited to, isolation from other development.						
1. Provide short-term bicycle parking, per CALGreen Section A4.106.9.1.						
2. Provide long-term bicycle parking for multi-family buildings, per CALGreen Section A4.106.9.2.						
3. Provide long-term bicycle parking for hotel and motel buildings, per CALGreen Section A4.106.9.3.						
A4.106.10 [HR] Outdoor lighting systems shall be designed and installed to comply with:						
1. The minimum requirements in the <i>California Energy Code</i> for Lighting Zones 1-4; and						
2. Backlight, Uplight and Glare (BUG) ratings as defined in IES TM-15-11; and						
3. Allowable BUG ratings not exceeding those shown in CALGreen Table A4.106.10; or						
Comply with a lawfully enacted local ordinance, whichever is more stringent.						
Innovative Concepts and Local Environmental Conditions						
A4.108.1 Items in this section are necessary to address innovative concepts or local environmental conditions.						
Item 1						
Item 2						
Item 3						
ENERGY EFFICIENCY						
General						
4.201.1 Building meets or exceeds the requirements of the <i>California Building Energy Efficiency Standards</i> . ³	X	X ²	X ²			
Performance Approach for Newly Constructed Buildings						
A4.203.1.1 Hourly Source Energy Rating (EDR1). EDR1 ratings for building design shall be computed by Energy Compliant software and shall reduce the EDR1 required by the software by the compliance margins specified in Table A4.203.1.1.		X ²	X ²			
A4.203.1.2 Prerequisite options. In addition, a minimum of two of the efficiency measures specified in Sections A4.203.1.2.1 through A4.203.1.2.8 will be required to be met. • Roof deck insulation or ducts in conditioned space. • High-performance walls. • Compact hot water distribution system. • Drain water heat recovery. • High performance vertical fenestration. • Heat pump water heater demand management. • Battery storage system controls. • Heat pump space and water heating.		X ²	X ²			
A4.203.1.3 Consultation with local electric service provider. Local jurisdictions considering adoption of reduced EDR targets based on using solar photovoltaic (PV) systems larger than required by the <i>California Energy Code</i> shall consult with the local electric service provider to ensure that that PV system sizing required to comply with the EDR targets will be acceptable to the local electric service provider.		X ²				
Performance Approach for Additions						
A4.204.1.1 Tier 1. If only one mechanical system is added or modified, the Energy Budget is no greater than 95% of the Title 24, Part 6, Energy Budget for the Standard Design Building. If two or more mechanical systems are added or modified, the Energy Budget is no greater than 90% of the Title 24, Part 6, Energy Budget for the Standard Design Building.		X ²				
A4.204.1.2 Tier 2. If only one mechanical system is added or modified, the Energy Budget is no greater than 90% of the Title 24, Part 6, Energy Budget for the Standard Design Building. If two or more mechanical systems are added or modified, the Energy Budget is no greater than 85% of the Title 24, Part 6, Energy Budget for the Standard Design Building.			X ²			
Renewable Energy						

4.211.4 Buildings shall comply with the following: 1. All one- and two-family dwellings shall comply with Section 110.10(b)1A, 110.10(b)2, 110.10(b)3, 110.10(b)4, 110.10(c), 110.10(d) and 110.10(e) of the <i>California Energy Code</i> (Title 24, Part 6). 2. All buildings, other than one- and two-family dwellings, shall comply with Section 110.10(b) through 110.10(d) of the <i>California Energy Code</i> (Title 24, Part 6).	X					
WATER EFFICIENCY AND CONSERVATION						
Indoor Water Use						
4.303.1 Plumbing fixtures (water closets and urinals) and fittings (faucets and showerheads) installed in residential buildings shall comply with the prescriptive requirements of CALGreen Sections 4.303.1.1 through 4.303.1.4.4.	X					
4.303.2 Plumbing fixtures and fittings required in CALGreen Section 4.303.1 shall be installed in accordance with the <i>California Plumbing Code</i> , and shall meet the applicable referenced standards.	X					
4.303.3 Multi-family dwellings not exceeding three stories and containing 50 units or less shall install a separate meter or sub-meter within each individual dwelling unit and within common areas, such as recreation and laundry rooms.	X					
4.303.4 A 20% reduction in the overall use of potable water within the building shall be provided, as specified.	X					
A4.303.1 Kitchen faucets. The maximum flow rate of kitchen faucets shall not exceed 1.5 gallons per minute at 60 psi. Kitchen faucets may temporarily increase the flow above the maximum rate, but not to exceed 2.2 gallons per minute at 60 psi, and must default to a maximum flow rate of 1.5 gallons per minute at 60 psi. Note: Where complying faucets are available, aerators or other means may be used to achieve reduction.						
A4.303.2 Alternate water source for nonpotable applications. Alternate nonpotable water sources are used for indoor potable water reduction. Alternate nonpotable water sources shall be installed in accordance with the <i>California Plumbing Code</i> .						
A4.303.3 Install at least one qualified ENERGY STAR dishwasher or clothes washer.						
A4.303.4 Nonwater urinals or waterless toilets are installed.						
A4.303.5 Hot water recirculation systems. One- and two-family dwellings shall be equipped with a demand hot water recirculation system, as defined in Chapter 2 of this Code. The demand hot water recirculation system shall be installed in accordance with the <i>California Plumbing Code</i> , <i>California Energy Code</i> , and the manufacturer's installation instructions.						
Outdoor Water Use						
4.304.1 After December 1, 2015, new residential developments with an aggregate landscape area equal to or greater than 500 square feet shall comply with one of the following options:	X					
1. A local water efficient landscape ordinance or the current California Department of Water Resources' Model Water Efficient Landscape Ordinance (MWELO), whichever is more stringent; or						
2. Projects with aggregate landscape areas less than 2,500 square feet may comply with the MWELO's Appendix D Prescriptive Compliance Option.						
4.304.3 A landscape water meter provided by the City of Los Angeles Department of Water and Power shall be installed for landscape irrigation.	X					
4.304.4 Locks shall be installed on all publicly accessible exterior faucets and hose bibs.	X					
4.304.5 For one- and two-family dwellings, any permanently installed outdoor in-ground swimming pool or spa shall be equipped with a cover having a manual or power-operated reel system.	X					
A4.304.1 Rainwater catchment systems. An approved rainwater catchment system is designed and installed to use rainwater generated by at least 65% of the available roof area. Rainwater catchment systems shall be designed and installed in accordance with the <i>California Plumbing Code</i> .						
A4.304.2 Potable water elimination. When landscaping is provided and as allowed by local ordinance, a water efficient landscape irrigation design that eliminates the use of potable water beyond the initial requirements for plant installation and establishment should be provided. Methods used to accomplish the requirements of this section must be designed to the requirements of the <i>California Building Standards Code</i> and shall include, but not be limited to, the following: 1. Use of captured rainwater. 2. Use of recycled water. 3. Water treated for irrigation purposes and conveyed by a water district or public entity. 4. Use of graywater.						
A4.304.3 For new water service connections, landscaped irrigated areas less than 5,000 square feet shall be provided with separate sub-meters or metering devices for outdoor potable water use.						
WATER REUSE SYSTEMS						
4.305.1 Waste piping shall be arranged to permit the discharge from the clothes washer, bathtub, showers, and bathroom/restroom wash basins to be used for a future graywater irrigation system.	X					

4.305.2 When City-recycled water is available for use within 200 feet of the property line, 100% of water for water closets, urinals, floor drains, and process cooling and heating in that building shall come from City-recycled water.	X					
4.305.3 Cooling towers shall comply with LAMC Section 99.04.305.3.1 or 99.04.305.3.2.	X					
4.305.4 Where groundwater is being extracted and discharged, a system for onsite reuse of the groundwater shall be developed and constructed.	X					
A4.305.1 Graywater. Alternative plumbing piping installed to permit the discharge from the clothes washer or other fixtures and used for irrigation in compliance with the Los Angeles Plumbing Code.						
A4.305.2 Recycled water piping is installed.						
A4.305.3 Recycled water is used for landscape irrigation.						
Innovative Concepts and Local Environmental Conditions						
A4.306.1 Items in this section are necessary to address innovative concepts or local environmental conditions.						
Item 1						
Item 2						
Item 3						
MATERIAL CONSERVATION AND RESOURCE EFFICIENCY						
Foundation Systems						
A4.403.2 Cement use in foundation mix design is reduced.						
Tier 1. Not less than a 20% reduction in cement use.		X ²				
Tier 2. Not less than a 25% reduction in cement use.			X ²			
Efficient Framing Techniques						
A4.404.1 Beams and headers and trimmers are the minimum size to adequately support the load.						
A4.404.2 Building dimensions and layouts are designed to minimize waste.						
A4.404.3 Use premanufactured building systems to eliminate solid sawn lumber whenever possible.						
A4.404.4 Material lists are included in the plans which specify material quantity and provide direction for on-site cuts.						
Material Sources						
A4.405.1 One or more of the following building materials, that do not require additional resources for finishing are used:						
1. Exterior trim not requiring paint or stain.						
2. Windows not requiring paint or stain.						
3. Siding or exterior wall coverings which do not require paint or stain.						
A4.405.2 Floors that do not require additional coverings are used including but not limited to stained, natural or stamped concrete floors.						
A4.405.3 Post-consumer or pre-consumer recycled content value (RCV) materials are used on the project.						
Tier 1. Not less than a 10% recycled content value.		X ²				
Tier 2. Not less than a 15% recycled content value.			X ²			
A4.405.4 Renewable source building products are used.						
Enhanced Durability and Reduced Maintenance						
4.406.1 Annular spaces around pipes, electric cables, conduits or other openings in plates at exterior walls shall be protected against the passage of rodents by closing such openings with cement mortar, concrete masonry or similar method acceptable to the enforcing agency.	X					
Water Resistance and Moisture Management						
4.407.3 Provide flashing details on the building plans and comply with accepted industry standards or manufacturer's instructions.	X					
4.407.4 Protect building materials delivered to the construction site from rain and other sources of moisture.	X					
A4.407.1 Install foundation and landscape drains.						
A4.407.2 Install gutter and downspout systems to route water at least 5 feet away from the foundation or connect to landscape drains which discharge to a dry well, sump, bioswale, rainwater capture system or other approved on-site location.						
A4.407.6 Exterior doors to the dwelling are protected to prevent water intrusion.						
A4.407.7 A permanent overhang or awning at least 2 feet in depth is provided.						
Construction Waste Reduction, Disposal and Recycling						
4.408.1 Comply with Section 66.32 et seq. of the Los Angeles Municipal Code.	X					
A4.408.1 Construction waste generated at the site is diverted to recycle or salvage in compliance with one of the following:						
1. Tier 1 at least a 65% reduction. Any mixed recyclables that are sent to mixed-waste recycling facilities shall include a qualified third party verified facility average diversion rate. Verification of diversion rates shall meet minimum certification eligibility guidelines, acceptable to the local enforcing agency.		X ²				
2. Tier 2 at least a 75% reduction with a third-party verification.			X ²			
Exception: Equivalent waste reduction methods are developed by working with local agencies.						
Building Maintenance and Operation						
4.410.1 An operation and maintenance manual shall be provided to the building occupant or owner.	X					

4.410.2 Where 5 or more multi-family dwelling units are constructed on a building site, provide readily accessible areas that serve all buildings on the site and is identified for the depositing, storage and collection of non-hazardous materials for recycling, including (at a minimum) paper, corrugated cardboard, glass, plastics, organic waste, and metals or meet a lawfully enacted local recycling ordinance, if more restrictive. See exception for rural jurisdictions.	X					
Innovative Concepts and Local Environmental Conditions						
A4.411.1 Items in this section are necessary to address innovative concepts or local environmental conditions.						
Item 1						
Item 2						
Item 3						
ENVIRONMENTAL QUALITY						
Fireplaces						
4.503.1 Any installed gas fireplace shall be a direct-vent sealed-combustion type. Any installed woodstove or pellet stove shall comply with U.S. EPA New Source Performance Standards (NSPS) emission limits as applicable, and shall have a permanent label indicating they are certified to meet the emission limits. Woodstoves, pellet stoves and fireplaces shall also comply with applicable local ordinances.	X					
Pollutant Control						
4.504.1 Duct openings and other related air distribution component openings shall be covered during construction.	X					
4.504.2.1 Adhesives, sealants and caulks shall be compliant with VOC and other toxic compound limits	X					
4.504.2.2 Paints, stains and other coatings shall be compliant with VOC limits.	X					
4.504.2.3 Aerosol paints and coatings shall be compliant with product weighted MIR limits for ROC and other toxic compounds.	X					
4.504.2.4 Documentation shall be provided to verify that compliant VOC limit finish materials have been used.	X					
4.504.3 Carpet and carpet systems shall be compliant with VOC limits.	X					
4.504.4 80% of floor area receiving resilient flooring shall comply with specified VOC criteria.						
4.504.5 Particleboard, medium density fiberboard (MDF) and hardwood plywood used in interior finish systems shall comply with low formaldehyde emission standards.	X					
A4.504.1 Use composite wood products made with either California Air Resources Board approved no-added formaldehyde (NAF) resins or ultra-low emitting formaldehyde (ULEF) resins.						
A4.504.2 Install VOC compliant resilient flooring systems.						
Tier 1. At least 90% of the resilient flooring installed shall comply.		X ²				
Tier 2. At least 100% of the resilient flooring installed shall comply.			X ²			
A4.504.3 Thermal insulation installed in the building shall meet the following requirements:						
Tier 1. Install thermal insulation in compliance with VOC limits..		X ²				
Tier 2. Install insulation which contains No-Added Formaldehyde (NAF) and is in compliance with Tier 1.			X ²			
Interior Moisture Control						
4.505.2 Vapor retarder and capillary break is installed at slab-on-grade foundations.	X					
4.505.3 Moisture content of building materials used in wall and floor framing is checked before enclosure.	X					
Indoor Air Quality and Exhaust						
4.506.1 Return air filters with a value greater than MERV 6 shall be installed on HVAC systems. Pressure drop across the filter shall not exceed 0.1 inches water column.						
A4.506.2 [HR] Provide filters on return air openings rated MERV 6 or higher during construction when it is necessary to use HVAC equipment.						
A4.506.3 Direct-vent appliances shall be used when equipment is located in conditioned space; or the equipment must be installed in an isolated mechanical room.						
Environmental Comfort						
4.507.2. Duct systems are sized, designed, and equipment is selected using the following methods: 1. Establish heat loss and heat gain values according to ANSI/ACCA 2 Manual J-2011 or equivalent. 2. Size duct systems according to ANSI/ACCA 1 Manual D-2014 or equivalent. 3. Select heating and cooling equipment according to ANSI/ACCA 3 Manual S-2014 or equivalent.	X					
Outdoor Air Quality Reserved						
Innovative Concepts and Local Environmental Conditions						
A4.509.1 Items in this section are necessary to address innovative concepts or local environmental conditions.						
Item 1						
Item 2						
Item 3						
Installer and Special Inspector Qualifications						
Qualifications						
702.1 HVAC system installers are trained and certified in the proper installation of HVAC systems.	X					

702.2 Special inspectors employed by the enforcing agency must be qualified and able to demonstrate competence in the discipline they are inspecting.	X					
Verifications						
703.1 Verification of compliance with this code may include construction documents, plans, specifications, builder or installer certification, inspection reports, or other methods acceptable to the enforcing agency which show substantial conformance.	X					

- Green building measures listed in this table may be mandatory if adopted by a city, county, or city and county as specified in CALGreen Section 101.7.
- Required prerequisite for this Tier.
- These measures are currently required elsewhere in statute or in regulation.

DIVISION 12

APPENDIX A5 NONRESIDENTIAL VOLUNTARY MEASURES

(Amended by Ord. No. 182,849, Eff. 1/3/14.)

Section
99.12.101 Scope.
99.12.508

SEC. 99.12.101. SCOPE. (Amended by Ord. No. 187,719, Eff. 1/23/23.)

Appendix A5 of the California Green Building Standards Code (CALGreen) is adopted by reference with the following exceptions: CALGreen Sections A5.105.1.1, A5.105.1.2, A5.106.4.3, A5.106.6.1, A5.106.11.1, A5.303.2.3.1, A5.303.2.3.2, A5.303.2.3.3, A5.303.2.3.4, A5.406.1, and Tables A5.106.4.3 A5.106.11.2.2, A5.106.11.2.3, A5.601, and A5.602 are not adopted; and in lieu, Los Angeles Municipal Code Section 99.12.508 and Subsections A5.105.1.1, A5.105.1.2, A5.106.4.3, A5.106.6, A5.106.6.1, A5.106.11.1, A5.303.2.3.1, A5.303.2.3.2, A5.303.2.3.3, A5.303.2.3.4, A5.406.1, A5.410.3, and Tables A5.106.4.3 , A5.106.11.2.2, A5.106.11.2.3, A5.601, and A5.602 are added or amended as provided in this article.

A5.105.1.1. Existing Building Structure. Maintain at least 75 percent of existing building structure (including structural floor and roof decking) and envelope (exterior skin and framing) based on surface area.

EXCEPTIONS:

- Window assemblies and nonstructural roofing material.
- Hazardous materials that are remediated as a part of the project.

A5.105.1.2. Existing Non-Structural Elements. Reuse existing interior nonstructural elements (interior walls, doors, floor coverings and ceiling systems) in at least 50% of the area of the completed building (including additions).

A5.106.4.3. Changing Rooms. (Amended by Ord. No. 185,587, Eff. 7/16/18.) Provide changing/shower facilities for tenant-occupants only in accordance with LAMC Table A5.106.4.3 or document arrangements with nearby changing/shower facilities.

Table A5.106.4.3

Number of Tenant- Occupants	Shower/Changing Facilities Required	2-Tier (12"x15"x72") Personal Effects Lockers Required
0 - 10	1 unisex shower	1
11 - 50	1 unisex shower	2
51 - 100	1 unisex shower	3
101 - 200	1 shower stall per gender	4
Over 200	1 shower stall per gender for each 200 additional tenant-occupants	One 2-tier locker for each 50 additional tenant-occupants

Note: Additional information on recommended bicycle accommodations may be obtained from Sacramento Area Bicycle Advocates.

A5.106.6. Parking Capacity. Design parking capacity to meet but not exceed minimum local zoning requirements.

A5.106.6.1. Reduce Parking Capacity. With the approval of the enforcement authority, employ strategies to reduce on-site parking area by 20%.

- Use of on street parking or compact spaces, illustrated on the site plan; or
- Implementation and documentation of programs that encourage occupants to carpool, ride share or use alternate transportation.

Note: Strategies for programs may be obtained from local TMAs.

A5.106.11.1. Hardscape Alternatives [N]. (Added by Ord. No. 187,208, Eff. 11/5/21.) Use one or a combination of strategies below for 75% of site hardscape.

- Provide shade (mature within 15 years of occupancy);
- Use light colored materials with an initial solar reflectance value of at least .30 as determined in accordance with American Society for Testing and Materials (ASTM) Standards E 1918 or C 1549;

3. Use open-grid pavement system or pervious or permeable pavement system; or
4. Use solar panel arrays to create a canopy shade system.

TABLE A5.106.11.2.2 [BSC]

TIER 1

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3-YEAR AGED SRI
≤ 2 : 12	0.68	0.85	82
> 2 : 12	0.28	0.85	27

TABLE A5.106.11.2.3

TIER 2

ROOF SLOPE	MINIMUM 3-YEAR AGED SOLAR REFLECTANCE	THERMAL EMITTANCE	3-YEAR AGED SRI
≤ 2 : 12	0.70	0.85	85
> 2 : 12	0.34	0.85	35

A5.303.2.3.1. Tier 1 - 12 Percent Savings. A schedule of plumbing fixtures and fixture fittings that will reduce the overall use of potable water within the building by 12% shall be provided. The reduction shall be based on the maximum allowable water use per plumbing fixture and fitting as required by the Los Angeles Building Standards Code in Article 1, Chapter IX of the LAMC.

A5.303.2.3.2. Tier 2 - 20 Percent Savings. A schedule of plumbing fixtures and fixture fittings that will reduce the overall use of potable water within the building by 20% shall be provided. A calculation demonstrating a 20% reduction in the building shall be provided. The reduction shall be based on the maximum allowable water use per plumbing fixture and fitting as required by the Los Angeles Municipal Code.

A5.303.2.3.3. 25 Percent Savings. A schedule of plumbing fixtures and fixture fittings that will reduce the overall use of potable water within the building by 25% shall be provided. A calculation demonstrating a 25% reduction in the building "water use baseline" shall be provided. The reduction shall be based on the maximum allowable water use per plumbing fixture and fitting as required by the Los Angeles Municipal Code.

A5.303.2.3.4. Nonpotable Water Systems for Indoor Water Use. Utilizing nonpotable water systems (such as captured rainwater, treated graywater, and recycled water) intended to supply water closets, urinals, and other allowed uses, may be used in the calculations demonstrating the 12%, 20%, or 25% reduction. The nonpotable water system shall comply with the current edition of the Los Angeles Plumbing Code at Article 4, Chapter IX of the LAMC.

A5.406.1. Choice of Materials. Compared to other products in a given product category, choose materials proven to be characterized by one or more of the following for a minimum of 5% of the total value, based on estimated cost of materials on the project.

A5.410.3. Commissioning. For new buildings under 10,000 square feet (929.03 m²) or for additions, building commissioning shall be included in the design and construction processes of the building project to verify that the building systems and components meet the owner's or owner representative's project requirements. Commissioning shall be performed in accordance with this section by trained personnel with experience on projects of comparable size and complexity. Commissioning requirements shall include:

1. Owner's or owner representative's project requirements;
2. Basis of design;
3. Commissioning measures shown in the construction documents;
4. Commissioning plan;
5. Functional performance testing;
6. Documentation and training;
7. Commissioning report.

All building operating systems covered by California Code of Regulations Title 24, Part 6, as well as process equipment and controls and renewable energy systems shall be included in the scope of the commissioning requirements. **(Amended by Ord. No. 185,587, Eff. 7/16/18.)**

TABLE A5.601 NONRESIDENTIAL BUILDINGS:

Green Building Standards Code Proposed Performance Approach

Note: This table is intended only as an aid in illustrating the nonresidential tier structure

(Refer to Checklists A5.602, A5.602.1, and A5.602.2 for CALGreen verification guidelines for Mandatory Checklist, Tier 1 Checklist, and Tier 2 Checklist.)

[Click here for a printable PDF version of this table](#)

CATEGORY	ENVIRONMENTAL PERFORMANCE GOAL	TIER 1	TIER 2
CATEGORY	ENVIRONMENTAL PERFORMANCE GOAL	TIER 1	TIER 2
All	Minimum Mandatory (See Mandatory Checklist)	Meet all of the provisions of Chapter 5 (See Tier 1 Checklist)	Meet all of the provisions of Chapter 5 (See Tier 2 Checklist)
DIVISION 5.1 Planning and Design	Designated Parking for Fuel Efficient Vehicles	Meet Table A5.106.5.1.1	Meet Table A5.106.5.1.2
	Electric Vehicle Charging	Approx. 8% of total spaces	Approx. 10% of total spaces
	Cool Roof to Reduce Heat Island Effect	Meet Table A5.106.11.2.2	Meet Table A5.106.11.2.3

		1 additional Elective from Division A5.1	3 additional Electives from Division A5.1
DIVISION 5.2 Energy Efficiency	Energy Performance ²	Outdoor lighting power 90% of Part 6 allowance	Outdoor lighting power 90% of Part 6 allowance
		If applicable, solar water-heating system with minimum solar savings fraction of 0.15	If applicable, solar water-heating system with minimum solar savings fraction of 0.15
		Warehouse door seals	Warehouse door seals
		Comply with day lighting requirements	Comply with day lighting requirements
		Exhaust heat recovery	Exhaust heat recovery
		Energy Budget 95% or 90% of Part 6 calculated value of allowance	Energy Budget 90% or 85% of Part 6 calculated value of allowance
DIVISION 5.3 Water Efficiency and Conservation	Indoor Water Use	12% Savings	20% Savings
		1 additional Elective from Division A5.3	3 additional Electives from Division A5.3
DIVISION 5.4 Material Conservation and Resource Efficiency³	Construction Waste Reduction	At least 65% reduction	At least 80% reduction
	Recycled Content	Utilize recycled content materials for 10% of total material cost	Utilize recycled content materials for 15% of total material cost
		1 additional Elective from Division A5.4	3 additional Electives from Division A5.4
Division 5.5 Environmental Quality	Low-VOC Resilient Flooring	90% of flooring meets VOC limits	100% of flooring meets VOC limits ¹
	Low-VOC Thermal Insulation	Comply with VOC limits	Install no-added formaldehyde insulation and comply with VOC limits
		1 additional Elective from Division A5.5	3 additional Electives from Division A5.5
Additional Measures		1 Additional Elective from any division	3 Additional Electives from any division
Approximate Total Measures		15	25

- Exception: Allowance may be permitted in Tier 2 for up to 5 percent specialty purpose flooring.
- Solar water-heating system requirement for newly constructed restaurants as per A5.203.1.1.2.
Exceptions:
 - Buildings with a natural gas service water heater with a minimum of 95 percent thermal efficiency.
 - Buildings where greater than 75 percent of the total roof area has annual solar access that is less than 70 percent. Solar access is the ratio of solar insolation including shade to the solar insolation without shade. Shading from obstructions located on the roof or any other part of the building shall not be included in the determination of annual solar access.
- Life cycle assessment compliant with Section A5.409.4 in this code may be substituted for prescriptive measures from Division A5.4.

SEC. 99.12.508.
(Amended by Ord. No. 187,719, Eff. 1/23/23.)
Section A5.602 of the 2016 CALGreen Code is adopted with amendments to read as follows:

TABLE A5.602

CALGREEN VERIFICATION GUIDELINES MANDATORY MEASURES CHECKLIST
[Click here for a printable PDF version of this table](#)

Application: This checklist shall be used for nonresidential projects that meet one of the following: new construction, building additions of 1,000 square feet or greater, or building alterations with a permit valuation of \$200,000 or more pursuant to Section 301.3 AND do not trigger a Tier 1 or Tier 2 requirement:

Y = Yes (section has been selected and/or included)
N/A = Not Applicable (code section does not apply to the project – mainly used for additions and alterations)
O = Other (provide explanation)
[N] = New construction pursuant to Section 301.3
[A] = Additions and/or Alterations pursuant to Section 301.3

CHAPTER 5 DIVISIONS		SECTION TITLE	CODE SECTION	Y	N/A	O	PLAN SHEET, SPEC, OR ATTACH REFERENCE
CHAPTER 5 DIVISIONS		SECTION TITLE	CODE SECTION	Y	N/A	O	PLAN SHEET, SPEC, OR ATTACH REFERENCE
	Mandatory	Storm water pollution prevention for projects that disturb less than 1 acre of land	5.106.1 through 5.106.2				
	Mandatory	Short-term bicycle parking (with exception)	5.106.4.1.1				
	Mandatory	Long-term bicycle parking	5.106.4.1.2 through 5.106.4.1.5				
	Mandatory	Electric vehicle (EV) charging [N] w/ exceptions	5.106.5.3				
	Mandatory	EV capable spaces [N]	5.106.5.3.1				
	Mandatory	Electric vehicle charging stations (EVCS)	5.106.5.3.2				
	Mandatory	Use of automatic load management systems (ALMS)	5.106.5.3.3				

DIVISION 5.1 Planning and Design	Mandatory	Accessible EVCS	5.106.5.3.4				
	Mandatory	Note for EVCS signs					
	Mandatory	Table 5.106.5.3.1 w/ footnotes	5.106.3.1, 5.106.3.2 and 5.106.3.3				
	Mandatory	Electric vehicle (EV) charging: medium-duty and heavy-duty [N]	5.106.5.4				
	Mandatory	Electric vehicle charging readiness requirements for warehouses, grocery stores and retail stores with planned off-street loading spaces [N]	5.106.8				
	Mandatory	Table 5.106.5.4.1	5.106.5.4 and 5.106.5.4.1				
	Mandatory	Light pollution reduction [N] (with exceptions, notes and table)	5.106.8 through 5.106.8.2				
	Mandatory	Grading and paving (exception for additions and alterations not altering the drainage path)	5.106.10				
	Mandatory	Heat island effect	5.106.11				
	Mandatory	Hardscape alternatives [N]	5.106.11.1				
Division 5.2 Energy Efficiency	Mandatory	Meet the minimum energy efficiency standard	5.201.1				
Division 5.3 Water Efficiency and Conservation	Mandatory	Separate meters (new buildings or additions > 50,000 sf that consume more than 100 gal/day)	5.303.1.1				
	Mandatory	Separate meters (for tenants in new buildings or additions that consume more than 1,000 gal/day)	5.303.1.2				
	Mandatory	Water Reduction	5.303.2				
	Mandatory	Water closets shall not exceed 1.28 gallons per flush (gpf)	5.303.3.1				
	Mandatory	Wall-mounted urinals shall not exceed 0.125 gpf	5.303.3.2.1				
	Mandatory	Floor-mounted urinals shall not exceed 0.5 gpf	5.303.3.2.2				
	Mandatory	Single showerhead shall have maximum flow rate of 1.8 gpm (gallons per minute) at 80 psi	5.303.3.3.1				
	Mandatory	Multiple showerheads serving one shower shall have a combined flow rate of 1.8 gpm at 80 psi	5.303.3.3.2				
	Mandatory	Nonresidential lavatory faucets	5.303.3.4.1				
	Mandatory	Kitchen faucets	5.303.3.4.2				
	Mandatory	Wash fountains	5.303.3.4.3				
	Mandatory	Metering faucets	5.303.3.4.4				
	Mandatory	Metering faucets for wash fountains	5.303.3.4.5				
	Mandatory	Pre-rinse spray valve	5.303.3.4.6				
	Mandatory	Food waste disposers	5.303.4.1				
	Mandatory	Areas of additions or alterations	5.303.5				
	Mandatory	Standards for plumbing fixtures and fittings	5.303.6				
	Mandatory	Outdoor potable water use in landscape areas (with notes)	5.304.1				
	Mandatory	Weather protection	5.407.1				
	Mandatory	Moisture control: sprinklers	5.407.2.1				
Division 5.4 Material Conservation and Resource Efficiency	Mandatory	Moisture control: exterior door protection	5.407.2.2.1				
	Mandatory	Moisture control: flashing	5.407.2.2.2				
	Mandatory	Construction waste management – comply with either: Sections 5.408.1.1, 5.408.1.2, 5.408.1.3 or more stringent local ordinance	5.408.1.1, 5.408.1.2, 5.408.1.3				
	Mandatory	Construction waste management: documentation	5.408.1.4				
	Mandatory	Universal waste [A]	5.408.2				
	Mandatory	Excavated soil and land clearing debris (100% reuse or recycle)	5.408.3				
	Mandatory	Recycling by occupants (with exception)	5.410.1				
	Mandatory	Recycling by occupants: additions (with exception)	5.410.1.1				
	Mandatory	Recycling by occupants: sample ordinance	5.410.1.2				
	Mandatory	Commissioning new buildings (≥ 10,000 sf) [N]	5.410.2				
	Mandatory	Owner's or owner representative's Project Requirements (OPR) [N]	5.410.2.1				
	Mandatory	Basis of Design (BOD) [N]	5.410.2.2				
	Mandatory	Commissioning plan [N]	5.410.2.3				
	Mandatory	Functional performance testing [N]	5.410.2.4				
	Mandatory	Documentation and training [N]	5.410.2.5				
	Mandatory	Systems manual [N]	5.410.2.5.1				
	Mandatory	Systems operation training [N]	5.410.2.5.2				
	Mandatory	Commissioning report [N]	5.410.2.6				
	Mandatory	Testing and adjusting for new buildings < 10,000 sf or new systems that serve additions or alterations [A]	5.410.4				
	Mandatory	System testing plan for renewable energy, landscape irrigation and water reuse [A]	5.410.4.2				
	Mandatory	Procedures for testing and adjusting	5.410.4.3				
	Mandatory	Procedures for HVAC balancing	5.410.4.3.1				
	Mandatory	Reporting for testing and adjusting	5.410.4.4				
	Mandatory	Operation and maintenance (O&M) manual	5.410.4.5				
	Mandatory	Inspection and reports	5.410.4.5.1				
	Mandatory	Fireplaces	5.503.1				
	Mandatory	Woodstoves	5.503.1.1				

Division 5.5 Environmental Quality	Mandatory	Temporary ventilation	5.504.1				
	Mandatory	Covering of ducts openings and protection of mechanical equipment during construction	5.504.3				
	Mandatory	Adhesives, sealants and caulks	5.504.4.1				
	Mandatory	Paints and coatings	5.504.4.3				
	Mandatory	Aerosol paints and coatings	5.504.4.3.1				
	Mandatory	Aerosol paints and coatings: verification	5.504.4.3.2				
	Mandatory	Carpet systems	5.504.4.4				
	Mandatory	Carpet cushion	5.504.4.4.1				
	Mandatory	Carpet adhesives per Table 5.504.4.1	5.504.4.4.2				
	Mandatory	Composite wood products	5.504.4.5				
	Mandatory	Composite wood products: documentation	5.504.4.5.3				
	Mandatory	Resilient flooring systems	5.504.4.6				
	Mandatory	Resilient flooring: verification of compliance	5.504.4.6.1				
	Mandatory	Thermal insulation	5.504.4.7				
	Mandatory	Verification of compliance	5.504.4.7.1				
	Mandatory	Acoustical ceilings and wall panels	5.504.4.8				
	Mandatory	Verification of compliance	5.504.4.8.1				
	Mandatory	Filters (with exceptions)	5.504.5.3				
	Mandatory	Filters: labeling	5.504.5.3.1				
	Mandatory	Environmental tobacco smoke (ETS) control	5.504.7				
	Mandatory	Indoor moisture control	5.505.1				
	Mandatory	Outside air delivery	5.506.1				
	Mandatory	Carbon dioxide (CO ₂) monitoring	5.506.2				
	Mandatory	Acoustical control (with exception)	5.507.4				
	Mandatory	Exterior noise transmission, prescriptive method (with exceptions)	5.507.4.1				
	Mandatory	Noise exposure where noise contours are not readily available	5.507.4.1.1				
	Mandatory	Performance method	5.507.4.2				
	Mandatory	Site features	5.507.4.2.1				
	Mandatory	Documentation of compliance	5.507.4.2.2				
	Mandatory	Interior sound transmission (with note)	5.507.4.3				
	Mandatory	Ozone depletion and greenhouse gas reductions	5.508.1				
	Mandatory	Chlorofluorocarbons (CFCs)	5.508.1.1				
	Mandatory	Halons	5.508.1.2				
	Mandatory	Supermarket refrigerant leak reduction for retail food stores 8,000 square feet or more Sections 5.508.2 through 5.508.2.6.3	5.508.2 through 5.508.2.6.3				
		END OF MANDATORY PROVISIONS					
Documentation Author's / Responsible Designer's Declaration Statement							
☐ Mandatory: I attest that this mandatory provisions checklist is accurate and complete.							
Signature:							
Company:			Date:				
Address:			License:				
City/State/Zip:			Phone:				